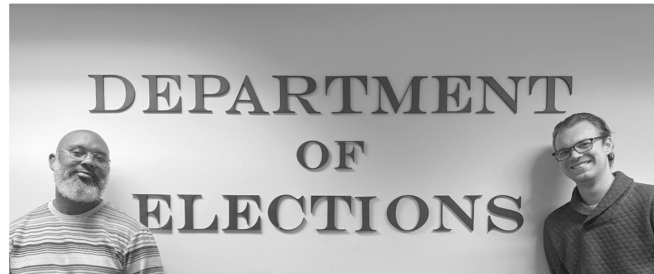
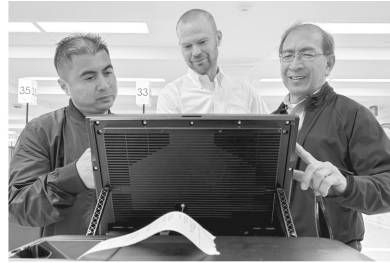




City and County of San Francisco
Department of Elections

Voter Information Pamphlet

November 3, 2026
Consolidated General Election



This pamphlet is available in PDF, HTML, and audio formats and is produced in English, 中文, Español, Filipino, and Tiếng Việt. Large-print and audio on CD or USB are available upon request. To request a language or format, call (415) 558-6100 or email sfvote@sfgov.org.

November 3, 2026 Election

Cast your ballot today and help shape the future of our city, state, and country!
Encourage your friends and family to do the same!

Election Highlights

- Every registered voter will receive a ballot by mail.
- You may vote by mail or in person.
- To vote by mail, complete and return your ballot as early as possible to ensure timely delivery.
- Your ballot must be postmarked on or before Election Day or delivered by 8 p.m. on Election Day to a polling place or official drop box to be counted.
- In-person voting is available at the City Hall Voting Center from October 5 through November 3 or at your polling place on Election Day.
- Voters who need an accessible ballot may access, mark, and print one at sfelections.gov/access.

Important Dates

October 5

- Ballots begin arriving in the mailboxes of registered voters.
- 37 official ballot drop boxes open citywide and remain available 24/7 through 8 p.m. on Election Day.
- The Accessible Vote-by-Mail portal opens for all voters.

October 5–November 2

- The City Hall Voting Center is open weekdays from 8 a.m. to 5 p.m. during the early voting period, except October 12 (Indigenous Peoples' Day).

October 19

- Deadline to register or update your registration to receive a ballot by mail.
- After this date, eligible residents can still register and vote at the City Hall Voting Center or at their assigned polling place on Election Day.

October 24–25 and October 31–November 1

- Weekend voting available at City Hall from 10 a.m. to 4 p.m.

Election Day, Tuesday, November 3

- The City Hall Voting Center and 501 neighborhood polling places are open from 7 a.m. to 8 p.m.
- Last day to vote in person or return a ballot by 8 p.m.

Know Your Rights

Every voter has the right to:

- Vote privately and independently.
- Receive language assistance.
- Request accessible voting options.
- Register and vote on Election Day.

Serve as a Poll Worker

Make a difference in your community by serving as a poll worker on Election Day.

Poll workers can earn up to \$295 for one day service.
Bilingual individuals are encouraged to apply.

Apply at sfelections.gov/pwvip or call (415) 558-6120.



Scan the QR code to visit our website.

You can read this pamphlet online and learn more at sfelections.gov.

To stop receiving this pamphlet by mail in future elections, visit sfelections.gov/voterportal.

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Front cover photos: The front cover features year-round Department of Elections personnel whose work provides San Francisco voters with highly accessible and trustworthy election services and voting opportunities.

San Francisco Voter Information Pamphlet

Published by the Department of Elections
City and County of San Francisco
1 Dr. Carlton B. Goodlett Place
City Hall, Room 48
San Francisco, CA 94102-4634
sfelections.gov

**Please recycle
this pamphlet.**



Layout/typesetting by InterEthnica
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If the Department of Elections becomes aware of any substantial errors after this pamphlet has been mailed, a correction will be published in the Public Notices section of the *San Francisco Examiner* on October 21 and 22.

Before publication of the Voter Information Pamphlet, any voter has the right under California Elections Code Sections 9295 and 13314 to seek a writ of mandate or an injunction requiring any materials submitted for publication in the Pamphlet to be amended or deleted.



CITY AND COUNTY OF SAN FRANCISCO DEPARTMENT OF ELECTIONS

John Arntz, Director

Dear San Francisco Voter,

August 31, 2026

The November 3, 2026, Consolidated General Election is your opportunity to make your voice heard, which is why the theme for this election is “One and All. Vote This Fall.” Your four-card ballot will include federal, state, and local contests, along with state, regional, and local measures.

This Voter Information Pamphlet provides official, nonpartisan information to help you understand your ballot and plan to vote. We encourage you to review the information in this pamphlet and visit the Voter Portal at **sfelections.gov/voterportal** to check your registration, track your vote-by-mail ballot, and manage your language and delivery preferences.

Get Ready to Vote

Most San Francisco voters will receive their vote-by-mail ballot during the first week of October. You can choose the voting option that works best for you:

1. **Mail your ballot** using the postage-paid return envelope, ensuring it is postmarked on or before Election Day. To find the nearest USPS blue collection box, visit **tools.usps.com/locations**.
2. **Use an Official Ballot Drop Box.** Beginning October 5, San Francisco will have 37 secure Official Ballot Drop Box locations available around the clock through 8 p.m. on Election Day. Ballots returned through these drop boxes go directly to the Department of Elections. Find a location at **sfelections.gov/dropboxes**.
3. **Vote in person.** You can return your completed vote-by-mail ballot or cast your ballot at any of San Francisco’s 501 polling places on Election Day or at the City Hall Voting Center. Find a location at **sfelections.gov/myvotinglocation**.

At the City Hall Voting Center, you can also get a replacement ballot, register to vote or update your voter registration, and receive help in multiple languages.

The Voting Center will be open on weekdays beginning October 5 from 8 a.m. to 5 p.m., except on October 12. It will also be open on weekends, October 24–25 and October 31–November 1, from 10 a.m. to 4 p.m. On Election Day, November 3, it will be open from 7 a.m. to 8 p.m.

Every Vote Matters

More than one million ballot cards are expected in this election. Counting this many ballots will take time. We are already expanding our capacity, and will be working around the clock after Election Day, to efficiently process ballot cards.

We expect to count most ballot cards and report results within several days after Election Day. Processing will continue until every eligible ballot has been counted. Under state law, final election results may be certified beginning November 25.

Your Official Election Resource

The San Francisco Department of Elections is here to help. For election information and assistance, visit **sfelections.gov**, email **SFVote@sfgov.org**, or call (415) 558-6100.

We are committed to providing San Franciscans with elections that are free, fair, and functional. We look forward to your participation in this election!

Respectfully,
John Arntz, Director

Phone (415) 558-6100
Fax (415) 558-6109
TTY (415) 558-6108
sfvote@sfgov.org

sfelections.gov
1 Dr. Carlton B. Goodlett Place
City Hall, Room 48
San Francisco, CA 94102

中文 (415) 558-6102
Español (415) 558-6103
Filipino (415) 558-6104
Tiếng Việt (415) 558-6105

Official Local and State Voter Guides

At the start of every voting period, all San Francisco voters receive the local Voter Information Pamphlet & Sample Ballot. For statewide elections, voters also receive the state Voter Information Guide. Both guides are useful resources to help you prepare for the election. Here is a comparison of the two guides:

The Voter Information Pamphlet		The Voter Information Guide
Publisher	San Francisco Department of Elections	California Secretary of State
Topics	Local election information and contests on the ballot	Statewide election information and contests on the ballot
Sample Ballot	Included	Not included
Languages	English, Chinese, Spanish, Filipino, Vietnamese	English, Spanish, Chinese, Hindi, Japanese, Khmer, Korean, Tagalog, Thai, Vietnamese
Formats	• Regular and large print • Audio on CD or USB • PDF • HTML and MP3 at sfelections.gov/vip	• Regular and large print • Audio on CD • PDF • American Sign Language video at voterguide.sos.ca.gov

November 3, 2026 Election Ballot

Your ballot contains 4 cards, listing the following contests:

Voter-Nominated Offices

- Governor
- Lieutenant Governor
- Secretary of State
- Controller
- Treasurer
- Attorney General
- Insurance Commissioner
- Board of Equalization Member, District 2
- United States Representative, District 11 or District 15
- State Assembly Member, District 17 or District 19

Judicial Offices

- Associate Justices of the Supreme Court
- Presiding Justices, Court of Appeal
- Associate Justices, Court of Appeal

Nonpartisan Offices

- State Superintendent of Public Instruction
- Member, Board of Education, three seats
- Trustee, Community College Board, three seats (4-year term ending January 8, 2031)
- Trustee, Community College Board, one seat (remainder of the current term ending January 8, 2029)

District Offices

- BART Director, District 8*
**Voters residing in BART District 7 or District 9 will not have this contest on their ballot because they will elect their representatives in the November 2028 Election. Check your BART District at sfelections.gov/voterportal.*

Local Offices that use Ranked-Choice Voting

- Assessor-Recorder
- Public Defender
- Member, Board of Supervisors, District 2, 4, 6, 8, or 10*
**Voters residing in odd-numbered Supervisorial Districts will not have this contest on their ballots because they will elect their representatives in the November 2028 Election. Check your Supervisorial District at sfelections.gov/voterportal.*

14 State Measures

1 Regional Measure

10 Local Measures

Use the **Ballot Worksheet** on page 246 to mark your choices in advance, so you can save time and avoid mistakes when marking your official ballot.

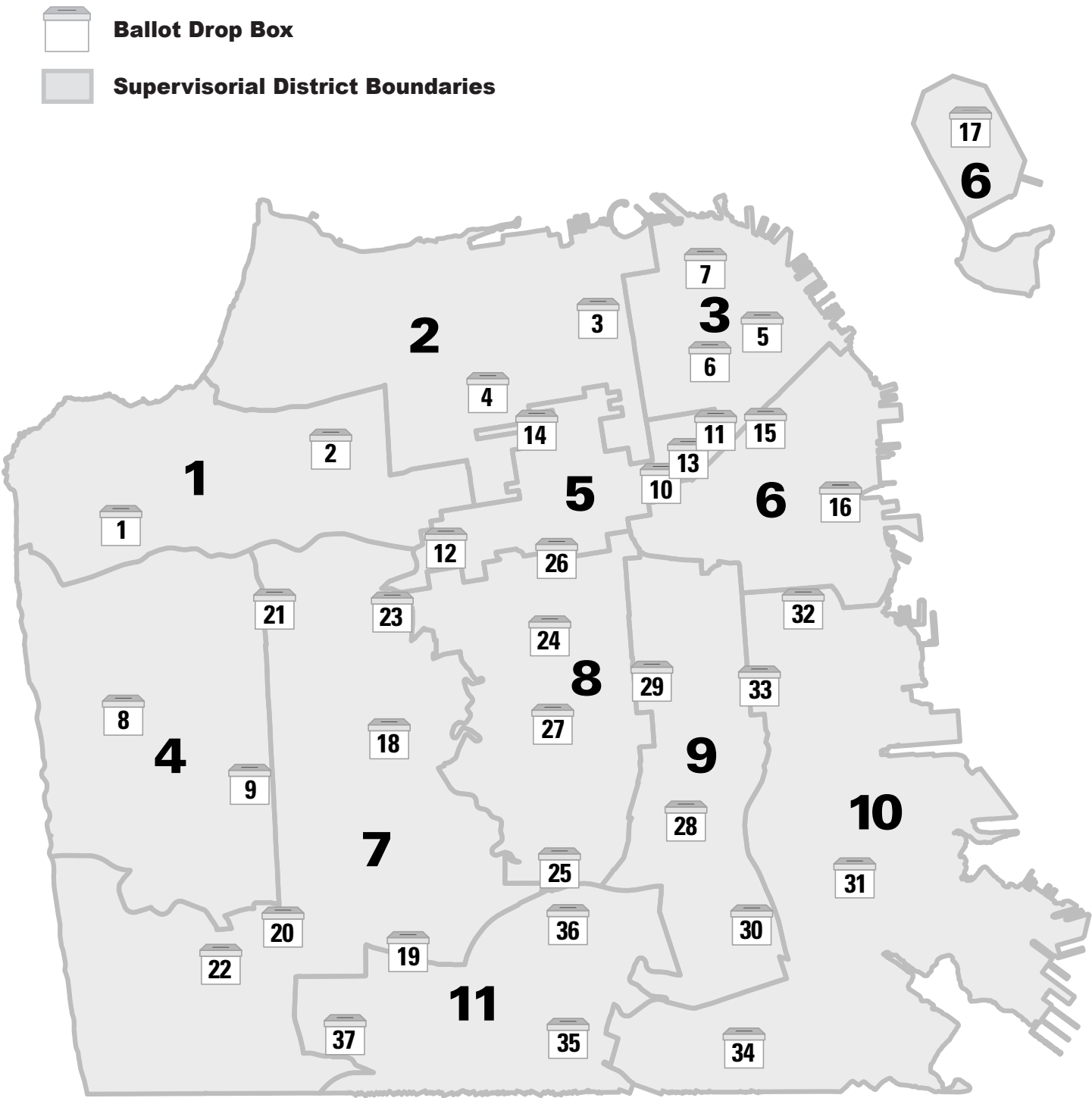
Where, When, and How to Vote in This Election

Local voters can vote by mail or in person. See the table for details.

How to Vote by Mail		
	Paper Mail Ballot	Accessible Mail Ballot
Where do I get my mail ballot?	• A vote-by-mail packet will be mailed to the address on your voter record. • You can update your record or request your packet be sent to a different address, if needed.	• Download a printable ballot at sfelections.gov/access. • Supports screen-readers, head-pointers, sip and puffs, or keyboard tapping devices.
When will I get my ballot?	Starting 29 days before Election Day	
How do I fill out my ballot?	1. Read all ballot card instructions. 2. Make selections with a dark pen. 3. Remove receipts and fold cards. 4. Place cards in return envelope. 5. Complete and sign envelope. 6. Return by mail or hand-delivery.	1. Read all online instructions. 2. Use your preferred input method to mark the ballot. 3. Follow prompts to print the ballot. 4. Get your ballot return envelope. 5. Complete and sign the envelope. 6. Return your ballot by mail or hand-delivery.
When do I return my ballot?	Return your vote-by-mail ballot by Election Day, November 3 using one of the following methods: 1. Any time before Election Day: Return your ballot to any official drop box or the City Hall Voting Center. You may also return it by mail. 2. By 8 p.m. on Election Day (Tuesday, November 3): Deliver your ballot to any official drop box, polling place, or the City Hall Voting Center. 3. By mail on Election Day (Tuesday, November 3): Take your ballot to a post office and request a manual postmark. Ballots postmarked after Election Day cannot be counted.	
How to Vote in Person		
Where do I vote?	1. During the voting period: Visit the City Hall Voting Center any time during opening hours. The Voting Center provides ballots for voters from all San Francisco neighborhoods. 2. On Election Day: Go to your assigned polling place. To find your polling place and get the correct ballot, visit sfelections.gov/myvotinglocation or see the back cover of your pamphlet.	
When do I vote?	At the City Hall Voting Center: • Weekdays, October 5 through November 2, from 8 a.m. to 5 p.m. (except October 12) • The two weekends before Election Day (October 24–25 and October 31–November 1), from 10 a.m. to 4 p.m. • On Election Day (Tuesday, November 3), from 7 a.m. to 8 p.m. At your assigned polling place: • On Election Day (Tuesday, November 3), from 7 a.m. to 8 p.m.	
How do I vote?	1. Check in: Provide your name and address to the poll worker. 2. Select your ballot: Choose your preferred language and format. 3. Go to a booth: Take your voting materials to a booth. 4. Mark your ballot: Use a pen or accessible device to mark your selections. 5. Protect your ballot: Place it in a secrecy sleeve or return envelope. 6. Vote your ballot: Use a ballot-scanning machine or official ballot box. 7. Get an “I Voted!” sticker: If you like, wear it and take a selfie to encourage others to do so!	

Official Ballot Drop Boxes in San Francisco

Beginning October 5, you can return your ballot to any of the City’s 37 official drop boxes. All drop boxes are located outdoors, accessible, and open 24/7 until 8 p.m. on Election Day, November 3.



Supervisory District	Ballot Drop Box	Location	Address
1	1	Cabrillo Playground	853 38th Ave
	2	Richmond/Senator Milton Marks Branch Library	351 9th Ave
2	3	Golden Gate Valley Branch Library	1801 Green St
	4	Presidio Branch Library	3150 Sacramento St
3	5	City College of San Francisco - Chinatown Center	808 Kearny St
	6	Huntington Park	California St and Taylor St
	7	North Beach Branch Library	850 Columbus Ave
4	8	Ortega Branch Library	3223 Ortega St
	9	Parkside Branch Library	1200 Taraval St
5	10	City Hall	1 Dr Carlton B Goodlett Pl
	11	Father Alfred E. Boeddeker Park	246 Eddy St
	12	Park Branch Library	1833 Page St
	13	UC Law San Francisco	200 McAllister St
	14	Western Addition Branch Library	1550 Scott St
6	15	Jessie Square	730 Mission St
	16	Mission Bay Branch Library	960 4th St
	17	Ship Shape Community Center	850 Avenue I
7	18	Forest Hill Station (Muni Metro)	380 Laguna Honda Blvd
	19	Ingleside Branch Library	1298 Ocean Ave
	20	Merced Branch Library	155 Winston Dr
	21	Sunset Branch Library	1305 18th Ave
	22	San Francisco State - Mashouf Wellness Center	755 Font Blvd
	23	UCSF Medical Center - Millberry Union Plaza	500 Parnassus Ave
8	24	Eureka Valley Recreation Center	100 Collingwood St
	25	Glen Park BART Station	2901 Diamond St
	26	Harvey Milk Recreation Center	50 Scott St
	27	Noe Valley/Sally Brunn Branch Library	451 Jersey St
9	28	Bernal Heights Branch Library	500 Cortland Ave
	29	City College of San Francisco - Mission Center	1125 Valencia St
	30	Portola Branch Library	380 Bacon St
10	31	Bayview/Linda Brooks-Burton Branch Library	5075 3rd St
	32	Jackson Playground Rec Center	Mariposa St and Arkansas St
	33	Zuckerberg San Francisco General Hospital and Trauma Center	1001 Potrero Ave
	34	Visitacion Valley Branch Library	201 Leland Ave
11	35	Crocker Amazon Playground	799 Moscow St
	36	Excelsior Branch Library	4400 Mission St
	37	Ocean View Branch Library	345 Randolph St

Marking Your Ballot

Steps for Marking All Types of Contests

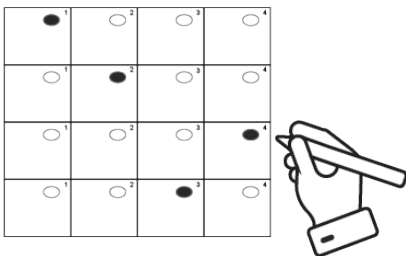
1. Read the instructions on each ballot card before marking any contest.
2. Use a pen with black or blue ink to ensure your selections are readable.
3. Fill in the oval(s) to the right of your choice(s) to mark your selections.
4. Skip any contests you do not want to vote on. Your other votes will still count.
5. To vote for a qualified write-in candidate*, write the candidate's name in the space below the candidate list and fill in the oval next to the name.

Steps for Marking Ranked-Choice Voting Contests

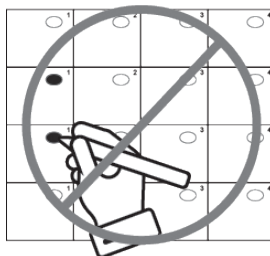
In ranked-choice voting contests, candidates appear in the left column of a grid, and numbered rankings appear in the top row.

1. To rank candidates in order of your preference, fill in the ovals from left to right, as shown in picture 1.
 - Mark the **first column** for your **first-choice candidate**.
 - Mark the **second column** for your **second-choice candidate**.
 - Mark the **third column** for your **third-choice candidate**, and so on.
2. You can rank as few or as many candidates as you like, up to 10.
3. You can leave columns blank if you do not want to rank certain candidates or there are fewer than three candidates for an office.
4. Do not fill in more than one oval per column, as shown in picture 2. If you give the same ranking to multiple candidates, your vote will not count.
5. Do not rank the same candidate multiple times, as shown in picture 3. Only your first ranking for that candidate will count.
6. To vote for a qualified write-in candidate*, write the name in the space below the candidate list, and fill in the oval for the rank.

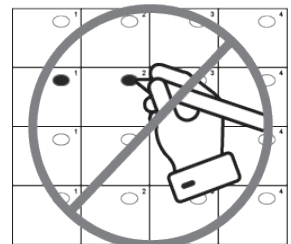
1 Rank candidates in order of your preference



2 Do not fill in more than one oval in the same column



3 Do not fill in more than one oval for a candidate



*A qualified write-in candidate is a person who has submitted the required documentation to run for office after the ballots were printed. A list of qualified write-in candidates will be available at sfelections.gov/writein and the City Hall Voting Center starting October 23 as well as all polling places on Election Day, November 3.

How Ranked-Choice Voting Contests Are Counted

First, everyone's first choice votes are counted. If any candidate receives a majority of first-choice votes (50%+1), that candidate wins.

If no candidate receives a majority, the candidate with the lowest number of votes is eliminated. Voters who selected the eliminated candidate have their votes moved to their next choice. The votes are counted again. If a candidate now has a majority of votes, that candidate wins.

If there is still no winner, the process of eliminating the candidate with the lowest number of votes continues until a candidate has a majority.

Learn More About Ranked-Choice Voting

We have several resources to help you understand this voting method:

- Visit sfelections.gov/RCV to learn when and how ranked-choice voting is used.
- Practice marking a sample ranked-choice voting contest and see how your choices would be counted at sfelections.gov/practiceRCV.
- Watch a presentation on ranked-choice voting on our YouTube channel, [SFElections](#).

Need to Request a New Ballot?

If you make a mistake while marking your ballot, you can request a replacement:

- Online: sfelections.gov/voterportal
- By phone: (415) 558-6100
- In person: at City Hall Voting Center or at your polling place on Election Day

Track Your Ballot

Visit sfelections.gov/voterportal to track your ballot and confirm when it has been accepted for counting. If there is an issue with your ballot envelope, such as a missing signature, the portal will alert you and provide instructions on how to resolve the issue.

You can also sign up for automatic updates by email, text, or phone at wheresmyballot.sos.ca.gov.

Maintaining Your Voter Record

We mail ballots and other election materials to the address in your voter record. You can check your voter record at voterstatus.sos.ca.gov and update your address at registertovote.ca.gov.

By law, the information in your voter record cannot be used for commercial purposes, but it can be used for certain non-commercial purposes. To learn more, call the Secretary of State at 800-345-8683 or visit sos.ca.gov.

Are you in a dangerous situation and want to use a confidential address for your election mail? To see if you qualify for the Safe at Home program, call 877-322-5227 or visit sos.ca.gov/registries/safe-home.

Non-citizen Voting in Local Board of Education Elections

Local law allows certain non-citizens to register and vote in local Board of Education elections.

Non-citizens may register and vote in the **November 3, 2026, Board of Education Election** if they are parents, legal guardians, or caregivers of a child living in San Francisco and who is under 19 years old on Election Day. Learn more at sfelections.gov/ncv.

Election Results

On Election Night, after the polls close, the Department of Elections will issue four preliminary election results reports for San Francisco's November 3, 2026, Consolidated General Election.

1. **8:45 p.m.** – The first report will include results from most of the vote-by-mail ballots received before Election Day.
2. **9:45 p.m.** – The second report will incorporate Election Day results from reporting polling places.
3. **10:45 p.m.** – The third report will also include Election Day results from additional reporting polling places.
4. **Around midnight** – The fourth report, including all Election Day polling place results, will be issued once all precincts have reported.

All results released on Election Night are preliminary and will change as additional ballots are counted in the following days. These include valid provisional and vote-by-mail ballots received on Election Day, as well as valid vote-by-mail ballots that are postmarked by Election Day and received within one week.

By law, the Department has up to 30 days to complete ballot counting and must certify the election by December 3, 2026.

All local elections results will be posted at **sfelections.gov/results**. Statewide results will be posted on the California Secretary of State's website at **sos.ca.gov**.

Election Observation

The Department of Elections operates in an open and transparent manner.

Members of the public are welcome to observe our election processes and provide feedback. You can:

- Watch voting equipment testing and ballot counting through our live streams at **sfelections.gov/observe**.
- Observe activities in person at our office in City Hall and at our warehouse at Pier 31.
- Join our official Election Observer Panel.
- Observe activities at polling places and at the City Hall Voting Center.

To participate in one of our upcoming events, please check our Calendar of Observable Activities at **sfelections.gov/observer**.

Elections Commission

The Elections Commission oversees public elections in San Francisco and sets general policies for the Department of Elections. It also approves and assesses plans for each election. Current members of this Commission include:

Michelle Parker, President

Appointed by the Board of Education

Renita LiVolsi, Vice President

Appointed by the Public Defender

Trevor McNeil

Appointed by the Mayor

Rebecca Bers

Appointed by the City Attorney

Neil Hallinan

Appointed by the Treasurer

Dena Aslanian-Williams

Appointed by the District Attorney

Keep Your Signature Up to Date

Help make sure your ballot is counted

Every registered voter in California receives a ballot by mail about one month before the election.

When you vote by mail, your signature plays an important role. You must sign the ballot return envelope and return your ballot by Election Day—either by mail or in person. Elections officials compare the signature on your ballot envelope to the signature(s) in your voter record to confirm your identity.

Over time, signatures can change due to age, injury, or everyday habits. If your signature no longer matches the one on file, or if the envelope is not signed, you will need to take an additional step to have your ballot counted.

The good news is that San Francisco voters have multiple ways to resolve a signature issue and ensure their ballot is counted. If this happens, you will receive instructions by mail and electronically, and you can respond by mail, email, fax, or in person.

To help avoid any issues, consider updating your signature if it has changed. You can do this by submitting a new voter registration form online at **registertovote.ca.gov** or by completing a paper registration form.

Five Facts About San Francisco Elections

Fact 1: Voting by Mail Is Safe and Secure

Voting by mail is a safe and secure way to participate in San Francisco elections. The Department of Elections uses multiple safeguards and verification steps to protect each ballot and help prevent fraud.

Ballots are issued only to registered voters, and each vote-by-mail return envelope includes a unique identifying number that helps ensure a voter can vote only once and allows the ballot to be tracked. Voters have several secure options for returning their ballot, including mailing it through the U.S. Postal Service, placing it in an official tamper-resistant ballot drop box, or returning it at a polling place or the City Hall Voting Center. All returned ballots are collected and transported using strict chain-of-custody procedures.

Before a ballot can be counted, Department staff compare the voter's signature on the return envelope with the signature(s) on file. If a signature is missing or does not compare, the Department contacts the voter with instructions on how to resolve the issue so the ballot can be counted.

Once the voter's eligibility is confirmed, voted ballots are separated from their envelopes to protect voter privacy and are then prepared for counting.

Voter participation is recorded in the election system when a vote-by-mail ballot is received, which helps safeguard against multiple ballots being counted for the same voter.

Voters may check whether their vote-by-mail ballot was received and counted at sfelections.gov/voterportal or by contacting the Department of Elections.

Fact 2: Most Voters Do Not Need to Show Identification When Voting

Most voters are not required to show identification when voting. San Francisco poll workers are trained not to request ID unless it is required by law and noted in the Roster of Voters at the polling place. You may be asked to show identification if you are voting for the first time after registering by mail and did not provide a driver license number, state ID number, or the last four digits of your Social Security number on your registration form.

Before each election, the Department of Elections sends a notice to voters who are required to provide identification, asking them to submit ID in advance of voting in person or returning a vote-by-mail ballot. If this applies to you and you have not yet provided identification, please bring ID to your polling place or include a copy with your vote-by-mail ballot.

Acceptable forms of identification include a recent utility bill, your sample ballot booklet, another document from a government agency, a passport, a driver license or state ID card, or a student ID card that shows your name and photograph.

Fact 3: Provisional Ballots Are Counted

All eligible provisional ballots are counted. A provisional ballot allows a voter to participate in an election when there is a question about their eligibility at the time they check in to vote. For example, a voter may be asked to vote provisionally if their name does not appear on the Roster of Voters or if they are registering to vote on Election Day.

After the election, Department staff review each provisional ballot to confirm that the voter was eligible to vote and did not cast another ballot in the same election. Once the voter's eligibility is verified, the ballot is counted and included in the official results. Voters who cast a provisional ballot may check whether their ballot was counted at sfelections.gov/pvlookup or by contacting the Department of Elections.

Fact 4: Voting System Is Secure and Transparent

San Francisco uses a voting system that is certified by the California Secretary of State and meets all applicable federal and state standards. The Department of Elections maintains strict physical security controls for all voting equipment. Voting machines are never connected to the internet, outside networks, or wireless technology.

Before each election, the Department conducts Logic and Accuracy testing to confirm that voting equipment correctly records and counts votes. After the election, additional verification measures are performed, including a manual count of randomly selected ballots and a risk-limiting audit to confirm the accuracy of the results. Members of the public are welcome to observe these verification activities.

San Francisco voters use paper ballots to cast their vote, creating a physical record that supports transparency and post-election review. The Department also provides accessible voting options, including the Accessible Vote-by-Mail system and ballot-marking devices at polling places. These tools allow voters to mark their ballots privately and independently. All voting methods produce a paper ballot, and California law does not allow voting over the internet.

Fact 5: Every Resident's Right to Vote Is Respected and Protected

The Department of Elections is committed to ensuring that every eligible voter can participate in elections free from intimidation, interference, or discrimination. The Department trains poll workers to assist voters in a respectful and nonpartisan manner and to help maintain voting locations that are safe, accessible, and welcoming.

The Department also provides language assistance and accessibility support to help ensure all voters can cast their ballots privately and independently.

The Department's field support personnel monitor conditions at voting sites on Election Day, and established procedures are followed to promptly address any concerns about potential disruptive activity or voter intimidation. The Department works closely with local and state agencies to respond to reports of interference and to help protect voters' access to the voting process.

Voters who experience or observe intimidation or interference should report it to the Department of Elections at (415) 558-6100.

Accessible Resources

The Department of Elections provides a variety of accessible voting resources to help all voters to vote privately and independently.

Accessible Voter Information Pamphlet

The Voter Information Pamphlet is available in PDF, HTML, and MP3 formats at **sfelections.gov/vip**. You may also request large-print, CD audio, or USB audio versions by calling (415) 558-6100.

Accessible Mail Ballot

From October 5 until 8 p.m. on Election Day, November 3, you can download an accessible ballot at **sfelections.gov/access**. You can use your personal assistive device, such as a screen reader, head pointer, or sip-and-puff device, to mark your ballot. Once completed, ballots must be printed and returned to the Department of Elections by mail or in person.

Accessible Voting Sites

The City Hall Voting Center and all neighborhood polling places are wheelchair accessible. Each site is equipped with page magnifiers, easy-grip pens, braille signature guides, voting chairs, and ballot-marking devices.

Ballot-marking devices offer both touchscreen and audio options, allowing you to adjust font size, background color, and language. You can navigate ballot contests using a braille keypad,

headphones, or other assistive devices. For details about your assigned polling place, please refer to the back cover.

These accessible resources are also available at the City Hall Voting Center from October 5 through Election Day, November 3.

Personal Voting Service

If you are unable to enter a voting location, you may request curbside voting. An election worker will bring a ballot to you, so you can vote in your vehicle or near the voting site. Once you have finished marking your ballot, the election worker will return to collect it. Call (415) 558-6100 or ask someone to request this service for you.

You can ask another person to help you mark your ballot. Your helper can be an election worker but cannot be your employer or a union representative. Helpers can provide physical assistance; however, they cannot make voting decisions for you.

If you or someone you know is homebound or hospitalized during the last week of voting, you can request ballot delivery or pickup service. To schedule an appointment, call (415) 558-6100, TTY (415) 558-6108, or email [**ballotdelivery@sfgov.org**](mailto:ballotdelivery@sfgov.org).

Voting Accessibility Advisory Committee

This committee works to improve access to voting in San Francisco. Call (415) 558-6100 to learn more or to join the committee.

Multilingual Resources

The Department of Elections provides official ballots, voter pamphlets, and assistance in English, Chinese, Spanish, Filipino, and Vietnamese.

Facsimile ballots, which can be used as a reference when marking your official ballot, are available in Bengali, Burmese, Hindi, Hmong, Japanese, Korean, Mongolian, Thai, and Urdu at voting sites and by mail or email upon request. Interpretation services are also available in hundreds of additional languages upon request.

To choose the language you would like to receive your election materials, visit **sfelections.gov/language** or call (415) 558-6100.

All registered voters will receive a ballot by mail and may vote by mail or in person at the City Hall Voting Center or their assigned polling place on Election Day. Polls are open from 7 a.m. to 8 p.m. on Election Day. To view a list of all San Francisco polling places and available language resources, visit **sfelections.gov/voteatyourpollingplace**.

Voters may receive assistance from up to two people (other than the voter's employer, the employer's agent, or a union officer or agent) to mark their ballot. Voters may also ask poll workers for assistance.

多種語言資源

選務處提供正式選票，選民手冊，以及英文、中文、西班牙文、菲律賓文和越南文的協助。

參考選票（此為選票的複製本，可作為填寫正式選票的參考）則提供孟加拉文、緬甸文、印度文、苗文、日文、韓文、蒙古文、泰文及烏爾都文版本，選民可於投票站索取，或透過郵寄或電子郵件申請。應要求，也可提供數百種其他語言的傳譯服務。

如需以您選擇的語言接收選舉材料，請登入 **sfelections.gov/language** 或致電 (415) 558-6102。

所有已登記選民皆會以郵寄方式收到選票，並可以郵寄投票，或親自前往市政廳投票中心投票，亦可於選舉日到其所屬的指定投票站投票。選舉日投票站開放時間為上午7時至晚上8時。欲查詢三藩市所有投票站的地址及提供的語言資源，請瀏覽 **sfelections.gov/voteatyourpollingplace**。

選民可由最多兩名人士協助（提供協助者不得為選民的僱主、僱主代表或工會人員或代表）填寫選票。選民亦可向投票站工作人員尋求協助。

Servicios multilingües

El Departamento de Elecciones proporciona boletas oficiales, folletos de información electoral y atención al público en inglés, chino, español, filipino y vietnamita.

Las boletas facsímiles —disponibles en bengalí, birmano, coreano, hindi, hmong, japonés, mongol, tailandés y urdu— pueden usarse como referencia al marcar su boleta oficial. Estarán disponibles en todas las mesas electorales el Día de las Elecciones y, previa solicitud, ya se envían por correo postal o electrónico. Asimismo, disponemos de servicios de interpretación en cientos de idiomas, previa solicitud.

Para indicar su preferencia de idioma para los materiales electorales, visite **sfelections.gov/language** o llame al (415) 558-6103.

Todos los electores inscritos recibirán una boleta por correo y pueden votar por correo o en persona, ya sea en el Centro de Votación del Ayuntamiento o bien en su mesa electoral asignada el Día de las Elecciones. Las urnas estarán abiertas de 7:00 a.m. a 8:00 p.m. en el Día de las Elecciones. Para consultar la lista de todas las mesas electorales de San Francisco y los recursos lingüísticos disponibles, visite **sfelections.gov/voteatyourpollingplace**.

Los electores podrán recibir asistencia de hasta dos personas (que no sean su empleador, ni representantes de este, ni funcionarios o representantes sindicales) para marcar su boleta. Asimismo, podrán solicitar asistencia al personal de la mesa electoral.

Mga Mapagkukunang Multilingguwal

Ang Departamento ng mga Eleksyon ay nagbibigay ng mga opisyal na balota, mga pamplet ng impormasyon para sa botante, at tulong sa wikang Ingles, Tsino, Espanyol, Filipino, at Vietnamese.

Ang mga balotang facsimile, na maaaring gamitin bilang sanggunian sa pagmamarka ng inyong opisyal na balota, ay makukuha sa Bengali, Burmese, Hindi, Hmong, Hapones, Koreano, Mongolian, Thai, at Urdu sa mga lugar ng botohan at sa pamamagitan ng koreo o email kapag hiniling. Mayroon ding mga serbisyo sa pagsasalin sa daan-daang karagdagang wika kapag hiniling.

Para piliin ang wika sa kung saan nais ninyong matanggap ang inyong mga materyales sa eleksyon, bisitahin ang **sfelections.gov/language** o tumawag sa (415) 558-6104.

Ang lahat ng nakarehistrong botante ay makatatanggap ng balota sa pamamagitan ng koreo at maaaring bumoto sa pamamagitan ng koreo o nang personal sa Sentro ng Botohan sa City Hall o sa kanilang itinalagang lugar ng botohan sa Araw ng Eleksyon. Ang mga lugar ng botohan ay bukas mula 7 a.m. hanggang 8 p.m. sa Araw ng Eleksyon. Upang tingnan ang listahan ng lahat ng mga lugar ng botohan sa San Francisco at ang magagamit na mga mapagkukunang wika, bisitahin ang **sfelections.gov/voteatyourpollingplace**.

Ang mga botante ay maaaring tumanggap ng tulong mula sa hanggang dalawang tao (maliban sa tagapag-empleyo ng botante, ahente ng tagapag-empleyo, o isang opisyal o ahente ng unyon) upang markahan ang kanilang balota. Maaaring humingi ng tulong ang mga botante sa mga manggagawa sa botohan.

Các Nguồn Đa Ngôn Ngữ

Sở Bầu Cử cung cấp các lá phiếu chính thức, tập thông tin cử tri, và trợ giúp bằng tiếng Anh, tiếng Trung, tiếng Tây Ban Nha, tiếng Philippin, và tiếng Việt.

Các lá phiếu tham khảo, mà có thể được sử dụng như nguồn tham khảo trong khi đánh dấu lá phiếu chính thức của quý vị, có sẵn bằng tiếng Bengali, tiếng Miến Điện, tiếng Hindi, tiếng Hmong, tiếng Nhật, tiếng Hàn, tiếng Mông Cổ, tiếng Thái, và tiếng Urdu tại các địa điểm bỏ phiếu và được gửi bằng thư hoặc bằng email theo yêu cầu. Dịch vụ phiên dịch cũng có sẵn bằng hàng trăm thứ tiếng khác nếu được yêu cầu.

Để chọn ngôn ngữ quý vị muốn nhận tài liệu bầu cử, truy cập trang **sfelections.gov/language** hoặc gọi theo số (415) 558-6105.

Tất cả các cử tri đã ghi danh sẽ nhận được một lá phiếu bằng thư và có thể bỏ phiếu bằng thư hoặc trực tiếp tại Trung Tâm Bầu Cử Tòa Thị Chính hoặc địa điểm bỏ phiếu quy định của họ vào Ngày Bầu Cử. Các quầy bỏ phiếu mở cửa từ 7 giờ sáng đến 8 giờ tối vào Ngày Bầu Cử. Để xem danh sách tất cả các địa điểm bỏ phiếu ở San Francisco và các nguồn ngôn ngữ có sẵn, truy cập trang **sfelections.gov/voteatyourpollingplace**.

Cử tri có thể nhận trợ giúp từ tối đa hai người (không phải chủ lao động của cử tri, đại diện của chủ lao động hoặc một viên chức hay đại diện đoàn hội) để đánh dấu lá phiếu của họ. Cử tri cũng có thể hỏi các nhân viên phòng phiếu để nhận trợ giúp.

বহুভাষিক সহায়তা

নির্বাচন বিভাগ ইংরেজি, চীনা, স্প্যানিশ, ফিলিপিনো এবং ভিয়েতনামি ভাষায় সরকারি ব্যালট, ভোটার তথ্যপুস্তিকা এবং সহায়তা প্রদান করে।

অনুলিপি (রেফারেন্স) ব্যালট, যা আপনার সরকারি ব্যালটে ভোট দেওয়ার সময় রেফারেন্স হিসেবে ব্যবহার করা যায় তা বাংলা, বার্মিজ, হিন্দি, হমং, জাপানি, কোরিয়ান, মঙ্গোলিয়ান, থাই এবং উর্দু ভাষায় ভোটকেন্দ্রে পাওয়া যায় এবং অনুরোধ করলে ডাকযোগে বা ইমেইলেও সরবরাহ করা হয়। অনুরোধের ভিত্তিতে আরও শতাধিক ভাষায় দোভাষী পরিষেবাও পাওয়া যায়।

আপনি কোন ভাষায় আপনার নির্বাচন সংক্রান্ত উপকরণ পেতে চান তা নির্বাচন করতে sfelections.gov/language ভিজিট করুন অথবা (415) 558-6100 নম্বরে কল করুন।

সকল নিবন্ধিত ভোটার ডাকযোগে একটি ব্যালট পাবেন এবং তারা ডাকযোগে ভোট দিতে পারবেন অথবা নির্বাচনের দিনে সিটি হল ভোটিং সেন্টার কিংবা তাদের নির্ধারিত ভোটকেন্দ্রে সরাসরি উপস্থিত হয়ে ভোট দিতে পারবেন। নির্বাচনের দিন সকাল 7টা থেকে রাত 8টা পর্যন্ত ভোটগ্রহণ চলবে। San Francisco-এর সকল ভোটকেন্দ্রের তালিকা এবং উপলভ্য ভাষাগত সহায়তার তথ্য দেখতে sfelections.gov/voteatyourpollingplace ভিজিট করুন।

ভোটাররা তাদের ব্যালটে ভোট দিতে সর্বোচ্চ দুইজন ব্যক্তির সহায়তা নিতে পারেন (তবে ভোটারের নিয়োগকর্তা, নিয়োগকর্তার প্রতিনিধি, অথবা কোনো ইউনিয়নের কর্মকর্তা বা প্রতিনিধি এই সহায়তা দিতে পারবেন না)। ভোটাররা প্রয়োজনে ভোটকর্মীদের কাছ থেকেও সহায়তা চাইতে পারেন।

ဘာသာစကားပေါင်းစုံ အရင်းအမြစ်များ

ရွေးကောက်ပွဲဌာနသည် အင်္ဂလိပ်၊ တရုတ်၊ စပိန်၊ ဖိလစ်ပိုင်နှင့် ဗီယက်နမ်ဘာသာစကားများဖြင့် တရားဝင်မဲစာရွက်များ၊ မဲဆန္ဒရှင်လက်ကမ်းစာစောင်များနှင့် အကူအညီများကို ပံ့ပိုးပေးပါသည်။

တရားဝင်မဲပေးသည့်အခါ ကိုးကားချက်အဖြစ် အသုံးပြုနိုင်သော ဖက်စ်မဲများကို ဘင်္ဂါလီ၊ မြန်မာ၊ ဟိန္ဒီ၊ မွန်၊ ဂျပန်၊ ကိုရီးယား၊ မွန်ဂိုးလီးယား၊ ထိုင်းနှင့် အူရဒူဘာသာစကားများဖြင့် မဲပေးသည့်နေရာများတွင် ရရှိနိုင်ပြီး တောင်းဆိုမှုအရ စာတိုက် သို့မဟုတ် အီးမေးလ်ဖြင့်လည်း ရရှိနိုင်ပါသည်။ တောင်းဆိုမှုအပေါ်တွင် ဘာသာပြန်ဝန်ဆောင်မှုများကို နောက်ထပ်ဘာသာစကားရာပေါင်းများစွာဖြင့်လည်း ရရှိနိုင်ပါသည်။

သင်၏ ရွေးကောက်ပွဲဆိုင်ရာ ပစ္စည်းများ ရယူလိုသော ဘာသာစကားကို ရွေးချယ်ရန်အတွက် sfelections.gov/language သို့ ဝင်ရောက်ကြည့်ရှုပါ သို့မဟုတ် (415) 558-6100 သို့ ဖုန်းခေါ်ဆိုပါ။

မှတ်ပုံတင်ထားသော မဲဆန္ဒရှင်အားလုံးသည် မဲစာရွက်ကို စာတိုက်မှတစ်ဆင့် လက်ခံရရှိမည်ဖြစ်ပြီး ရွေးကောက်ပွဲနေ့တွင် မြို့တော်ခန်းမမဲရုံ သို့မဟုတ် ၎င်းတို့၏ သတ်မှတ်ထားသော မဲရုံတွင် စာတိုက်မှတစ်ဆင့် သို့မဟုတ် ကိုယ်တိုင်မဲပေးနိုင်ပါသည်။ ရွေးကောက်ပွဲနေ့တွင် မဲရုံများကို နံနက် 7 နာရီမှ ည 8 နာရီအထိ ဖွင့်လှစ်ထားပါသည်။ San Francisco ရှိ မဲရုံအားလုံးစာရင်းနှင့် ရရှိနိုင်သော ဘာသာစကားအရင်းအမြစ်များကိုကြည့်ရှုရန် sfelections.gov/voteatyourpollingplace သို့ ဝင်ရောက်ကြည့်ရှုပါ။

မဲဆန္ဒရှင်များသည် ၎င်းတို့၏မဲစာရွက်တွင် အမှတ်အသားပြုရန်အတွက် လူနှစ်ဦးအထိ (မဲဆန္ဒရှင်၏အလုပ်ရှင်၊ အလုပ်ရှင်၏အေးဂျင့် သို့မဟုတ် သမဂ္ဂအရာရှိ သို့မဟုတ် အေးဂျင့်မှလွဲ၍) ထံမှ အကူအညီရယူနိုင်ပါသည်။ မဲဆန္ဒရှင်များသည် မဲရုံဝန်ထမ်းများထံမှလည်း အကူအညီတောင်းခံနိုင်ပါသည်။

बहुभाषी संसाधन

चुनाव विभाग अंग्रेज़ी, चीनी, स्पैनिश, फ़िलिपीनो और वियतनामी भाषाओं में आधिकारिक मतपत्र, मतदाता पुस्तिकाएँ तथा सहायता प्रदान करता है।

प्रतिरूप मतपत्र, जिनका उपयोग आप अपने आधिकारिक मतपत्र को भरते समय संदर्भ के रूप में कर सकते हैं, बंगाली, बर्मी, हिंदी, हमोंग, जापानी, कोरियाई, मंगोलियाई, थाई और उर्दू भाषाओं में मतदान स्थलों पर उपलब्ध हैं तथा अनुरोध करने पर डाक या ईमेल द्वारा भी प्राप्त किए जा सकते हैं। अनुरोध करने पर सैकड़ों अतिरिक्त भाषाओं में दुभाषिया सेवाएँ भी उपलब्ध हैं।

आप अपनी चुनाव सामग्री किस भाषा में प्राप्त करना चाहते हैं, यह चुनने के लिए sfelections.gov/language पर जाएँ या (415) 558-6100 पर कॉल करें।

सभी पंजीकृत मतदाताओं को डाक द्वारा एक मतपत्र प्राप्त होगा और वे डाक द्वारा या चुनाव वाले दिन सिटी हॉल मतदान केंद्र अथवा अपने निर्धारित मतदान केंद्र पर व्यक्तिगत रूप से मतदान कर सकते हैं। चुनाव वाले दिन मतदान केंद्र सुबह 7 बजे से रात 8 बजे तक खुले रहते हैं। San Francisco के सभी मतदान केंद्रों और उपलब्ध भाषा संसाधनों की सूची देखने के लिए

sfelections.gov/voteatyourpollingplace पर जाएँ।

मतदाता अपने मतपत्र को भरने के लिए अधिकतम दो व्यक्तियों (मतदाता के नियोक्ता, नियोक्ता के प्रतिनिधि या किसी यूनियन अधिकारी अथवा प्रतिनिधि को छोड़कर) से सहायता प्राप्त कर सकते हैं। मतदाता मतदान कर्मियों से भी सहायता का अनुरोध कर सकते हैं।

Cov Ntaub Ntawv Ua Ntau Hom Lus

Lub Thawj Fab Hauj Lwm Saib Xyuas Kev Xaiv Tsa yuav muab cov npav xaiv tsa raws cai, phau ntawv qhia rau tus neeg muaj cai pov npav, thiab kev pab ua Lus Askiv, Lus Suav, Lus Xab Pees Niv, Lus Filipino, thiab Lus Nyab Laj.

Cov npav xaiv tsa xa raws fev, uas tuaj yeem muab siv los ua ib qho ntawv saib ua pov thawj thaum kos koj daim npav xaiv tsa raws cai, yuav muaj ua Lus Bengali, Lus Phab Mab, Lus Hindi, Lus Hmoob, Lus Nyij Pooj, Lus Kaus Lim, Lus Mongolia, Lus Thaib, thiab Lus Urdu ntawm qhov chaw pov npav thiab xa raws kev xa ntawv los sis raws kev xa email yog tias thov tuaj. Kuj yuav muaj cov kev pab cuam txhais lus ua ntau pua hom lus ntxiv yog tias thov tuaj.

Txhawm rau xaiv hom lus uas koj xav kom tau txais cov ntaub ntawv kev xaiv tsa, mus saib hauv sfelections.gov/language los sis hu rau (415) 558-6100.

Tag nrho cov neeg muaj cai pov npav uas rau npe lawm yuav tau txais daim npav xaiv tsa xa raws kev xa ntawv thiab yuav mus pov npav tau raws kev xa ntawv los sis tus kheej tuaj kiag los tau nyob rau ntawm Lub C'haw Pab Cuam Kev Pov Npav Hauv Lub Tuam Tsev Hauj Lwm Hauv Nroog los sis lawv qhov chaw pov npav uas xaiv tseg hauv Hnub Ua Kev Xaiv Tsa. Cov chaw pov npav xaiv tsa yuav qhib txij thaum 7 teev sawv ntxov txog 8 teev tsaus ntuj hauv Hnub Ua Kev Xaiv Tsa. Txhawm rau saib daim ntawv teev npe tag nrho cov chaw pov npav xaiv tsa ntawm Xeev San Francisco thiab cov ntaub ntawv ua hom lus uas muaj siv tau, ces mus saib hauv sfelections.gov/voteatyourpollingplace.

Cov neeg muaj cai pov npav xaiv tsa yuav tau txais kev pab siab kawg los ntawm ob tug neeg (uas tsis yog tus neeg muaj cai pov npav tus tswv hauj lwm, tus neeg sawv cev ntawm tus tswv hauj lwm, los sis tus tub ceev xwm los sis tus neeg sawv cev ntawm lub koom haum) los pab kos lawv daim npav xaiv tsa. Cov neeg muaj cai kuj yuav thov tau cov neeg ua hauj lwm ntawm chaw pov npav xaiv tsa pab tau.

多言語リソース

選挙管理委員会では、公式投票用紙、有権者パンフレット、および英語、中国語、スペイン語、フィリピン語、ベトナム語による支援を提供しています。

公式投票用紙に記入する際の参考として使用できるファックス投票用紙は、ベンガル語、ビルマ語、ヒンディー語、モン語、日本語、韓国語、モンゴル語、タイ語、ウルドゥー語で投票所にて入手できます。ご要望があれば、郵送・メールでも入手できます。さらに通訳サービスも数百の言語でご要望に応じて提供されます。

選挙資料の言語の選択は、sfelections.gov/languageにアクセスするか、(415) 558-6100にお電話ください。

登録済みの有権者全員に投票用紙が郵送され、郵送での投票、選挙当日の市庁舎投票センターまたは割り当てられた投票所での投票が可能です。投票所は選挙当日の午前7時から午後8時まで開所します。San Francisco市内の全投票所一覧および利用可能な言語支援サービスは、sfelections.gov/voteatyourpollingplaceでご確認いただけます。

投票者は、投票用紙に記入する際、最大2名(投票者の雇用主、雇用主の代理人、労働組合役員または代理人を除く)の支援を受けることができます。投票所職員に支援を求めることも可能です。

다국어 자료

선거관리국은 공식 투표용지, 유권자 안내 책자 및 영어, 중국어, 스페인어, 필리핀어, 베트남어로 지원 서비스를 제공합니다.

공식 투표용지에 표시할 때 참고용으로 사용할 수 있는 팩스 투표용지는 벵골어, 버마어, 힌디어, 몽족어, 일본어, 한국어, 몽골어, 태국어, 우르두어로 제공되며, 투표소 및 요청 시 우편 또는 이메일로 받을 수 있습니다. 요청 시 수백 가지 추가 언어로도 통역 서비스를 이용할 수 있습니다.

선거 자료를 받을 언어를 선택하려면 sfelections.gov/language를 방문하거나 (415) 558-6100번으로 전화하십시오.

모든 등록 유권자는 우편으로 투표용지를 받게 되며, 선거일에 시청 투표 센터 또는 지정된 투표소에서 우편 투표하거나 직접 투표할 수 있습니다. 투표소는 선거일 오전 7시부터 오후 8시까지 운영됩니다. San Francisco의 모든 투표소 목록과 이용 가능한 언어 지원 서비스를 확인하려면 sfelections.gov/voteatyourpollingplace를 방문해 주십시오.

유권자는 투표용지에 표기할 때 최대 두 명(유권자의 고용주, 고용주의 대리인, 노조 간부 또는 대리인 제외)의 도움을 받을 수 있습니다. 또한 유권자는 투표소 직원에게 도움을 요청할 수 있습니다.

Олон хэлний нөөц

Сонгуулийн Алба нь албан ёсны саналын хуудас, сонгогчдын товхимлоор хангахын сацуу тусламжийг англи, хятад, испани, филиппин, вьетнам хэлээр үзүүлнэ.

Албан ёсны саналын хуудас дээр тэмдэглэл хийхдээ лавлагаа болгон ашиглаж болох факсаар авах саналын хуудсыг бенгал, бирм, хинди, хмонг, япон, солонгос, монгол, тайланд, урду хэлээр санал өгөх цэгүүдээс болон хүсэлт гаргаснаар шуудан эсвэл э-мэйлээр хүлээн авах боломжтой. Орчуулгын үйлчилгээг хэдэн зуун нэмэлт хэлээр авах хүсэлт гаргах боломжтой.

Сонгуулийн материалаа хүлээн авах хэлийг сонгохын тулд sfelections.gov/language вэбсайтаар зочлох эсвэл (415) 558-6100 утсаар холбогдоно уу.

Бүх бүртгэлтэй сонгогч шуудангаар саналын хуудас хүлээн авах бөгөөд Сонгуулийн өдөр шуудангаар эсвэл Хотын захиргааны Санал өгөх төв эсвэл тэдэнд оноосон санал авах байранд биечлэн санал өгөх боломжтой. Сонгуулийн өдөр Санал хураалтын цэгүүд 7:00 - 20:00 хүртэл ажиллана. San Francisco хотын бүх санал авах

байрны жагсаалт болон боломжтой хэлний нөөцийг харахын тулд sfelections.gov/voteatyourpollingplace вэбсайтаар зочилно уу.

Сонгогчид саналын хуудас дээр тэмдэглэл хийхдээ хоёр хүртэлх хүнээс (сонгогчийн ажил олгогч, ажил олгогчийн төлөөлөгч, үйлдвэрчний эвлэлийн ажилтан эсвэл төлөөлөгчөөс бусад) тусламж авах боломжтой. Сонгогчид мөн санал хураалтын ажилтнуудаас тусламж хүсэж болно.

แหล่งข้อมูลหลายภาษา

หน่วยงานการเลือกตั้งจัดเตรียมบัตรลงคะแนนอย่างเป็นทางการ คู่มือผู้มีสิทธิเลือกตั้ง และความช่วยเหลือในภาษาอังกฤษ ภาษาจีน ภาษาสเปน ภาษาฟิลิปปินส์ และภาษาเวียดนาม

บัตรลงคะแนนตัวอย่าง ซึ่งสามารถใช้เป็นข้อมูลอ้างอิงเมื่อทำเครื่องหมายในบัตรลงคะแนนอย่างเป็นทางการของท่าน มีให้บริการในภาษาเบงกอล ภาษาพม่า ภาษาฮินดี ภาษาจีน ภาษาญี่ปุ่น ภาษาเกาหลี ภาษามองโกล ภาษาไทย และภาษาอูรดู ณ สถานที่ลงคะแนนเลือกตั้ง และทางไปรษณีย์หรืออีเมลได้ตามคำร้องขอ มีบริการล่ามแปลภาษาเพิ่มเติมอีกหลายร้อยภาษา โดยสามารถขอรับบริการได้ตามคำร้องขอ

หากต้องการเลือกภาษาที่คุณต้องการรับเอกสารเกี่ยวกับการเลือกตั้ง โปรดไปที่ sfelections.gov/language หรือโทร (415) 558-6100

ผู้มีสิทธิเลือกตั้งที่ลงทะเบียนทุกคนจะได้รับบัตรลงคะแนนทางไปรษณีย์ และสามารถลงคะแนนทางไปรษณีย์ หรือไปลงคะแนนด้วยตนเองที่ศูนย์ลงคะแนน ณ ศาลาว่าการเมือง หรือหน่วยเลือกตั้งที่กำหนดให้ในวันเลือกตั้ง หน่วยเลือกตั้งเปิดทำการตั้งแต่เวลา 7:00 น. ถึง 20:00 น. ในวันเลือกตั้ง หากต้องการดูรายชื่อหน่วยเลือกตั้งทั้งหมดใน San Francisco และแหล่งข้อมูลด้านภาษาที่มีให้บริการ โปรดไปที่ sfelections.gov/voteatyourpollingplace

ผู้มีสิทธิเลือกตั้งสามารถรับความช่วยเหลือจากบุคคลได้ไม่เกินสองคน (ยกเว้นนายจ้างของผู้มีสิทธิเลือกตั้ง ตัวแทนนายจ้าง หรือเจ้าหน้าที่หรือผู้แทนของสหภาพแรงงาน) ในการทำเครื่องหมายในบัตรลงคะแนน ผู้มีสิทธิเลือกตั้งยังสามารถขอความช่วยเหลือจากเจ้าหน้าที่ประจำหน่วยเลือกตั้งได้อีกด้วย

کثیر لسانی وسیلہ جات

محکمہ برائے انتخابات انگریزی، چینی، ہسپانوی، فلپائن اور ویتنامی زبانوں میں سرکاری بیلٹس، ووٹر کے پمفلٹس اور معاونت فراہم کرتا ہے۔

نقلی بیلٹس، جنہیں اپنے سرکاری بیلٹس پر نشان لگاتے ہوئے بطور حوالہ استعمال کیا جا سکتا ہے، بنگالی، برمی، ہندی، ہمونگ، جاپانی، کورین، منگولین، تھائی اور اردو زبان میں ووٹنگ کی جگہ پر دستیاب ہیں، نیز درخواست کرنے پر بذریعہ ڈاک یا ای میل طلب کیے جا سکتے ہیں۔ ترجمے کی خدمات بھی درخواست کرنے پر سینکڑوں اضافی زبانوں میں دستیاب ہیں۔

آپ اپنا انتخابی مواد جس زبان میں موصول کرنا چاہیں گے، اسے منتخب کرنے کے لیے sfelections.gov/language وزٹ کریں یا (415) 558-6100 پر کال کریں۔

تمام رجسٹرڈ ووٹرز، بذریعہ ڈاک ایک بیلٹ موصول کریں گے اور وہ بذریعہ ڈاک یا پھر الیکشن کے دن سٹی ہال ووٹنگ سینٹر یا اپنے لیے مقرر کردہ پولنگ کی جگہ پر حاضر ہو کر ووٹ ڈال سکیں گے۔ الیکشن کے دن، پولنگ کا عمل صبح 7 بجے سے رات 8 بجے تک جاری رہے گا۔ San Francisco میں پولنگ کی تمام جگہوں کی فہرست، نیز دستیاب زبانوں میں وسیلہ جات دیکھنے کے لیے sfelections.gov/voteatyourpollingplace ملاحظہ کریں۔

ووٹرز اپنے بیلٹ پر نشان لگانے کے لیے، دو افراد تک سے مدد موصول کر سکتے ہیں (یہ ووٹر کے آجر، آجر کے ایجنٹ، یا کوئی یونین آفیسر یا ایجنٹ نہ ہوں)۔ ووٹرز پول ورکرز سے بھی مدد طلب کر سکتے ہیں۔

Elections in California

Under the Top Two Candidates Open Primary Act, all candidates for a voter-nominated office, regardless of their party preference, will appear on the same ballot. In both the open primary and general elections, **you can vote for any candidate regardless of what party preference you indicated on your voter registration form.** In the primary election, the two candidates receiving the most votes—regardless of party preference—move on to the general election. Even if a candidate receives a majority of the vote (at least 50%+1), a general election still must be held.

Write-in candidates for voter-nominated offices can still run in the primary election. However, a write-in candidate can only move on to the general election if the candidate is one of the top two vote-getters in the primary election. Additionally, there is no independent nomination process for a general election.

Voter-nominated offices include U.S. Senator, U.S. Representative, State Senator, Member of the State Assembly, Governor, Lieutenant Governor, Secretary of State, Controller, Treasurer, Attorney General, Insurance Commissioner, and Member of the State Board of Equalization.

The Superintendent of Public Instruction is a nonpartisan office and is not subject to the Top Two Candidates Open Primary Act. If a candidate for Superintendent receives a majority of the vote (50%+1) in the primary election, that candidate is elected. If no candidate receives a majority, the two candidates receiving the most votes advance to the general election.

California's open primary system does not affect the election of U.S. President, county central committee, and local offices.

Candidate Information

Candidate Party Preferences

The registered political party preference, or lack thereof, of any candidate running for a voter-nominated office will be printed beside each candidate's name on the ballot. If a candidate is running for a nonpartisan office, no party will appear next to the candidate's name.

Candidate Statements of Qualifications

Some candidates on the ballot have timely submitted statements of qualifications for publication in this pamphlet. Submission of a statement is voluntary, and statements are printed at the candidates' expense. For a complete list of candidates for each contest, please refer to your Sample Ballot.

Neither the Director of Elections, nor any other City agency, official, or employee, verifies the accuracy of the information contained in any of the candidate qualification statements appearing in this pamphlet.

Voluntary Spending Limits

California Government Code (CAGC) §85600 requires the Department of Elections to publish the names of candidates who have voluntarily agreed to abide by the spending limits set forth in CAGC §85400. In this election, these candidates include:

State Assembly, District 17

Matt Haney

State Assembly, District 19

Catherine Stefani

Philip Louis Wing

Party Endorsements of Candidates

State law allows political parties to endorse candidates for statewide offices. In this election, timely submitted endorsements are as follows:

American Independent Party

Lieutenant Governor: Gloria Romero
 Secretary of State: Donald P. (Don) Wagner
 Controller: Malia M. Cohen
 Treasurer: Jennifer Hawks
 Attorney General: Michael E. Gates
 Insurance Commissioner: Ben Allen

Member, Board of Equalization District 2: John Pimentel
 U.S. Representative District 11: Connie Chan
 U.S. Representative District 15: Charles Hoelter
 State Assembly District 17: Manuel Noris-Barrera
 State Assembly District 19: Catherine Stefani
 Superintendent of Public Instruction: Sonja Shaw

Democratic Party

Governor: Xavier Becerra
 Lieutenant Governor: Fiona Ma
 Secretary of State: Shirley N. Weber
 Controller: Malia M. Cohen
 Treasurer: Eleni Kounalakis
 Attorney General: Rob Bonta
 Insurance Commissioner: Ben Allen

Member, Board of Equalization District 2: Sally J. Lieber
 U.S. Representative District 11: Scott Wiener
 U.S. Representative District 15: Kevin Mullin
 State Assembly District 17: Matt Haney
 State Assembly District 19: Catherine Stefani
 Superintendent of Public Instruction: Richard Barrera

Republican Party

Governor: Steve Hilton
 Lieutenant Governor: Gloria Romero
 Secretary of State: Donald P. (Don) Wagner
 Controller: Herb W Morgan
 Treasurer: Jennifer Hawks

Attorney General: Michael E. Gates
 U.S. Representative District 15: Charles Hoelter
 State Assembly District 19: Philip Louis Wing
 Superintendent of Public Instruction: Sonja Shaw

City and County of San Francisco Offices to be Voted on in this Election

Assessor-Recorder

The Assessor-Recorder determines which properties within the City and County of San Francisco are subject to property taxes and assesses the value of those properties for tax purposes. The term of office is four years, with a current annual salary of \$267,488.

Public Defender

The Public Defender provides legal representation to San Franciscans who are charged with crimes and cannot afford an attorney. The term of office is four years, with a current annual salary of \$307,892.

Member, Board of Supervisors

The Board of Supervisors is the legislative branch of government for the City and County of San Francisco. It enacts local laws and adopts the City's annual budget. There are eleven members, each elected to a four-year term. The current annual salary is \$180,102. Voters in Districts 2, 4, 6, 8, and 10 will vote for their member of the Board of Supervisors in this election.

Member, Board of Education

The Board of Education is the seven-member body governing the San Francisco Unified School District (kindergarten through grade twelve). Each member serves a four-year term with a current annual stipend of \$6,000. Voters will elect three members in this election.

Trustee, Community College Board

The Community College Board is the seven-member governing body of the San Francisco Community College District. It oversees City College and other adult learning centers. Each trustee serves a four-year term with a current annual stipend of \$6,000. Voters will elect three trustees to four-year terms, and one trustee to serve the remainder of an unexpired term.

Candidates for United States Representative, District 11

CONNIE CHAN

My occupation is San Francisco Supervisor.

My qualifications are:

I'm a working mom who knows what it takes for working families to get a break.

We must fight Trump and take on the affordability crisis that's driven by his policies, corporate greed and shrinking opportunities.

As Budget Chair, I pushed for essential services during the pandemic recovery. I've protected residents from Trump's cuts to healthcare and food security. I fully funded Free City College, legal assistance for immigrants and HIV/AIDS services. I've passed legislation to build housing for seniors and working people, protect tenants and small businesses from evictions and support workers' rights.

I am the only candidate who has never taken corporate money, because I only work for you.

In Congress, I'll fight to:

- Reverse Trump cuts to health care and pass Medicare for All
- Make affordable childcare and free City College accessible nationwide
- Abolish ICE and pass immigration reform
- Expand federal programs to build housing for working people
- End corruption in the White House and require billionaires and big corporations to pay their fair share
- Push to end U.S. involvement in wars

I came to Chinatown at 13 with my family. We built a life thanks to San Francisco values, a rent-controlled apartment and good public education. San Francisco has been a city where everyone could thrive, and that's what I am fighting for.

Proudly endorsed by:

Speaker Emerita Nancy Pelosi
U.S. Senator Adam Schiff
U.S. Representatives Julia Brownley, Judy Chu, Pramila Jayapal, Grace Meng, Marilyn Strickland, Jill Tokuda, Jared Huffman, Ro Khanna
Former Board of Supervisors President Norman Yee
Former Mayors Willie Brown and Art Agnos
Cleve Jones
California Federation of Labor Unions
San Francisco Labor Council
San Francisco Building and Construction Trades Council
National Nurses United
San Francisco Fire Fighters Local 798
United Educators of San Francisco
Working Families Party
Rose Pak Asian American Club
Harvey Milk LGBTQ+ Democratic Club
San Francisco Women's Political Committee

Read my Working People's Plan at conniechansf.com

Connie Chan

SCOTT WIENER

My occupation is State Senator.

My qualifications are:

San Francisco needs a fighter in Congress who delivers for San Franciscans — my record proves I will.

In Congress, I'll pass national legislation to make housing affordable for working people, because I wrote the laws building tens of thousands of homes in California — including 5,000+ affordable homes in San Francisco.

I'll fight to guarantee national paid family leave, because I authored the nation's first fully paid parental leave law in San Francisco.

I'll take on the insurance industry to pass Medicare for All, because I capped insulin at \$35 a month and forced insurers to cover mental healthcare.

I'll expand federal transit funding and cut red tape to deliver transit projects faster, just as I've secured billions to keep Muni, BART, and Caltrain running.

I'll keep fighting for San Francisco's comeback: I created entertainment zones to revive our nightlife and small businesses, and I'm partnering with Mayor Lurie to rebuild downtown's economy and keep San Francisco the greatest city in the world.

I'll stand up to Donald Trump with the bold action this moment demands. I passed the nation's first law to unmask ICE agents, and I'm fighting to hold them accountable when they violate your rights. In Congress, I'll ban congressional stock trading and get dark money out of elections.

That starts with my own campaign: I'm refusing all corporate PAC money.

I've never backed down from a fight — and never will.

I'd be honored to earn your vote. Join civil rights leader Dolores Huerta, Sierra Club, Attorney General Rob Bonta, California Democratic Party, National Union of Healthcare Workers, North Coast States Carpenters Union, and many more.

ScottWiener.com

Scott Wiener

Candidates for United States Representative, District 15

KEVIN MULLIN

My occupation is U.S. Representative.

My qualifications are:

Representing California's 15th Congressional district in the U.S. House of Representatives is the greatest honor of my life. I'm running for re-election and ask for your vote based upon my record of delivering results for my constituents, including federal funding for district projects during these most challenging times.

I fought against and voted NO on extreme Republican budget bills that gutted crucial safety net programs while cutting taxes for corporations and billionaires and adding to the national debt. I have pushed back hard against the Trump administration's inhumane immigration enforcement. Democrats must win back control of Congress to stop a President who ignores the U.S. Constitution and rule of law and sends troops into harm's way without congressional approval.

I am proud to co-chair the House's Task Force on Anti-Corruption and Democracy Reform, co-sponsoring one of the most comprehensive voting rights packages in history. We will protect free and fair elections from Trump's attacks on voting-by-mail, which California has pioneered and I have championed.

I was selected by colleagues to serve on the influential Energy & Commerce Committee where I advocate for consumer and worker protections while growing our innovation economy, directly affecting CA-15's life sciences and clean energy sectors.

With your support, I will continue to defend and reform our democracy, ensure our communities are ready for climate change, push for an affordable economy that works for all, along with a fiscally responsible federal budget. More than ever, we need experienced leaders in Congress who can beat back authoritarianism so future generations of Americans may inherit a democratic republic.

www.kevinmullinforcongress.com

Kevin Mullin

Candidates for State Assembly, District 17

MATT HANEY

My occupation is State Assemblymember.

My qualifications are:

For the past four years as your State Assemblymember, I've worked every day to deliver results for San Francisco by building more housing, protecting public safety, expanding health care, and leading the recovery of our city's downtown. I'm running for re-election because there's a lot more work to do.

Leadership

- Chair, Assembly Housing Committee.
- Chair, Assembly Select Committee on Downtown Recovery
- Chair, Assembly Select Committee on Fentanyl, Opioid Addiction, and Overdose Prevention
- Founder and Chair, California's first Legislative Renters' Caucus.

Results

- Expanded addiction treatment, mobile pharmacies, overdose prevention, and recovery housing.
- Cut red tape to build more housing and convert vacant offices into homes.
- Improved access to health care, dental care, and in-home supportive services.
- Secured funding for reproductive health care, mental health services, and the performing arts.
- Strengthened California's gun safety laws.
- Capped security deposits at one month's rent and stood up to Wall Street landlords.
- Proposed first-in-nation tax on private immigration detention corporations.
- Protected consumers from price gouging and made live entertainment more affordable.

I am fighting every day to reduce homelessness, build housing, reduce the cost of living, strengthen our public schools and transit, protect our environment, and defend access to health care for all. I have a 100% voting record with Planned Parenthood, Equality California, and the California Environmental Voters.

Endorsed by

- California Professional Firefighters
- California Teachers Association
- California Environmental Voters
- Equality California
- California Nurses Association
- Planned Parenthood Northern California Action Fund
- SEIU California
- San Francisco Women's Political Committee

Learn more at MattHaney.com.

Matt Haney

Candidates for State Assembly, District 19

CATHERINE STEFANI

My occupation is Assemblymember.

My qualifications are:

I'm running for re-election to continue the fight for a safer and more affordable California.

When I was sworn into the Assembly, I promised to deliver real results. In my first term, I did just that.

Seven of my bills were signed into law in my first year, each aimed at strengthening public safety, expanding healthcare access, and making California more affordable.

I authored Wyland's Law to close a dangerous gap in our gun violence prevention system. I passed legislation to prevent families from losing health insurance during divorce, banned illegal license plate obstructors that undermine law enforcement, and ensured crime victims receive restitution payments first. I advanced solutions to address our maternal healthcare workforce shortage, supported nonprofit hospitals, and laid a strong foundation for California's offshore wind future. I also secured \$69 million in this year's state budget to support our neighborhoods.

My office responded to thousands of constituent requests and helped secure over \$1.2 million in benefits for local families and seniors.

In Sacramento, I'll continue to fight for the resources we need to tackle the drug crisis and hold fentanyl dealers accountable. I'll work to increase access to housing that's affordable, to keep working families in their neighborhoods, and push for the resources our cities need to prevent homelessness before it happens. And I'll never back down from protecting our reproductive rights and fighting for access to medical care for all.

As your Assemblymember, I'm more ready than ever to continue delivering results.

Learn more at VoteCatherineStefani.com

Catherine Stefani

Candidates for Board of Education

AUTUMN BROWN GARIBAY

My occupation is PTA Vice President.

My qualifications are:

I'm running to help build the SFUSD San Francisco deserves: reliable, consistent, and excellent for every student, family, and educator counting on it.

Three of my kids attend SFUSD schools. For years I have led our PTA, advocated for families across San Francisco, and shown up at SFUSD Board meetings. I have seen what our teachers give our kids, and how often the district falls short.

Every child in SFUSD should be reading by third grade and doing grade-level math by eighth. That is the floor we owe every kid, in every neighborhood school.

Rebuilding enrollment starts with schools families trust: strong principals, stable teaching teams, and classrooms where every kid is safe, supported, and challenged.

Our district's budget crisis demands hard, public questions: What are we paying for, and who is it helping? Every dollar must serve students, and families deserve a Board that shows its work.

SFUSD needs Board members who demand answers, prioritize student outcomes, and fiercely advocate for the educators, staff, and parents behind our schools. San Francisco families deserve nothing less. I'd be honored to have your vote.

Endorsed by:

Rafael Mandelman*, President, San Francisco Board of Supervisors
SF Parent Action

*For identification purposes only.

autumnforschoolboard.com

Autumn Brown Garibay

VIRGINIA CHEUNG

My occupation is Nonprofit Executive / Mother.

My qualifications are:

On my first day of kindergarten, I stood at the bus stop crying. I didn't speak English.

A teacher noticed, took my hand, and rode with me to school. Because she saw me, I became the first in my family to graduate from college.

My brother didn't get that chance and dropped out of high school. For years, I thought I was lucky. As a parent, I know a child's future shouldn't depend on luck.

I'm the daughter of refugees, an early education advocate, nonprofit executive, and a single mother of an SFUSD student. For over 20 years, I've fought for children and families.

I'll strengthen early intervention to improve literacy, math, attendance, and student engagement, restore fiscal accountability, rebuild trust, and make SFUSD the top choice for every family in every neighborhood.

A teacher helped me find my voice. Now, I'm fighting for every child to find theirs.

Every child deserves to be safe, seen, valued, and heard. Every child deserves a voice.

Endorsed by United Educators of San Francisco; Assemblymember Matt Haney; Supervisors Connie Chan, Chyanne Chen, Jackie Fielder, and Shamann Walton; Board of Education Commissioners Matthew Alexander and Alida Fisher; former Board of Education Commissioner Mark Sanchez; former Board President and Supervisor Aaron Peskin; and former Supervisors John Avalos, Jane Kim, Eric Mar, and Gordon Mar.

virginiacheung.com

Virginia Cheung

Candidates for Board of Education

ALIDA FISHER

My occupation is School Board Member.

My qualifications are:

As an SFUSD parent, former foster parent, special education advocate, and current School Board Commissioner, I am running for reelection to continue building excellent and equitable public schools for every San Francisco student.

Before joining the Board, I advocated for students and families through district committees and working groups, building coalitions with educators, district leaders, and elected officials to strengthen our schools.

As a commissioner, I'm focused on academic excellence, fiscal responsibility, and rebuilding public trust through collaboration. During my term, we have:

- Balanced SFUSD's budget, putting the district on a path to long-term financial stability
- Adopted new curricula in core academic areas
- Modernized outdated financial and HR systems
- Passed a \$790 million bond to modernize schools and build a central kitchen
- Reached multi-year agreements with all labor partners, including historic dependent health care benefits for educators
- Expanded Transitional Kindergarten districtwide

My experience as a special education advocate has taught me that every decision must center students and families, with a focus on early intervention, inclusion, and meaningful support.

I am running for reelection to build on this progress, strengthen public trust, and ensure every student has access to rigorous instruction and the opportunity to thrive.

Join me: www.alidafisher.com

Alida Fisher

RYAN HAZELTON

My occupation is Children's Nonprofit Director.

My qualifications are:

I have dedicated my career to uplifting the children and families who make our city thrive. I serve as the Executive Director at Mariposa Kids, a local nonprofit that provides after-school programming to SFUSD children in the Mission and Bernal Heights. My civic leadership also includes a mayoral appointment to the Department of Children, Youth and Their Families oversight committee and a SFUSD appointment to the SF Childcare Planning and Advisory Council, where I serve as Chair.

I grew up in a middle class union family and attended public schools throughout my education. For 19 years I have called San Francisco home. Growing up gay, I know how important it is to ensure our children grow up feeling safe and supported.

My plan for our public schools is simple:

- For Families: Make SFUSD easier to join by reforming the lottery system and expanding wrap-around services.
- For Educators: Pay them fairly and on-time and ensure that classrooms are well resourced.
- For Students: Address chronic absenteeism - children cannot learn if they aren't in schools.
- Fix our local SFUSD budget and secure additional funding from the state.
- Create safe and welcoming schools for LGBTQ+ students, immigrant students, and students with disabilities.

Endorsed by

United Educators of San Francisco (UESF)

Matt Alexander

Virginia Cheung

Natalie Gee

Gordon Mar

Gary McCoy

Aaron Peskin

Hillary Ronen

Mark Sanchez

Reina Tello

RyanForSFSchools.com

Ryan Hazelton

Candidates for Board of Education

PHIL KIM

My occupation is School Board President.

My qualifications are:

RE-ELECT PHIL, OUR SCHOOL BOARD PRESIDENT!

As a former 7th grade science teacher, I know how it feels to stand in front of students with different needs and strengths and be responsible for helping each one succeed. A school district is only as strong as each of its classrooms.

Our educators and students work hard. They deserve leadership that understands their challenges, provides clear direction, and fights to get them the resources they deserve. I know from experience that when teachers and parents feel supported, students succeed.

Throughout my career, from the classroom to the district level, and now as School Board President, my focus remains the same: engage students, support teachers, and ensure resources reach the kids who need them.

I ran for the School Board because I saw that decisions affecting our classrooms were being made by people who haven't taught before. We need educators on the School Board who understand instruction, curriculum, and what it takes to help students grow.

Our parents deserve stable schools. Our teachers deserve strong partners. Our students deserve the best school district in the country. Let's make it happen.

Endorsed by:

Mayor Daniel Lurie

Senator Scott Wiener

Assemblymember Matt Haney

Assemblymember Catherine Stefani

Board of Supervisors President Rafael Mandelman

Former Supervisor Jane Kim

www.philkim.org

Phil Kim

LAURANCE LEE

My occupation is General Contractor.

My qualifications are:

I am a proud product of San Francisco public schools—Argonne, Presidio, and Lowell. My father came to this country as an undocumented immigrant, and kind teachers saw potential in me, helped me overcome early hurdles, and opened doors that changed my life.

That experience is why I give back. I helped restore eighth-grade Algebra 1, serve as Vice Chair of the Citizens' Bond Oversight Committee overseeing school construction spending, and volunteer weekly with kindergartners in the Bayview to help them read. I show up and do the work.

Families across San Francisco want great neighborhood schools their kids can walk to, with real learning and the support teachers need. They also deserve a School Board that listens, explains its decisions, and can be trusted with public resources. As a small business owner and lifelong San Franciscan, I know lasting progress comes from working with people, not around them.

Endorsed by elected officials, educators, parents, and community leaders across San Francisco.

I'm running for the Board of Education so every child can have the opportunities SFUSD gave me. I would be honored to earn your vote.

lauranceleesf.com

Laurance Lee

Candidates for Board of Education

REINA TELLO

My occupation is Community Organizer.

My qualifications are:

Born and raised in San Francisco, a proud parent of SFUSD students.

I am a graduate of SFUSD, I am the only person running who has the perspective as a student of SFUSD.

I am a longtime community organizer whose lifelong connection to public schools gives me a deep understanding of the opportunities and challenges facing students, families, and educators.

I have a track record of using my leadership roles as a community organizer to uphold our San Francisco values. I have the support from many leaders across many issue areas because I will not use the board as a stepping-stone for political office, including support from:

United Educators of San Francisco (UESF)
 San Francisco Rising Action Fund
 Matt Alexander, Board of Education Commissioner
 Connie Chan, Supervisor District 1
 Jackie Fielder, Supervisor District 9
 Shamann Walton, Supervisor District 10
 Chyanne Chen, Supervisor District 11
 Tracy Gallardo-Brown, Founding Member of SF Latino Task Force
 Aaron Peskin, Former President of Board of Supervisors D3
 Gordon Mar, Former Supervisor D4
 Sandy Fewer, Former Supervisor D1 & Former Board of Education Commissioner
 Art Agnos, Former Mayor of San Francisco
 Reverend Amos Brown

www.reinaforschoolboard.org

Reina Tello

TIM TUNG

My occupation is Research Analyst.

My qualifications are:

I am an SFUSD parent leader, public finance professional, and a graduate of public schools from kindergarten through graduate school.

My daughters attend the Chinese Immersion School at De Avila, where I chair the School Site Council and represent our cohort on SFUSD's LCAP Advisory Committee. I chair San Francisco's Citizens' General Obligation Bond Oversight Committee, overseeing voter-approved spending.

I spent 20 years analyzing and fixing public budgets, beginning in the City of San Jose's Finance Department, steering a major city through the 2008 financial crisis. I spent 12 years at S&P Global Ratings evaluating hundreds of local governments and school districts, holding executives accountable when they failed to deliver.

SFUSD only recently regained positive financial certification after years of state oversight. Our enrollment lottery is unpredictable and drives families away. Reading and math proficiency remain unacceptably low.

I will protect a balanced budget, deliver on the student assignment system, and insist on transparent data.

Too many families believe their children can't get a quality education from San Francisco public schools. Let's give them a reason to choose San Francisco public schools by ensuring that investments in our students, teachers, and schools will show tangible results.

www.timtung.com

Tim Tung

Candidates for Community College Board

(4-year term ending January 8, 2031)

ELIJAH BALL

My occupation is College Campus Planner.

My qualifications are:

As a campus planner who works with colleges across the country, I know that with a vision and a plan, we can make City College one of the best community colleges in the country.

I moved to San Francisco at 18 to attend SFSU and became the first in my family to graduate from college. I learned that education is one of the most powerful tools for changing people's lives. So after studying at Cornell, I dedicated my career to helping colleges grow stronger.

I've worked with seven colleges nationwide and three California community college districts to create long-term plans to stabilize, modernize, and protect these institutions.

As a planner, I've helped leadership and faculty tackle some of the hardest challenges that colleges face: increasing enrollment, building facilities that work for students and teachers, and creating financial stability.

Community colleges across the country face many of the same problems, but I know from experience they're solvable.

With a clear vision and plan, we can overcome ours too!

ENDORSEMENTS:

State Senator Scott Wiener
Board of Supervisors President Rafael Mandelman
Supervisors Matt Dorsey, Bilal Mahmood, Danny Sauter,
Stephen Sherrill, and Alan Wong
SF School Board Vice President Jaime Huling
CCSF Trustees: Ruth Ferguson, Heather McCarty, and
Luis Zamora

www.elijahforcitycollege.com

Elijah Ball

ROME MOSES JONES

My occupation is Non-Profit Executive.

My qualifications are:

I am seeking a seat on the City College of San Francisco Board of Trustees because CCSF gave me the opportunity to build on the foundations I gained as a lifelong SFUSD student. As an alumni of both City College of San Francisco (AA in Real Estate) and San Francisco State University (BA in Urban Planning & Studies), I know how vital strong, accessible public education is for students across our city.

My professional work has been rooted in non profit service, where I have supported students as a success coach, mentor, and college ambassador. These roles have shown me the real challenges students face and the systems that must evolve to help them thrive.

I am committed to strengthening CCSF, expanding opportunity, and ensuring every student has the support needed to reach their goals.

Rome Moses Jones

Candidates for Community College Board

(4-year term ending January 8, 2031)

MONROE LACE

My occupation is Public School Teacher.

My qualifications are:

San Francisco is on the rise because we are delivering results. City College must do the same.

I am a community college and trade school graduate, and today I teach in San Francisco's public schools.

I am first, foremost, and forever a teacher. I understand what students need to succeed. I work directly with the students City College serves and the programs City College provides. I have seen firsthand how a strong partnership between City College and K-12 schools can change a student's life.

City College faces serious financial, enrollment, and governance challenges. Addressing these challenges will require a practical plan. We must return to the basics: balance the budget, increase enrollment, and put student success first.

Every decision I make will begin with one question: What best serves students? I want my students to know that when they are ready to take their next step, whether toward a degree, a trade, or simply a love for learning, City College will be stable and able to serve them.

monroelace.org

Endorsements:

Board of Supervisors: Rafael Mandelman, Alan Wong

College Board: Heather McCarty, Ruth Ferguson, Luis Zamora

School Board: Jaime Huling

Former SFUSD Superintendent Vincent Matthews

Monroe Lace

LEAH LACROIX

My occupation is Administrative Analyst.

My qualifications are:

City College has always been part of my life. My higher education career began at CCSF as a dual-enrolled high school student. I attended K-12 along Ocean Avenue and have lived in the Ingleside for 20+ years.

CCSF is a vital institution and economic engine for San Francisco, and deserves protection. Trustees are the guardians of the college, ensuring the mission and our students remain at the forefront of all decisions. Trustees must be accountable and promote transparency. My decades of public service and policy advocacy in San Francisco, including advocating for food security, community and students needs, have prepared me to be the fierce guardian CCSF needs.

My goals in governing CCSF include:

- Bring stability and a long-term vision to the Board
- Right-the-ship – prepare CCSF for its next chapter
- Re-establish trust in the college by ensuring the courses students need are offered
- Improve transparency through public-input and oversight
- Grow enrollment strategically and sustainably

CCSF has overcome a crisis, now we must rebuild and transition out of perpetual crisis mode.

Endorsements:

Susan Solomon, CCSF Trustee

Vick Chung, CCSF Trustee

Connie Chan, Supervisor District 1

Alida Fisher, SFUSD Board Member

Aaron Peskin, Former Supervisor District 3

Leah LaCroix

Candidates for Community College Board

(4-year term ending January 8, 2031)

JEREMY LEE

My occupation is Asset Manager.

My qualifications are:

City College is the economic engine of San Francisco. Nurses, firefighters, teachers, and childcare providers all get their starts at City College. It's where my family got their start for a better life.

I'm a proud 3rd generation San Franciscan. I've spent a decade working in Chinatown, advocating for the needs of immigrants, seniors, and vulnerable families. In 2017, I worked in City Hall to make Free City College a reality.

City College is personal to me. It's where both of my parents attended. With that education, they landed good-paying union jobs. My family achieved the American Dream because of City College and organized labor.

The college is at a crossroads. Revenue is flat. Waitlists for basic classes are full. If elected, my priorities are:

- Strengthen CCSF's Cantonese program
- Secure CCSF's finances for the future
- Grow CCSF as San Francisco's economic engine
- Protect Free City College

My campaign is powered by people. I refuse money from big tech, corporations, and billionaires. With your vote and your support, City College can thrive and uplift every San Franciscan.

Endorsements:

Electeds/Leaders:

- Supervisor Connie Chan
- Supervisor Chyanne Chen
- Norman Yee (former BOS President)
- Aaron Peskin (former BOS President)
- Norman Fong

City College San Francisco Trustees:

- Vick Chung
- Susan Solomon

www.JeremyLeeSF.com

@JeremyLeeSF

Jeremy Lee

BUNNY MCFADDEN

My occupation is Educator / Journalist.

My qualifications are:

I grew up sleeping in the faculty lounge while my mom, a janitor, cleaned community college classrooms. I graduated high-school early thanks to community college, and later taught at one, before earning my Doctorate in Education.

Personally and professionally I see the difference education makes. I've taught adults and youth, been a PTA board member and member of the South of Market Childcare board, directed workforce development, and thrown myself all-in to SF's downtown recovery at the City's coolest park. I have experience in collaborating with state and local agencies, in curriculum design from STE(A)M to English, Chicano Studies to journalism. From working for a nonprofit that supports youth literacy, to being a San Francisco public school parent, I know at all levels what education can accomplish.

Whether down on your luck or a step away from curing cancer, San Franciscans need CCSF. It's free for every resident. No age limit, no income check, no limits to potential. We owe it to ourselves, our City, and our future to hold true to the promise of City College.

Susan Solomon, CCSF trustee
 Connie Chan, supervisor
 Aaron Peskin, former supervisor
 Dean Preston, former supervisor
 Vick Chung, CCSF trustee

Bunny McFadden

Candidates for Community College Board

(4-year term ending January 8, 2031)

ERWIN TAM

My occupation is Municipal Financial Advisor.

My qualifications are:

CCSF is in a cycle of waste and mismanagement that threatens closure. I'm running for Community College Board to fix it.

My mom showed me the value of learning as she taught her students in public school, and City College gave my father his shot at higher education. That let them put me through Berkeley, which is why I've spent my career giving back to my city by advising public agencies, helping them to cut waste, leverage funding, and protect essential services.

I supported BART through funding shortfalls, helped Muni plan for a balanced budget, and created long-term financial strategies with more than 30 community colleges across the state.

City College is losing money, and I know how important it is to our city. Families and students can't afford for it to fail.

Students deserve an accredited and safe place to learn.

Faculty and staff deserve good benefits and stable wages.

All San Franciscans deserve a world-class City College.

Endorsements:

Board of Supervisors: Rafael Mandelman, Alan Wong

College Board: Heather McCarty, Ruth Ferguson, Luis Zamora

School Board: Jaime Huling

Former College Board President Alex Randolph

Erwin Tam

LISA PALAGI WYNN II

My occupation is Equity Researcher.

My qualifications are:

My A.S with honors CCSF 2024

My BS with CIIS Interdisciplinary Studies

My 4 years serving as a Behavior Health Commissioner for SF.

My student organizing and pathway build to San Francisco Rising and UCSF

I Develop and pass Prop 2

Lisa Palagi Wynn II

Candidate for Community College Board

(remainder of the current term ending January 8, 2029)

RUTH FERGUSON

My occupation is Trustee, City College of San Francisco.

My qualifications are:

I'm running to keep City College accessible and affordable for everyone. I grew up in a small town where community college opened every door for me and my family, carrying me to a four-year university and a master's degree in public policy from UC Berkeley.

City College is where people go to transform their lives, earn a debt-free degree or get better job training. That's why I'm protecting Free City, growing enrollment and keeping the college financially stable.

Since joining the board in January, I've fought to restore funding and voted for a balanced budget. I've spent months listening to students, faculty and staff so their priorities shape what we do next.

I've spent my career fighting for students and workers, from tackling housing and student homelessness policy in the California Legislature to taking on the powerful in the State Capitol as a whistleblower and winning real accountability reforms.

I'm proof of what City College can do, and I'm proud to now do that work on the Board of Trustees.

Endorsements include:

Speaker Emerita Nancy Pelosi

Mayor Daniel Lurie

State Senator Scott Wiener

Assemblymember Matt Haney

Board of Supervisors President Rafael Mandelman

Supervisor Bilal Mahmood

Supervisor Myrna Melgar

Supervisor Danny Sauter

Supervisor Stephen Sherrill

Supervisor Alan Wong

City College Trustee Heather McCarty

City College Trustee Luis Zamora

Ruth Ferguson

Candidate for BART Director, District 8

SARA BARZ

My occupation is Transportation Planner and Product Manager.

My qualifications are:

I'm a transportation planner and a San Francisco mom. I've spent my career making transit easier, leading efforts to help the Bay Area's transit systems provide better connections and transfer discounts, and serving on advisory boards ensuring accountability for transportation projects.

I don't just advocate for better transit; I rely on BART. I know how painful it is when you can't get to work or school pick-up on time because the train is delayed. I will use my experience to deliver a world-class rider experience and hold BART accountable.

San Franciscans deserve a clean, safe, and connected transit system. As your BART Director, my top priorities will be:

- **Getting the Basics Right:** Riders deserve reliable service, safe and clean stations, and working elevators, escalators, and fare gates.
- **Welcoming Stations:** Plazas should be inviting and accessible to all users, whether on foot or on wheels.
- **Holding BART Accountable:** The agency should implement all of the cost-saving and transparency measures recommended by independent auditors to account for each taxpayer dollar spent.

I am proudly endorsed by:

State Senator Scott Wiener
Assemblymember Catherine Stefani
Supervisor Myrna Melgar
Supervisor Alan Wong
Supervisor Bilal Mahmood
BART Director Janice Li
Planning Commissioner Mike Chen
Andrew Casteel, Laughing Monk Brewing Founder
Sierra Club

www.SaraBarz.com

Sara Barz

Candidate for Assessor-Recorder

JOAQUÍN TORRES

My occupation is Assessor-Recorder.

My qualifications are:

Since becoming Assessor-Recorder in 2022, I've worked to make San Francisco's government more accessible and easier to use. Less time waiting in line. Less time on hold. More time actually getting things done.

Since taking office I've:

- Modernized a 30-year-old property tax assessment system, moving everything fully online into a more secure, up-to-date platform
- Built the first free public records viewing system of its kind in California, so any San Franciscan can access official documents from home
- Added a new lobby check-in system for shorter waits, a call-back phone system, and one-on-one appointment guidance for tax exemptions

As property tax assessment appeals surge across San Francisco, I'm making sure every property owner is treated equally and pays their fair share, keeping our city's finances on solid ground.

For families working to build and hold onto wealth, I've launched free estate planning resources. I've also made it easier for nonprofits to access the tax exemptions they qualify for.

San Francisco deserves a government that actually works for people. I'd be honored to have your vote again.

Endorsements:

Governor Gavin Newsom
Speaker Emerita Nancy Pelosi
State Controller Malia Cohen

JoaquinTorresSF.com

Joaquín Torres

Candidate for Public Defender

MANO RAJU

My occupation is Public Defender.

My qualifications are:

As San Francisco Public Defender, I lead a team that fights to represent the accused. My office emphasizes the importance of high-level legal representation that safeguards the constitutional rights of all San Franciscans.

In recognition of this work, I have received the following honors:

- California Public Defender Association – Special Recognition Award
- Society of Professional Journalists – James Madison Freedom of Information Award
- South Asian Bar Association – Public Interest Award
- La Raza Centro Legal – Visionary of Justice Award

And, to meet the needs of our community, I have expanded my office's capacity to provide immigration, mental health, and youth defense services, along with post-conviction relief.

I stand proud that the Public Defender's office invests in innovative programs that address the root causes of poverty and injustice. Among these are the Clean Slate Program (clearing record barriers to jobs and housing), the landmark 'Be the Jury' initiative (diversifying juries through fair pay), the community-based MAGIC Youth Programs (empowering youth in underresourced communities), and the College Pathway Program (connecting clients to higher education and green jobs).

I believe that true public safety requires facilitation of appropriate social services and robust constitutional defense.

With your vote, I will continue building a fairer, safer, and more just San Francisco.

Mano Raju

Candidates for Board of Supervisors, District 2

GUY MCCOY

My occupation is Manager / Retired Military.

My qualifications are:

- Retired Military
- 23-year resident of District 2
- Former Federal law enforcement
- Supports business, is business manager
- Has been a target of crime, understands crime victims
- NOT a politician or activist

I'm not a career politician making exaggerated accomplishment claims or hollow, meaningless support for what should automatically be basic values in our city. I'm a regular, hardworking, common-sense & believer in real solutions. Regardless who gets the credit. I'm not feeding an ego, nor seeing this as a step to higher office.

I'll be the sensible Board member who'll:

- Force Homeless agencies to be more effective RESOLVING Homelessness instead of lining pockets.
- Hold Homeless individuals REFUSING help accountable to the same laws we ALL follow.
- Focus new housing creation towards working San Franciscans at market rates and below INSTEAD of high-end housing.
- Recognize businesses pay our bills. We need to do away with EXCESSIVE regulations & costs that impede small businesses opening and large businesses staying.
- Encourage residents to take an active role in the city: If you see something wrong, report it. Expect what you accept.
- Get repeat offenders and career criminals off the streets.

Vote Guy McCoy, District 2 Supervisor.

Guy McCoy

MONTHANUS RATANAPAKDEE

My occupation is Community Advocate / Immigrant Rights Commissioner.

My qualifications are:

Monthanus Ratanapakdee is a longtime San Francisco resident for nearly three decades, community advocate, nonprofit founder, and public safety leader. She founded the Justice for Vicha Foundation after her father, Vicha Ratanapakdee, was killed in an unprovoked attack, helping bring national attention to anti-Asian hate, senior safety, and victims' rights.

She serves on San Francisco's Immigrant Rights Commission and has worked with residents, seniors, immigrants, families, victims, and small businesses across San Francisco. Her work focuses on public safety, accountability, neighborhood quality of life, language access, and community healing.

As an independent candidate for Supervisor, Monthanus is not backed by political party machines or big-money interests. She supports safer streets, cleaner neighborhoods, stronger support for small businesses, protecting the character of District 2 neighborhoods, responsible use of taxpayer dollars, compassionate policies with accountability, stronger protections for seniors and victims, and consequences for repeat violent offenders.

Monthanus believes San Francisco can be safe, compassionate, economically strong, and accountable to the people again.

Titles and organizational affiliations are listed for identification only. This is not an endorsement by the Immigrant Rights Commission, the City and County of San Francisco, or the Justice for Vicha Ratanapakdee Foundation.

Monthanus Ratanapakdee

Candidates for Board of Supervisors, District 2

STEPHEN SHERRILL

My occupation is Member, Board of Supervisors.

My qualifications are:

Stephen Sherrill, District 2 Supervisor

“Keep San Francisco moving forward. Vote for Stephen Sherrill.” - Mayor Daniel Lurie

Re-elected in June with 69%!

San Francisco is on the rise. I work daily to deliver safe streets, affordable homes, vibrant businesses, family-friendly neighborhoods, good jobs, great schools for all.

As Supervisor, my focus is public safety and neighborhood needs. We've delivered:

- Added police foot patrols to reduce crime
- Stopped cuts to police, fire, street cleaning
- Launched SF's Safe Gun Storage Initiative
- Defended Planned Parenthood against extremist threats
- Expanded daycare subsidies for nearly 1,000 families
- Added 1,200+ homes including affordable housing for teachers and seniors
- Lowered start-up costs for new shops on Fillmore, Union
- Wrote the law to fill vacant storefronts faster on Van Ness
- Championing Muni funding to keep San Francisco moving

As a father raising kids here and past Director of the Mayor's Office of Innovation, I know what we need from City Hall. It's focus and follow-through to keep San Francisco moving forward and make it the #1 place for families and businesses to start, stay and build a future.

Endorsements:

Mayor Daniel Lurie
 Planned Parenthood Northern California Action Fund
 San Francisco Firefighters Local 798
 North Coast States Carpenters Union
 Tim Omi, President, Fillmore Merchants Association*

*Title for ID purposes only

And more at VoteStephenSherrill.com!

Stephen Sherrill

Candidates for Board of Supervisors, District 4

ALBERT CHOW

My occupation is Hardware Store Owner.

My qualifications are:

I am a 50-year Sunset resident, raising my children here and sending them to the same neighborhood schools I attended. The Sunset is my home, and I am committed to protecting what makes our community special while preparing it for the future.

I co-founded People of Parkside Sunset to strengthen our neighborhood through community meetings, merchant support, and events that bring residents together. Through that work, I helped create outdoor movie nights, farmers markets, and night markets that have become beloved community traditions.

As a small business owner, I understand the challenges facing working families and local merchants. Great Wall Hardware, founded by my parents in 1983, was devastated by an arson fire. I spent the last two years rebuilding my family's business from the ground up. That experience reinforced my belief that strong communities are built through resilience, hard work, and neighbors supporting one another.

I have always stood with Sunset residents and fought to ensure our voices are heard on the issues affecting daily lives.

As your Supervisor, I will work to improve public safety, support our schools, create housing that protects working families, strengthen small businesses, improve traffic and pedestrian safety, invest in neighborhood infrastructure, and ensure District 4 has a strong voice at City Hall.

Together, we can build a safer, stronger Sunset.

www.albertchowsf.com

Albert Chow

JEREMY JULIAN GRECO

My occupation is Campus Coordinator / Monologist.

My qualifications are:

I am Jeremy Julian Greco — a father, an artist, a former worker-owner of Other Avenues cooperative, and a 26-year resident of the Outer Sunset. I have seen the Sunset full circle — from raising my daughters here to caring for family through the passing of my mother-in-law. As producer of Sunset Solos, I have worked to build a vibrant, artistic community rooted in connection and storytelling.

I served on the Board of Directors and co-owned Other Avenues food cooperative for 16 years. In that time, we purchased our building, installed solar panels, supported workers, and navigated COVID together.

I am running for Supervisor to rebuild trust the Sunset Way — through honesty, accountability, and community-centered leadership. I will permanently protect Sunset Dunes, our coastline, the Westside groundwater basin, and reduce Ocean Beach pollution. I support Slow Streets near schools, safer bike corridors, roundabouts, beat cops, and cleaner, reliable MUNI service.

I support affordable housing that keeps families, seniors, artists and workers in District 4, including intergenerational artistic housing and cooperative business initiatives that strengthen neighborhoods and help residents age with dignity.

Together, we can build a safer, more affordable, creative, and connected District 4.

Jeremy Julian Greco

Candidates for Board of Supervisors, District 4

ALAN WONG

My occupation is Member, Board of Supervisors / Military Commander.

My qualifications are:

The Sunset is the community I love and the only home I've ever known. As your District 4 Supervisor, it is the greatest honor of my life to serve the neighborhood I was born and raised in.

I am a Lincoln High School graduate and National Guard officer. I have served as a union organizer, Children's Council of San Francisco policy director, and City College Board President.

I bring practical, common-sense leadership and focus on results. As Supervisor, I have been delivering on the basics of governance: responsive government, strengthening public safety, maintaining clean and safe streets, and making San Francisco a place where families can thrive.

I've been fighting for:

- Hiring more police officers, justice for crime victims, and giving police the tools and funding they need to prevent crime.
- Street and pedestrian safety improvements.
- Cutting unnecessary bureaucracy and making government work for regular people.
- Eighth-grade algebra and neighborhood zone-based public school assignments.
- Reopening the Great Highway to vehicles on weekdays.
- More parking and getting the Municipal Transportation Agency to listen to residents and small businesses.

Endorsements:

Mayor Daniel Lurie, Willie Brown
 State Treasurer Fiona Ma
 Lieutenant Governor Eleni Kounalakis
 Attorney General Rob Bonta
 State Controller Malia Cohen
 Congressman Kevin Mullin
 State Assemblymember Catherine Stefani, Matt Haney
 Sheriff Paul Miyamoto, Vicki Hennessy
 San Francisco Board of Supervisors: Stephen Sherrill,
 Danny Sauter, Bilal Mahmood, Matt Dorsey, Myrna Melgar,
 Rafael Mandelman, Chyanne Chen
 San Francisco Democratic Party Chair Nancy Tung
 San Francisco Police Officers Association
 San Francisco Deputy Sheriffs' Association
 San Francisco Firefighters Local 798

www.alanwong.com

Alan Wong

Candidates for Board of Supervisors, District 6

ALEX BEHREND

My occupation is Neglected Voter Organizer.

My qualifications are:

Why vote? (That's not a rhetorical question.)

What has it gotten most of us?

Unless you're uber-wealthy or well-paid by them, isn't neglect what we get from most politicians (and all the billionaire corporations backing them?)

FIRST, let's support those who aren't backed by the billionaires and massive corporations exploiting us.

And even better if it's somebody in the same boat as you — struggling to make ends meet, getting a landlord to make adequate repairs, or trying to get to/from work without forking over \$40 to a Silicon Valley app (each way!)

It's a fact that working folks are true policy experts (because we deal with corrupted policy.)

When I'm on the Board, I'll fight the predators you and I face every day.

We will use EXISTING criminal penalties for landlords who unlawfully neglect our buildings.

We will enforce CRIMINAL CODES on corporations to fix working conditions and protect wages.

The "City Family" pretends our exploitation doesn't happen. I will put a stop to that!

It's DEPLORABLE our so-called leaders have let it get so bad for us working San Franciscans.

Alex Behrend

MATT DORSEY

My occupation is San Francisco Supervisor.

My qualifications are:

There is no playbook to run for public office as a recovering drug addict. But when I did that four years ago, San Franciscans like you gave me a chance.

You agreed that amid the deadliest drug crisis in history, City Hall needed a strong voice from the recovery community — someone willing to challenge the status quo and lead change. You shared my belief that by balancing compassionate support with accountability, people can change for the better.

And so can San Francisco.

As your Supervisor, I authored the Recovery First Ordinance to align city drug policies toward a common goal: long-term recovery from addiction. I legislated Read to Recovery, a nationally recognized program that distributed more than 12,000 recovery books. I championed Drug-Free Sidewalks, expanded access to lifesaving addiction medications, and advanced Drug-Free Supportive Housing to provide recovery-oriented alternatives.

I've also worked to revitalize downtown, expand housing production, support renters, encourage office-to-housing conversions, and strengthen public safety and traffic safety.

Together, we're showing that recovery works — for our residents and our city. We've done a lot. But there's a lot more to do, and a lot to lose if we backtrack.

I ask for your vote for re-election; learn more at mattdorsey.org.

Matt Dorsey

Candidates for Board of Supervisors, District 8

GARY MCCOY

My occupation is Healthcare Policy Advocate.

My qualifications are:

District 8 needs a fighter, and I have spent my career fighting for this community at every level of government.

Endorsed by Speaker Emerita Nancy Pelosi, I am the Campaign Manager for her Save Our Health Care Campaign, fighting to protect Medicaid and the Affordable Care Act. I served as aide to Senator Scott Wiener and oversaw pedestrian safety, park activation, and open space policy at the San Francisco Recreation and Parks Department.

As Supervisor, I will:

- Streamline housing approvals to build more homes faster
- Cut red tape for small businesses
- Protect LGBTQ+ organizations from funding cuts
- Expand mental health crisis response teams and fund substance use treatment and recovery
- Strengthen tenant protections and champion affordable housing
- Build better streets through safety improvements, expanded protected bike lanes, and expanded slow streets

I rebuilt my own life through San Francisco's systems of care after experiencing homelessness. I led both the Alice B. Toklas and Harvey Milk LGBTQ Clubs. If elected, I will be the third person living openly with HIV to serve on the Board of Supervisors.

Endorsed by:

- Speaker Emerita Nancy Pelosi
- Congressman Kevin Mullin
- Supervisors Myrna Melgar, Matt Dorsey, Connie Chan
- Harvey Milk LGBTQ Club
- Former Supervisors Jeff Sheehy & Carol Ruth Silver
- Harvey Milk Civil Rights Academy Principal*
Mark Sanchez
- SEIU 2015
- NUHW
- UA Local 38
- IFPTE Local 21
- AFT 2121

Learn more: www.garymccoysf.com

*for identification purposes only

Gary McCoy

MICHAEL T. NGUYEN

My occupation is Attorney / Drag Activist.

My qualifications are:

As an experienced patent attorney, I bring the negotiating skills necessary to fight for the people of District 8. I've worked across the political spectrum building consensus and developing common sense solutions that benefit all of us.

In 20 years of creating community and forming coalitions in San Francisco, I've learned how to serve those of us too often left out of the political process.

A son of refugees and a drag performer, I'm not a political machine candidate. I'm a truly independent voice who won't cater to special interests.

I'm running because I believe one of the richest cities in the country should not be failing its residents. We all deserve better. I'll fight to make sure pot holes are filled and basic services, like MUNI, aren't cut.

My platform is built on three things: affordability, housing production for working families, and good governance.

I'm honored to have earned the endorsements of former Assemblymember and Supervisor Tom Ammiano and former Supervisors Sandra Lee Fewer and Gordon Mar — leaders who know what it takes to be a Supervisor in San Francisco.

Learn more at michaelnguyen4sf.com.

Michael T. Nguyen

Candidates for Board of Supervisors, District 8

DARSHINI PATEL

My occupation is Community Advocate.

My qualifications are:

San Francisco doesn't have a values problem. We have a delivery problem. We already agree on what we want: safer streets, housing people can afford, care that shows up. A Supervisor's job is to make the city deliver it.

That's been my career. I served in the Obama White House on the Domestic Policy Council and his re-election campaign. I helped a technology company grow from 15 cities to more than 7,000, launching over 300 markets, building its small business advocacy function, and delivering COVID emergency relief to 100,000 small businesses in weeks. My home is District 8: first Mission Dolores, then Noe Valley.

As Supervisor, I will:

- Attack the housing backlog with a public pipeline tracker, enforceable timelines, and a second affordable housing site in District 8
- Unlock permitting for childcare centers and open our first family services hub
- Defend the LGBTQ health clinics this district relies on
- Enforce the vacancy tax: 236 District 8 properties never filed
- Publish a quarterly scorecard: commitments, dollars, deadlines, results

I take no corporate or legacy PAC money. The budget maps our values. Read mine, ask hard questions, and hold me to my answers. More is possible. votedarshini.com

Darshini Patel

EMANUEL "MANNY" YEKUTIEL

My occupation is Small Business Owner.

My qualifications are:

I'm a small business owner, community builder and former city commissioner, and I'm running for District 8 Supervisor because San Francisco is ready for a new kind of leadership.

Leadership that makes it easier to find a home you can afford, to walk to the corner store and find it open, to feel safe on your own block, and to call the City and have someone show up. Leadership that knows how to build.

I'm running to deliver 10,000 new homes, zero vacant storefronts, and streets that are safe, clean and joyful. To do this, we need a city government that provides excellent customer service and follows through.

I built Manny's from the ground up — navigated city bureaucracy, served coffee, made payroll, and hosted hundreds of town halls. As co-founder of the Civic Joy Fund, I helped bring lights, night markets, and millions of dollars into our commercial corridors. As an SFMTA Director, I learned how City Hall works and how to push it to deliver.

San Francisco gave me everything when I arrived looking for a place to belong. This campaign is about ensuring it can do the same for anyone who wants to call our city home. We can build it.

Emanuel "Manny" Yekutieli

Candidates for Board of Supervisors, District 10

PEARCI “PJ” BASTIANY III

My occupation is MPA Graduate Student.

My qualifications are:

Pearci “PJ” Bastiany is a graduate student in the Master of Public Administration program at the University of San Francisco and a proud USF Double Don, having previously earned a Bachelor of Science in Marketing from USF. PJ is a small business owner, registered City and County of San Francisco bidder and supplier, community advocate, and martial arts instructor dedicated to improving public safety and economic opportunity throughout the city.

PJ is a 1st Degree Black Belt trained through Ernie Reyes West Coast World Martial Arts and has competed in numerous sanctioned martial arts tournaments. He champions the Martial Arts Community Protection Initiative, a community-based approach I created that combines mentorship, education, public safety, and workforce development to help create safer neighborhoods while empowering youth and families.

As Founder and CEO of MAFH, PJ has worked to connect public safety, community engagement, workforce development, and economic revitalization. He also created the character “PJ the Poolman” and the film project The Poolman as a positive symbol of service, resilience, and civic responsibility. Through business, education, advocacy, and public service, PJ is committed to restoring confidence in San Francisco, supporting local communities, and inspiring the next generation of leaders to build a safer, stronger, and more prosperous city for all.

Pearci “PJ” Bastiany III

DIONJAY (DJ) BROOKTER

My occupation is Community Advocate.

My qualifications are:

Community has always been at the forefront of my life.

I grew up in a working-class family in the Central Valley. My father was a janitor, and my mother at Kaiser taught me hard work and compassion. Losing her in high school showed me how much families depend on stability and community support.

Those experiences shaped who I am and my commitment to helping people access opportunity. I have spent 16 years connecting residents to jobs, workforce training, and resources because I believe everyone deserves the chance to build a better future.

Today, too many District 10 residents feel disconnected from opportunity and services. Families are struggling with the cost of living, seniors worry about staying in their communities, and small businesses are working to stay open.

Our strength comes from one another: when neighbors support each other and communities have a voice, we move forward together.

My commitment is to listen, serve, and work every day to build a stronger District 10.

Please join Supervisors Walton, and Melgar, Former San Francisco Mayors Willie Brown and Art Agnos, Former District 10 Supervisor Sophie Maxwell, and thousands of our neighbors in supporting my campaign. I would be honored to earn your vote.

<https://www.dj4d10.com/>

Dionjay (DJ) Brookter

Candidates for Board of Supervisors, District 10

DEANDRA BRYANT

My occupation is Community Advocate and IHSS Provider.

My qualifications are:

I am a lifelong Bayview Hunters Point resident, housing advocate, parent advocate, homeowner, and mother of a child with autism.

My life experience has prepared me to fight for District 10. As a teen mother, domestic violence survivor, and community advocate, I understand the challenges many families face. I have worked in housing services helping residents access resources, housing opportunities, and support programs. I have also spent years advocating for children with disabilities and helping families navigate systems that are often difficult to access.

As your Supervisor, I will focus on expanding homeownership opportunities, improving housing stability, increasing support for children with disabilities and their families, strengthening public safety, and ensuring that District 10 receives the investment and resources it deserves.

Bayview Hunters Point, Visitacion Valley, Sunnysdale, Potrero Hill, and Dogpatch deserve leadership that listens, shows up, and delivers results. I am committed to bringing residents together, building partnerships, and creating opportunities that allow families to remain and thrive in the communities they call home.

I respectfully ask for your vote for District 10 Supervisor.

Deandra Bryant

THEO ELLINGTON

My occupation is Public Policy Director.

My qualifications are:

A third-generation San Francisco native raising 3 boys with my wife, I'm running to ensure our southeast neighborhoods receive the same focus, urgency, and investment as the rest of San Francisco.

The challenges facing San Francisco aren't new to me; I've lived them. After my 13-year-old cousin was killed in Bayview-Hunters Point, I dedicated my life to public service.

As City Commissioner, I led the creation of over 1,000 affordable homes and restored \$50M in community development.

At The Salvation Army, I helped double homeless services, built drug-free housing, led COVID-19 recovery, and supported small businesses fighting hunger.

I helped the Golden State Warriors create 3,000 living-wage jobs, improve transit, and generate new City revenue.

I fought environmental racism, taking legal action against the corporations that covered up toxic soil at Hunters Point Shipyard, and helped keep discriminatory Stop and Frisk policing out of San Francisco.

I'm leading a cultural renaissance at Bayview Opera House as Executive Director, cultivating arts, culture, and economic development.

District 10 can be a center for jobs and innovation, affordable housing without displacement, clean streets and parks, real community policing, better transit, and clean air.

Endorsements:

Lt. Governor Eleni Kounalakis

State Treasurer Fiona Ma

Congressman Kevin Mullin

Senator Scott Wiener

Assemblymember Catherine Stefani

Mayor London Breed

Mayor Willie Brown

Supervisors Stephen Sherill, Danny Sauter, Matt Dorsey,

Bilal Mahmood

SEIU Local 87 Janitors

United Commercial Food Workers

Housing Action Coalition

TheoEllington.com

Theo Ellington

Candidates for Board of Supervisors, District 10

J.R. EPPLER

My occupation is Small Business Attorney.

My qualifications are:

District 10's next Supervisor must deliver for our neighbors. For more than a decade, I have worked with residents across the district to solve problems, build coalitions, and improve our quality of life.

As a small-business attorney, I have helped merchants and nonprofits navigate complex legal issues. I have served as the President of the Potrero Boosters Neighborhood Association and on the boards of the Friends of the Dogpatch Community Hub and the Potrero-Dogpatch Merchants Association.

I've achieved results:

- Increasing the amount of affordable housing along the Bayfront.
- Championing the 55 and 15 Muni routes.
- Securing funding for safe streets, transit, parks and community facilities.

As your Supervisor, I will advocate for your priorities:

- A community-centered approach to housing that serves working families.
- Public safety grounded in proven crime reduction tactics, like community policing and foot patrols.
- Reliable transit that connects our district to the rest of San Francisco.
- Robust public facilities like libraries, parks and community centers.

District 10 is my home. It's where my wife and I are raising our son, an SFUSD student. I will advocate for your family like my own.

I would be honored to serve as your Supervisor and deliver the complete, vibrant and connected neighborhoods District 10 deserves.

Join our grassroots, community-led campaign at jreppler.com.

J.R. Eppler

ELLSWORTH "ELL" M. JENNISON, JR.

My occupation is Carpenter.

My qualifications are:

— KEEP EXISTING OPEN SPACE OPEN

— HAVE PIER 68 TESTED FOR TOXCITY AND DESIGNATED A SUPER FUND IF APPLICABLE.

I MOVED TO SAN FRANCISCO IN 1977. I MADE THIS MY HOME BECAUSE OF THE BEAUTY OF THE CITY AND THE PEOPLE. TO ME THE ESSENCE OF OUR CITY IS THE BAY. I HAVE LIVED ON A HOUSEBOAT ON INDIA BASIN IN THE HUNTERS POINT NEIGHBORHOOD SINCE 1980.

THERE IS UNDEVELOPTED LAND BORDERING THE BAY.

THE PROPERTY ALONG INNES AND ARIELEOUS WALKER AVENUES. THIS COULD MAKE A WORLD CLASS PARK. IT COULD BE LANDSCAPED AND IRRIGATED BY EXISTING NATURAL SPRING. THIS COULD PROVIDE A MUCH NEEDED SPACIOUS AREA FOR ALL PEOPLE TO ENJOY. MOST IMPORTANTLY IT WOULD PROVIDE HABITAT FOR BIRDS AND WILDLIFE TO NEST.

ONCE THE P.G. AND E TRANSMISSION FACILITY IS MOVED THAT PROPERTY SHOULD ALSO BE TRANSFORMED INTO A PARK.

Ellsworth "Ell" M. Jennison, Jr.

Candidates for Board of Supervisors, District 10

MIKE TROUBLE LIN

My occupation is Small Business Consultant.

My qualifications are:

Vote Mike number 2
Speak Now to bring Taylor Swift
to San Francisco

votemikelin@gmail.com | Instagram: @votemikelin |
linktr.ee/votemikelin

Mike Trouble Lin

JESSICA PESSECCOW

My occupation is Legal Representative / Nurse /
Founder / Brand Ambassador / Volunteer.

My qualifications are:

My qualifications are: to my knowledge, I am the only District 10 candidate who regularly attends San Francisco City Hall commission and Board of Supervisors meetings – check SF Gov TV or go to the meetings. I turn participation into practical action for District 10. After listening to constituents, I advocate for economic opportunities, helping business owners, cheaper housing, improving transportation, bettering health care, lowering costs on items such as parking ticket and permits, and provide solutions to address the unhoused crises, environmental and sanitary conditions. I am dedicated to obtain funding for neighborhood infrastructure around Jackson Playground Park and the MLK Jr Pool, and other services, including Zuckerberg San Francisco General Hospital. Furthermore, I created <https://gov-central-jpesseccow.replit.app>, a website that streamlines government services, budget information, immigration resources, California ID guidance, government jobs, city events, the Epstein files, and ways to contact elected representatives. The goal is to make government easier to use, more transparent and responsive. I joined the Adopt-A-Street program. Most importantly, my experience in tech and helping people from all backgrounds guides my work to build more peace, trust, and access in our district. Vote for us to improve our community!

Jessica Pesseccow

Candidates for Board of Supervisors, District 10

SHAWN M. RICHARD

My occupation is CEO / Executive Director.

My qualifications are:

Shawn M. Richard Candidate for District #10 Supervisor
With over 31 years of dedicated service to the Bayview community, Shawn M. Richard is committed to addressing critical issues such as youth violence, education, and homelessness. As the founder and leader of Brothers Against Guns, Shawn has actively worked to reduce youth violence, fostering a safer environment for our children and families.

Through his tireless efforts, he has empowered countless young men and women by creating job opportunities and promoting workforce development. Shawn believes that every individual deserves the chance to succeed and that strong communities are built on the foundation of education and economic opportunity.

His experience and passion for community service make him uniquely qualified to represent District #10. With a proven track record of leadership and advocacy, Shawn is ready to tackle the challenges facing our neighborhoods and work towards a brighter future for all residents.

Vote for Shawn M. Richard for District #10 Supervisor – a leader dedicated to making a meaningful difference in our community.

Shawn M. Richard

Regional Transit Measure

To prevent major service cuts to BART and other transit, avoid increased traffic, and reduce pollution by: Preserving BART, Caltrain, VTA, SamTrans, AC Transit, Muni, other transit for everyone, including workers, students, seniors, persons with disabilities; Supporting transit safety, cleanliness, affordability, reliability; Repairing targeted roads/potholes; Requiring financial transparency, oversight, accountability; shall the measure enacting a 0.5% (Alameda, Contra Costa, San Mateo, Santa Clara counties), and 1% (San Francisco) sales tax for 14 years generating approximately \$980,000,000 annually, be adopted?

YES ☐**NO** ☐

This regional measure requires 50%+1 affirmative votes of all votes cast in the five Bay Area counties to pass.

Public Transit Revenue Measure District's Legal Counsel Impartial Analysis of Regional Transit Measure

This measure was placed on the ballot by voter initiative, signed by the requisite number of voters within the Public Transit Revenue Measure District ("District").

The District was created by the Legislature through Senate Bill 63 ("SB 63") in 2025 (Government Code sections 67700-67788), which was enacted to preserve and improve public transit service in the San Francisco Bay Area. The District comprises the counties of Alameda, Contra Costa, San Mateo, and Santa Clara, and the City and County of San Francisco, and is governed by the same board that governs the Metropolitan Transportation Commission ("MTC"). SB 63 authorizes District voters to approve a retail transactions and use tax (commonly referred to as a sales tax) for specified purposes.

This measure would impose a tax of 0.5% in the counties of Alameda, Contra Costa, San Mateo, and Santa Clara and 1.0% in the City and County of San Francisco. The tax would be imposed and collected in largely the same manner as a state-imposed sales tax. The tax would be in effect for 14 years and would not count toward the statutory limit on combined local sales tax rates.

It is estimated that the tax would raise approximately \$980 million per year. After payment of defined costs, including election costs and administrative expenses, the District must transfer all remaining revenues to MTC

and county transportation agencies for distribution and expenditure according to percentages set forth in the measure, which vary by county and recipient. Recipients include BART, Muni, Caltrain, AC Transit, Santa Clara Valley Transportation Authority, San Francisco Bay Ferry, Golden Gate Transit, smaller bus operators in Alameda and Contra Costa Counties, and county transportation agencies. Revenues would also support free and reduced-cost transit transfers, expansion of the Clipper START reduced-fare program, accessibility programs, mapping and wayfinding and transit priority projects and programs, and repavement projects for roads served by fixed-route transit.

While the tax would be imposed throughout the District, the allocation of revenue generated in each county, and the authorized uses of those funds, would vary. For example, 64.70% of all revenues generated in Alameda County would be allocated to BART for transit operations expenses. By contrast, 84.37% of all revenues generated in Santa Clara County would be allocated to the Santa Clara Valley Transportation Authority for public transit expenses and roadway repavement projects on roads served by fixed-route transit. Such repavement projects would be an authorized use of measure revenues in Alameda, Contra Costa, San Mateo, and Santa Clara counties, but would not be authorized in the City and County of San Francisco. Revenue allocation is set forth in Section 12 of the measure.

Tax revenues would be subject to accountability requirements in SB 63, which requires BART, Muni, AC Transit, and Caltrain to undergo financial efficiency

reviews and adopt implementation plans and authorizes MTC to withhold funds from any of those operators for noncompliance. The measure would also require an independent oversight committee to review whether all revenues are distributed as required.

The tax would become effective if approved by a majority of those voting on the measure throughout the entire District.

A “yes” vote is a vote to impose the tax described above for 14 years.

A “no” vote is a vote against imposing the tax.

/s/ Kathleen Kane

Legal Counsel for the Public Transit Revenue
Measure District

How “RTM” Got on the Ballot

On May 26, 2026, the “Connect Bay Area Transit Initiative” was submitted to election officials in Alameda, Contra Costa, San Mateo, and Santa Clara counties, as well as the City and County of San Francisco. The petition included 306,288 unverified signatures. State law required 187,119 valid signatures to qualify the initiative for the ballot. This number is equal to 5% of the total number of registered voters within the District. A random check of the signatures submitted by the proponents of the initiative petition showed that an estimated 235,503 signatures were valid. Because this number was greater than the 205,831 signature threshold, which represents 110% of the required number of signatures, the petition was found to be sufficient. On July 1, 2026, the District Elections Official certified that the petition contained enough valid signatures to qualify for the November 3, 2026 ballot.

Proponent's Argument

San Francisco depends on public transit to keep the city livable, power our economy, and connect neighborhoods. Strong transit supports local businesses, reduces congestion, improves air quality, and ensures everyone can get where they need to go affordably – families, seniors, people with disabilities, students, and workers.

Today, Bay Area transit faces a turning point. Without new funding from the Regional Transit Measure, we will experience significant and deep cuts to Muni, BART, and Caltrain – setting us back decades.

Without this measure, Muni could cut service by at least 30%, cancel at least 20 bus routes, end regular evening service, eliminate cable car service, and reduce fare discounts for vulnerable populations. BART could close 15 stations, including Colma, San Bruno, and South San Francisco, and reduce service by 70%. Caltrain could reduce service to one train per hour, and stop running entirely on weekends.

The consequences would impact everyone, making commuting harder, hurt seniors and working families, and slow the City's economic recovery. Thousands of people would be forced every day onto our already congested roads, freeways, and bridges, worsening air pollution, making traffic start earlier and last longer, and resulting in most of us spending more time driving and less time home with our families.

The Regional Transit Measure protects Muni service while preserving regional transit that brings workers, customers, students, and visitors into San Francisco every day.

The Regional Transit Measure protects public transit while requiring local transportation investments – with strong accountability and oversight that requires large transit agencies to show cost savings to continue receiving dedicated operating funding. And it doesn't tax rent, utilities, prescription medicines, or most groceries.

Join us and Vote Yes on the Regional Transit Measure:
www.ConnectBayArea.com

Mayor Daniel Lurie

Senator Scott Wiener

City Attorney David Chiu

San Francisco Democratic Party

League of Women Voters of the Bay Area

Brandy Blau, Zuckerberg San Francisco General

*Hospital Nurse**

Lian Chang, Transit Advocate

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

Rebuttal to Proponent's Argument

Proponents claim Bay Area transit systems, including SFMTA, face imminent collapse. The budget deficit stems from a manufactured crisis.

Proponents argue revenue is necessary to maintain operations under the Regional Transit Measure framework. However, handing transit agencies an unaccountable, guaranteed blank check removes any incentive for structural reform.

During the pandemic SFMTA gave out pay raises to Staff. Has failed to align service levels with ridership demand. Which remains roughly 15% below pre-pandemic levels. And continue to avoid implementing structural change that would close the deficit. Yet not impact service.

SFMTA hasn't earned San Franciscans trust to be asking for more money at the ballot box. SFMTA Staff hasn't been able to answer questions relating to the budget. If SFMTA can't be transparent and clean up their own mess before asking for more money. Why should voters trust them with more money?

The consequences of the Regional Transit Measure is money taken out of San Francisco residents' hard earned paychecks. At a time when the same people proposing this measure are crying foul about the high cost of living. Why should San Franciscans feel inclined to bail out SFMTA for mismanaging money and overspending?

Voting NO is not anti-transit; it is a demand for accountability. Demand Fixes Before Funding. Require SFMTA to balance their budgets. Without relying on San Franciscans to bail them out.

Vote NO on Regional Transit Measure.

Learn more at <https://nonewtransittax.com/solutions/>

Griffin Lee, Policy Lead at ConnectedSF

Opponent's Argument

The new Regional Transit Measure (RTM) Tax makes life in San Francisco less affordable. Vote NO!

San Francisco already is an expensive place to live. Working class families are barely surviving. **The RTM Tax would make it worse:**

- Prices of groceries, utilities, and rent keep rising.
- Everybody would pay this tax every day, on most things you buy.
- Necessities like prepared **food, clothing**, pet food, and over-the-counter **medicines** are taxed.
- **Seniors, students, the disabled, and low-income neighbors are hurt the most.**

San Francisco's Sales Tax is Too High already.

- RTM is the **LARGEST Sales TAX INCREASE ever in San Francisco's history.**
- RTM is a **NEW TAX** that would raise San Francisco's Sales Tax rate to **9.625%**.
- You'd pay total Sales Tax around \$1.00 for every \$10.00 of prepared food and nearly \$100 for a \$1,000 smartphone. *That's too much!*
- As local small businesses struggle, the RTM Tax could scare away customers and **eliminate jobs.**

The new RTM Tax is Too Big (\$14,000,000,000.00) and lasts Too Long (14 years):

- RTM's Tax would collect nearly a Billion Dollars every year **until 2041.**
- San Francisco unfairly pays *double* the tax rate of other counties.

You can't trust BART, Muni, and Caltrain with more of your tax money:

- You already pay BART, Muni, and Caltrain \$100,000,000.00s of sales taxes, property taxes, and bridge tolls every year – on top of fares if you ride.
- They're **grossly mismanaged.** BART and Muni gave pay/benefits above \$250,000 to 539 and 338 employees respectively in 2024. RTM's Tax picks *your* pocket to fill *theirs*.
- BART claims it's broke. But an **unnecessary** \$13,000,000,000.00 extension with 4 new stations is under construction.
- BART's taxpayer subsidy per passenger increased 729% from 2019-2024.
- You shouldn't give them more money until they stop their **wasteful spending.**

Vote NO on the Regional Transit Measure!

NoNewTransitTax.com

*Quentin L. Kopp,
San Francisco Taxpayers Association*

Rebuttal to Opponent's Argument

It's undeniable – severe BART, Caltrain and MUNI service cuts would affect all of us in San Francisco – worsening traffic jams and straining transportation options and connections for hundreds of thousands of Bay Area residents.

Please consider the FACTS and don't be misled by half-truths and exaggerations.

FACT: Don't be misled – the Regional Transit Measure does NOT tax rent, utilities, prescription medicines, or most groceries.

FACT: Before supporting the Regional Transit Measure, business groups and local leaders ensured the measure included strong accountability and oversight – BART and MUNI must show cost savings to receive dedicated operating funding.

FACT: Based on detailed analysis, transit agencies have been crystal clear – Without this measure, Muni could face severe service reductions, cancel 20 bus routes, end regular evening service, and reduce fare discounts for vulnerable populations. BART could close 15 stations, including Colma, San Bruno, and South San Francisco, and reduce service by 70%. Caltrain could reduce service to one train per hour, and stop running entirely on weekends.

FACT: Without this measure, commutes would be longer and more unpredictable as people who depend on transit are forced onto already crowded city streets and highways.

FACT: Taxpayers across San Francisco support the Regional Transit Measure, along with stakeholders who don't always agree – business, labor, environmental, and community groups.

VOTE YES on RTM to preserve our Bay Area quality of life for future generations: www.ConnectBayArea.com

Mayor Daniel Lurie

President of the Board of Supervisors Rafael Mandelman

Supervisor Matt Dorsey

Supervisor Jackie Fielder

Supervisor Bilal Mahmood

Supervisor Myrna Melgar

Supervisor Danny Sauter

Supervisor Stephen Sherrill

Former City Controller Ben Rosenfield

San Francisco Firefighters Local 798

San Francisco Senior & Disability Action

San Francisco Transit Riders

Alice B. Toklas LGBTQ Democratic Club

San Francisco Chamber of Commerce

Regional Measure RTM

CONNECT BAY AREA TRANSIT INITIATIVE

The people of the Public Transit Revenue Measure District do ordain as follows:

SECTION 1. Title.

This ordinance shall be known, and may be cited, as the “Connect Bay Area Transit Initiative.”

SEC. 2. Findings and Declarations.

The people of the Public Transit Revenue Measure District find and declare all of the following:

- (a) The San Francisco Bay Area needs a world-class, reliable, affordable, efficient, and connected public transportation network that connects residents, businesses, and visitors to jobs, services, universities, recreation, and opportunities.
- (b) The Bay Area is served by a large public transit network that safely, reliably, and affordably connects millions of residents and visitors each week. This public transit network supports the region’s economy and local communities, promotes sustainable growth, provides access to opportunity, and reduces the cost of living for Bay Area families.
- (c) Since the COVID-19 pandemic, the Bay Area’s largest public transit systems have experienced fiscal pressures and recurring budget shortfalls that threaten the level and quality of service they can provide. These fiscal pressures imperil the region’s transit agencies and threaten to undermine the region’s economy, worsen our air quality and public health, increase carbon emissions, and reduce access to opportunity for all transit riders, particularly low-income communities, seniors, people with disabilities, and youth.
- (d) Until now, relief funding from the federal government and the state has forestalled drastic service cuts. However, this relief funding is now exhausted and, despite cost control efforts and steady ridership recovery, the Bay Area’s largest transit operators — BART, Muni, AC Transit, and Caltrain — collectively face operating deficits of more than \$800 million annually starting in the 2027–28 fiscal year.
- (e) Agencies have taken significant measures to close their deficits, reduce operating costs, and boost ridership, including freezing hiring, renegotiating contracts, modernizing operations, improving fare enforcement, lowering energy costs, and expanding safety staffing. Crime is down on BART, Muni reliability is at a two-decade high, and Caltrain’s new electric service is more efficient and cost-effective.
- (f) Even with these efficiency and accountability measures in place, though, these transportation agencies continue to face severe budget deficits that will require drastic service cuts if new revenue is not identified to support operations.
- (g) BART could be forced to significantly cut service, including potentially reducing weekly trains, closing lines, eliminating weekend service, shutting stations, and ending weekday service earlier in the evening.
- (h) Caltrain could reduce service, potentially running trains on a significantly reduced schedule, ending weekday service earlier in the evening, and eliminating weekend service completely.
- (i) Muni could potentially face drastic cuts to bus and Metro lines, suspension of entire neighborhood routes, and reduction of iconic cable car and historic streetcar service.
- (j) AC Transit could reduce service, leaving operations significantly below pre-pandemic levels and cutting critical connections for East Bay residents.
- (k) Smaller operators, including county bus systems, community shuttles, and rural connectors, face service cuts that threaten lifeline routes for seniors, people with disabilities, students, and essential service workers.
- (l) Agencies would also be forced to cut maintenance, safety personnel,

and cleaning services, leading to declining conditions for riders and a service “death spiral” that could take decades to reverse.

(m) Public transit fiscal needs are particularly severe in the City and County of San Francisco, where the core transit systems of Muni, BART, and Caltrain face significant funding shortfalls.

(n) The Bay Area’s public transit network is a lifeline for many communities. Low-income residents make up approximately 31% of BART riders, 38% of Muni riders, and 70% of AC Transit riders. Families, students, seniors, people with disabilities, workers, and visitors rely on transit to access jobs, schools, healthcare, and essential services.

(o) Transportation is the second-largest cost for Bay Area households after housing. For low-income families, owning and operating a car is often impossible. Nearly half of BART riders do not own a car. Reliable transit reduces these costs and keeps the region more affordable.

(p) Transit is the backbone of the regional economy. Restaurants, hospitals, universities, retail districts, and employers depend on workers who rely on transit. Without transit, employers face higher turnover, workers face longer commutes, and economic productivity declines. Commute times could rise by up to 12 hours per week in key corridors if transit service is cut, imposing significant economic and personal burdens.

(q) Without transit, Bay Area roads would be paralyzed. If displaced transit riders shift to cars, Bay Bridge traffic would surge and highways like 101, 80, 280, 680, 880, 85, and 87 would become severely congested.

(r) Public transit is critical to meeting California’s climate goals. Transit reduces greenhouse gas emissions and improves air quality by reducing car trips. Without transit, emissions would spike, air pollution would worsen, particularly in low-income communities, and climate progress would stall.

(s) In 2025, the California Legislature passed Senate Bill 63 (SB 63) — the Connect Bay Area Act — to authorize a 14-year regional transit revenue measure in Alameda, Contra Costa, San Francisco, San Mateo, and Santa Clara counties to support transit operations and rider-focused programs. SB 63 establishes a new Public Transit Revenue Measure District to place a revenue measure on the ballot, or alternatively allows placement of a revenue measure on the ballot through a citizens’ initiative. This ordinance constitutes such a citizens’ initiative.

SEC. 3. Statement of Purpose.

It is the purpose of the people of the Public Transit Revenue Measure District in enacting this ordinance to achieve all of the following:

- (a) To generate approximately \$980 million annually to prevent catastrophic transit service cuts, preserve essential lifeline routes, maintain safety and cleanliness standards, and support the coordinated, reliable transit riders depend on.
- (b) To provide counties with dedicated funding that stays in the county to support local priorities, strengthen community connections, and maintain neighborhood routes that provide critical first-mile/last-mile access to regional systems.
- (c) To provide funding throughout the district commensurate with the needs of transit agencies in each county or city and county, including the heightened need for transit funding in the City and County of San Francisco that will be supported with the proceeds from a higher tax rate in that jurisdiction.
- (d) To impose strict oversight and transparency requirements to ensure that every dollar is spent efficiently and directly benefits riders.
- (e) To require independent efficiency reviews; performance metrics tied to safety, cleanliness, reliability, and ridership; regional coordination mandates to ensure agencies work together and deliver an integrated customer experience; and a citizen oversight committee to monitor spending, publish public reports, and ensure compliance.
- (f) To provide dedicated resources to support and expand reforms

the transportation agencies have made — such as regional fare coordination, transfer discounts, coordinated signage and wayfinding — and also require ongoing improvements so that new funding produces cleaner, safer, and more reliable service for all who live and work in the Bay Area.

(g) To impose a temporary special retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code which shall be operative for a period of 14 years if a majority of the electors voting on the measure vote to approve the imposition of the tax.

(h) To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

(i) To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

(j) To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and, at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this ordinance.

SEC. 4. Definitions.

For purposes of this ordinance, the following terms have the following meanings:

- (a) “AC Transit” means the Alameda-Contra Costa Transit District.
- (b) “Alameda County small bus operators” means the Livermore Amador Valley Transit Authority and Union City Transit.
- (c) “BART” means the San Francisco Bay Area Rapid Transit District.
- (d) “Caltrain” means the Peninsula Corridor Joint Powers Board.
- (e) “Commission” means the Metropolitan Transportation Commission.
- (f) “Contra Costa County small bus operators” means the Central Contra Costa Transit Authority, the Western Contra Costa Transit Authority, and the Eastern Contra Costa Transit Authority.
- (g) “Department” means the California Department of Tax and Fee Administration.
- (h) “District” means the Public Transit Revenue Measure District established by Section 67710 of the Government Code.
- (i) “Fund” means the Public Transit Revenue Measure Fund established by Section 11.
- (j) “Golden Gate Transit” means the Golden Gate Bridge, Highway and Transportation District.
- (k) “Muni” means the San Francisco Municipal Transportation Agency.
- (l) “Public transit expenses” means public transit operations expenses, or expenses for public transit capital improvement projects that maintain or improve public transit service, including expenses for public transit-specific components of a multimodal transportation project.
- (m) “San Francisco Bay Ferry” means the San Francisco Bay Area Water Emergency Transportation Authority.

SEC. 5. Retail Transactions Tax.

(a) For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated and unincorporated territory of the district, levied on the gross receipts of each retailer from the sale of all tangible personal property sold at retail in the district during the period specified in subdivision (c) of

Section 15, at the following rates of each retailer’s gross receipts:

(1) 0.5 percent in the Counties of Alameda, Contra Costa, San Mateo, and Santa Clara.

(2) 1 percent in the City and County of San Francisco.

(b) For purposes of the retail transactions tax imposed by this section, all retail transactions are consummated at the place of business of the retailer, unless the tangible personal property sold is delivered by the retailer or the retailer’s agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the state or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations adopted by the department.

SEC. 6. Use Tax.

(a) An excise tax is hereby imposed on the storage, use, or other consumption in the district of tangible personal property purchased from any retailer during the period specified in subdivision

(c) of Section 15 for storage, use, or other consumption in the district, at the following rates of the sales price of the property:

(1) 0.5 percent in the Counties of Alameda, Contra Costa, San Mateo, and Santa Clara.

(2) 1 percent in the City and County of San Francisco.

(b) For purposes of the use tax imposed by this section, the sales price shall include delivery charges when such charges are subject to state sales or use tax, regardless of the place to which delivery is made.

SEC. 7. Adoption of Provisions of State Law.

(a) Except as otherwise provided in this ordinance, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code, insofar as they relate to sales and use taxes and are not inconsistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, are hereby adopted and made a part of this ordinance as though fully set forth herein.

(b) Wherever the State of California is named or referred to as the taxing agency in the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code, the name of the district shall be substituted therefor, except as follows:

(1) The substitution shall not be made in the terms “State Controller,” “State Treasurer,” “State Treasury,” and “Constitution of the State of California.”

(2) The substitution shall not be made if it would require action to be taken by or against the district or any agency, officer, or employee thereof rather than by or against the department in performing the functions incident to the administration or operation of this ordinance.

(3) The substitution shall not be made if the substitution would do either of the following:

(A) Provide a tax exemption with respect to certain sales, storage, use, or other consumption of tangible personal property that would not otherwise be exempt while such sales, storage, use, or other consumption remains subject to tax by the state under the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code.

(B) Impose a tax with respect to certain sales, storage, use, or other consumption of tangible personal property that would not be subject to tax by the state under the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code.

(4) The substitution shall not be made in Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797, or 6828 of the Revenue and Taxation Code.

(c) (1) The name of the district shall be substituted for the word “state” in the phrase “retailer engaged in business in this state,” and in the

definition of that phrase, in Section 6203 of the Revenue and Taxation Code.

(2) “A retailer engaged in business in the district” shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the state by the retailer and all persons related to the retailer that exceed five hundred thousand dollars (\$500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of the Internal Revenue Code and the regulations adopted thereunder.

(d) If a seller’s permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor’s permit shall not be required by this ordinance.

(e) All amendments to Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code that are enacted subsequent to the effective date of this ordinance and that are not inconsistent with Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code that are enacted subsequent to the effective date of this ordinance, shall automatically become part of this ordinance, provided that no such amendment shall operate so as to affect the rate of tax imposed by this ordinance.

SEC. 8. Exemptions and Exclusions.

(a) The retail transactions tax imposed by Section 5 shall be subject to the following exemptions and exclusions:

(1) The amount subject to the retail transactions tax shall not include the amount of any sales or use tax imposed by the State of California or by any city, county, or city and county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law (Part 1.5 (commencing with Section 7200) of Division 2 of the Revenue and Taxation Code) or the amount of any state-administered transactions or use tax.

(2) The sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the district in which the sale is made and directly and exclusively in the use of the aircraft as common carriers of persons or property under the authority of the laws of this state, the United States, or any foreign government shall be exempt from the retail transactions tax.

(3) The sales of property which is to be used outside the district and which is shipped to a point outside the district, pursuant to the contract of sale, by delivery to that point by the retailer or the retailer’s agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point, are exempt from the retail transactions tax. For purposes of this paragraph, delivery to a point outside the district shall be satisfied as follows:

(A) With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code, by registration to an out-of-district address and by a declaration under penalty of perjury, signed by the buyer, stating that the address is, in fact, the buyer’s principal place of residence.

(B) With respect to commercial vehicles, by registration to a place of business out-of-district and a declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

(4) (A) The sale of tangible personal property shall be exempt from the retail transactions tax if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

(B) The lease of tangible personal property which is a continuing sale of that property shall be exempt from the retail transactions tax for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this ordinance.

(C) For purposes of this paragraph (4), the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not that right is exercised.

(b) The use tax imposed by Section 6 shall be subject to the following exemptions and exclusions:

(1) The amount subject to the use tax shall not include the amount of any sales or use tax imposed by the State of California or by any city, county, or city and county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law (Part 1.5 (commencing with Section 7200) of Division 2 of the Revenue and Taxation Code) or the amount of any state-administered transactions or use tax.

(2) In addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code, the storage, use, or other consumption of tangible personal property, other than fuel or petroleum products, purchased by operators of aircraft and used or consumed by the operators directly and exclusively in the use of the aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this state, the United States, or any foreign government shall be exempt from the use tax.

(3) (A) The storage, use, or other consumption in the district of tangible personal property shall be exempt from the use tax if the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

(B) The possession of, or the exercise of any right or power over, tangible personal property under a lease which is a continuing purchase of the property shall be exempt from the use tax for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease entered into prior to the operative date of this ordinance.

(C) For purposes of this paragraph (3), the storage, use, or other consumption of, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not the right is exercised.

(4) (A) Except as provided in subparagraph (B), a retailer engaged in business in the district shall not be required to collect the use tax from the purchaser of tangible personal property unless the retailer ships or delivers the property into the district or participates within the district in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the district or through any representative, agent, canvasser, solicitor, subsidiary, or person in the district under the authority of the retailer.

(B) “A retailer engaged in business in the district” shall also include any retailer of a vehicle subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, an aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or an undocumented vessel registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. The retailer shall be required to collect the use tax from any purchaser who registers or licenses the vehicle, aircraft, or vessel at an address in the district.

(c) Any person subject to the use tax imposed by Section 6 shall

be entitled to credit against that tax any transactions tax, or to reimbursement for a transactions tax, paid to a district imposing, or a retailer liable for, a transactions tax pursuant to Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use, or other consumption of which is subject to the use tax.

SEC. 9. Contract with the State.

(a) Prior to the operative date of this ordinance, the district shall contract with the department to perform all functions incident to the administration and operation of this ordinance.

(b) In the event the district does not contract with the department prior to the operative date of this ordinance, the district shall nevertheless so contract and, in that case, the operative date of this ordinance shall be the first day of the first calendar quarter following the execution of the contract.

SEC. 10. Prohibition on Enjoining Collection.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action, or proceeding in any court against the state or the district, or against any officer of the state or the district, to prevent or enjoin the collection under this ordinance, or Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

SEC. 11. Public Transit Revenue Measure Fund.

(a) There is hereby established in the treasury of the district the Public Transit Revenue Measure Fund.

(b) The proceeds of the retail transactions and use taxes imposed by this ordinance shall be deposited into the fund and shall be expended in accordance with Section 12.

SEC. 12. Expenditure of Tax Proceeds.

Revenues in the fund shall be expended as follows:

(a) The district shall pay the administrative costs associated with the collection of the revenues incurred by the department, and the amounts necessary for the costs incurred by the district or commission to perform the duties required under this ordinance, including, but not limited to, election cost reimbursements specified in Section 67740 of the Government Code, costs incurred for the financial efficiency review described in Section 67762 of the Government Code, costs incurred for any required legal defense, and other one-time costs associated with administering this ordinance.

(b) After the amounts paid in subdivision (a), the district shall transfer the remaining revenues, with no discretion to withhold, reduce, delay, modify, specify the use of, or condition those revenues, as follows:

(1) (A) The revenues described in subparagraph (B) to the commission for the ongoing costs associated with administering this ordinance. If the amount transferred pursuant to this paragraph exceeds that which is necessary for administrative costs in a given year, the commission may use those excess funds for the purposes identified in paragraphs (10) to (12), inclusive.

(B) All of the following revenues shall be transferred to the commission pursuant to this paragraph:

(i) 0.25 percent of all revenues generated within the territory of the County of Alameda.

(ii) 0.25 percent of all revenues generated within the territory of the County of Contra Costa.

(iii) 0.13 percent of all revenues generated within the territory of the City and County of San Francisco.

(iv) 0.25 percent of all revenues generated within the territory of the County of San Mateo.

(v) 0.25 percent of all revenues generated within the territory of the County of Santa Clara.

(2) The following revenues to the commission for allocation to BART for transit operations expenses:

(A) 64.70 percent of all revenues generated within the territory of the County of Alameda.

(B) 58.59 percent of all revenues generated within the territory of the County of Contra Costa.

(C) 29.14 percent of all revenues generated within the territory of the City and County of San Francisco.

(D) 26.64 percent of all revenues generated within the territory of the County of San Mateo.

(3) The following revenues to the commission for allocation to Muni for transit operations expenses:

(A) 1.09 percent of all revenues generated within the territory of the County of Contra Costa.

(B) 62.87 percent of all revenues generated within the territory of the City and County of San Francisco.

(C) 7.40 percent of all revenues generated within the territory of the County of San Mateo.

(4) The following revenues to the commission for allocation to Caltrain for transit operations expenses:

(A) 3.97 percent of all revenues generated within the territory of the City and County of San Francisco.

(B) 24.07 percent of all revenues generated within the territory of the County of San Mateo.

(C) 10.38 percent of all revenues generated within the territory of the County of Santa Clara.

(5) The following revenues to the commission for allocation to AC Transit for transit operations expenses:

(A) 21.25 percent of all revenues generated within the territory of the County of Alameda.

(B) 3.70 percent of all revenues generated within the territory of the County of Contra Costa.

(6) 2.43 percent of all revenues generated within the territory of the County of Alameda to the commission for allocation to the Alameda County small bus operators, apportioned among each operator in amounts determined by the Alameda County Transportation Commission, for transit operations expenses.

(7) 11.41 percent of all revenues generated within the territory of the County of Contra Costa to the commission for allocation to the Contra Costa County small bus operators, apportioned among each operator in amounts determined by the Contra Costa Transportation Authority, for transit operations expenses.

(8) The following revenues to the commission for allocation to San Francisco Bay Ferry for transit operations expenses:

(A) 1.62 percent of all revenues generated within the territory of the County of Alameda.

(B) 0.76 percent of all revenues generated within the territory of the County of Contra Costa.

(C) 0.97 percent of all revenues generated within the territory of the City and County of San Francisco.

(9) 0.40 percent of all revenues generated within the territory of the City and County of San Francisco to the commission for allocation to Golden Gate Transit for transit operations expenses.

(10) The following revenues to the commission for fare programs, including free and reduced-cost transfers and expanding the Clipper START program:

(A) 2.78 percent of all revenues generated within the territory of the County of Alameda.

(B) 2.78 percent of all revenues generated within the territory of the County of Contra Costa.

(C) 1.40 percent of all revenues generated within the territory of the City and County of San Francisco.

(D) 2.78 percent of all revenues generated within the territory of the County of San Mateo.

(E) 2.78 percent of all revenues generated within the territory

of the County of Santa Clara.

(11) The following revenues to the commission for accessibility programs and projects:

(A) 1.11 percent of all revenues generated within the territory of the County of Alameda.

(B) 1.11 percent of all revenues generated within the territory of the County of Contra Costa.

(C) 0.56 percent of all revenues generated within the territory of the City and County of San Francisco.

(D) 1.11 percent of all revenues generated within the territory of the County of San Mateo.

(E) 1.11 percent of all revenues generated within the territory of the County of Santa Clara.

(12) The following revenues to the commission for mapping and wayfinding and transit priority projects and programs:

(A) 1.11 percent of all revenues generated within the territory of the County of Alameda.

(B) 1.11 percent of all revenues generated within the territory of the County of Contra Costa.

(C) 0.56 percent of all revenues generated within the territory of the City and County of San Francisco.

(D) 1.11 percent of all revenues generated within the territory of the County of San Mateo.

(E) 1.11 percent of all revenues generated within the territory of the County of Santa Clara.

(13) 4.75 percent of all revenues generated within the territory of the County of Alameda to the Alameda County Transportation Commission for public transit expenses and roadway repavement projects on roads served by fixed-route transit.

(14) 19.20 percent of all revenues generated within the territory of the County of Contra Costa to the Contra Costa Transportation Authority for public transit expenses and roadway repavement projects on roads served by fixed-route transit.

(15) 36.64 percent of all revenues generated within the territory of the County of San Mateo to the San Mateo County Transit District for public transit expenses and roadway repavement projects on roads served by fixed-route transit.

(16) 84.37 percent of all revenues generated within the territory of the County of Santa Clara to the Santa Clara Valley Transportation Authority for public transit expenses and roadway repavement projects on roads served by fixed-route transit.

(c) The allocation of revenues by the commission pursuant to subdivision (b) shall be subject to Sections 67766, 67770, 67786, and 67788 of the Government Code, or any subsequent amendments of those provisions.

SEC. 13. Independent Oversight Committee.

As required by Section 67754 of the Government Code, within six months of the effective date of this ordinance the district shall establish an independent oversight committee to ensure that any revenues generated pursuant to this ordinance are distributed and transferred by the district consistent with the applicable requirements of this ordinance. The committee may be consolidated with the oversight committee established pursuant to subdivision (h) of Section 30923 of the Streets and Highways Code. The committee shall consist of either one or two representatives from each county included within the jurisdiction of the district, appointed by the applicable county board of supervisors. The oversight committee may request any documents from the district to assist the committee in performing its functions.

SEC. 14. Annual Appropriations Limit.

Pursuant to Article XIII B of the California Constitution and other applicable laws, the appropriations limit for the district shall be adjusted periodically, as permitted by the California Constitution, by the aggregate sum of taxes collected under this ordinance.

SEC. 15. Effective and Operative Dates.

(a) This ordinance shall be considered adopted on the date the vote is declared by the district's governing board and shall go into effect 10 days after that date.

(b) Except as provided in subdivision (b) of Section 9, this ordinance shall become operative on the first day of the calendar quarter commencing more than 110 days after the election at which this ordinance appeared on the ballot.

(c) The retail transactions and use taxes enacted by this ordinance shall be imposed beginning on the operative date of this ordinance for a period of 14 years from that date.

SEC. 16. Severability.

It is the intent of the people that the provisions of this ordinance are severable and that if any provision of this ordinance, or the application thereof to any person or circumstance, is held invalid, such invalidity shall not affect any other provision or application of this ordinance that can be given effect without the invalid provision or application.

SEC. 17. Amendment.

Except for amendments that would increase the amount of the taxes enacted by this ordinance or extend the period during which those taxes may be imposed, the district's governing board may amend this ordinance without submitting the amendment to the voters for approval, provided that the amendment furthers the purposes of this ordinance as enacted by the voters.

SEC. 18. Conflicting Measures.

(a) This ordinance is intended to be comprehensive. In the event that this ordinance appears on the same ballot as another measure relating to retail transactions and use taxes for the benefit of the Public Transit Revenue Measure District, the provisions of the other measure shall be deemed to be in conflict with this ordinance. If this ordinance receives a greater number of affirmative votes than a measure deemed to be in conflict with it, the provisions of this ordinance shall prevail in their entirety, and the provisions of the other measure shall be null and void.

(b) If this ordinance is approved by the voters but is superseded by another conflicting measure approved by the voters at the same election, and the conflicting measure is later held invalid, this ordinance shall be self-executing and given full force and effect.

SEC. 19. Liberal Construction.

This ordinance is an exercise of the initiative power of the people of the Public Transit Revenue Measure District to impose special taxes for the purposes set forth in this ordinance, and it shall be liberally construed to effectuate those purposes.

Local Ballot Measure and Argument Information

Pursuant to local law, this pamphlet includes the following information related to local ballot measures:

1. The identification of each measure by letter and title,
2. The City Attorney's statement or question,
3. The Ballot Simplification Council's digest (summary),
4. The Controller's financial analysis,
5. An explanation of how the measure qualified to be on the ballot,
6. Arguments submitted to the Department,
7. The legal text of each measure which begins on page 148, and
8. Any additional information required by the San Francisco Municipal Elections Code (SFMEC) §500.

The following arguments may be provided for a local ballot measure:

1. One proponent's argument selected in accordance with SFMEC §545 and printed free of charge,
2. One opponent's argument selected in accordance with SFMEC §545 and printed free of charge,
3. One rebuttal to each of the measure's proponent's or opponent's arguments, selected in accordance with SFMEC §550 and printed free of charge.
4. Any paid arguments, submitted in accordance with SFMEC §555-570. (All of the paid arguments in favor of a measure are printed together, followed by all paid arguments opposed to that measure. All arguments are strictly the opinions of their authors and are printed as submitted, including any typographical, spelling, or grammatical errors.)

The Ballot Simplification Council

The Ballot Simplification Council (formerly the Ballot Simplification Committee) writes summaries of local ballot measures. We print the Council's final summaries in the Voter Information Pamphlet. Current members of the Council include:

Betty Packard, Chair

Appointed by the Board of Supervisors

Ruth Grace Wong

Appointed by the Board of Supervisors

Barbara Bella

Appointed by the Mayor

Craig Paxton

Appointed by the Mayor

Jeannie Pon

Appointed by the Superintendent of Schools of the San Francisco Unified School District

Ana Flores, ex officio*

Deputy City Attorney

Michael Gerchow, ex officio*

Deputy City Attorney

Jesse Mainardi, ex officio*

Deputy City Attorney

*By law, the City Attorney or representatives from the City Attorney's Office can speak at the Council meetings but cannot vote.

Words You Need to Know

By the Ballot Simplification Council

Affordable Housing: Housing is defined as affordable for households at certain low- and, in some cases, moderate-income levels. The rents or prices of this housing generally aim for the household to pay approximately 30% of their income toward housing costs. (Proposition I)

Area Median Income: An income level published by the Mayor’s Office of Housing and Community Development for San Francisco based, in part, on all incomes earned within the United States Department of Housing and Urban Development Metro Fair Market Rent Area that contains San Francisco, and is adjusted based on historical income growth trends for San Francisco. In 2026, the median income for the following percentages and family size is as follows:

	1 Person	2 Person	3 Person	4 Person
30% of Median Income (Extremely Low-Income)	\$34,050	\$38,900	\$43,750	\$48,650
50% of Median Income (Very Low-Income)	\$56,750	\$64,850	\$72,950	\$81,050
80% of Median Income (Lower-Income)	\$90,750	\$103,750	\$116,700	\$129,700
120% of Median Income (Moderate-Income)	\$136,150	\$155,650	\$175,100	\$194,500

(Proposition C)

Arts Departments: The charitable trust departments set forth in San Francisco Charter Section 5.101, including The Asian Art Museum of San Francisco, The Fine Arts Museums of San Francisco and the War Memorial and Performing Arts Center. (Proposition E)

Board or Commission: A policy body that is created and authorized by Charter or ordinance to perform certain government functions and whose members are typically appointed. Some of these bodies are advisory. (Propositions A, F)

California Coastal Act: A State law that governs the use of land in the coastal zone, which includes both land and water areas along the California coastline. (Proposition G)

Base Rent: The fixed amount of rent payable by a tenant to a landlord under a lease. (Proposition H)

Charter: The Charter is the City’s Constitution adopted by the voters of San Francisco, establishing how the City is governed. The Charter can be changed only by a majority of the votes cast in San Francisco. (general)

Charter Amendment: A change to the City’s Charter. The Charter is the City’s Constitution. The Charter can be changed only by a majority of the votes cast. (general)

City Administrator: A person appointed by the Mayor and confirmed by the Board of Supervisors to a five-year term overseeing more than 25 departments and programs. (Proposition E)

Environmental Justice: To protect people from disproportionate and adverse human health and environmental effects and hazards, including efforts to ensure environmental protections for historically disenfranchised neighborhoods and communities. (Proposition B)

Exempt Departments: Should Proposition F Pass, the Mayor’s new authority to independently hire or fire department heads will not apply to several departments, including: Controller, Port, Department of Police Accountability, Board of Appeals, San Francisco Employees Retirement System, Civil Service Commission, Department of Elections, Ethics Commission, Health Service System, Sheriff’s Inspector General, Fine Arts Museums, Asian Art Museum, Department of Human Resources, City Administrator (and underlying departments), Adult Probation, and departments headed by other elected officials. (Proposition F)

Fair Market Value: The price something would sell for on the open market when a buyer and a seller both know all relevant facts and enter the transaction willingly. (Proposition J)

Fiscal Year: The City’s 12-month budget period, starting July 1 and ending June 30 of the following calendar year. (general)

General Fund: The part of the City’s budget that can be used for any City purpose. Money for the General Fund comes from taxes and fees on properties, businesses, sales and other sources. (general)

Initiative: A proposition placed on the ballot by voters. Any voter may place an initiative on the ballot by gathering the required number of signatures of registered voters on a petition. (general)

Local Business Utilization: The use of certain economically disadvantaged independent licensed businesses continuously operating within the City. (Proposition E)

Municipal Railway (Muni): A Division of the San Francisco Municipal Transportation Agency (SFMTA). SFMTA is the City Department responsible for the management of all ground transportation in San Francisco, including the Muni, parking and traffic, pedestrian and bicycle safety, and the regulation of taxis. (Proposition H)

Obsolete: No longer in use or no longer useful.
(Proposition A)

Ordinance: A local law passed by the Board of Supervisors or by the voters. (general)

Parcel Tax: A tax that is based on a flat fee for each unit of real estate property. (Proposition H)

Policy: A high-level overall plan embracing the general goals and acceptable procedures of a government body.
(Proposition D)

Procurement: The process by which the City acquires goods, services, or construction, including the planning, solicitation, evaluation, negotiation, and award of contracts, as well as the administration of those contracts.
(Proposition E)

Property Tax: A tax assessed by the City on buildings and land. (general)

Proposition: A measure that is submitted to the voters for approval or disapproval. (general)

A – Charter Changes Affecting Various City Departments and Commissions

Shall the City amend the Charter to align it with how some City departments currently operate, change some processes, eliminate or reorganize certain commissions and advisory bodies, and require the Board of Supervisors to amend voter-approved laws to enact some of these changes?

YES	☐
NO	☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The Charter is the City’s constitution and establishes the organization, powers, and responsibilities for many City departments. The Charter and other voter-approved laws also create many City commissions and advisory bodies and describe their powers, duties, membership and removal rules, and reporting requirements.

Over time, some of these laws have become obsolete.

The Charter and most laws passed by the voters can only be changed with voter approval.

The Proposal: Proposition A would align the Charter with how some City departments currently operate, change some processes, and eliminate or reorganize certain commissions and advisory bodies. Proposition A would require the Board of Supervisors to amend voter-approved laws to enact some of these changes.

Proposition A would:

- change the language of the Charter to reflect how some City departments currently operate in order to clarify responsibilities and update rules, procedures, and reporting requirements.
- change some processes. For example: allowing legal settlements to be approved by resolution instead of by ordinance.
- require a task force to meet every ten years to recommend changes to commissions.
- eliminate or reorganize certain commissions and advisory bodies by, for example: eliminating some commissions and advisory bodies, combining and renaming some advisory bodies, and moving some commissions and advisory bodies from the Charter into the Municipal Code.

A “YES” Vote Means: If you vote “yes,” you want to amend the Charter to align it with how some City departments currently operate, change some processes, eliminate or reorganize certain commissions and advisory bodies, and require the Board of Supervisors to amend voter-approved laws to enact some of these changes.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller’s Statement on “A”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition A:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would have a moderate impact on the cost of government, saving \$365,000 to \$450,000 annually. Additional costs and savings are dependent on the decisions that the Mayor and Board of Supervisors make through the normal budget process.

The proposed Charter amendment (1) modifies boards, commissions, and advisory bodies; (2) changes departmental operations and reporting requirements; (3) changes how the Board of Supervisors must approve settlements or dismissals of legal proceedings recommended by the City Attorney; (4) removes provisions allowing disciplinary action against non-Police and Fire striking employees; and (5) makes other edits and changes to the Charter and past voter-approved ordinances. The Charter amendment may reduce required staff time to support boards, commissions, and advisory bodies—freeing staff to work on other government functions.

The proposed Charter amendment creates cost savings ranging from \$365,000 to \$450,000 annually by eliminating

The above statement is an impartial analysis of this measure. Arguments for and against this measure immediately follow.
The full text begins on page 148. Some of the words used in the ballot digest are explained starting on page 62.

the Sanitation and Streets Commission, Public Works Commission, and the Street Artists and Craftsmen Examiners Advisory Committee. The Sanitation and Streets Commission and Public Works Commission shared two full-time staff members with annual costs of \$336,000.

Convening the Commission Streamlining Task Force (CSTF) every ten years would require staff to implement and administer the CSTF, including conducting analyses, writing public reports, and holding public meetings. The proposed Charter amendment removes the existing requirements for the Budget and Legislative Analyst to prepare a report and the City Attorney to prepare a draft Charter amendment implementing the CSTF's recommendations from CSTF's mandate. For context, convening the CSTF in 2025 required approximately 5,900 hours of staff time.

Additional costs and savings are dependent on the decisions that the Mayor and Board of Supervisors make through the normal budget process. For example, the proposed Charter amendment removes the restriction on compensating Youth Commission members which may lead to future costs, likely ranging from \$5,000 to \$85,000 annually, should policymakers seek compensation for the members. Certain appointive boards and commissions pay stipends to the commissioners on a per meeting basis ranging from \$25 to \$500 per meeting. Other commissioners are paid between \$100 and \$500 per month. Not all commissioners receive stipends. The amount of cost savings attributed to removing the requirement of hiring an executive secretary for commissions cannot be determined at this time as bodies may opt not to fill the position.

The proposed amendment updates commission responsibilities and membership requirements for remaining commissions and boards but will not directly impact the total cost to government. The amount of staff time needed to support commissions and boards may decrease—freeing staff to work on other government functions, although at a level that cannot be determined at this time.

Note that the proposed amendment would change the duties of the Controller's Office, which has prepared this statement.

How “A” Got on the Ballot

On July 14, 2026, the Board of Supervisors voted 9 to 2 to place Proposition A on the ballot. The Supervisors voted as follows:

Yes: Chen, Dorsey, Mahmood, Mandelman, Melgar, Sauter, Sherrill, Walton, Wong.

No: Chan, Fielder.

Proponent's Argument

MAYOR LURIE & SUPERMAJORITY OF SUPERVISORS SAY YES ON PROP A TO CLEAN UP OUR OUTDATED CHARTER.

About every 30 years, City Hall sets aside its differences to clean up old, broken, and conflicting parts of our city's governing document called the city charter.

Department heads, commissions, and the public suggest changes through a transparent, months-long process. The mayor and a supermajority of the Board of Supervisors agreed on 110 small fixes that will help city government serve you better.

The fixes fall into four categories:

OUTDATED TECHNOLOGY

New technology can make old laws pointless. For example, the current system still requires the city to employ a bookbinder and to publish laws in daily print editions of the Chronicle that no longer exist.

WASTEFUL DUPLICATION

Sometimes two city departments are required to do the exact same job. For example, multiple departments being required to create the same report, forcing employees into busy work that wastes time and money.

ZOMBIE COMMISSIONS

Our bureaucracy has 60 advisory bodies and commissions that can't be updated without a vote at the ballot. After decades the charter can end up with zombie commissions that serve no purpose. For example, the Sanitation and Streets Commission oversees a department that doesn't exist, and the charter still references a Parking Authority that voters removed a decade ago.

CONFUSING OR BADLY WORDED LAWS

Lawmakers sometimes make typos and mistakes when writing legislation, leaving behind laws that are confusing or just don't make sense. Prop A cleans up some of the worst examples.

VOTE YES ON PROP A THE CITYWIDE GOOD GOVERNMENT CONSENSUS MEASURE

Mayor Daniel Lurie
Board of Supervisors President Rafael Mandelman
Supervisor Alan Wong
Supervisor Bilal Mahmood
Supervisor Chyanne Chen
Supervisor Danny Sauter
Supervisor Matt Dorsey
Supervisor Myrna Melgar
Supervisor Steven Sherrill
State Senator Scott Wiener
Assemblywoman Catherine Stefani
Assemblyman Matt Haney

Rebuttal to Proponent's Argument

A love letter to San Francisco

What makes San Francisco special? Is it the views, the hills, the parks, the food, the victorians? A big part of what is special about San Francisco is San Franciscans. We are active and informed. We stand up for what we believe in! We get involved in the things we are passionate about. We believe in flourishing democracies. Prop A is taking a lot of that away.

A healthy democracy requires a balance of power. A healthy government has plenty of citizen participation. Debate leads us to the best answers. These are all reasons to vote No on A.

Our current city government as represented by our elected officials is primarily monolithic, representing monied and corporate interests, whether couched in suave niceties or smug indifference.

They are trying to take away much of what makes San Francisco special. They all go along with each other, no matter how bad the idea is, as long as Trump's billionaires benefit.

When you boil it down, today's San Francisco needs to protect people power more than ever.

Reject the power grab. No SF Kings.

Vote No on A and while you're at it, Vote No on D E and F.

Coalition on Homelessness

Opponent's Argument

The charter should be improved, but not at the expense of transparency, and checks on government power. There are grievous mistakes in Prop A that threaten participatory democracy by removing commissions put in place by voters.

Take independent oversight for November 2018 Proposition C. The measure allows the Board of Supervisors to remove independent oversight with a majority vote. Prop C, "Our City, Our Home", is a deeply vetted people's initiative placed on the ballot by Coalition on Homelessness alongside over 700 housed/unhoused volunteers and supported by 215,491 voters. It is a tax on mega corporations to fund homeless solutions. Due to careful planning by the oversight body, the fund has housed over 8,400 people, including 2,800 children, thousands prevented from becoming homeless, and receiving behavioral health treatment services.

Rising rents up and down the west coast have skyrocketed homelessness. Unlike west coast cities without a local revenue measure, SF has seen a steady decline in street homelessness. Portland saw an enormous 67% increase and San Diego a 26% increase in 2024. SF was poised to see exploding homelessness due to the pandemic, but planning by the oversight body staved that off.

While Prop C has been wildly successful, progress is at risk. Rising rents create a dire need for using funds to permanently solve and prevent homelessness. The oversight body is charged with digging into data and centering unhoused people's needs including hidden needs of homeless children. Each year they struggle against Mayoral Administrations who favor ruling by sound bites, and shiny failed quick fixes over data driven proven solutions.

Prop A attempts to silence the voices of homeless people and their allies that challenge power, and this particular body was targeted only because of its effectiveness in doing so.

No on A.

Coalition on Homelessness

Rebuttal to Opponent's Argument

Prop A is a good government housekeeping measure that cleans up and modernizes San Francisco's lengthy, outdated charter to serve you better.

Currently five separate, overlapping commissions oversee homeless services in San Francisco. None of them are removed by Prop A.

But right now, even small administrative updates to some of these commissions — like adjusting how often they meet, or the qualifications of their members — have to go before voters as a ballot measure.

Making such routine updates should not be delayed through an entire election cycle or require hundreds of thousands of dollars in campaign costs. Prop A lets the Board handle those small fixes through ordinary legislation instead.

Requiring a citywide election to fix a typo or fix outdated language isn't democracy, it just makes City Hall less accountable for delivering results for voters.

Join us as we make San Francisco's charter serve you better!

VOTE YES ON PROP A — THE GOOD GOVERNMENT CONSENSUS MEASURE

*Board of Supervisors President Rafael Mandelman
Mayor Daniel Lurie*

No Paid Arguments In Favor of Proposition A Were Submitted

Paid Arguments Against

Commission Reform Really SPUR's "*Charter for Change*"

Billionaires sought "**Proposition A**" after losing 2024's Board and Commission reform "*Proposition D*" ballot measure to "*Proposition E*." Sore losers, they nevertheless managed stacking the resulting "*Commission Streamlining Task Force*" with Mayor Lurie's staff and SPUR board members.

The Task Force developed an anti-democratic, 166-page Trumpian "**Project 2025**"-style commission reform Charter Amendment, so onerous it was split into **Propositions "A," "D," "E,"** and "**F.**" The Board of Supervisors placed portions into "**Proposition A's**" 138-page Charter Amendment by a 9-to-2 vote.

It stipulates often body-unique qualifications to serve on specific boards, commissions become merely "*desired*," **not** required. City Supervisors won't be **bound** to specific qualifications when making appointments, but should take them "*into account*." Political patronage appointments cronyism will mushroom!

"**Prop. A**" alters membership qualifications to the "*Sunshine Ordinance Task Force*" (SOTF) — San Francisco's voter-approved, independent open government transparency watchdog, a **regulatory body**. A former Supervisor Mandelman campaign staffer and a former Lurie aide seek appointments to the SOTF. Their primary qualifications?: Being former staff.

Read my investigative article (www.westsideobserver.net/sotf) on how Ordinance 99-66 has, and "**Prop. A**" will, worsen the SOTF's recent shutdown.

"**Prop. A**" removes the requirement Boards and Commissions prepare annual reports, eliminating transparency for San Franciscans and City Supervisors! There's other buried poison.

It was in Lurie's and Supervisor's interests to abandon this **authoritarian, anti-democratic** Commission "*reform*" months ago. Instead, they dug political ditches, fell in, and kept digging. "**Prop. A**" is like giving matches to pyromaniacs!

Also read my paid arguments **against** Propositions "D" and "F."

"**Prop. A**" dismantles wholesale, citizen-involved democracy in San Francisco!

Save your box of matches; maintain our vigilant democracy. **Vote "Hell No!" on these four Charter Amendments.** They aren't "*government streamlining efficiencies*." **They're SPUR's "*Charter for Change*"!** (<https://www.spur.org/publications/policy-brief/2025-11-10/charter-change>)

Patrick Monette-Shaw
Columnist, *Westside Observer**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Patrick Monette-Shaw.

Members of the Public Are Welcome to Observe Election Processes

The Department of Elections operates in an open and transparent manner.

Anyone may watch us conduct any election and provide feedback.

There are several ways to observe election processes. You can:

- View many activities via our live streams at **sfelections.gov/observer**.
- Observe activities at our office in City Hall and warehouse at Pier 31.
- Join our official election observer panel.
- Watch activities at polling places and the City Hall Voting Center.

To see what we are doing and when we are doing it, view our Calendar of Observable Activities at **sfelections.gov/observer**, or scan this code:



B – Establishing a Municipal Finance Corporation and a Public Bank

Shall the City amend the Charter to authorize the City to establish a municipal finance corporation and a public bank?

YES	☐
NO	☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: A municipal finance corporation (MFC) is a government-owned non-profit corporation that makes loans but does not take deposits. A public bank is a government-owned non-profit corporation that both makes loans and takes deposits.

There is no local law authorizing the City to create a municipal finance corporation or a public bank.

The Proposal: Proposition B would amend the City Charter to authorize the City to establish a municipal finance corporation if the City has sufficient funding and resources. After three years of operation, the municipal finance corporation may become a public bank.

The MFC would make loans but would not take deposits. If the MFC becomes a public bank, the public bank would make loans and also take deposits.

The MFC and public bank would provide services to support:

- affordable housing development,
- affordable homeownership,
- small business development,
- environmental sustainability, and
- environmental justice.

These services would be available to individual City residents and to projects and businesses located in the City.

Under Proposition B, the MFC and public bank would each be governed by a board of directors. Each board would be appointed and overseen by its own oversight

commission. The members of each oversight commission would be appointed by the Board of Supervisors, Mayor, Treasurer-Tax Collector, Controller, and City Attorney.

A “YES” Vote Means: If you vote “yes,” you want to authorize the City to establish a municipal finance corporation and a public bank.

A “NO” Vote Means: If you vote “no,” you do not want to authorize the City to establish a municipal finance corporation and a public bank.

Controller’s Statement on “B”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition B:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would not directly impact the cost of government as the Charter amendment does not require the City to create a Municipal Finance Corporation (MFC) that could transition into a Public Bank. However, if the City moves forward with establishing a MFC and subsequently a Public Bank, as authorized by the proposed Charter amendment, the costs would be significant, ranging from approximately \$310 million to \$460 million over an eight-year period, according to 2023 Reinvestment Working Group (RWG) estimates, which could be significantly higher or lower depending on interest rates and changing economic conditions.

The proposed Charter amendment sets up the governance framework for a new MFC and Public Bank. If the Charter amendment is approved, and the Treasurer-Tax Collector determines that adequate funding exists, the MFC and an MFC Oversight Commission may be established. In the

event the MFC becomes financially sustainable, which is not guaranteed, the MFC may request state and federal regulatory approval to transition to a Public Bank.

The funding required to set up an MFC could cost approximately \$4 million annually for approximately one year or longer, depending on when the MFC is set up, excluding capitalization costs. These costs include the cost to hire staff, staff salaries, legal services, supporting professional services, technology procurement and administrative operations.

In 2022, the County Local Area Formation Commission convened the RWG to develop a business and governance plan to establish a non-depository lending corporation. According to a 2023 report of the RWG, costs to capitalize and fund the MFC could cost approximately \$26 million in the first year and increase to \$30 million annually by the third year for a total of \$90 million for the first three years of the MFC. The RWG explored a variety of capitalization and funding levels including cumulative totals of \$45 million to \$242 million over the first three years. Capitalization and funding costs could be financed by City grants and forgivable loans which are unlikely to be repaid. The capitalization and funding costs are choices dependent on future decisions by the MFC Board of Directors and future policy and budget decisions by the Mayor and the Board of Supervisors. The costs associated with establishing an MFC may be significantly higher or lower than the 2023 RWG estimates.

In the event the MFC becomes financially sustainable and receives regulatory approval to operate as a depository bank, it may become a Public Bank. The cost to operate a Public Bank would be approximately \$80 million in year 4, decreasing to approximately \$30 to \$40 million annually for a total of approximately \$220 million over years four through eight. These costs include capital funds and operating costs, including staff salaries, office leases, technology, and administrative costs. The Public Bank may use its income to fund its operating costs if available, requiring less funding appropriated by the City.

Finally, the MFC and Public Bank would require an MFC Oversight Commission or Bank Oversight Commission which could cost between \$550,000 to \$600,000 annually for staff salaries, commissioner stipends, and operating costs. There is a high degree of uncertainty in the cost to government of establishing an MFC or Public Bank. There may be significant unforeseen costs to the City in the event the Public Bank is not financially sustainable.

The proposed Charter amendment gives a high degree of independence to the Oversight Commissions and the Board of Directors, such that the City would have limited control over the MFC's or Public Bank's financial outcomes and decisions on how funds would be used.

Note that the proposed amendment would change the duties of the Controller's Office, which has prepared this statement.

How "B" Got on the Ballot

On July 7, 2026, the Board of Supervisors voted 9 to 2 to place Proposition B on the ballot. The Supervisors voted as follows:

Yes: Chan, Chen, Dorsey, Fielder, Mahmood, Mandelman, Melgar, Sauter, Walton.

No: Sherrill, Wong.

Proponent's Argument

Prop B will ensure that a San Francisco Public Bank is fiscally responsible, independent from political influence, and serves San Francisco's priorities.

A Public Bank puts the people of San Francisco over private profits to finance the things we need. The shareholders would be the people of San Francisco, so we benefit not only from our bank's profits but also the San Francisco projects it supports.

Prop B is a crucial step in creating a Public Bank. A Public Bank will provide affordable loans for:

- Affordable housing development,
- Affordable homeownership,
- Small business development,
- Environmental sustainability, and
- Environmental justice.

Prop B ensures that the Public Bank will be run by banking professionals, not politicians, and creates a public oversight body, so every San Franciscan has the opportunity to monitor and provide input. A public bank is about making sure San Franciscans' money benefits San Franciscans.

Passing Prop B now allows us to take advantage of the time-limited state law that enables local cities to create public banks. A public bank creates a powerful new tool to address some of our city's most urgent priorities. Public banking is a proven development model. Globally 25% of banking assets are held in public banks, and Germany holds 40% of its banking assets in public banks.

Prop B establishes the purpose and structure of a public bank. Prop B is not a tax, and will not raise taxes for San Franciscans.

*The San Francisco Foundation
San Francisco Public Bank Coalition
District 11 Supervisor Chyanne Chen
District 5 Supervisor Bilal Mahmood
District 7 Supervisor Myrna Melgar
District 8 Supervisor Rafael Mandelman
District 9 Supervisor Jackie Fielder
District 10 Supervisor Shamann Walton
San Francisco Labor Council
San Francisco Climate Emergency Coalition
Affordable Housing Alliance
San Francisco Tenants Union*

Rebuttal to Proponent's Argument

San Francisco's financial support for housing, infrastructure and small business is limited for good reason. Proposition B empowers the far left to dismantle and politicize those limits.

A "public bank" is a politically directed lending machine that puts billions of taxpayer dollars at risk. The Controller estimates \$310-\$460 million just to capitalize and operate it. Once the Bank takes deposits, the City can park rainy-day funds and investment-pool reserves inside it, multiplying the risk by lending and leverage. The Bank can issue securities bought by the City itself. High-risk loans inevitably go bad; the losses land on taxpayers.

Public banking has a litany of failure. The Los Angeles Community Development Bank collapsed under a mountain of bad loans. Any bank whose mission is climate-justice, racial preferences and loans refused by private lenders is fundamentally unsound. California law requires FDIC insurance; no public bank has successfully obtained it while pursuing this radical agenda.

Nothing in Proposition B meaningfully checks the Bank's political priorities. Pressure will build for reparations-style lending and loans to non-citizens, unleashing a smear of red ink across the general fund.

This is the same socialist model in Congresswoman Rashida Tlaib's Public Banking Act, co-sponsored by Ilhan Omar and the Squad.

Don't be a piker.

Vote No on Proposition B.

Larry S. Marso, Esq.

Mr. Marso, a Nob Hill resident, ran financial institution M&A practices at two Wall Street investment banks, represented banks and insurers as a New York attorney, and served as an economic analyst at the Federal Reserve Board.

Opponent's Argument

Vote No on Proposition B.

Proposition B asks San Francisco voters to create a City Hall-controlled public bank and municipal finance corporation — without any dedicated funding, without proven demand, and at a time when the City already faces massive budget shortfalls.

Supporters claim this will unlock affordable housing and small business lending. In reality, it creates a new politically appointed entity with the power to take significant financial risks using public resources. The City's own working group previously estimated hundreds of millions of dollars would be needed to capitalize such an institution. Proposition B provides none of that capital. It simply builds the structure and leaves taxpayers holding the bag later.

San Francisco already has tools to support housing and small businesses through existing programs, nonprofit lenders, and credit unions. Creating a new City-controlled bank adds bureaucracy, political risk, and potential conflicts of interest without solving the underlying problems of high costs and slow permitting.

We cannot afford another ambitious, underfunded experiment. Vote No on Proposition B.

— No on Prop B – San Franciscans for Fiscal Responsibility
— *Leslie Huang, Dorothy Joan Leone, Stephanie Jeong, and Kathleen Louise Trewin*

Rebuttal to Opponent's Argument

Proposition B is a simple measure. It establishes a San Francisco Public Bank, which could help fund housing, green energy, and small businesses, and sets rules to prevent the bank or its funds from being misused.

As the opponents point out, **Prop B is NOT a tax and will not raise taxes on residents or businesses.**

Opponents claim that the bank would be rife with political instability and risky lending, but **that is untrue**. Instead, it would be the most regulated bank in America, subject to all typical banking regulations of private banks, in addition to California regulations and the oversight systems of Prop B.

Prop B empowers San Francisco to pursue funding for our bank from state, federal, and philanthropic sources. Opportunities like the Greenhouse Gas Reduction Fund in Biden's Climate bill present billions of dollars San Francisco could access. These are opportunities we have missed out on because we do not have a MFC or Public Bank. **We must pass Prop B to be ready for these generational opportunities.**

A Public Bank would support our existing nonprofit, city, and credit union ecosystem, making the most efficient use of taxpayer money.

We can't afford to miss this opportunity to build an economic engine to stabilize San Francisco and make sure money is going where it's needed, for housing, green energy, and supporting our small businesses.

*Matt Dorsey, Supervisor
Chyanne Chen, Supervisor
San Francisco Labor Council
San Francisco Public Bank Coalition
The San Francisco Foundation*

Paid Arguments in Favor

Social housing is permanently affordable, community owned, mixed-income housing that's designed to stay off the speculative market—giving working San Franciscans stable homes at rents they can actually afford, for generations.

One of the major impediments to actually building social housing is the cost of borrowing. A Public Bank would be an excellent tool to provide reasonable loans to help build the housing San Francisco families desperately need.

Join social housing advocates and vote Yes on B!

San Franciscans for Social Housing
sfsocialhousing.org

Dylan Hirsch-Shell, Co-founder
Honest Charley Bodkin, Co-founder

The true source(s) of funds for the printing fee of this argument: Dylan Hirsch-Shell.

Passing Prop B is a prudent measure that provides key options to the city without wasting taxpayer money

Right now, San Francisco has a unique opportunity to take advantage of a state law allowing municipalities to establish Public Banks, by passing Prop B. Public Banks are a useful tool to help build affordable housing, invest in green infrastructure, and support our small businesses. If San Francisco ever wants to be able to capitalize on the benefits that a Public Bank brings, the best thing to do is pass Prop B this year. Public Banks are a fiscally responsible way to make the most efficient use of taxpayer money. A public bank can help reduce pressure to raise taxes and issue bonds by providing steady, long term financing for core public infrastructure.

Prop B is not a tax and will not result in additional costs for The City.

Malia M. Cohen, California State Controller
Matt Haney, Assemblymember
Rafael Mandelman, President, San Francisco Board of Supervisors
Myrna Melgar, Supervisor
Matt Dorsey, Supervisor
Bilal Mahmood, Supervisor

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Prop B is the thoughtful, safe, and fiscally responsible way to create a public bank

Public banks solve many problems and provide tremendous value for communities across the world. 25% of the world's banking assets are held in public banks because they work well at reinvesting public funds to support development. But in order to deliver these massive benefits they must remain politically independent and committed to fiscal responsibility. Prop B ensures that our public bank is established with robust governance and best practices.

Prop B requires that our Public Bank

- Has an independent board of directors who make all key decisions.
- Has an oversight committee with appointments spread across elected offices.
- Has multiple safeguards to ensure no single politician can exercise influence on lending decisions.
- Be run by professional bankers working for the people of San Francisco, not politicians.
- Partner with experts in local finance: local credit unions, Community Development Financial Institutions (CDFIs), and community banks.

Prop B creates a Public Bank that all San Franciscans can trust.

The San Francisco Foundation
San Francisco Public Bank Coalition
Malia M. Cohen, California State Controller

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

SF small businesses say vote Yes on B!

Small businesses are the backbone of our city. We represent your favorite restaurants and bars, laundromats and pet stores, grocers and retailers.

But running a business in San Francisco is hard, and dealing with big banks who don't care about small businesses makes it harder.

The Public Bank created by Prop B will provide affordable loans and replace the predatory lending and personal credit card debt small business owners too often must use to pay staff and keep the lights on in tough times.

San Francisco's Small Businesses say Yes on B.

*Small Business Forward**Sensitive Vintage**Ritual Coffee**Lynne Angel, Owner, El Rio**Justin Dolezaal, Co-Owner, Bar Part Time**Nicholas Parker, Owner, Mercury Cafe**Dontaye Ball, Owner, Gumbo Social**Dianne Ramirez, Owner, Bangin Hair Salon**Sean Mabry, Co-Owner, Mothership**Yolanda Porrata, Owner, Vera Skin Studio**Isabella Hill, Co-Owner, Happy House**Julian Ensworth, Managing Partner, Horsies Bar**Jasjit Ahluwalia, Owner, The Laundry Corner*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Protect our environment and fight climate change.**Vote Yes on B**

San Franciscans want to address the existential threat of climate change and a legacy of environmental racism. But will the city follow through? Wall Street banks are not going to provide that kind of funding, as they double down on financing fossil fuels under Trump.

A public bank can provide loans to unlock green energy, EV charging, toxic waste cleanups, and more.

SF is a leader in environmental sustainability. The City's Climate Action Plan commits us to bold goals, and recommends a public green bank as a way to achieve them.

Vote Yes on B to stand up for the environment.

*350 San Francisco Action**San Francisco League of Conservation Voters**San Francisco Climate Emergency Coalition**SF Policy Action Team / Climate Reality Project**Marie Harrison Community Foundation**Edward Wright, BART Board Vice President*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

If we want more affordable housing, we need Prop B

Rents are skyrocketing in San Francisco, it's a crisis and it's time to bring every tool in the toolkit forward to make this city a place where everyone can thrive.

17,000+ affordable housing units have been approved in San Francisco, but cannot be built because there is no funding. A Public Bank will be a critical tool to help provide that financing, so we can build the affordable housing that San Francisco families desperately need.

The bank can provide loans at more affordable terms than Wall Street banks, can help acquire and preserve affordable housing, and provide flexible gap financing to unlock stalled projects and maximize San Francisco's housing opportunities.

Join us and vote Yes on B!

*San Francisco Tenants Union**Council of Community Housing Organizations**San Francisco Community Land Trust**San Francisco Senior and Disability Action**San Francisco Anti-Displacement Coalition**Affordable Housing Alliance**Race and Equity in All Planning Coalition - San Francisco**The Housing Rights Committee of San Francisco*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Working families in San Francisco need Prop B.

A Public Bank will be a huge benefit for the workers who keep San Francisco going. The bank can provide loans to build workforce housing, and the infrastructure and housing projects it funds will provide good paying jobs during construction and after completion.

A Public Bank can provide badly needed financing for our streets, transit, and other public projects.

Prop B also protects workers by ensuring that companies with a history of labor law violations will not be eligible for loans.

Join workers and vote Yes on B.

*SF Labor Council**National Union of Healthcare Workers**United Educators of San Francisco*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

For a fair and equitable San Francisco, vote Yes on B

The long and ugly history of discrimination by private banks against minority communities is well known. From mortgage loans, to small business loans, we have seen time and again that Wall Street banks have routinely and repeatedly denied us opportunity based on race.

A public bank, with a public, independent board of directors, will help our communities access the loans we need to afford to stay in our homes, keep our small businesses running, and finally make the investments in our communities that have long been denied for racist reasons.

*Faith in Action**San Francisco Latino Task Force**Coleman Advocates for Children and Youth**South of Market Community Action Network (SOMCAN)**La Raza Community Resource Center**People Organizing to Demand Environmental and Economic Rights (PODER)**Marie Harrison Community Foundation**Race and Equity in All Planning Coalition -**San Francisco (REP-SF)**Archbishop Franzo King**Reverend Norman Fong**Shamann Walton, Supervisor**Chyanne Chen, Supervisor**John Avalos, Former Supervisor*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Prop B is the culmination of years of rigorous work:

- In 2017 the San Francisco Public Bank Coalition was founded.
- In 2019, the California State Assembly successfully passed AB 857, the California Public Banking Act, creating **a formal pathway for local jurisdictions** to charter their own public banks to save money, strengthen our local economies, support community economic development, and address our critical infrastructure and housing needs.
- In 2021, the Board of Supervisors passed an ordinance establishing **the San Francisco Reinvestment Working Group** to oversee the formation of a business and governance plan, consisting of the Controller, Treasurer, and technical experts in financial institutions, affordable housing financing, small business lending, environmental justice, and renewable energy.

- The Reinvestment Working Group hired an experienced banking consultant who has started over 100 banks and worked with them to prepare a **Final Governance Plan, Business Plan, and Viability Study for a San Francisco Municipal Financial Corporation and a San Francisco Public Bank**, which were accepted by the Board of Supervisors in 2023.

The years of rigorous work by city leaders across the political spectrum and movement work by advocates have produced this thoroughly vetted plan for a successful Public Bank that forms the basis of this Charter Amendment.

*Art Agnos, Former Mayor**Tom Ammiano, Former Assemblymember**Aaron Peskin, Former President, Board of Supervisors**David Campos, Former Supervisor**Sandra Lee Fewer, Former Supervisor**Jane Kim, Former Supervisor**Eric Mar, Former Supervisor**Gordon Mar, Former Supervisor**Hillary Ronen, Former Supervisor**Edward Wright, BART Board Vice President**Peter Gallotta, SFDCCC Member**Michael Nguyen, SFDCCC Member**Gary McCoy, Former Political Director, Speaker**Emerita Pelosi*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Prop B keeps San Francisco's money working for San Franciscans

San Francisco residents and businesses pay billions of dollars in taxes every year.

Prop B is NOT a tax, and will not raise taxes. It simply provides an option to keep our money here, working for us, rather than in multinational mega banks.

The Public Bank will be equipped to help make home ownership more affordable for SF families, keep our beloved small businesses stable in our neighborhoods, and make the investments we need to protect San Francisco from climate chaos.

The Public Bank will help the city manage taxpayer money efficiently.

Your neighbors say Yes on B!

*Westside Forward**Haight Ashbury Neighborhood Council*

*Richmond District Democratic Club
Excelsior Strong
Stephen Torres, LGBTQ Small Business &
Worker Advocate*
Leah LaCroix, President San Francisco District 11
Democratic Club*
JR Eppler
DJ Brookter*

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Stand up to big Wall Street banks by passing Prop B

Private, multinational mega banks, whose only motivation is shareholder profit, will never be aligned with the priorities of San Franciscans – the things we need to make the city more affordable: building and preserving affordable housing, converting the city to green energy, providing jobs for workers, and supporting local co-ops. That is why we must form a Public Bank in San Francisco – a bank that puts the people’s needs first.

Private corporate banks have supercharged fossil fuel financing under Trump and shamelessly abandoned their climate goals.

They finance war, genocide, and destruction.

They make record profits while workers scrape by and starve.

Enough is enough! The time for a Public Bank is now.

*Democratic Socialists of America – San Francisco
Indivisible SF
Jackie Fielder, Supervisor
Jane Kim, Former Supervisor
Dean Preston, Former Supervisor
John Avalos, Former Supervisor*

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Prop B makes sure our money won’t be used to fund war, oil, or tobacco

The purpose of the Public Bank is to fund and support projects that benefit the people of San Francisco. That is why it is so crucial that Prop B prohibits any Public

Bank loans or support for weapons manufacturing, fossil fuel extraction and refinement, or promotion of tobacco products. Wall Street Banks eagerly lend to the destruction of our planet and its people, it’s important San Francisco have an alternative to our deposits financing death and destruction.

Prop B keeps our money working for the common good.

*Indivisible SF
Reid Coggins, Co-President, Harvey Milk LGBTQ
Democratic Club*
Ajai Nicole Duncan, Co-President, Harvey Milk LGBTQ
Democratic Club*
John Avalos, Former Supervisor
Eric Mar, Former Supervisor*

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

Set the next generations of San Franciscans up for success. Vote Yes on B

Young people who want to stay in San Francisco need housing we can afford, and a planet that we can live on. A Public Bank is crucial for funding affordable housing and affordable homeownership, as well as providing loans for green energy and sustainable infrastructure projects for decades to come.

Yes on B!

*Evolve California
Andrea Gallardo Lopez, Co-President, San Francisco
Young Democrats*
Ernesto Cuellar, Co-President, San Francisco
Young Democrats**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Yes on B, Our City Our Bank.

The three largest contributors to the true source recipient committee: 1. The San Francisco Foundation, 2. Christin Evans, 3. National Union of Healthcare Workers.

No Paid Arguments Against Proposition B Were Submitted

C – Contributions to the Housing Trust Fund

Shall the City amend the Charter to change how the City’s annual contributions to the Housing Trust Fund are set, increase funding and expand programs for affordable housing, and extend the Fund to 2058?

YES ☐

NO ☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The City has a Housing Trust Fund (HTF) to support the creation or preservation of affordable housing and affordable home ownership. Every year, the City provides funding to the HTF, and the annual contribution is adjusted up or down based on changes in the City’s unrestricted General Fund revenue. Last year, the City contributed \$50.8 million to the HTF.

The City may use HTF funds for:

- building, purchasing, and improving affordable housing;
- downpayment assistance loans for households earning up to 120% of Area Median Income (AMI) and for emergency first responders;
- assistance to households earning up to 120% of AMI to improve their housing and avoid housing loss;
- grant programs for specific types of neighborhood improvements; and
- administrative costs.

The Housing Trust Fund that supports these programs is set to expire in 2043.

The Proposal: Proposition C would change how the City’s annual contributions to the Housing Trust Fund (HTF) are set, increase funding and expand programs for affordable housing, and extend the Fund’s expiration date.

- Starting in 2028, the City’s annual contribution would grow based on the greater of either:
 - any increases in local property tax revenue, or
 - the percentage increase in the unrestricted General Fund from the prior year.

The City would increase its contributions to the HTF until the annual contribution meets or exceeds \$125 million. After that, annual increases are capped at 3% based on increases in the General Fund.

The City could pause contributions when a projected City deficit exceeds \$250 million. This threshold would be adjusted each year based on changes in the General Fund.

The City could also reduce contributions by up to 10% during years when the City may use its Rainy Day Reserve.

- Expand affordable housing programs by:
 - increasing funding to create and preserve more affordable housing;
 - raising the household income limit for downpayment assistance loans from 120% to 200% of AMI, and allow the Board of Supervisors to change that limit by ordinance;
 - replacing the grant program for specific types of neighborhood improvements by authorized spending on affordable housing-related infrastructure such as sidewalks, streets, and utilities;
 - extending the Fund’s expiration date from 2043 to 2058.

A “YES” Vote Means: If you vote “yes,” you want to amend the Charter to change how the City’s annual contributions to the Housing Trust Fund are set, increase funding and expand programs for affordable housing, and extend the Fund to 2058.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller's Statement on "C"

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition C:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would have a significant impact on the cost of government of approximately \$6 million in additional General Fund costs starting in Fiscal Year 2028-29, growing over time to approximately \$60 million annually by Fiscal Year 2034-35.

The proposed Charter amendment is projected to increase the existing Housing Trust Fund (Fund) General Fund spending mandate for affordable housing and extends the mandate by an additional fifteen years from 2043 to 2058. A General Fund spending mandate is a voter-adopted spending requirement that directs the government to appropriate funding for specific purposes in future years without identifying a new funding source. For context, voter-adopted spending requirements currently total approximately \$2 billion, or 30%, of the approximately \$7 billion General Fund sources. Extending the life of the Housing Trust Fund and increasing contributions as projected would reallocate funds that would otherwise be available in the General Fund.

The proposed Charter amendment modifies the required funding formula to accelerate the growth of the Fund until the annual contribution reaches \$125 million, likely in Fiscal Year (FY) 2034-2035, at which point the growth of the fund could slow. For context, in FY2024-25, approximately \$50 million was appropriated to the Fund. As compared to projected Fund contributions under current law, the proposed Charter amendment is projected to increase contributions to the fund by approximately \$6 million in FY2028-29 and \$13 million in FY2029-30. In subsequent years, the General Fund cost of the proposal is projected to grow by an additional \$9 million annually, reaching approximately \$60 million in additional growth by FY2034-35, resulting in a total expected contribution of \$125 million in FY2034-35. Without the Charter amendment, the required funding formula is projected to be approximately \$65 million in FY2034-35. The additional \$60 million under the proposed modified funding formula represents the additional money the City would be required to appropriate into the Fund in FY2034-35 and subsequent years. The projected costs above do not assume temporary freezes or reductions in the City's annual contribution to the Fund.

The proposed Charter amendment allows the Mayor or the Board of Supervisors to introduce ordinances during the annual budget process to temporarily freeze or reduce the City's annual contributions. If the City projects a budget deficit exceeding \$250 million, the annual contribution to the Fund may be temporarily frozen at the then-current amount. If the City is authorized to withdraw funds from the City Rainy Day Reserve, the annual contribution to the Fund may be temporarily reduced by up to 10%.

The fund may be used to (1) create, acquire, or rehabilitate affordable rental and ownership housing, (2) provide down payment loans and housing stabilization for qualified households meeting required income levels, and (3) fund housing-related infrastructure, including streetscape improvements. The Charter amendment removes obsolete language regarding (1) past allocations to the Fund, (2) eliminating the Fund before 2013, (3) how the Controller's Office may determine General Fund Discretionary Revenue, and (4) discretion to reduce Fund contributions based on debt service for SB 2113 Affordable Housing Bonds. Additionally, the proposed Charter amendment eliminates the Complete Neighborhoods Infrastructure Grant Program, which has not been funded since FY2019-20.

This proposed amendment is not in compliance with a non-binding, voter-adopted City policy regarding voter-adopted spending requirements. The policy seeks to limit General Fund spending mandates which reduce General Fund dollars that could otherwise be allocated by the Mayor and the Board of Supervisors in the annual budget process. For context, voter-adopted spending requirements currently total approximately \$2 billion, or 30%, of the approximately \$7 billion General Fund sources.

Note that the proposed amendment would change the duties of the Controller's Office, which has prepared this statement.

How "C" Got on the Ballot

On July 14, 2026, the Board of Supervisors voted 11 to 0 to place Proposition C on the ballot. The Supervisors voted as follows:

Yes: Chan, Chen, Dorsey, Fielder, Mahmood, Mandelman, Melgar, Sauter, Sherrill, Walton, Wong.

No: None.

Proponent's Argument

San Francisco's housing crisis is simple: rents and home prices have climbed faster than paychecks, and teachers, nurses, and multigenerational families are being priced out of the neighborhoods they grew up in or serve. Proposition C won't solve that alone, but it renews San Francisco's most significant source of funding for affordable housing.

For over a decade, the Housing Trust Fund has been San Francisco's foundation for building affordable housing, helping first-time buyers purchase a home, keeping first responders in the city they serve, and giving seniors a way to stay in their communities.

Prop C renews the Housing Trust Fund through 2058 and increases its annual funding to \$125 million. Every year we wait, the fund stays capped while rents keep climbing.

Prop C does not raise anyone's taxes. It reallocates money the City already collects, and it is fiscally responsible by design. Funding only grows when the City's own property tax or general fund revenue grows. The City can pause or reduce contributions during a real budget deficit. This is a careful, sustainable plan, not a blank check.

That is why Prop C is a true consensus measure. It was placed on the ballot unanimously by the Board of Supervisors and supported by labor and housing advocates across the city.

Prop C will build and rehabilitate affordable housing, fund down payment assistance for teachers and first responders, provide rent assistance to prevent seniors from being displaced, convert vacant lots into real housing, and fund needed infrastructure.

Every dollar is legally dedicated to affordable housing and subject to independent audit.

This is the responsible way to keep San Francisco affordable. Vote YES on Prop C.

www.HomesforSF.com

Mayor Daniel Lurie

Supervisor Myrna Melgar

Assemblymember Catherine Stefani

*Rebecca Foster, CEO Housing Accelerator Fund**

Malcolm Yeung, CEO Chinatown Community

*Development Center**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

Rebuttal to Proponent's Argument

The Yes campaign touts the long list of things Prop C could fund. **That's nothing to brag about.** Prop C gives the Fund more money, more responsibilities, and more eligible recipients — spreading taxpayer dollars across an ever-broader mission. The more things a program is asked to do, the harder it is to prioritize, measure results, and hold anyone accountable.

The promised "independent audit" is no substitute for performance standards. Prop C requires no minimum number of new homes, no maximum cost per unit, and no cost-effectiveness benchmark. An audit after the money is spent is no substitute for measurable results written into law.

Before committing billions in taxpayer dollars through 2058, voters must demand measurable results, cost accountability, and fiscal discipline.

Vote NO on Prop C.

The San Francisco Republican Party

Opponent's Argument

It Couldn't Do the Job It Had. Now It Wants a Bigger One.

San Francisco's Housing Trust Fund was established in 2012 to help working families afford housing. It has failed. Local reporting calls the fund "a letdown" and "an existing program that has yielded little." Since the fund's creation, the cost to build a single affordable unit in San Francisco has roughly doubled, running close to \$1 million per unit today.

Instead of a fix, this measure doubles the fund's size, locks it in for 30 more years, and stretches it thinner:

- Raises the homebuyer income cap from 120% to 200% of "median income" — up to \$402,000 for a family of four, in a city where the real median household income is \$141,000.
- Let's the Board of Supervisors raise that cap again anytime, with no vote required.
- Opens the fund to new uses like city-owned "social housing" and co-ops, all competing for the same dollars.
- Swaps a specific, accountable neighborhood fund for a vague, open-ended one.

Nothing in the measure requires a single additional unit to get built. There's no unit target. No benchmark. Meanwhile, San Francisco remains tens of thousands of units short of its own housing goals.

A program that already failed at one job doesn't get fixed by giving it five new jobs and more money. Fix what's broken first.

Vote No on C.

The San Francisco Republican Party

Rebuttal to Opponent's Argument

Proposition C renews and expands a program San Francisco voters already created: the Housing Trust Fund, dedicated to building affordable homes, helping teachers and first responders become homeowners, and keeping seniors from losing their housing.

It includes real fiscal guardrails. The City can freeze contributions during a genuine budget deficit and reduce them by up to 10 percent in years when it draws on the Rainy Day Reserve.

Funding only grows when the City's own property tax or general fund revenue grow. This is not a blank check. It is a formula built for both growth and restraint. Every dollar is legally restricted to affordable housing, homeownership assistance, and rent relief.

San Francisco's housing costs can't wait. Teachers, nurses, and multigenerational families are being priced out right now, and the fund that helps them is set to run out.

That is why Prop C earned support from elected leaders, organized labor, and housing advocates citywide. It is the responsible, accountable way to keep this program going without raising anyone's taxes.

Vote YES on Prop C.

Supervisor Myrna Melgar

Assemblymember Matt Haney, Chair of the Housing and Community Development Committee

Bill Barnes, Non-Profit Housing Association of Northern California

*Nicholas Lake, Teacher**

*Mario Flaherty, Secretary, San Francisco Firefighters Local 798**

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Paid Arguments in Favor

Social housing is permanently affordable, community owned, mixed-income housing that's designed to stay off the speculative market—giving working San Franciscans stable homes at rents they can actually afford, for generations.

The biggest barrier to building social housing is funding. Expanding the Housing Trust Fund will provide funding that could be used to build the housing that San Francisco families desperately need.

Join social housing advocates and vote Yes on C!

San Franciscans for Social Housing
sfsocialhousing.org

Dylan Hirsch-Shell, Co-founder
Honest Charley Bodkin, Co-founder

The true source(s) of funds for the printing fee of this argument: Dylan Hirsch-Shell.

Women Are Voting Yes on the Housing Trust Fund Renewal

We're the teachers watching our students' families get priced out mid-year. We're the nurses working double shifts who still can't afford a down payment. We're the daughters caring for aging mothers who fear losing the apartment they've called home for thirty years. Housing instability falls hardest on women, especially mothers raising kids alone, seniors on fixed incomes, and caregivers holding families together.

That's why the Housing Trust Fund matters so much to us. For over a decade, it's built affordable homes, kept seniors housed, and helped first-time buyers like nurses, teachers, and first responders put down roots. Now it's set to expire, right as the crisis peaks.

Women built this city's schools, hospitals, and neighborhoods. We deserve to stay in it. Join mothers, caregivers, and working women across San Francisco: vote Yes on the Housing Trust Fund Renewal this November.

Assemblymember Catherine Stefani
Supervisor Jackie Fielder
*Nancy Tun, Chair, San Francisco Democratic Party**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

San Francisco's Asian Community Leaders Support Prop C

Our neighborhoods have long been anchored by multi-generational households with grandparents, parents, and children sharing a home, a community, and a future. Rising housing costs threaten that tradition. The Housing Trust Fund has spent over a decade keeping families together and rooted in San Francisco, but that funding is set to expire. This November, we can make the commitment to continue keeping families together and communities strong. Without raising taxes.

We need Prop C. Renew the Housing Trust Fund with no new taxes.

California State Treasurer Fiona Ma, CPA
Supervisor Chyanne Chen
*Mike Chen, Commissioner, Planning Commission**
Malcom Yeung, CEO, Chinatown Community Development Center

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The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

Latinos Support Prop C

For Latino families, housing is more than a roof. It is the foundation for family, stability, and community. Affordable housing helps parents remain close to their children's schools, allows seniors to age near loved ones, and gives multigenerational families the opportunity to stay rooted in San Francisco.

The Housing Trust Fund has supported affordable homes, homeownership opportunities, and housing stability for residents who help make our neighborhoods strong. As our city confronts rising housing costs, continued investment can help preserve the diversity, culture, and community connections that have shaped San Francisco for generations. Please vote Yes on C.

Supervisor Myrna Melgar
Supervisor Jackie Fielder
Assessor-Recorder Joaquín Torres

The true source(s) of funds for the printing fee of this argument: San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

LGBTQ+ Leaders for Prop C

Rising housing costs threaten the community fabric that makes this city home for queer elders, families, and longtime residents alike.

The Housing Trust Fund has spent over a decade building affordable homes, funding rental assistance, and keeping vulnerable tenants housed. Without renewal this November, San Francisco loses one of its primary affordable housing tools at the worst possible moment.

Vote Yes on Prop C for homes we can afford, without new taxes.

President Rafael Mandelman
Supervisor Matt Doresy
Castro LGBTQ Cultural District

The true source(s) of funds for the printing fee of this argument:
 San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

VOTE YES ON C — AFFORDABLE HOUSING FUNDING SAN FRANCISCO CAN COUNT ON

More than 17,000 affordable homes in San Francisco are already approved and ready to build. Not one is waiting on permits or zoning. Every one of these projects is waiting on money.

Proposition C changes that.

Prop C strengthens the Housing Trust Fund that San Francisco voters created in 2012 and grows it to as much as \$125 million a year for the next 30 years. That is the difference between a plan and a promise.

Prop C does not raise your taxes. It dedicates a share of the growth in property assessment revenue the City already collects to the homes our neighbors need.

Prop C writes that commitment into the City Charter, so it holds steady year after year, no matter who is in office. Affordable housing finally gets a place in San Francisco's budget it can count on.

As federal and state support shifts, San Francisco has a chance to stand on its own — and the means to do it. Prop C builds a dependable, local source of funding for the people who make this city work: teachers, nurses, restaurant workers, seniors on fixed incomes, families who have been here for generations, and neighbors moving off the street and into a home of their own.

San Francisco has always been a city people fight to stay in. Prop C is how we make room for them.

Vote YES on C.

Council of Community Housing Organizations
Build Affordable Faster California
TODCO

The true source(s) of funds for the printing fee of this argument:
 San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

SF Housing Advocates: Yes on C

San Francisco needs more homes, not less investment. The Housing Trust Fund helps build and preserve affordable housing, support first-time buyers, and keep longtime residents in their communities.

Renewal extends this proven tool through 2058, increases funding without raising taxes, and creates more homes for the teachers, nurses, first responders, families, and seniors who make San Francisco strong.

Supervisor Bilal Mahmood
Supervisor Danny Sauter
Yimby Action

The true source(s) of funds for the printing fee of this argument:
 San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

SF Democrats for Prop C

Affordable housing is the foundation of an inclusive, culturally vibrant, and diverse San Francisco. Prop C builds on the city's ongoing efforts to ensure that San Francisco remains a place where people from all backgrounds can afford to live, work, and thrive. Vote Yes!

San Francisco Democratic Party

The true source(s) of funds for the printing fee of this argument:
 San Franciscans for Affordable Homes, Sponsored by the NPH Action Fund.

The sole contributor to the true source recipient committee: NPH Action Fund Political Issues Committee.

No Paid Arguments Against Proposition C Were Submitted

D – Changes to Ballot Measure Process

Shall the City amend the Charter to increase the requirements for signature initiatives from 2% to 8% of registered voters in San Francisco (currently from about 10,600 to about 42,500 signatures), increase the requirements for calling special elections, allow signature initiatives to be withdrawn before an election, and remove the ability of a minority of Board of Supervisors members or the Mayor to place measures on the ballot?

YES ☐

NO ☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The San Francisco Board of Supervisors (Board) has 11 members. A measure can be either an ordinance to change the law or a declaration of policy. Under the City Charter, measures can be placed on the ballot in several ways, including:

- By a majority vote of the Board;
- By four or more Board members without a Board vote;
- By the Mayor without a Board vote; or
- By a signature initiative (petition) signed by at least 2% of the registered voters in San Francisco, currently about 10,600 signatures.

Currently San Francisco has over 530,000 registered voters.

Signature initiatives usually appear on the ballot at the next regularly scheduled election.

Signature initiatives may call for an earlier “special” election on an ordinance if the petition is signed by at least 10% of the votes cast for all candidates for Mayor in the last election. Currently, this is about 39,000 signatures.

Once a signature initiative is submitted to the Department of Elections, it cannot be withdrawn.

The Proposal: Proposition D would amend the Charter to increase the requirements to put measures on the ballot by:

- Increasing the number of signatures required to place a signature initiative on the ballot from 2% to 8% (currently from about 10,600 to about 42,500 signatures) of the registered voters in San Francisco.

- Increasing the number of signatures required to call a special election on an ordinance from 10% of the votes cast for Mayor in the last election to 10% of the registered voters in San Francisco. Currently, this is about 53,100 signatures.

Proposition D would allow signature initiatives to be withdrawn up to 102 days before the election.

Proposition D would also change the requirements to put measures on the ballot by:

- Removing the ability of four or more Board members to place a measure on the ballot without a Board vote;
- Removing the ability of the Mayor to independently place a measure on the ballot;

The Board could still place measures on the ballot by a majority vote.

A “YES” Vote Means: If you vote “yes,” you want to increase the requirements for signature initiatives from 2% to 8% of registered voters (currently from about 10,600 to about 42,500 signatures), increase the requirements for special elections, allow signature initiatives to be withdrawn, and remove the ability of a minority of Board members or the Mayor to place measures on the ballot.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller's Statement on “D”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition D:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would have a minimal impact on the cost of government.

The proposed Charter amendment would (1) require the approval of a majority of the Board of Supervisors to place an ordinance on the ballot, (2) eliminate the Mayor’s ability to directly place an ordinance on the ballot, (3) increase the voter signature threshold for initiatives from 2% to 8% (currently from about 10,600 to about 42,500 signatures) of the registered voters in San Francisco, (4) allow proponents to withdraw a measure after it qualifies for the ballot, and (5) raise the threshold for special elections from 10% of the votes for mayor in the last general municipal election to 10% of registered voters.

The proposed amendment is likely to reduce costs at levels that cannot be determined at this time. Since the proposed Charter amendment raises the voter signature threshold, fewer initiatives may qualify for the ballot which may reduce the volume of printed pages included in the voter information pamphlet (VIP). On average, each page in the VIP costs \$11,400 to prepare, print, and distribute to all registered voters. The proposed increase in the voter signature threshold may also reduce the number of special elections called which would result in cost savings for the Department of Elections. The estimated minimum cost for a citywide special election is \$5 million with a one-card ballot and less than 50-page VIP.

The proposed Charter amendment may impact the Department of Elections’ workload. It may result in a reduction in ballot ordinances which would reduce the associated workload for the Department of Elections—freeing staff to work on other government functions. Conversely, the Department of Elections may see an increase in workload to validate more voter signatures for a measure to qualify for the ballot and to remove qualified measures at the proponents’ request.

53,076 signatures were required to place an initiative Charter Amendment on the ballot. This number is equal to 10% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

How “D” Got on the Ballot

On July 23, 2026, the Department of Elections certified that the initiative petition calling for Proposition D to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

Proponent's Argument

Clean Up City Hall is a package of Props A, D, E and F to improve neighborhood services, speed up permitting and reduce wasteful spending so we can invest in our great city.

PROPOSITION D GIVES MORE VOTERS A VOICE ON WHAT APPEARS ON BALLOTS.

Currently a minority of supervisors, just 2% of voters or the mayor acting alone, can throw anything on the ballot without public input, transparency or proven community support.

"Even well-intentioned ideas can include mistakes and unintended consequences." - Ben Hur, former SF Ethics Chair.

San Francisco is the only city in California that allows these low thresholds — and that's why we have the longest and most confusing ballots in the state.

PROP D REQUIRES MORE TRANSPARENCY, COMPROMISE & COMMUNITY INPUT.

Proposition D requires a public vote of the majority of supervisors or signatures from 8% of voters. It removes the mayor's sole authority to place measures on the ballot to ensure a fair balance of power. The signature requirement remains below the state standard of 10% and neighboring cities like Oakland.

THE RESULT OF THESE MODEST REFORMS WILL BE MORE OPEN DEBATE AND CITIZEN PARTICIPATION BEFORE MEASURES ARE ON THE BALLOT.

San Francisco works best when we work in coalitions together. Please join the citywide coalition to make the system accountable to all!

Mayor Daniel Lurie
Board of Supervisors President Rafael Mandelman
Speaker Emerita Nancy Pelosi
Nancy Tung, San Francisco Democratic Party
Former SF Ethics Chair Ben Hur
Former Deputy City Attorney Jim Lazarus
SFSU Associate Professor of Political Science
Jason McDaniel
Former City Controller Ben Rosenfield
Former Fire Chief Joanne Hayes-White
*Dan Calamuci, Carpenters Local 22**
*Anthony Travis Jr., Laborers Local 261**
*Charles Lavery, Operating Engineers Local 3**
Teamsters Local 665
Council of District Merchant Associations
Chinatown History and Culture Association

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

Rebuttal to Proponent's Argument

No on D: It silences San Francisco voters

Proponents call it "modest reform." A fourfold increase is not modest. It's extreme.

Quadrupling signature requirements from 10,600 to 42,500 will require hiring paid signature firms to qualify and cost one million dollars or more.

That extreme cost will price out neighborhood groups, unions and community advocates from participating in the initiative process.

Proponents have raised \$8.6 million, collected from a small number of billionaires and venture capitalists. They can afford the higher costs. But the rest of us can't.

Ending citizen initiatives won't move San Francisco forwards. Instead, it takes us back to 1898, when San Francisco became one of the first California cities to win this right.

If this passes, San Francisco will have the highest signature requirement of any California county. Higher than Los Angeles and San Jose. Over three times higher than statewide measures which require 2.4%.

Proponents want you to believe that raising the threshold from 2% to 8% is modest. But that's like raising your rent from \$2000 to \$8000. It's extreme – and extremely harmful.

Don't be fooled. Don't rob our right to vote. Vote NO on D.

San Francisco Labor Council
San Francisco Senior & Disability Action
United Educators of San Francisco
San Francisco Women's Political Committee
San Francisco Tenants Union
Indivisible SF
Coleman Advocates for Children & Youth
San Francisco Rising Action Fund

Opponent's Argument

NO ON D: DON'T ROB OUR RIGHT TO VOTE.

Don't be fooled. This isn't about streamlining or state standards. Prop D takes away rights San Franciscans have held for 125 years: to put citizen initiatives on the ballot.

Robbing it away. San Francisco was the first California city to have this right. Now, wealthy tech billionaires are spending millions to take it away. They would quadruple the signatures required from 10,600 to 42,500, a limit so high only the very wealthy can reach it.

Follow the money. Wealthy interests can afford to pay one million dollars to collect 42,500 signatures. Neighborhood groups, labor unions and community advocates will be priced out. We'll lose our voice in the democratic process.

10,600 signatures is tough and fair. Since 1932, around 10,600 signatures have been required to qualify a measure. It's not easy: citizen-initiatives are only 15% of all ballot measures. But when City Hall ignores us, citizens have the power to act. A check and balance.

42,500 signatures is out of reach. It will be impossible for citizen-led, grassroots organizations to qualify a measure. After 125 years, it will silence the voices of some San Franciscans forever.

Citizens' initiatives make a difference. They have increased the minimum wage, ensured large corporations pay their fair share of taxes, provided legal aid for renters facing eviction, banned corrupt contributions to politicians, passed Sunshine laws, established rent control, and funded schools, childcare and affordable housing.

After 125 years of direct democracy, don't let them rob it away. Vote NO on D.

*San Francisco Labor Council
San Francisco Senior & Disability Action
United Educators of San Francisco
San Francisco Women's Political Committee
San Francisco Tenants Union
Indivisible SF
Community Tenants Association
Coleman Advocates for Children & Youth
San Francisco Rising Action Fund*

Rebuttal to Opponent's Argument

D ENDS THE INSIDER MONOPOLY ON POWER AT THE BALLOT

The insiders are misleading voters because their monopoly on power is being challenged. They think the system works great. San Franciscans know the system is broken: keeping us in a constant state of confusion, dividing neighbors, and producing bad outcomes.

D is a set of modest reforms requiring transparency, compromise, and community input before issues get on the ballot so that voters can weigh in on well thought-out measures. None of these reforms add a financial cost.

D REBALANCES POWER TO VOTERS

Currently a minority of supervisors, just 2% of voters, or the mayor acting alone can throw anything on the ballot without public input, transparency, or proven community support. Political insiders exploit these rules regularly. That is why San Francisco has the longest and most confusing ballots in the state.

D REQUIRES TRANSPARENCY, COMPROMISE AND COMMUNITY INPUT.

With D, placing a measure on the ballot requires a public vote of a majority of the Supervisors or a modest amount of signatures. D also removes the mayor's sole authority to place measures on the ballot, ensuring a fair balance of power.

Opponents claim today's rules date to 1932. The Controller's report confirms the current threshold was set in 2022, requiring approximately 9,000 fewer signatures than before. San Francisco will still have one of the lowest signature thresholds in California, including other large cities like Oakland, San Diego, and Long Beach.

*Mayor Daniel Lurie
Board of Supervisors President Rafael Mandelman
Former Controller Ben Rosenfield*

Paid Arguments in Favor

Fewer Measures. Better Decisions.

San Francisco voters face some of the longest, most complicated ballots in California — 15 local measures in November 2024 alone, compared to 3 in Oakland and 1 in San José. Since 1996, San Franciscans have voted on 418 local measures, nearly half placed on the ballot without the ordinary legislative process of public hearings and Board approval.

This reform comes straight from SPUR's Charter for Change (2026), building on recommendations SPUR first raised in Designed to Serve (2024) and on SPUR's long history of advocating for smarter, more deliberate lawmaking in San Francisco, including its sponsorship of 2007's ballot-sunshine reforms.

The measure ends the practice of the Mayor or just four Supervisors placing measures directly on the ballot without majority Board support — a power no other major California city grants. It raises the citizen signature threshold from 2% to 8% of registered voters, still lower than Oakland, San Diego, Sacramento, and most California cities. And it lets initiative sponsors withdraw measures before an election, opening the door to negotiated solutions instead of costly campaigns.

Complex policy deserves public hearings and negotiation, not an up-or-down vote squeezed between a dozen other measures. This measure lets City Hall do its job, reserving the ballot for issues that truly need a public vote.

Vote YES.

Sean Elsbernd

President/CEO SPUR (www.spur.org)

The true source(s) of funds for the printing fee of this argument: SPUR.

GOOD GOVERNANCE LEADERS AGREE PROP D WILL IMPROVE VOTER TRUST.

A healthy democracy depends on a ballot voters can trust — one with proposals made with real community support, not political maneuvering. San Francisco's current system falls far short. It requires 80% fewer signatures than the state standard, meaning a small minority of politicians and private interests can flood the ballot with contradictory measures designed to confuse voters and settle political scores. We've seen how this plays out: instead of building coalitions and answering hard questions publicly, insiders can target a handful of supervisors to get a measure on the ballot.

Prop D protects the ballot from manipulation. It requires a majority of the Board of Supervisors or signatures from 8% of voters — much closer to the state's 10% standard — and removes the mayor's power to unilaterally place measures on the ballot, which no other California cities had to start with. It also lets proponents withdraw measures, allowing space to reach agreements or correct for flaws or unintended consequences instead of leaving voters to clean up the mess.

This is a structural fix for a structural problem: a process that currently rewards insider access instead of genuine coalition-building and public vetting. Good government and a functioning democracy means a ballot voters can trust. Prop D gets us there.

Former Controller Ben Rosenfield

Former Sheriff Vicki Hennessy

Former Director of SF Planning John Rahaim

Former Deputy City Attorney James Lazarus

Former Fire Chief Joanne Hayes-White

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

LABOR LEADERS SAY YES ON D FOR BETTER RESULTS AT THE BALLOT.

Working people don't have lobbyists on retainer — we build power through coalitions, organizing, and showing up. San Francisco's ballot process currently rewards the opposite. It makes it easy for a small group of politicians to put divisive, intentionally confusing measures forward without building real public support. Under the current system, private interests can skip community organizing altogether and just lobby a few supervisors to put measures before voters. Those with the most access use that shortcut instead of doing the work of earning broad support, the way labor always has.

Prop D levels the playing field. A ballot process that rewards coalition-building over insider access is a ballot process that works better for working people and the organizations that represent us. Labor believes in earning support the real way. Vote Yes on Prop D for a fair, transparent democracy.

Teamsters Local 665

Carpenters Local 22 Senior Field Representative

*Dan Calamuci**

Operating Engineers Local 3 District Representative

*Charles Lavery**

*Laborers Local 261 SF Liaison Anthony Travis Jr.**

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SMALL AND BIG BUSINESSES URGE BUILDING CONSENSUS MEASURES THROUGH PROP D.

San Francisco's ballot has become a magnet for divisive, contradictory measures — and businesses trying to plan, invest, and operate here bear the cost of that unstable operating environment. The current rules make it far too easy to flood the ballot with measures that cancel each other out or exist mainly to settle political scores.

A more honest, transparent ballot process means fewer contradictory measures, less wasted money, and a more predictable policy environment for the businesses that call San Francisco home. San Francisco's business community supports a ballot process built on real coalition-building, not insider access: Vote Yes on Prop D.

*Council of District Merchants Associations
SF Chamber of Commerce
Noe Valley Merchants and Professionals Association
Hotel Council*

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

CHINATOWN LEADERS URGE YES ON D FOR A BETTER DEMOCRACY.

Chinatown and immigrant communities have long known that the loudest, best-connected voices too often win at City Hall — including on the ballot itself. San Francisco requires far fewer signatures than the state standard, making it easy for insiders to flood the ballot with measures that are intentionally written to confuse and divide in ways that voters, especially those navigating language barriers, should not have to grapple with.

An honest, vetted ballot process means fewer confusing measures and a system that rewards communities who organize and build coalitions instead of those with insider access. Chinatown deserves a ballot voters can actually trust and understand. Vote Yes on Prop D for a fairer, more transparent process.

*Chinatown History and Culture Association
Eva Lee, SF Chinatown Merchants Association**

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The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

Paid Arguments Against

Billionaires Buying Election Ballot Measures

“**Proposition D**” contains two poison pills: One eliminates four City Supervisors — a minority of the Board — from placing a measure on the ballot, increasing the requirement to six or more. That silences dissenting Supervisors, requiring majority unanimity. ***That’s undemocratic to voters and Supervisors*** not bought off by billionaires.

The second raises the number of signatures required to qualify a citizen petition ballot initiative, from 2% to 8% of registered voters, a 300% increase, requiring 31,316 additional signatures to qualify, a potential \$574,987 cost increase to \$766,649, ***beyond San Francisco voter initiatives’ means.***

Through 7/15/2026, an Ethics Commission campaign finance dashboard (<https://campaign.sfethics.org/elections/2026-11-03/committees/CA1489257.html>) disclosed Mayor Lurie's controlled ballot measure recipient committee “*Clean Up City Hall*” received \$8.95 million from seven billionaires, centimillionaires, and multimillionaires, including **Michael Moritz** (\$2M), **Chris Larsen** (\$1M), Larsen's wife **Lyna Lam** (\$1M), and **John Pritzker** (\$1M), among others. Of 21 donations, the smallest was \$10,000, with zero \$100-or-less small-dollar donations.

They **spent \$4.9 million through 7/15/2026 collecting 245,744 signatures to qualify placing Propositions “D,” “E,” and “F”** on the ballot, at approximately \$18.35 per signature. The campaign finance pre-election report due 9/24/2026 will document additional revenue and expenditures. Billionaires are probably raising more money to buy passage of Lurie's three signature ballot measures.

Before voting, check their updated finance reports at <https://netfile.com/public/sfo/campaign/filingsByFiler/216006060-Clean%20Up%20City%20Hall,%20Mayor%20Lurie's%20Ballot%20Measure%20Committee>. The \$9 million raised through 7/15/2026 may double, to buy passage of “**Proposition D**”!

City Supervisors are still considering ***raising paid ballot argument filing fees***, and ***stopping publication of ballot***

measure legal text in voter guides, weakening voter education (see <https://www.westsideobserver.net/26/7-lurie-voter-guide-overhaul-stalls.php>).

Our ballot measure process isn't broken, doesn't need fixing! Reign in Lurie's billionaire club; kick outside billionaire money out of politics!

Stop this insanity: Vote "No" on Propositions "A," "D," "E," and "F"!

Patrick Monette-Shaw
*Columnist, Westside Observer**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Patrick Monette-Shaw.

Prop D silences the voices of working people, not corporations. Vote NO!

If Prop D passes, big corporations will still be able to place anti-worker measures on the ballot, but working people will be shut out of the process. In 2003, workers collected 9,735 signatures to put Prop L on the ballot to raise San Francisco's minimum wage. It was passed by 60% of San Francisco voters and was life changing for working families in the city.

Prop D is funded almost entirely by billionaires and venture capitalists who want to make it harder for working people to pass laws that make corporations pay their fair share. Support San Francisco working families. Vote No on D.

San Francisco Labor Council
United Educators of San Francisco
Service Employees International Union 1021
Service Employees International Union 2015

The true source(s) of funds for the printing fee of this argument: Fair Access No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Women's groups of San Francisco say No on D

The burden of fighting for our communities almost always lands with us, and we will not stand by while a right that San Franciscans have had almost as long as *women have had the right to vote* is taken away. Prop D raises the threshold for citizen's initiative HIGHER than the State of California's threshold, and would require over 42,000 signatures.

No on Prop D.

San Francisco Women's Political Committee
San Francisco Women's Housing Coalition

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Your neighborhood businesses say No on D

Simply put, Prop D is a power grab by big businesses and tech billionaires. If Prop D passes, they will have no problem spending \$1,000,000 or more to gather signatures and change laws they disagree with. But for small businesses like us, doing that is impossible. We, like so many San Franciscans, rely on grassroots activism to stay in business and continue to serve the city we love.

Stand up for small business. Say NO to Prop D!

Small Business Forward
Ritual Coffee
*Lynne Angel, Owner, El Rio**
*Justin Dolezaal, Co-Owner, Bar Part Time**
*Nicholas Parker, Owner, Mercury Cafe**
*Diane Ramirez, Owner, Bangin Hair Salon**
*Sean Mabry, Co-Owner, Mothership**
*Yolanda Porrata, Owner, Vera Skin Studio**
*Isabella Hill, Co-Owner, Happy House**
*Julian Ensworth, Managing Partner, Horsies Bar**
*Jasjit Ahluwalia, Owner, The Laundry Corner**

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The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

42,500 signatures: easy for wealthy interests, impossible for your neighborhood

If Prop D passes, it will require 42,500 signatures to place an ordinance on the ballot, four times higher than the 10,600 required today. Wealthy interests can use paid signature companies at a cost of \$20 per signature or more – nearly \$1 million. Neighbors and ordinary citizens would need up to 10,000 volunteer hours to collect the same amount.

Prop D won't stop ballot bloat – it will just let those who can write big checks put their measures on the ballot,

while regular San Franciscans are left out. Protect access for everyone, and vote NO on D.

Westside Forward

Castro LGBTQ Cultural District

Haight Ashbury Neighborhood Council

Richmond District Democratic Club

Telegraph Hill Dwellers

Neighborhoods United San Francisco

Albert Chow, Owner, Great Wall Hardware

*AjaiNicole Duncan, Co-President Harvey Milk LGBTQ Democratic Club**

*Leah LaCroix, President, District 11 Democratic Club**

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The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Don't make renters pay more! Vote NO on D

Big real estate interests are funding Prop D because it will prevent renters from passing laws to protect us from unfair evictions, excessive rent hikes and unscrupulous landlords. In 2018, voters passed Prop F to provide free legal representation for evicted tenants, leading to a drastic reduction in evictions of low-income seniors and others who couldn't afford their own attorney. This required 9,485 signatures to get on the ballot and was passed by an overwhelming majority of voters.

Wealthy interests are spending millions to pass Prop D to make the threshold an impossible 42,500 signatures and stop measures that protect renters. Vote No on D.

San Francisco Tenants Union

San Francisco Anti-Displacement Coalition

Affordable Housing Alliance

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Our children depend on funding that Prop D would have made impossible.

Prop D will make it much harder to fund our schools and take care of our children. In 2018, San Franciscans gathered signatures to place two key measures on the ballot: Prop C, which taxes large commercial landlords

to fund childcare and early education; and Prop G, which funds teacher salaries and school programs. Both required 9,485 signatures and were passed by voters.

Under Prop D, the same measures would require 42,500 signatures, meaning it would be impossible for parents and teachers. For our kids, vote No on D.

United Educators of San Francisco

Coleman Advocates for Children & Youth

MyPath

*Ryan Hazelton, Chair, San Francisco Childcare Planning & Advisory Council**

*Dawn Stueckle, Executive Director of Sunset Youth Services**

*Matt Alexander, Member, Board of Education**

*Susan Solomon, City College Trustee**

*Vick Chung, City College Trustee**

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The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Wealthy interests can buy their way onto the ballot. Our community can't.

When City Hall or tech billionaires pass laws that unfairly impact our communities, we know how to stand up and fight back. But a crucial tool in that fight is our right to put measures on the ballot. By drastically increasing signature requirements from 10,600 to 42,500, Prop D will make it impossible for grassroots, volunteer-led campaigns to put their own laws on the ballot.

Prop D will silence the voice of the Chinese community and insult the work of thousands of volunteers who have stood up for our families and neighborhoods.

Vote No on D!

Chinese for Affirmative Action

Gordon Mar, Former Supervisor

*Sandra Lee Fewer, Former Supervisor**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

The Latino community is united: Prop D is bad policy

Our community is no stranger to grassroots organizing. We have marched in the streets, marched across the state, and fought tooth and nail to gain and protect our rights. Prop D is a disgusting anti-grassroots, anti-worker, anti-community measure that is being funded by the tech billionaires making San Francisco unaffordable for everyone.

Reject the billionaire takeover. Vote NO on Prop D!

SF Latino Task Force

People Organizing to Demand Environmental and Economic Rights (PODER)

*Jackie Fielder, D9 Supervisor**

*David Campos, Vice Chair CA Democratic Party**

*John Avalos, Former D11 Supervisor**

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The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Protect the rights of Black voters in San Francisco and vote No on D

We know all too well what it's like to be systematically disenfranchised. So take it from us: that is exactly what is happening with Prop D. This measure raises the number of signatures needed to place something on the ballot from ~10,500 to OVER 42,000! San Franciscans have had equal access to the ballot since 1932, and now tech billionaires are trying to raise the threshold out of reach for normal people while preserving the right for themselves.

Do not disenfranchise SF voters. Vote NO on D.

Coleman Advocates for Children & Youth

Shamman Walton, D10 Supervisor

Sophie Maxwell, Former D10 Supervisor

Archbishop Franjo King

Dion-Jay "DJ" Brookter

Dontaye Ball

Leah LaCroix

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Prop D takes away our tool to fight corruption in City Hall. No on D!

Prop D will take away an important tool for citizen-led reform, and give only the very wealthiest individuals and corporations the right to place measures on the ballot. Vote No on D.

For decades, businesses with lucrative city contracts were allowed to contribute to the campaigns of politicians who approved those contracts. This conflict of interest benefited the contractors and the politicians, but taxpayers and citizens paid the cost. Then a group of citizens put Prop J on the ballot in 2000 to force reform at City Hall – needing 9,735 signatures to qualify. If Prop D passes, the next reform initiative would need 42,500 signatures – nearly impossible without spending \$1 million or more.

Art Agnos, Former Mayor

Tom Ammiano, Former Assemblymember

Judge Ellen Chaitin (ret)

Judge Lillian Sing (ret)

*Paul Melbostad, Former SF Ethics Commission President**

*Esther Marks, Former President, SF League of Women Voters**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

Prop D will make it harder to build affordable housing

San Francisco is less affordable than ever, and families across the city are being priced out. The need for affordable housing has never been greater. Direct democracy allows each and every one of us to put forward proposals to address the problems facing our city, but Prop D would raise the signature threshold from 10,600 to 42,500. That doesn't hurt wealthy developers and corporate interests, but it makes it nearly impossible for everyday San Franciscans to make our voices heard.

We have had that right since 1932, but Prop D takes it away. Vote No on D

Council of Community Housing Organizations

San Francisco Women's Housing Coalition

Tenants Owners Developers Corporation

Race and Equity in All Planning Coalition (REP-SF)

The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

42,500 signatures is easy for wealthy interests, impossible for everyone else. Vote No on D

Prop D is a dangerous measure that uses positive language — “streamlining, simplifying” — to obscure its true function: raising the signature threshold for citizen initiatives from 10,600 to 42,500, nearly quadrupling the effort and expense required to qualify a measure for the ballot. Deep-pocketed special interests who can afford professional signature-gathering firms will still be able to place initiatives on the ballot — even frivolous ones — while grassroots campaigns, labor unions, and community groups are locked out entirely.

Since 1932, San Francisco has required an average of 10,000 signatures, giving citizens access to the ballot. Don’t let them take this vital safeguard away. No on D!

Supervisor Myrna Melgar

Supervisor Jackie Fielder

Supervisor Shamman Walton

CA Democratic Party Vice Chair David Campos*

Former Supervisor Gordon Mar

Former Supervisor Sandra Lee Fewer

Former Supervisor Hillary Ronen

Former Supervisor Sophie Maxwell

Former Supervisor John Avalos

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The true source(s) of funds for the printing fee of this argument: Fair Access, No on D.

The two contributors to the true source recipient committee: Dale Carlson, San Francisco Labor Council Labor & Neighbor Member Education/Political Issues Committee Sponsored by the SFLC.

PRESERVE CITIZEN DEMOCRACY-VOTE NO ON PROPOSITION

Is our initiative process “broken” because it allows citizens to persuade 10,600 voters (2% of registered voters) to petition for a ballot proposition?

Should we “fix” this by requiring more nearly 42,500 signatures (8% of registered voters)?

This increase will, undoubtedly, result in fewer citizen led initiatives. But corporations or dark-money PACs, who hire people to harvest signatures for their propositions, won’t be stopped. Do we really want to discourage citizen groups from even trying?

Some say that our initiative process is “broken” because we allow ordinary citizens to vote on matters that may, to outsiders, seem trivial, such as closing a highway.

The alternative view is that San Francisco is so democratic that we allow ordinary citizens to override bureaucrats on such matters of direct concern to the public.

More than a hundred years ago, John Dewey famously said, “the cure for the ills of democracy is more democracy.” This proposal, however, argues that the solution is less democracy, less citizen involvement.

I encourage you to vote NO.

*Robert W. Cherny, Professor emeritus of History
San Francisco State University**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Robert Cherny.

Keep Resident Control of our Government - Vote No on D

The Mayor has allied with billionaires to weaken our voices in our own government by proposing a quadrupling of resident signatures needed to place measures on the ballot. Citizen initiatives have saved our parks and neighborhoods, funded affordable housing and provided critical services to our neighbors. Reducing resident voices in our government would tip our politics into a playground for billionaires, increasing their power while reducing ours.

Vote NO on D

Doug Engmann

Sue Hestor

Calvin Welch

Dale Carlson

The true source(s) of funds for the printing fee of this argument: Dale Carlson.

E – City Administrator’s Authority and Changes to City Contracting

Shall the City amend the Charter to give the City Administrator more authority by centralizing the City’s purchasing rules and processes, changing how the City approves purchasing rules, changing when contracts and leases require Board of Supervisors approval, and extending the City Administrator’s term?

YES	☐
NO	☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The City Administrator’s Office is responsible for most of the City’s purchasing. However, authority for the City’s purchasing and technology is shared among the City Administrator’s Office, the Board of Supervisors, the Mayor, and some City departments.

- Rules Regulating Purchasing: The Board of Supervisors (Board) may adopt ordinances that set the rules about how the City selects contractors and enters into contracts for goods, services, construction, and grants (referred to below as Purchasing).
- Board Approval of Various Agreements: With some exceptions, the City’s Charter requires the Board to approve:
 - Contracts and leases that bring in \$1,000,000 or more in revenue to the City, and
 - Contracts that cost the City \$10,000,000 or more.

The Board must also approve certain amendments to these agreements.

- City Administrator’s Term: The Mayor appoints the City Administrator to a five-year term, subject to Board approval.
- City Administrator’s Authority: The City Administrator sets Purchasing rules and processes governing goods and services except for some goods and services of the Municipal Transportation Agency, Public Utilities Commission, Port Commission, and some arts departments. The City Administrator also oversees technology policies and manages disposal of City personal property for most departments.

The Proposal: Proposition E would:

- Rules Regulating Purchasing: Give the City Administrator exclusive authority to propose ordinances that change how the City selects contractors and enters into contracts for goods, services, construction, and grants (Purchasing). The Board and Mayor may not amend the ordinances, but they can:
 - Approve or reject the ordinances within 60 days, or
 - If no action is taken within 60 days, the ordinances would be approved.

Proposition E does not change the current Board authority for Purchasing ordinances that mainly address wages, workplace health and safety, utilization of local business, or labor agreements.

- Board Approval of Various Agreements: Increase the dollar amount requiring Board approval to:
 - Contracts and leases that bring in \$4,500,000 or more in revenue to the City,
 - Contracts that cost the City \$25,000,000 or more.

Starting in 2032, the City’s Controller would adjust these dollar amounts every five years for inflation.

Proposition E would require Board approval for major amendments to these agreements.

- City Administrator’s Term: Increase the City Administrator’s term from five to ten years.
- City Administrator’s Authority: The City Administrator would set Purchasing rules and processes for all goods, services, construction, and grants that all City departments must follow, except as limited by other laws. Most departments would now be subject to the

City Administrator's authority regarding technology policies and the disposal of City personal property. These rules would override those departments' conflicting rules and policies.

A “YES” Vote Means: If you vote “yes,” you want to give the City Administrator more authority by centralizing the City's Purchasing rules and processes, changing how the City approves Purchasing rules, changing when contracts and leases require Board approval, and extending the City Administrator's term.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller's Statement on “E”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition E:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would have a minimal impact on the cost of government, although at a level that cannot be determined at this time.

The proposed Charter amendment would (1) give the City Administrator the exclusive authority to introduce ordinances that govern City contracting, with some exceptions; (2) grant the City Administrator the authority to set Citywide rules for contracting; (3) provide the City Administrator the authority to establish policies, standards, and practices for technology uses across departments; (4) extend the City Administrator's term from five to ten years; (5) increase the Board of Supervisors' approval threshold from \$1 million to \$4.5 million for revenue generating contracts and real property lease agreements; and (6) increase in the Board of Supervisors' approval threshold from \$10 million to \$25 million for expenditure contracts.

The proposed Charter amendment gives the City Administrator greater authority to set contract standards, by introducing ordinances or adopting rules, regulations or policies, which may allow for greater efficiencies in citywide contracting. The proposed amendment establishes a more unified City procurement approach, which may result in reduced costs for the purchase of goods or services and staff time savings in the long run. The amendment may result in changed staffing but does not specify organizational or staffing changes within the City.

The proposed Charter amendment also increases the Board of Supervisors' contract approval monetary thresholds. These changes may reduce the amount of time the Board of Supervisors spend reviewing contracts and the time department staff spend preparing for the Board of Supervisors' review, freeing the Board of Supervisors, their staff, and department staff to work on other government functions, although at a level that cannot be determined at this time.

How “E” Got on the Ballot

On July 23, 2026, the Department of Elections certified that the initiative petition calling for Proposition E to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

53,076 signatures were required to place an initiative Charter Amendment on the ballot. This number is equal to 10% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

Proponent's Argument

Over decades, San Francisco's governing system - or city charter - has increasingly grown to reward city insiders. Mayor Lurie is leading a citywide coalition to make the system more accountable to everyday San Franciscans.

Clean Up City Hall is a package of Props A, D, E and F to improve neighborhood services, speed up permitting and reduce wasteful spending so we can invest in our great city.

PROP E SLASHES WASTE IN CITY CONTRACTING.

It can cost more than \$25,000 to run a single contracting process. Basic purchases take years to deliver. Costs balloon out of control. That's because every year San Francisco hands out more than \$5 billion in contracts with no limited oversight or accountability. The system creates waste at every level and is easily exploited.

STOPS CORRUPT DEALMAKING. Investigators have caught six department heads running contracting schemes in the last five years. Multiple department heads have gone to prison. E empowers a professional City Administrator to set transparent standards so contracts are awarded based on who is best for the job, not who is best connected.

MORE ACCOUNTABILITY FOR BETTER RESULTS.

"San Francisco pays thousands of businesses and nonprofits but doesn't have a contracting system built for results. E ensures public dollars are invested in better and faster city services instead of lost to waste and delay." - Ben Rosenfield, former San Francisco Controller

STRONGER CHECKS AND BALANCES. The mayor or a board majority can reject proposed contracting changes within 60 days, ensuring accountability runs through the entire system.

San Francisco works best when we work in coalitions together. Please join the citywide coalition to make the system accountable to all!

Mayor Daniel Lurie

Board of Supervisors President Rafael Mandelman

Speaker Emerita Nancy Pelosi

Nancy Tung, San Francisco Democratic Party

Former SF Ethics Chair Ben Hur

Former Deputy City Attorney Jim Lazarus

SFSU Associate Professor of Political Science

Jason McDaniel

Former City Controller Ben Rosenfield

Former Fire Chief Joanne Hayes-White

Firefighters Local 798

SF Building Trades

*Dan Calamuci, Carpenters Local 22**

*Anthony Travis Jr., Laborers Local 261**

*Charles Lavery, Operating Engineers Local 3**

Teamsters Local 665

Council of District Merchant Associations

Chinatown History and Culture Association

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

Rebuttal to Proponent's Argument

Mayor Lurie scours the city with paid signature gatherers. He has not recruited pragmatist candidates to challenge ideologues and obstructionists on the Board of Supervisors, or built a working majority to pass his agenda legislatively. He treats checks and balances as the enemy, and seeks to concentrate power in his own hands through Propositions D, E and F.

Similar patterns appear in his aggressive advocacy for Proposition H, the massive parcel tax to prop up MUNI. Rather than force real reform of a stultified, bloated agency, he asks voters to lock in \$2.4 billion in new taxes to continue its bleeding pre-pandemic, pre-technology model of mostly empty steel cages. Proposition H subsidizes low-ridership service, weak fare enforcement and bureaucratic inertia.

Look around! Autonomous vehicles promise radical cost declines and flexible mobility. While tired climate rhetoric demands everyone abandon their cars, automobiles have become cleaner, electric, driverless, shareable, robotic and able-assisting. The future is arriving. Mayor Lurie remains allergic to it.

The mayor refuses to clean his own party's house amidst rising extremism. He seeks permanent new executive power and sweeping new taxes harking back to glory days of big infrastructure. These are authoritarian, socialist impulses he should be fighting.

Don't be a piker.

Vote No on D, E, F... and H!

Larry S. Marso, Esq.

Mr. Marso, a Nob Hill resident, was ballot opponent of the 2024 \$400 million MUNI bond—rejected by voters in a tremendous victory for taxpayers!

Opponent's Argument

The current Board of Supervisors refuses to enact Mayor Daniel Lurie's core priorities—to cut the deficit, trim bureaucracy, centralize contracting and hold department heads accountable. However Lurie, instead of challenging head-on the far-left socialists and obstructionist ideologues of his own party to get pragmatist Supervisors elected, treats the system of checks and balances itself as the enemy. He raised millions for paid signature gatherers to rewrite the City Charter and concentrate power in his hands.

This is the authoritarian temptation. Fearing radicals inside their own coalition, leaders turn against institutional constraints that limit their personal power. SPUR stated the impulse with chilling clarity: a mayor should “resolve issues through leadership rather than at the ballot”—translation: by mayoral decree. Democratic procedure just gets in the way.

That same impulse drives presidents who prefer executive orders to the harder work of defeating “in name only” members of their own party who block their agenda.

One measure expands City Administrator authority, raising the dollar threshold for Supervisor approval of major contracts. Another revives deputy mayors—a patronage system exposed by Quentin Kopp and abolished by voters in 1991—while amplifying the mayor's power to hire, fire and reorganize. The third quadruples the signature requirement for citizen initiatives, after Lurie himself used the low bar he now seeks to close, locking the door behind him.

Most of what Lurie claims these changes would deliver could be achieved through legislation and regular order if he led his own party toward fiscal discipline, drove the most ideological members off the Board and fought the increasing far-left extremism infecting Democrat leadership. Instead, he flirts with the same breed of authoritarianism.

Don't be a piker.

Vote No on D, E, and F.

Larry S. Marso, Esq.

Rebuttal to Opponent's Argument

PROP E IS IS ABOUT ENDING WASTE AND CORRUPTION IN CITY CONTRACTING

Under our current system, San Francisco became an international punch line when it was announced that one public toilet in Noe Valley would cost \$1.7 million dollars to build.

Under our current system, multiple city employees, including 6 department heads, were investigated for running contracting schemes that landed some of them in prison.

Under our current system, it costs more than \$25,000 to run a single contracting process, and simple purchases drag on for years.

But the city continues to hand out \$6 billion in contracts a year without the oversight and accountability that common sense demands.

How the city buys staplers, builds public restrooms, or purchases software can't be a political football.

Prop E empowers a professional City Administrator to set clear, transparent rules for who gets city contracts. It's a necessary step to end waste, fraud, and ballooning costs that frankly should have been done decades ago.

City Hall insiders want to keep our current system because it works for them. But San Francisco voters have made it clear that it's time for a change.

Join us in bringing sanity back to purchasing and contracting.

Mayor Daniel Lurie

Board of Supervisors President Rafael Mandelman

Former Controller Ben Rosenfield

Paid Arguments in Favor

Cut the Red Tape. Deliver Services Faster.

San Francisco spends more than \$5 billion a year on contracts — for everything from homeless services to street repairs — under purchasing rules scattered across more than 100 sections of city code, requiring 8.5 months to 1.5 years to complete a single contract. Small businesses and nonprofits, especially minority- and women-owned firms, are hit hardest.

This measure implements the recommendations of SPUR's 2025 Purchasing Power report and 2026 Charter for Change — research built on SPUR's century-long commitment to making San Francisco government work efficiently for the people it serves.

The measure puts one official, the City Administrator, in charge of proposing purchasing rule changes, subject to Board rejection within 60 days. It brings departments like the PUC and SFMTA under consistent citywide purchasing oversight. And it updates Board-approval contract thresholds, unchanged since 1996, to reflect nearly three decades of inflation.

Existing protections for minority- and women-owned business participation and labor standards on city contracts are untouched, as is the Board's budget authority over the City Administrator's office and the Mayor's ability to remove the City Administrator.

The result: faster contracting, lower administrative costs, and a system that's finally navigable for the nonprofits and small businesses serving San Francisco's most vulnerable residents.

Vote YES.

Sean Elsbernd

President/CEO SPUR (www.spur.org)

The true source(s) of funds for the printing fee of this argument: SPUR.

GOOD GOVERNANCE LEADERS AGREE PROP E WILL STOP THE WASTE IN PURCHASING.

We've spent our careers inside City Hall, and we've seen firsthand how a lack of transparent contracting rules allows waste and corruption to thrive. It can cost more than \$25,000 just to run a single contracting process, and basic purchases can take years to deliver. Government doesn't have to be this slow, and it shouldn't reward insiders over results.

Prop E fixes the structure, not just the symptoms. It empowers a professional City Administrator to set clear,

transparent standards, and it keeps real checks in place: the mayor or a board majority can reject proposed contracting changes within 60 days. We've watched San Franciscans lose faith in City Hall's ability to manage public dollars responsibly. Prop E is a real, structural step toward earning that trust back. Vote Yes on Prop E for stronger accountability and better city services.

Former Controller Ben Rosenfield

Former Sheriff Vicki Hennessy

Former Director of SF Planning John Rahaim

Former Deputy City Attorney James Lazarus

Former Fire Chief Joanne Hayes-White

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

LABOR GROUPS UNITE TO SUPPORT CONTRACTING REFORM IN PROP E.

Working people build this city and too often, the City's broken contracting system gets in our way. It costs too much, and basic purchases can take years. That's not a system that respects the workers who depend on City projects for our livelihoods. The current system opens the door to waste and abuse at every level, and working people pay the price when public dollars are lost to grift instead of going toward good jobs and real results.

Prop E brings real reform that's good for union contractors and workers who compete fairly and do the work right, and it's good for the public dollars that fund our jobs. Labor knows the difference between a system that works for working people and one that works for insiders. Prop E moves San Francisco in the right direction. Vote Yes on Prop E for accountability, fairness, and a city that works for everyone who builds it.

Firefighters 798

SF Building Trades

Teamsters Local 665

SEIU Local 87

Carpenters Local 22 Senior Field Representative

*Dan Calamuci**

Operating Engineers Local 3 District Representative

*Charles Lavery**

*Laborers Local 261 SF Liaison Anthony Travis Jr.**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

SMALL AND BIG BUSINESSES URGE PURCHASING REFORM THROUGH PROP E.

San Francisco's businesses know what it's like to deal with the City's contracting system: slow, confusing, and often stacked against anyone who isn't already an insider. It's bad for the businesses trying to work with the City, and it's bad for taxpayers footing the bill. This broken system wastes money and is exploited, and businesses that play by the rules shouldn't have to compete with insiders who don't.

Prop E fixes this by empowering a professional City Administrator to set transparent standards so contracts are awarded based on merit and qualifications, not connections. That means a fairer playing field for the small businesses, contractors, and vendors who do honest work for the City every day. A more transparent, efficient contracting system means faster delivery of the projects and services San Francisco's economy depends on.

San Francisco's business community is united: Vote Yes on Prop E for accountability, fairness, and better city services.

*Council of District Merchants Associations
SF Chamber of Commerce
Noe Valley Merchants and Professionals Association
Hotel Council*

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

CHINATOWN LEADERS SAY YES TO BETTER PURCHASING WITH PROP E.

Chinatown and immigrant communities across San Francisco know what it's like to be shut out of a system built for insiders. When billions of dollars for city contracts are handed out every year through inconsistent, confusing processes, the businesses and nonprofits working hardest to serve our community often lose out to whoever has the right connections downtown.

Prop E fixes the system at its root. It empowers a professional City Administrator to set clear, transparent standards so contracts go to whoever is best for the job, not whoever is best connected. That's a fairer chance for community organizations and small businesses that have always played by the rules. Chinatown deserves a City Hall that works as hard for our community as we work

for this city. Vote Yes on Prop E for accountability and better city services.

*Chinatown History and Culture Association
Eva Lee, SF Chinatown Merchants Association**

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The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

No Paid Arguments Against Proposition E Were Submitted

F – Changes to Executive Branch Management

Shall the City amend the Charter to expand the Mayor’s authority to transfer responsibilities between departments, hire deputy mayors, and hire some and fire most department heads; and to allow City officials to remove members of boards and commissions without cause?

YES ☐

NO ☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The Mayor is the chief executive officer of the City. The Mayor directly supervises nearly 50 City departments, which are established by Charter or ordinance. Most City departments are established by Charter.

- **Transfer of Functions:** The Mayor can transfer responsibilities between departments established by ordinance, as long as the Board of Supervisors (Board) does not object. The Mayor cannot transfer responsibilities for departments established by the Charter.
- **Deputy Mayors:** The Mayor cannot hire deputy mayors to supervise most departments established by the Charter.
- **Department Heads:** In most cases, the Mayor must select a department head from candidates recommended by the board or commission that oversees that department. Usually, the board or commission can fire the department head, but the Mayor cannot.
- **Commissioners:** In addition to the Mayor, the Board and other officials appoint members to City boards and commissions. Appointed members can usually only be suspended or removed if the member engaged in official misconduct or committed certain felonies.

The Proposal: Proposition F would amend the Charter to allow the Mayor to do the following:

- **Transfer of Functions:** Transfer responsibilities between most departments or combine departments under a single department head, regardless of whether the

Department was established by ordinance or Charter and as long as the Board does not object. The Mayor cannot eliminate any responsibilities established by Charter. The Mayor could also assign the oversight of these transferred responsibilities to that department’s commission. The Mayor cannot transfer responsibilities of these departments:

- City Administrator, Controller, Board of Appeals, Port, Airport, Asian Art Museum, Fine Arts Museums, San Francisco Municipal Transportation Agency, Public Utilities Commission, Civil Service Commission, Department of Human Resources, Retirement Board, Health Service System, Department of Elections, Ethics Commission, or departments headed by other elected officials.

The responsibilities of the Department of Police Accountability cannot be transferred to the Police Department, and the responsibilities of the Sheriff’s Inspector General cannot be transferred to the Sheriff.

- **Deputy Mayors:** Hire deputy mayors to supervise most departments established by the Charter.
- **Department Heads:** Hire some and fire most department heads without board or commission involvement. The Mayor cannot hire or fire certain department heads that are exempt (see *List of Exemptions* in Words You Need To Know).
- **Commissioners:** In addition to the Mayor, the Board and other officials who appoint board and commission members could remove them at any time without cause. This does not apply to the Board of Appeals, Civil Service Commission, or Ethics Commission. The Mayor cannot eliminate any board or commission established by the Charter.

A “YES” Vote Means: If you vote “yes,” you want to expand the Mayor’s authority to transfer responsibilities, hire deputy mayors, hire some and fire most department heads, and allow City officials to remove members of boards or commissions without cause.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller’s Statement on “F”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition F:

Should the proposed Charter amendment be approved by the voters, in my opinion, it would have a minimal impact on the cost of government, although at a level that cannot be determined at this time.

The proposed Charter amendment would (1) expand the Mayor’s authority to hire and remove most departments heads; (2) allow most commissioners to be removed at will by their appointing authority; (3) authorize the Mayor to reorganize departments and adjust reporting relationships within the executive branch, subject to potential rejection by the Board of Supervisors; and (4) allow the use of deputy mayors.

The proposed Charter amendment authorizes the Mayor to utilize deputy mayors. The average annual cost for a deputy mayor would be approximately \$250,000. The proposed Charter amendment allows the Mayor to restructure departments and reorient reporting relationships within the executive branch. The potential costs or savings incurred for such changes cannot be determined without knowing which departments would be involved and how the departments would be restructured. For example, in Fiscal Year 2022-23 when the Department of Sanitation and Streets merged into the Department of Public Works, the Controller’s Office estimated cost savings of \$3.5 million in the first year and \$2.5 million in the second year of the merger. Cost savings came from removing duplicative administrative and information technology staff, departmental leadership, and one-time and ongoing costs, such as equipment and professional services.

How “F” Got on the Ballot

On July 23, 2026, the Department of Elections certified that the initiative petition calling for Proposition F to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

53,076 signatures were required to place an initiative Charter Amendment on the ballot. This number is equal to 10% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

Proponent's Argument

Over decades, San Francisco's governing system - or city charter - has increasingly grown to reward city insiders. Mayor Lurie is leading a citywide coalition to make the system more accountable to everyday San Franciscans.

Clean Up City Hall is a package of Props A, D, E and F to improve neighborhood services, speed up permitting and reduce wasteful spending so we can invest in our great city.

PROP F TACKLES CITY HALL CORRUPTION.

The current system allows departments to operate as independent fiefdoms instead of coordinated parts of government. It protects the insiders instead of holding them accountable. Six department heads have been indicted or investigated for corruption in the last decade. The mayor can only hire and remove a handful of department heads when self-dealing is exposed or they fail to do their job.

CLEAR LINES OF ACCOUNTABILITY. Allowing the mayor to hire and remove most of their department heads will ensure city officials are accountable to the public.

BETTER ORGANIZED DEPARTMENTS FOR BETTER RESULTS. Better organized and more accountable departments will deliver faster permits, cleaner streets and projects done on time and on budget.

EXPOSES SELF-DEALING. "Departments that act as their own kingdoms are where corruption can grow. F makes it clear that every department head is ultimately accountable to the people of San Francisco" - Louise Renne, former San Francisco City Attorney & CA Deputy Attorney General

STRENGTHENS CHECKS AND BALANCES. The Board of Supervisors will still have oversight over city departments and a majority of the Board can reject any changes the mayor makes. Watchdog commissions like Ethics and police oversight remain fully independent.

San Francisco works best when we work in coalitions together. Please join the citywide coalition to make the system accountable to all!

Mayor Daniel Lurie
Board of Supervisors President Rafael Mandelman
Speaker Emerita Nancy Pelosi
Nancy Tung, San Francisco Democratic Party
Former Deputy City Attorney Jim Lazarus
SFSU Associate Professor of Political Science
Jason McDaniel
Former City Controller Ben Rosenfield
Former Fire Chief Joanne Hayes-White
Firefighters Local 798
SF Building Trades
Dan Calamuci, Carpenters Local 22*
Anthony Travis Jr., Laborers Local 261*
Charles Lavery, Operating Engineers Local 3*
Teamsters Local 665
Council of District Merchant Associations
Chinatown History and Culture Association

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Rebuttal to Proponent's Argument

NO ON F — FAILS TO SOLVE CORRUPTION. EMPOWERS BILLIONAIRES.

Proponents say they want to stop corruption. But if that's the assignment, Prop F gets an F. It concentrates power in the executive, stripping away checks and balances. That will only *enable* corruption - just look at Washington.

PROP F GIVES MAYORS SWEEPING NEW POWERS

to alter departments' core objectives, merge and eliminate departments without a single public hearing. Even if you trust this Mayor, Prop F puts this power in the hands of all future Mayors. A Mayor could also fire appointed commissioners without cause, undermining independent citizen oversight.

MAYORS CAN ALREADY EASILY REMOVE CORRUPT OFFICIALS.

They need only demonstrate misconduct or convince a majority of the Board of Supervisors. But Prop F lets the Mayor *unilaterally* remove public servants who've done nothing wrong. That's a recipe for politically-motivated removals of whistleblowers who would *expose* corruption.

BILLIONAIRES BACK PROP F FOR A REASON. Local tech billionaires spent over \$8 million to get Propositions D, E, and F on the ballot. The ultra-rich rarely bankroll campaigns out of the goodness of their hearts. Like the billionaires funding our President's White House ballroom, they expect something in return. Prop F makes the Mayor's office a one-stop shop for them to buy influence and override democratic input.

Prop F deserves a failing grade. Vote no.

Democratic Socialists of America - San Francisco

*Jackie Fielder, San Francisco Supervisor**

*Dean Preston, Former San Francisco Supervisor**

*Theresa Imperial, Former San Francisco Planning Commissioner**

*Sophia Andary, Commissioner, San Francisco Commission on the Status of Women**

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Opponent's Argument

The **Clean Up City Hall** campaign has spent over 4 million dollars to put 3 Charter measures on the ballot favoring the Mayor and wealthy corporate interests.

- These measures were never heard by the Board.
- 5 of 11 Board Supervisors have declined to endorse them.
- They had no public scrutiny and have had no cost analysis.
- These are NOT consensus measures

Prop F removes essential checks & balances. Today, the Board of Supervisors and Oversight Commissions have opportunities to hold public hearings and approve changes to department leadership, structure and spending. Checks and balances are essential to good governance and ensuring that the public has opportunities to give comment to substantial changes that will impact the delivery of services.

EVEN IF you do like **this** Mayor & trust **this** Mayor to have your interests in mind, you may not like or trust **the next** Mayor or the one after that.

And concentrating so much power in the hands of one person can lead to disastrous effects that parallel what we've seen in DC.

Simply put, Prop F goes too far.

- It allows the Mayor to remove Commissioners for any reason not just cause. Removing commissioner's ability to effectively question the policies and spending of the departments they're supposed to be overseeing.
- It allows the Mayor to hire and fire Department Heads without Commission hearings
- Even more problematic It allows the Mayor to re-arrange Departments, combining their staff – or eliminating Departments altogether. And the Board will then only have 60 days to object or the Mayor's changes go into effect without a single public hearing.

Vote No on F to keep essential checks and balances the Board of Supervisors and Oversight Commissions provide.

Small Business Forward

Rebuttal to Opponent's Argument

PROP F CAME FROM AN OPEN, COLLABORATIVE PROCESS. Mayor Lurie and Board President Mandelman convened San Francisco's first citywide Charter Reform Working Group in decades, followed by dozens of stakeholder meetings and labor negotiations leading to real compromise. The City Controller has completed a full cost analysis, and the citywide coalition of people across the political spectrum backing these common sense reforms is broad and growing.

CHECKS AND BALANCES STAY INTACT. Watchdog agencies like ethics and police oversight remain fully independent. No department functions can be eliminated without a vote of the people. The executive branch can only combine services where costly overlaps slow down city services, like Planning and DBI.

HOLDS DEPARTMENT HEADS ACCOUNTABLE. The system allows departments to operate as independent fiefdoms. Department heads have been indicted, and when self dealing is exposed, the mayor can't easily remove them.

COMMISSIONERS ANSWER TO THE PUBLIC.

Commission seats have long been handed out as rewards, with no accountability to voters. F doesn't eliminate a single commission, but lets the Mayor and Board remove commissioners who don't show up, don't do the work, or are corrupt.

F isn't about one person. It's about making government work for everyday people, no matter who holds office. The insiders are misleading because they are being challenged. They think the system works great. San Franciscans know the system is broken.

It's time for a change.

Mayor Daniel Lurie

Board of Supervisors President Rafael Mandelman

Former Controller Ben Rosenfield

Paid Arguments in Favor

Clear Accountability for City Government

San Francisco's Mayor is the city's chief executive but today directly appoints and removes only 6% of department heads. Responsibility is scattered across dozens of commissions and overlapping approval processes, making it nearly impossible for voters to know who is accountable when city government succeeds or fails.

This measure is drawn directly from SPUR's 2026 Charter for Change report and its 2024 Designed to Serve research — the product of SPUR's decades of nonpartisan work studying how San Francisco's city government actually functions, and how it can work better.

The measure gives the Mayor authority to appoint and remove most department heads, while preserving Board approval for the Controller, City Administrator, and Human Resources Director. It allows the Mayor to organize their office effectively, including using deputy mayors — a basic tool most big-city mayors already have. And it lets the Mayor propose reorganizing departments, subject to Board rejection within 60 days, so the government can adapt without a citywide election every time.

Critically, independent oversight is protected: the Ethics Commission, Elections Commission, Controller, City Administrator, Board of Appeals, Civil Service Commission, and elected officials like the City Attorney and District Attorney are all exempted.

When authority and accountability are aligned, voters can judge elected officials' performance at the ballot box. This measure ends the finger-pointing.

Vote YES.

Sean Elsbernd
President/CEO SPUR (www.spur.org)

The true source(s) of funds for the printing fee of this argument: SPUR.

GOOD GOVERNANCE LEADERS AGREE PROP F WILL IMPROVE ACCOUNTABILITY.

We've worked inside San Francisco's government, and we've seen the problem firsthand: departments that operate like independent fiefdoms instead of coordinated parts of one city government. When no one is clearly accountable, no one is truly responsible — and corruption grows in the gaps. Prop F fixes this broken system by letting the mayor hire and remove their own department heads, so corrupt or ineffective insiders answer to democratically elected leadership.

Importantly, Prop F doesn't concentrate power without checks. The Board of Supervisors can reject any reorganization proposed by the mayor. Independent watchdog commissions — Ethics, Elections, police oversight — stay exactly as independent as they are today. This is the kind of structural reform that good governance requires: clear lines of accountability, paired with real checks and balances. Vote Yes on Prop F for stronger accountability and better city services.

Former Controller Ben Rosenfield
Former Sheriff Vicki Hennessy
Former Director of SF Planning John Rahaim
Former Deputy City Attorney James Lazarus
Former Fire Chief Joanne Hayes-White

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

LABOR GROUPS SAY YES ON F FOR MORE ACCOUNTABILITY.

Working people show up and do the job every day — city government should be held to the same standard. Instead, San Francisco's departments too often fall short, yet never face real accountability. When departments fail without consequence, it's frontline workers and the public who pay the price through delayed projects, wasted public dollars, and services that don't work.

Prop F forces corrupt and ineffective department leadership to answer to democratically elected officials, not more city hall insiders. Accountable government means better-run departments, faster project delivery, and public dollars spent on real results instead of protecting insiders. Labor stands for accountability at every level: Vote Yes on Prop F for more responsible city government.

Firefighters 798
SF Building Trades
Teamsters Local 665
SEIU Local 87
Carpenters Local 22 Senior Field Representative
*Dan Calamuci**
Operating Engineers Local 3 District Representative
*Charles Lavery**
*Laborers Local 261 SF Liaison Anthony Travis Jr.**

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The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

SMALL AND BIG BUSINESSES URGE BETTER RESULTS THROUGH PROP F.

San Francisco's businesses know the frustration of dealing with a city government where departments act in silos with confusing and conflicting rules instead of as one coordinated city government. The lack of coordination and accountability costs businesses time and money, as permits stall and project costs balloon.

Prop F creates clear reporting lines, so leadership is accountable to voters instead of hidden from them. Accountable city government means faster permits, better-run departments, and a city that works better for the businesses trying to build, hire, and grow here. San Francisco's business community supports real accountability: Vote Yes on Prop F.

*Council of District Merchants Associations
SF Chamber of Commerce
Noe Valley Merchants and Professionals Association
Hotel Council*

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

CHINATOWN LEADERS URGE YES ON F TO END GOVERNMENT EXCUSES.

For too long, Chinatown and immigrant communities have dealt with a City Hall where government services fall short. Departments act in silos instead of coordinating and when something goes wrong, our community services suffer. Currently, the mayor cannot remove most department heads. That means the people responsible for delivering city services to Chinatown often face no consequences when they fail.

Prop F will ensure a more accountable city government with faster, better-run services for every neighborhood. Chinatown deserves a government that answers for its results without excuses. Vote Yes on Prop F for stronger accountability.

*Chinatown History and Culture Association
Eva Lee, SF Chinatown Merchants Association**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Clean Up City Hall, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Michael Moritz, 2. John Pritzker, 3. Chris Larsen.

Paid Arguments Against

Billionaires Buying “Unitary Executive” Mayor

When San Francisco voters rejected 2024's billionaire-backed “*Proposition D*” ballot measure, “*Proposition E*” created a “*Commission Streamlining Task Force*” Mayor Lurie and SPUR managed stacking with SPUR board members, including **Ed Harrington** and **Jean Fraser**. “*Prop. D's*” proposals included eliminating San Francisco's Health Commission!

The Task Force was hell bent on implementing Trump's “*unitary executive theory*.” It colluded, implementing SPUR's agenda to hand exclusive, greatly expanded “*strong-mayor*” powers to Lurie (see www.stoplhddownsize.com/Commission-Streamlining-Task-Force-Draft-2025-12-12-Meeting-Minutes-Sunshine.pdf).

The Task Force pressed further, despite San Franciscans' vigorous “**No Kings**” opposition, nationally or locally (see www.stoplhddownsize.com/Streamlining-Task-Force-Proposes-King-Mayor-Power-Grab.pdf).

“**Prop. F**” would allow Lurie to reorganize executive branch departments — with 15 exceptions, plus **not** departments headed by elected officials. He could transfer powers and functions, consolidate one or more departments under a single department head, and assign transferred functions to different oversight commissions. Lurie **could** consolidate or eliminate the Police and Fire Departments; Mayor's Office of Housing and Community Development; **Rent Board**; Human Services Agency; Human Rights Commission; **Public Health**, Planning, Environment, and Disability and Aging Services departments; and others.

Like Trump, renaming the “*Defense Department*” to “*War Department*,” and emasculating the CFPB?

“**Prop. F**” allows Lurie to hire four or more “**Deputy Mayors**” — averaging \$250,000 salaries each, excluding fringe benefits — which voters banned 35 years ago, rejecting “**Prop. H**” in 1991. Lurie wants Mayoral staff raises, too.

“**Prop. F**” strips Commission's from developing three-nominee “*short lists*” to hire their respective Department Heads, and expands the Mayor's sole authority to hire and fire them without Board or Commission involvement.

It also would authorize appointing authorities — Lurie, District Supervisors — to remove their appointees to most boards and commissions **without cause**, essentially “**at-will**” appointments.

**Stop these billionaires: No “Unitary Executives.”
No Kings!**

**Vote “No” on Propositions “F” — and “A,” “D,”
and “E,” too!**

Patrick Monette-Shaw
*Columnist, Westside Observer**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Patrick Monette-Shaw.

*Chris Arvin, Chair, SFMTA Citizens’ Advisory Council**
*Austin Milford-Rosales, Member, SFCTA Community
Advisory Committee**

*Jaime Viloria, Outreach Manager, San Francisco
Transit Riders**

Aditya Bhumbra

Al Hawley

Jessica Jenkins

Maureen Persico

Scott Feeney

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: Scott Feeney, Chris Arvin, Jessica Jenkins.

Street Safety Advocates Say No on F! Don’t Let Politics Block Lifesaving Progress

Since 2014, over 350 people have been killed in crashes on San Francisco’s streets. A woman hit by a truck on Market Street on August 7 marked the seventeenth tragic death this year alone.

We can fix our streets and save lives. Through the SFMTA’s Quick Build program, improvements like new lighting, new traffic signals, new crosswalks, and road diets have kept traffic flowing while making city streets safer.

Prop F threatens that progress.

Prop F politicizes the SFMTA Board, which must approve street projects. With Prop F, a mayor could remove a board member without cause — for any reason.

Special interests who oppose street safety improvements can and will exploit this. One phone call to the mayor’s office could halt lifesaving fixes on our streets. Even a mayor who wants to promote safety will be under pressure to fold.

As neighborhood advocates, we know San Franciscans want safer streets. When done thoughtfully, street projects enjoy widespread support in our communities. But we’ve also seen unrepresentative opposition, from a connected few, block improvements most neighbors want. **Prop F makes this problem far worse.**

Voters have already rejected political meddling in our streets. Approved in a landslide, 1999’s Prop E deliberately structured the SFMTA Board to be independent of City Hall bickering. Prop F reneges on that deal.

We cannot afford to go back to letting politics block lifesaving improvements on our streets. **Vote No on F.**

San Francisco Elections: Safe and Secure

To learn about how the Department of Elections ensures security and integrity of local elections, please visit **sfelections.gov/security** or contact us.



There are a number of things you can do to help protect the integrity of our elections! Here are some suggestions to help you get started:

- ✓ Check your voter registration record regularly to make sure all information, including your address, is correct and update it as necessary;
- ✓ Subscribe to our official news, updates, and notices at **sfelections.gov/trustedinfo**;
- ✓ Follow us on social media (@SFElections);
- ✓ Report misinformation, questionable claims, or suspicious activity, such as fraud, corruption, or tampering, to any of the following:
 - Our office: **(415) 558-6100** or **sfvote@sfgov.org**
 - San Francisco District Attorney: **(628) 652-4311**
 - California Secretary of State: **(800) 345-8683** or **VoteSure@sos.ca.gov**

G – Allowing Private Vehicles on the Upper Great Highway in Sunset Dunes Park

Shall the City close Sunset Dunes Park from Monday at 4:00 a.m. through Friday at 6:00 p.m., unless a holiday falls on a weekday, in order to reopen the roadway known as the Upper Great Highway to private vehicles during that time?

YES ☐

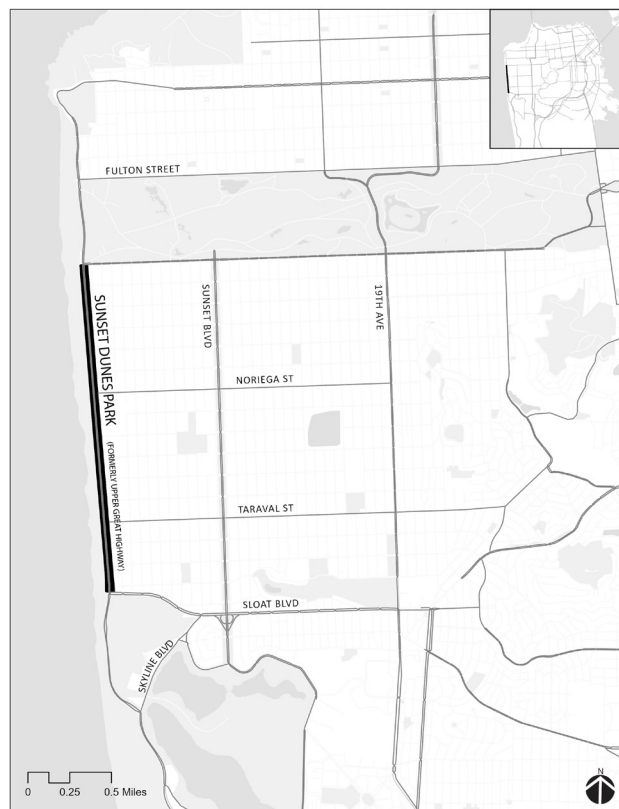
NO ☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: Sunset Dunes Park is an open recreational space that replaced the Great Highway between Lincoln Way and Sloat Boulevard (Upper Great Highway) and is closed to private vehicles at all times.

Sunset Dunes Park (former Upper Great Highway) is open to emergency vehicles, official government vehicles, intra-park transit shuttle buses, and similar authorized vehicles.



Map provided by San Francisco Recreation and Park Department.

The Proposal: Proposition G would close Sunset Dunes Park from Monday at 4:00 a.m. through Friday at 6:00 p.m., unless a holiday falls on a weekday, in order to reopen the roadway known as the Upper Great Highway to private vehicles during that time.

The Upper Great Highway will remain open to emergency vehicles, official government vehicles, intra-park transit shuttle buses, and similar authorized vehicles.

Proposition G would require the City to obtain all necessary approvals, including any permits required by the California Coastal Act or from other government agencies, to reopen the roadway known as the Upper Great Highway to private vehicles.

A “YES” Vote Means: If you vote “yes,” you want to close Sunset Dunes Park from Monday at 4:00 a.m. through Friday at 6:00 p.m., unless a holiday falls on a weekday, in order to reopen the roadway known as the Upper Great Highway to private vehicles during that time.

A “NO” Vote Means: If you vote “no,” you do not want the City to make these changes.

Controller’s Statement on “G”

Deputy City Controller ChiaYu Ma has issued the following statement on the fiscal impact of Proposition G:

Should the proposed Ordinance be approved by the voters and the roadway is open to private vehicles, in my opinion, it would significantly increase the cost of government by approximately \$9.8 million in one-time capital costs and by approximately \$500,000 to \$1.9 million annually. The cost of the proposed Ordinance, should it be approved

by the voters, is dependent on decisions that the Mayor and Board of Supervisors make through the budget process and operational decisions made by departments, as an ordinance cannot bind future Mayors and Boards of Supervisors to provide funding for this or any other purpose.

The proposed initiative ordinance would amend the Park Code to restrict private vehicles on the Upper Great Highway between Lincoln Way and Sloat Boulevard from Friday at 6:00 PM until Monday at 4:00 AM and on holidays.

Depending on future operational decisions made by City departments, the proposed Ordinance could result in annual cost increases ranging from \$500,000 to \$1.9 million. This includes traffic signal maintenance costs, annualized roadway maintenance and replacement costs, and an additional cost for sand removal and dune reshaping. The sand removal and dune reshaping would cost approximately \$100,000 and \$1.5 million more each year, which represents an increase over current levels of service. Sand removal costs are highly dependent on the defined level of service, weather conditions and funding availability, which results in a wide range of potential costs. For context, sand removal and dune reshaping for Sunset Dunes Park was approximately \$290,000 in FY 2024-2025 and \$330,000 in FY 2025-2026. In prior years when the roadway was open to vehicles on weekdays, actual expenditures for sand removal and dune reshaping was approximately \$860,000 in FY 2022-2023 and \$420,000 in FY 2023-2024. The proposed Ordinance would also result in decreased staffing needs and maintenance of Sunset Dunes Park as a park during weekdays, reducing costs and freeing staff to work on other functions. For context, staffing at Sunset Dunes Park costs approximately \$300,000 annually for 1.5 full-time-equivalent positions.

Additionally, the proposed Ordinance would likely result in increased, one-time capital project costs of approximately \$9.8 million. This would include approximately \$750,000 to remove existing park elements and restore roadway segments, \$8.8 million in new traffic signals at 8 intersections, and \$200,000 for temporary and permanent restriping and signage. A full signal upgrade would be necessary approximately every 30 years. Installation of signals at the intersection of the Upper Great Highway and Sloat Boulevard would result in changes to the Ocean Beach Climate Change Adaptation Project, which could result in additional project costs for redesigning elements of the planned plaza.

Finally, the proposed Ordinance would require a coastal development permit. Applying for the coastal development permit may prompt additional requirements, including studies or permit conditions, that may increase the cost of government, although at a level that cannot be determined at this time.

How “G” Got on the Ballot

On July 23, 2026, the Department of Elections certified that the initiative petition calling for Proposition G to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

10,615 signatures were required to place an initiative ordinance on the ballot. This number is equal to 2% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

Proponent's Argument

Yes on G: Safe streets *and* great parks. We need both.

Since the Great Highway closed, traffic injuries in Sunset neighborhoods have risen sharply – a serious and unacceptable threat to public safety.

That's why Westside neighbors led a citywide volunteer effort to gather 16,000 signatures and place Proposition G on the ballot. We support great parks, but Prop G gives us both a great park **AND** the safe streets and neighborhoods our families deserve.

Yes on G restores the compromise in place from 2021 to 2024: it keeps the Great Highway closed on weekends, allowing access to it as a park, but opens it to vehicle travel Monday through Friday.

This compromise was working until Sunset Supervisor Joel Engardio, without a single community meeting, put forward a measure permanently closing the Great Highway. His betrayal of Sunset families cost him his job – he was recalled through a volunteer-led neighborhood campaign.

Prop G gives us both safe streets **AND** a great park:

- **Allows weekday vehicle** access on the Great Highway, helping keep traffic off neighborhood streets.
- **Maintains the whole space as a park** on weekends and holidays.
- **Retains access to walking paths**, bike lanes, and all off-road amenities, every day of the week.

Every San Franciscan deserves safe streets, whether they're walking, biking, taking Muni, or driving. We do not have to choose between great recreational spaces and public safety. We need both. Great public spaces should bring our city together, not create harmful consequences for our communities.

Great parks make our city better. Safe streets save lives. Prop G gives us both. And when safety is at stake, we have a duty to respond.

Vote Yes on Prop G.

Richard Corriea, SFPD Commander Ret.

Rebuttal to Proponent's Argument

As Sunset neighbors and merchants, we ask you to vote NO on closing Sunset Dunes park. Don't spend \$20 million over five years to close our thriving coastal park.

- **Our streets are safer with Sunset Dunes.** Analyzing public data, independent sources like The Frisc and Streetsblog agree: crashes in our neighborhood are down since the park opened. *The Frisc* confirms: "there's no evidence of increased street mayhem around the closed Great Highway. In fact, it's the opposite."
- **Prop G is a park closure, not a compromise.** Prop G removes every park feature added since Sunset Dunes opened — the playground, the skate park, and every bench. It also kills a majority of park visits, as nearly 60% happen on weekdays. That's not a compromise — it's a closure. A closed road is not a park, and can never become a world-class coastal promenade.
- **Traffic is flowing fine.** Data also show that commute times remain within prior projections. The most impacted trips are 2-4 minutes longer during rush hour, while most trips are unaffected.
- **The park is good for our community.** Sunset Dunes became our neighborhood's town square and has boosted local business revenue — some up to 50%.
- **The coast belongs to you.** Our city's coast belongs to all San Franciscans, not just the lucky few who live near it. Sunset Dunes opens our coast for everyone to enjoy.

Thank you for voting **NO on G** to save Sunset Dunes park. See you at the park!

*Outer Sunset Neighbors
Sunset Merchants Association
Sunset Parent Advocates*

Opponent's Argument

Proposition G would destroy Sunset Dunes park
In San Francisco, we don't destroy our parks; we protect them. With over 2 million visits since last year's opening, Sunset Dunes is **one of San Francisco's most visited parks.**

Proposition G asks you to **spend nearly \$10 million to demolish a coastal park** (plus up to \$1.9 million every year for added roadway maintenance), to remove all amenities, and to end the nearly 60% of visits that are on weekdays.

Please join us in voting **NO on G** to save our coastal park because:

- **Proposition G destroys a thriving park.** Proposition G would require the city to **remove all park features** to make space for traffic. That means no more playground, skate park, or oceanview seating. No more park.
- **Proposition G guts the majority of park visits.** Nearly 60% of visits to Sunset Dunes are on weekdays. Proposition G would remove all of those visits and prevent service workers who work weekends from using the park at all.
- **Proposition G is a solution in search of a problem.** Traffic fears have not materialized; three independent analyses confirm traffic impacts are minimal. The most impacted trips are 2-4 minutes longer during rush hour, with most trips unaffected.
- **Proposition G replaces progress with pollution.** San Francisco's leading environmental groups are united: Sunset Dunes is the best plan for our coastal environment as we adapt to climate change and sea-level rise.
- **Proposition G locks our coast into being a road forever.** Community planning is underway to transform the coast into a world-class park, but Proposition G kills all future park improvements.

How will future generations judge us if we destroy our successful coastal park?

Join us in voting NO on Proposition G.

Senator Scott Wiener
 Supervisor Matt Dorsey
 Supervisor Bilal Mahmood
 Supervisor Rafael Mandelman
 Supervisor Myrna Melgar
 Supervisor Danny Sauter
 Sierra Club

Rebuttal to Opponent's Argument

Scott Wiener turns his back on serious safety concerns.
Why? He's ABSENT from the Westside.

Scott Wiener was part of the backroom deal that closed the Great Highway without community meetings or input from neighbors.

Now, Wiener turns his nose up once again at Westside residents concerned for the safety of our children, elders, and families.

Wiener calls the sharp rise in traffic injuries since the Great Highway closed "minimal." That can only be because Scott Wiener doesn't walk our streets and neighborhoods.

More than 16,000 San Franciscans signed the petition to put Prop G on the ballot. We organized because City Hall refused to listen. We believe Prop G is a sensible solution that gives San Francisco both great parks AND safe streets.

Prop G gives us:

- **Recreation seven days a week.** Walking paths, bike lanes, the beach, and other amenities remain available every day.
- **Weekday vehicle access** that helps keep traffic off our neighborhood streets.
- **A car-free park on weekends and holidays.**

Prop G doesn't "destroy" a park. It gives us both.

We had a compromise that worked. Out-of-touch politicians took it away. Prop G gives it back.

Our safety cannot be ignored. Vote Yes on Prop G.

Richard Corriea, SFPD Commander Ret.

Paid Arguments in Favor

Is it fair for people from one neighborhood to deprive another neighborhood of a key artery? To close a major roadway against the wishes of the great majority of its residents? A roadway used by school buses, Paratransit, commuters, tourists, and residents from other parts of the City?

Some would say that it IS fair for people outside the Sunset and Richmond Districts to close their principal thoroughfare, because the Great Highway doesn't belong to them alone, but belongs to everyone.

Well, that's precisely the point. The Great Highway belongs to everyone — not just bicyclists, skateboarders, and health-conscious people.

Every true liberal believes in diversity, equity and inclusion. But the permanent closure of the Great Highway creates no diversity of use; no equity for local residents; and no inclusion of the disabled, who best enjoy the scenic view as passengers.

Currently, it's only accessible to a limited segment of the population. For everyone else: KEEP OUT.

It discriminates against the frail and physically disabled; against locals who can no longer easily cross the City N—S. Most of all, it discriminates against every San Francisco resident who might enjoy a scenic drive along the Pacific Ocean, on their own or with out-of-town visitors.

The opponents of Proposition G want the Great Highway all to themselves. Yet it remains woefully underused Mon—Fri; and is practically devoid of people on rainy days.

Proposition G doesn't eliminate Sunset Dunes Park. It merely seeks full utilization (multi-use, Mon—Fri) of a key thoroughfare lying atop the Westside Transport sewage aqueduct (which must be maintained regardless).

When Prop K was introduced, it was framed as “Park = Good”, voters not fully aware of the high cost in lost use for locals and visitors alike.

Proposition G aims to remedy this imbalance by restoring the optimal use of the Great Highway for the common good.

J. Gregson

The true source(s) of funds for the printing fee of this argument: John Gregson.

Supervisor Alan Wong: Prop G Makes Transit More Efficient

Closing the Great Highway did not make traffic disappear. It simply pushed traffic onto other streets, including residential streets never designed to carry the same volume of vehicles.

For Westside residents, these consequences affect everyday life. Trips that once moved efficiently along the Great Highway are now diverted through slower neighborhood streets with more stops, intersections, and turns. Residents spend more time getting to work, taking their children to school, reaching medical appointments, and traveling across the Westside.

Slower, less direct routes have environmental consequences. Vehicles travel farther and spend more time stopping, idling, and accelerating. That means additional vehicle miles traveled and emissions in residential neighborhoods. Closing the Great Highway did not eliminate these trips; it made them slower, less direct, and more disruptive.

Recreation and transportation already existed side by side along our coast. Ocean Beach and the recreational trail provided substantial opportunities for walking, biking, and enjoying the coast. San Francisco also has an extensive network of parks and open spaces. Permanently removing a useful transportation corridor comes with a real tradeoff when recreational opportunities already exist alongside it.

The previous compromise offered a *practical balance*: weekday vehicle access while maintaining recreational use at other times. **And it worked.**

Good transportation policy should improve the network as a whole, not simply relocate congestion. Returning to a practical compromise would restore an important transportation connection, reduce unnecessary traffic on residential streets, shorten trips, and better balance mobility, recreation, and quality of life for Westside residents.

Prop G makes our transportation system more efficient.

Vote Yes on Prop G

Supervisor Alan Wong

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

Prop G Means Safe, Connected Neighborhoods for Chinese American Families

Chinese American families have built strong communities across San Francisco, especially on the Westside. We raise our children here, care for our parents and grandparents, run small businesses, and contribute to the neighborhoods we call home.

Our families need neighborhoods that are both safe and connected.

For many Chinese American families, daily life crosses neighborhoods and generations. We travel for school, work, medical appointments, childcare, and to care for aging parents.

These concerns extend beyond our community. **Families across San Francisco depend on safe streets and reliable connections between our neighborhoods.**

The permanent closure of the Great Highway has made these everyday responsibilities harder while increasing traffic on neighborhood streets.

We already had a compromise that worked. We should return to a solution that recognizes the needs of Chinese American families and the broader communities we live, work, and build relationships with every day.

Safe streets. Connected neighborhoods. A solution that works for everyone.

Vote Yes on Prop G.

Chinese American Democratic Club

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

BEFORE CITY HALL TELLS YOU WHAT IT COSTS TO REOPEN THE GREAT HIGHWAY, ASK WHAT IT COST TO CLOSE IT.

Opponents cite a **\$9.8 million** reopening price tag.

But the Controller says **\$8.8 million of that is for traffic signals at eight intersections** – not removing the park. Just \$750,000 is estimated for changes to some park elements and restoring roadway segments.

And permanent closure wasn't free.

Taxpayers have paid to redirect traffic and adapt surrounding infrastructure while continuing to maintain and operate the corridor.

Even the Controller acknowledges reopening would reduce weekday park staffing and maintenance needs, including approximately **\$300,000 in annual staffing costs.**

Taxpayers deserve the whole ledger – not a \$10 million headline.

Prop G makes better use of infrastructure taxpayers already own: **a park on weekends and holidays, a roadway on weekdays.**

Use what we own. Restore the compromise. YES on G.

SF Taxpayers Association

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

Richmond District Residents say Vote Yes on Prop G

When Proposition K (2024) was placed on the ballot, it was done without any regard for our neighborhood's input and still remains disruptive for us after its passage.

The Richmond District, which has less rapid and high-capacity public transit, has experienced firsthand the effects of this closure. We have witnessed increased traffic along residential streets and the Chain of Lakes Drive and longer commuter delays during rush hour. For parents trying to get their children to school or residents trying to get to work on time, losing this vital route has made the average daily trip more difficult.

For east side residents, imagine if the Embarcadero, Mission Street, or 3rd Street was suddenly shut down to create a park without your input and it inevitably caused more congestion to your daily commute.

For the Richmond District, this is our reality.

We urge you to restore the compromise to let everyone enjoy the park on weekends while allowing for our neighbors to get to work and school with ease again during the weekdays.

Vote Yes on Proposition G!

*Brian Kragh, Richmond District Democratic Club
Sandra Fewer, Former Supervisor*

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

WE DON'T HAVE TO CHOOSE BETWEEN A GREAT PARK AND SAFE STREETS.

Prop G restores the compromise that already worked: **a car-free Great Highway on weekends and holidays, and weekday access for people getting to work, school, appointments and back home.**

Before permanent closure, approximately **10,000 people enjoyed the Great Highway each weekend while 14,000–20,000 vehicles used it each weekday.**

Now, weekday traffic is pushed onto neighborhood streets and through Golden Gate Park.

That's not balance. And it isn't good governance.

Keep recreation when people enjoy it most. Put weekday traffic back on the road built to carry it.

We had a solution that worked. Let's restore it.

Safe streets. A great park. A sensible compromise.

YES on G.

Quentin Kopp, Retired Judge, Former State Senator and Supervisor

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

Scott Wiener Turned His Back on Our Communities. Prop G Puts Us First.

Scott Wiener took away a compromise that worked for our communities. His one-size-fits-all vision ignores how people actually live and travel.

A city has to function. Public infrastructure should serve the public. We should not force everyone into one way of getting around when our communities have different needs.

As our city adds new housing and welcomes more residents, we need transportation infrastructure that can keep up. Yet we continue closing and narrowing streets, forcing more traffic onto fewer routes. That isn't a plan for a functioning city.

Closing the Great Highway adds to that burden, pushing more traffic onto neighborhood streets, 19th Avenue, Sunset Boulevard, and through Golden Gate Park.

Prop G is better planning: balancing recreation, transportation, and the needs of a growing city.

Politicians shouldn't tell our communities what works when their plans keep failing us.

Prop G makes our city work for everyone. Vote YES on Prop G.

*Albert Chow
Owner, Great Wall Hardware*

The true source(s) of funds for the printing fee of this argument: Albert Chow.

VOTE YES ON PROP G – It will NOT close Sunset Dunes Park

Voting "Yes" Will Not Close Sunset Dunes Park

Voting "yes" for the compromise to allow shared weekday access to private vehicles on the existing 2-mile roadway within the 50 acres of Sunset Dunes Park will NOT CLOSE Sunset Dunes Park. Bicyclists have always had safe 24/7 access whether or not private vehicles shared the road.

Sunset Dunes Park includes a paved 10' wide 2-mile long pedestrian path for walking or rolling, a jogging path, landscaping, many water fountains, park benches, and 2 bathrooms on the east side of the roadway. These amenities have always been there and will remain. A seawall, 5 blocks long with a paved promenade, benches and steps to Ocean Beach exists within Sunset Dunes Park's western border.

Sand maintenance is regularly occurring to keep what once was the Upper Great Highway open for use by City and emergency vehicles 24/7; therefore, a new road will not need to be built, financed or require extra upkeep. The entire park surrounding it will remain open to all, every single day, and car-free on all weekends and holidays. These are the Real Facts.

Please vote YES on G to implement a fair and equitable compromise.

Stephen J. Gorski, Esq.

The true source(s) of funds for the printing fee of this argument: Stephen J. Gorski.

Broken Promises: Sunset Dunes Has Failed Disabled Residents

As a disabled resident, I was told closing the Great Highway would create a park that was safer and more accessible for people with disabilities.

That promise was never fulfilled.

For 10 blocks along the Lower Great Highway between Judah and Taraval, there is not one ADA-compliant point of access to Sunset Dunes from the Lower Great Highway. Instead, steep inclines prevent most disabled people access, and all the asphalt ramps are in terrible condition—cracked, bumpy, uneven, covered in dirt and sand, highly dangerous to wheelchairs, walkers, and anyone unsteady on their feet.

We now have a permanently closed park, but extremely limited parking access for the disabled. Some need to be in their cars for safety, and weekday access is needed for the VA hospital.

We deserve the opportunity to experience our beautiful coast from the safety of our vehicles. A **permanently** closed highway that ignores the various needs of the disabled must be replaced with the Prop G compromise that provides it.

Prop G delivers real access for people with different abilities and different mobility needs.

Disabled residents were promised better access. We are still waiting.

Prop G restores our access.

Vote Yes on Prop G.

*Patricia Arack
Disabled D4 Resident
Retired Faculty, CCSF*

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

Supporting Our Parks Means Supporting Prop G

I spent my career caring for San Francisco's parks. I believe every neighborhood deserves parks that are properly maintained and thoughtfully invested in.

Prop G is the right investment for Sunset Dunes. It gives San Franciscans recreational space on weekends and holidays while allowing the Great Highway to serve our transportation needs during the week.

That's a responsible use of public space and limited park resources, and it allows us to continue investing in the neighborhood parks San Franciscans rely on every day. All of our parks deserve thoughtful investment and responsible stewardship.

Vote Yes on Prop G.

*Shawna McGrew
Retired Rec and Park Principal Supervisor, Sunset District*

The true source(s) of funds for the printing fee of this argument: Shawna McGrew.

Vote YES on Proposition G: The Compromise Worked

San Francisco does not have to choose between safe streets and great parks. Proposition G gives us both.

Vote YES to restore shared access to the Great Highway, open to everyone on weekdays for commuting, school drop-offs, work trips, and emergency access, while remaining closed on weekends and holidays with a focus on recreation.

This is the compromise San Franciscans have already experienced and supported. It recognizes that the two-mile Great Highway within the 50-acre Sunset Dunes Park is both a transportation corridor and a valuable recreational space.

Families, workers, seniors, people with disabilities, cyclists, pedestrians, and drivers all deserve access to public land. Permanent closure forces everyday trips onto already-congested neighborhood streets and creates longer, more difficult commutes.

Proposition G provides a practical alternative: share the road instead of forcing San Franciscans to choose sides.

Our public spaces belong to everyone, not just one group.

Proposition G is not about putting cars before parks. It is about access, fairness, mobility, and compromise. We can protect recreation on weekends while preserving a vital north-south route during the workweek.

After years of division, San Francisco deserves a solution that brings people together.

Vote YES on Proposition G.

Share the Great Highway. Keep the park. Keep San Francisco moving.

*Selena Chu
Sunset resident, working mom, and SFUSD graduate.*

The true source(s) of funds for the printing fee of this argument: Wei Selena Chu.

Sunset and Richmond residents need practical access to work, schools, medical care, and essential services. Closing the Great Highway full time has made daily life harder for west-side neighborhoods already underserved by transit.

Prop G offers a fair balance: reopen the road to vehicles on weekdays and preserve recreational use on weekends. Sunset Dunes would remain open for people to walk, bike, and enjoy the coast.

This is not about choosing cars over parks. It is about sharing public space fairly.

Before the closure, 14,000 to 20,000 cars used this road each day—about 6.2 million trips a year. That is not an underused road. It is a vital artery.

A raised biking and walking path already runs along the eastern side, with ocean views and 24/7 access. Weekday roadway access would not take away the coast—it would restore fairness.

In 2024, nearly two-third of westside residents voted to keep the road open because they depend on it.

Citywide voters now have a second chance to listen to the neighborhoods most affected and choose a compromise that we had previously and works for everyone.

Imagine closing Marina Boulevard or the Embarcadero and telling nearby residents to simply adjust. Westside families deserve the same consideration, especially as affordable housing grows and more residents rely on safe, reliable, and dependable access.

Help your neighbors. Share the space. Restore weekday access.

Vote YES on Prop G.

John M. Lee
Real Estate Broker
Commissioner – Assessment Appeals Board

The true source(s) of funds for the printing fee of this argument: John M. Lee.

CONSIDER OUR VETERANS. VOTE YES ON G.

The Veterans Administration Hospital in the Outer Richmond serves 95,000 veteran patients yearly. It has 3,500 employees and 350 volunteers and is open 24 hours a day.

Thousands of patients and workers come from throughout San Francisco and beyond to reach the VA Hospital. They deserve a direct and reliable way to get there.

For years, the Great Highway helped veterans, workers, families, and residents get to health care, work, school, and their weekday responsibilities.

After the full closure created problems for commuters and nearby residents, San Francisco found a compromise that worked: vehicle access on weekdays and recreational use on weekends and holidays. The City planned to monitor traffic on the Great Highway and neighboring streets, study the impacts, and engage the community.

That compromise recognized that both uses mattered. Veterans and other commuters had weekday access, nearby neighborhoods were not asked to absorb all of the displaced traffic, and San Franciscans could enjoy the roadway recreationally on weekends and holidays.

Recreational access never disappeared. The paved bicycle and walking path and hard-packed sand jogging path remained available throughout the week.

Today, closing the Great Highway forces veterans and VA workers to stop and go through the Outer Sunset while diverting traffic onto neighborhood streets, bringing more congestion, noise, pollution, and safety concerns to nearby families.

We should not make it harder for veterans to reach their health care when a practical alternative already worked.

Prop G brings back that balance.

SUPPORT OUR VETERANS. VOTE YES ON G.

Tomasita Medál
Access Advocate

The true source(s) of funds for the printing fee of this argument: Tomasita Medál.

Prop G is the People Taking Back Power

To those confused: I say, if I (being a tech-bro or developer) were to throw sand in your face while trying to steal your wallet “Sunset Dunes” is the perfect scheme. The sand (distraction) is the unprecedented and unnecessary road closure that has been fabricated into “Sunset Dunes”.

Your wallet, is what you call home, what working families (be they rent or own) are grasping on to for dear life as they try and make this society work for themselves. And yes, the ultra-wealthy want you gone so they can develop and move their developer-friends’ “legacies” to the 1%.

What they did to SOMA was not enough, and in the name of “affordable housing” they intended to divide and conquer the working people into ruin.

Measure G is reasserting the communal agreement forged in compromise, a return to respecting the voices of neighborhoods, working people over big-money politics and obfuscations: yes, we see you, and no we won’t tolerate it!

Vote yes on Measure G for a future, take back your power!

Kenneth D. Lustenberger
Union Activist and Communal Advocate

The true source(s) of funds for the printing fee of this argument: Kenneth D. Lustenberger.

Restore Balance and True Coastal Access for All

Safe streets and great coastal parks don’t have to compete.

Proposition G restores a smart solution where recreation and transportation coexist: a car-free coastal promenade on weekends and holidays, and weekday vehicle access that helps keep traffic off neighborhood streets.

True “Access for All”

Real coastal accessibility must serve everyone, not just those who can stroll on a Tuesday morning. A 24/7 closure excludes people who rely on vehicles, while Prop G preserves recreation and restores weekday access for working parents, seniors, residents with disabilities, and families traveling to school and medical care.

Real Environmental Action

Protecting our coast requires realistic planning. Diverting thousands of vehicles from an established route onto residential streets creates congestion, idling cars, and neighborhood pollution. Prop G keeps weekday traffic moving on its intended route while protecting access to our coast.

Economic Vitality for Our Neighborhoods

A thriving Westside needs year-round economic vitality. Prop G welcomes weekend park visitors while ensuring shoppers, deliveries, and local customers can reach our commercial corridors during the week.

Community Unity Over Special Interests

When City Hall failed to listen to impacted neighborhoods, nearly 16,000 San Franciscans signed the petition to put Prop G on the ballot. **This campaign came from our communities, not special interests.**

Prop G isn't about choosing between open space and transportation. **It is about restoring a sensible compromise that serves more San Franciscans.**

Vote YES on Proposition G!

Wendy Liu
Westside Resident & Mother

The true source(s) of funds for the printing fee of this argument: Lauren Kerins.

**HAZARDOUS, UNPLANNED ROAD CLOSURE
ENDANGERS WESTSIDE WORKING FAMILIES**

Our opponent's arguments dismiss Westside residents' traffic concerns, citing a July 25, 2025, SF Chronicle article which concluded that post-closure commutes are only 1 to 11 minutes longer. That study was based on average daily traffic flow data prior to the March 2025 Great Highway closure (31 days) compared with 18 days after (which included a portion of SFUSD Spring break). Maybe not the most unbiased approach.

Nearly 2 years later, are there new traffic impact studies? NO.

Why not? So that voters won't know the real truth.

Average travel times don't capture the increasingly fragile road network's inability to safely convey 70,000 cars daily on 19th Ave (each way). Massive jams are happening more frequently. An accident at Cross-over Drive can result in a traumatic extra hour to your ETA.

What happens then? Frustrated drivers bail out to speed through residential streets, often causing hit-n-runs accidents as well as pedestrian and bicycle collisions.

Is your stroll by the beach worth the increased risk to our neighborhood kids biking and walking to school???

LET'S RETURN TO THE COMPROMISE, IMPROVE ROAD AND TRANSIT OPTIONS, THEN WE CAN BRING BACK SUNSET DUNES.

VOTE YES ON G

Heather Davies, former Disaster Recovery Program Manager

The true source(s) of funds for the printing fee of this argument: Heather Davies.

Vote Yes on G: The Numbers Tell a Different Story

We've been told that allowing weekday vehicle access on the Great Highway will lead to higher sand removal costs. **But Public Works' own records tell a different story.**

Records obtained through a Sunshine request show that from 2011 through 2025, sand removal expenses between Lincoln Way and Sloat Boulevard were less than \$400,000 per year.

Now, with the Great Highway closed to vehicles 24/7, costs are going up, not down. In just the first six months of 2026, sand removal cost \$281,785. If that pace continues, **2026 will exceed \$500,000, the most expensive year for sand removal, without cars on the road.**

Since the 24/7 closure, the frequency of sand removal has doubled, from twice monthly to weekly. It is more labor-intensive, requiring hand-shoveling around structures to move sand where heavy equipment can reach it.

And sand removal isn't the only expense. The 24/7 closure has changed how people access the dunes. Without traffic and pedestrian signals directing people to designated crossings, increased foot traffic over fragile dunes damages native plants, worsens erosion, and increases the need for costly dune reshaping.

Protecting our natural beach environment protects taxpayers too. When dunes are protected from

unnecessary damage and allowed to flourish, costly reshaping can be reduced or avoided.

Don't let claims about sand removal costs determine your vote without looking at the actual numbers.

Vote Yes on Prop G.

Judith A. Gorski
Ocean Beach Resident

The true source(s) of funds for the printing fee of this argument: Great Highway for Everyone.

The three largest contributors to the true source recipient committee: 1. Lisa Arjes, 2. Selena Chu, 3. William O'Keefe.

Yes on G: A Compromise is Common Sense

On a recent trip to Boston, I found myself near the Charles River in Back Bay, on a dirt path shared by bikers, joggers, and pedestrians.

A few meters away was a busy commuting expressway.

It was a beautiful summer day enjoyed by everyone.

As I stood there in the tranquility of a bustling city, I couldn't help but imagine a politician deciding the space for pedestrians and bikers was not enough and closing the motorway to make even more room for them. How inconceivable that would be. I just hope, for the sake of the fine people of Boston, Joel Engardio does not decide to move there!

If there was ever an example of "fixing" a problem that isn't broken, it is the decision to close the Great Highway.

I have used this area since 1977, when we moved here from Zimbabwe. I have biked, jogged, walked my dogs, and commuted on this strip, enjoying all it has to offer.

The closure not only affects Westside residents, but disrupts commutes for working families up and down the coast, from Pacifica to Marin County.

Joggers and pedestrians have always had access along both northbound and southbound paths, while those adventurous enough could enjoy the beach.

I would think most avid bikers would prefer riding alongside the car commute rather than dodging pedestrians as they do now.

I don't think voters in one part of the City should make decisions that negatively affect another. But here we are.

The balance and quality of life for many on the Westside is in your hands. I hope voters understand what is at stake, show some empathy, and vote YES on Proposition G.

Together, let's take a step towards common sense.

Sarkis Sarkissian
Small Business Owner

The true source(s) of funds for the printing fee of this argument: Sarkis Sarkissian.

Paid Arguments Against

An Expensive Step Backward for San Francisco's Coast

Voters already settled this. In November 2024, 55% of San Francisco approved Proposition K, permanently protecting Sunset Dunes park as open space and closing the former Upper Great Highway to cars. This measure would undo that decision and bring an end to a beloved park.

San Francisco didn't stumble into this park by accident. In 2012, SPUR published the Ocean Beach Master Plan, the first comprehensive vision for removing cars from this stretch of coastline and restoring it for people and coastal resilience. For more than a decade, SPUR has led the public process — with the National Park Service, the SFPUC, and the State Coastal Conservancy — that made Sunset Dunes park possible.

It's also a bad deal for taxpayers. This eroding roadway closed unpredictably up to 65 days a year before Prop K, costing hundreds of thousands of dollars annually. Bringing it back would add \$500,000–\$1,900,000 a year in ongoing maintenance costs, plus \$9.8 million to rebuild the road, all for an unreliable road that dead-ends into permanent closure at Sloat Boulevard regardless.

This park has become one of San Francisco's most-loved public spaces. Reversing course would eliminate multilingual, multigenerational programming and increase pollution runoff into a sensitive coastal ecosystem — solving nothing.

This issue has been exhausting for San Franciscans.

Six years of debate, two citywide votes, two lawsuits, three appeals. Enough is enough — we are saying No to Proposition G, and no to wasteful ballot measures on issues we've already settled as a city.

Spending nearly \$10 million to remove a playground, a skate park, and public art from public land is just irresponsible, especially when San Francisco is being forced to make budget cuts.

Vote No.

Sean Elsbernd
President/CEO SPUR (www.spur.org)

The true source(s) of funds for the printing fee of this argument: No on G, Save Sunset Dunes Park, Sponsored by Friends of Sunset Dunes.

The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

As neighbors in the Sunset, we ask you to save our local park from closure. Vote No on Proposition G.

Sunset Dunes park is an incredible neighborhood addition. Some of us were apprehensive about Proposition K—some even voted against it—but we have come to love the park. It's our backyard to stroll, stay fit, teach our kids to bike and scoot, and watch the sunset together.

Proposition G would tear it all away.

There is no such thing as a part-time park. A closed road is not a park, and cannot have any park features. Proposition G requires the removal of a playground, a fitness area where we exercise, and even the benches where we watch the waves.

We need our park everyday. Some of us work weekends and could not use the park at all under Proposition G. This is our local park; we use it on weekdays to enjoy an early morning jog, after school with our kids, or an evening stroll along the ocean. There is no place like it.

Traffic fears raised two years ago haven't materialized. Car crashes are down in the neighborhood since the park opened, and commute times are similar as well.

What has materialized is the third most visited city park. We come to our park every day and see how much it means to our neighborhood and the city.

Don't spend millions of dollars destroying our neighborhood park. Join us in voting No on G.

*Outer Sunset Neighbors
Westside Collective
Sunset Community Band
Far Out Community Garden
Sunset Parent Advocates
Joel Engardio
Alexander Wong
Jessica Ho
Helen Moyes-Chang
Charles Spencer Warden*

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

San Francisco's leading environmental groups are united: Save Sunset Dunes park. Vote NO on

Proposition G.

NO on G: Save our park. Proposition G would cost taxpayers \$10 million plus up to \$2 million a year to destroy San Francisco's coastal park and rebuild and maintain an unneeded road to nowhere.

NO on G: Regenerate. Proposition G erases our environmental gains. Dune restoration is underway, and local awareness and stewardship of our threatened Western Snowy Plover is increasing. Don't replace progress with pollution.

NO on G: Protect our Pacific Ocean. Proposition G dumps automobile pollution into our sensitive coastal habitat.

NO on G: Climate action. Proposition G blocks critically needed climate change adaptation to protect the Sunset against rising sea levels.

NO on G: Community. Proposition G closes San Francisco's third most visited park, where neighbors and visitors have created a town square, while increasing access to nature and advancing stewardship of our coast.

The Great Highway was an unsustainable, unmaintainable road. A coastal park is the inevitable future of our coast.

San Francisco environmental organizations are united: This is San Francisco. We don't bulldoze our parks. We protect them.

*Sierra Club
San Francisco League of Conservation Voters
Surfrider San Francisco
Golden Gate Bird Alliance
San Francisco Climate Emergency Coalition
SF Policy Action Team / Climate Reality
350 San Francisco Action
Ocean Beach Institute
SF Surfers for Sunset Dunes
Westside Water Resources
Sutro Stewards*

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We live and drive in the Sunset, so we know first-hand how Sunset Dunes has impacted our neighborhood's traffic. Our experience couldn't be more different from what those who push Prop G want you to believe. The difference? Our experience is backed up by data.

Here’s the traffic truth: since the park opened, traffic is not more dangerous than it was before, and we’re still getting everywhere we need to go.

- **Major arteries continue to keep drivers moving.** Data shows travel times on key routes like Sunset Blvd and 19th Ave saw nearly no change after Sunset Dunes opened—varying by at most two minutes even at rush hour, with some trips actually faster. Traffic volumes on Sunset Blvd remained below pre-pandemic levels.[1]
- **Travel times for commuters are as predicted before Prop K:** An independent review commissioned by the San Francisco Chronicle found that the travel time for the most impacted trip was four minutes longer at weekday rush hour, with many trips unaffected.[2]
- **Sunset streets remain safe and calm:** A separate independent analysis found that “there’s no evidence of increased street mayhem around the closed Great Highway. In fact, it’s the opposite” and “injury collisions on D4 streets dropped below 2019 and 2024 levels.”[3]

Meanwhile, the Great Highway closed up to 65 days each year due to sand accumulation, and the southern end is closing permanently.

There is no traffic reason to close Sunset Dunes park. Don’t close a great park to rebuild an unreliable road.

[1]: “Outer Sunset Traffic Data Report”

[2]: SF Chronicle, “Has Great Highway Closure Made Traffic Worse? Here’s What the Data Says”

[3]: The Frisc, “Perception vs. Reality: The Great Highway Closure and Sunset District Traffic”

Outer Sunset Neighbors

*Eliza Panike, Vice-Chair, SFMTA Citizen Advisory Council**

Janelle Wong

Thurman Carroll, III

Alex Strachan

Hannah Warden

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We are small business owners in the Outer Sunset. We sell the coffee, groceries, books, meals, art, and everyday goods that keep this neighborhood running, and we urge you to vote NO on G, the ballot measure to demolish Sunset Dunes park.

Closing the park would harm the Sunset’s small

businesses, removing tens of thousands of customers from our doorsteps every week.

Our retail corridors spent years recovering from the pandemic. Sunset Dunes’s opening has brought more foot traffic to our neighborhood and is an important part of how we’ve gotten back on our feet. Since the park opened:

- Andytown Coffee Roasters’s revenue is up 15–20% across its three Outer Sunset locations.
- Black Bird Bookstore & Cafe’s sales are up 44%, with book and coffee sales up 60% on Tuesdays, historically its slowest day of the week.

Sunset Dunes drew 2 million visits in its first year, with nearly 60 percent on weekdays. These parkgoers are our customers. The measure to close the park will end weekday visits, which means an end to the majority of the customers the park brings us.

Instead of spending nearly \$10 million destroying Sunset Dunes, we would rather see the city use its resources helping our small business corridors thrive.

Many of the amazing cooks, cashiers, and retail workers who keep small businesses running do not get weekends off. If this measure passes, they will never have access to even the weekend road closure.

San Franciscans have weighed in on this stretch of coastline again and again. It’s time to move forward together and enjoy our beautiful park.

Please join us: **NO on G**, the ballot measure to close Sunset Dunes park.

Sunset Merchants Association

*Angie Pettitt-Taylor, Founder of Sunset Mercantile**

Black Bird Bookstore

Andytown Coffee Roasters

Far Out Gallery

Maillard’s Smash Burgers

Two Pitchers Brewing Company

Sealevel, Sunset Variety

Smokin’ D’s BBQ SF

Love Fest Fibers

Swell Bicycles

Offix Edge

Bright Moments

Milkman Sound, Inc.

Sunset Momentum Therapy

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

We voted against creating Sunset Dunes park. But we changed our mind.

Please save the park by voting NO on Prop G.

When Prop K was on the ballot in 2024, we were skeptical. We said no to a park because we feared a traffic nightmare and had concerns about how the park would be implemented.

But 18 months later, we say keep the park. Traffic problems never materialized, and Sunset Dunes park is one of the best things to happen in the over 50 years we've lived in the Sunset.

As seniors, it can be difficult walking on the sand of Ocean Beach. The park's promenade, seating, and picnic tables let older people with mobility issues easily stroll with a walker and roll in a wheelchair — while enjoying ocean views.

But Proposition G would destroy Sunset Dunes park, removing all park features and cutting off our access.

The park isn't just a weekend destination. It is an everyday neighborhood park for people who work on the weekends, for parents with young kids who need a safe space to play during the week, and for seniors seeking daily exercise and social activity.

Some claim to speak for the entire Sunset when they insist that our neighborhood was somehow "destroyed" by this park.

But when we look around, we don't see carmageddon. Traffic is fine, and we can still get everywhere we need to go. We only see our beautiful neighborhood made even better by the addition of a coastal park in our backyards.

We were skeptical before, but now we're sure. Save Sunset Dunes park: vote no on Proposition G.

Darol Petty
Joanne Scott

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

San Francisco's parks organizations and leaders are united: NO ON G.

Proposition G closes Sunset Dunes park.

Already, Sunset Dunes park is a San Francisco parks success story: the third most-visited city park with over 2.1 million visits since its 2025 opening.

But Proposition G would throw the park away.

Proposition G requires the removal of all park features, including children's play areas, skate and bike parks, fitness equipment, and even seating and picnic tables.

And Proposition G would kill nearly 60% of park visits, which occur on weekdays.

Memories of Playland at the Beach, Fleishhacker Pool, and the Sutro Baths may be fading, but Sunset Dunes park is bringing joy and recreation back to our oceanfront. Every week, the park sees nearly 40,000 visits: Sunset neighbors and San Franciscans coming to the only place to stroll, roll, run, scoot, bike, and play beside the waves.

Today's park is only the beginning. The ongoing community planning process, open houses, surveys, and events are inviting the city to come together and design the future of Sunset Dunes park together. Proposition X would mean an end to park improvements, an end to park planning, and an end to much-needed coastal rehabilitation to prepare our coastline for the effects of climate change.

We've made this choice before: San Francisco would never vote to destroy parks to rebuild the Embarcadero or Central freeways, and we choose the Panhandle over highways. We look back on these decisions thankful to the generations of San Franciscans who made our city a better place.

We protect our parks in San Francisco. Join us in voting No on G.

*Rachel Norton, Executive Director, California State Parks Foundation**

*Phil Ginsburg, Former General Manager, San Francisco Recreation and Parks**

*Mark Buell, Former President, San Francisco Recreation and Parks Commission**

Jean Fraser

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

On behalf of the many seniors and people with disabilities who use and love Sunset Dunes park, we urge you to vote NO on Proposition G.

Walking on a sandy beach is difficult or no longer an option for many seniors and people with disabilities, so we rely on Sunset Dunes park to enjoy the calm of a walk or roll

by the ocean and community activities like Tai Chi, chair yoga, and free outdoor concerts.

Proposition G closes the park, closing our access to the coast.

Getting around San Francisco can feel like gambling with our lives. Seniors and people with disabilities are at the highest risk of being hit or killed while simply trying to cross the street. Many of us can't or don't drive. And let's just say that using a wheelchair, mobility scooter, or walker on our city's bumpy sidewalks isn't exactly relaxing. And the ocean remains accessible by car using the two miles of Great Highway north of Sunset Dunes park, the same as we did before.

Proposition G eliminates accessibility features.

Proposition G would mean removing all the benches and seating from Sunset Dunes park. Park benches aren't just a nicety, they're essential for seniors and people with disabilities to rest and be able to use the park at all.

Please don't take this safe space away from us as seniors and people with disabilities. Vote NO on Proposition G. Keep our oceanfront accessible to all.

*Lisa Xu
 Thurmon Carroll, III
 Myhanh Tran
 Martha Abbene
 Man Lam
 Darold Petty
 Xiao Xia Cai
 Laurie Werbner
 Ann MacArthur Panek
 Song Hao Huang
 Queenie Li
 Bethany Chidley
 Diao Li
 Paul Peterson*

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

Asian American residents are voting NO on Proposition G for our families and communities

Some people who claim to speak for us may have told you that our community opposes Sunset Dunes park. But our community is not a monolith, and many of us use the park every day and count ourselves among its supporters.

Our community relies on San Francisco's parks and open spaces for recreation, fresh air, and community connection.

Sunset Dunes park is a tremendous success, bringing people of all ages together on the Westside:

- Lunar New Year and Autumn Moon Festival celebrations for families
- Everyday pleasures like Tai Chi or a relaxing walk by the ocean
- And every Wednesday, community elders gather at Sunset Dunes park for Chinese Community Dance classes taught in Cantonese

If Proposition G passes, we will lose this community gathering space.

In a city with so many dangerous streets, Sunset Dunes park is now a place for people of all ages, especially seniors and children, to walk without fear. Families come to the park together: grandparents teaming up with grandchildren to spin a 10-ton boulder or just enjoy an after-school snack watching the waves. For many in our community who rely on mobility aids or can no longer walk through uneven sand, they rely on the park to enjoy the simple joy of a walk on the coast.

Please vote NO on Proposition G to protect safe space for elders and our community.

*Jenny Lam, Former Commissioner and President,
 San Francisco Board of Education*
 Janice Li, BART Director*
 Cynthia Wang, SF Entertainment Commissioner*
 Eric Mar, former District 1 Supervisor*
 Brian Quan, West Side Family Democratic Club
 Board Member*
 Alexander Wong
 Jessica Ho
 Brian Heung
 Monica Guo
 Ryo Chiba
 Janelle Wong
 Ruvani Jayaweera
 Albert Lam
 Nina Hwang
 Kim Nguyen
 David Osami
 Wade Lee
 Rylon Carpena*

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Every 15 hours on average, someone suffers serious injuries in a traffic crash and is rushed to San Francisco General Hospital. Some of these victims do not survive: 30 to 40 people are typically killed in traffic crashes every year in our city. The majority of victims are pedestrians, and half of these are older adults.

This is why it's critical to have safe spaces like Sunset Dunes park for people of all ages and abilities to be without the threat of dangerous traffic.

The incredible popularity of Sunset Dunes park as a safe space for people proves the demand for a coastal promenade: it is now San Francisco's third most visited park. Why would we want to get rid of this success?

And it makes sense, because only when traffic is removed can everyone access our Pacific coastline. Walking on sand is difficult and limiting for many people, including anyone using a wheelchair or pushing a stroller.

Voting NO on Proposition G keeps our coast accessible to everyone, every day of the week.

Save Sunset Dunes park. Please vote NO on Proposition G to support safe space for people on our oceanfront.

*Walk San Francisco
Streets for All
San Francisco Bicycle Coalition*

The true source(s) of funds for the printing fee of this argument: No on G, Save Sunset Dunes Park, Sponsored by Friends of Sunset Dunes.

The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

Don't close Sunset Dunes. Our families and communities need and rely on our coastal park

When the City asked Sunset residents what the neighborhood needed, the response was overwhelming: more parks and community spaces. Unlike most other neighborhoods, many Sunset residents lived farther than a 10-minute walk from a park before Sunset Dunes.

Sunset Dunes responded to that need, delivering much needed open space and joy, and opening up the Sunset's greatest asset – the coastline – for all to enjoy. The park has already received over 2 million visits, and it continues to thrive with new features and places to play being added.

If Proposition G passes, our beloved coastal park will be gone.

Proposition G would remove all park features that families from all over San Francisco rely on—the spaces where our kids play, the fitness area where we work out, the skate park we visit after school, even the benches where we watch the sunset together—to make way for traffic.

Not only would Proposition G destroy the park, it would also cost taxpayers \$10M to rebuild a failing roadway.

Why destroy the park? We're not sure. Not because of traffic; the traffic in the Sunset is about the same as it always was—the studies confirm impacts are limited to 2-4 minutes at rush hour—and we're still able to drive everywhere we need to go.

We already voted on this, and the park has been an incredible success for our families. Let's move forward, not backward.

Protect this essential family space. Vote NO on G.

*Sunset Parent Advocates
SF Working Families Democratic Club
Sara Barz, President, Westside Family Democratic Club*
Westside Collective
Indivisible SF*

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

We endorse No on Prop G to save Sunset Dunes park

Proposition G destroys San Francisco's third most visited park and removes all park features — the playground, picnic areas, oceanview seating, and public art — to solve a problem that doesn't exist. Traffic is fine: crashes in the Sunset are down, and drivers are still getting everywhere they need to go. Why close a park that's working?

Sunset Dunes park is a success story. Join us and vote no to move forward as a city.

Alice B. Toklas LGBTQ Democratic Club

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The sole contributor to the true source recipient committee: Friends of Sunset Dunes (\$25,000).

H – Parcel Tax to Fund Muni Operations

Shall the City fund Muni service through a new annual parcel tax on real estate at rates ranging from \$129 per parcel up to a maximum of \$400,000 per parcel, depending on the type of property and its size and adjusted annually for inflation, for estimated revenue of \$177 million a year for 15 years?

YES ☐

NO ☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The Municipal Railway (Muni) provides public transit in San Francisco, including bus, light rail, streetcar, and cable car. Muni provides over 500,000 rides per weekday. Muni service is funded by transit fares and local, state and federal sources, but not through a parcel tax.

State law limits the total revenue, including tax revenue, that the City may spend each year. The voters may approve increases to this limit for up to four years.

Owners of rent-controlled residential property in the City are generally limited in what costs they can pass onto their tenants.

The Proposal: Starting July 1, 2027, and continuing until June 30, 2042, Proposition H would fund Muni service through a new annual parcel tax on real estate in San Francisco. The tax would be adjusted annually for inflation.

The proposed 2027 tax rates would be:

- **Single-Family Residential Parcels:**

- A base tax of \$129.
- For buildings with more than 3,000 square feet of building area:
 - \$0.42 per square foot between 3,001 and 5,000, and
 - \$1.99 per square foot over 5,000.

- **Multifamily Residential Parcels:**

- A base tax of \$249.
- For buildings with more than 5,000 square feet of building area:
 - \$0.195 per square foot over 5,000.
- This tax is capped at \$50,000 per parcel.

- **Non-Residential Parcels:**

- A base tax of \$799.
- For buildings with more than 5,000 square feet of building area:
 - \$0.76 per square foot between 5,001 and 50,000,
 - \$0.84 per square foot between 50,001 and 250,000, and
 - \$0.99 per square foot over 250,000.
- This tax is capped at \$400,000 per parcel.

- **Mixed-Use Parcels:**

- A base tax of \$799.
- For buildings with more than 5,000 square feet of building area:
 - A combination of the marginal rates for residential and non-residential parcels above.
- This tax is capped at \$400,000 per parcel.

- **Parcels with No Buildings:**

- No base tax.
- \$392 for land area over 2,000 square feet.

The tax would not apply to:

1. Properties or portions of properties not required to pay standard property taxes; and
2. Single Room Occupancy (SRO) units and their shared facilities such as kitchens or bathrooms.

Most homeowners aged 65 or older living in their primary home would get a discount or pay no tax.

Revenues from the tax would only be used for Muni service and administering the tax. In addition to the annual required audit by an independent auditor, an annual report and efficiency review would be required.

This measure would increase the City's spending limit for four years.

Owners could pass up to 50% of the tax onto tenants in rent-controlled units where the rent was set before June 1, 2027, up to a maximum of \$65 per unit per year.

A “YES” Vote Means: If you vote “yes,” you want the City to fund Muni service through a new annual parcel tax on real estate.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller’s Statement on “H”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition H:

Should the proposed parcel tax be approved by the voters, in my opinion, based on currently available parcel data it would generate approximately \$177 million annually for Muni transit service starting in Fiscal Year (FY) 2027-2028, and would increase over time as the per parcel taxes are adjusted for inflation each year. The cost to government to administer this parcel tax could range from approximately \$2 million to \$3 million in one-time startup costs, and from approximately \$4 million to \$6 million annually in ongoing costs.

Revenues would be deposited into the Stronger Muni Fund to support Muni transit service operations and administration.

The proposed tax would start at \$129 per year for single-family residential parcel building areas that are up to 3,000 square feet, \$249 for multifamily residential parcel building areas that are up to 5,000 square feet and \$799 for non-residential parcel and mixed-use parcel building areas up to 5,000 square feet. The tax for each property would increase with the square footage of the building area and would have a maximum tax amount for non-single family residential parcels. For unimproved parcels with 2,001 or more square feet of land area, the tax would be \$392. Seniors of 65 years or older and some other groups can apply to SFMTA for an exemption or reduction from the tax. Total revenue will depend on the number of exemptions requested and granted.

Landlords of rent-controlled residential units are limited in the amount of the parcel tax they can pass through to tenants to 50% of the parcel tax for a maximum of \$65 per unit annually, unless the unit is exempt from the parcel tax or base rent is set on or after June 1, 2027. Properties or portions of properties that are exempt from ad valorem

property taxes, as well as single-family parcels whose owners are sixty-five or older and occupy the property as a primary residence, would be exempt from the parcel tax. A deduction of \$249 would apply for each unit in a multi-family residential parcel that is occupied by an owner that is sixty-five or older and that occupies the property as a primary residence.

The City does not currently use square footage, parcel use type, or unit number data as a basis for taxation. The cost to validate and maintain these data, establish and maintain exemptions and manage appeals would increase the cost of government by approximately \$2 million to \$3 million in one-time startup costs, then approximately \$4 million to \$6 million annually, likely decreasing over time. The total cost would be dependent on future operational and staffing decisions made by the SFMTA. Additional costs may include the financial efficiency review, ongoing community outreach and education costs, and other administrative costs to implement the tax.

Note that the proposed measure would change the duties of the Controller’s Office, which has prepared this statement.

How “H” Got on the Ballot

On June 12, 2026, the Department of Elections certified that the initiative petition calling for Proposition H to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

10,615 signatures were required to place an initiative ordinance on the ballot. This number is equal to 2% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

Proponent's Argument

VOTE YES ON H FOR STRONGER MUNI.

MUNI IS A LIFELINE FOR WORKERS, SENIORS, STUDENTS

"Muni is essential for our seniors, many of whom don't drive, and need Muni to get groceries, go to appointments and move independently." – Anni Chung, Self-Help for the Elderly

"Working people depend on affordable, reliable, and safe Muni every day—to get to work, take their kids to school, and keep San Francisco moving." - Olga Miranda, President, SEIU Local 87

MUNI POWERS OUR ECONOMY.

"40% of San Franciscans who work downtown take Muni. Public transit is one of the smartest investments we can make in our local economy. Without H, Muni service will be severely reduced, killing the engine of our economic recovery and causing future cuts to emergency response, parks, and other city services." – former Controller Ben Rosenfield

MORE ACCOUNTABLE MUNI. Muni eliminated 500 vacant positions, trimmed management and doubled fare inspectors. Muni customer satisfaction recently hit a 25 year high due to safer and more reliable service.

MUNI FACES DEEP SERVICE CUTS. For years, one-time federal and state Covid relief kept Muni running. That money is gone. Despite strong actions to save \$137 million dollars annually, without Prop H, service could be cut by 30%, at least 20 bus routes eliminated, and far worse traffic in our neighborhoods.

H ONLY FUNDS MUNI SERVICE. "Strong oversight and independent audits ensures every dollar goes to safe, reliable and affordable Muni service that can never be redirected." – Mayor Daniel Lurie

San Franciscans from every corner of the city have united to vote Yes on H. The Labor Council and Chamber of Commerce. The San Francisco Apartment Association and Tenants Union. Small business owners and transit advocates. Mayor Lurie and the entire Board of Supervisors.

Mayor Daniel Lurie

Speaker Emerita

Nancy Pelosi

San Francisco

Democratic Party

Senator Scott Wiener

Assemblymember

Catherine Stefani

Assemblymember Matt Haney

Supervisors:

Rafael Mandelman

Connie Chan

Steven Sherrill

Danny Sauter

Alan Wong

Bilal Mahmood

Matt Dorsey

Myrna Melgar

Jackie Fielder

Shamann Walton

Chyanne Chen

Former Controller Ben

Rosenfield

SF Tenants Union

SF Labor Council

SF Chamber of Commerce

SF Council of

District Merchants

Firefighters Local 798

Transit Workers Union 250A

Teamsters Local 665

Chinatown Transportation

Research and

Improvement Project

Rebuttal to Proponent's Argument

Everyone wants safe, reliable Muni. The question is whether a 15-year tax with no strings attached will deliver it.

The Yes campaign warns of devastating service cuts if Prop H fails. But that dodges the real question: **Why guarantee SFMTA a new tax revenue stream without requiring it to meet a single efficiency or performance target?**

Supporters boast that Muni has eliminated vacant positions, trimmed management and found \$137 million in annual savings. Great. That proves reform is possible. **Prop H should require more reform, not guarantee new revenue regardless of results.**

They also promise "strong oversight and independent audits." But oversight is not accountability. Prop H requires an efficiency review, but does not require SFMTA to implement its recommendations. **There are no binding efficiency targets, performance benchmarks, or requirements that future tax dollars depend on results.**

And who pays? Prop H taxes property based on square footage, not value. A modest home can owe nearly the same tax as a far more valuable home of similar size. **Renters aren't spared, either, since landlords can pass through part of the tax.**

Muni is too important to keep funding the same way and hoping for different results.

Before approving a 15-year tax, voters must demand binding reforms, measurable performance standards, and real accountability.

Vote NO on Prop H.

The San Francisco Republican Party

Opponent's Argument

San Franciscans are being asked to fund Muni's \$300 million deficit for 15 years with no strings attached.

False threats. Nobody wants longer wait times or service cuts, but a new tax isn't the only option. Nothing in this proposition requires SFMTA to cut costs, hit efficiency targets, or act on a spending review as a condition of receiving this money.

No sunset tied to results. The tax runs through 2042 regardless of whether ridership, fares, or costs ever normalize.

A toothless review, collected after the money's already in hand. The measure calls for an "efficiency review," but not until April 2028, nine months after the tax kicks in. Even then, the review only has to report its findings to SFMTA's own board. Nothing requires the agency to act on a single recommendation, and nothing ties future funding to whether it does.

A flat tax, not a fair one. The tax is based on square footage, not property value. A modest home and a far more valuable one of similar size nearby will pay nearly the same amount. Renters aren't spared either, since landlords can pass through the tax increase to tenants.

A 15-year tax with no results-based sunset, no binding reforms, and no independent check on whether the money is spent well isn't the accountability that SFMTA needs. It's a blank check.

Vote No on H.

The San Francisco Republican Party

Rebuttal to Opponent's Argument

Trump's Federal spending cuts have devastated transportation systems across the country. Given these cuts and the loss of other funding, Muni faces 30% service cuts and the elimination of at least 20 bus routes. That's just a fact.

Mayor Lurie has taken bold action to make Muni more efficient BEFORE ever proposing H for the ballot. With new leadership, the agency eliminated 500 vacant positions, cut management, and froze non-operator hiring, saving \$140 million. Muni doubled fare inspectors and reduced fare evasion by 30%. Wait times and reliability have improved, and Muni's favorability is at an all time high.

The tax isn't flat. The San Francisco Republican Party is wrong. H is the first fair, tiered parcel tax in San Francisco history. 95% of homeowners pay the lowest amount. Large commercial buildings and mansions pay the most. 70% of the revenue comes from the city's largest properties. Rent-controlled units are protected and won't pay more than \$65 a year.

Strong oversight. H requires independent audits and mandates citizen oversight for the life of the tax. And not one penny can be spent on anything other than Muni operations.

World-class public transportation requires investment. "Investing in Muni is just smart economics. The economic activity Muni generates funds emergency response, parks, and libraries." - Former Controller Ben Rosenfield.

We owe it to the next generation of San Franciscans to make sure that Muni remains the system we all love.

Vote Yes on H.

Mayor Daniel Lurie

Rodney Fong, SF Chamber of Commerce

Tony Delorio, Teamsters Local 665

Kat Siegal, Transit Advocate

Paid Arguments in Favor

Save Muni. Protect San Francisco's Future.

Muni carries more than 520,000 riders every weekday — seniors, students, workers, and people with disabilities who depend on reliable transit. Without new revenue, Muni faces a \$307 million deficit by 2027, growing to \$398 million by 2030, meaning up to 20 routes eliminated and service cut in half.

For more than a century, SPUR has championed public transit as essential to San Francisco's success, from early advocacy for the Municipal Railway itself through decades of ballot campaigns to keep Muni funded, reliable, and accountable. This measure continues that legacy.

It raises roughly \$177 million a year through a fair, tiered parcel tax. Ninety-five percent of single-family homeowners pay just \$129 a year. Rent-controlled tenants pay no more than \$65 a year, and landlords cannot pass on more. Seniors are exempt on their primary homes; larger properties pay proportionally more.

Muni has earned this investment, already saving \$250 million since 2019 through efficiency improvements, with rider satisfaction at a decades-high 78%. This measure funds operations only — the buses and trains San Franciscans rely on every day.

This measure has broad, unified support from the Mayor, the Board of Supervisors, labor, business, and transit and housing advocates alike, with no formal opposition. Combined with the regional Connect Bay Area measure, it's the difference between a Muni that works and a Muni in crisis.

Vote YES.

Sean Elsbernd

President/CEO SPUR (www.spur.org)

The true source(s) of funds for the printing fee of this argument: SPUR.

Muni is an absolutely essential service for San Francisco's working class and powered by the working class.

In one of the wealthiest cities in the country, flooded with billions of dollars of investment into companies whose employees depend on public transit, it is shameful that the rich won't pay their fair share and are placing our transit system in jeopardy.

A popular proposal, 2024's Prop L, would have preserved Muni funding by requiring ride-hail companies like Uber, Lyft and Waymo to redistribute a small portion of their earnings to keep buses running in a city that has allowed

them to thrive. Fifty-six percent of San Francisco voters approved, but it wasn't enough to overcome a well-funded corporate lobbying campaign and backroom deals at City Hall. They put us in this position.

DSA SF believes a better world is possible and a better way of funding transit is necessary. We were part of the coalition which overcame corporate opposition to ensure the Stronger Muni for All measure is a progressive parcel tax. We secured changes to the tax so that downtown landlords pay closer to their fair share, local unions remain strong, and working people pay less. But we are nowhere near the finish line.

We recommend San Franciscans vote yes on this measure. DSA SF stands in solidarity with Muni operators and riders by keeping Muni running and resolving the current funding emergency, but small and reactive reforms like these can't deliver the affordable, expansive, and financially sustainable public transit system that San Francisco's working class deserves. For that, we need to think bigger, and we need to win working class power in order to bring those ideas to life. Join us and get organized.

Democratic Socialists of America - San Francisco

The true source(s) of funds for the printing fee of this argument: Scott Feeney, Seamus McNulty, Aditya Bhumbala.

CLIMATE AND ENVIRONMENTAL GROUPS SAY YES TO FUNDING PUBLIC TRANSIT.

Public transit is climate action. Every rider on a Muni bus or train means lower emissions, less congestion, cleaner air. If San Francisco is serious about its climate goals, we cannot let our transit system collapse. Transit cuts set back years of climate progress.

Sustainable growth depends on reliable transit. Prop H keeps San Francisco's buses and trains running so people can choose transit over cars — protecting our climate goals and our quality of life. Vote Yes on H for a cleaner, more sustainable San Francisco.

*SF League of Conservation Voters
Sierra Club*

The true source(s) of funds for the printing fee of this argument: San Francisco League of Conservation Voters.

SENIORS AND PEOPLE WITH DISABILITIES URGE SUPPORT FOR MUNI AND PROP H.

For seniors and people with disabilities, Muni isn't a convenience — it's independence. It's the ride to a doctor's appointment, the trip to the pharmacy, the way to see friends and stay connected to community. For those

who don't or can't drive, Muni is often the only way to get around the city we call home.

Without Prop H, Muni service will be cut and accessible transit options will shrink even further for the people who depend on them most. Isolation is one of the greatest threats facing seniors and people with disabilities. Reliable transit prevents it. Don't let service cuts cut us off from our city.

Vote Yes on H.

*Senior and Disability Action
Self-Help for the Elderly CEO Anni Chung**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

The true source(s) of funds for the printing fee of this argument: 1. Senior and Disability Action, 2. Stronger Muni for All, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Open AI, 2. Anthropic, 3. Ripple Labs.

YOUTH, STUDENTS, AND THEIR ADVOCATES SAY YES TO PROP H.

Muni is how students across San Francisco get to class, campus, jobs, and each other. From middle schoolers to college students, young San Franciscans depend on Muni more than almost anyone. That access is at risk.

Young people are the future of this city, and reliable transit is how they build independence, education, and careers. We can't afford to lose the routes that get them there. Students, young Democrats, and youth leaders across San Francisco are united: Vote Yes on H for stronger Muni, for our schools, and for our future.

*California Young Democrats
SF Young Democrats President Andrea Gallardo*
SF State College Democrats President Chase Preston*
SFUSD School Board President Phil Kim*
SF City College Board Trustee Ruth Ferguson**

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CHINATOWN LEADERS SAY YES TO SAVING MUNI WITH PROP H.

Muni is a lifeline for Chinatown and every immigrant family in San Francisco. Many of our seniors don't drive. They

depend on the 30, the 45, and other Muni lines to reach doctors, grocery stores, and family. When Muni service is cut, our elders are left stranded.

Chinatown's merchants, workers, and families all rely on reliable, affordable transit every single day. Chinatown has fought for decades for transit that serves our community with dignity. Prop H protects that progress. Vote Yes on H for our seniors. Vote Yes on H for our families. Vote Yes on H for Chinatown.

*Chinatown Transportation Research and
Improvement Project
Rose Pak Asian American Club
Chinatown Community Development Center
Anni Chung, Self-Help for the Elderly**

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ADVOCATES FOR SAFE, SUSTAINABLE CITIES AND STREETS AGREE PROP H IS VITAL.

A well-funded transit system is core infrastructure for everyone who walks, bikes, and rolls on San Francisco streets. Without Prop H, Muni funding will be cut. Fewer buses means more congestion. San Francisco cannot meet its Vision Zero goals while gutting the transit system that keeps traffic off our streets.

Prop H protects the service that keeps San Francisco moving safely. Safe streets and strong transit go hand in hand. We can't build the walkable, bikeable, liveable city we're working toward if Muni service collapses around us. Join transit riders, cyclists, pedestrian safety, and housing advocates across San Francisco. Vote Yes on H for a safe and sustainable San Francisco. Vote Yes on H for stronger Muni.

*SF Transit Riders
Streets for All SF
SF Bicycle Coalition
Walk San Francisco*

The true source(s) of funds for the printing fee of this argument: Stronger Muni for All, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Open AI, 2. Anthropic, 3. Ripple Labs.

LABOR LEADERS UNITE TO URGE YES ON PROP H.

Working people built this city, and Muni is how we get to work. From transit operators to teamsters, carpenters, firefighters, laborers, and engineers, San Francisco's workforce depends on affordable, reliable transit to reach the job sites, offices, and worksites that keep our city running.

Muni workers themselves know what's at stake — service cuts mean layoffs, longer routes, and a transit system stretched too thin to serve the people who need it most. Prop H protects both riders and the workforce that keeps San Francisco moving. San Francisco's labor movement stands united: Vote Yes on H.

Transit Workers Union - 250A

SF Labor Council

Teamsters Local 665

Firefighters 798

SEIU Local 87

SF Building Trades

Carpenters Local 22 Senior Field Representative

*Dan Calamuci**

Operating Engineers Local 3 District Representative

*Charles Lavery**

*Laborers Local 261 SF Liaison Anthony Travis Jr.**

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The true source(s) of funds for the printing fee of this argument: Stronger Muni for All, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Open AI, 2. Anthropic, 3. Ripple Labs.

BUSINESS LEADERS SUPPORT PROP H TO DRIVE OUR ECONOMIC RECOVERY

San Francisco's economy runs on Muni. Forty percent of San Franciscans who work downtown ride Muni to their jobs, and small businesses across the city depend on customers, employees, and deliveries moving reliably through our streets. A weaker Muni means a weaker economy — for big employers and corner stores alike.

Prop H protects the transit service our commercial corridors depend on, and it comes with real accountability. Independent audits ensure every dollar funds Muni service directly and can never be redirected. Muni has already demonstrated fiscal discipline, eliminating vacant positions and saving \$137 million in personnel costs.

From neighborhood merchants to major employers, San Francisco's business community knows that a functioning transit system is essential to a functioning

economy. Investing in Muni is investing in our recovery. Vote Yes on H for a stronger economy and a stronger Muni.

Council of District Merchant Associations

Noe Valley Merchants and Professionals Association

SF Chamber of Commerce

The true source(s) of funds for the printing fee of this argument: Stronger Muni for All, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Open AI, 2. Anthropic, 3. Ripple Labs.

DEMOCRATIC CLUBS ACROSS SAN FRANCISCO SUPPORT YES ON PROP H.

San Francisco Democrats have always fought for a city that works for everyone. A transit system every resident can rely on is a critical part of that vision. Muni is core to the kind of affordable, equitable city we believe in. Prop H protects Muni service with a fair, tiered tax where those that can afford to pay more will. And it has accountability built in with independent audits ensuring every dollar goes directly to Muni service.

Investing in public transit is investing in climate action, economic opportunity, and equity for every neighborhood in San Francisco. Democratic clubs across the city are united behind Prop H because a stronger Muni means a stronger, fairer San Francisco.

United Democratic Club

Westside Family Democratic Club

Richmond District Democratic Club

The true source(s) of funds for the printing fee of this argument: Stronger Muni for All, Mayor Lurie's Ballot Measure Committee.

The three largest contributors to the true source recipient committee: 1. Open AI, 2. Anthropic, 3. Ripple Labs.

Paid Arguments Against**VOTE NO ON PROPOSITION H**

We support Muni. We want safe, reliable public transportation. But another long-term parcel tax is not the solution to SFMTA's financial problems.

Proposition H would create a 15-year parcel tax, beginning in 2027, with rates adjusted annually for inflation.

According to SFMTA, approximately \$150 million each year would go toward reducing its existing deficit, while about \$10 million would support service-quality improvements.

That raises an important question: If this new tax does not solve SFMTA's underlying structural deficit, what happens when the next funding gap comes?

San Francisco homeowners, property owners, small businesses, working families, and renters are already struggling with one of the highest costs of living and doing business in the country. Another long-term tax adds more financial pressure to our city.

Before asking San Franciscans to pay more for the next 15 years, SFMTA should demonstrate fiscal responsibility, measurable results, transparency, and sustainable solutions to its operational and financial problems.

We support Muni. But supporting Muni does not mean automatically supporting another tax.

Fix the underlying problems before asking San Franciscans to pay more.

VOTE NO ON PROPOSITION H.

Business League

The true source(s) of funds for the printing fee of this argument: Business League.

I – Changes to Real Property Transfer Tax

Shall the City permanently dedicate half of the transfer tax revenues collected when certain real estate with a value or sales price of more than \$10,000,000 changes hands, which will continue to be taxed at rates of 5.5% to 6%, to be spent only on affordable housing, including social housing developments and housing assistance, and exempt certain sales from the dedicated portion of the tax, for an estimated annual revenue decrease of approximately \$1 million?

YES	☐
NO	☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: The City collects a transfer tax when most real estate changes hands. The tax rates depend on the property's sales price or value and the two highest tax rates are:

- 5.5% for properties between \$10,000,000 and under \$25,000,000, and
- 6% for properties at \$25,000,000 or more.

Some real estate transfers are exempt from the tax or are subject to reduced rates.

Revenues generated from the transfer tax may be spent for any governmental purpose.

The Board of Supervisors (Board) may amend, reduce, suspend, or repeal the transfer tax without voter approval. Voters must approve any increase of the transfer tax.

State law limits the total revenue, including tax revenue, the City may spend each year. The voters may approve increases to this limit for up to four years.

The Proposal: Proposition I would dedicate half of the transfer tax revenues when certain real estate with a value or sales price of more than \$10,000,000 changes hands, to be spent only on affordable housing, including social housing developments and housing assistance. Specifically, the measure would:

Transfer Tax

For properties with a sales price or value between \$10,000,000 and under \$25,000,000:

- Reduce the current transfer tax from 5.5% to 2.75%
- Impose a new transfer tax of 2.75%

For properties with a sales price or value at \$25,000,000 or more:

- Reduce the transfer tax from 6% to 3%
- Impose a new transfer tax of 3%

This measure will not increase the tax rate on the transfer of any property above what is charged today.

The same exemptions and tax reductions from the current transfer tax would still apply to the new transfer tax.

The new transfer tax would also exempt the first sale of certain multifamily real estate if it is sold within 5 years of completion of new residential units.

Tax Revenue Spending

The City could spend revenue from the new transfer tax only on:

- At least 60% for affordable housing production, with at least half to social housing developments;
- At least 25% towards the acquisition or rehabilitation of affordable housing, with at least 60% to acquisition of existing housing units; and
- At least 10% to tenant stabilization/homeless prevention programs, with at least half to eviction defense and prevention;

The Board could only change the transfer tax consistent with the purpose of the tax. All other changes would require voter approval.

Proposition I would approve an unlimited number of new affordable housing units for low-income households funded by revenue from the new transfer tax.

Proposition I would require the City to submit annual reports to the Board and Mayor on the use of the new tax revenue.

Proposition I would increase the City's spending limit for four years.

A “YES” Vote Means: If you vote “yes,” you want to dedicate half of the transfer tax revenues when certain real estate with a value or sales price of more than \$10,000,000 changes hands, to be spent only on affordable housing, including social housing developments and housing assistance.

A “NO” Vote Means: If you vote “no,” you do not want to make these changes.

Controller’s Statement on “I”

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition I:

Should the proposed ordinance be approved by the voters, in my opinion, it would represent a moderate annual decrease of approximately \$1 million to the City’s overall revenues starting in Fiscal Year (FY) 2027-28. However, the ordinance would also shift \$120 million per year of existing revenue from the more flexible General Fund to a special revenue fund dedicated to affordable housing programming and support. Because the ordinance would remove existing revenue from the General Fund, it would increase the City’s projected General Fund deficit by \$120 million annually.

The ordinance would lower the City’s General Fund Real Property Transfer Tax rates established by Proposition I in November 2020 and subsequently establish a new Real Property Transfer Tax at near identical rates, which could only be used for specific affordable housing programs. The ordinance would reduce the Real Property Transfer Tax rate on transfers of properties with consideration or value from \$10 million to under \$25 million from 5.5% to 2.75%, and on transfers of properties with consideration or value of \$25 million or more from 6% to 3%. This change would result in a reduction in revenue of \$120 million from the City’s General Fund, which the City can spend on any government purpose.

At the same time, the ordinance would establish a new Real Property Transfer Tax called the House SF Tax and collect the revenue in a special fund, the House SF Fund, which the City could only spend on specific affordable housing programs. The House SF Tax would tax transfers of properties with consideration or value between \$10 million and \$25 million at a rate of 2.75%, and transfers of properties with consideration or value of \$25 million or more at 3%. The ordinance also includes a new exemption from the House SF Tax for certain recently constructed multi-family housing properties, reducing the collected revenue by approximately \$1 million annually, so the proposed House SF Fund would generate approximately \$119 million annually.

Because the ordinance would replace existing General Fund taxes with a new dedicated tax, it would limit the City’s fiscal flexibility and increase the City’s General Fund deficit, most recently projected at \$741.7 million and \$1.1 billion in FY 2028-29 and FY 2029-30, respectively.

The House SF special revenue fund and tax would represent the City’s 24th voter-mandated funding requirement that limits the City’s budget flexibility. For context, voter-mandated funding requirements currently total approximately \$2 billion, or 30%, of the approximately \$7 billion General Fund sources.

The proposed ordinance requires the City to appropriate the House SF Fund in the following ways: (1) no less than 60% must be spent on affordable housing production programs, (2) no less than 25% must be spent on preservation or acquisition programs, (3) no less than 10% must be spent on tenant stabilization or homelessness prevention programs, and (4) no more than 5% may be spent on the departmental administration of the Fund and administration of the House SF Tax.

The proposed ordinance would allow the Board of Supervisors to amend the Real Property Transfer Tax without voter approval only to exempt rent-restricted affordable housing or to make other changes consistent with the stated purposes of the House SF Tax. However, it would remove the existing authority of the Board of Supervisors to reduce, suspend, or repeal the Real Property Transfer Tax without voter approval. The proposed ordinance would also require the Controller’s Office to perform an annual audit on the House SF Fund and file it with the Board of Supervisors.

Note that the proposed measure would change the duties of the Controller’s Office, which has prepared this statement.

How “I” Got on the Ballot

On July 23, 2026, the Department of Elections certified that the initiative petition calling for Proposition I to be placed on the ballot had a sufficient number of valid signatures to qualify the measure for the ballot.

10,644 signatures were required to place an initiative ordinance on the ballot. This number is equal to 2% of the registered voters at the time a “Notice of Intent to Circulate Petition” was published. A random check of the signatures submitted by the proponents of the initiative petition prior to the July 6, 2026, submission deadline showed that the total number of valid signatures was greater than the number required.

Proponent's Argument

YES ON I: KEEP THE PROMISE. AFFORDABLE HOUSING WITH NO NEW TAXES.

San Francisco's housing crisis is pushing families, seniors, teachers, nurses, artists, immigrants, and young people out of the city they love.

In 2020, voters approved a tax on the sale of properties worth more than \$10 million, specifically so that money could fund affordable housing and rent relief.

It worked until politicians ignored the will of voters.

This tax on San Francisco's wealthiest property owners provided emergency rent relief to more than 10,000 households and helped preserve and build hundreds of affordable homes.

But it wasn't guaranteed. In the **past two years, none of this revenue has gone to affordable housing.**

Prop I will finally keep the promise and implement the measure voters approved.

- **Doesn't raise taxes** -- uses only revenue from a tax voters already approved.
- **Cuts the transfer tax for new housing construction**, so we keep building the homes we need.
- **Independent oversight** -- mandatory annual audits by the City Controller, filed publicly.
- **The only measure on the ballot** that guarantees both innovative social housing and ongoing rental assistance.

This November, San Franciscans have a historic opportunity: two measures on the ballot that guarantee affordable housing funding without raising anyone's taxes.

Vote YES on Prop I to guarantee this funding finally does what voters intended.

Read more: YesonISF.com

*Affordable Housing Alliance
San Francisco Tenants Union
Small Business Forward
United Educators of San Francisco
Service Employees International Union SEIU 1021
Council of Community Housing Coalitions
Faith in Action Bay Area
Senior and Disability Action
Anti Displacement Coalition
Community Tenants Association
Housing Rights Committee
Tenants Together
Democratic Socialist of America - San Francisco
San Franciscans for Social Housing*

Rebuttal to Proponent's Argument

DON'T BE FOOLED: PROP I CREATES A NONPROFIT SLUSH FUND AND DOESN'T GUARANTEE NEW HOUSING

Prop I's proponents say this measure "keeps the promise" of affordable housing without raising taxes. That is not what Prop I does.

Prop I would lock roughly \$120 million a year away from the General Fund without requiring that a single new unit of housing be built.

30% must go to "social housing." Another 25% can go to nonprofits to buy existing apartments. Another 10% can fund nonprofit programs that do not build new homes. Five percent can go to administration.

That means at least 70% of the money does not have to build housing.

Audits do not fix Prop I's fundamental flaw. It can be perfectly audited and still spend most of its money without building a single new home. A transfer-tax cut does not change that. How much new housing does Prop I require? None.

The budget damage goes further. Pulling \$120 million out of the General Fund shrinks funding baselines, including Muni's. Amid a Muni funding crisis, Prop I would drastically cut transit funding while reducing resources for firefighters, public safety, clean streets, and other essential services.

The San Francisco Building and Construction Trades Council represents workers who actually build housing. We support affordable housing, not a measure that promises housing without guaranteeing new homes.

Vote NO on Prop I.

San Francisco Building and Construction Trades Council

Opponent's Argument

Vote NO on the Affordable Housing Guarantee Act.

While affordable housing is an important priority, locking transfer tax revenues into rigid set-asides is fiscal mismanagement that threatens San Francisco's financial stability.

1. Creates Dangerous Budget Earmarks

San Francisco's General Fund pays for vital everyday services—including police officers, firefighters, 911 dispatchers, street cleaning, and public parks. Carving out transfer tax revenues into a restricted fund starves the General Fund of essential dollars, forcing severe service cuts across the city during lean budget years.

2. Relies on Highly Volatile Revenue

Real estate transfer taxes are notoriously unpredictable. Basing housing commitments on real estate sales creates an unstable funding cycle that collapses whenever property values or commercial transactions drop. Managing long-term programs on volatile tax revenues is fiscally reckless.

3. Deepens Downtown Economic Stagnation

San Francisco's commercial real estate market is already struggling with historically high vacancy rates. Increasing burden or restricting tax policy on high-value properties discourages investment, depresses property values, and weakens our overall tax base—ultimately reducing total revenue available for public services.

4. Reduces Flexibility and Oversight

City leaders need the flexibility to adapt to economic downturns and emerging local emergencies. Tying revenue up in permanent structural mandates removes budget oversight and prevents the City from reallocating resources where they are needed most.

Protect core city services and financial stability.

Vote NO on Measure I.

Judge Quentin L Kopp

San Francisco Taxpayers Association

Rebuttal to Opponent's Argument

YES ON I — AFFORDABLE HOUSING. NO NEW TAXES.

Opponents call affordable housing “an important priority.” They’re right. But they oppose Prop I, which builds affordable housing *without raising taxes*. That’s plain wrong.

San Francisco's state-mandated housing plan calls for 46,000 affordable homes to be built by 2031. Prop I is a step forward. It will create thousands of affordable homes without costing taxpayers a dime.

Prop I keeps a promise made to voters in 2020 which city hall politicians have ignored. It requires the city to use an existing tax on sales of properties valued at ten million dollars or more to fund affordable housing.

For the first few years, politicians kept the promise. But over the last two years, not one dollar of this revenue has gone to housing.

Prop I is accountable:

- **Every dollar in Prop I will be managed** by the Mayor's Office of Housing
- **Mandatory annual audits** will be conducted by the City Controller
- **Taxes on new housing are reduced to encourage growth**
- **And it won't raise taxes!**

Our housing crisis demands innovative solutions, not tired opposition from people who have opposed affordable housing for decades. Join us and Vote Yes on I.

Council of Community Housing Organizations

San Francisco Tenants Union

Small Business Forward

Affordable Housing Alliance

Service Employees International Union SEIU 1021

Senior and Disability Action

SF Anti Displacement Coalition

Housing Rights Committee

Democratic Socialists of America - San Francisco

San Franciscans for Social Housing

Paid Arguments in Favor

Pissed Off Voters Agree: Vote HELL YES! on Prop I

Make real estate investors pay their fair share so we can make San Francisco more affordable!

Hold up, **didn't we already vote on this** in 2020?

Yup. And we're pissed off at City Hall for ignoring the will of the voters.

San Francisco voters originally passed Prop I in 2020, which taxed high-dollar real estate sales: 5% for properties over \$10 million, and 6% for properties over \$25 million. And **Prop I won by a landslide**, raising nearly \$500 million from luxury real estate sales since it passed in 2020.

Only a quarter of that funding has actually been dedicated to preserving and developing affordable housing. City Hall has ignored the will of the voters and withheld the remaining funding. NOT cool!

So now Prop I is back to make sure that this time City Hall can't ignore the voters or our five-alarm affordability crisis! Voting yes on Prop I guarantees City Hall must **spend that luxury real estate tax money** on affordable housing, as it was intended.

Do you agree that big-money real estate sales should be taxed to fund affordable housing?

Vote HELL YES! on Prop I

Read our voter guide: <https://theLeagueSF.org>

San Francisco League of Pissed Off Voters

The true source(s) of funds for the printing fee of this argument:
San Francisco League of Pissed Off Voters

The three largest contributors to the true source recipient committee: 1. Christin Evans, 2. Jonah Horotake, 3. Rachel Wood.

RENTS ARE UP 22%. FRONT-LINE HOUSING GROUPS AGREE: YES ON I

As organizations working on the front lines of San Francisco's housing crisis, we meet seniors choosing between rent and medicine, families doubling up because they can't afford an apartment alone, young people wondering if they'll ever be able to build a future here, and workers who keep our city running but can't afford to live in it.

We are living through a housing emergency. **This year alone, median rent for a one-bedroom hit an all-time high of \$4,060 -- up 21.9%, the steepest jump of any major U.S. city, according to Zumper.**

We support Yes on I because it funds what works: Building permanently affordable homes, providing rental assistance before families lose their housing, and creating new housing that remains affordable for generations.

Prop I makes sure this existing revenue is permanently dedicated to affordable housing, innovative social housing for people across a range of incomes, and rent relief. **It does not raise taxes, and it cuts the transfer tax in half for new housing construction** to support the production of the homes our city needs.

Vote YES on Prop I and help make San Francisco a city where everyone has the opportunity to thrive.

Housing Rights Committee

Community Tenants Association

SF Anti-Displacement Coalition

Build Affordable Faster

Council of Community Housing Organizations

Tenants Together

Tenants and Owners Development Corporation

The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

NEIGHBORHOOD HOMEOWNERS: YES ON I IS A FAIR AND SENSIBLE HOUSING SOLUTION

Voting Yes on I is a simple choice: funding for affordable housing and rent relief, with no new taxes for anyone -- including homeowners.

Prop I dedicates an existing tax on luxury property sales over \$10 million to affordable housing and rent relief. Rental assistance allows struggling tenants to get back on their feet without small landlords footing the bill.

- **No taxes for homeowners** -- this measure applies only to sellers of \$10 million-plus properties.
- **Independent oversight** -- mandatory annual audits by the City Controller, with public reporting to the Board of Supervisors.
- **No funding for administrators' salaries or pensions** -- money for housing and rent relief, not bureaucracy.

Vote YES on Proposition I to build strong, stable neighborhoods at no cost to homeowners.

*Erica Zweig, Sunset Small Landlord and Homeowner**

*Jennifer Kroot, Panhandle Homeowner**

*Jason Prado, Mission Homeowner**

*Scott Feeney, Mission Homeowner**

*Brian Roberts, Mission Homeowner**

*Mario Guerrieri, Mission Homeowner**
*Heather Davies, Sunset Homeowner**
*Francisco Martinez, Twin Peaks Homeowner**
*Jeff May, Ingleside Homeowner**
*Heather Davies, Sunset Homeowner**
*Heather McFarlane, Pac Heights Homeowner**

*For identification purposes only; author is signing as an individual and not on behalf of an organization.

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Homes for workers who keep San Francisco running. Vote Yes on I.

SEIU 1021 represents workers in our schools, hospitals, courts, and other essential services. Every day, we care for San Francisco's children, educate students, provide healthcare, and support families. But too many of our workers who keep San Francisco running cannot afford to live here.

Measure I helps ensure that workers can live where they work by dedicating funding to housing without raising taxes.

San Francisco should be a city where the people who serve our communities can afford to be part of them.

Vote Yes on I to invest in housing for the workers.

SEIU 1021

The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

TO FUEL ECONOMIC RECOVERY, SMALL BUSINESS OWNERS SUPPORT YES ON I

Small business owners are at the heart of San Francisco's economy. Money spent at location businesses circulates through the local economy 2-4 times more than spending at chain stores.

But today, **San Francisco ranks as the worst major city for purchasing power.** When our hard-earned dollars don't stretch as far, small businesses are hit hardest.

Prop I ensures San Francisco workers can afford housing while continuing to support our cherished small businesses.

As small business owners, we also appreciate that **Yes on I**

includes strict accountability, including independent annual audits by the City Controller ensuring funds are spent as promised.

Vote YES on II

Small Business Forward
*Christin Evans, Owner, Booksmith and Alembic**
*Nicholas Parker, Owner, Mercury Cafe**
*Lynne Angel, Owner, El Rio**
*Diane Ramirez, Owner, Bangin Hair Salon**
*Jassil Ahluwalia, Owner, The Laundry Corner**
*Yolanda Porrata, Owner, Vera Skin Studio**
*Isabella Hill, Co-owner, Happy House**
*Sean Mabry, Co-owner, Mothership**
*Justin Dolezal, Co-owner, Bar Part Time**
*Andrew Nelson, Co-owner, Golden Sardine**
*Julian Ensworth, Managing Partner, Horsies Bar**
*Peter Quantaroli, Owner, Sam's Grill**
*Colleen Conedy, Roastery Operations Manager, Ritual Coffee Roasters**
Sensitive Vintage

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The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

ASIAN AMERICAN LEADERS SUPPORT YES ON I TO PROTECT FUTURE GENERATIONS

Prop I guarantees affordable homes are built in San Francisco to sustain communities where families have access to quality jobs and a world class education, and where children can remain in the city they grew up in and seniors can age in place with dignity -- all **without raising taxes on homeowners.** It's a smart investment in strong communities at no cost to us.

Vote YES on I.

Chinese for Affirmative Action
*Raquel Redondiez, SOMA Pilipinas**
Chinese Progressive Association
SF Rising Action Fund
*Former Board President Norman Yee**
*Former Supervisor Gordon Mar**
*Former Supervisor Sandra Lee Fewer**
*Former Supervisor Eric Mar**
*Former Supervisor Jane Kim**
*Anni Chung, CEO Self-Help for the Elderly**
*Michael Nguyen, DCCC Member**

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The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

BLACK LEADERS SUPPORT YES ON I

San Francisco's strength is its diversity, but decades of displacement have taken a devastating toll on our community. **Our Black population has declined from 13.5% in the 1970s to just 5% today.**

We continue to bear a disproportionate share of the housing crisis. It's urgent that we repair the harm of decades of redevelopment, displacement, and discriminatory housing policies that pushed communities of color out of San Francisco.

As African American leaders, we stand united in our support for Proposition I so working and middle class families can put down roots and continue to contribute to San Francisco.

Vote YES on Prop I.

Coleman Advocates
*Supervisor Shamann Walton**
*DJ Brookter, former CEO of Young Community Developers**
*Franzo W. King, Archbishop, St. John Coltrane African Orthodox Church**
Dontaye Ball

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The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

YES ON I: LGBTQ LEADERS KNOW EVERYONE DESERVES A PLACE TO BELONG

As LGBTQ rights are threatened across the country, it is crucial that San Francisco remains a refuge for people escaping discrimination.

Currently, 38% of homeless people in San Francisco identify as LGBTQ. We must ensure that LGBTQ San Franciscans are not priced out of their neighborhoods and support networks.

Prop I will generate more affordable homes for low and middle income residents, strengthen housing stability,

and invest in a future where LGBTQ people, families, and future generations can thrive.

Vote YES on I.

Castro LGBTQ Cultural District
*Former Assemblyman Tom Ammiano**
*Gary McCoy, Former Political Director for Nancy Pelosi**
*DCCC member Peter Gallotta**
*Supervisor Jackie Fielder**
*BART Board Director Edward Wright**
*Stephen Torres, LGBTQ activist**
*Michael Nguyen, DCCC Member**

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The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

LATINO LEADERS SAY YES ON I BECAUSE WORKING FAMILIES BELONG HERE

The Latino community keeps San Francisco's economy running -- and working families belong here.

While **Latinos make up just 15% of the city's population, they represent more than 30% of its workforce**, filling essential roles in healthcare, hospitality, construction, food service, and other industries that our city depends on every day.

Yet far too many Latino families are being priced out. **More than half of Latino households spend over one-third of their income on rent**, leaving them rent-burdened and struggling to make ends meet.

Prop I will build more affordable homes for low- and middle-income San Franciscans, giving working families the opportunity to put down roots, build stability, and keep contributing to the communities they call home.

Vote YES on I.

Faith in Action Bay Area
La Raza Community Resource Center
PODER
Coleman Advocates
*Former DCCC member Anabel Ibanez**
*Former Supervisor David Campos**
*Former Supervisor John Avalos**
*Stephen Torres, LGBTQ+ Activist**

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The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

YES ON I: HOMELESSNESS PREVENTION WORKS

There is nothing more effective in preventing homelessness than to keep a person in their home before they lose it.

A study of the prior rental assistance program (ERAP) found that struggling renters who received aid were 40% less likely to experience homelessness.

Prop I ensures we prevent homelessness before it starts and give our most vulnerable San Franciscans a chance to get back on their feet.

Vote YES on I.

*Coalition on Homelessness
Glide*

The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

YES ON I: SUPPORTED BY ENVIRONMENTAL LEADERS

A green future starts with building housing so San Franciscans can live where they work.

Skyrocketing rents mean that many workers are pushed out of San Francisco and must commute long distances to work, worsening the climate crisis. **Emissions from cars are responsible for 46% of San Francisco's carbon footprint.**

Prop I ensures we can build healthy, sustainable communities to protect future generations.

Vote YES on Prop I!

*PODER
SF Climate Emergency*

The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

The three largest contributors to the true source recipient committee: 1. Dylan Hirsch-Shell, 2. Charles F. Good Trust, 3. Dean Preston.

YES, YES ON HOUSING: LET'S BUILD THE HOUSING WE NEED

This year, San Francisco has an opportunity to pass two historic affordable housing measures that will make

a tremendous difference for our city -- without raising a penny of taxes.

Yes on I is vital to achieving our housing goals:

- **Provides funding for housing without raising taxes**
- **Reduces the transfer tax currently paid by large new housing projects**, encouraging housing growth at all income levels
- **Establishes innovative social housing** which would help address the housing needs of middle income residents and gives people from different walks of life an opportunity to afford homes and build community together
- **Helps San Francisco meet our state-mandated affordable housing goals**, avoiding state penalties

We urge you to vote YES, YES ON HOUSING.
Vote YES on I.

*San Franciscans for Social Housing
Dylan Hirsch-Shell, Co-Founder*
Honest Charley Bodkin, Co-Founder**

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The true source(s) of funds for the printing fee of this argument: Fair Housing, Yes on I.

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Paid Arguments Against

JOIN SAN FRANCISCO FIREFIGHTERS IN OPPOSING PROP I'S DIVERSION OF GENERAL FUND SERVICES

San Francisco should not put essential emergency services under greater budget pressure for a measure that does not guarantee new affordable housing.

Prop I would pull roughly \$120 million every year from the General Fund and place it into a dedicated non-profit slush fund.

Those are dollars the City currently has flexibility to use for firefighters, paramedics, emergency response, clean streets, public safety, transit, and other essential services.

Firefighters know what happens when City budgets tighten: departments are asked to do more with less while staffing, equipment, and emergency-response systems face greater pressure.

Do not create another budget hole without actually guaranteeing new affordable housing.

Protect essential services.

Vote NO on Prop I.

San Francisco Firefighters Local 798

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT KEEPS SAN FRANCISCO'S BUILDINGS CLEAN AND RUNNING IN OPPOSING PROP I

Working people deserve affordable homes and a City government that can still provide the services they rely on.

Prop I would provide neither. It would pull roughly \$120 million a year from the General Fund without requiring a single new unit of housing to be built.

SEIU Local 87 janitors keep buildings clean and safe. Our members feel San Francisco's housing costs every day. They also rely on emergency response, public safety, clean streets, transit, and other basic City services.

Working families should not have to choose between affordable housing and essential services.

Prop I guarantees money to a handful of programs. It does not guarantee the new affordable housing and city services we need.

Vote NO on Prop I.

SEIU Local 87 Janitors

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

SPRINKLER FITTERS LOCAL 483

JOIN THE UNION THAT ACTUALLY MAKES AFFORDABLE HOUSING SAFE IN OPPOSING PROP I

Prop I promises affordable housing, but it does not require the City to actually build it. That's because it misleads voters and takes money out of the general fund at a key

Prop I guarantees a funding stream for non-profits. It does not guarantee new homes. Housing dollars should build homes, not simply create another permanent program.

Vote NO on Prop I.

James Clark, Sprinkler Fitters Local 483*

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The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT INSTALLS AND MAINTAINS THE ELEVATORS IN SAN FRANCISCO'S BUILDINGS IN OPPOSING PROP I

A housing program should be judged by the homes it delivers, not simply by the dollars it spends.

Prop I would take roughly \$120 million a year out of the General Fund without requiring that a single new unit of housing be built.

San Francisco should invest in affordable housing that gets constructed, completed, and occupied. Prop I guarantees a permanent stream of spending. It does not guarantee those results.

Vote NO on Prop I.

International Union of Elevator Constructors Local 8

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY BUILDS THE STRUCTURES FOR AFFORDABLE HOUSING IN OPPOSING PROP I

Prop I is being sold as an affordable housing measure, but it would drain roughly \$120 million a year from the General Fund without guaranteeing new affordable housing.

Prop I skips the most important requirement: building housing.

We support affordable housing investments that create homes, good union jobs, and measurable results. Prop I does none of that.

Vote NO on Prop I.

Iron Workers Local 376

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco

Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE CARPENTERS WHO ACTUALLY BUILD AFFORDABLE HOUSING IN OPPOSING PROP I

Prop I would take about \$120 million every year out of the General Fund and lock it into a new spending program.

But only a fraction of that money is actually required to support new housing construction.

We believe San Francisco should invest aggressively in affordable housing, especially projects that put people to work and add real homes to our neighborhoods.

Prop I gets that backwards. It guarantees the money will be spent, but it does not guarantee that new housing will be built.

Vote NO on Prop I.

*Timothy Reyff, North Coast States Carpenters**

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The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY OPERATES THE EQUIPMENT TO BUILD AFFORDABLE HOUSING IN OPPOSING PROP I

Housing policy should be measured by what actually gets built, not by how much money gets moved around.

San Francisco should invest in programs that move from plans to construction, create good union jobs, and deliver measurable results.

Prop I does none of that.

Vote NO on Prop I.

Operating Engineers Local 3

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY KEEPS SAN FRANCISCO BUILDINGS RUNNING IN OPPOSING PROP I

Prop I is a deceptively written measure that claims to be an affordable housing measure but really blows a hole in our city's budget with little accountability.

Prop I creates a permanent funding commitment for a handful of nonprofits without a permanent requirement to actually produce affordable housing. That's not good policy.

Vote NO on Prop I.

*Abel Fuaau, Stationary Engineers Local 39**

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The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY PIPES AFFORDABLE HOUSING IN OPPOSING PROP I

Prop I is being sold as a housing solution, but it guarantees spending without guaranteeing a single new home.

Prop I would pull roughly \$120 million a year from the General Fund without requiring a single new unit of housing to be built.

The fine print of Prop I shows how misguided this measure is. 30% percent must go to "social housing." Another 25% can go to nonprofits to acquire existing apartments. Another 10% can fund nonprofit programs that do not build new homes. 5% percent can go to administration and more red tape.

That means at least 70% will not go to programs that actually build new affordable housing.

We support major investments in affordable housing and good union jobs. But taxpayers deserve to know housing dollars will actually result in housing production.

Build housing, not another bureaucracy.

Vote NO on Prop I.

UA Local 38 Plumbers

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY WIRES AFFORDABLE HOUSING IN OPPOSING PROP I

You cannot solve an affordable housing shortage without putting skilled workers to work building homes.

Prop I would pull roughly \$120 million a year from the General Fund without requiring that skilled workers have the guarantee of helping get new affordable housing built.

A measure advertised as a housing solution should answer one simple question: how many new affordable homes must it build?

Prop I cannot guarantee even one. Housing dollars should build housing.

Vote NO on Prop I.

International Brotherhood of Electrical Workers Local 6

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY THAT ACTUALLY GETS AFFORDABLE HOUSING BUILT IN OPPOSING PROP I

Prop I would take roughly \$120 million a year out of the General Fund while giving voters no guarantee that money will produce new housing.

Prop I guarantees money for non-profits, but not housing.

Working families deserve affordable homes and a City government capable of providing essential services.

Vote NO on Prop I. Vote NO on Prop I.

Teamsters Local 350

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

TEAMSTERS LOCAL 665

JOIN THE UNION THAT ACTUALLY GETS AFFORDABLE HOUSING BUILT IN OPPOSING PROP I

Prop I would take roughly \$120 million a year out of the

General Fund while giving voters no guarantee that money will produce new housing.

Prop I guarantees money for non-profits, but not housing.

Working families deserve affordable homes and a City government capable of providing essential services.

Vote NO on Prop I.

Teamsters Local 665

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

JOIN THE UNION THAT ACTUALLY BUILDS AFFORDABLE HOUSING IN OPPOSING PROP I

San Francisco should be putting people to work building housing, not creating another permanent funding stream with no construction requirement.

Affordable housing investment should create good union jobs, and measurable results. Prop I doesn't do that.

Vote NO on Prop I.

Laborers Local 261

The true source(s) of funds for the printing fee of this argument: No on I, SF For Accountability in Housing, Sponsored by the San Francisco Building & Construction Trades Council & the San Francisco Chamber of Commerce.

The sole contributor to the true source recipient committee: Electrical Industry Services Bureau, Inc.

Vote NO on I: Insiders, Inefficiency and IOUs

San Francisco has a structural budget problem. Proposition I makes it worse.

City Hall keeps using the same playbook: take taxpayer dollars, lock them into specials slush funds, create permanent spending commitments - and leave taxpayers with the bill.

This ballot is chockfull of flawed measures - The foreclosure tax. The Housing Trust Fund. Now Proposition I.

Different names. Same City Hall shell game.

This time, the sales pitch is "affordable housing and "social housing". Who could be against that?

That's the trick. Follow the money. Prop I continues and expands a slush fund for non-profit programs with no accountability, no oversight and no guarantee that it will build housing.

Prop I guarantees a stream of public money for nonprofits and programs without guaranteeing taxpayers what they'll get for it.

No maximum taxpayer cost per unit.

No meaningful construction-cost ceiling.

No minimum number of units that must be delivered.

No requirement to choose the most cost-effective solution.

That's a great deal for the developers, consultants, nonprofits and other interests feeding at the affordable-housing trough.

It's a lousy deal for taxpayers.

Prop I even allows City Hall to borrow against this revenue and use it to repay debt. Earmark the money. Spend it. Borrow against it. Then come back to taxpayers when the General Fund runs short.

That's not fiscal responsibility. That's a racket taxpayers can't afford. San Francisco cannot tax, earmark and borrow its way out of a structural deficit.

Before City Hall locks away another stream of taxpayer dollars, demand results from the billions it already spends.

Taxpayers are not City Hall's ATM! Stop the spending slush fund racket. Stop the budget shell game.

Vote NO on Proposition I!

Quentin L Kopp

San Francisco Taxpayers Association

The true source(s) of funds for the printing fee of this argument:
San Francisco Taxpayers Association.

The three largest contributors to the true source recipient committee: 1. Quentin L Kopp, 2. Peter Fatooh, 3. Gina Tse-Louie.

J – Removal of Foreclosure Exemption for Real Property Transfer Tax

Shall the City permanently apply a transfer tax of between 0.5% and 6% of a property's fair market value, on the transfer of properties such as commercial, industrial, and large residential properties, that are transferred to a lender because of foreclosure or to avoid foreclosure, for estimated annual revenue of \$100 million to \$150 million?

YES	☐
NO	☐

This measure requires 50%+1 affirmative votes to pass.

Digest by the Ballot Simplification Council

The Way It Is Now: San Francisco charges a tax when most real estate property in the City changes hands. The amount of the tax depends on the property's sales price or value.

When a lender takes over a property through foreclosure, or when an owner hands over a property to the lender to avoid foreclosure, there is a tax break. The lender pays tax only on the difference between what the property sold for and what is still owed to the lender, including interest and foreclosure costs.

State law limits the total revenue, including tax revenue, the City may spend each year. The voters may approve increases to this limit for up to four years.

The Proposal: Proposition J would apply a transfer tax for properties such as commercial, industrial, and large residential real estate that a lender takes through foreclosure or is handed over to the lender to avoid foreclosure. Starting March 1, 2027, these properties would be taxed on their full market value.

The tax break would still apply to the transfer of:

1. single-family residences,
2. multi-family residential buildings with fewer than five units, and
3. mixed-use properties with fewer than five residential units and only one floor of non-residential space.

Proposition J would increase the City's spending limit for four years.

A "YES" Vote Means: If you vote "yes," you want to apply a transfer tax for properties such as commercial, industrial, and large residential properties, that are transferred to a lender because of foreclosure.

A "NO" Vote Means: If you vote "no," you do not want to make these changes.

Controller's Statement on "J"

City Controller Greg Wagner has issued the following statement on the fiscal impact of Proposition J:

Should the proposed initiative ordinance be approved by the voters, in my opinion, it would significantly increase the City's Real Property Transfer Tax revenues although the amount generated each year would be unpredictable and likely to change significantly year-to-year. The measure could bring an average of \$100 million to \$150 million annually over the first five years. The total revenue in any given year will be highly dependent on the number of foreclosures and real estate conditions. It is likely that revenue increases would be highest in the near term then decline significantly over time.

Currently the City partially exempts transfers of real property to a lender by foreclosure or in lieu of foreclosure from its Real Property Transfer Tax, which imposes a tax ranging from 0.5% to 6% of properties' consideration or value when they are transferred. The proposed ordinance would retain the existing partial exemption for foreclosures of residential and mixed-use properties with fewer than five residential units. However, the proposed ordinance would remove the foreclosure exemption from other

property types and subject those transfers to the tax on the fair market value of the properties at the same rates as non-foreclosed properties.

The revenue generated by this measure will be highly dependent on the number of foreclosures and distressed properties in the City. The number of distressed properties has risen since the COVID-19 pandemic because of the decline in property values resulting from the pandemic. If real estate recovers quickly and the number of foreclosures decreases, the proposed ordinance would bring in less revenue. But if the real estate market does not recover quickly and the number of foreclosures remains high, the proposed ordinance will generate more revenue.

For context, in Fiscal Year (FY) 2021-2022, before the City's real estate market declined due to the pandemic, the proposed ordinance would have generated \$3.2 million. However, several years later in FY 2025-26, the proposed ordinance would have generated \$232.5 million. Based on the City's experience in the early 1990s recession and the Great Recession in the late 2000s, the number of foreclosure-related transactions will likely fall over a four-to-six-year period back to non-crisis levels.

Revenue from this proposed measure is likely to be significantly more unpredictable than the current Real Property Transfer Tax. It falls on a very narrow and highly cyclical portion of property transfers in the City. There may be years where the proposed measure generates next to no new tax revenue.

How “J” Got on the Ballot

On July 28, 2026, the Board of Supervisors voted 10 to 0, with one Supervisor excused, to place Proposition J on the ballot. The Supervisors voted as follows:

Yes: Chan, Chen, Dorsey, Fielder, Mahmood, Mandelman, Melgar, Sauter, Sherrill, Wong.

No: None.

Excused: Walton.

Proponent's Argument

Vote YES on Proposition J

PROP J ENDS THE UNFAIR TAX BREAK FOR CORPORATE LENDERS

Right now, corporate lenders are taking advantage of a tax break that was meant for struggling homeowners. And it's draining the fund we use to pay for our firefighters, street cleaners, and public health workers.

In 1984, to protect San Francisco families who were financially struggling, the city created a tax break for homeowners who couldn't pay their mortgage and would lose their homes to foreclosure. But the same tax break is also being given to financial institutions and corporate lenders when they acquire office towers, mega apartment complexes, and industrial buildings through foreclosure.

That's not fair, and it's costing San Francisco hundreds of millions of dollars.

Written by Supervisor Bilal Mahmood and Mayor Daniel Lurie, Proposition J will raise between \$100 million and 150 million every year for our general fund. It keeps the tax break for homeowners and small residential buildings, but makes sure that corporate lenders can't take advantage of this tax relief meant for struggling San Francisco families.

Our city is dealing with a budget shortfall, and we are facing cuts to city services. Prop J helps close that gap by ending a giveaway to corporate lenders that are foreclosing on our residents.

PROPOSITION J is endorsed by:

- *Mayor Daniel Lurie*
- *State Senator Scott Wiener*
- *Assemblymember Matt Haney*
- *Assemblymember Catherine Stefani*
- *SEIU 1021*
- *SEIU 2015*
- *Teamsters 665*
- *Board President Rafael Mandelman*
- *Supervisor Bilal Mahmood*
- *Supervisor Myrna Melgar*
- *Supervisor Danny Sauter*
- *Supervisor Alan Wong*
- *Supervisor Matt Dorsey*
- *Supervisor Chyanne Chen*
- *San Francisco Democratic Party*
- *Saikat Chakrabarti*

Rebuttal to Proponent's Argument

Vote NO on Proposition J

Proposition J is not about "fairness" or protecting struggling families—it is a misguided tax hike that will worsen San Francisco's economic crisis and housing shortage.

The proponents claim this measure closes an "unfair tax break" and will generate up to \$150 million for our general fund. What they fail to mention is that this money has no strings attached. It flows directly into the City's general fund, acting as a blank check for politicians rather than legally guaranteeing a single cent for the "firefighters, street cleaners, and public health workers" they mention.

Furthermore, penalizing lenders who take over distressed "office towers, mega apartment complexes, and industrial buildings" through foreclosure will have catastrophic downstream effects. San Francisco is already suffering from record-high commercial vacancies. By increasing the financial burden on institutions trying to stabilize and resell these failing properties, Prop J will stall recovery efforts. Instead of revitalizing our downtown and neighborhoods, distressed properties will sit abandoned, deepening the budget shortfall as overall property values and tax revenues plummet.

The original 1984 tax rules were designed to keep the real estate market functioning during crises. Changing these rules now will deter the investment San Francisco desperately needs. When lenders face higher operational costs, those costs are inevitably passed down to everyday San Franciscans through higher interest rates, stricter lending requirements, and reduced access to capital for local projects.

Don't give City Hall another blank check while stalling our economic recovery.

Vote NO on Proposition J.

Quentin L Kopp

San Francisco Taxpayers Association

Opponent's Argument

Vote NO on eliminating the real property transfer tax foreclosure exemption.

This measure imposes heavy tax penalties on property foreclosures and deeds-in-lieu, severely crippling San Francisco's economic recovery and housing market by creating a punitive, unpredictable environment for commercial and residential lending.

1. Disproportionately Harms San Francisco's Credit and Lending Environment

No other major city in California imposes transfer taxes on distressed lenders taking back collateral. By penalizing banks, community lenders, and credit unions when a borrower defaults, this measure makes lending in San Francisco significantly riskier and more expensive than anywhere else in the state. Lenders will respond by raising interest rates, demanding higher down payments, or avoiding San Francisco real estate entirely.

2. Stifles Housing Production and Downtown Recovery

San Francisco urgently needs investment to build multi-family housing and revitalize downtown commercial space. Chilling the credit market directly undermines housing development, deters adaptive reuse projects, and makes it harder for property owners to restructure debt during economic downturns.

3. Forces Destructive Fire Sales and Abandonment

When distressed properties face massive tax bills just to clear bad debt, lenders and property owners will be forced into drawn-out legal battles or distressed fire sales. This depresses neighborhood property values and leaves vacant buildings blighting local corridors.

San Francisco cannot afford policies that scare away capital, freeze lending, and penalize financial resolution. Protect local economic stability and housing credit.

Vote NO on Measure J.

Judge Quentin L Kopp
San Francisco Taxpayers Association

Rebuttal to Opponent's Argument

YES ON J — TAX CORPORATE LENDERS WHEN THEY FORECLOSE ON BUILDINGS

Prop J doesn't touch families losing their homes. It only removes the tax break for corporate lenders that foreclose on office towers, mega apartment complexes, and industrial buildings. Homeowners and small residential buildings keep the exemption. That's written into the measure.

WONT HARM THE MARKET: This tax break was created in 1984 to protect struggling families, not to subsidize lenders. Investment firms and corporate lenders that foreclose on large commercial properties are sophisticated players who already price risk into every deal. A modest transfer tax on a handful of major transactions a year isn't going to freeze lending citywide. It just closes a loophole those lenders were never supposed to use.

WONT HURT HOUSING PRODUCTION: The foreclosure tax will apply to office towers, industrial buildings, and mega-complexes that already exist, not new housing construction. Prop J doesn't tax builders. It taxes lenders. That won't affect how new housing gets built.

PROTECTS CITY SERVICES: Prop J's opponents are asking San Franciscans to keep giving a tax break to the very institutions that already benefit most from foreclosure, at the expense of the fund that pays for firefighters, street cleaners, and public health workers.

The choice is simple. Keep an unfair corporate tax break meant for families. Or put millions of dollars back into our fund for city services.

Vote YES on Prop J.

Supervisor Bilal Mahmood

Proposition A

Describing and setting forth a proposal to the voters at an election to be held on November 3, 2026, to amend the Charter of the City and County of San Francisco by 1) requiring or authorizing the Board of Supervisors to amend specified initiative ordinances; 2) transferring from the Charter to the Municipal Code certain commissions and advisory bodies, in some cases with modified functions; 3) requiring that the Commission Streamlining Task Force be convened every ten years; 4) removing the general requirements that boards and commissions develop and keep an annual statement of purpose, appoint an executive secretary, and prepare an annual report; 5) changing the membership qualifications, composition, and member selection process for certain bodies; 6) eliminating, consolidating, and changing the functions and authorities of certain bodies; 7) changing the planning and reporting schedule of the Department of Children, Youth, and Their Families (“DCYF”) and related policy bodies, and changing the names but not the functions of those related policy bodies; 8) specifying that elected members of the Retirement Board, Health Service Board, and Retiree Health Care Trust Fund Board may be removed only for official misconduct; 9) making various changes to departments’ operations and reporting requirements; 10) updating the Public Utilities Commission’s exclusive charge over matters related to water, power, and sewer infrastructure and services; 11) providing that the Board of Supervisors shall approve settlements or dismissals of legal proceedings recommended by the City Attorney by resolution, rather than by ordinance; 12) authorizing the City Administrator to conduct real estate strategic planning and to negotiate and manage acquisitions, leases, and conveyances of City real property; and 13) making clarifying edits, deleting obsolete language, and updating out-of-date references in various sections.

Section 1. The Board of Supervisors hereby submits to the qualified voters of the City and County, at an election to be held on November 3, 2026, a proposal to amend the Charter of the City and County by:

- (1) revising Sections 2.101, 2.104, 2.105, 2.109, 3.103, 4.100, 4.100.1, 4.102, 4.104, 4.105, 4.111, 4.112, 4.114, 4.120, 4.121, 4.123, 4.127, 4.133, 4.135, 4.136, 4.140, 5.104, 5.105, 5.106, 6.102, 8.103, 8A.101, 8A.102, 8A.103, 8A.104, 8A.105, 8A.106, 8A.107, 8A.111, 8A.113, 8B.120, 8B.121, 8B.122, 8B.123, 8B.124, 8B.125, 8B.126, 9.109, 9.114, 9.115, 9.116, 9.119, 12.100, 12.200, 12.202, 12.203; 12.204, 13.110, 15.105, 16.107, 16.108, 16.108-1, 16.114, 16.127-1, 16.128-4, 16.128-6, 16.128-7, 16.128-8, 16.128-11, 16.130, 18.100, A7.204, A8.420, A8.423, A8.425, A8.428, A8.429, F1.101, F1.102, F1.103, F1.104, F1.105, F1.106, and F1.108;
- (2) deleting Sections 16.127-2, 16.127-4, 16.127-7, 16.127-8, and 16.127-12; renumbering 16.127-3 as 16.127-2, 16.127-5 as 16.127-3, 16.127-6 as 16.127-4, 16.127-9 as 16.127-5, 16.127-10 as 16.127-6, and 16.127-11 as 16.127-7, and revising renumbered 16.127-2, 16.127-3, 16.127-4, 16.127-5, 16.127-6, and 16.127-7;
- (3) deleting Sections 4.103, 4.139, 4.141, 8A.100, 16.103, 16.128-13, 18.104, 18.109, 18.110, 18.112, 18.113, A8.346, A8.409-6, and D3.750-5;
- (4) adding Sections 14.101.1 and 18.116;
- (5) transferring the following Sections as amended to the Administrative Code: Sections 4.111, 4.120, 4.121(f), , 8B.123(b), 8B.125(c), 9.114, 9.115, 9.116, 16.107(i), 16.128-11, and F1.108;
- (6) transferring Section 8A.111 as amended to Division II of the Transportation Code; and
- (7) revising Section 3.104, if the voters also approve the measure titled “Modernizing City Contracting,” at the November 3, 2026

election; all to read as follows:

- NOTE: **Unchanged Charter text and uncodified text** are in plain font.
Additions are single-underline italics Times New Roman font.
Deletions are ~~strike-through italics Times New Roman font~~.
Asterisks (* * * *) indicate the omission of unchanged Charter subsections.

SEC. 2.101. TERM OF OFFICE.

(a) Each member of the Board of Supervisors shall be elected at a general election and shall serve a four-year term commencing at noon on the eighth day in January following election and until a successor qualifies. ~~The respective terms of office of the members of the Board of Supervisors in effect on the date this Charter is adopted shall continue.~~

(b) No person elected or appointed as a Supervisor may serve as such for more than two successive four-year terms. Any person appointed, elected, or any combination thereof to the office of Supervisor to complete in excess of two years of a four-year term shall be deemed, for the purpose of this section, to have served one full term. No person having served two successive four-year terms may serve as a supervisor, either by election or appointment, until at least four years after the expiration of the second successive term in office. Any Supervisor who resigns with less than two full years remaining until the expiration of the term shall be deemed, for the purposes of this section, to have served a full four-year term.

SEC. 2.104. QUORUM.

(a) The presence of a majority of the members of the Board of Supervisors at a regular or special meeting shall constitute a quorum for the transaction of business. The term “presence” shall include participation by teleconferencing or other electronic means as authorized by state law Government Code Section 54953(b) or any successor legislation after the Board of Supervisors has adopted an ordinance pursuant to subsection (c) allowing such participation when the member is physically unable to attend in person, as certified by a health care provider, due to the member’s pregnancy, childbirth, or related condition. The Board of Supervisors may also, as part of a parental leave policy adopted pursuant to subsection (c), authorize a member to participate in meetings by teleconferencing or other electronic means when the member is absent to care for ~~their/ his or her~~ child after birth of the child, or after placement of the child with the member or the member’s immediate family for adoption or foster care. In the absence of a quorum, a smaller number of members may compel the attendance of absent members in the manner and under the penalties established by the Board of Supervisors.

(b) The Board of Supervisors shall act by a majority, ~~two-thirds, three-fourths, or other~~ vote of all members of the Board, unless a different vote threshold is provided in the Charter, in state law, in a voter-adopted ordinance for purposes of amending only that voter-adopted ordinance, or by motion for purposes of enacting, amending, or waiving Board rules only. Each member present at a regular or special meeting shall vote “yes” or “no” when a question is put, unless excused from voting by a motion adopted by a majority of the members present. This provision does not limit the obligation of a member to recuse themselves from a matter if their participation would violate City or state law, including but not limited to City or state law pertaining to conflicts of interest.

(c) Notwithstanding the provisions of Charter Section 10.101, the Board of Supervisors shall adopt parental leave policies for its members, including, but not limited to, authorization to participate in meetings by teleconferencing or other electronic means pursuant to subsection (a) and subject to the restrictions listed in that subsection.

SEC. 2.105. ORDINANCES AND RESOLUTIONS.

* * * *

The Board of Supervisors shall act only by written ordinance or resolution, except that it may act by motion on matters over which it the Board of Supervisors has exclusive jurisdiction. All legislative acts shall be by ordinance. An ordinance or resolution may be introduced before the Board of Supervisors by a member of the Board, a committee of the Board, the Mayor, or the Commission Streamlining Task Force subject to the limitations set forth in Section 4.100.1, and shall be referred to and reported upon by an appropriate committee of the Board. An ordinance or resolution may be prepared in committee and reported out to the full Board for action, consistent with the applicable public notice laws ~~of the City~~. Except as otherwise provided in this Charter, passage of an ordinance or a resolution shall require the affirmative vote of a majority of the members of the Board.

An ordinance shall deal with only one subject matter, except that appropriations ordinances may cover appropriations with respect to any number of subjects. The title of each ordinance shall clearly reflect the content of the ordinance.

Except as otherwise provided in Section 2.107, passage of an ordinance shall require two readings at separate meetings of the ~~Board of Supervisors~~, which shall be held at least five days apart. If an ordinance is amended at its second reading, the ordinance shall require a further reading prior to final passage. Resolutions shall require only one reading and may be passed adopted upon introduction without reference to committee by unanimous affirmative vote of the members of the Board ~~of Supervisors~~ who are present, but in no event less than a quorum.

Ordinances and resolutions passed by the Board may be enacted after presentment to the Mayor as provided in Section 3.103. Ordinances shall take effect no sooner than 30 days after enactment following the date of passage except for ordinances not subject to referendum and those authorizing bonded indebtedness and lease financings, which shall take effect immediately. Ordinances granting franchises shall take effect no sooner than 60 days after their enactment passage. No ordinance granting a franchise may be passed within 90 days of its introduction. Resolutions may take effect immediately after their enactment upon passage, or at such other time as shall be specified in the resolutions.

SEC. 2.109. RATES, FEES, AND SIMILAR CHARGES.

Within 30 days of submission by the Mayor, the Board of Supervisors shall approve by ordinance or reject any rate, fee or similar charge to be imposed by any department, official, board or commission, except those rates, fees, and similar charges established by the Port or Airport Commissions, or under the Refuse Collection and Disposal Ordinance No. 083 of November 8, 1932, as amended.

SEC. 3.103. PRESENTMENT OF LEGISLATION TO THE MAYOR; VETO POWER.

Any ordinance or resolution passed by the Board of Supervisors shall be promptly delivered to the Mayor for consideration. If the Mayor approves the ordinance or resolution, the Mayor shall sign it and it shall become enacted and take effective as provided in Section 2.105 and Section 2.107 of this Charter. If the Mayor disapproves the ordinance or resolution, the Mayor shall promptly return it to the Board of Supervisors without the Mayor's signature, accompanied by a statement indicating the reasons for disapproval and any recommendations which the Mayor may have. Any ordinance or resolution so disapproved by the Mayor shall become effective only if, subsequent to its return, it shall be passed by a vote of the Board of Supervisors required by Section 2.106 of this Charter. Any ordinance or resolution shall become effective, with or without the Mayor's signature, unless it is disapproved by the Mayor and returned to the Board of Supervisors not more than ten days after the date the ordinance or resolution was delivered to the Mayor's Office

for consideration.

SEC. 4.100. GENERAL.

In addition to the office of the Mayor, the executive branch of the City and County shall be composed of departments, appointive boards, commissions, and other units of government that perform the sovereign powers of the City and County. To the extent law permits, each appointive board, commission, or other unit of government of the City and County established by State or Federal law shall be subject to the provisions of this Article IV and this Charter. The Board of Supervisors, by ordinance, may change the name of any department, board, commission, or other unit of government, including a name assigned in the Charter.

SEC. 4.100.1. COMMISSION STREAMLINING TASK FORCE.

(a) **Establishment of the Task Force.** By no earlier than January 1, 2035, and no later than February 1, 2025 ~~2035~~, and at ten year intervals following those dates, a Commission Streamlining Task Force ("Streamlining Task Force") shall be convened for the purpose of advising the Mayor and the Board of Supervisors on ways to eliminate, consolidate, or limit the powers and duties of appointive boards and commissions for the more effective, efficient, and economical administration of City and County government, and introducing one or more ordinances to effectuate its recommendations. Once convened, The the Streamlining Task Force shall have the powers and duties set forth herein, and shall expire by operation of law for a period of 24 months after following its first meeting. The Streamlining Task Force existing at the time the amendment of this Section 4.100.1 at the November 3, 2026 election goes into effect shall automatically expire on January 1, 2027.

The City Administrator shall provide administrative support to the Streamlining Task Force. The Controller and the City Administrator shall provide administrative, professional, and technical assistance to the Streamlining Task Force. All City and County officials, departments, and other agencies, and all appointive boards and commissions, shall cooperate with the Streamlining Task Force as it performs its responsibilities under this Section 4.100.1.

For purposes of this Section 4.100.1, an "appointive board" or "commission" includes any body that meets the definition of a "legislative body," under California Government Code § 54952, as may be amended, whether denominated a "board," "commission," "council," "committee," "task force," "advisory body," or otherwise.

(b) **Composition of the Streamlining Task Force.** The Streamlining Task Force shall consist of five members. Seat 1 shall be held by the City Administrator or the City Administrator's designee, who must be an employee of the Office of the City Administrator. Seat 2 shall be held by the Controller or the Controller's designee, who must be an employee of the Office of the Controller. Seat 3 shall be held by the City Attorney or the City Attorney's designee, who must be an employee of the Office of the City Attorney. Seat 4 shall be held by a representative of organized labor representing the public sector, appointed by the President of the Board of Supervisors. Seat 5 shall be held by an individual with expertise in open and accountable government, appointed by the Mayor. The Mayor's appointment shall not be subject to rejection by the Board of Supervisors under Charter Section 3.100(18). Members in seats 4 and 5 shall serve at the pleasure of their appointing authority.

(c) **Budget and Legislative Analyst Report.** The Streamlining Task Force shall undertake a comprehensive review of the City and County's appointive boards and commissions, including those created by voter-approved ordinance. To inform that review, by no later than September 1, 2025, the Budget and Legislative Analyst shall prepare and submit to the Streamlining Task Force, the Mayor, and the Clerk of the Board of Supervisors a report that assesses for each appointive board or commission established in the Charter (1) the annual financial

~~cost to the City to operate the body, including but not limited to the costs of City staff time spent to support, brief, meet with, develop materials for, or otherwise enable the functioning of the body; and (2) the projected financial impact of eliminating the appointive board or commission, or consolidating it with another body. The report shall also include an estimate of the average annual financial cost to the City of operating an appointive board or commission that is established by ordinance for the purpose of providing non-binding advice to City officials on a given topic.~~

(dc) Streamlining Task Force Report and Recommendations.

~~By no earlier than January 1, 2036, and no later than February 1, 20262036, and no later than February 1 of the year immediately following a year in which a subsequent Streamlining Task Force is convened,~~ the Streamlining Task Force shall prepare and submit to the Mayor and the Clerk of the Board of Supervisors a report containing the Streamlining Task Force's recommendations as to which existing appointive boards and commissions, if any, should be eliminated in their entirety, consolidated, revised to limit their powers and/or duties, or revised to expand their powers and/or duties as a result of a consolidation.

For each recommendation made pursuant to this subsection (dc), the Streamlining Task Force shall provide a rationale; analyze whether any function(s) performed by the appointive board or commission that is recommended to be eliminated, consolidated, or revised are required by law or essential to the effective operation of City and County government; and identify the City and County officers, departments, or other units of government that could assume responsibility for any legally required or essential function(s).

(ed) Effectuation of Recommendations.

~~By no later than March 1, 2026, the City Attorney shall prepare a draft Charter Amendment to implement the Streamlining Task Force's recommendations relating to commissions established in the Charter, and shall submit such draft to the Clerk of the Board of Supervisors. By no later than April 1, 20262036, and no later than April 1 of the year immediately following a year in which a subsequent Streamlining Task Force is convened,~~ the Streamlining Task Force's report and recommendations ~~and the draft Charter Amendment~~ shall be the subject of a hearing before the Board of Supervisors. ~~Any Supervisor(s) wishing to seek voter approval of the draft Charter Amendment, or a modified version thereof, shall be required to introduce the Charter Amendment for consideration by the Board of Supervisors, consistent with the process and deadlines set forth in the Municipal Elections Code and Board's Rules of Order at that time.~~

(e) During its tenure, the Streamlining Task Force shall have the authority to introduce one or more ordinances to effectuate its recommendations relating to the elimination, consolidation, or revision of any appointive board or commission established by ordinance, other than any appointive board or commission that was established or amended by the adoption of an ordinance approved by the voters and that cannot be amended or rescinded without voter approval. Such ordinance(s) shall be deemed enacted go into effect 90 days after the date of introduction unless before the expiration of the 90-day period two-thirds of all members of the Board of Supervisors vote to disapprove the ordinance.

(f) **Expiration.** ~~This Section 4.100.1 shall expire by operation of law on January 31, 2027, and the City Attorney shall cause it to be removed the Charter thereafter.~~

SEC. 4.102. BOARDS AND COMMISSIONS – POWERS AND DUTIES.

Unless otherwise provided in this Charter, each appointive board, commission or other unit of government of the executive branch of the City and County shall:

1. Formulate, evaluate and approve goals, objectives, plans and programs and set policies consistent with the overall objectives

of the City and County, as established by the Mayor and the Board of Supervisors through the adoption of City legislation;

~~2. Develop and keep current an Annual Statement of Purpose outlining its areas of jurisdiction, authorities, purpose and goals, subject to review and approval by the Mayor and the Board of Supervisors;~~

32. After public hearing, approve applicable departmental budgets or any budget modifications or fund transfers requiring the approval of the Board of Supervisors, subject to the Mayor's final authority to initiate, prepare and submit the annual proposed budget on behalf of the executive branch and the Board of Supervisors' authority under Section 9.103;

43. Recommend to the Mayor for submission to the Board of Supervisors rates, fees, and similar charges with respect to appropriate items coming within their respective jurisdictions;

54. Unless otherwise specifically provided, submit to the Mayor at least three qualified applicants, and if rejected, to make additional nominations in the same manner, for the position of department head, subject to appointment by the Mayor;

65. Remove a department head; the Mayor may recommend removal of a department head to the commission, and it shall be the commission's duty to act on the Mayor's recommendation by removing or retaining the department head within 30 days; failure to act on the Mayor's recommendation shall constitute official misconduct;

76. Conduct investigations into any aspect of governmental operations within its jurisdiction through the power of inquiry, and make recommendations to the Mayor or the Board of Supervisors; and

87. Exercise such other powers and duties as shall be prescribed by the Board of Supervisors; and

9. ~~Appoint an executive secretary to manage the affairs and operations of the board or commission.~~

In furtherance of the discharge of its responsibilities, an appointive board, commission or other unit of government may:

~~108.~~ Hold hearings and take testimony; and

~~119.~~ Retain temporary counsel for specific purposes, subject to the consent of the Mayor and the City Attorney.

Each board or commission, relative to the affairs of its own department, shall deal with administrative matters solely through the department head or ~~his or her~~ their designees, and any dictation, suggestion or interference herein prohibited on the part of any member of a board or commission shall constitute official misconduct; provided, however, that nothing herein contained shall restrict the board or commission's powers of hearing and inquiry as provided in this Charter.

SEC. 4.103. BOARDS AND COMMISSIONS – ANNUAL REPORT.

~~As of the operative date of this Charter and until this requirement is changed by the Board of Supervisors, each board and commission of the City and County shall be required by ordinance to prepare an annual report describing its activities, and shall file such report with the Mayor and the Clerk of the Board of Supervisors. The Annual Report can be included in the Annual Statement of Purpose as provided for in Section 4.102(2).~~

SEC. 4.104. BOARDS AND COMMISSIONS – RULES AND REGULATIONS.

* * * *

(b) The presence of a majority of the members of an appointive board, commission or other unit of government shall constitute a quorum for the transaction of business by such body. The term "presence" shall include participation by teleconferencing or other electronic means as authorized by state law Government Code Section 54953(b) or any successor legislation after the Board of Supervisors has adopted an ordinance pursuant to subsection (c) allowing such participation when the member is physically unable to attend in person,

as certified by a health care provider, due to the member's pregnancy, childbirth, or related condition. The Board of Supervisors may also, as part of a parental leave policy adopted pursuant to subsection (c), authorize a member of a board or commission to participate in meetings by teleconferencing or other electronic means when the member is absent to care for ~~their~~*his or her* child after birth of the child, or after placement of the child with the member or the member's immediate family for adoption or foster care. Unless otherwise required by this Charter, the affirmative vote of a majority of all the members shall be required for the approval of any matter, except that the rules and regulations of the body may provide that, with respect to matters of procedure the body may act by the affirmative vote of a majority of the members present, so long as the members present constitute a quorum. ~~All appointive boards, commissions or other units of government shall act by a majority, two-thirds, three-fourths or other vote of all members.~~ Each member present at a regular or special meeting shall vote "yes" or "no" when a question is put, unless excused from voting by a motion adopted by a majority of the members present. A body may excuse a member at the member's own request; and shall excuse a member if the member's participation would violate City or state law, including but not limited to City or state law pertaining to conflicts of interest.

SEC. 4.105. PLANNING COMMISSION.

* * * *

GENERAL PLAN. The Commission shall periodically recommend to the Board of Supervisors for approval or rejection proposed amendments to the General Plan. If the Board of Supervisors fails to act within 90 days of receipt, the proposed General Plan or amendments shall be deemed approved. The General Plan which will initially consist of the Master Plan in effect immediately prior to the effective date of this Charter shall consist of goals, policies and programs for the future physical development of the City and County that take into consideration social, economic and environmental factors. In developing their recommendations, the Commission shall consult with commissions and elected officials, and shall hold public hearings as part of a comprehensive planning process. The Planning Department, in consultation with other departments ~~and the City Administrator~~, shall periodically prepare special area, neighborhood and other plans designed to carry out the General Plan, and periodically prepare implementation programs and schedules which link the General Plan to the allocation of local, state and federal resources. The Planning Department may make such other reports and recommendations to the Mayor, Board of Supervisors and other offices and governmental units as it may deem necessary to secure understanding and a systematic effectuation of the General Plan.

* * * *

SEC. 4.111. HUMAN SERVICES COMMISSION.

The Human Services Commission shall consist of five members appointed by the Mayor, pursuant to Section 3.100, for four-year terms. Members may be removed by the Mayor only pursuant to Section 15.105.

As set forth in Section 18.116 of this Charter, this Section 4.111 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, Section 4.111 (as enacted into ordinance) may be amended or repealed by ordinance.

SEC. 4.112. PUBLIC UTILITIES COMMISSION.

(a) The Public Utilities Commission shall consist of five members appointed by the Mayor, subject to confirmation by a majority of the Board of Supervisors. Each of the members shall serve for a term of four years. Members may be removed by the Mayor only pursuant to Section 15.505.

(b) One seat shall be held by a person with experience in labor representation. In making appointments to the Commission, the

Mayor shall consider the following desirable qualifications, among other factors the Mayor deems relevant: Seat 1 on the Commission shall be a member with experience in environmental policy and an understanding of environmental justice issues; ~~Seat 2 shall be a member with experience in ratepayer or consumer advocacy; Seat 3 shall be a member with experience in project finance; and Seat 4 shall be a member with expertise in water systems, power systems, or public utility management; and Seat 5 shall be an at-large member.~~

(c) The respective terms of office of members of the Public Utilities Commission who old office on August 1, 2008 shall expire at noon on that date, and the members appointed pursuant to the amendments to this Section approved at the June 2008 election shall succeed to said office at that time. In order to provide for staggered terms, the members appointed to Seats 2 and 4 shall serve for an initial term of two years from August 1, 2008. The remaining three members appointed to Seats 1, 3, and 5 shall serve for an initial term of four years from August 1, 2008, and thereafter the terms of all members shall be four years.

(d) The Commission shall have charge of the construction, management, supervision, maintenance, extension, operation, use, and control of all water and energy supplies and utilities of the City as well as the real, personal, and financial assets, which are under the Commission's jurisdiction on the operative date of this Charter, or assigned pursuant to Section 4.132.

SEC. 4.114. PORT COMMISSION.

* * * *

The Commission shall have the composition and organization, and the powers, duties and responsibilities with respect to the Port that are set forth in the Burton Act, Statutes of 1968, Chapter 1333, as amended, and in the Agreement Relating to the Transfer of the Port of San Francisco from the State of California to the City and County, executed on the 24th day of January 1969.

The Commission shall be subject to the provisions of Sections 4.101 ~~through 4.103~~ and 4.102 of this Charter, so far as those powers and duties are not inconsistent with the Burton Act and the Transfer Agreement as they are referred to in the above paragraph.

SEC. 4.120. DISABILITY AND AGING SERVICES COMMISSION.

(a) The Disability and Aging Services Commission shall consist of seven members appointed by the Mayor, pursuant to Section 3.100, for four-year terms. Members may be removed by the Mayor. The Commission shall oversee the Department of Disability and Aging Services, including the functions of the Public Guardian/Administrator, as well as carry out any additional duties and functions assigned to the Commission by ordinance or pursuant to Section 4.132.

(b) As of January 15, 2020, Seat 1 on the Commission shall be held by a person who is 60 years old or older; Seat 2 shall be held by a person with a disability, as defined under the Americans With Disabilities Act, who is 18 years old or older; and Seat 3 shall be held by a person who served in the United States military and who was discharged or released under conditions other than dishonorable. Seats 4, 5, 6, and 7, shall have no required qualifications in addition to those set forth in Section 4.101.

(c) For the purpose of calculating the terms of particular seats on the Commission, Seats 1, 2, and 3 are hereby designated as the seats with terms ending on January 15, 2020. Notwithstanding Charter Section 4.101.5, members in those seats who do not as of January 15, 2020 hold the qualifications set forth in subsection (b) respectively may no longer serve in those seats.

As set forth in Section 18.116 of this Charter, this Section 4.120 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, Section 4.120 (as enacted into ordinance) may be amended

or repealed by ordinance, consistent with state and federal law.

SEC. 4.121. BUILDING INSPECTION COMMISSION.

(a) GENERAL. The Building Inspection Commission shall consist of seven members nominated and appointed pursuant to this Section 4.121 and with an emphasis on seeking to include members concerned with tenant safety and habitability issues. Four members shall be nominated by the Mayor for a term of two years. Three members shall be nominated by the President of the Board of Supervisors for a term of two years. Two of the four Mayoral appointments shall each have one or more of the following qualifications: be an active, formerly active, or retired structural engineer, architect, or residential builder. One of the three Board President appointments shall have one or more of the following qualifications: be a residential tenant or work or have worked for a non-profit housing organization.

(b) MEMBERS. Each nomination of the Mayor and the President of the Board of Supervisors is subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days. If the Board fails to act on the nomination within 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or after 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors. Members may be removed by the appointing officer only pursuant to Section 15.105. Vacancies occurring in the offices of members, shall be nominated and appointed in accordance with the appointment process specified in this paragraph.

(c) CODES. The Building Inspection Commission shall have responsibility for oversight of the Department of Building Inspection, which shall have responsibility for the enforcement, administration, and interpretation of the San Francisco Housing, Building, Existing Building, Green Building, Mechanical, Electrical, and Plumbing Codes, except where this Charter specifically grants that power to another department.

(d) INSPECTIONS AND ENFORCEMENT. The Commission shall oversee the inspection and regulation of additions, alterations, and repairs in all buildings and structures covered by the San Francisco Housing, Building, Existing Building, Green Building, Mechanical, Electrical, and Plumbing Codes. However, nothing in this Section 4.121 shall diminish or alter the jurisdiction of the Planning Commission or Department over changes of use or occupancy under the Planning Code. The Commission shall ensure the provision of minimum standards to safeguard life or limb, health, property, and the public welfare by regulating and controlling the safe use of such buildings and structures. The Commission shall ensure the vigorous enforcement of City laws mandating the provision of heat and hot water to residential tenants. The Commission shall also ensure the enforcement of local, state, and federal disability access laws. The Commission shall exercise all the powers and duties of boards and commissions set forth in Sections 4.102, ~~4.103~~, and 4.104, and may take other actions as prescribed by ordinance. The members of the Commission shall serve without compensation.

(e) RULES AND REGULATIONS. The Commission shall adopt rules and regulations consistent with fulfilling its responsibilities under this Charter. The Commission shall also adopt rules and regulations governing Commission meetings and also adopt requirements for notification and mailing for Commission business. The Commission shall hold public hearings on all proposed amendments to the San Francisco Building Code, Existing Building Code, Green Building Code, Electrical Code, Housing Code, Plumbing Code, and Mechanical Code.

(f) OTHER BODIES. The Commission shall constitute the Abatement Appeals Board, and shall assume all powers granted to this entity under this Charter and the San Francisco Building Code. The

Commission shall appoint and may remove at its pleasure members of the ~~Board of Examiners~~, Access Appeals Commission; and Code Advisory Committee, ~~all of which~~ shall have the powers and duties ~~to the extent~~ set forth in the San Francisco Building Code.

(g) PERMITS. The Commission may reverse, affirm, or modify determinations made by the Department of Building Inspection on all permits required for a final certificate of completion. The Commission's jurisdiction under this paragraph, however, shall not extend to permits appealable to the Planning Commission or Board of Appeals. Appeals of decisions within the Commission's jurisdiction must be filed with the Commission within fifteen days of the challenged determination. The Commission's action shall be final.

As set forth in Section 18.116 of this Charter, subsection (f) of this Section 4.121 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, subsection (f) of this Section 4.121 may be amended or repealed by ordinance.

SEC. 4.123. YOUTH COMMISSION MEMBERSHIP; APPOINTMENT; TERMS; MEETINGS; ~~COMPENSATION;~~ DIRECTOR.

* * * *

(d) ~~Compensation.~~ Members of the Commission shall not be compensated, nor shall they be reimbursed for expenses.

(ed) Meetings. The Commission shall meet at least once a month.

(fe) Minutes of Meetings. The Commission shall prepare and maintain permanent minutes of the actions taken during its meetings, and shall file copies with the Clerk of the Board of Supervisors.

(gf) Bylaws. To aid in the orderly conduct of business, the Commission shall have the authority to create, amend, and repeal its own code of bylaws.

SEC. 4.127. POLICE DEPARTMENT.

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POLICE STAFFING. By no earlier than October 1 and no later than November 1 in every odd-numbered calendar year, the Chief of Police shall transmit to the Police Commission a report describing the department's current number of full-duty sworn officers and recommending staffing levels of full-duty sworn officers in the subsequent two fiscal years. The report shall include an assessment of the Police Department's overall staffing, the workload handled by the department's employees, the department's public service objectives, the department's legal duties, and other information the Chief of Police deems relevant to determining proper staffing levels of full-duty sworn officers. The report shall evaluate and make recommendations regarding staffing levels at all district stations and in all types of jobs and services performed by full-duty sworn officers. By no later than ~~July~~ April 1 in every odd-numbered calendar year, the Police Commission shall adopt a policy prescribing the methodologies that the Chief of Police may use in evaluating staffing levels, which may include consideration of factors such as workload metrics, the Department's targets for levels of service, ratios between supervisory and non-supervisory positions in the Department, whether particular services require a fixed number of hours, and other factors the Commission determines are best practices or otherwise relevant. The Chief of Police may, but is not required by this Section 4.127 to, submit staffing reports regarding full-duty sworn officers to the Police Commission in even-numbered years.

* * * *

SEC. 4.133. HOMELESSNESS OVERSIGHT COMMISSION.

(a) There shall be a Homelessness Oversight Commission ("Commission") to oversee the Department of Homelessness and Supportive Housing ("Department"), or any successor agency. The Department shall, to the extent prescribed by ordinance, manage and direct housing, programs, and services for persons experiencing homelessness in the City, including, but not limited to, street outreach,

homeless shelters, transitional housing, homelessness prevention, and permanent supportive housing.

(b) The Commission shall consist of seven members, appointed as follows:

(1) Seats 1, 2, 3, and 4 shall be appointed by the Mayor under Section 3.100(18), subject to confirmation by the Board of Supervisors. Each nomination of the Mayor shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier. Seat 1 shall be held by a person who has personally experienced homelessness. Seat 2 shall be held by a person with significant experience providing services to or engaging in advocacy on behalf of persons experiencing homelessness. Seat 3 shall be held by a person with expertise in mental health service delivery or substance use treatment. Seat 4 shall be held by a person with a record of participation in a merchants' or small business association, or neighborhood association. In addition to the aforementioned qualifications, at least one of the Mayor's appointees shall have experience in budgeting, finance, and auditing.

(2) Seats 5, 6, and 7 shall be appointed by the Board of Supervisors. Seat 5 shall be held by a person who has personally experienced homelessness. Seat 6 shall be held by a person with significant experience providing services to or engaging in advocacy on behalf of persons experiencing homelessness. Seat 7 shall be held by a person with significant experience working with homeless families with children and/or homeless youth.

(3) For all seats, the appointing authority shall consider qualifications including, but not limited to, experience providing services to or engaging in advocacy on behalf of persons experiencing homelessness, expertise in mental health service delivery or substance use treatment, participation in a merchants' or small business association, participation in a neighborhood association, experience in budgeting, finance, and auditing, and experience working with homeless families with children and/or homeless youth, and shall also consider Section 4.101 shall apply to these appointments, with a particular emphasis on diversity in ethnicity, race, age, sex, gender identity, sexual orientation, and types of disabilities.

(c) Commission members shall serve at the pleasure of their respective appointing authorities and may be removed by their appointing authorities at any time. Vacancies shall be filled by the respective appointing authorities as prescribed in subsections (b)(1) and (2).

(d) Commissioners shall serve four-year terms, beginning at noon on May 1, 2023; provided, however, the term of the initial appointees in Seats 1, 4, and 6 shall be a two-year term, expiring at noon on May 1, 2025.

(e) The Commission shall elect a Chair, Vice-Chair, and officers for other such positions, if any, that it chooses to create.

(f) The Commission shall have the following powers and duties:

(1) With respect to the Department, the Commission shall exercise all of the powers and duties of boards and commissions as set forth in Sections 4.102, 4.103, and 4.104, including but not limited to, approving applicable departmental budgets, formulating annual and long-term goals consistent with the overall objectives of the City and County, establishing departmental performance standards, holding hearings and taking testimony, conducting public education and outreach concerning programs and services for homeless persons in San Francisco, and issues concerning homelessness, and conducting performance audits of the Department to assess the efficiency and effectiveness of the Department's delivery of services to persons

experiencing homelessness and persons participating in programs overseen by the Department, and the extent to which the Department has met the annual goals and performance standards established by the Commission.

(2) Notwithstanding the Commission's authority to review and set policies, the Commission shall not have the authority to approve, disapprove, or modify criteria used to ascertain eligibility or priority for programs and/or services operated or provided by the Department, where such criteria are required as a condition of the receipt of state or federal funding.

(g) The Mayor and the Board of Supervisors shall make their initial appointments to Seats 1-7, respectively, on the Commission by no later than noon, March 1, 2023. The Commission shall come into existence upon the appointment, and confirmation where required, of four members, or at noon on May 1, 2023, whichever is later. The Commission shall have its inaugural meeting within 30 days of its coming into existence.

SEC. 4.135. HISTORIC PRESERVATION COMMISSION.

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BUDGET, FEES, DEPARTMENT HEAD, AND STAFF. The provisions of Charter subsections 4.102(32), 4.102(42), 4.102(54), and 4.102(65) shall not apply to the Historic Preservation Commission. The Historic Preservation Commission may review and make recommendations on the Planning Department budget and on any rates, fees, and similar charges with respect to appropriate items coming within the Historic Preservation Commission's jurisdiction to the department head of the Planning Department or the Planning Commission. The department head of the Planning Department shall assume the powers and duties that would otherwise be executed by an Historic Preservation Commission department head. The Planning Department shall render staff assistance to the Historic Preservation Commission.

SEC. 4.136. DEPARTMENT OF POLICE ACCOUNTABILITY.

(a) There shall be under the Police Commission a Department of Police Accountability ("DPA").

(b) The Mayor shall appoint a nominee of the Police Commission as the Director of DPA, subject to confirmation by the Board of Supervisors. The Director shall serve at the pleasure of the Police Commission. If the Board of Supervisors fails to act on the appointment within 30 days, the appointment shall be deemed approved. In the event the office is vacant, until the Mayor makes an appointment and that appointment is confirmed by the Board, the Police Commission shall appoint an interim Director who shall serve at the pleasure of the Police Commission. The appointment of the Director shall be exempt from the civil service requirements of this Charter. The Director shall never have been a uniformed member or an employee of the Police Department. The Director shall be the appointing officer under the civil service provisions of this Charter for the appointment, removal, or discipline of employees of DPA.

(c) The Police Commission shall have the power and duty to organize, reorganize, and manage DPA. Subject to the civil service provisions of this Charter, DPA shall include investigators and hearing officers. The staff of DPA shall consist of no fewer than one line investigator for every 150 sworn members of the Police Department. Whenever the ratio of investigators to police officers specified by this subsection (c) is not met for more than 30 consecutive days, the Director shall have the power to hire, and the City Controller must pay, temporary investigators to meet such staffing requirements. No full-time or part-time employee of DPA shall have previously served as a uniformed member or an employee of the Police Department. Subject to rules of the Police Commission, the Director may appoint part-time hearing officers who shall be exempt from the civil service requirements of this Charter. Compensation of the hearing officers shall be at rates

recommended by the Commission and established by the Board of Supervisors or by contract approved by the Board of Supervisors.

(d) DPA shall promptly, fairly, and impartially investigate all complaints regarding police use of force, misconduct, or allegations that a member of the Police Department has not properly performed a duty, except those complaints which on their face clearly indicate that the acts complained of were proper and those complaints lodged by other members of the Police Department. DPA shall use its best efforts to conclude investigations of such complaints and, if sustained, transmit the sustained complaint to the Police Department within nine months of receipt thereof by DPA. If DPA is unable to conclude its investigation within such nine-month period, the Director, within such nine-month period, shall inform the Chief of Police of the reasons therefor and transmit information and evidence from the investigation as shall facilitate the Chief's timely consideration of the matter.

(e) DPA shall recommend disciplinary action to the Chief of Police on those complaints that are sustained. The Director, after meeting and conferring with the Chief of Police or ~~his or her~~ the Chief's designee, may verify and file charges with the Police Commission against members of the Police Department arising out of sustained complaints; provided, that the Director may not verify and file such charges for a period of 60 days following the transmittal of the sustained complaint to the Police Department unless the Director issues a written determination that the limitations period within which the member or members may be disciplined under Government Code Section 3304, as amended from time to time or any successor provisions thereto, may expire within such 60-day period and (1) the Chief of Police fails or refuses to file charges with the Police Commission arising out of the sustained complaint, (2) the Chief of Police or ~~his or her~~ the Chief's designee fails or refuses to meet and confer with the Director on the matter, or (3) other exigent circumstances necessitate that the Director verify and file charges to preserve the ability of the Police Commission to impose punishment pursuant to Section A8.343.

(f) The Director shall schedule hearings before hearing officers when such is requested by the complainant or a member of the Police Department and, in accordance with rules of the Commission, such a hearing will facilitate the fact-finding process. The Board of Supervisors may provide by ordinance that DPA shall in the same manner investigate and make recommendations to the Chief of Police regarding complaints of misconduct by patrol special police officers and their uniformed employees.

(g) Nothing herein shall prohibit the Chief of Police or a commanding officer from investigating the conduct of a member of the Police Department under ~~his or her~~ the command of the Chief or officer, or taking disciplinary or corrective action, otherwise permitted by this Charter, when such is warranted; and nothing herein shall limit or otherwise restrict the disciplinary powers vested in the Chief of Police and the Police Commission by other provisions of this Charter.

* * * *

(l) The DPA budget shall be separate from the budget of the Police Department. Notwithstanding Section 4.102(32), the Director shall submit DPA's proposed annual or two-year budget directly to the Mayor.

SEC. 4.139. SANITATION AND STREETS COMMISSION:

~~-(a) Purpose. There is hereby established a Sanitation and Streets Commission.~~

~~-(b) Membership and Terms of Office:~~

~~—(1) The Commission shall consist of five members, appointed as follows: Seats 1 and 2 shall be appointed by the Board of Supervisors. Seat 3 shall be appointed by the Controller subject to confirmation by the Board of Supervisors. Seats 4 and 5 shall be appointed by the Mayor subject to confirmation by the Board of Supervisors.~~

~~—Each nomination of the Mayor and the Controller shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor or Controller. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier.~~

~~—Qualifications for commissioners that are desirable, but not required, include a background or experience in cleaning and maintaining public spaces, urban forestry, urban design, construction, skilled crafts and trades, finance and audits, architecture, landscape architecture, engineering, or performance measurement and management.~~

~~—(2) Members of the Commission shall serve four-year terms; provided, however, the term of the initial appointees in Seats 1 and 4 shall be two years.~~

~~—(3) Members may be removed at will by their respective appointing officer.~~

~~-(c) Duties. The Commission shall hold public hearings and set policies for the Department of Public Works (the "Department") regarding sanitation standards and protocols, and maintenance of the public right of way. In addition, the Commission shall:~~

~~—(1) review and evaluate data regarding the condition of the public right of way, including but not limited to data collected by the Department and annual reports generated by the Controller; and~~

~~—(2) establish minimum standards of cleanliness for the public right of way, and set baselines for services to be administered by the Department to maintain cleanliness of the public right of way.~~

~~—Notwithstanding Sections 4.102, 4.103, and 4.104 of this Charter, the Commission shall exercise only the powers set forth in this subsection (c), and the Public Works Commission shall exercise the oversight authority described in those sections over the Department of Public Works, as set forth in Section 4.141.~~

~~-(d) Transition following November 8, 2022 election. The tenures and terms of members of the Commission on November 8, 2022 shall continue as provided in this Section 4.139.~~

SEC. 4.140. DEPARTMENT OF PUBLIC WORKS.

(a) **Responsibilities of Department.** There shall be a Department of Public Works (the "Department"). On January 1, 2023, the Department shall assume the responsibilities of the Department of Sanitation and Streets as they existed on December 31, 2022, and shall retain the existing responsibilities of the Department of Public Works. The Department shall be headed by a Director of Public Works appointed by the Mayor as provided in Sections 3.100(19) and 4.102(5).

Except as otherwise provided in the Charter or pursuant to Section 4.132, in addition to any other duties assigned by ordinance, the Department shall have the following duties: the design, building, repair, and improvement of the City's infrastructure, including City-owned buildings and facilities and the public right of way; maintenance of the public right of way, including street sweeping, and litter abatement; the provision and maintenance of City trash receptacles and removal of illegal dumping and graffiti in the public right of way; and planting and maintenance of street trees pursuant to Section 16.129.

(b) Nothing in this Section 4.140 shall relieve property owners of their legal responsibilities set by City or state law, including as those laws may be amended in the future.

(c) **Transition:**

~~—(1) Notwithstanding subsection (a), the Director of Public Works or person serving in an acting capacity as Director of Public Works on December 31, 2022, shall continue to serve in that capacity beginning on January 1, 2023. If at that time there is a person in an~~

acting capacity serving as the Director of Public Works, or if at any time the position of Director of Public Works is vacant for any reason, the position shall be filled in accordance with the Charter provisions governing appointment of a department head. This subsection (c)(1) does not modify the powers vested in the Public Works Commission to remove the Director of Public Works in accordance with Section 4.102(6).

(2) By no later than June 30, 2023, the Director of Public Works shall submit to the Board of Supervisors a proposed ordinance amending the Municipal Code to conform to Sections 4.139, 4.140, and 4.141 and the repeal of Section 4.138.

SEC. 4.141. PUBLIC WORKS COMMISSION.

—(a) **Purpose.** There is hereby established a Public Works Commission.

—(b) Membership and Terms of Office.

—(1) The Commission shall consist of five members, appointed as follows:

—Seats 1 and 5 shall be appointed by the Board of Supervisors. Seats 2 and 4 shall be appointed by the Mayor subject to confirmation by the Board of Supervisors. Seat 3 shall be appointed by the Controller subject to confirmation by the Board of Supervisors.

—Each nomination of the Mayor and the Controller shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor or Controller. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier.

—Qualifications for commissioners that are desirable, but not required, include a background or experience in cleaning and maintaining public spaces, urban forestry, urban design, construction, skilled crafts and trades, finance and audits, architecture, landscape architecture, engineering, or performance measurement and management.

—(2) Members of the Commission shall serve four-year terms; provided, however, the term of the initial appointees in Seats 1, 3, and 5 shall be two years.

—(3) Commissioners may be removed from office at will by their respective appointing authority.

—(c) **Powers and Duties.** With regard to the Department of Public Works, the Commission shall exercise all the powers and duties of boards and commissions set forth in Sections 4.102, 4.103, and 4.104, except for the authority conferred on the Sanitation and Streets Commission in Section 4.139, and may take other actions as prescribed by ordinance.

—(d) **Transition following November 8, 2022 election.** The tenures and terms of members of the Commission on November 8, 2022 shall continue as provided in this Section 4.141.

SEC. 5.104. ASIAN ART MUSEUM OF SAN FRANCISCO.

The Asian Art Commission shall consist of twenty-seven trustees appointed by the Mayor. In filling vacancies, the Mayor shall solicit nominations from the Commission and shall give due consideration to such nominees in filling such vacancies to the end that the members of the Commission shall be representative of the fields of Asian art and culture by reason of their knowledge, experience, education, training, interest or activity therein. Effective January 1, 2027, the Asian Arts Commission trustees shall be elected by members of the Commission, and the Commission may vote to increase or decrease the number of trustees, provided that the Commission may not set the number of trustees to more than 20, and provided that a vote to decrease the number shall not affect the power or tenure of any incumbent. In

selecting trustees to serve on the Commission, the Commission shall give due consideration to persons who are representative of the fields of Asian art and culture by reason of their knowledge, experience, education, training, interest, or activity therein.

* * * *

SEC. 5.105. THE FINE ARTS MUSEUMS OF SAN FRANCISCO.

The California Palace of Legion of Honor and the M.H. de Young Memorial Museum shall ~~compromise~~comprise the Fine Arts Museums of San Francisco, or such other title as may be chosen by not less than two-thirds of the trustees of the Fine Arts Museums. The Fine Arts Museums Board of Trustees shall consist of ~~62~~up to 20 members to be elected by the members of the Board. On a vote of the majority of members, the number of Trustees may be increased or decreased from time to time as needed, provided that the number of Trustees shall not be more than ~~62~~20, and provided further that a vote to decrease the number shall not affect the power or tenure of any incumbent. ~~The Board may act by majority of the members present at meetings in which a quorum is in attendance.~~

* * * *

SEC. 5.106. WAR MEMORIAL AND PERFORMING ARTS CENTER.

The governing board of the War Memorial and Performing Arts Center shall consist of ~~eleven~~ 11 trustees appointed by the Mayor, pursuant to Section 3.100, for four-year terms. In making appointments the Mayor shall give due consideration to veterans and others who have a special interest in the purposes for which the Center exists. Members may be removed by the Mayor only pursuant to Section 15.105.

The governing board shall appoint and may remove a director.

The governing board may enter into agreements with a not-for-profit or other legal entity to develop or operate the War Memorial and Performing Arts Center and to raise and maintain funds for its support.

SEC. 6.102. CITY ATTORNEY.

The City Attorney shall:

* * * *

5. Make recommendations for or against the settlement or dismissal of legal proceedings to the Board of Supervisors prior to any such settlement or dismissal. Such proceedings shall be settled or dismissed by resolution~~ordinance~~ and only upon the recommendation of the City Attorney;

* * * *

SEC. 8.103. LAW LIBRARY.

* * * *

Compensation of Law Library personnel shall be fixed by the executive officer of the Law Library, with approval of the Board of Trustees. Subject to the budgetary and fiscal provisions of this Charter, the City and County shall continue to fund the salaries for at least the positions of Librarian, Assistant Librarian, and ~~Bookbinder~~Technical Services Manager.

The City and County shall provide suitable and sufficient quarters for the Law Library, fix up and furnish the same and provide for the supply of necessary light, heat, stationery and other conveniences. The Library shall be so located as to be readily accessible to the judges and officers of the courts.

The Clerks of the Superior and Municipal Courts shall collect fees provided for law libraries by general law and the fees so collected shall be paid monthly to the Treasurer of the Law Library, and shall constitute a law library fund to be expended by the Trustees in the purchase of ~~books and periodicals~~legal research materials, and in the establishment and maintenance of the Law Library.

The judiciary, City, County and state officials, members of the Bar, and all inhabitants of the City and County shall have free access

to, and use and enjoyment of, the Law Library, subject to the rules and regulations of the Trustees.

SEC. 8A.100. PREAMBLE:

–(a) *An effective, efficient, and safe transportation system is vital for San Francisco to achieve its goals for quality of life, environmental sustainability, public health, social justice, and economic growth. The Municipal Transportation Agency must manage San Francisco's transportation system which includes automobile, freight, transit, bicycle, and pedestrian networks to help the City meet those goals. Through this measure, the voters seek to provide the Municipal Transportation Agency with improved resources and expanded independence and authority in order to create a transportation system that is among the best in the world.*

–(b) *This article requires the Municipal Transportation Agency to develop clear, meaningful and quantifiable measures of its performance and goals and to regularly publicize those standards. This article also recognizes that the workers of the Municipal Transportation Agency are vital to the success of the Agency and to achieving the improvements voters seek. Therefore, it authorizes incentives for excellence and requires accountability for both managers and employees.*

–(c) *Specifically, San Francisco residents require:*

—1. *Reliable, safe, timely, frequent, and convenient transit service to all neighborhoods;*

—2. *A reduction in breakdowns, delays, over-crowding, preventable accidents;*

—3. *Clean and comfortable transit vehicles and stations, operated by competent, courteous, and well trained employees;*

—4. *Support and accommodation of the special transportation needs of the elderly and the disabled;*

—5. *Protection from crime and inappropriate passenger behavior on the Municipal Railway;*

—6. *Responsive, efficient, and accountable management;*

—7. *Roads that are not gridlocked with congestion;*

—8. *A safe and comprehensive network of bicycle lanes;*

—9. *A safe and inviting environment for pedestrians;*

—10. *Efficient movement of goods and deliveries;*

—11. *A transportation sector that promotes environmental sustainability and does not contribute to global warming; and*

—12. *A well-managed and well-coordinated transportation system that contributes to a livable urban environment.*

—Through this measure, the voters seek to provide the transportation system with the resources, independence and focus necessary to achieve these goals.

–(d) *The voters find that one of the impediments to achieving these goals in the past has been that responsibility for transportation has been diffused throughout City government. Accordingly, this Article places within the Municipal Transportation Agency the powers and duties relating to transit now vested in other departments, boards, and commissions of the City and County. This Article further requires that, to the extent other City and County agencies provide services to the Municipal Transportation Agency, those departments must give the highest priority to the delivery of such services.*

–(e) *At the same time, this Article is intended to ensure sufficient oversight of the Municipal Transportation Agency by, among other things, preserving the role of the City's Controller as to financial matters, the City Attorney as to legal matters, and the Civil Service Commission, as to merit system issues. In addition, this Article requires that outside audits be performed to ensure that required service levels are obtained with a minimum of waste.*

–(f) *Finally, this Article is intended to strengthen the Municipal Transportation Agency's authority to: 1) manage its employees; 2) establish efficient and economical work rules and work practices that maximize the Agency's responsiveness to public needs; and 3) protect*

the Agency's right to select, train, promote, demote, discipline, layoff and terminate employees, managers, and supervisors based upon the highest standards of customer service, efficiency and competency.

–(g) *The effective management of traffic flow and parking are vital to the operation of the Municipal Railway. Congestion on city streets causes delays in transit operations. Therefore, the Municipal Transportation Agency must manage parking and traffic flow to ensure that transit vehicles move through City streets safely and efficiently.*

–(h) *In addition, the residents of San Francisco require that the Agency: 1) value and protect the safety of pedestrians and bicyclists; 2) reduce congestion and air pollution through efficient use of the streets; and 3) protect the City's economic health by giving priority to commercial deliveries and access to local businesses.*

–(i) *The voters find that reducing the carbon emissions from San Francisco's transit sector is fundamental to the City's health and wellbeing and shall be among the Agency's policy priorities. Because the Agency has significant influence on San Francisco's transportation sector, which is responsible for fully half of the carbon emissions produced within the City, the voters direct the Agency to develop and implement strategies for substantially reducing those emissions. The voters further affirm the goals of the City's Climate Action Plan.*

–(j) *This Article shall be interpreted and applied in conformance with the above goals.*

SEC. 8A.101. MUNICIPAL TRANSPORTATION AGENCY.

(a) *There shall be a Municipal Transportation Agency.*

The Agency shall include a Board of Directors and a Director of Transportation. The Agency shall include the Municipal Railway, and the former Department of Parking and Traffic, and the powers and duties of the former Taxi Commission, as well as any other departments, bureaus, or operating divisions hereafter created or placed under the Agency in this Charter or by ordinance. There shall also be a Citizens Advisory Committee to assist the Agency.

(b) *The Board of Supervisors shall have the power, by ordinance, to abolish the Taxi Commission created in Section 4.133, and to transfer the powers and duties of that commission to the Agency under the direction of the Director of Transportation or his or her designee. In order to fully integrate taxi-related functions into the Agency should such a transfer occur, the Agency shall have the same exclusive authority over taxi-related functions and taxi-related fares, fees, charges, budgets, and personnel that it has over the Municipal Railway and parking and traffic fares, fees, charges, budgets, and personnel. Once adopted, Agency regulations shall thereafter supercede all previously-adopted ordinances governing motor vehicles for hire that conflict with or duplicate such regulations.*

(c) *Any transfer of functions occurring as a result of the above provisions shall not adversely affect the status, position, compensation, or pension or retirement rights and privileges of any civil service employees who engaged in the performance of a function or duty transferred to another office, agency, or department pursuant to this measure.*

(db) *Except as expressly provided in this Article VIII A, the Agency shall comply with all of the restrictions and requirements imposed by the ordinances of general application of the City and County, including ordinances prohibiting discrimination of any kind in employment and contracting, such as Administrative Code Chapters 12B et seq.,* as amended from time to time. The Agency shall be solely responsible for the administration and enforcement of such requirements.*

(ec) *The Agency may contract enter into memoranda of understanding with existing City and County departments to carry out any of its powers and duties. Any such contract memoranda of understanding shall establish performance standards for the department providing the services to the Agency, including measurable standards for the quality, timeliness, and cost of the services provided. All City*

and County departments must give the highest priority to the delivery of such services to the Agency.

(fd) The Agency may not exercise any powers and duties of the Controller or the City Attorney and shall ~~contract enter into memoranda of understanding~~ with the Controller and the City Attorney for the exercise of such powers and duties.

SEC. 8A.102. GOVERNANCE AND DUTIES.

(a) The Agency shall be governed by a board of seven directors appointed by the Mayor and confirmed after public hearing by the Board of Supervisors. ~~All initial appointments must be made by the Mayor and submitted to the Board of Supervisors for confirmation no later than February 1, 2000. The Board of Supervisors shall act on those initial appointments no later than March, 1, 2000 or those appointments shall be deemed confirmed.~~

At least four of the directors must be regular riders of the Municipal Railway, and must continue to be regular riders during their terms. The directors must possess significant knowledge of, or professional experience in, one or more of the fields of government, finance, or labor relations. At least two of the directors must possess significant knowledge of, or professional experience in, the field of public transportation. During their terms, all directors shall be required to ride the Municipal Railway on the average once a week.

Directors shall serve four-year terms; ~~provided, however, that two of the initial appointees shall serve for terms ending March 1, 2004, two for terms ending March 1, 2003, two for terms ending March 1, 2002, and one for a term ending March 1, 2001. Initial terms shall be designated by the Mayor.~~ No person may serve more than three terms as a director. A director may be removed only for cause pursuant to Article XV. The directors shall annually elect a chair. The chair shall serve as chair at the pleasure of the directors. Directors shall receive reasonable compensation for attending meetings of the Agency which shall not exceed the average of the two highest compensations paid to the members of any board or commission with authority over a transit system in the nine Bay Area counties.

(b) The Agency shall:

* * * *

7. Notwithstanding any provision of the San Francisco Municipal Code (except requirements administered by the Department of Public Works governing excavation, street design and official grade) have exclusive authority to adopt regulations that control the flow and direction of motor vehicle, bicycle and pedestrian traffic, including regulations that limit the use of certain streets or traffic lanes to categories of vehicles and that limit the speed of traffic; and to design, select, locate, install, operate, maintain and remove all official traffic control devices, signs, roadway features and pavement markings that control the flow of traffic with respect to streets and highways within City jurisdiction, provided that:

(i) ~~Notwithstanding the authority established in subsection 7, the Board of Supervisors may by ordinance establish procedures by which the public may seek Board of Supervisors review of any Agency decision with regard to the installation or removal of a stop sign or the creation or elimination of a bicycle lane. In any such review, the Agency's decision shall stand unless the Board of Supervisors reverses the decision of the Agency not later than 60 days after submission of a request to the Board of Supervisors.~~

(ii) ~~Nothing in this subsection 7 shall modify the authority of ISCOFF, or any successor body, over the temporary use or occupancy of public streets, or the authority of the Board of Supervisors to hear appeals regarding the temporary use or occupancy of public streets.~~

(iir) Nothing in subsection 7 shall modify the power of the Board of Supervisors to establish civil offenses, infractions and misdemeanors.

(ivii) Notwithstanding the authority established in subsection 7, to the extent state law contemplates that Agency action authorized by subsection 7 be effectuated by ordinance, such action shall be effectuated by resolution of the Board of Directors and shall be subject to referendum in accordance with Article ~~14~~XIV, and, if a referendum petition contains the requisite number of signatures, the Board of Supervisors shall have the power to reconsider or repeal the action as provided in Article ~~14~~XIV.

* * * *

~~10. Be responsible for chairing the Interdepartmental Staff Committee Council on Traffic and Transportation (ISCOFF) or any successor body;~~

11. Be responsible for cooperating with and assisting the Police Department in the promotion of traffic safety; studying and responding to complaints related to street design, traffic control devices, roadway features and pavement markings; collecting compiling and analyzing traffic data and traffic ~~accident collision~~ data and planning improvements to improve the safety of the City's roadways; and conducting traffic research and planning;

12. Have exclusive authority to apply for, accept, and expend state, federal, or other public or private grant funds for Agency purposes;

13. To the maximum extent permitted by law, with the concurrence of the Board of Supervisors, and notwithstanding the requirements and limitations of Sections 9.107, 9.108, and 9.109, have authority without further voter approval to incur debt for Agency purposes and to issue or cause to be issued bonds, notes, certificates of indebtedness, commercial paper, financing leases, certificates of participation or any other debt instruments. Upon recommendation from the Board of Directors, the Board of Supervisors may authorize the Agency to incur on behalf of the City such debt or other obligations provided: 1) the Controller first certifies that sufficient unencumbered balances are expected to be available in the proper fund to meet all payments under such obligations as they become due; and 2) any debt obligation, if secured, is secured by revenues or assets under the jurisdiction of the Agency.

14. Have the authority to conduct investigations into any matter within its jurisdiction through the power of inquiry, including the power to hold public hearings and take testimony, and to take such action as may be necessary to act upon its findings; ~~and~~

~~15. Have exclusive authority over taxi-related functions and taxi-related fares, fees, charges, budgets, and personnel; and~~

~~16. Exercise such other powers and duties as shall be prescribed by ordinance of the Board of Supervisors.~~

(c) The Agency's Board of Directors shall:

1. Appoint a Director of Transportation, who shall serve at the pleasure of the Board. The Director of Transportation shall be employed pursuant to an individual contract. ~~His or her~~ The Director's compensation shall be comparable to the compensation of the chief executive officers of the public transportation systems in the United States which the Board of Directors, after an independent survey, determine most closely resemble the Agency in size, mission, and complexity. In addition, the Board of Directors shall provide an incentive compensation plan consistent with the requirements of Section 8A.104(~~km~~) under which a portion of the Director's compensation is based on achievement of service standards adopted by the Board of Directors.

2. Appoint an executive secretary who shall be responsible for administering the affairs of the Board of Directors and who shall serve at the pleasure of the Board.

~~3. In addition to any training that may be required by City, State or federal law, attend a minimum of four hours of training in each calendar year; provided by the City Attorney and the Controller~~

regarding the legal and financial responsibilities of the Board and the Agency.

(d) The Director of Transportation shall appoint all subordinate personnel of the Agency, including deputy directors. The deputy directors shall serve at the pleasure of the Director of Transportation.

(e) Upon recommendation of the City Attorney and the approval of the Board of Directors, the City Attorney may compromise, settle, or dismiss any litigation, legal proceedings, claims, demands or grievances which may be pending for or on behalf of, or against the Agency relative to any matter or property solely under the Agency's jurisdiction. ~~Unlitigated claims or demands against the Agency shall be handled as set forth in Charter Section 6.102.~~ Any payment pursuant to the compromise, settlement, or dismissal of such litigation, legal proceedings, claims, demands, or grievances, unless otherwise specified by the Board of Supervisors, shall be made from the Municipal Transportation Fund.

(f) The Agency's Board of Directors, and its individual members, shall deal with administrative matters solely through the Director of Transportation or ~~his or her~~ the Director's designees. Any dictation, suggestion, or interference by a director in the administrative affairs of the Agency, other than through the Director of Transportation or ~~his or her~~ the Director's designees, shall constitute official misconduct; provided, however, that nothing herein contained shall restrict the Board of Directors' powers of hearing and inquiry as provided in this Section.

(g) Notwithstanding any provision of ~~Chapter 6 or 21 of the Administrative Code~~ the Municipal Code establishing any threshold amount for exercise of executive authority to execute contracts; ~~or any successor provision of the San Francisco Municipal Code~~, the Agency's Board of Directors may adopt threshold amounts under which the Director of Transportation and ~~his or her~~ the Director's designees may approve contracts.

(h) Except as provided in this Article ~~VIII~~ VIII A, the Agency shall be subject to the provisions of this Charter applicable to boards, commissions, and departments of the City and County, including Sections 2.114, 3.105, 4.101, ~~4.103~~, 4.104, 4.113, 6.102, 9.118, and 16.100; ~~and A8.346~~. Sections 4.102, 4.126, and 4.132 shall not be applicable to the Agency.

SEC. 8A.103. SERVICE STANDARDS AND ACCOUNTABILITY.

* * * *

(c) The standards for the Agency with respect to the services provided by the Municipal Railway shall include the following minimum standards for on-time performance and service delivery:

1. On-time performance: at least 85% percent of vehicles must run on-time, ~~where a vehicle is considered on-time if it is no more than one minute early or four minutes late as measured against a published schedule that includes time points with on-time performance determined in accordance with subsection (e); and~~

2. Service delivery: 98.5% percent of scheduled service hours must be delivered, and at least 98.5% percent of scheduled vehicles must begin service at the scheduled time on time.

* * * *

(e) The Board of Directors shall adopt Agency rules setting forth the methods by which performance shall be measured with respect to each standard established pursuant to subsections (c) or (d) above in accordance with industry best practices to enhance the Agency's ability to compare its performance to that of other comparable transit systems. The Agency shall regularly publish reports documenting the Agency's performance for each standard. Each performance report shall note any changes in the rules governing the methods by which performance is measured so as to inform interpretation of performance trends over time. Nothing herein shall prohibit the Agency from using additional performance measures.

(i) ~~The Agency shall issue a Climate Action Plan to the Board of Supervisors and the Commission on the Environment by January 1, 2009, and every two years thereafter. The Agency shall participate in Citywide climate action planning efforts. The plan As part of their participation, the Agency shall describe measures taken and progress made toward the goal of reducing greenhouse gas emissions from San Francisco's transportation sector, as measured by applicable federal, state, and local requirements and standards, and to 80% of 1990 levels by 2012 and shall further address progress toward the following goals:~~

1. Zero greenhouse gas emissions for Municipal Railway transit vehicles;
2. Lowering energy consumption in Agency facilities and by non-transit vehicles;
3. Maximizing waste reduction in Agency operations;
4. Increasing transit trips and reducing private vehicle trips within the City;
5. Increasing the use of bicycling and walking as alternate forms of transportation; and
6. Improving regional transit connections to reduce private vehicle use by commuters.

~~—No later than January 1, 2010, and no less than every ten years thereafter, the Board of Supervisors shall adopt legislation setting goals for reducing greenhouse gas emissions from San Francisco's transportation sector, and other climate action measures set forth above, for periods after 2012.~~

SEC. 8A.104. PERSONNEL AND MERIT SYSTEM.

* * * *

(k) Upon the expiration of labor contracts negotiated by the Department of Human Resources and approved by the Board of Supervisors, and except for retirement benefits, the wages, hours, working conditions, and benefits of the employees in classifications within the Municipal Railway designated by the Agency as "service-critical" shall be fixed by the Agency after meeting and conferring as required by the laws of the State of California and this Charter, including Sections ~~A8.346~~, A8.404 and A8.409. These agreements shall utilize, and shall not alter or interfere with, the health plans established by the City's Health Service Board; provided, however, that the Agency may contribute toward defraying the cost of employees' health premiums. For any job classification that exists both as a "service-critical" classification in the Agency and elsewhere in City service, the base wage rate negotiated by the Agency for that classification shall not be less than the wage rate set in the Citywide memorandum of understanding for that classification.

* * * *

(o) ~~The voters find that f~~For transit system employees whose wages, hours and terms and conditions of employment are set by the Agency, the Agency's discretion in establishing and adjusting scheduling, deployment, assignment, staffing, sign ups, and the use and number of part-time transit system personnel based upon service needs is essential to the effective, efficient, and reliable operation of the transit system. In any mediation/arbitration proceeding under Section 8.409-4 with an employee organization representing transit system employees, the employee organization shall have the burden of proving that any restrictions proposed on the Agency's ability to exercise broad discretion with respect to these matters are justified. ~~For meet this burden, the employee organization must prove by clear and convincing evidence that the justification for such restrictions outweighs the public's interest in effective, efficient, and reliable transit service and is consistent with best practices.~~ The mediation/arbitration board shall not treat the provisions of MOUs for transit system employees adopted prior to the effective date of this provision as precedential in establishing the terms of a successor agreement. The mediation/arbitration board's jurisdiction shall be limited to matters within the

mandatory scope of bargaining under state law.

* * * *

(q) In addition, ~~the voters find that~~ Agency service in the past has been impaired by the existence of side-letters and reliance on “past practices” that have been treated as binding or precedential but have not been expressly authorized by the Board of Directors or the Director of Transportation, and have not been and are not subject to public scrutiny. Accordingly, for employees whose wages, hours and terms and conditions of employment are set by the Agency, no side-letter or practice within the scope of bargaining may be deemed binding or precedential by the Agency or any arbitrator unless the side-letter or practice has been approved in writing by the Director of Transportation or, where appropriate, by the Board of Directors upon the recommendation of the Director of Transportation and appended to the MOU of the affected employee organization or organizations subject to the procedures set out in this charter. No MOU or arbitration award approved or issued after the November 2010 general election shall provide or require that work rules or past practices remain unchanged during the life of the MOU, unless the specific work rules or past practices are explicitly set forth in the MOU. ~~All side-letters shall expire no later than the expiration date of the MOU.~~

(r) Before adopting any tentative agreement with an employee organization covering matters within the scope of representation, the Agency shall, at a duly noticed public meeting, disclose in writing the contents of such tentative agreement, a detailed analysis of the proposed agreement, a comparison of the differences between the agreement reached and the prior agreement, an analysis of all costs for each year of the term of such agreement, and whether funds are available to cover these costs. Such tentative agreement between the Agency and employee organization shall not be approved by the Agency until ~~514~~ calendar days after the above disclosures have been made.

SEC. 8A.105. MUNICIPAL TRANSPORTATION FUND.

* * * *

(c) The Base Amount shall initially be determined by the Controller. Adjustments to the Base Amount shall be made as follows:

1. The Base Amount shall be adjusted for each year after fiscal year 2000-2001 by the Controller based on calculations consistent from year to year, by the percentage increase or decrease in aggregate City and County discretionary revenues. In determining aggregate City and County discretionary revenues, the Controller shall only include revenues received by the City which are unrestricted and may be used at the option of the Mayor and the Board of Supervisors for any lawful City purpose. Additionally, in determining aggregate City and County discretionary revenues, the Controller shall not include revenues received by the City under the increased rates in Business and Tax Regulations Code Sections 953.1(g), 953.2(h), 953.3(h), 953.4(e), 953.5(d), 953.6(f), 953.7(d), and 953.8(i) adopted by the voters at the general municipal election on November 3, 2020, and shall not include revenues received by the City under Article 36 of the Business and Tax Regulations Code adopted by the voters at the general municipal election on November 3, 2020. Errors in the Controller’s estimate of discretionary revenues for a fiscal year shall be corrected by adjustment in the next year’s estimate.

2. An adjustment shall also be made for any increases in General Fund appropriations to the Agency in subsequent years to provide continuing services not provided in the Base Year, but excluding additional appropriations for one-time expenditures such as capital expenditures or litigation judgments and settlements.

3. Commencing with the fiscal year beginning on July 1, 2015, the Controller shall also adjust the Base Amount annually by the percentage increase in the San Francisco population based on data from the source(s) the Controller, in ~~his or her~~ the Controller’s sole discretion, finds most reliable for the most recent available calendar

year. The Controller’s population growth adjustment shall be based on the greater of the increase in daytime or night-time population. For any year in which the Controller determines that neither the daytime nor night-time population has increased, the Controller shall make no adjustment under this subparagraph 3 to the Base Amount. For purposes of the initial adjustment for the year commencing July 1, 2015, the Controller shall adjust the Base Amount based on the increase in City daytime or night-time population for the most recent ten-year period for which data are available instead of the most recent available calendar year. The Agency shall use the amount of any increase in the Base Amount resulting from the adjustment required by this subparagraph 3 exclusively as follows: 75% per cent shall be used for transit operations expenses and transit infrastructure improvements and maintenance to make transit system improvements to the Municipal Railway to improve the system’s reliability, frequency of service, capacity, and state of good repair; and 25% per cent shall be used for transportation capital improvement and maintenance expenditures to improve street safety for all users.

* * * *

(f) In addition, there is hereby set aside from the general revenues of the City and County and deposited in the Transportation Fund to support the Agency’s transit services an amount equivalent to ~~80% per cent~~ of the revenues received from the City’s tax on occupation of parking spaces. Additional amounts appropriated as a result of this subsection (f) after July 1, 2008 which were not previously available to support transit service shall be used exclusively to:

1. support transit operations expenses implementation of the transit service improvements recommended by the Transit Effectiveness Project or any subsequent system-wide route and service evaluation, with first priority given to the hiring of full time on-going staff and expansion of training for Agency employees, supervisors and managers; and

2. support the creation of a Labor-Management Implementation and Service Improvement Committee consisting of the Director of Transportation and a designated representative of each union representing Agency employees. This committee shall meet quarterly to discuss implementation of this Section and ongoing system challenges.

SEC. 8A.106. BUDGET.

The Agency shall be subject to the provisions of Article IX of this Charter except:

(a) No later than May 1 of each even-numbered year, after professional review; ~~and a public hearing and after receiving the recommendations of the Citizens’ Advisory Council,~~ the Agency shall submit its proposed budget with annual appropriation detail in a form approved by the Controller for each of the next two fiscal years to the Mayor and the Board of Supervisors for their review and consideration. The Agency shall propose a budget that is balanced without the need for additional funds over the Base Amount, but may include fare increases and decreases, and reductions or abandonment of service. The Mayor shall submit the budget to the Board of Supervisors, without change. Should the Agency request additional general fund support over the Base Amount, it shall submit an augmentation request for those funds in the standard budget process and subject to normal budgetary review and amendment under the general provisions of Article IX.

* * * *

SEC. 8A.107. MUNICIPAL TRANSPORTATION QUALITY REVIEW.

(a) The Agency shall biennially contract with a nationally recognized management or transportation consulting firm with offices in the City and County for an independent review of the quality of its operations. The contract shall be competitively bid and approved by the Controller and Board of Supervisors. The review shall contain:

1. A detailed analysis of the extent to which the Agency has

met the goals, objectives, and performance standards it is required to adopt under Section 8A.103, and the extent to which the Agency is expected to meet those goals, objectives, and performance standards in the two fiscal years for which the review is submitted, and independent verification of the Agency's reported performance under the adopted performance measures adopted pursuant to Section 4 of this measure; and

2. Such recommendations for improvement in the operation of the Agency as the firm conducting the review deems appropriate.

(b) The results of the review shall be presented promptly to ~~the Citizens' Advisory Council, the Agency~~; the Board of Supervisors; and the Mayor by the reviewing firm; and ~~the Citizens' Advisory Council, the Agency~~; and the Board of Supervisors shall each promptly hold at least one public hearing thereon.

SEC. 8A.111. CITIZENS' ADVISORY COUNCIL.

The Agency shall establish a Citizens' Advisory Council of ~~fifteen~~15 members which shall consist of one person appointed by each member of the Board of Supervisors and four members appointed by the Mayor. Each member must be a resident of the City and County. No fewer than ~~ten~~10 members of the Council must be regular riders of the Municipal ~~Railway~~ Railway, and the Council shall include both pedestrians and cyclists. At least two members must use the Municipal Railway's paratransit system, and at least three of the members must be senior citizens over the age of 60. The membership of the Council shall be reflective of the diversity and neighborhoods of the City and County. The Council may provide recommendations to the Agency with respect to any matter within the jurisdiction of the Agency and shall be allowed to present reports to the Agency's board of directors. The members of the Council shall be appointed to four-year terms and shall serve at the pleasure of their appointing power. ~~Staggered terms for the initial appointees to the Council shall be determined by lot.~~

As set forth in Section 18.116 of this Charter, this Section 8A.111 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the Section to Division II of the Transportation Code. Thereafter, Section 8A.111 (as enacted into ordinance) may be amended or repealed by resolution of the Agency's Board of Directors as provided in Section 8A.102(b).

SEC. 8A.113. PARKING AND TRAFFIC; GOVERNANCE.

* * * *

(b) It shall be City policy that the Agency manage the Parking Authority so that it does not acquire or construct new or expanded parking facilities unless the Agency finds that the costs resulting from such acquisition, construction, or expansion and the operation of such facilities will not reduce the level of funding to the Municipal Railway from parking and garage revenues under ~~Section 16.H0~~Section 8A.105(e) to an amount less than that provided for fiscal year 1999-2000, as adjusted by the Controller for inflation; further provided that it shall be City policy that before approving the acquisition, construction or expansion of a parking garage, the Agency's Board of Directors shall make a finding that the operation of the garage will advance or be consistent with the City's Transit First Policy.

SEC. 8B.120. PREAMBLE.

~~The Public Utilities Commission operates the Water, Clean Water and Power Utilities of the City and County of San Francisco. Hetch Hetchy Water and Power System is an irreplaceable asset of the people of the City and County of San Francisco. The system is fundamental to the economic vitality of San Francisco and the Bay Area. The voters of the City and County of San Francisco are committed to preserving and protecting the system as well as safeguarding the extraordinary quality of the water from Yosemite and local watersheds. The voters find that the protection, maintenance and repair of the system are among their highest priorities.~~

~~San Francisco faces an unprecedented challenge: to restore its~~

~~aging water system to ensure a reliable Bay Area water supply through the next century. Repairs must be accomplished as quickly as possible to avoid system outages, which could be caused by natural disasters such as earthquake. In planning for its future needs and those of its wholesale customers, the City must promote water conservation and responsible stewardship of its natural resources. The effectiveness of the City's Public Utilities Commission, which has jurisdiction over the system, is essential to achieving these goals.~~

~~In addition, San Francisco must upgrade and repair its clean water system to meet changes in state and federal water quality requirements, and to ensure reliability of the system, parts of which are outdated, aged or seismically vulnerable. The voters find that the operation of the clean water system should not unnecessarily place a disproportionate environmental burden on any community.~~

~~This measure is intended to enhance public confidence in the City's stewardship of public utilities by:~~

~~1. Clarifying that the Public Utilities Commission has exclusive control of water, clean water and power assets owned or maintained by the City and County of San Francisco;~~

~~2. Establishing rates sufficient to meet operation, maintenance and financial needs of the system based on costs and sound budgeting and auditing procedures to protect retail ratepayers and reduce interest paid on bonds and other indebtedness while ensuring public review;~~

~~3. Establishing the Public Utilities Commission as an independent revenue department not subject to undue financial pressures to contribute to the City's general fund;~~

~~4. Requiring the development of long term Capital, Financial and Strategic Plans to ensure that the utilities are operated efficiently in accordance with best public utility practice;~~

~~5. Authorizing the Public Utilities Commission to independently enter into certain contracts;~~

~~6. Giving the Public Utilities Commission the ability to finance needed capital improvements through revenue bonds or other financing methods consistent with the powers of other major public utilities in California; and~~

~~7. Promoting labor stability to ensure that the Capital Improvement Plan is completed expeditiously and efficiently.~~

The people of the City and County of San Francisco over many years have invested and continue to invest significant financial resources to develop, improve, and maintain their water, power, and sewer systems. Prudent planning and efficient implementation are critical to sustaining effective, efficient, reliable, and resilient utilities through regular operation and natural disasters such as earthquakes and floods. The people also recognize the importance of protecting the natural environment, promoting water conservation, and supporting the communities that may be impacted by utility operation. Further, the people recognize that utility operations are subject to federal and state laws, and the City and County of San Francisco must meet regulatory mandates through continuous resource investment.

The Public Utilities Commission operates the Water, Power, and Sewer utilities of the City and County of San Francisco, all of which are invaluable assets of the City and County and each of which is described in the following paragraphs.

Water. The Water utility provides drinking water to the City and County of San Francisco and portions of the San Francisco Bay Area Region. The Water utility includes the Hetch Hetchy Water and Power system, the Regional Water system, and the system for distributing water throughout the City and County. The Water utility also includes multiple systems to manage, maintain, protect, store, transport, and deliver drinking water from the Hetch Hetchy reservoir in Yosemite National Park and other sources within the Regional and San Francisco water systems.

Power. The Power utility provides electric power from the

hydro- and solar power generation of the Hetch Hetchy Power system. The Power utility includes power generation and storage facilities, power transmission systems, and a renewable energy community choice aggregation service.

Sewer. The Sewer utility collects, conveys, treats, and discharges wastewater, stormwater, and other surface flows to protect public health and the environment. The Sewer utility includes combined and separate sewer collection, conveyance, treatment, and discharge facilities and infrastructure.

The purpose of this Article VIIIB is to ensure the long-term successful stewardship of the utility systems that support the City and County of San Francisco and serve San Francisco's utility ratepayers and wholesale customers.

SEC. 8B.121. PUBLIC UTILITIES COMMISSION.

(a) Notwithstanding Charter section 4.112, the Public Utilities Commission shall have exclusive charge of the design, construction, management, supervision, maintenance, extension, expansion, operation, use, and control of all water, clean water and energypower, and sewer infrastructure, facilities, supplies and utilities of the City as well as the real, personal and financial assets, that are under the Commission's jurisdiction or assigned to the Commission under Section 4.132.

(b) The Public Utilities Commission may enter into Joint Powers Agreements or other joint, coordinated, or common-use agreements with other public entities in furtherance of the responsibilities of the Commission.

(c) Except to the extent otherwise provided in this Article VIIIB, the Public Utilities Commission shall be subject to the provisions of Charter sections 4.100 et seq. generally applicable to boards and commissions of the City and County.

(d) The General Manager shall be the department head and chief executive of the San Francisco Public Utilities Commission department (SFPUC or department). The General Manager shall have authority over and responsibility for the day-to-day management of the Water, Power, and Sewer utility systems, department operations, personnel, facilities, infrastructure, and real property under the jurisdiction of the Commission. The General Manager shall appoint all subordinate personnel of the department. The General Manager may appoint deputy and/or assistant general managers who shall serve at the pleasure of the General Manager. The General Manager may have the authority to organize and reorganize the department. The General Manager shall adopt rules and regulations governing all matters within the jurisdiction of the department subject to section 4.102 as applicable.

(e) Ownership or control of any public utility or any part thereof under the jurisdiction of the Public Utilities Commission may not be transferred or conveyed absent approval by the Public Utilities Commission and approval by a vote of the electors of the City at the election next ensuing not less than 90 days after the adoption of such ordinance, which shall not go into effect until ratified by a majority of the voters voting thereon. Voter approval shall not be required for sales or transfers of real property declared surplus to the needs of any utility by the Public Utilities Commission or to leases or permits for the use of utility real property approved by the Public Utilities Commission.

SEC. 8B.122. GOALS AND OBJECTIVES RELATED TO WATER AND CLEAN WATER.

—(a) The Commission shall develop, periodically update and implement programs to achieve goals and objectives consistent with the following: oversee the department's implementation of the following goals and objectives:

—(1) Provide water and clean water, power, and sewer services to San Francisco and water service to its wholesale customers while maintaining stewardship of the system by the City to its retail and wholesale customers;

—(2) Establish equitable utility rates sufficient to meet the cost of service, maintain continuous, safe, and reliable operation of resilient utility systems, and maintain operation, maintenance and financial health of the utility systems;

—(3) Provide reliable water and clean water services and optimize the systems' ability to withstand disasters;

—(4) Protect and manage lands and natural resources used by the Commission to provide utility services consistent with applicable laws in an environmentally sustainable manner. Operate hydroelectric generation facilities in a manner that causes no reasonably anticipated adverse impacts on water service and habitat;

—(5) Develop and implement priority programs to increase and to monitor water conservation and efficiency system-wide and protect high-quality drinking water and water supply, environmentally sustainable power generation, and sewer utility efficacy;

—(6) Utilize state-of-the-art innovative technologies where feasible and beneficial;

—(7) Develop and implement a comprehensive set of environmental justice guidelines for use in connection with its operations and projects in the City;

—(8) Create opportunities for meaningful community participation in development and implementation of the Commission's policies and programs; and

—(9) Improve drinking water quality with a goal of exceeding applicable drinking water standards if feasible.

(5) Support utility-related community engagement and environmental justice initiatives to address direct impacts of utility operations.

SEC. 8B.123. PLANNING AND REPORTING.

(Aa) Planning and Reporting

The Public Utilities Commission shall annually hold public hearings to review, update and adopt:

(1) A Long-Term Capital Improvement Program, covering projects during the next 10-year period; including cost estimates and schedules.

(2) A Long-Range Financial Plan, for a 10-year period, including estimates of operation and maintenance expenses, repair and replacement costs, debt costs and rate increase requirements.

—(3) A Long-Term Strategic Plan, setting forth strategic goals and objectives and establishing performance standards as appropriate.

The Capital Improvement Program and Long-Range Financial Plan shall serve as a basis and supporting documentation for the Commission's capital budget, the issuance of revenue bonds, other forms of indebtedness and execution of governmental loans under this Charter.

(Bb) Citizens' Advisory Committee/Council

The Board of Supervisors, in consultation with the General Manager of the Public Utilities Commission, shall establish by ordinance a Citizens' Advisory Committee/Council to provide recommendations to the General Manager of the Public Utilities Commission, the Public Utilities Commission and the Board of Supervisors.

As set forth in Section 18.116 of this Charter, subsection (b) of this Section 8B.123 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the subsection to the Administrative Code and remove the subsection designation in subsection (a) of this Section 8B.123. Thereafter, subsection (b) may be amended or repealed by ordinance.

SEC. 8B.124. WATER, CLEAN WATER, AND POWER, AND SEWER REVENUE BONDS AND FINANCE.

(a) The Commission shall have authority to plan and issue indebtedness, including revenue bonds, notes, commercial paper, or other forms of indebtedness, for utility-related purposes, subject to the approval, amendment, or rejection of the Board of Supervisors of each issue. Such purposes may include but are not limited to purchases of

water or power supply or storage, environmentally sustainable energy generation facilities, or the purchase or development of infrastructure necessary to transmit water, power, or wastewater or to operate utility systems.

(b) The Commission may authorize debt refunding or refinancing that does not increase the total debt obligation of the enterprise in conformance with the SFPUC debt policy, subject to approval by the Controller.

(c) Receipts from each utility operated by the Commission shall be paid into the City and County treasury and maintained in a separate fund for each such utility.

~~Notwithstanding, and in addition to, the authority granted under Charter Section 9.107, the Public Utilities Commission is hereby authorized to issue revenue bonds, including notes, commercial paper, or other forms of indebtedness, when authorized by ordinance approved by a two-thirds vote of the Board of Supervisors, for the purpose of reconstructing, replacing, expanding, repairing, or improving water facilities, clean water facilities, power facilities, or combinations of water, clean water, and power facilities under the jurisdiction of the Public Utilities Commission or for any other lawful purpose of the water, clean water, or power utilities of the City in furtherance of the purposes herein provided. The Public Utilities Commission shall endeavor to finance new power facilities that increase delivery of clean energy, enhance reliability and safety, and increase sustainability by incorporating technologies like energy storage and electric vehicle charging, as well as other technologies that become available. In no event shall the Public Utilities Commission finance construction of a power plant that generates electricity using fossil fuels or nuclear energy:~~

~~Any legislation authorizing the issuance of revenue bonds (except for refunding bonds) under this section shall be subject to the referendum requirements of Section 14.102 of this Charter. The ordinance authorizing the issuance of such revenue bonds shall not become effective until 30 days after its adoption.~~

~~Notwithstanding any other provision of this Charter or of any ordinance of the City and County, the Board of Supervisors may take any and all actions necessary to authorize, issue and repay such bonds, including, but not limited to, modifying schedules of rates and charges to provide for the payment and retirement of such bonds, subject to the following conditions:~~

~~(a) Certification by an independent engineer retained by the Public Utilities Commission that:~~

~~— (1) the projects to be financed by the bonds, including the prioritization, cost estimates and scheduling, meet utility standards; and~~

~~— (2) that estimated net revenue after payment of operating and maintenance expenses will be sufficient to meet debt service coverage and other indenture or resolution requirements, including debt service on the bonds to be issued, and estimated repair and replacement costs.~~

~~(b) Certification by the San Francisco Planning Department that facilities under the jurisdiction of the Public Utilities Commission funded with such bonds will comply with applicable requirements of the California Environmental Quality Act.~~

(d) Except as expressly provided in this Charter, all revenue bonds may be issued and sold in accordance with state law or any procedure provided for by ordinance of the Board of Supervisors.

(e) In no event shall the Public Utilities Commission finance construction of a power plant that generates electricity using fossil fuels or nuclear energy.

SEC. 8B.125. RATES.

(a) Notwithstanding Charter sections 2.109, 3.100, and 4.102 or any ordinance (including, without limitation, Administrative Code), the Public Utilities Commission shall set rates, fees, and other charges in connection with providing the utility services under its jurisdiction,

subject to rejection – within 30 days of submission – by resolution of the Board of Supervisors. If the Board of Supervisors fails to act within 30 days the rates shall become effective without further action.

(b) In setting retail rates, fees, and charges the Commission shall:

1. Establish rates, fees, and charges at levels sufficient to improve or maintain financial condition and bond ratings at or above levels equivalent to highly rated utilities of each enterprise under its jurisdiction, meet requirements and covenants under all bond resolutions and indentures, (including, without limitation, increases necessary to pay for the retail water customers' share of the debt service on bonds and operating expenses of any state financing authority such as the Regional Water System Financing Authority), and provide sufficient resources for the continued financial health (including appropriate reserves), operation, maintenance, and repair of each enterprise, consistent with good utility practice;

2. Retain an independent rate consultant to conduct rate and cost of service studies for each utility at least every five years;

3. Set retail rates, fees, and charges based on the cost of service;

4. Conduct all studies mandated by applicable state and federal law to consider implementing ~~Set~~connection fees or charges for water and clean water, power, and sewer facilities servicing new development;

5. Conduct studies of rate-based conservation incentives and/or ~~If allowable under applicable law, consider and implement~~ lifeline rates, retail customer assistance programs, and similar other rate structures to provide assistance to low income ~~users~~ratepayers and/or rate-based conservation incentives, and take the results of such studies into account when establishing rates, fees and charges, in accordance with applicable state and federal laws; and

6. Adopt annually a rolling 5-year forecast of rates, fees, and other charges; ~~and~~

(c) 7. Establish ~~There shall be~~ a Rate Fairness Board ~~Council~~ consisting of seven members: the City Administrator or ~~his or her~~ their designee; the Controller or ~~his or her~~ their designee; the Director of the Mayor's Office of Public Finance or ~~his or her~~ their designee; two residential City retail customers, consisting of one appointed by the Mayor and one by the Board of Supervisors; and two City retail business customers, consisting of a large business customer appointed by the Mayor and a small business customer appointed by the Board of Supervisors.

The Rate Fairness Board~~Council~~ may:

i1. Review the five-year rate forecast;

ii2. Hold one or more public hearings on annual rate recommendations before the Public Utilities Commission adopts rates;

iii3. Provide a report and recommendations to the Public Utilities Commission on the rate proposal; and

iv4. In connection with periodic rate studies, submit to the Public Utilities Commission rate policy recommendations for the Commission's consideration, including recommendations to reallocate costs among various retail utility customer classifications, subject to any outstanding bond requirements.

~~These provisions shall be effective January 3, 2003 for the setting of retail rates, fees and charges related to the clean water system. If the voters approve bonds for the Public Utilities Commission's Capital Improvement Program at the November 5, 2002 election then the provisions of this section shall take effect on July 2, 2006 for the setting of retail rates, fees and charges related to the water system. If the voters do not approve such bonds then this section will take effect on January 3, 2003.~~

As set forth in Section 18.116 of this Charter, subsection (c) of this Section 8B.125 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the subsection to the Administrative Code. Thereafter, subsection (c) may be amended or

repealed by ordinance.

**SEC. 8B.126. ~~PERSONNEL AND MERIT~~
SYSTEM APPOINTMENT OF THE GENERAL MANAGER.**

(a) The General Manager shall be selected under the provisions of Charter sections 3.100 and 4.102. The General Manager may be employed under an individual contract. ~~His or her~~*The General Manager's* compensation shall be comparable to the compensation of the chief executive officers of the public water, ~~wastewater sewer,~~ and/or power systems in the United States that the Commission, after an independent survey, determines most closely resemble the Public Utilities Commission in size, mission, and complexity. In addition, the Public Utilities Commission may provide an incentive compensation bonus plan for the General Manager based on performance goals established by the Commission.

(b) ~~The General Manager may negotiate an individual contract with the employee appointed to perform the duties of general infrastructure management and oversight of the Capital Improvement Program subject to approval by the Commission and notwithstanding Charter Section 48.409 et seq.~~

~~(c)~~ For purposes of approving individual employment contracts the Public Utilities Commission may exercise all powers of the City and County, the Board of Supervisors, the Mayor, and the Director of Human Resources under Article XI of this ~~charter~~*Charter*. Individual employment contracts shall utilize and shall not alter or interfere with, the Retirement or Vacation provisions of this Charter or the Health Plans established by the City's Health Service Board; provided however, that the Commission may contribute toward defraying the cost of the employee's health premiums and retirement pick-up.

SEC. 9.109. REFUNDING BONDS.

The Board of Supervisors is hereby authorized to provide *by resolution* for the issuance of bonds, ~~notes, commercial paper, leases, or other indebtedness~~ of the City and County for the purpose of refunding any ~~general obligation or revenue bonds outstanding indebtedness~~ of the City and County ~~then outstanding~~. No voter approval shall be required for the authorization, issuance, and sale of refunding ~~bonds indebtedness, which that the Controller determines would be financially advantageous are expected to result in net debt service savings to the City and County on a present value basis, calculated as provided by ordinance.~~

SEC. 9.114. MISSION-DRIVEN BUDGET.

Each departmental budget shall describe each proposed activity of that department and the cost of that activity. In addition, each department shall provide the Mayor and the Board of Supervisors with the following details regarding its budget:

1. The overall mission and goals of the department;
2. The specific programs and activities conducted by the department to accomplish its mission and goals;
3. The customer(s) or client(s) served by the department;
4. The service outcome desired by the customer(s) or client(s) of the department's programs and activities;
5. Strategic plans that guide each program or activity;
6. Productivity goals that measure progress toward strategic plans;
7. The total cost of carrying out each program or activity; and
8. The extent to which the department achieved, exceeded, or failed to meet its missions, goals, productivity objectives, service objectives, strategic plans, and spending constraints identified in subsections (1) through (6) during the prior year or prior budgetary cycle.

Departmental budget estimates shall be prepared in such form as the Controller, after consulting with the Mayor, directs in writing.

As set forth in Section 18.116 of this Charter, this Section 9.114 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, this Section 9.114 may be amended or repealed by ordinance.

SEC. 9.115. DEPARTMENTAL BUDGET COMMITMENTS.

It shall be the duty of each officer, department head, board or commission ultimately responsible for the management of each department to certify to the Mayor and the Board of Supervisors ~~his/ her/their~~ commitment to perform the programs and activities with specified levels of performance for specified costs as outlined in the budget description and other information required by Section 9.114.

As set forth in Section 18.116 of this Charter, this Section 9.115 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, this Section 9.115 may be amended or repealed by ordinance.

SEC. 9.116. DEPARTMENTAL SAVINGS AND REVENUE GAINS.

Within 30 days of the Controller's issuance of the combined annual financial report of the City and County, the Controller shall report to the Mayor and Board of Supervisors regarding the extent to which each department in the prior fiscal year has recovered additional revenues measured by the difference between projected and experienced revenues. It shall be City policy for the Mayor and Board of Supervisors, upon receipt of this report, through the supplemental appropriations process to give serious consideration to rewarding those departments that the Controller has certified pursuant to this section exceeded their revenue goals or met or exceeded departmental operational goals expending less than has been projected in the budget.

As set forth in Section 18.116 of this Charter, this Section 9.116 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, this Section 9.116 may be amended or repealed by ordinance.

SEC. 9.119. FIVE-YEAR FINANCIAL PLAN.

(a) No later than July 1, 2010, the City shall adopt a five-year financial plan for those non-general fund departments and offices proposed by the Mayor and designated by the Board by ordinance for early implementation. The City shall update that plan and combine it with a five-year financial plan for all other City departments and offices no later than July 1, 2011. By March 1st of each odd numbered year thereafter, the Mayor shall propose a five-year financial plan, and by May 1st of each such year the Board of Supervisors shall review, amend, and adopt the five-year financial plan by resolution.

(b) The Mayor and the Board of Supervisors shall use the financial plan as a tool to plan for upcoming City budgets. The financial plan shall include a forecast of expenditures and revenues during the five-year period, and actions proposed to balance revenues and expenditures during each year of the plan. *The plan shall include a summary of each department's strategic goals, resources allocated in the plan to meet these goals, and changes in service levels expected given investment levels proposed in the plan.*

SEC. 12.100. RETIREMENT BOARD.

(a) The Retirement Board shall consist of seven members as follows: one member of the Board of Supervisors appointed by the President, three public members to be appointed by the Mayor pursuant to Section 3.100, and three members elected by the active members and retired persons of the Retirement System from among their number. The public members appointed by the Mayor shall be experienced in life insurance, actuarial science, employee pension planning or investment portfolio management, or hold a degree of doctor of medicine. There shall not be, at any one time, more than one retired person on the Board. The term of the members, other than the Board of Supervisors member, shall be five years, one term expiring on February 20 of each year. The three elected members need not be residents of the City and County. Vacancies on the Board shall be filled by the Mayor for the remainder of the unexpired term, except that in the case of elected employee members, a vacancy shall be filled by a special election within 120 days after the vacancy occurs unless the next regularly scheduled employee

member election is to be held within six months after such vacancy occurred. Elections shall be conducted by the Director of Elections in a manner prescribed by ordinance. Members who are elected may be removed only for official misconduct in the manner provided in Section 15.105(b) of this Charter. For the purposes of such a proceeding only, the Mayor shall have the powers and duties that Section 15.105(b) assigns to the appointing authority with respect to an elected member.

* * * *

SEC. 12.200. HEALTH SERVICE BOARD.

There shall be a Health Service Board which shall consist of seven voting members as follows: one member of the Board of Supervisors, ex officio, to be appointed by the President of the Board of Supervisors; two members appointed by the Mayor pursuant to Section 3.100, one of whom shall be an individual who regularly consults in the health care field, and the other a doctor of medicine; one member nominated by the Controller; and three members elected from the active and retired members of the System from among their number. Elections shall be conducted by the Director of Elections in a manner prescribed by ordinance. Elected members need not reside within the City and County.

Not later than April 1, 2013, the Controller shall nominate a candidate for appointment to the Health Services Board for a two-year term commencing on May 15, 2013. The Controller shall transmit a written notice of that nomination to the Health Services Board. The Controller's nominee shall be subject to the approval of the Health Services Board. If the Health Services Board fails to calendar the Controller's nomination for consideration at a meeting to occur not later than 60 days after receipt of the Controller's written notice of nomination, the Controller's nominee shall be deemed approved. All subsequent appointments of Controller's nominees shall be for a five-year term and be subject to the same procedure. The Health Service Board member nominated by the Controller's nominee may not vote on his or her that member's successor.

The terms of Health Service Board members, other than the ex officio members of the Board of Supervisors, shall be five years, and shall expire on May 15 of each year, with the exception that the term of the Board member that begins in May 2011 shall be three (3) years, and shall expire in May 2014, and the term of the Board member that begins in May 2013 term shall be two (2) years, and shall expire in May 2015.

The appointee nominated by the Controller shall succeed the elected member whose term expires at 12:00 noon on May 15, 2013. In the event the elected member whose term expires on May 15, 2013, leaves the Board prior to that date, the Controller shall nominate a successor to fill the unexpired term according to the procedures set forth above.

A vacancy on the Board appointed by the Mayor shall be filled by the Mayor. A vacancy on the Board of an appointee nominated by the Controller shall be filled for the unexpired term according to the procedures set forth above for Controller's nominees. A vacancy in an elective office on the Board shall be filled by a special election within 90 days after the vacancy occurs unless a regular election is to be held within six months after such vacancy shall have occurred.

Board members who are elected may be removed only for official misconduct in the manner provided in Section 15.105(b) of this Charter. For the purposes of such a proceeding only, the Mayor shall have the powers and duties that Section 15.105(b) assigns to the appointing authority with respect to an elected Board member.

* * * *

Except as otherwise specifically provided, the Health Service Board shall have the powers and duties and shall be subject to the limitations of Charter Sections 4.102, ~~4.103~~ and 4.104.

* * * *

SEC. 12.202. MEMBERSHIP IN HEALTH SERVICE SYSTEM.

The members of the System shall consist of all officers and permanent employees of the City and County, the Unified School District, the Community College District, and such other officers, employees, dependents, and retirees as provided by ordinance.

SEC. 12.203. HEALTH SERVICE SYSTEM FUND.

The Health Service System fund shall be a trust fund administered by the Health Service Board in accordance with the provisions of this Charter solely for the benefit of the active and retired members of the Health Service System and their covered dependents. The City and County, Unified School District, and Community College District, shall each contribute to the Health Service System Fund amounts sufficient to efficiently administer the Health Service System.

SEC. 12.204. RETIREE HEALTH CARE TRUST FUND.

(a) The Retiree Health Care Trust Fund (RHCTF) shall be an irrevocable trust fund established under Section A8.432, and separate from the Health Service System trust fund described in Charter Sections 12.203 and A8.428, to provide a funding source to defray the cost of the City's, and other Participating Employers'; obligations to pay for health coverage for retired persons and their survivors entitled to health coverage under Section A8.428. RHCTF assets shall be held for the sole and exclusive purpose of providing health coverage to eligible retired persons and their survivors, and to defray the reasonable expenses of administering the RHCTF, including but not limited to educational, actuarial, consulting, administrative support and accounting expenses associated with the RHCTF. Subject to the approval of the Board of Supervisors by resolution, the Retiree Health Care Trust Fund Board (Board) may, upon the adoption of a resolution, authorize specific payments for specific amounts enumerated in the resolution and shall pay for such administrative costs from the RHCTF.

(b) The Board shall govern the RHCTF. The Board shall consist of the following five trustees: the City Controller, the City Treasurer, and the Executive Director of the San Francisco Employees' Retirement System, or their respective designees; and two elected trustees ~~elected from among active employee and retired members of the City's Health Service System.~~ One of the elected trustees shall be an active employee member of the Health Service System as of the date of their election and shall be elected by the active employees, and the other one shall be a retired member as of the date of their respective elections their election and shall be elected by the retired members. Each elected trustee shall serve for a term of five years. No person may serve simultaneously as a trustee on the Board and as an elected or appointed member of the San Francisco Employees' Retirement System Board or the Health Service System Board.

(c) Elected trustees may be removed only for official misconduct in the manner provided in Section 15.105(b) of this Charter. For the purposes of such a proceeding only, the Mayor shall have the powers and duties that Section 15.105(b) assigns to the appointing authority with respect to an elected trustee.

SEC. 13.110. ELECTION OF SUPERVISORS.

* * * *

(d) Within 60 days following publication of the decennial federal census in the year 2000 and every decennial federal census after that, the Director of Elections shall report to the Board of Supervisors on whether the existing districts continue to meet the requirements of federal and state law and the criteria for drawing districts lines set in the Charter.

The criteria for drawing districts lines are:

* * * *

If it is determined that the districts are in compliance with all legal requirements, including the requirement that they be equal in population, the current districts as drawn will be valid for the next decade. If it is determined that any of the districts are not in compliance, the Board of Supervisors by ordinance shall convene and fund a nine-member elections task force Redistricting Board.

Three members shall be appointed by the Board of Supervisors, three members shall be appointed by the Mayor, and three members shall be appointed by ~~the Director of Elections unless an Elections Commission is created in which case the appointments designated to the Director of Elections shall be made by the Elections Commission.~~ *The Task Force Redistricting Board* shall be appointed by January 8, 2002 and following the publication of each decennial federal census thereafter, shall be appointed within ~~sixty~~⁶⁰ days after issuance of a report by the Director of Elections to the Board of Supervisors that the districts are not in compliance, pursuant to this subsection.

~~Members of the Task Force previously appointed by the Director of Elections shall serve on the Task Force until the Elections Commission, if established, appoints three members to the Task Force, whereupon the terms of the members appointed by the Director of Elections shall expire.~~

The Director of Elections shall serve ex officio as a non-voting member. The *task force Redistricting Board* shall be responsible for redrawing the district lines in accordance with the law and the criteria established in this Section, and shall make such adjustments as appropriate based on *legal criteria as informed by* public input at public hearings.

The *Task Force Redistricting Board* shall complete redrawing district lines before ~~the fifteenth day of~~ April 15 of the year in which the first election using the redrawn lines will be conducted. The Board of Supervisors may not revise the district boundaries established by the *Task Force Redistricting Board*.

If the *Task Force Redistricting Board* determines that the adjusted population data to which this subsection refers are not available a sufficient period of time before ~~the fifteenth day of~~ April 15 in order to use the adjusted population data in redrawing the district lines for the following supervisorial election, and the adjusted population data demonstrate more than a ~~five percent~~^{5%} variance from the figures used in redrawing the district lines for ~~the~~ that supervisorial election, the *Task Force Redistricting Board* shall by ~~the fifteenth day of~~ April 15 immediately preceding the next supervisorial election redraw the district lines for that supervisorial election in accordance with the provisions of this ~~s~~Section. The procedures for redrawing supervisorial lines following the publication of every subsequent decennial federal census shall follow the procedures established by this Section.

The City Attorney shall ~~remove~~^{place} the description of district lines ~~in an appendix to this Charter found in this subsection from the Charter after the Elections Task Force.~~ Whenever the Redistricting Board has completed redrawing the district lines ~~according to the processes~~ set forth above. ~~Following each redrawing of the district lines thereafter,~~ the City Attorney shall cause the ~~old district lines to be removed from the appendix, and the redrawn district lines to be published in an the appendix to this Charter.~~

* * * *

SEC. 14.101.1. MODIFICATION OF INITIATIVE ORDINANCES BY THE BOARD OF SUPERVISORS.

(a) Notwithstanding Section 14.101, and in addition to any other amendments authorized by Section 14.101, by no later than July 31, 2027, the City shall enact one or more ordinances in accordance with Article II of this Charter to amend the following initiative ordinances in the following ways:

(1) To eliminate the Advisory Committee of Street Artists and Crafts Examiners of the City and County in Article 24 of the Police Code and establish a new system for the City to receive input on applications from experienced artists or crafts persons.

(2) To amend Chapter 67, Section 67.30 of the Administrative Code to provide that for the seven members of the Sunshine Ordinance Task Force not nominated by the Society of Professional Journalists or the League of Women Voters, the Board of Supervisors is not bound

to specific criteria in appointing members to the Task Force, but should take into account the following desired qualifications, together with other factors that the Board of Supervisors deems relevant: experience and/or demonstrated interest in the issues of citizen access and participation in local government; experience working in news organizations whose work focuses on issues impacting diverse communities, or whose target audiences include diverse communities, including but not limited to different cultural, linguistic, and racial/ethnic communities.

(3) To recodify Section 290 of the Health Code, the Refuse Collection and Disposal Ordinance No. 17.083, in the Administrative Code, with the City Attorney determining the appropriate placement of that section within the Administrative Code.

(4) To rename the Citizens' General Obligation Bond Oversight Committee in Administrative Code, Chapter 5, Article V, as the Citizens General Obligation Bond Oversight Council.

(5) To rename the Sugary Drinks Distributor Tax Advisory Committee in Administrative Code Chapter 5, Article XXXIII, as the Sugary Drinks Distributor Tax Advisory Council, provide that administrative support for the Council shall be provided by the Department of Public Health and not the Controller or City Administrator, and provide that the Council will sunset when the Sugary Drinks Distributor Tax expires.

(6) To eliminate the requirement in Section 2A.242(b)(2) of the Administrative Code that the Small Business Commission, or the Executive Director of the Office of Small Business on its behalf, shall request an advisory recommendation from the Historic Preservation Commission as to whether the business meets the requirements of the Legacy Business program.

(b) Notwithstanding Section 14.101, the City shall have authority to enact one or more ordinances by an affirmative vote of two-thirds of the members of the Board of Supervisors, and otherwise in accordance with Article II of this Charter, to amend Chapter 2, Article IX of the Administrative Code, addressing Official Newspapers, provided that the Board keeps in place a process for providing support to local news organizations.

(c) Notwithstanding Section 14.101, the City shall have authority to enact one or more ordinances in accordance with Article II of this Charter to amend or eliminate any aspect of the Our City Our Home Oversight Committee in Article 28, Section 2810 of the Business and Tax Regulations Code, and Chapter 5, Article XLI of the Administrative Code.

(d) This Section 14.101.1 shall not be construed to prohibit any additional amendment or repeal of any initiative ordinance by Board of Supervisors ordinance as specifically authorized in the initiative ordinance pursuant to Section 14.101.

SEC. 15.105. SUSPENSION AND REMOVAL.

* * * *

(b) BUILDING INSPECTION COMMISSION, PLANNING COMMISSION, BOARD OF APPEALS, ELECTIONS COMMISSION, ETHICS COMMISSION, SHERIFF'S DEPARTMENT OVERSIGHT BOARD, ~~AND~~ ENTERTAINMENT COMMISSION, HEALTH SERVICE BOARD, RETIREMENT BOARD, AND RETIREE HEALTH CARE TRUST FUND BOARD. Members of the Building Inspection Commission, the Planning Commission, the Board of Appeals, the Elections Commission, the Ethics Commission, the Sheriff's Department Oversight Board, ~~and~~ the Entertainment Commission, the Health Service Board, the Retirement Board, and the Retiree Health Care Trust Fund Board may be suspended and removed pursuant to the provisions of subsection (a) of this section except that, unless otherwise specified in this Charter, the Mayor may initiate removal only of the Mayor's appointees and the appointing authority shall act in place of the Mayor for all other appointees.

SEC. 16.103. UTILITY REVENUES AND EXPENDITURES.

(a) Receipts from each utility operated by the Public Utilities Commission shall be paid into the City and County treasury and maintained in a separate fund for each such utility. Appropriations from such funds shall be made for the following purposes for each such utility in the order named:

— 1. For the payment of operating expenses, pension charges and proportionate payments to such compensation and other insurance and accident reserve funds as the Commission may establish or the Board of Supervisors may require;

— 2. For repairs and maintenance;

— 3. For reconstruction and replacements as hereinafter described;

— 4. For the payment of interest and sinking funds on the bonds issued by the Public Utilities Commission pursuant to this charter;

— 5. For extensions and improvements; and

— 6. For a surplus fund.

For any utility with outstanding bonds for which the indenture requires different payment priorities, the bond priorities will control over the priorities set forth in this section.

(b) For the purpose of providing funds for reconstruction and replacements due to physical and functional depreciation of each of the utilities under the jurisdiction of the Commission, the Commission must create and maintain a reconstruction and replacement fund for each such utility, sufficient for the purposes mentioned in this section, and in accordance with an established practice for utilities of similar character, which shall be the basis for the amount necessary to be appropriated annually to provide for said reconstruction and replacements.

(c) If, at the end of any fiscal year, the Controller certifies that excess surplus funds of a utility exist, from hydropower assets or water or clean water assets in excess of 25 percent of the total expenditures of such utility in the previous fiscal year for costs of operation, repair, maintenance and debt service coverage and required debt service reserves, the Public Utilities Commission may transfer that surplus revenue, in whole or in part, to any other utility system under the Commission's jurisdiction on the operative date of this section.

(d) Any surplus revenue which the Public Utilities Commission unanimously finds is not required for utility purposes pursuant to sections (a) and (b) of this section may be transferred to the General Fund by the Public Utilities Commission with the concurrence of three-fourths of the Board of Supervisors upon making all of the following findings of fact and judgment:

— (a) That a surplus exists or is projected to exist after meeting the requirements of this section;

— (b) That there is no unfunded operating or capital program or required reserve that by its lack of funding could jeopardize bond ratings, health, safety, water supply or power production;

— (c) That there is no reasonably foreseeable operating contingency that cannot be funded without General Fund subsidy; and

— (d) That such a transfer of funds in all other respects reflects prudent utility practice.

The Commission shall make such findings having received reports and an affirmative recommendation from the General Manager and a public hearing, which shall have received no less than 30 days of public notice.

(e) The provisions of subsection (c) above shall not be applied in a manner that would be inconsistent with the provisions of any outstanding or future indentures, resolutions, contracts or other agreements of the City and County relating to bonded indebtedness issued in connection with the utility, or with any applicable state or federal laws.

SEC. 16.107. PARK, RECREATION AND OPEN SPACE FUND.

* * * *

(g) Use and Allocation of the Fund. Each year, the Commission shall adopt a budget for the allocation and expenditure of the Fund in compliance with the budget and fiscal provisions of the Charter. The annual budget for allocation of the Fund that is adopted by the Commission and submitted by the Mayor to the Board of Supervisors shall include:

* * * *

(4) An allocation, as a separate line item, of funds required for preparation, monitoring, and evaluation of the plans required under subsection (h).

Prior to the adoption of the annual budget by the Recreation and Park Commission, the Department, ~~in conjunction with the Parks, Recreation, and Open Space Advisory Committee ("Advisory Committee") discussed in subsection (i), below;~~ shall conduct two public hearings in the evenings or on weekends to permit the public to comment on the Department's full budget and programming allocations.

The Board of Supervisors shall consider and apply the Planning and Reporting Measures, including equity metrics, required in subsection (h) when reviewing and approving the Department's budget.

(h) Planning and Reporting Measures. The Commission shall adopt several long-term plans that include, but are not limited to, the following:

* * * *

(2) **Strategic Plan.** By February 1, 2017, and every five years thereafter, the Department shall prepare, for Commission consideration and approval, a five-year Strategic Plan that establishes or reaffirms the mission, vision, goals and objectives for the Department. The Strategic Plan shall include an equity analysis of Recreation and Park services and resources, using the equity metrics adopted under subsection (h)(1), and shall include strategies to mitigate any equity deficiencies identified in the Plan.

The Department shall submit the proposed Strategic Plan to the ~~Parks, Recreation, and Open Space Advisory Committee for its review and comment before submitting the Plan to the~~ Commission for its approval. Following Commission approval of the Strategic Plan, the Department shall submit the Strategic Plan to the Mayor and the Board of Supervisors. The Board of Supervisors shall consider and by resolution express its approval or disapproval of the Plan, but may not modify the Plan. If the Board expresses its disapproval of the Plan or makes recommendations regarding the Plan to the Department, the Department may modify and resubmit the Plan.

* * * *

(3) **Capital Expenditure Plan.** ~~By January 15, 2017 and for~~ each annual or biennial budgetary cycle ~~thereafter~~, as determined under Charter Section 9.101, the Department shall prepare, for Commission consideration and approval, an annual Capital Expenditure Plan that addresses the development, renovation, replacement and maintenance of capital assets, and the acquisition of real property projected during the life of the Department's five-year Strategic Plan. The Capital Expenditure Plan shall include an equity analysis of Recreation and Park capital expenditures, using the equity metrics adopted under subsection (h)(1), and shall include strategies to mitigate any equity deficiencies identified in the Plan. ~~The Capital Expenditure Plan shall further address irrigation, water conservation, and urban forestry on park lands.~~

The Department shall submit the proposed Capital Expenditure Plan to the ~~Parks, Recreation, and Open Space Advisory Committee for its review and comment before submitting the Plan to the~~ Commission for its approval. Following Commission approval, the Department shall submit the Capital Expenditure Plan to the Mayor and the Board of Supervisors. The Board of Supervisors shall consider and by resolution express its approval or disapproval of the Plan, but may not modify the Plan. If the Board expresses its disapproval of the Plan or makes recommendations regarding the Plan to the Department, the

Department may modify and resubmit the Plan.

The Department shall further cooperate in the development of the City's Capital Expenditure Plan under Administrative Code Section 3.20, as amended, or any successor legislation.

(4) **Operational Plan.** *By February 1, 2017, and for* each annual or biennial budgetary cycle *thereafter*, as determined under Charter Section 9.101, the Department shall prepare, for Commission consideration and approval, an Operational Plan. The Department shall base the Operational Plan on the then-current Strategic Plan, and the Operational Plan shall be in addition to the Department's budget. The Department shall include in the Operational Plan a statement of the objectives and initiatives within the Strategic Plan that the Department plans to undertake and/or accomplish during the next budgetary period, including performance indicators and targets. The Operational Plan shall include an equity analysis of Recreation and Park services and resources, using the equity metrics adopted under subsection (h)(1). Each Operational Plan shall further include an assessment of the Department's progress on the previous Operational Plan.

The Department shall submit the proposed Operational Plan *to the Parks, Recreation, and Open Space Advisory Committee for its review and comment before submitting the Plan to* the Commission for its approval. Following Commission approval, the Department shall submit the Operational Plan to the Mayor and the Board of Supervisors.

The Commission shall establish a community input process, *which shall include the Parks, Recreation, and Open Space Advisory Committee discussed in section (i), below, through which citizens-residents* of the City and County of San Francisco will provide assistance to the Commission as it develops criteria and establishes the plans required by this subsection (*h*). Prior to the adoption of any Strategic Plan, the Department shall conduct at least five hearings in locations distributed geographically throughout the City to receive and to consider the public's comments upon the plan. The Commission shall ensure that at least two of these hearings are held in the evenings or on weekends for the public's convenience.

* * * *

(i) **Parks, Recreation, and Open Space Advisory Committee Council.** The Board of Supervisors shall establish, by ordinance, a Parks, Recreation, and Open Space Advisory *Committee Council*, such as the committee established in Park Code Section 13.01, as amended, or any successor legislation.

* * * *

As set forth in Section 18.116 of this Charter, subsection (i) of this Section 16.107 as amended shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer subsection (i) to the Administrative Code and renumber subsections (j)-(n) of this Section accordingly. Thereafter, subsection (i) (as enacted into ordinance) may be amended or repealed by ordinance.

SEC. 16.108. CHILDREN AND YOUTH FUND.

(a) Preamble.

(1) By overwhelmingly reauthorizing the Children's Fund in 2000 with 74% *percent* approval, the people of the City and County of San Francisco found and declared that the Children's Fund (now to be known as the "Children and Youth Fund") is essential in ensuring the health and success of every San Francisco child.

(2) The previous investment of the Children and Youth Fund allowed for the Department of Children, Youth, and Their Families to serve over 56,000 youth in FY 2012-2013, focusing on the children with the most need.

(3) The Fund successfully stabilized and expanded services for children, youth, and their families, while leveraging other resources.

(4) Addressing the level of unmet need among children and youth remains a significant challenge. The needs of San Francisco's children have been increasing:

(A) One-third of San Francisco's African American and Latino children live below the poverty line. The number of San Francisco children in poverty has increased by 14% in the past 5 years.

(B) The federal poverty level for a family of four is \$23,000; adjusted to San Francisco, it is \$35,000. Self-sufficiency in San Francisco for a family of four is three times that amount, and over half of all families cannot meet the self-sufficiency standard. The Children and Youth Fund provides services that support families and opportunities for children and youth that are essential to meeting their needs and providing pathways out of poverty.

(C) State and federal cuts have significantly reduced children and youth services in San Francisco, including funding for child care, youth employment and high need disconnected transitional-aged youth.

(5) The reauthorization of the Children and Youth Fund will enable the Department of Children, Youth and Their Families ("DCYF") to build on the previous success of the Fund and strengthen DCYF's capacity for the future, while fostering innovation and improving transparency and accountability.

(b) **Fund for Children and Youth Services.** Operative July 1, 2001, there is hereby established a fund to expand children's services, which shall be called the Children and Youth Fund ("Fund"). Monies in the Fund shall be expended or used only to provide services for children and youth as provided in this Section 16.108.

* * * *

(f) **Eligible Uses.** The City shall only use monies from the Fund for the following purposes:

* * * *

(2) Funding for *the Department of Children, Youth and Their Families* ("DCYF") and the Children, Youth and Their Families-*Oversight and Advisory Committee Commission* created in *Charter* Section 16.108-1 (*"Oversight and Advisory Committee"*) *"CYF Commission"*.

* * * *

(h) **Baseline.** The Fund shall be used exclusively to increase the aggregate City appropriations and expenditures for those services for children and Disconnected Transitional-Aged Youth that are eligible to be paid from the Fund (exclusive of expenditures mandated by state or federal law). To this end, the City shall not reduce the amount of such City appropriations for eligible services (not including appropriations from the Fund and exclusive of expenditures mandated by state or federal law) under this section below the amount so appropriated for the Fiscal Year 2000-2001 ("the base year") as set forth in the Controller's baseline budget, as adjusted ("the base amount" or "the Children and Youth Baseline").

The Controller shall calculate City appropriations made in fiscal year 2013-2014 for services for Disconnected Transitional-Aged Youth aged 18 through 24 years. Beginning with fiscal year 2014-2015, that amount shall be added to the base amount and adjusted as provided below. The City shall not reduce the amount of such City appropriations for services for Disconnected Transitional-Aged Youth (not including appropriations from the Fund and exclusive of expenditures mandated by state or federal law) under this section below the amount so appropriated for fiscal year 2013-2014, as adjusted.

The base amount shall be adjusted for each year after the base year by the Controller based on calculations consistent from year to year by the percentage increase or decrease in aggregate City and County discretionary revenues. In determining aggregate City and County discretionary revenues, the Controller shall only include revenues received by the City and County that are unrestricted and may be used at the option of the Mayor and the Board of Supervisors for any lawful City purpose. *Additionally, in determining aggregate City and County discretionary revenues, the Controller shall not include*

revenues received by the City under the increased rates in Business and Tax Regulations Code Sections 953.1(g), 953.2(h), 953.3(h), 953.4(e), 953.5(d), 953.6(f), 953.7(d), and 953.8(i) adopted by the voters at the general municipal election on November 3, 2020, and shall not include revenues received by the City under Article 36 of the Business and Tax Regulations Code adopted by the voters at the general municipal election on November 3, 2020. Errors in the Controller's estimate of discretionary revenues for a fiscal year shall be corrected by an adjustment in the next year's estimate. Within 90 days following the end of each fiscal year through Fiscal Year 2040-2041, the Controller shall calculate and publish the actual amount of City appropriations for services for children and Disconnected Transitional-Aged Youth that would have been eligible to be paid from the Fund but are paid from other sources, separately identifying expenditures mandated by state or federal law.

(i) **Five-Year Planning Cycle.** The City shall appropriate monies from the Fund according to a five-year planning process (*the "Five-Year Planning Cycle"*). This process is intended to: (1) increase transparency, accountability, and public engagement; (2) provide time and opportunities for community participation and planning; (3) ensure program stability; and (4) maximize the effectiveness of the services funded. *The first year of the Five-Year Planning Cycle shall be Fiscal Year 2026-2027. The Board of Supervisors may reset the starting year of a future Five-Year Planning Cycle at any time by ordinance.*

(1) **Year 1 – Community Needs Assessment.** During *the first year of each Five-Year Planning Cycle ("Year 1")* ~~fifth fiscal year beginning with Fiscal Year 2015-2016~~ 2026-2027, DCYF shall conduct a Community Needs Assessment ("CNA") to identify services to receive monies from the Fund. The CNA should include qualitative and quantitative data sets collected through interviews, focus groups, surveys, or other outreach mechanisms to determine service gaps in programming for children, youth, and families. Subject to the budgetary and fiscal provisions of the Charter, DCYF may contract with consultants and outside experts for such services as the department may require to prepare the CNA. DCYF shall undertake a robust community process in every supervisory district, soliciting input from a diverse cross-section of parents, youth, non-profit organizations, and other key stakeholders to develop the CNA:

(A) DCYF shall develop a plan for how to conduct the CNA. The CNA shall include an equity analysis of services and resources for parents, children, and youth. DCYF shall develop a set of equity metrics to be used to establish a baseline of existing services and resources in low-income neighborhoods and disadvantaged communities, compared to services and resources available in the City as a whole. The outreach for the CNA shall create opportunities for parents, youth, nonprofit agencies, and other members of the public, to provide input. By September 1, DCYF shall provide its plan for conducting the CNA to the *Oversight and Advisory Committee CYF Commission, the Service Provider Working Group Children, Youth, and Their Families Service Provider Advisory Council ("Service Provider Advisory Council")* created in *Charter* Section 16.108-1(e), *the Childcare Planning and Advisory Council established by Administrative Code Article XX*, and the Board of Supervisors. The plan shall be a public document.

(B) By March 1, DCYF shall complete a draft CNA and provide this draft to the *Oversight and Advisory Committee and the CYF Commission, the Service Provider Working Group Advisory Council, and the Childcare Planning and Advisory Council* for review. DCYF shall also provide the draft CNA to interested City departments, *commissions, and advisory bodies, including which may include, but are not limited to, the Department of Early Childhood, the First Five Children and Families First Commission or any successor body, the Office of Early Care and Education (or any successor entity),* the Recreation and Park Commission, the Health Commission, the Human Services Commission, the Youth Commission, the Juvenile Probation

Commission, the Adult Probation Department, the Commission on the Status of Women, the Police Commission, the Library Commission, and the Arts Commission, *to the extent each of those departments, commissions, and advisory bodies continues to exist.*

(C) By April 1, DCYF shall submit a final version of the CNA to the *Oversight and Advisory Committee CYF Commission, the Service Provider Advisory Council, the Childcare Planning and Advisory Council,* and the Board of Supervisors. The final version may incorporate any comments or suggestions made by the public or by the agencies that received copies of the draft CNA.

(D) By May 1, the *Oversight and Advisory Committee CYF Commission* shall provide input on, approve, or disapprove the CNA. If the *Oversight and Advisory Committee CYF Commission* disapproves the report, DCYF may modify and resubmit the report.

(E) By June 1, the Board of Supervisors shall consider and approve or disapprove, or modify, the CNA. If the Board of Supervisors disapproves the CNA, DCYF may modify and resubmit the CNA, provided, however, that the City may not expend monies from the Fund until the Board of Supervisors has approved the CNA.

(2) **Year 2 – Services and Allocation Plan.** During *the second year of each Five-Year Planning Cycle following the CNA ("Year 2")* ~~fifth fiscal year beginning with Fiscal Year 2016-2017~~, DCYF shall prepare a Services and Allocation Plan ("SAP") to determine services eligible to receive monies from the Fund. DCYF shall use the following process to prepare the SAP:

(A) DCYF shall prepare a draft SAP in consultation with interested City departments, *commissions, and advisory bodies, including which may include, but are not limited to, the Department of Early Childhood, the First Five Children and Families First Commission or any successor body, the Office of Early Care and Education (or any successor entity), the Childcare Planning and Advisory Council,* the Recreation and Park Commission, the Health Commission, the Human Services Commission, the Youth Commission, the Juvenile Probation Commission, the Adult Probation Department, the Commission on the Status of Women, the Police Commission, the Library Commission, and the Arts Commission, *Commission, to the extent each of those departments, commissions, and advisory bodies continues to exist,* as well as the San Francisco Unified School District, community-based service providers, parents, children, youth, and other members of the public. The SAP must:

- (i) Demonstrate consistency with the CNA and with Citywide vision and goals for children and families;
 - (ii) Include all services for children and Disconnected Transitional-Aged Youth;
 - (iii) Be outcome-oriented and include goals and measurable and verifiable objectives and outcomes;
 - (iv) Include capacity-building and evaluation of services as separate funding areas;
 - (v) State how services will be coordinated and have specific amounts allocated towards specific goals, service models, populations and neighborhoods;
 - (vi) Include funding for youth-initiated projects totaling at least 3% ~~percent~~ of the total proposed expenditures from the Fund for the cycle;
 - (vii) Include evaluation data from the previous funding cycle and the details of the Children and Youth Baseline; and,
 - (viii) Incorporate strategies to coordinate and align all services for children funded by all governmental or private entities and administered by the City, whether or not those services are eligible to receive monies from the Fund.
- (B) The SAP shall include an equity analysis of services and resources for parents, children and youth. Using the equity metrics developed for preparation of the CNA, the SAP shall compare proposed

new, augmented, and coordinated services and resources for low-income neighborhoods and disadvantaged communities with services and resources available to the City as a whole.

(C) Subject to the budgetary and fiscal provisions of the Charter, DCYF may contract with consultants and outside experts for such services as the department may require to prepare the SAP, including the equity analysis of services and resources for parents, children and youth.

(D) By March 1, DCYF shall provide the draft SAP to the Oversight and Advisory Committee CYF Commission, and the Service Provider Working Group Advisory Council, and the Childcare Planning and Advisory Council. DCYF shall also provide the draft SAP to the San Francisco Unified School District and interested City departments, commissions, and advisory bodies, including which may include, but are not limited to, the Department of Early Childhood, the First Five Children and Families First Commission or any successor body, the Office of Early Care and Education (or any successor entity), the Recreation and Park Commission, the Health Commission, the Human Services Commission, the Youth Commission, the Juvenile Probation Commission, the Adult Probation Department, the Commission on the Status of Women, the Police Commission, the Library Commission and the Arts Commission, to the extent each of those departments, commissions, and advisory bodies continues to exist.

(E) By April 1, DCYF shall submit a final version of SAP to the Oversight and Advisory Committee CYF Commission, the Service Provider Advisory Council, the Childcare Planning and Advisory Council, and the Board of Supervisors. The final version may incorporate any comments or suggestions made by the public or by the agencies that received copies of the draft SAP.

(F) By May 1, the Oversight and Advisory Committee CYF Commission shall approve or disapprove the SAP. If the Oversight and Advisory Committee CYF Commission disapproves the SAP, DCYF may modify and resubmit the SAP.

(G) By June 1, the Board of Supervisors shall consider and approve or disapprove, or modify, the SAP. If the Board of Supervisors disapproves the SAP, DCYF may modify and resubmit the SAP, provided, however, that the City may not expend monies from the Fund until the SAP has been approved by the Board of Supervisors.

(H) During subsequent years of the planning cycle, DCYF, with the approval of the Oversight and Advisory Committee CYF Commission and the Board of Supervisors, may amend the SAP to address emerging needs.

(3) **Year 3 – Selection of Contractors.** During the third year of each Five-Year Planning Cycle following the SAP (“Year 3”) fifth fiscal year beginning with Fiscal Year 2017-2018, DCYF shall conduct competitive solicitations for services to be funded from the Fund.

(4) **Year 4 – Service Cycle Begins.** During the fourth year of each Five-Year Planning Cycle following the selection of contractors (“Year 4”), DCYF shall execute contracts for services with shall start on July 1 start date of Year 4 of the planning cycle, beginning with Fiscal Year 2018-2019. During subsequent years of the Five Year pPlanning eCycle, DCYF, with the approval of the Oversight and Advisory Committee CYF Commission, may issue supplemental competitive solicitations to address amendments to the SAP and emerging needs. All expenditures for services from the Fund shall be consistent with the most recent CNA and SAP.

(5) DCYF may recommend, and the Oversight and Advisory Committee CYF Commission and the Board of Supervisors may approve, changes to the due dates and timelines provided in this subsection (i). The Board of Supervisors shall approve such changes by ordinance.

(j) **Evaluation.** DCYF shall provide for the evaluation on a regular basis of all services funded through the Fund, and shall prepare

on a regular basis an Evaluation and Data Report for the Oversight and Advisory Committee CYF Commission. Subject to the budgetary and fiscal provisions of the Charter, DCYF may contract with consultants and outside experts for such services as the department may require to conduct such evaluations and to prepare the Evaluation and Data Report.

(k) **Selection of Contractors.** The Oversight and Advisory Committee CYF Commission shall recommend standards and procedures for the selection of contractors to be funded from the Fund. It shall be the policy of the City to use competitive solicitation processes where appropriate and to give priority to the participation of non-profit agencies.

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SEC. 16.108-1. CHILDREN, YOUTH AND THEIR FAMILIES- OVERSIGHT AND ADVISORY COMMITTEE COMMISSION.

(a) **Creation.** There shall be a Children, Youth and Their Families Oversight and Advisory Committee Commission (“Oversight and Advisory Committee” “CYF Commission”) to review the governance and policies of the Department of Children, Youth and Their Families (“DCYF”), to monitor and participate in the administration of the Children and Youth Fund as provided in Charter Section 16.108 (“Fund”), and to take steps to ensure that the Fund is administered in a manner accountable to the community. The CYF Commission shall only have the responsibilities set forth in Charter Sections 16.108 and 16.108-1 and shall not otherwise exercise the powers and duties of boards and commissions set forth in Charter Section 4.102.

(b) Responsibilities.

(1) The Oversight and Advisory Committee CYF Commission shall develop recommendations for DCYF and the Fund regarding outcomes for children and youth services, the evaluation of services, common data systems, a process for making funding decisions, program improvement and capacity-building of service providers, community engagement in planning and evaluating services, leveraging dollars of the Fund and the use of the Fund as a catalyst for innovation. The Oversight and Advisory Committee CYF Commission shall promote and facilitate transparency in the administration of the Fund.

(2) As provided in Charter Section 16.108, the Oversight and Advisory Committee CYF Commission shall review and approve the planning process for the Community Needs Assessment (“CNA”) and the final CNA, the Services and Allocation Plan, and DCYF’s overall spending plan (including, as separate items, approval of the departmental budget and of DCYF’s proposed grants as a package), and shall review the annual Data and Evaluation Report. Nothing in this Section shall limit the authority of the Mayor and the Board of Supervisors to propose, amend, and adopt a budget under Article IX of the this Charter.

(3) The Oversight and Advisory Committee CYF Commission shall participate in the evaluation of the Director of DCYF, assist in recruitment for the Director when the position is vacant, and may recommend candidates to the Mayor for appointment.

(4) The Oversight and Advisory Committee CYF Commission shall establish and maintain a Service Provider Working Group Advisory Council as provided in subsection (de).

(5) The Oversight and Advisory Committee CYF Commission shall meet at least six times a year.

(c) **Composition.** The Oversight and Advisory Committee CYF Commission shall have eleven members. The Mayor shall appoint members for Seats 1 through 6. The Board of Supervisors shall appoint members for Seats 7 through 11. The Mayor and the Board of Supervisors shall appoint the initial members of the Committee by July 1, 2015. The terms of the initial appointees to the Committee shall commence on the date of the first meeting of the Committee, which may occur when at least eight members have been appointed and are present.

~~(d) **Implementation.** The Board of Supervisors shall further provide by ordinance for the membership, structure, functions, appointment criteria, terms and support of the Oversight and Advisory Committee. The Board of Supervisors shall adopt such legislation to be effective by July 1, 2015.~~

~~(ed) **Service Provider Working Group Advisory Council.** The CYF Commission Oversight and Advisory Committee shall create There shall be a Children, Youth, and Their Families Service Provider Advisory Council Service Provider Working Group (“Working Group Advisory Council”) to advise the Oversight and Advisory Committee CYF Commission on funding priorities, policy development, the planning cycle, evaluation design and plans, and any other issues of concern to the Working Group Advisory Council related to the Fund or the responsibilities of DCYF or other departments receiving monies from the Fund. The Working Group Advisory Council shall engage a broad cross-section of service providers in providing information, education, and consultation to the Oversight and Advisory Committee CYF Commission. All members of the Working Group Advisory Council shall be actively providing services to children, youth and their families. The Working Group shall be supported by DCYF staff. DCYF shall provide or assist the Advisory Council in obtaining adequate administrative support. The Advisory Council shall meet at least four times a year. The Oversight and Advisory Committee shall appoint two initial co-chairs of the Working Group, who shall be responsible for developing the structure of the Working Group and facilitating the meetings. After the terms of the initial co-chairs expire, the Working Group shall select its own chairs. Working Group meetings shall be open and encourage widespread participation.~~

SEC. 16.114. POWERS OF INQUIRY AND REVIEW.

The Mayor, the City Administrator, the Controller, or any board or commission appointed by the Mayor, relative solely to the affairs under its control, may require such periodic or special reports of departmental costs, operations and expenditures, examine the ~~books, papers, documents, data,~~ records and accounts of, and inquire into matters affecting the conduct of any department or office of the City and County, and for that purpose may hold hearings, subpoena witnesses, administer oaths and compel the production of books, papers, testimony and other evidence. The Board of Supervisors shall have the same powers of inquiry and review, including the power to issue subpoenas and compel the production of evidence, with respect to matters affecting the conduct of any department or office of the City and County.

SEC. 16.127-1. OUR CHILDREN, OUR FAMILIES INITIATIVE ~~AND COUNCIL~~; PREAMBLE.

(a) San Francisco has historically shown great concern and compassion for its most vulnerable residents – its children. The City and the community have demonstrated this commitment through the adoption of progressive, innovative, and creative ideals supporting the well-being of San Francisco’s children and families.

(b) To continue its legacy as a champion of children, it is imperative for San Francisco to further invest in the City’s children and families.

(c) The people of the City and County of San Francisco previously supported the passage of the unprecedented Children’s Amendment in 1991 and 2000 and the Public Education Enrichment Fund in 2004. While these initiatives dedicated funding to services, the level of unmet needs in providing critical programming and services still falls short.

(d) In order to advance a Citywide vision and long-term set of goals, City leaders, departments, the San Francisco Unified School District (“SFUSD”), and community partners must come together to align needs with services, coordinate across agencies, and develop a strategy.

~~(e) *The Our Children, Our Families Council, comprised*~~

~~of department heads from the City and SFUSD, and community stakeholders, will build a platform that will place children and families at the center of every policy decision.~~

~~(fg)~~ With the renewal of the Children and Youth Fund and the Public Education Enrichment Fund in November 2014, the City must seize this opportunity to develop a long-term Citywide vision, create a set of strategies, coordinate services, and identify shared goals to not only ensure that all children and families already here are able to thrive, but to encourage other families to live here.

~~(gl)~~ The percentage of children under the age of 18 in San Francisco has steadily declined. As of 2010, 13.4% ~~percent~~ of the City’s total population was under the age of 18, the lowest percentage of any major city nationwide.

~~(hg)~~ Families continue to leave San Francisco, especially those families in the low to moderate income brackets.

~~(ih)~~ San Francisco’s children population is declining, with over 10% ~~percent~~ of 1 to 4 year olds moving out of the City annually and fewer children moving in.

~~(ji)~~ The declining numbers of children and families in the City cost the community financially as less money is spent on the local economy.

~~(kj)~~ This measure will put in place a collaborative approach around the following points of unity:

(1) Ensuring equity, and giving priority to children and youth with the highest needs;

(2) Empowering parents, youth, and community stakeholders by giving them a voice in the implementation of this Citywide vision; and,

(3) Building public trust through transparency and accountability meeting the needs of children and families.

~~(hk)~~ To further support a coordinated approach to outcomes-based services for children, youth, Disconnected Transitional-Aged Youth, and families, the Our Children, Our Families Initiative (“Initiative”) shall be a joint initiative staffed by employees and officers of the City and SFUSD with the mission to build a public policy platform that will place children and families at the center of every policy decision. The Initiative will support aligning and coordinating the development of comprehensive and connected systems, services, policies, and planning strategies to strengthen the City’s services for children, youth, Disconnected Transitional-Aged Youth, and families, with the goals of increasing equitable access and enhancing effectiveness. The Mayor shall lead the Initiative, and shall invite the Superintendent of SFUSD to co-lead the Initiative with support from SFUSD staff in the Superintendent’s discretion. The Mayor shall ensure that City departments are convened, coordinated, and engaged as part of the development of the Children and Families Plan ~~(the “Plan”)~~, engaging in a Citywide Community Needs Assessment (“CCNA”) for children, youth, and families, and the Outcomes Framework described in Charter Sections 16.127-3 and 16.127-95, as well as in advancing the goals established in the Plan and Outcomes Framework.

~~SEC. 16.127-2. OUR CHILDREN, OUR FAMILIES COUNCIL; CREATION.~~

~~There shall be an Our Children, Our Families Council (“the Council”) to advise the City on the unmet needs, services, and basic needs infrastructure of children and families in San Francisco through the creation of a Children and Families Plan for the City.~~

~~SEC. 16.127-32. OUR CHILDREN, OUR FAMILIES COUNCIL; PURPOSE OF THE CHILDREN AND FAMILIES PLAN.~~

In order to advance a Citywide vision centered on the needs of children and families, City leaders and departments, SFUSD, and community partners must come together to coordinate their efforts across agencies and develop a strategy for achieving shared goals. The purpose of the ~~Children and Families Plan~~ to be developed by the-

Council Initiative will be to create an aligned and connected system of programs and services, in order to strengthen the City's ability to best serve children, youth and their families, with the specific goals of promoting coordination among and increased accessibility to such programs and services, and enhancing their overall effectiveness.

~~SEC. 16.127-4. OUR CHILDREN, OUR FAMILIES COUNCIL, COMPOSITION.~~

The Mayor shall chair the Council, and shall invite the Superintendent of SFUSD to serve as co-chair of the Council. Other members of the Council shall include the heads of City departments with responsibilities for services to children and families, members of the community, and stakeholders. The Mayor shall also invite the heads of SFUSD divisions identified by the Superintendent to serve as members of the Council.

~~SEC. 16.127-5. OUR CHILDREN, OUR FAMILIES PLAN COUNCIL, RESPONSIBILITIES.~~

(a) In order to ensure that all children in every neighborhood, especially those neighborhoods with the greatest needs, have access to the resources to *achieve thrive*, the *Council Initiative* will be responsible for developing a Citywide vision, Citywide shared priorities, Citywide program goals, and Citywide best practices for addressing those needs.

(b) **The San Francisco Children and Families Plan.** The *Council Initiative*, with support from the Department of Children, Youth, and their Families ("DCYF") and the *Initiative*, shall craft a *San Francisco Children and Families Plan* ("the Plan") and identify relevant goals and strategies to align and coordinate the services to children and families provided by City departments, SFUSD, and community partners and to maximize support for children and families. The Mayor shall invite SFUSD to participate in the planning process for the Plan. The Plan shall be responsive to the *Citywide Community Needs Assessment* ("CCNA") in *Charter* Section 16.127-95 and consider the following elements:

- (1) Ease of access for children, youth, and families in receiving services;
- (2) Educational milestones developed by SFUSD and youth development milestones developed by DCYF and the *Council Initiative*;
- (3) Existing quality of service benchmarks established by City and SFUSD departments;
- (4) Framework for a basic needs infrastructure, including, but not limited to, housing, transit, and job placement resources; and
- (5) Fairness in prioritizing the delivery of services to the children and families with the most need.

The Plan shall also include an equity analysis of services and resources for children, youth, and families. The *Council Initiative* shall develop a set of equity metrics to be used to compare existing services and resources in low-income and disadvantaged communities with services and resources available in the City as a whole. The *Council Initiative* may draw upon metrics used by departments including DCYF, the Department of Early Childhood (or any successor agency), and SFUSD. Other City departments and commissions shall provide information and data to assist the *Council*, the *Initiative*, and DCYF to draft the Plan. To ensure the Plan accomplishes its purposes, the *Initiative* shall *propose recommendations and include* accountability measures *to include* in the Plan on how City departments and commissions can streamline processes, reduce duplicative data collection, improve data sharing across City platforms to simplify the navigation of City services for children, youth, and families, and establish standardized performance metrics where City departments or commissions provide overlapping or shared services to children, youth, and families.

(c) *No later than May 1, 2016, and every fifth year thereafter, the Council, with support from During Year 1 of each Five-Year Planning Cycle described in Charter Section 16.108(i), the Initiative,*

shall develop and adopt a set of proposed Citywide outcomes for services to children and families, including an outcomes framework ("Outcomes Framework") responsive to the *CCNA* and evolving needs of the community. *No later than July 1, 2026, and every fifth year thereafter, During Year 2 of each Five-Year Planning Cycle described in Charter Section 16.108(i), the Council Initiative* shall prepare and adopt a *Children and Families the Plan* for the City, which shall include a comprehensive assessment of City policies and programs, both public and private, addressing the needs of children and families in San Francisco, and policy-level recommendations for making the City more supportive of children and families. The *Council Initiative* shall emphasize solicitation and incorporation of community input in the development of the *initial Plan and subsequent Plans*.

(d) *No later than October 1, 2017, and each year thereafter, During Year 3 of each Five-Year Planning Cycle described in Charter Section 16.108(i),* the Board of Supervisors shall conduct a noticed public hearing to review the *Council's Initiative's* performance and the City's overall progress under the current Plan and to update interested parties on the status of the next Plan.

(e) All City departments that serve children, youth, and families shall consider the Plan in developing their own strategic plans to make the City more supportive of children and families. The Controller shall provide guidance to City departments about how to incorporate the findings of the CCNA and the Plan into their proposed budgets under Article IX.

(f) **Planning.** *Following the adoption of implementing legislation under Section 16.126-71, the Mayor shall appoint members to the Council and the Council shall convene to make initial decisions regarding staffing, organization, and implementation. The Council shall also begin planning for the start of the five-year planning cycle in Fiscal Year 2016-2017. The Council may recommend, and the Board of Supervisors may approve by ordinance, changes to the due dates and timelines provided in this Section 16.127-5.*

(g) **Coordination of Stakeholders.** The *Council Initiative* shall ensure that various community groups, agencies, and organizations responsible for providing support, including the City, SFUSD, and community partners, work together in aligned, coherent, and effective ways.

(h) **Coordination of Departments.** The *Council Initiative* shall facilitate cooperation and coordination between relevant departments of the City and SFUSD to maximize alignment and improve outcomes for children and youth. The *Council Initiative* shall oversee development and implementation of a data-sharing agreement between SFUSD and relevant City departments. The *Council Initiative*, in cooperation with the Board of Supervisors, the *San Francisco* Board of Education, and community groups, shall work to ensure that funds spent to benefit children and families are targeted to those most in need of specific services and that the funds are used strategically to leverage and complement existing and anticipated federal, state, and local resources.

(i) **Continued Autonomy of City and SFUSD.** The *Council Initiative* will be a *policy coordinating body* dedicated to improving coordination between the City and its departments, SFUSD and its departments, and community-based organizations funded by those agencies. While the *Council Initiative* will make recommendations to the City and SFUSD, the City and SFUSD will each retain its full independence and authority regarding programmatic and funding decisions.

(j) **Progress Report.** *During Year 3 of each Five-Year Planning Cycle described in Charter Section 16.108(i), the Initiative shall report to the general public on the Initiative's efforts and achievements through the creation of an annual San Francisco Children and Families First Progress Report. The Progress Report shall provide the results of the efforts of the City, SFUSD, and the community to serve children*

and families under the Plan, measured against quantifiable standards and metrics and in light of the Initiative's previously-adopted goals and priorities.

(i) **Evaluation.** Every five years, Following completion of each Five-Year Planning Cycle described in Charter Section 16.108(i) and before the end of Year 1 of the subsequent cycle, the Controller shall review the ~~Council's Initiative's~~ operations and the Plan ~~from the preceding cycle~~. The Controller shall submit the results of the review to the ~~Council Initiative~~, the Board of Supervisors, and the Board of Education. The ~~Council Initiative~~ shall consider the results of the Controller's review in the preparation of the next Plan. ~~The Council shall also report to the general public on the Council's efforts and achievements through the creation of an annual San Francisco Children and Families First Progress Report. The Progress Report shall provide the results of the efforts of the City, SFUSD, and the community to serve children and families under the Plan, measured against quantifiable standards and metrics and in light of the Council's previously-adopted goals and priorities.~~

SEC. 16.127-64. OUR CHILDREN, OUR FAMILIES ~~COUNCIL INITIATIVE~~; STAFFING.

(a) **Staffing Support.** Subject to the fiscal and budgetary provisions of the Charter, the City shall provide staff to the ~~Council Initiative~~ ("Council Initiative Staff") for administrative, organizational, policy, and research support. Funding for ~~Council Initiative~~ Staff shall come from the General Fund; provided, however, that SFUSD, participating City departments, and members of the public may provide additional support and contributions.

(b) **Staff Roles and Responsibilities.** Subject to the direction of the ~~Council Initiative~~, ~~Council Initiative~~ Staff shall:

(1) Provide administrative, organizational, policy, planning, and research support to the ~~Council Initiative~~ and its outcomes framework;

(2) Engage department heads from the City and SFUSD to coordinate the implementation of services;

(3) Provide support for the ~~Council Initiative~~, including developing a joint data-sharing agreement between the City and SFUSD, monitoring the planning cycle, providing technical support, and developing policy briefs on key issues relevant to implementation of the Plan;

(4) Support the development of an inventory of all Citywide services for children and youth, including state and federally funded programs; and,

(5) Support the development of the Children and Families First Progress Report.

(c) **Funding.** It shall be the policy of the City to provide sufficient funding and administrative support for the ~~Council Initiative~~ and ~~Council Initiative~~ Staff to perform these functions. Funding for administrative support for the ~~Council Initiative~~ shall come from the General Fund; provided, however, that SFUSD, participating City departments, and members of the public may provide additional support and contributions. Funding for administrative support for the ~~Council Initiative~~ shall not be included in the Children and Youth Fund Baseline calculation.

SEC. 16.127-7. OUR CHILDREN, OUR FAMILIES COUNCIL; IMPLEMENTATION.

The Board of Supervisors shall further provide by ordinance for the membership, structure, functions, and support of the Council, consistent with the provisions of Sections 16.127-1 through 16.127-6.

SEC. 16.127-8. ROLE OF THE OUR CHILDREN, OUR FAMILIES INITIATIVE.

–(a) The Initiative shall provide support for the Council by providing data and information relevant to the Council's decisions, by preparing drafts of the Outcomes Framework and the Plan, by

implementing alignment of systems and coordination of services, and by evaluating submissions from City departments and SFUSD under this Section 16.127-8.

–(b) The Initiative shall ensure that various community groups, agencies, and organizations responsible for providing support, including SFUSD, other government agencies, and community partners, work together in aligned, coherent, and effective ways.

–(c) The Initiative shall ensure that the City maximizes opportunities to receive available funding for children and youth from the State and Federal governments. As part of their biennial budget submission under Article IX, City departments that provide services to children, youth, and families shall report on any State or Federal funding for which the department has applied or received funding.

–(d) The Board of Supervisors by ordinance shall designate a department, commission, or other City entity to assume primary responsibility for supporting the Initiative and establish the responsibilities of constituent City departments and commissions within the Initiative. Funding for administrative support for the Initiative shall not be included in the Children and Youth Fund Baseline calculation.

SEC. 16.127-95. RESPONSIBILITIES OF THE OUR CHILDREN, OUR FAMILIES INITIATIVE.

(a) **Citywide Community Needs Assessment.** During Year 1 of each Five-Year Planning Cycle described in Charter Section 16.108(i), ~~The~~ Initiative shall assist the Department of Children, Youth, and Their Families ("DCYF") in developing a Citywide Community Needs Assessment ("the CCNA") for children, youth, and families. The CCNA shall supplement and expand upon the CNA described in Charter Section 16.108(i)(1), and the Initiative and its constituent departments, commissions, and SFUSD shall use the CCNA to develop the San Francisco Children and Families Plan (the "Plan") and Outcomes Framework. ~~DCYF shall prepare the CCNA using the same process and timeline described in Charter Section 16.108(i)(1).~~

(b) **The San Francisco Children and Families Plan and Outcomes Framework.** During Year 2 of each Five-Year Planning Cycle described in Charter Section 16.108(i), ~~The~~ Initiative shall support the Council in crafting the Plan and Outcomes Framework described in Charter Section 16.127-53 and identifying relevant goals and strategies to align and coordinate the services to children and families provided by City departments, SFUSD, and community partners, and to maximize support for children and families. ~~The Initiative shall prepare drafts of the Plan and Outcomes Framework by implementing alignment of systems and coordination of services, and by evaluating submissions from City departments and SFUSD.~~ Through the Initiative, the Mayor shall invite SFUSD to participate in the planning process for the Plan and the Outcomes Framework.

(c) The Initiative shall ensure that various community groups, agencies, and organizations responsible for providing support, including SFUSD, other government agencies, and community partners, work together in aligned, coherent, and effective ways.

(d) The Initiative shall ensure that the City maximizes opportunities to receive available funding for children and youth from the State and Federal governments. As part of their biennial budget submissions under Article IX of the Charter, City departments that provide services to children, youth, and families shall report on any State or Federal funding for which the department has applied or received funding.

(e) The Board of Supervisors by ordinance shall designate a department, commission, or other City entity to assume primary responsibility for supporting the Initiative and establish the responsibilities of constituent City departments and commissions within the Initiative. Funding for administrative support for the Initiative shall not be included in the Children and Youth Fund Baseline calculation.

SEC. 16.127-106. BUDGET REVIEW PROCESS.

(a) **Outcomes Framework Analysis.** *By January 1, 2028 and at least once every five years thereafter in alignment with the beginning During Year 3 of the each Five-Year Planning Cycle described in Charter Section 16.108(i), the Initiative, in consultation with the Controller, shall develop a policy to help the Initiative evaluate whether the following types of expenditures are consistent with the Outcomes Framework: (1) expenditures that are included in, or are eligible to be included in, the Children and Youth Fund Baseline described in Charter Section 16.108(h), and (2) expenditures from the Public Education Enrichment Fund (“PEEF”) and the annual PEEF Baseline appropriation (“PEEF Baseline”) described in Charter Section 16.123-2.*

(b) **Budget Review and Approval for Proposed Appropriations in the Children and Youth Baseline, Public Education Enrichment Fund, and Public Education Enrichment Fund Annual Baseline Appropriations.**

(1) *By February 21 each year; bBeginning in Year 1 of the first Five-Year Planning Cycle described in Charter Section 16.108(i)2026, and annually thereafter, each City department that anticipates expending funds for eligible services in the Children and Youth Fund Baseline, the PEEF, or the PEEF Baseline in the subsequent fiscal year shall submit a written report with itsexplaining how its anticipated expenditures align to the most recent Outcomes Framework and Plan to the Initiative for review within two weeks of submitting their budget to the Controller as described in the Administrative Code.* The Initiative may request that City departments provide additional reports on expenditures as the Initiative deems necessary.

(2) *Beginning in Fiscal Year 3 of the first Five-Year Planning Cycle described in Charter Section 16.108(i)2028-2029, and annually thereafter, the Initiative shall review and determine whether each department’s proposed expenditures under subsection (b)(1) and SFUSD’s annual report under Charter Section 16.123-6(d) are consistent with the most recent Plan and Outcomes Framework. The Initiative shall also review the department’s and SFUSD’s expenditures for eligible services in the Children and Youth Fund Baseline, the PEEF, or the PEEF Baseline for the current and prior fiscal year, if any, to determine whether those expenditures were consistent with the Outcomes Framework. By April 30 each year, tThe Initiative shall provide a written report to the Mayor and Board of Supervisors evaluating whether each department’s current and prior year expenditures were consistent with the Outcomes Framework and stating whether the department’s proposed expenditures for the subsequent fiscal year are consistent with the Outcomes Framework. By April 30 each year, tThe Initiative also shall provide a written report to the Mayor and the Board of Supervisors evaluating whether SFUSD’s current and prior year expenditures were consistent with the Outcomes Framework and stating whether SFUSD’s proposed expenditures for the subsequent fiscal year are consistent with the Outcomes Framework.*

(3) In preparing the biennial budget under Article IX of this Charter, the Mayor shall consider the Initiative’s written report. In its evaluation of the proposed biennial budget, the Board of Supervisors also shall consider the Initiative’s written report and shall hold a public hearing on the Initiative’s report before finally approving the budget. The Initiative may provide an addendum or update to the report based on new information it receives following its initial report regarding the budget.

(4) By no later than the date of final enactment of the biennial budget, beginning with the biennial budget for *Fiscal Year 2029-2030 Year 4 of the first Five-Year Planning Cycle described in Charter Section 16.108(i), and annually thereafter, the Board of Supervisors shall, by resolution, find that all anticipated expenditures for services in the Children and Youth Fund Baseline and City department and SFUSD expenditures under the PEEF and the PEEF Baseline in the biennial budget are, on balance, consistent with the Outcomes Framework,*

or that specified expenditures are not consistent with the Outcomes Framework but otherwise serve an overriding public purpose.

(c) The Board of Supervisors by ordinance may modify the deadlines in this *Charter* Section 16.127-~~106~~.

(d) For purposes of *Charter* Section 16.127-~~106~~(b)(2), the Controller and the Board of Supervisors’ Budget Analyst shall jointly be responsible for approving the final determinations and reports of the Initiative. The Board of Supervisors by ordinance may designate a different City entity to perform the duties of the Initiative for the purposes of that subsection.

SEC. 16.127-~~107~~. OUR CHILDREN, OUR FAMILIES INITIATIVE; GENERAL FUND EXPENDITURES.

(a) *No later than February 21 of each year; bBeginning in Year 1 of the first Five-Year Planning Cycle described in Charter Section 16.108(i)2026, and annually thereafter, each City department that anticipates expending funds from the City’s General Fund to procure or otherwise support any services related to children and youth in the subsequent fiscal year, other than funds for eligible services in the Children and Youth Fund Baseline, the PEEF, or PEEF Baseline, shall submit to the Initiative a written report describing its anticipated expenditures within two weeks of submitting their budget to the Controller as described in the Administrative Code.* Beginning in *Fiscal Year 3 of the first Five-Year Planning Cycle described in Charter Section 16.108(i)2028-2029, and annually thereafter, the Initiative may evaluate whether the anticipated expenditures are consistent with the most recent Plan and Outcomes Framework, and may provide a written report to the Mayor and Board of Supervisors detailing the expenditures that it has concluded are consistent with the most recent Plan and Outcomes Framework and the expenditures that it has concluded are inconsistent with the most recent Plan or Outcomes Framework and the reasons for such conclusions.*

(b) The Board of Supervisors by ordinance may modify the deadlines and the reporting requirements in this *Charter* Section 16.127-~~107~~.

SEC. 16.127-12. TRANSFER OF DUTIES TO INITIATIVE:

If, by June 30, 2026, the Council ceases to exist, the Initiative shall assume the Council’s responsibilities described in Sections 16.127-1, 16.127-3, 16.127-5, and 16.127-6; provided that if those sections have been removed from the Charter by the voters, the City shall enact an ordinance designating the Initiative or a different City entity to assume the Council’s responsibilities.

SEC. 16.128-1. DIGNITY FUND; PREAMBLE.

(a) There is hereby established a fund, which shall be called the Dignity Fund (“Fund”), to be administered by the Department of Disability and Aging Services (“DAAS”), or any successor agency. Monies in the Fund shall be used or expended by DAAS, subject to the budgetary and fiscal provisions of the Charter, solely to help Seniors and Adults with Disabilities secure and utilize the services and support necessary to age with dignity in their own homes and communities. For purposes of Section 16.128-1 through 16.128-12, “Senior” shall mean a person 60 years old or older, and “Adult with a Disability” shall mean a person 18 years old or older with a disability as defined under the Americans With Disabilities Act.

* * * *

SEC. 16.128-4. ELIGIBLE SERVICES.

The City shall only use monies from the Fund for the following categories of services and purposes, to benefit Seniors and Adults with Disabilities:

* * * *

(h) Funding for the Department of Disability and Aging Services to *(1) staff the Oversight and Advisory Committee created in Section 16.128-11 (“Oversight and Advisory Committee”); Disability and Aging Services Advisory and Oversight Council or any successor*

body, department, or official designated by ordinance to provide input and advice regarding the implementation of the Fund as described in Section 16.128-1 et seq. (“Council or Successor”), and (2) to support planning and evaluation processes, and facilitate funding allocation;

* * * *

SEC. 16.128-6. PLANNING CYCLE.

(a) The City shall appropriate the additional contributions to the Fund under Section 16.128-3(b) and (d) according to a four-year planning process. This process is intended to: (1) increase transparency, accountability, and public engagement; (2) provide time and opportunities for community participation and planning; (3) ensure program stability; and (4) maximize the effectiveness of the services funded.

(b) **Year 1 – Community Needs Assessment.** Beginning in fiscal year 2017-2018 and during every fourth fiscal year thereafter, DAAS shall conduct a Community Needs Assessment (“CNA”) to identify services to receive monies from the Fund. The CNA shall include qualitative and quantitative data sets collected through interviews, focus groups, surveys, or other outreach mechanisms to determine service gaps and unmet needs. In conducting the CNA, DAAS shall also review needs assessments prepared by community and other governmental entities. Subject to the budgetary and fiscal provisions of the Charter, DAAS may contract with consultants and outside experts for such services as it may require to prepare the CNA. DAAS shall undertake a robust community process to solicit input from Seniors and Adults with Disabilities, in consultation with the Mayor’s Office on Disability or any successor agency.

DAAS shall, in consultation with the *Oversight and Advisory Committee-Council or Successor, if any*, develop a plan for how to conduct the CNA with the *Oversight and Advisory Committee-Council or Successor*. The CNA shall include a gap analysis comparing actual performance with potential or desired performance and an equity analysis of services and resources for Seniors, Adults with Disabilities, and their caregivers.

DAAS shall develop a set of equity metrics to be used to establish a baseline of existing services and resources for Seniors and Adults with Disabilities in low-income neighborhoods and disadvantaged communities, compared to services and resources available in the City as a whole. This equity analysis shall include an examination of eligibility for existing programs and will seek to provide more services and support for those low and modest income residents who are not currently eligible for assistance with home and community-based services.

The outreach for the CNA shall create opportunities for a robust cross-section of stakeholders, including Seniors, Adults with Disabilities, their caregivers, nonprofit agencies, and other members of the public, to provide input. By September 1, DAAS shall provide its plan for conducting the CNA to the *Oversight and Advisory Committee-Council or Successor, the Service Provider Working Group created in Section 16.128-11(e)*, the Disability and Aging Services Commission, and the Board of Supervisors. The plan shall be a public document.

By March 1, DAAS shall complete a draft CNA and provide this draft to the *Oversight and Advisory Committee-Council or Successor and the Service Provider Working Group* for review. DAAS shall also provide the draft CNA to interested City departments and commissions, including but not limited to the Disability and Aging Services Commission, the Mayor’s Office on Disability, *the Long-Term-Care Coordinating Council*, the Human Services Commission, the Health Commission, the Recreation and Park Commission, the Adult Probation Department, the Veterans Affairs Commission, the Commission on the Status of Women, the Police Commission, the Library Commission, and the Arts Commission. The CNA shall include an Executive Summary and clear description of the categories of services provided and unmet

needs to be addressed.

By April 1, DAAS shall submit a final version of the CNA to the Disability and Aging Services Commission and the *DAAS Advisory Council or Successor*. The final version of the CNA may incorporate any comments or suggestions made by the *Oversight and Advisory Committee-Council or Successor*, the public, or the agencies that received copies of the draft CNA. The Disability and Aging Services Commission and the *Oversight and Advisory Committee-Council or Successor* shall hold a joint public hearing to review the CNA.

By May 1, the Disability and Aging Services Commission shall provide input on and approve or disapprove the CNA. If the Disability and Aging Services Commission disapproves the report, DAAS may modify and resubmit the report.

By June 1, the Board of Supervisors shall consider and approve or disapprove, or modify, the CNA. If the Board disapproves the CNA, DAAS may modify and resubmit the CNA, provided, however, that the City may not expend monies from the Fund until the Board of Supervisors has approved the CNA.

(c) **Year 2 – Services and Allocation Plan.** Beginning in fiscal year 2018-2019 and during every fourth fiscal year thereafter, DAAS, in consultation with the *Oversight and Advisory Committee-Council or Successor*, shall prepare a Services and Allocation Plan (“SAP”) to determine services that will receive monies from the Fund. All services identified in Section 16.128-4 are potentially eligible to receive funding, but DAAS is not required to classify allocations according to the service categories in that section. DAAS shall use the following process to prepare the SAP:

(1) DAAS shall disseminate a draft SAP to interested City departments and commissions, including but not limited to the Disability and Aging Services Commission, the Mayor’s Office on Disability, *the Long-Term-Care Coordinating Council*, the Human Services Commission, the Health Commission, the Recreation and Park Commission, the Adult Probation Department, the Commission on the Status of Women, the Police Commission, the Library Commission, and the Arts Commission. In preparing the draft SAP, DAAS shall confer with the Department of Children, Youth and Their Families to coordinate funding for services for Transitional-Aged Youth, as defined in Charter Section 16.108(e), with Disabilities from both the Dignity Fund and the Children and Youth Fund.

* * * *

(4) The Board of Supervisors shall by ordinance outline the timeline for the development of the Services and Allocation Plan. Prior to completion of the first SAP and while the first planning cycle is in process, DAAS, in consultation with the *Oversight and Advisory Committee-Council or Successor*, may expend monies from the Fund based on existing needs assessment analysis.

(d) **Years 3 and 4 – Selection of Contractors.** Beginning with Fiscal Years 2019-2020 and 2020-2021 and during every fourth fiscal year thereafter, DAAS shall conduct competitive solicitations for services to be funded from the Fund. Requests for proposals will be grouped by issue area and spread out on a schedule known in advance to provide for a smooth and efficient timeline. The Human Services Agency and *DAAS the Department of Disability and Aging Services* shall work together and manage resources so that the RFP process will keep to the schedule and contract awards will be made within a reasonable time.

(e) **Years 3 and 4 – Service Cycle Begins.** Contracts for services shall start on July 1, beginning with Fiscal Year 2019-2020. During subsequent years of the four-year planning cycle established in this Section 16.128-6, DAAS, with the consultation and input of the *Oversight and Advisory Committee-Council or Successor*, may issue supplemental competitive solicitations to address amendments to the SAP and emerging needs.

(f) DAAS may recommend, and the *Oversight and Advisory*

~~Committee-Council or Successor~~ and the Board of Supervisors may approve, changes to the due dates and timelines provided in this Section 16.128-6. The Board of Supervisors shall approve such changes by ordinance.

SEC. 16.128-7. EVALUATION.

DAAS shall provide for the evaluation on a regular basis of all services funded through the Fund, and shall prepare on a regular basis an Evaluation and Data Report for the ~~Oversight and Advisory Committee-Council or Successor~~. Subject to the budgetary and fiscal provisions of the Charter, DAAS may contract with consultants and outside experts for such services as the Department may require to conduct such evaluations and to prepare the Evaluation and Data Report. This evaluation process is intended to be reasonable in scope and to build on and strengthen existing program evaluations.

SEC. 16.128-8. SELECTION OF CONTRACTORS.

The ~~Oversight and Advisory Committee-Council or Successor~~ shall recommend standards and procedures for the selection of contractors to be funded from the Fund. It shall be the policy of the City to use competitive solicitation processes where appropriate and to give priority to the participation of non-profit agencies.

SEC. 16.128-11. ADVISORY ~~COMMITTEE-COUNCIL~~.

(a) **Creation.** There shall be a ~~Dignity Fund Oversight and Advisory Committee~~ (“~~Oversight and Advisory Committee~~”) ~~Disability and Aging Services Advisory and Oversight Council~~ (“~~Council~~”) to monitor and participate in the administration of the Dignity Fund ~~as provided established~~ in Charter Sections 16.128-1 et seq. (“~~Fund~~”), and to take steps to ensure that the Fund is administered in a manner accountable to the community, ~~and to perform the functions previously served by the Advisory Council to the Disability and Aging Services Commission as the Area Agency on Aging Advisory Council~~.

(b) Responsibilities.

(1) The ~~Oversight and Advisory Committee Council~~ shall develop recommendations for DAAS and the Fund regarding outcomes for services to Seniors and Adults with Disabilities, the evaluation of services, common data systems, a process for making funding decisions, program improvement and capacity-building of service providers, community engagement in planning and evaluating services, leveraging dollars of the Fund, and the use of the Fund as a catalyst for innovation. The ~~Oversight and Advisory Committee Council~~ shall promote and facilitate transparency and accountability in the administration of the Fund and in the planning and allocation process.

(2) ~~As provided in Section 16.128-6, the Oversight and Advisory Committee~~ The ~~Council~~ shall provide input into the planning process for the Community Needs Assessment (“CNA”) and the final CNA, the Services and Allocation Plan, and the ~~over-all overall~~ spending plan for the Fund to be presented to the Disability and Aging Services Commission, and shall review the annual Data and Evaluation Report. Nothing in this Section ~~16.128-11~~ shall limit the authority of the Mayor and the Board of Supervisors to propose, amend, and adopt a budget under Article IX of the Charter.

—(3) ~~The Oversight and Advisory Committee shall establish and maintain a Service Provider Working Group as provided in subsection (e).~~

—(3) ~~The Council shall collect all appropriate information in order to provide the Department of Disability and Aging Services and the Disability and Aging Services Commission with advice in the Department’s and Commission’s decision-making on the needs, assessments, priorities, programs, and budgets concerning older San Franciscans.~~

(4) ~~Pursuant to federal regulations, the Disability and Aging Services Commission shall develop and adopt bylaws for the Council. The bylaws shall specify the role and functions of the Council, number of members, procedures for selecting members, term of membership, and the frequency of meetings.~~ The ~~Oversight and Advisory Committee~~

~~Council~~ shall meet at least ~~six ten~~ times a year. ~~Members of the Council shall be compensated in the same manner as members of the Commission for the Council meetings and Commission committee meetings at which they serve.~~

(5) ~~The Council, together with DAAS, shall solicit feedback from service providers who provide services to seniors, adults with disabilities, and their caregivers, and shall make this feedback available to DAAS and any other departments receiving monies from the Fund for consideration in conjunction with department planning.~~

(c) **Composition.** The ~~Oversight and Advisory Committee Council~~ shall have ~~12~~22 members. ~~The Disability and Aging Services Commission shall appoint two of its own members to the Council, and shall appoint six additional members. The Board of Supervisors shall appoint 11 members to the Council, and the Mayor shall appoint three members. At least 50% of the members shall be 60 years old or older. The Council shall include service providers, older persons with the greatest social and economic need, people with disabilities, consumers, and others specified by federal regulation. The appointing authorities shall identify appointees by consulting with or soliciting input from organizations that represent the disability community, older adults, and service providers. The Council shall be representative of the geographic and ethnic populations of the City by districts, which districts shall be determined by the Disability and Aging Services Commission.~~

~~The Disability and Aging Services Commission shall appoint two of its members to the Oversight and Advisory Committee. The Advisory Council to the Department of Disability and Aging Services shall appoint three of its members to the Oversight and Advisory Committee. And the Long Term Care Council shall appoint three of its members to the Oversight and Advisory Committee. The Mayor shall appoint the remaining three at-large members of the Oversight and Advisory Committee, subject to rejection by the Board of Supervisors within 30 days following transmittal of the Notice of Appointment.~~

~~The appointing authorities shall appoint the initial members by February 1, 2017. The terms of the initial appointees to the Committee shall commence on the date of the first meeting of the Committee, which may occur when at least eight members have been appointed and are present.~~

(d) **Implementation.** ~~The Board of Supervisors shall further provide by ordinance for the membership, structure, functions, appointment criteria, terms, and administrative and clerical support of the Oversight and Advisory Committee. The Board of Supervisors shall adopt such legislation to be effective by January 1, 2017.~~

(e) **Service Provider Working Group.** ~~The Oversight and Advisory Committee shall create a Service Provider Working Group (“Working Group”) to advise the Oversight and Advisory Committee on funding priorities, policy development, the planning cycle, evaluation design and plans, and any other issues of concern to the Working Group related to the Fund or the responsibilities of DAAS or other departments receiving monies from the Fund. The Working Group shall engage a broad cross-section of service providers in providing information, education, and consultation to the Oversight and Advisory Committee. All members of the Working Group shall be actively providing services to Seniors, Adults with Disabilities, and their caregivers. DAAS staff shall provide administrative and clerical support to the Working Group. The Working Group shall meet at least four times a year. The Oversight and Advisory Committee shall appoint two initial co-chairs of the Working Group, who shall be responsible for developing the structure of the Working Group and facilitating the meetings. After the terms of the initial co-chairs expire, the Working Group shall select its own chairs. Working Group meetings shall be open to the public and encourage widespread participation.~~

(d) ~~As set forth in Section 18.116 of this Charter, this Section~~

16.128-11 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer this Section to the Administrative Code. Thereafter, the section may be amended or repealed by ordinance. On January 1, 2027, the Advisory Council to the Disability and Aging Services Commission shall sunset.

SEC. 16.128-13. CONFORMING AMENDMENTS.

(a) ~~The City Attorney shall cause all references in the Municipal Code to the Aging and Adult Services Commission, the Department of Aging and Adult Services, and the Aging and Adult Services Community Living Fund to be amended to refer to the Disability and Aging Services Commission, the Department of Disability and Aging Services, and the Disability and Aging Services Community Living Fund, respectively.~~

(b) ~~Upon completion of the amendments required by subsection (a), the City Attorney shall cause this Section 16.128-13 to be removed from the Charter.~~

SEC. 16.130. PRIVACY FIRST POLICY.

(a) The principles stated in subsection (e) of this Section 16.130 constitute the Privacy First Policy of the City and County of San Francisco (“City”) and are intended to provide guidance to the City when considering the adoption of privacy-protective laws, regulations, policies, and practices for the City; the City’s contractors, lessees, and grantees; third parties receiving permits, licenses, or other entitlements from the City; and persons (including businesses and other entities) within the regulatory authority of the City.

* * * *

(g) No less frequently than every *three five* years following the submission under subsection (f) of the City Administrator’s proposed ordinance, the City Administrator shall provide to the Board of Supervisors and the Mayor a written report describing the City’s implementation of the Privacy First Policy; describing new dimensions of collecting, storing, sharing, and using Personal Information that may present a threat to privacy; and making such recommendations as the City Administrator deems appropriate, including but not limited to recommendations to adopt or amend ordinances regarding the collection, storage, sharing, or use of Personal Information.

* * * *

ARTICLE XVIII: TRANSITION PROVISIONS

SEC. 18.100. EFFECTIVE DATE OF THIS ARTICLE XVIII.

This Article XVIII shall take effect upon the filing of this Charter with the Secretary of State of the State of California. ~~This Article, and each individual section, shall expire and go out of existence when the last act, required to be done in this Article, or individual section, has been completed; and, thereafter, the Clerk of the Board of Supervisors shall secure its removal from the next printing of this Charter.~~

SEC. 18.104. TRANSFER OF FUNCTIONS, POWERS AND DUTIES.

On the operative date of this Charter, all offices, agencies and departments of the City and County then in existence under the Charter of 1932 shall continue to perform their functions, exercise their authority and fulfill their responsibilities, as they existed immediately before this Charter’s becoming operative subject to the provisions of this Article. Not later than 90 days after the operative date of this Charter, each such office, agency and department for which this Charter does not provide shall cease to exist, and its functions, powers and duties shall be transferred to the appropriate governmental unit created by this Charter or under the authority of this Charter. The Board of Supervisors and the Mayor shall take all action necessary to provide for the orderly transfer of functions, authority and responsibility on or before the date of such transfer.

SEC. 18.109. EXEMPT POSITIONS.

The Board of Supervisors and the Mayor, through the budget for the fiscal year ending June 30, 1996, shall designate the positions exempt from civil service, within the categories provided in Article X of

this Charter.

SEC. 18.110. PROVISIONAL APPOINTMENTS.

Unless their appointments are renewed pursuant to the provisions of Section 10.105, the employment of all provisional employees, appointed under the Charter of 1932, whose appointment does not meet the provisions of this Charter, shall be terminated within three years of the operative date of this Charter in accordance with the rules and regulations governing layoffs. Such provisional employees may qualify for certification as eligibles under rules and regulations expressly authorized by civil service rules approved by the Board of Supervisors. Such rules may establish special credit for civil service examinations for years of service or, through other methods, recognize the service of such employees who have held such employment for more than six months at the operative date of this Charter.

SEC. 18.112. PREPARATION AND INDEXING OF THIS CHARTER.

The City Attorney shall correct typographical errors and prepare an index prior to the operative date and publication of this Charter.

SEC. 18.113. MISSION-DRIVEN BUDGET PHASE-IN.

The mission-driven budget process shall be phased in over a three-year period with the Mayor identifying for each of the three years approximately one-third of the City departments that shall thenceforth be required to comply with the requirements of Sections 9.114, 9.115 and 9.116.

SEC. 18.116. TRANSITION PROVISIONS FOR NOVEMBER 3, 2026 CHARTER AMENDMENT.

(a) *On January 1, 2027, Charter Sections 4.111, 4.120, 4.121(f), 8B.123(b), 8B.125(c), 9.114, 9.115, 9.116, 16.107(i), 16.128-11, and F1.108, shall be deemed removed from the Charter, enacted into ordinance, and placed in the Administrative Code. The City Attorney is authorized and directed to determine where in the Administrative Code the various sections shall be placed. In addition, the City Attorney is authorized, but not required, to make textual changes that are entirely nonsubstantive in any of those sections in the process of their relocation to the Administrative Code, and may provide headings or subheadings to those sections as appropriate.*

(b) *On January 1, 2027, Charter Section 8A.111 (Municipal Transportation Agency Citizens’ Advisory Council), as amended above, shall be deemed removed from the Charter, enacted into ordinance, and placed in a new Article 1300 of Division II of the Transportation Code entitled “Municipal Transportation Agency Citizens’ Advisory Council.”*

(c) *The City Attorney is authorized and directed to cause all cross-references in the Charter and Municipal Code to the Charter sections identified in subsections (a) and (b), to be updated to reflect the new section or subsection numbers for them in the Administrative Code.*

(d) *This sole purpose of this Section 18.116 is to move the Charter Sections identified in subsection (a) out of the Charter and into the Administrative Code, and the Charter Sections identified in subsection (b) out of the Charter and into the Transportation Code, and to enable these sections to be amended or deleted in the future consistent with the process for amending and deleting other Board of Supervisors-adopted provisions of the Administrative and Transportation Codes. This Section does not effect any other change in the substance or meaning of the various sections. Moving those sections from the Charter to the Administrative Code and Transportation Code is not to be considered a “reenactment” of those sections carrying any substantive significance.*

A7.204 CONTRACTORS’ WORKING CONDITIONS

Every contract for any public work or improvement to be performed at the expense of the City and County, or paid out of moneys deposited in the treasury, whether such work is to be done directly under contract awarded, or indirectly by or under subcontract, subpartnership,

day labor, station work, piece work, or any other arrangement whatsoever, must provide:

* * * *

(c) ~~that any person performing labor in the execution of the contract shall be a citizen of the United States;~~

(dc) that all laborers employed in the execution of any contract within the limits of the City and County shall have been residents of the City and County for a period of one year immediately preceding the date of their engagements to perform labor thereunder; provided, however, that the officer empowered to award any such contract may, upon application of the contractor, waive such residence qualifications and issue a permit specifying the extent and terms of such waiver whenever the fact be established that the required number of laborers and mechanics possessing qualifications required by the work to be done cannot be engaged to perform labor thereunder.

* * * *

~~48.346 DISCIPLINARY ACTION AGAINST STRIKING EMPLOYEES OTHER THAN MEMBERS OF POLICE AND FIRE DEPARTMENT~~

~~The people of the City and County of San Francisco hereby find that the instigation of or participation in, strikes against said City and County by any officer or employee of said City and County constitutes a serious threat to the lives, property, and welfare of the citizens of said City and County and hereby declare as follows:~~

~~(a) As used in this section the word "strike" shall mean the willful failure to report for duty, the willful absence from one's position, any concerted stoppage or slowdown of work, any concerted interruption of operations or services by employees, or the willful abstinence in whole or in part from the full, faithful, and proper performance of the duties of employment, for the purpose of inducing, influencing, or coercing a change in the conditions of employment; provided, however, that nothing contained in this section shall be construed to limit, impair, or affect the right of any municipal employee to express or communicate a view, grievance, complaint, or opinion on any matter related to the conditions or compensation of municipal employment or their betterment, so long as the same is not designed to and does not interfere with the full, faithful, and proper performance of the duties of employment.~~

~~(b) No person holding a position by appointment or employment under the civil service provisions of this Charter, exclusive of uniformed members of the police and fire departments as provided under Section 8.345 of this Charter, which persons are hereinafter referred to as municipal employees, shall strike, nor shall any municipal employee cause, instigate, or afford leadership to a strike against the City and County of San Francisco. For the purposes of this section, any municipal employee who willfully fails to report for duty, is willfully absent from his or her position, willfully engages in a work stoppage or slowdown, willfully interrupts City operations or services, or in any way willfully abstains in whole or in part from the full, faithful, and proper performance of the duties of his or her employment because such municipal employee is "honoring" a strike by other municipal employees, shall be deemed to be on strike.~~

~~(c) No person exercising any authority, supervision, or direction over any municipal employee shall have the power to authorize, approve, or consent to a strike by any one or more municipal employees, and such person shall not authorize, approve, or consent to such strike. No officer, board, commission or committee of the City and County of San Francisco shall have the power to grant amnesty to any person who has violated any of the provisions of this section, and such officer or bodies shall not grant amnesty to any person who has violated any of the provisions of this section.~~

~~(d) Notwithstanding any other provision of law, a person violating any of the provisions of this section may subsequent to such~~

~~violation be appointed or reappointed, employed or re-employed as a municipal employee of the City and County of San Francisco, but only on the following conditions:~~

~~— (1) such person shall be appointed or reappointed, employed or re-employed as a new appointee or employee, who is appointed or employed in accordance with all Charter provisions, ordinances, rules or regulations of said City and County in effect for new employees at the time of appointment, reappointment, employment or re-employment;~~

~~— (2) the compensation of such person shall not be increased by virtue of any previous employment with said City and County.~~

~~(e) In the event of a strike, or if the Mayor with the concurrence of a majority of the Board of Supervisors determines that a strike is imminent, a special committee shall convene forthwith, which special committee shall consist of the presidents of the airports commission, civil service commission, fire commission, police commission, public transportation commission and public utilities commission. The president of the civil service commission shall serve as chairman of the special committee. Notwithstanding any other provision of law, it shall be the duty of the special committee to dismiss in accordance with the provisions of this section any municipal employee found to be in violation of any provisions of this section. Any person may file with the special committee written charges against a municipal employee or employees in violation of any of the provisions of this section and the special committee shall receive and investigate, without undue delay, and where necessary take appropriate actions regarding any such written charge(s), and forthwith inform that person of its findings and action, or proposed action thereon.~~

~~— In the event of a strike or determination of imminent strike as specified above, each appointing officer shall deliver each day no later than 12:00 o'clock noon to the chairman of the special committee a record of the absence of each employee under his or her authority for the prior day and a written report describing incidents of and the participant(s) in violations of this section wherever the identity of the participant(s) is known to him or her and the participant(s) is (are) under his or her authority.~~

~~— In addition each appointing officer shall provide to the special committee, whenever it has been convened under authority of law, any other information determined by the special committee to be necessary for the discharge of its duties. The failure of an appointing officer to discharge any of the duties imposed upon him or her by this section shall be official misconduct.~~

~~(f) An employee charged by the special committee with a violation of this section shall be notified of the time and place of the hearing on the charges and of the nature of the charges against him or her. Said employee shall be given such other information as is required by due process. Said employee shall respond to said charges by a sworn affidavit, signed by him or her, and by such other information and documentation and in such a manner as is prescribed by the special committee. An employee failing to provide the responses required by this section or in any way failing to comply with the procedural time limitations and information requirements imposed by the special committee shall be immediately suspended and shall not be entitled to a hearing until he or she has fully complied with the aforementioned requirements.~~

~~— If the special committee, after a hearing, determines that the charges against the employee are supported by the preponderance of the evidence submitted, said special committee shall dismiss the employee involved and said employee shall not be reinstated or returned to City and County service except as specified in Subsection (d). A dismissal or suspension invoked pursuant to the provisions of this section shall not be appealable to the civil service commission.~~

~~(g) The special committee shall discharge its duties in a timely manner while preserving the due process rights of employees with the~~

objective of obtaining immediate sanctions against striking employees. The willful failure of any member of this special committee faithfully and fully to discharge his or her duties in a timely manner and to accord absolute priority to the performance of those duties shall be deemed official misconduct.

—In the event the special committee determines that it shall be unable to comply with constitutional due process requirements that a timely hearing be provided or that it shall be unable to comply with its obligations fully and in a timely manner to investigate and hear all violations of this section, then the special committee may, subject to the budget and fiscal provisions of the Charter, engage the administrative and clerical personnel, investigators, and one or more hearing officers to conduct hearings hereunder. In conducting hearings, the hearing officers shall have the same powers of inquiry and disposition as the special committee.

—(h) In order to provide for the effective operation of this section in the event of a strike or determination of imminent strike, the president of the civil service commission, not later than 30 days after this section becomes effective, shall convene the special committee which shall adopt rules, regulations, and procedures for the investigation, hearing and disposition of all violations of this section.

—(i) In order to bring the provisions of this section to the attention of any person who may be affected thereby, each municipal employee on the effective date of this section, exclusive of members of the uniformed forces of the police and fire departments as provided in Section 8.345 hereof, and each person appointed or employed as a municipal employee pursuant to the civil service provisions of this Charter, exclusive of persons appointed to the entrance positions in the uniformed forces of the police and fire departments as provided in Section 8.345 hereof, on or after the effective date of this section shall be furnished a copy of this section and shall acknowledge such receipt in writing. The signed, written receipt shall be filed in the office of the civil service commission and maintained therein for the term of his or her employment with the City and County of San Francisco.

—(j) The provisions of Sections 3.100 and 3.100-1, relating to the emergency powers of the Mayor, shall not be applicable to the provisions of this section.

—(k) If any clause, sentence, paragraph, subsection, or part of this section shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subsection, or part thereof directly involved in the controversy in which such judgment shall have been rendered.

A8.409-6 EMPLOYEE RELATIONS RULES

Within sixty (60) days of adoption of this amendment, the Mayor shall appoint a panel which after consultation with all parties of interest, shall review the current employee relations ordinance and make recommendations to the Board of Supervisors for such changes as may be necessary to effectuate the purposes of this part.

Such changes shall include the creation of an employee relations board. The duties of the employee relations board shall include hearing and making determinations concerning unfair labor practice charges, disputes regarding representation matters, and unit determinations.

A8.420 ESTABLISHMENT OF AND MEMBERSHIP IN HEALTH SERVICE SYSTEM

A health service system is hereby established. Said system shall be administered by the Health Service System human-resources department subject to the approval of the Health Service Board. The members of the system shall consist of all permanent employees, which shall include officers of the City and County, of the San Francisco Unified School District, *and of the Parking Authority of the City and County of San Francisco* and such other employees as may be determined by ordinance, subject to such conditions and qualifications as the Board

of Supervisors may impose, and such employees as may be determined by collective bargaining agreement. Any employee who adheres to the faith or teachings of any recognized religious sect, denomination or organization and, in accordance with its creed, tenets or principles, depends for healing upon prayers in the practice of religion shall be exempt from the system upon filing annually with the human resources department an affidavit stating such adherence and dependence and disclaiming any benefits under the system. The Health Service System human-resources department shall have the power to exempt any person whose compensation exceeds the amount deemed sufficient for self coverage and any person who otherwise has provided for adequate medical care. Any claim or request for exemption denied by the Health Service System human-resources department may be appealed to Health Service Board.

A8.423 REVISION OF SCHEDULES AND COMPENSATION

In January of each year, or at such other time consistent with the Plan Year set by the Health Service Board, ~~or at such other time consistent with the Plan Year set by the Health Service Board~~, at a public hearing, the Health Service Board shall review and determine the adequacy of medical care provided for members of the system and the adequacy of fee schedules and the compensation paid for all services rendered and it may make such revisions therein as it deems equitable but such revisions shall not become effective until approved by ordinance of the Board of Supervisors adopted by three-fourths of its members.

Commencing in 1973, the Health Service Board shall, prior to the second Monday in January in each year, or at such other time consistent with the Plan Year set by the Health Service Board, conduct a survey of the 10 counties in the State of California, other than the City and County of San Francisco, having the largest populations to determine the average contribution made by each such county toward the providing of health care plans, exclusive of dental care, for each employee of such county. The Health Service Board may promulgate rules and regulations for the survey to allow for unavoidable gaps in survey data and to insure a consistent methodology from year to year. In accordance with said survey, the Health Service Board shall determine the average contribution made with respect to each employee by said 10 counties toward the health care plans provided for their employees and on or before the second Monday in January of each year, or at such other time consistent with the Plan Year set by the Health Service Board, the Health Service Board shall certify to the Board of Supervisors the amount of such average contribution. For the purposes of Section A8.428, the amount of such average contribution shall be “the average contribution.”

The Health Service Board shall have the responsibility to obtain and disseminate information to its members with regard to plan benefits and costs thereof. All expenses in connection with obtaining and disseminating said information, the investment of such fund or funds as may be established, including travel and transportation costs, member wellness programs, actuarial expenses and expenses incurred to reduce health care costs, shall be borne by the system from reserves in the health service fund but only upon adoption of a resolution by the Health Service Board approving such expenses.

A8.425 PERSONS COVERED

Each plan may make provision for the participation in the benefits of the system by the dependents of members, retired City and County employees, temporary City and County employees, such other dependents of deceased and retired City and County employees as the Board of Supervisors may authorize by ordinance, teachers and other employees of the San Francisco Unified School District retired under the San Francisco City and County Employees’ Retirement System and resigned employees of the City and County and resigned teachers and employees of the school district whose resignations occur after June 15, 1955, and within 30 days immediately prior to the date

on which, but for their resignations, they would have become retired members of the said Retirement System, on whose relinquishment of retirement allowances as permitted by the Charter occurs after such date and resigned employees of the San Francisco Unified School District not otherwise included. A resigned employee or teacher is one whose employment has terminated other than by retirement, discharge or death or who has relinquished retirement allowances. The purpose of empowering the ~~h~~Health ~~s~~Service ~~b~~Board to make provision for the participation in the benefits of the system to the aforementioned resigned teachers and employees of the San Francisco Unified School District is to enable them, subject to the ~~h~~Health ~~s~~Service ~~b~~Board's exercise of its power, to participate in the benefits of the system after transferring to the State Teachers' Retirement System from the San Francisco City and County Employees' Retirement System. The purpose of empowering the ~~h~~Health ~~s~~Service ~~b~~Board to make provision for participation in the benefits of the system by the aforementioned resigned employees of the City and County and other resigned employees of San Francisco Unified School District is to permit the ~~h~~Health ~~s~~Service ~~b~~Board to have power to treat them the same as it treats resigned teachers and employees of the San Francisco Unified School District.

~~As used in this section, and for the purpose of this section, the terms "City and County employees" and "employees of the City and County" shall include officers and employees of the Parking Authority of the City and County of San Francisco.~~

In addition to "the average contributions" in Subsection (b) of Section A8.428, the Board of Supervisors may provide by ordinance for additional funds from the City and County to pay the full cost of any plan for medical benefits adopted under Sections A8.422 or A8.423 for current members of the Board of Supervisors. The Board of Supervisors may also provide by ordinance for the continuation in any plan by former supervisors who agree to and do pay the full cost of such benefit.

A8.428 HEALTH SERVICE SYSTEM TRUST FUND

There is hereby created a health service system trust fund. The costs of the health service system shall be borne by the members of the system and Retired Persons, the City and County of San Francisco because of its members and Retired Persons, ~~the Parking Authority of the City and County of San Francisco because of its members and Retired Persons,~~ the San Francisco Unified School District because of its members and Retired Persons, and the San Francisco Community College District because of its members and Retired Persons.

* * * *

(b) Employer Contributions.

The City and County, the School District and the Community College District shall each contribute to the health service fund amounts sufficient for the following purposes, and subject to the following limitations:

(1) All funds necessary to efficiently administer the health service system.

(2) The City and County, the School, District and the Community College District shall contribute to the health service system fund with respect to each of their members an amount equal to the lesser of "the average contribution," as certified by the ~~h~~Health ~~s~~Service ~~b~~Board in accordance with the provisions of Section A8.423, or the cost of the plan selected by the member.

* * * *

(5) Retired Employees Who Were Hired on or After January 10, 2009 - Categories of Employees Eligible for 50%-75% Employer Contribution.

For Retired Persons identified in A8.428 Subsections (a)(4), (a)(5) and (a)(6), the Employers shall contribute:

(i) 50% ~~percent~~ of the employer contribution established in A8.428 Subsection (b)(3) for a Retired Employee who was Hired

on or After January 10, 2009, with, at least 10 but less than 15 years of Credited Service with the Employers: their surviving spouses or surviving domestic partners; and the surviving spouses or surviving domestic partners of active employees hired on or after January 10, 2009, with at least 10 but less than 15 years of Credited Service with the Employers; and

(ii) 75% ~~percent~~ of the employer contribution established in A8.428 Subsection (b)(3) for a Retired Employee who was Hired on or After January 10, 2009, with at least 15 but less than 20 years of Credited Service with the Employers; their surviving spouses or surviving domestic partners; and the surviving spouses or surviving domestic partners of active employees hired, on or after January 10, 2009, with at least 15 but less than 20 years of Credited Service with the Employers.

(6) Retired Employees Who Were Hired on or After January 10, 2009 - Categories of Employees Eligible for Access to Retiree Medical Benefits Coverage.

An employee hired on or after January 10, 2009, and retired under the Retirement System or PERS with five (5) or more years Credited Service with the Employers, shall be eligible to receive health benefits as a member of the health service system, provided that he or she makes monthly contributions equal to ~~one hundred percent,~~ (100%) of the total premiums for health coverage as established by the Health, Service Board, including the total cost for dependent coverage. At such time as he or she becomes eligible to receive benefits under A8.428 Subsection (a)(4), the Employers shall contribute the amounts established in A8.428 Subsections (b)(4), (b)(5), and (c), as applicable.

* * * *

A8.429 CONTRIBUTIONS TO FUND

The ~~h~~Health ~~s~~Service ~~b~~Board shall determine and certify to the ~~c~~Controller the amount to be paid monthly by the members of the system to the health service system fund for the purposes of the system hereby created. The ~~c~~Controller shall deduct said sums from the compensation of the members and shall deposit the same with the ~~t~~Treasurer of the City and County to the credit of the health service system fund.

Such deductions shall not be deemed to be a reduction of compensation under any provision of this Charter.

The ~~h~~Health ~~s~~Service ~~b~~Board shall have control of the administration and investment of the health service system fund, provided that all investments shall be of the character legal for insurance companies in California. Disbursements from the fund shall be made only upon audit by the ~~c~~Controller and the ~~c~~Controller shall have and exercise the accounting and auditing powers over the health service system fund which are vested in ~~him~~ the Controller by this Charter with respect to all other municipal boards, officers, and commissions.

~~D3.750-5 TECHNICAL BOARDS AND ADVISORY COMMITTEES~~

~~The technical boards and advisory committees established in the Building Code by ordinance of the Board of Supervisors shall continue in existence as boards and committees within the Department of Building Inspection. Members of the boards and committees shall be appointed by the commission. Incumbents legally appointed to these respective bodies prior to the commission's assumption of management of the department shall serve at the pleasure of the commission.~~

F1.101. CITY SERVICES AUDITOR; SERVICES AUDIT UNIT.

(a) In addition to the other duties prescribed by this Charter, the Controller shall perform the duties of a City Services Auditor, responsible for monitoring the level and effectiveness of services provided by the government of the City and County of San Francisco to the people of San Francisco. The City Services Auditor shall establish

and maintain a Services Audit Unit in the Controller's Office to ensure the financial integrity and improve the overall performance and efficiency of City government. The Services Audit Unit shall review performance and cost benchmarks developed by City departments in consultation with the Controller and based on their departmental efficiency plans under Chapter 88 of the Administrative Code, and conduct comparisons of the cost and performance of San Francisco City government with other cities, counties, and public agencies performing similar functions. The City Services Auditor will evaluate the City's major service areas. In particular, the Services Audit Unit shall assess:

- (1) Measures of workload addressing the level of service being provided or providing an assessment of need for a service;
- (2) Measures of efficiency including cost per unit of service provided, cost per unit of output, or the units of service provided per full time equivalent position; and
- (3) Measures of effectiveness including the quality of service provided, citizen perceptions of quality, and the extent a service meets the needs for which it was created.
- (b) The service areas for which data is collected and comparisons conducted shall include, but not be limited to:
 - (1) The cleanliness and condition of streets, sidewalks, and the urban environment and landscape;
 - (2) The performance of other public works and government-controlled public utilities, including water and clean water programs;
 - (3) Parks, cultural, and recreational facilities;
 - (4) Transportation, as measured by the standards set out in Charter Section 8A.103, provided, however, that primary responsibility for such assessment shall continue to be exercised by the Municipal Transportation Agency pursuant to Charter Section 8A.100 et seq.;
 - (5) The criminal justice system, including the Police Department, Juvenile and Adult Probation Departments, Sheriff, District Attorney, and Public Defender;
 - (6) Fire and paramedic services;
 - (7) Public health, human services, and services relating to homelessness;
 - (8) City management; and,
 - (9) Human resources functions, including personnel and labor relations;
- (c) The information obtained using the service measurement standards set forth above shall be compiled on at least an annual basis, and the results of such benchmark studies, as well as comparative data, shall be available on the City's website.

F1.102. STREET, SIDEWALK, AND PARK CLEANING AND MAINTENANCE.

(a) The Services Audit Unit shall conduct annually a performance audit of the City's street, sidewalk, and public park maintenance and cleaning operations once every five years. The annual audit shall:

- (1) Include quantifiable, measurable, objective standards for street, sidewalk, and park maintenance, to be developed in cooperation and consultation with the Department of Public Works and the Recreation and Park Department;
- (2) Based upon such measures, report on the condition of each geographic portion of the City;
- (3) To the extent that standards are not met, assess the causes of such failure and make recommendations of actions that will enhance the achievement of those standards in the future;
- (4) Ensure that all bond funds related to streets, parks and open space are spent in strict accordance with the stated purposes and permissible uses of such bonds, as approved by the voters.

Outside of the audit process, the City departments charged with cleaning and maintaining streets, sidewalks, and parks shall remain responsible for addressing individual complaints regarding specific sites, although the Controller may receive and investigate such

complaints under Section F1.107.

(b) In addition, all City agencies engaged in street, sidewalk, or park maintenance shall establish regular maintenance schedules for streets, sidewalks, parks and park facilities, which shall be available to the public and on the department's website. Each such department shall monitor compliance with these schedules, and shall publish regularly data showing the extent to which the department has met its published schedules. The City Services Audit Unit shall audit each department's compliance with these requirements annually, and shall furnish recommendations for meaningful ways in which information regarding the timing, amount and kind of services provided may be gathered and furnished to the public.

F1.103. MANAGEMENT PRACTICES.

The City Services Audit Unit shall conduct analyses of the City's management and employment practices.:

- (1) Conduct and publish an annual review of management and employment practices, including City policies and MOU provisions, that either promote or impede the effective and efficient operation of City government;
- (2) Identify the top five City departments by workers' compensation claims, list the cost of these claims, and recommend ways to reduce both workplace injuries and improper claims;
- (3) Identify the top five departments by overtime expenditures and report on the cause and potential mitigations for any excessive overtime spending; and,
- (4) Conduct best practices reviews and other studies and assist departments in implementing their findings.

F1.104. PERFORMANCE AUDITS.

The City Services Audit Unit shall conduct periodic, comprehensive financial and performance audits of City departments, services, and activities. Except as provided in Section F1.102, the Controller shall have discretion to select, on a rotating basis, departments, services, and activities for audit, giving priority to matters affecting direct services to the residents of the City and County of San Francisco. In selecting audit subjects, the Controller shall give preference to consider requests for performance audits made by the Audit Review Board, the Mayor, the Board of Supervisors, department heads, and commissions; provided, however, that absent extraordinary circumstances, no department, activity, or service shall be subject to repeated audits in two successive years.

F1.105. AUDIT RESULTS.

(a) Before making public any portion of any draft, notes, preliminary or final report relating to the operations or activities of a City officer or agency, the Controller shall deliver a copy of the draft report to any such officer, and to the head of any agency discussed in such report and provide the officer and agency, in writing, with a reasonable deadline for their review and response. The Controller shall include in any report, or portion thereof that is made public, a copy or summary of all such officer and agency responses. In addition, the audit shall include an analysis of the anticipated costs and/or savings of any recommendations contained in the report.

(b) The Controller shall publish the results of all final performance audits and a summary of agency responses, shall deliver copies of such audits to relevant department heads, Audit Review Board, Mayor, City Attorney, Board of Supervisors, San Francisco Civil Grand Jury, and San Francisco Public Library, and shall make the audits available on the City's website. Each department subject to recommendations by the Controller shall include with its next two annual budget requests following such audit a report on the status of the Controller's recommendations. In particular, the report shall include:

- (1) the Controller's final audit recommendations;
- (2) a plan to address the Controller's findings and to implement the Controller's recommendations;

(3) any costs or savings reflected in the proposed budget attributable to implementation of Controller recommendations; and
 (4) a statement of the recommendations that the department does not intend to implement and the basis of the department head's determination not to adopt the Controller's recommendation.

~~–(c) To avoid conflicts of interest, all employees engaged in preparation of audits shall be designated as confidential employees. If the Controller determines that any member of the regular audit staff is unable to participate in an audit due to a potential conflict of interest, or as a result of the employee's collective bargaining representation, the Controller shall have the option of assigning other employees regardless of civil service job description, hiring outside experts, or contracting for such services with an outside individual or agency.~~

F1.106. OVERSIGHT OF CONTRACTING PROCEDURES.

The Controller shall have the ~~duty~~authority to perform regular oversight of the City's contracting procedures, including ~~developing model criteria and terms for City Requests for Proposals (RFPs), and assessing and~~ auditing compliance with City contracting rules and procedures. Where appropriate, the Inspector General shall investigate cases of alleged abuse or conflict of interest. Should the Inspector General find that there has been an abuse or conflict of interest, the Inspector General shall refer that finding to the Ethics Commission, the District Attorney, and the City Attorney for possible enforcement action. Nothing in this Section F1.106 shall be construed to alter the existing jurisdiction of City departments and agencies with respect to contracting.

F1.108. CUSTOMER SERVICE PLANS.

The Controller shall assess the progress of City departments' compliance with Charter Section 16.120 and any implementing ordinances requiring City departments to prepare effective customer service plans. The Controller shall make recommendations to departments to improve the effectiveness of such plans. The Controller shall report to the Board of Supervisors and Mayor the failure of any department to comply substantially with the Controller's recommendations regarding customer service plans.

As set forth in Section 18.116 of this Charter, this Section F1.108 shall be deemed enacted into ordinance on January 1, 2027, and the City Attorney shall transfer the section to the Administrative Code. Thereafter, Section F1.108 (as enacted into ordinance) may be amended or repealed by ordinance.

Section 2. In enacting this measure together with the measure titled "Strengthening Executive Branch Accountability," the measure titled "Modernizing City Contracting," and/or the measure titled "Fix Our Broken Ballot Process," the qualified voters of the City and County intend as follows:

(1) All provisions of this measure shall be read to harmonize with all provisions of the other enacted measure or measures, regardless of which of these measures receives more votes. When multiple of these measures amend the same Charter sections, the voters intend that all textual changes be effective, integrated, and read together, to the extent possible. When multiple of these measures make textual changes in the same sentence, the voters intend that all of the textual changes from the multiple measures be effective, integrated, and read together, to the extent possible. This means that where multiple measures add new text to different parts of the same sentence, all of the new text from the multiple measures shall be effective, integrated, and read together, to the extent possible. When one measure deletes an entire section or subsection that another measure amends, the voters intend that the section or subsection be deleted, and that any renumbering resulting from the deletion be incorporated. In each of these cases, there is no conflict.

(2) The following specific instances of overlap between or among measures shall be reconciled as follows, should the voters enact

multiple overlapping measures:

(a) In Section 8B.120, if this measure is enacted and the measure titled "Modernizing City Contracting" is also enacted, the entire text of 8B.120 as amended in this measure shall prevail.

(b) In Section 15.105, if this measure is enacted and the measure titled "Strengthening Executive Branch Accountability" is also enacted, the addition of "the Health Service Board, the Retirement Board, and the Retiree Health Care Trust Fund Board" in the title and text of subsection (b) as reflected in this measure shall be effective, integrated, and read together with the additions and deletions in the measure titled "Strengthening Executive Branch Accountability." In case of an actual conflict in Section 15.105, the measure titled "Strengthening Executive Branch Accountability" shall prevail.

(3) If this measure is enacted and the measure titled "Modernizing City Contracting" is also enacted, the following language shall be added as subsection (b)(9) of Section 3.104, to read as follows:

(b)(9) Conduct long-term real estate strategic planning and negotiate and manage acquisitions, leases, and conveyances of real property owned or controlled by, or for the use of, the City and County of San Francisco. The City Administrator's authority under the previous sentence shall be subject to Charter Section 9.118, shall only apply to the extent consistent with applicable law and Charter provisions, and shall not apply to the Airport, the Port, the Public Utilities Commission, or the Municipal Transportation Agency.

Proposition B

Describing and setting forth a proposal to the voters at an election to be held on November 3, 2026, to amend the Charter of the City and County of San Francisco to authorize the establishment of a Municipal Finance Corporation and Public Bank as nonprofit corporations, and to set forth the mission, principles, and governance structure of those corporations.

Section 1. The Board of Supervisors hereby submits to the qualified voters of the City and County, at an election to be held on November 3, 2026, a proposal to amend the Charter of the City and County by adding Article VIIIC, to read as follows:

NOTE: **Unchanged Charter text and uncoded text** are in plain font.

Additions are single-underline italics Times New Roman font.

Deletions are ~~strike-through italics Times New Roman font~~.

Asterisks (* * * *) indicate the omission of unchanged Charter subsections.

ARTICLE VIIIC: MUNICIPAL FINANCE CORPORATION AND MUNICIPAL BANK

SEC. 8C.100. PREAMBLE.

(a) Existing financial institutions have historically failed to provide equitable and accessible financial services to address the needs of low-income communities and communities of color; and to provide adequate lending products to serve the unmet financing needs for affordable housing, climate infrastructure, and local enterprise economic development.

(b) There is a severe affordable housing shortage in San Francisco, which disproportionately affects our local workforce, many of whom play essential roles in the local economy, and this shortage is exacerbated by fact that over 12,600 units of affordable housing that have been approved have yet to be built due to lack of funding and financing.

(c) Small businesses are treasured community assets in

San Francisco that provide pathways to economic security for many Black, Indigenous, Latinx, and Asian entrepreneurs and their families, many of which struggle to access financing strategies to incubate and grow their enterprises.

(d) San Francisco's Climate Action Plan envisions an ambitious and equitable climate future for the city, but this vision cannot be realized without sustained financing strategies needed for major infrastructure investments.

(e) Public banking has a long history of success supporting equitable economic development internationally and domestically, providing direct community reinvestment, financial inclusion, support for local lenders, and reduced public debt costs, with one quarter of the world's assets currently held in public banks.

(f) In 2020, then-Assembly Member David Chiu sponsored Assembly Bill 857 ("AB 857"), the California Public Banking Act, creating a formal pathway for local jurisdictions to charter their own public banks for the purposes of achieving cost savings, strengthening local economies, supporting community economic development, and addressing infrastructure and housing needs for localities.

(g) In 2021, the San Francisco Board of Supervisors passed an ordinance establishing the Reinvestment Working Group ("RWG") to oversee the formation of a business and governance plan, consisting of the Controller, Treasurer, and technical experts in financial institutions, affordable and social housing financing, small business lending, environmental justice, and renewable energy.

(h) In 2023, the RWG prepared a Final Governance Plan, Business Plan, and Viability Study for a San Francisco Municipal Financial Corporation ("MFC") and a San Francisco Public Bank, which was accepted unanimously by the Board of Supervisors. This Plan reflected the RWG's extensive research and outreach to the Federal Deposit Insurance Corporation and California Department of Financial Protection and Innovation regarding how to structure these institutions to address control and conflict issues. The governance is structured such that no one person or body can appoint a majority of members. This structure provides insulation against political interference. AB 857 restricts public banks to local agency banking, infrastructure lending, wholesale lending, participation lending, and retail activities only where those activities are not already provided by local financial institutions. As a result, AB 857 restricts public banks from most direct personal lending and provides fewer opportunities for self-dealing among commissioners or directors.

(i) In 2025, the Board of Supervisors unanimously passed a resolution urging the Treasurer-Tax Collector to establish the MFC, which can assist in providing financing options for the San Francisco Climate Action Plan by serving as the City's green bank, once funding is secured.

(j) The path to a San Francisco Public Bank includes a two-step process beginning with an MFC that would transition to a licensed Public Bank after three to five years of profitable operation, once it applies for and receives accreditation from state and federal regulatory authorities.

(k) This Article VIIIC codifies the mission, structure, and governance for an MFC and Public Bank as outlined in the Business Plan and Final Governance Plan the Board of Supervisors accepted in 2023.

(l) The MFC and the Public Bank will be run by skilled banking professionals, overseen by a Board of Directors of finance professionals and a Bank Oversight Commission appointed by the Treasurer, Controller, City Attorney, Mayor, and Board of Supervisors, with significant oversight, checks and balances, and accountability to safeguard the public interest.

(m) A San Francisco Public Bank can serve as a long-term, permanent engine for economic justice, bringing down the cost of living

for all San Francisco residents by partnering with local community lenders, like credit unions and community development financial institutions, to generate sustainable profits and require any profits generated to be reinvested in the City via additional low-cost public bank loans, creating a sustainable, local source of municipal finance.

(n) Under Section 8C.102, after sufficient funding is appropriated, the Treasurer may hire necessary staff with sufficient experience to operate the MFC, move forward with the design and establishment of the MFC, and may work as necessary with the City Attorney and any outside counsel the City Attorney deems reasonable to retain to assist in that work. The Board of Supervisors acknowledges that even with the hiring of staff and funding for legal advice to further the formation of the MFC, the MFC cannot be established unless the City secures the required capitalization and any additional necessary funding.

SEC. 8C.101. MISSION AND PRINCIPLES.

(a) All board members, commissioners, and staff of the Municipal Finance Corporation ("MFC") and Public Bank ("Public Bank" or "Bank") shall adhere to the Mission and Principles set forth in this Section 8C.101. The Oversight Commissions and Boards of Directors of the MFC and Public Bank shall incorporate the Mission and Principles set forth herein into the bylaws of those institutions.

(b) **Governance Structure.** The governance structures of the MFC and the Bank set forth in this Article VIIIC establish entities that are accountable to the goals, values, and communities of the City and County and that will uphold those goals through effective and independent corporate and financial management. These governance structures seek to ensure that the MFC and the Bank are held accountable to their mission and principles.

The Bank's governance structure complements the governance plan for the MFC as outlined in the MFC Business Plan. The MFC governance plan has the same Mission and Principles but, because it is not regulated by the Federal Deposit Insurance Corporation or California Department of Financial Protection and Innovation, the overall governance structure is not as extensive as that of the Bank. It is expected that the MFC's governance structure will serve as a foundation for the governance structure of the Bank.

(c) **Mission of the MFC and Public Bank.**

The MFC and Public Bank will promote an economy that upholds equity, social justice, and environmental sustainability.

(d) **Principles of the MFC and Public Bank.**

(1) Public Ownership. The MFC and Public Bank shall be publicly-owned entities that reinvest profits in support of their mission.

(2) Local Control. The MFC and Public Bank shall operate for the benefit and on behalf of all the communities of San Francisco and with meaningful representation and input from community stakeholders, especially those from underinvested communities and partner financial institutions that operate at the local level.

(3) Community Wealth Building. The MFC and Public Bank shall promote community home and business ownership and community wealth building.

(4) Public Welfare and Restorative Finance. The MFC and Public Bank shall invest to enhance the welfare of San Francisco residents, especially communities underserved by mainstream commercial banks and that have suffered from the historical legacy and ongoing effects of structural or systemic discrimination of wealth disparities and harmful social, economic, and environmental practices.

(5) Cooperation. The MFC and Public Bank shall cooperate with existing community institutions and organizations, strengthening the lending capacity of credit unions, community development financial institutions, and community financial institutions by partnering with them to provide financial products and services.

(6) Accountability and Transparency. The MFC and

Public Bank shall ensure democratic oversight, accountability, and transparency in MFC and Bank operations.

(7) Integrity and Independence. The MFC and Public Bank shall prevent corruption, self-dealing, and conflicts of interest by maintaining rigorous oversight of governance, operational, and lending activities and professional decision-making and management that is independent of elected officials.

(8) Professionalism. The MFC and Public Bank shall operate based on overall financial expertise, subject-matter expertise in selected lending areas, as well as appropriate prudent financial, corporate governance, and prudent financial standards and requirements.

(9) Indigenous Rights. The MFC and Public Bank shall act within a reparations framework to honor their presence on Ohlone land, protect sacred sites and repatriation efforts including land trusts, and uphold Indigenous people's right to Free, Prior, and Informed Consent.

(10) Harm Avoidance. The MFC and Public Bank shall refrain from investing in sectors that exacerbate negative socioeconomic and environmental outcomes, including predatory lending, fossil fuels and related energy generation, tobacco, firearms, other weapons, prisons and detention centers, and businesses with a record of labor law violations.

SEC. 8C.102. MUNICIPAL FINANCE CORPORATION.

(a) Establishment of Municipal Finance Corporation and Transition to Public Bank.

(1) Subject to the Treasurer-Tax Collector's determination that adequate funding and resources exist, and subject to all applicable federal and state laws, the Treasurer shall develop all necessary corporate formation documents, including without limitation articles of incorporation and bylaws, and any necessary updates to the business plan developed by the RWG, for the establishment of an MFC as either a nonprofit mutual benefit corporation or a nonprofit public benefit corporation, and shall take the necessary steps to establish the MFC. The MFC shall be structured to facilitate the future transfer of the MFC's assets, liabilities, and capital into a public bank created under Section 8C.103.

(2) If, as of the effective date of this Article VIII C, a municipal finance corporation has been established by ordinance ("pre-existing corporation"), then upon the establishment of an MFC under this Article, the governing body of the pre-existing corporation shall cause all assets, liabilities, and capital to be transferred to the MFC, subject to all federal and state laws.

(3) To the extent allowable by state and federal law, the MFC's assets, liabilities, and capital shall be transferred to the Public Bank upon establishment of the Bank under Section 8C.103.

(b) Functions.

(1) The MFC shall be a non-depository institution.

(2) To the extent permitted by federal and state law, the MFC shall provide financial services and products to support affordable housing development, affordable homeownership, small business development, environmental sustainability, and environmental justice to individual residents of the City and County and to projects and businesses located within the City and County.

(3) As the MFC's Chief Executive Officer deems appropriate and in the best interest of the MFC, the MFC shall work in partnership with local community financial institutions and community development financial institutions to serve community financial services needs.

(c) Governance.

(1) MFC Oversight Commission. There shall be an MFC Oversight Commission ("MOC") consisting of nine members, with the structure, powers, and duties specified in this subsection (c)(1). The MOC shall come into existence upon the appointment of five members.

(A) Appointment and Removal.

(i) Appointment Criteria. Members of the MOC

shall be San Francisco residents or shall have substantial expertise in the lending areas of the MFC.

(ii) Seats. The Board of Supervisors shall appoint four members (Seats 1-4); the Mayor shall appoint two members (Seats 5 and 6); the Treasurer-Tax Collector shall appoint one member (Seat 7); the Controller shall appoint one member (Seat 8); and the City Attorney shall appoint one member (Seat 9).

(iii) Independence. MOC members shall neither represent nor owe a duty of loyalty to their appointing authority. MOC members shall use their independent judgment to perform their duties, consistent with the MFC's Mission and Principles.

(iv) Appointment Hearings.

Before the MOC comes into existence, the Board of Supervisors shall hold a hearing to review the qualifications of any potential appointee to the MOC. After the MOC comes into existence, the MOC shall hold a hearing to review the qualifications of any potential appointee to the MOC. For appointees of the Mayor, Treasurer-Tax Collector, Controller, or City Attorney, the appointing authority or their designee shall attend the hearing. Neither the Board of Supervisors nor the MOC shall have authority to reject an appointee of the Mayor, Treasurer-Tax Collector, Controller, or City Attorney. If the Board of Supervisors or MOC fails to hold such a hearing within 30 days of the transmission of the appointment to the Board of Supervisors or MOC by the appointing authority, the appointing authority may move forward with the appointment without a hearing.

(v) Removal. Upon the request of the appointing authority who appointed the member, or of its own accord by a majority vote, the MOC may hold a public hearing and, by a vote of at least seven members, or by a vote of at least two-thirds of all members, whichever is greater, may remove an MOC member for official misconduct as defined in Section 15.105 of this Charter: gross negligence in the exercise of their official duties, violation of the MFC's Mission or Principles, or other good cause of a serious and substantial nature. A finding of violation of the MFC's Mission or Principles shall be consistent with the MFC Board of Directors' bylaws. The MOC shall provide the member subject to removal the opportunity to appear at a public hearing and to respond to the grounds for removal.

(C) Qualifications.

(i) The Board of Supervisors shall set qualification requirements for MOC appointees, consistent with this subsection (c)(1)(C) and the MFC's Mission and Principles, and in doing so shall invite input from all appointing authorities. Appointing authorities may set additional qualifications, which shall be publicly available. Qualification requirements shall include expertise in community-serving financial services and in the financial needs of San Francisco's diverse communities.

(ii) No person who is currently serving as an elected official at any level of government or as a member of a party central committee, has held such office in the previous ten years, or is a current candidate for elected office is eligible for appointment to the MOC.

(iii) Appointing authorities shall seek to make appointments that represent the following stakeholders to the extent feasible and permissible under federal and state law: bank worker's unions, City College of San Francisco, CleanPowerSF, community financial institutions and community development financial institutions, the City's designated cultural districts, the food and agriculture sector, minority- or women-owned small-to-medium enterprise owners, organized labor unions, San Francisco public health institutions, San Francisco Unified School District, and worker-owned or -controlled enterprises.

(D) Terms of Office.

(i) Except as stated in subsection (c)(1)(D)(ii) of this Section 8C.102, MOC members shall serve four-year terms. The

terms for all seats on the MOC shall commence on the date the MOC comes into existence. A person appointed to a partial term shall serve the balance of the unexpired term.

(ii) For the initial appointees to the MOC, Seats 1 and 2 shall be appointed to a one-year term, Seats 3 and 5 shall be appointed to a two-year term, Seats 4 and 6 shall be appointed to a three-year term, and Seats 7, 8, and 9 shall be appointed to a four-year term.

(iii) Each member of the MOC shall serve a lifetime maximum of two four-year terms. A part of a term that exceeds two years shall count as a full term; a part of a term that is two years or less shall not. The one, two, and three-year initial terms under subsection (c)(1)(C)(ii) of this Section 8C.102 shall not count for purposes of the lifetime term limit. Notwithstanding the lifetime term limit, upon expiration of their term, an MOC member may continue to serve until reappointed or a replacement has assumed office, up to a maximum of twelve months, subject to any further limitations imposed by the MOC through its bylaws.

(E) Powers and Duties.

The MOC shall have the following powers and duties:

(i) Consistent with the bylaws and articles of incorporation of the MFC, the MOC shall appoint all members of the MFC Board of Directors. In appointing MFC Board members, the MOC may consider recommendations from the MFC Board of Directors. The MOC may remove a member of the MFC Board of Directors under subsection (c)(2)(A)(ii).

(ii) The MOC may provide non-binding advice and recommendations to the MFC Board of Directors regarding the direction of the MFC's work in the areas of lending and sustainability, ethics and equity, and community outreach. The MOC shall, upon its establishment, form three committees for that purpose: Lending and Sustainability, Ethics and Equity, and Community Outreach. These committees will assist the MFC Board in developing the MFC's business plan. The MOC will also form a committee to recommend the selection of new directors as needed. The MOC may, through its bylaws, modify or eliminate these committees. The committees are further described as follows:

a. Lending and Sustainability Committee. Consistent with the Mission and Principles of the MFC, this committee shall advise the MFC Board on the framework for the MFC's loan policy, consistent with the MFC's lending priorities and prohibitions, as well as applicable regulatory requirements.

b. Ethics and Equity Committee. This committee shall identify a set of equity outcomes that can serve as benchmarks for MFC impact and success (e.g., eliminate displacement, ensure equitable access to small business finance, reduce greenhouse gas emissions); monitor the operations of the MFC to ensure operations are conducted in accordance with the governance documents; and monitor potential conflicts of interest of members of the MFC Board of Directors.

c. Community Outreach Committee. This committee shall publish an annual report in an accessible, multilingual format; hold annual town hall events to present MFC key lending and investment areas alongside equity metrics, for example, race/ethnicity, gender, migration status, neighborhoods and communities served, and community impact; provide space for the public to comment and advise the MOC on how to fulfill the MFC's mission to serve local communities; organize focus group sessions every two years around specific priority themes, such as lending and investment areas, that convene community experts to help comment, problem-solve, provide analysis, and make recommendations; and hold informational recruitment events to recruit potential members of the MOC.

d. MFC Board of Directors Selection

Committee. This committee shall recommend director candidates to the MOC. Subject to approval by the MOC, the committee shall advise the MFC Board of Directors on search, hire, salary, and performance evaluation of the Chief Executive Officer.

(iii) The MOC shall serve as a liaison between the MFC and the Board of Supervisors, reporting on an annual basis on the MFC's performance and impact and maintaining open communications with City departments that may be involved in activities complementary to the MFC's. The MFC, while independent of City departments, will share data and information where doing so supports the MFC's Mission and Principles and is authorized by applicable law.

(iv) The MOC will establish a labor policy for the MFC regarding projects that the MFC finances, consistent with the City's labor standards and the promotion of a skilled and trained workforce.

(v) The MOC shall meet monthly for the first year after it comes into existence and may reconsider the frequency of meetings thereafter. Members of the MOC shall receive payment monthly for MOC and MOC committee meetings attended, at a rate of \$500 per meeting, with a maximum payment per month of \$500, except for the MOC member who has a voting seat on the MFC Board as specified in this Article VIIIC, who shall be compensated in the same manner as other MFC Board members.

(vi) At any time after the MFC has been continuously operating for three years, the MOC may direct the MFC Board of Directors to initiate the transition of the MFC to a Public Bank under Section 8C.103. The Bank's articles of incorporation and bylaws are subject to MOC approval.

(vii) Except as specifically provided in this Article VIIIC, the MOC shall exercise no authority over the MFC Board of Directors or over the operations or policies of the MFC.

(F) Ethics. In addition to complying with all applicable state and local ethics requirements, the MOC shall adopt any additional appropriate policies to prevent conflicts of interest.

(2) MFC Board of Directors.

(A) Appointment and Removal.

(i) The MFC Board of Directors shall initially consist of five directors, as follows:

- a. The Chief Executive Officer of the MFC.
- b. Three outside directors appointed by the MOC.
- c. One member of the MOC, selected by the MOC.

(ii) Upon the request of the appointing authority who appointed the member, or of its own accord by a majority vote, the MOC may, by a vote of at least seven members, or by a vote of at least two-thirds of all members, whichever is greater, remove a member of the MFC Board of Directors for official misconduct as defined in Section 15.105 of this Charter, breach of fiduciary duty to the MFC, gross negligence in the exercise of their official duties, or other good cause of a serious and substantial nature. The MFC Board of Directors may also, by a vote of at least two-thirds of all members, remove a member of the MFC Board of Directors for the same reasons. A finding of violation of the MFC's Mission or Principles shall be consistent with the MFC Board of Directors' bylaws. The MOC shall provide the member subject to removal the opportunity to appear at a public hearing and respond to the grounds for removal.

(iii) Upon a final determination by a court of competent jurisdiction that a member of the MFC Board of Directors has committed fraud in relation to their position as a member, that individual shall cease to be a member of the MFC Board of Directors.

(B) Qualifications.

Each of the directors shall have substantial professional experience in the MFC's lending areas and as a professional manager. In addition, each outside director shall possess experience as a member

of a board of directors, chief executive, or other executive of a financial organization, such as a community financial institution, community development financial institution, or community bank.

(C) Terms of Office.

The terms of office of the members of the MFC Board of Directors shall be as set forth in the MFC's corporate bylaws or other governing documents.

(D) Powers and Duties.

The MFC Board of Directors shall have the following powers and duties:

(i) The MFC Board of Directors shall have all of the powers and duties prescribed by federal and state law, including but not limited to the hiring of the Chief Executive Officer of the MFC.

(ii) If permitted by the MFC's bylaws, the MFC Board of Directors may alter the number of members of that body by a unanimous vote.

(iii) The MFC Board of Directors shall adopt bylaws to specify criteria for violation of the MFC's Mission and Principles.

(iv) At any time after the MFC has continuously been operating for three years, the MFC Board of Directors may initiate the transition of the MFC to a Public Bank.

(E) Additional MOC Observer. As a means of providing communication and transparency, a member of the MOC, selected by the MOC, may attend meetings of the MFC Board of Directors as an observer. Subject to all applicable federal and state laws, this MOC member may attend both public and non-public meetings of the MFC Board and must execute any required confidentiality agreements in order to do so.

(F) Ethics. In addition to complying with all applicable state and local ethics requirements, the MFC Board of Directors shall adopt any additional appropriate policies to prevent conflicts of interest.

SEC. 8C.103. PUBLIC BANK.

(a) Establishment.

Subject to the availability of adequate funding and resources, subject to all applicable federal and state laws, and after the MFC has been operating for a minimum of three years, the MFC Board of Directors or MOC may initiate the MFC's transition to a Public Bank. Upon such approval, the MFC Board of Directors shall take the following steps to form the Public Bank, and shall provide quarterly updates to the MOC on the transition:

(1) prepare articles of incorporation and bylaws for the Bank as a nonprofit mutual benefit corporation or a nonprofit public benefit corporation, for approval by the MOC; and

(2) seek all necessary regulatory approvals.

(b) Functions.

(1) The Bank shall be a depository institution.

(2) To the extent permitted by federal and state law, the Bank shall provide financial services and products to support affordable housing development, affordable homeownership, small business development, environmental sustainability, and environmental justice to individual residents of the City and County, and to projects and businesses located within the City and County.

(c) Governance.

(1) Bank Oversight Commission.

The Bank Oversight Commission ("BOC") shall initially consist of 15 members, with the structure, powers, and duties specified in this subsection (c)(1). The BOC shall come into existence upon the appointment of eight members.

(A) Appointment and Removal.

(i) Seats. Subject to subsection (ii) below, members of the BOC shall be appointed as follows: the Board of Supervisors

shall appoint six members (Seats 1-6); the Mayor shall appoint three members (Seats 7-9); the Treasurer shall appoint two members (Seats 10 and 11); the Controller shall appoint two members (Seats 12 and 13); and the City Attorney shall appoint two members (Seats 14 and 15).

(ii) Transition from MOC to BOC. Members of the MOC shall have the option to transition to become initial members of the BOC. An MOC member who exercises this option shall serve as a BOC member for the length of their remaining MOC term or the length of the term of the BOC seat they fill, whichever is shorter. In that case, the transition of the MOC member to the BOC shall constitute a BOC appointment under subsection (i) above by the authority who appointed the individual to the MOC. An MOC member who transitions to become a BOC member shall not be subject to the qualification requirements for BOC members for the duration of their transitional term.

(iii) Independence. BOC members shall neither represent nor owe a duty of loyalty to their appointing authority. BOC members shall use their independent judgment to perform their duties, consistent with the Bank's Mission and Principles.

(iv) Appointment Hearings. Before the BOC comes into existence, the Board of Supervisors shall hold a public hearing to review the qualifications of any potential appointee to the BOC. After the BOC comes into existence, the BOC shall hold a public hearing to review the qualifications of any potential appointee to the BOC. For appointees of the Mayor, Treasurer-Tax Collector, Controller, or City Attorney, the appointing authority or their designee shall attend the hearing. Neither the Board of Supervisors nor the BOC shall have authority to reject an appointee of the Mayor, Treasurer-Tax Collector, Controller, or City Attorney. If the Board of Supervisors or the BOC fails to hold such a hearing within 30 days of the transmission of the appointment to that body by the appointing authority, the appointing authority may move forward with the appointment without a hearing.

(v) Removal. Upon request of the appointing authority who appointed the member or of its own accord by majority vote, the BOC may, by a vote of at least two-thirds of all members, remove a BOC member for official misconduct as defined in Section 15.105 of this Charter; gross negligence in the exercise of their official duties, violation of the Bank's Mission or Principles, or other good cause of a serious and substantial nature. A finding of violation of the Bank's Mission or Principles shall be consistent with the Bank Board of Directors' bylaws. The BOC shall provide the member subject to removal the opportunity to appear at a public hearing and respond to the grounds for removal.

(vi) Term Limits. Each member of the BOC shall serve a lifetime maximum of two four-year terms. A part of a term that exceeds two years shall count as a full term; a part of a term that is two years or less shall not. The one, two, and three-year initial terms under subsection (c)(1)(C)(ii) of this Section 8C.103 shall not count for purposes of the lifetime term limit. Notwithstanding the lifetime term limit, upon expiration of their term, a BOC member may continue to serve until reappointed or a replacement has assumed office, up to a maximum of twelve months, subject to any further limitations imposed by the BOC through its bylaws.

(B) Modification of Size and Composition of BOC.

(i) The BOC may increase the membership of the BOC up to a maximum of 25 members, provided that there shall always be an odd number of seats. In that event, additional BOC members shall be appointed in the following order:

- a. The Board of Supervisors shall appoint Seat 16;
- b. The Mayor shall appoint Seat 17;
- c. The Treasurer shall appoint Seat 18;
- d. The Controller shall appoint Seat 19;

- e. The City Attorney shall appoint Seat 20;
- f. The Board of Supervisors shall appoint Seat 21;
- g. The Mayor shall appoint Seat 22;
- h. The Board of Supervisors shall appoint Seat 23;
- i. The Board of Supervisors shall appoint Seat

24; and

- j. The Board of Supervisors shall appoint Seat 25.

(C) Qualifications.

(i) All members of the BOC shall be residents of San Francisco or shall have substantial expertise in the lending areas of the Bank. The BOC shall be composed of an inclusive and diverse mix of San Franciscan stakeholders and shall include individuals with substantial financial and business expertise.

(ii) The Board of Supervisors shall set qualification requirements for BOC appointees, consistent with this subsection (c)(1)(C) and the Bank's Mission and Principles, and in doing so shall invite input from all appointing authorities. Appointing authorities may set additional qualifications, which shall be publicly available. Qualifications shall include, without limitation:

a. Requirements that ensure that BOC appointees have expertise in community-serving financial services and in the financial needs of San Francisco's diverse communities, including but not limited to in the areas of affordable housing, environmental sustainability and renewable energy, community land trusts, and housing cooperatives.

b. Appointing authorities shall seek to make appointments that represent the following stakeholders to the extent feasible and permissible under federal and state law: bank worker's unions, City College of San Francisco, CleanPowerSF, community financial institutions and community development financial institutions, the City's established cultural districts, the food and agriculture sector, minority- or women-owned small-to-medium enterprise owners, organized labor unions, San Francisco public health institutions, San Francisco Unified School District, and worker-owned or -controlled enterprises.

(iii) No person who is currently serving as an elected official at any level of government or as a member of a party central committee, has held such office in the previous ten years, or is a current candidate for elected office is eligible for appointment to the BOC.

(D) Terms of Office.

(i) Except as stated in subsection (c)(1)(D)(ii) of this Section 8C.103, BOC members shall serve four-year terms. The terms for all initial seats on the BOC shall commence on the date the BOC comes into existence. A person appointed to a partial term shall serve the balance of the unexpired term.

(ii) For the initial appointees to the BOC, Seats 1, 2 and 7 shall be appointed to a one-year term, Seats 3, 4, 8 and 14 shall be appointed to a two-year term, Seats 5, 10, 12 and 15 shall be appointed to a three-year term, and Seats 6, 9, 11, and 13 shall be appointed to a four-year term.

(iii) The term for a seat added to the BOC under subsection (c)(1)(B) of this Section 8C.103 shall commence on the date the first appointee to the seat assumes office.

(iv) Each member of the BOC shall serve a lifetime maximum of two four-year terms. A part of a term that exceeds two years shall count as a full term; a part of a term that is two years or less shall not. The one, two, and three-year initial terms under subsection (c)(1)(D)(ii) of this Section 8C.103 shall not count for purposes of the lifetime term limit. Notwithstanding the lifetime term limit, upon expiration of their term, a BOC member may continue to serve until reappointed or a replacement has assumed office, up to a maximum of twelve months, subject to any further limitations imposed by the BOC

through its bylaws. A BOC member who has transitioned from their position as an MOC member shall serve as a BOC member for the length of their remaining MOC term or the length of the term of the BOC seat they fill, whichever is shorter. In that case, the transition of the MOC member to the BOC shall constitute a BOC appointment under subsection (c)(1)(A)(i) above by the authority who appointed the individual to the BOC.

(E) Powers and Duties.

(i) The BOC shall appoint the members of the Bank Board of Directors. The BOC may remove members of the Bank Board of Directors under subsection (c)(2)(A)(ii) of this Section 8C.103.

(ii) The BOC shall provide non-binding advice and recommendations to the Bank Board of Directors regarding the direction of the Bank's work in the areas of lending and sustainability, ethics and equity, and community outreach. The BOC shall, upon its establishment, form three committees for that purpose: Lending and Sustainability, Ethics and Equity, and Community Outreach. These committees will assist the Bank Board of Directors in developing the business plan. The BOC will also have a committee that will recommend candidates for the Board of Directors to the full BOC as needed. The BOC may, through its bylaws, modify or eliminate these committees. The committees are further described as follows:

a. Lending and Sustainability Committee. Consistent with the Mission and Principles of the Bank, this committee shall advise the Bank Board of Directors on the framework for the Bank's loan policy, consistent with the Bank's lending priorities and prohibitions, as well as applicable regulatory requirements.

b. Ethics and Equity Committee. This committee shall identify a set of equity outcomes that can serve as benchmarks for Bank impact and success (e.g., eliminate displacement, ensure equitable access to small business finance, reduce greenhouse gas emissions); monitor the operations of the Bank to ensure operations are conducted in accordance with the governance documents; and oversee conflicts of interest matters for members of the Bank Board of Directors.

c. Community Outreach Committee. This committee shall publish an annual report of its work in an accessible, multilingual format; hold annual town hall events to present Bank key lending and investment areas alongside equity metrics, for example, race/ethnicity, gender, migration status, neighborhoods and communities served, and community impact; provide space for the public to comment; advise the BOC on how to fulfill the Bank's mission to serve local communities; organize focus group sessions every two years around specific priority themes, such as lending and investment areas, that convene community experts to help comment, problem solve, provide analysis, and make recommendations; and hold informational recruitment events to recruit potential members of the BOC.

d. Bank Board of Directors Selection Committee. Subject to approval of the BOC, this committee shall recommend candidates for the Bank Board of Directors to the Bank Oversight Commission and advise the Bank Board of Directors on search, hire, salary, and performance evaluation of the chief executive officer.

(iii) The BOC shall meet monthly during the first year after it comes into existence and may reconsider the frequency of meetings thereafter. Members of the BOC will receive payment monthly for BOC and BOC committee meetings attended, at a rate of \$500 per meeting, with a maximum payment of per month of \$500.

(iv) Aside from the powers specified in this Article VIIIC, the BOC shall have no authority to direct the actions of the Bank Board of Directors or Bank staff or the operation or policies of the Bank.

(2) Bank Board of Directors.

(A) Appointment and Removal.

(i) The Bank Board of Directors will consist of nine directors: the Chief Executive Officer of the Bank and eight outside directors. Directors shall be appointed under subsection (c)(1)(E) of this Section 8C.103.

(ii) The BOC, by a vote of at least eleven members, or by a vote of at least two-thirds of the members, whichever is greater, and the Bank Board of Directors, by a vote of at least seven members, or by a vote of at least two-thirds of the members, whichever is greater, may vote to remove a member of the Bank Board of Directors for official misconduct as defined in Section 15.105 of this Charter; breach of fiduciary duty to the Bank, gross negligence in the exercise of official duties, violation of the Bank's Mission or Principles, or other good cause of a serious and substantial nature. A finding of violation of the Bank's Mission or Principles shall be consistent with the Bank Board of Directors' bylaws. The BOC or the Bank Board of Directors shall provide the member subject to removal the opportunity to appear at a public hearing and respond to the grounds for removal.

(iii) Upon a final determination by a court of competent jurisdiction that a member of the Bank Board of Directors has committed fraud in relation to their position as such a member, that individual shall cease to be a member of the Bank Board of Directors.

(B) Qualifications.

Each outside director shall possess the following qualifications:

- (i) substantial banking operations or bank directorship experience;
- (ii) substantial community development financial institution or community financial institution experience; or
- (iii) substantial professional experience in the Bank's lending areas.

(C) Terms of Office.

The terms of office of the members of the Bank Board of Directors shall be as set forth in the Bank's corporate bylaws or other governing documents.

(D) Powers and Duties.

(i) The Bank Board of Directors shall have all of the powers and duties prescribed by federal and state law, including but not limited to the hiring of the Chief Executive Officer of the Bank.

(ii) To the extent permitted by federal and state laws and by the Bank's bylaws and articles of incorporation, the Bank Board of Directors may alter the number of members of that body.

(iii) The Bank Board of Directors shall adopt bylaws to specify criteria for violation of the Bank's Mission and Principles.

(E) Additional BOC Observers.

Subject to federal and state regulatory requirements, as a means of providing communication and transparency, two members of the BOC, selected by the BOC, may attend meetings of the Bank Board of Directors as observers, with no voting rights, and shall receive the same materials and notices as Bank Board members. These two BOC members must execute confidentiality agreements as required by the Bank Board of Directors. These observers may not attend meetings with regulatory agencies without consent from the regulatory agencies.

SEC. 8C.104. DISSOLUTION.

(a) Subject to all federal and state laws, the Board of Supervisors may, by ordinance, dissolve the MFC and Bank by a unanimous vote.

(b) Subject to all federal and state laws, upon dissolution, all remaining assets of the MFC and Bank, after satisfaction of any outstanding debts and obligations, shall be distributed to the City and shall continue to serve the same public purposes consistent with the mission and public purpose of the MFC and Bank. The MFC and Bank articles of incorporation and bylaws shall not provide for any other means for the City to acquire the assets of the MFC and Bank.

SEC. 8C.105. PUBLIC MEETINGS AND PUBLIC RECORDS.

Notwithstanding any provision of this Charter, or any ordinance or regulation of the City and County, state and federal law shall govern the meetings of the MOC, MFC Board of Directors, BOC, and Bank Board of Directors and the records of the MOC, MFC, MFC Board of Directors, BOC, Bank, and Bank Board of Directors.

SEC. 8C.106. ENGAGEMENT OF LICENSED PROFESSIONALS.

Notwithstanding this Article or other provisions of the Charter, the Board of Directors of the MFC and Bank may engage licensed professionals as required to comply with federal or state laws or regulatory directives to establish or operate the Bank.

SEC. 8C.107. AMENDMENT.

Notwithstanding this Article or other provisions of the Charter, the Board of Supervisors is authorized by a supermajority vote of at least eight Supervisors to approve an ordinance necessary to comply with federal or state laws or regulatory directives to establish or operate the MFC or Bank.

Section 2. Conflicting Measures.

(a) This Charter amendment is intended to be comprehensive. It is the intent of the people of the City and County of San Francisco that in the event that this measure and one or more measures addressing the same matters shall appear on the same ballot, the provisions of the other measure or measures shall be deemed to be in conflict with this measure. If this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and all provisions of the other measure or measures shall be null and void. If this measure is approved by a majority of the voters but does not receive a greater number of affirmative votes than any other measure appearing on the same ballot regarding the same matters, this measure shall take effect to the extent not in conflict with said other measure or measures. If this measure is approved by a majority of the voters but does not receive a greater number of affirmative votes than any other measure appearing on the same ballot addressing the same matters and such other measure is later held invalid by a court of law, this measure shall be self-executing and given full force and effect.

Proposition C

Describing and setting forth a proposal to the voters at an election to be held on November 3, 2026, to amend the Charter of the City and County of San Francisco to increase the amount of funding the City must appropriate to the Housing Trust Fund each fiscal year that is used for the creation, acquisition, and rehabilitation of affordable rental and ownership housing, for downpayment loans and housing stabilization for certain households, and for housing-related infrastructure; provide for a temporary freeze and temporary reduction in the annual appropriation to the Housing Trust Fund under certain circumstances; extend the sunset date of the Housing Trust Fund from July 1, 2043 to July 1, 2058; and delete obsolete provisions.

Section 1. The Board of Supervisors hereby submits to the qualified voters of the City and County, at an election to be held on November 3, 2026, a proposal to amend the Charter of the City and County by revising Section 16.110, to read as follows:

NOTE: **Unchanged Charter text and uncodified text** are in plain font.

Additions are single-underline italics Times New Roman font.

Deletions are ~~strike-through italics Times New Roman font~~.

Asterisks (* * * *) indicate the omission of

unchanged Charter subsections.

SEC. 16.110. HOUSING TRUST FUND.

(a) **Creation of Fund.** There is hereby established a Housing Trust Fund to support creating, acquiring and rehabilitating affordable housing and promoting affordable home ownership programs in the City, as provided in this Section 16.110.

(b) **Definitions.** For purposes of this Section:

“First Responder” shall mean a City employee who responds first in cases of natural disaster or emergencies, including, but not limited to, all active uniformed, sworn members of the San Francisco Police and Fire Departments.

“General Fund Discretionary Revenues” shall mean revenues that the City receives and deposits in its treasury, that are unrestricted, and that the City may appropriate for any lawful City purpose.

“Household” shall mean any person or persons who reside or intend to reside in the same housing unit.

“Mayor’s Office of Housing” shall mean the Mayor’s Office of Housing and Community Development or any successor City agency.

(c) **Funding.**

(1) In the Fiscal Year 2013-2014 budget, the City shall appropriate to the Housing Trust Fund \$20 million.

(2) For the next 11 fiscal years, in each of the annual budgets for Fiscal Year 2014-2015 through Fiscal Year 2024-2025, the City shall appropriate to the Housing Trust Fund an amount increasing by \$2.8 million per year, until the annual appropriation required by this Section reaches \$50.8 million in the Fiscal Year 2024-2025 budget.

(31) In the annual budgets for Fiscal Year 2025-2026 through Fiscal Year 2042-43 Fiscal Year 2027-28, the City shall appropriate to the Housing Trust Fund an amount equal to the prior year’s appropriation, adjusted by the percentage increase or decrease in General Fund Discretionary Revenues budgeted for the year compared to the prior year’s original budgeted amount of General Fund Discretionary Revenues.

(2) In each fiscal year beginning in Fiscal Year 2028-2029, until the first fiscal year immediately following the fiscal year in which the total annual appropriation under this subsection (c) reaches or exceeds \$125 million, the City shall appropriate to the Housing Trust Fund the greater of the following:

(A) An amount equal to the prior year’s appropriation, plus an amount equal to 20% of the City’s share of the 1% ad valorem tax revenue resulting from the year-over-year increase, if any, in the Net Total Basis of Levy, as published in the Controller’s Certificate of Assessed Valuation between the preceding two fiscal years.

(B) An amount equal to the prior year’s appropriation, adjusted by the percentage increase, if any, in General Fund Discretionary Revenues budgeted for the year compared to the prior year’s original budgeted amount of General Fund Discretionary Revenues.

(3) Starting in the fiscal year immediately following the first fiscal year in which the total annual appropriation under this subsection (c) reaches or exceeds \$125 million, the City shall appropriate to the Housing Trust Fund an amount equal to the prior year’s appropriation, adjusted by the percentage increase, if any, up to 3%, in General Fund Discretionary Revenues budgeted for the year compared to the prior year’s original budgeted amount of General Fund Discretionary Revenues.

(4) Should the City adopt a fixed two-year budget under Charter Section 9.101, the adjustment for the Housing Trust Fund appropriation for the two years of the two-year budget shall be based on the amount of General Fund Discretionary Revenues estimated for the two-year period included in the budget.

(5) *During Fiscal Years 2025-2026 through 2042-2043 In each fiscal year through 2057-2058, if the Controller submits a*

revised estimate of General Fund Discretionary Revenues for a given Fiscal Year or two-year budget period that is lower than the amount originally budgeted for that period, then the Board of Supervisors may, by ordinance, reduce the appropriation to the Housing Trust Fund for that budget period in an amount that does not exceed the amount proportionate to the percentage shortfall in the discretionary revenue projection.

(6) The Controller’s method of calculating the amount of and changes in General Fund Discretionary Revenues shall be consistent from fiscal year to fiscal year and with the Controller’s method for calculating those figures under Charter Sections 8A.105, 16.108, and 16.109. *Additionally, in determining General Fund Discretionary Revenues, the Controller shall not include revenues received by the City under the increased rates in Business and Tax Regulations Code Sections 953.1(g), 953.2(h), 953.3(h), 953.4(e), 953.5(d), 953.6(f), 953.7(d), and 953.8(i) adopted by the voters at the general municipal election on November 3, 2020, and shall not include revenues received by the City under Article 36 of the Business and Tax Regulations Code adopted by the voters at the general municipal election on November 3, 2020.* The Controller shall treat General Fund appropriations to the Housing Trust Fund as reductions in General Fund Discretionary Revenues when calculating other funding allocations that are tied to General Fund Discretionary Revenues, including funding allocations under Charter Sections 8A.105, 16.108, and 16.109. The Controller shall correct errors in the estimate of discretionary revenues for a fiscal year through an adjustment to the next fiscal year’s estimate.

(7) In any year during the term of this Section, the City may, in its discretion, reduce its annual contribution to the Housing Trust Fund for that year by an amount equal to or less than 56.7% of the annual debt service required to service any SB2113 Affordable Housing Bonds issued after January 1, 2013. “SB2113 Affordable Housing Bonds” are bonds issued by the City to support the acquisition and creation of replacement affordable housing citywide using property tax increment from former Redevelopment project areas under California Health and Safety Code Section 33333.7.

(82) The Controller shall set aside and maintain the amounts appropriated to the Housing Trust Fund under this Section, together with any interest earned thereon, and any amount unexpended or uncommitted at the end of the fiscal year shall be carried forward to the next fiscal year and, subject to the budgetary and fiscal limitations of this Charter, shall be appropriated for the purposes specified in this Section.

(d) Temporary Freeze or Reduction of Appropriation Amount.

(1) Temporary Freeze. *Notwithstanding the provisions of subsection (c), the City may, through a standalone ordinance considered as part of the annual budget process, freeze the City’s annual contribution to the Housing Trust Fund for any fiscal year through Fiscal Year 2057-2058 at the then-current amount when the City’s projected budget deficit for the upcoming fiscal year, as stated in the Joint Report or Update to the Five-Year Financial Plan prepared jointly by the Controller, the Mayor’s Budget Director, and the Board of Supervisors’ Budget Analyst, exceeds \$250 million, which threshold shall be adjusted annually beginning with Fiscal Year 2028-2029 by the percentage increase or decrease in General Fund Discretionary Revenues, as determined by the Controller, based on calculations consistent from year to year.*

(2) Temporary Reduction. *Notwithstanding the provisions of subsection (c), the City may, through a standalone ordinance considered as part of the annual budget process, decrease the contribution the City would otherwise be required to make to the Housing Trust Fund by up to 10% for any fiscal year through Fiscal Year 2057-2058 in which the City may withdraw funds from the City Rainy Day Reserve under Charter Section 9.113.5. If such a decrease takes effect, then for*

the first subsequent fiscal year in which the City does not decrease the contribution to the Housing Trust Fund under this subsection (d)(2), the City's annual contribution to the Housing Trust Fund shall be calculated as set forth in subsection (c), using as a baseline the amount appropriated to the Housing Trust Fund for the most recent preceding year in which a decrease under this subsection (d)(2) was not made.

(de) **Uses of the Housing Trust Fund.** The City may disburse monies from the Housing Trust Fund through loans, grants or other types of payments, on terms determined by the Mayor's Office of Housing in its sole discretion. Any repayment of a loan or grant from the Fund that the City receives, or any interest from a loan from the Fund that the City receives, will be returned to the Housing Trust Fund. The City, acting through the Mayor's Office of Housing, shall disburse the monies from the Housing Trust Fund for the following eligible expenditures:

(1) The creation, acquisition, and rehabilitation of rental and ownership housing, including but not limited to Limited Equity Housing Cooperatives as defined in Subdivision Code Section 1399.3 and Social Housing Developments as defined in Administrative Code Section 10.100-78(e), as those definitions may be amended in the Municipal Code from time to time, affordable to Households earning up to 120% of the Area Median Income, including, without limitation, the acquisition of land for such purpose.

(2) No later than July 1, 2018, the City shall appropriate \$15 million from the Housing Trust Fund to a program that provides loans to Households earning up to 120% of the Area Median Income, provided that the Board of Supervisors, by ordinance, may adjust the program's maximum Area Median Income for these Households based on market conditions, and to Households including a First Responder (subject to Area Median Income limits designated by the Mayor's Office of Housing) for use as a down payment on the purchase of a housing unit ("the Down Payment Assistance Loan Program"). As soon as is practical, the Mayor's Office of Housing shall develop and implement a manual for the Down Payment Assistance Loan Program.

(3) No later than July 1, 2018, the City shall appropriate up to \$15 million from the Housing Trust Fund to a program that provides funds to Households earning up to 120% of Area Median Income for use as assistance to reduce the risk to current occupants of a loss of housing and/or to help current occupants make their homes safer, more accessible, more energy efficient, and more sustainable (the "Housing Stabilization Program"). As soon as is practical, the Mayor's Office of Housing shall implement and develop a manual for the Housing Stabilization Program.

(4) The City may use monies in the Housing Trust Fund to operate and administer the Infrastructure Grant Program as described in subsection (e). The City may not allocate to the Infrastructure Grant Program in any fiscal year an amount exceeding the greater of \$2 million or 10% of the amount appropriated to the Housing Trust Fund for that fiscal year under subsection (c); fund housing-related infrastructure required to support the development and ongoing use of residential development.

(5) In any fiscal year, the City may allocate a sufficient amount from the Housing Trust Fund to pay for all legally permissible administrative costs of the Fund, including, without limitation, legal costs, associated with any use of the Housing Trust Fund.

(e) **Complete Neighborhoods Infrastructure Grant Program.** After conferring with the Director of Planning, the Director of the Mayor's Office of Housing shall design and administer a Complete Neighborhoods Infrastructure Grant Program ("Infrastructure Grant Program"). The purpose of the Infrastructure Grant Program is to accelerate the build-out of the public realm infrastructure needed to support increased residential density in the City's neighborhoods. The City may use monies from the Infrastructure Grant Program only for

public facilities identified in the Community Facilities District law (Cal. Govt. Code §§ et seq., as amended), and shall give priority to the use of such monies by residential development project sponsors, community-based organizations, and City departments for public realm improvements associated with proposed residential development projects.

(f) **Bonding Authority.** Notwithstanding the limitations set forth in Sections 9.107, 9.108, and 9.109 of this Charter, upon recommendation of the Mayor, the Board of Supervisors may authorize the issuance, without limitation, of revenue bonds, lease financing, notes, or other evidences of indebtedness or other obligations ("Debt Obligations"), the proceeds of which are to be used for creating, acquiring, and rehabilitating rental and ownership housing affordable to Households earning up to 120% of the Area Median Income, including, without limitation, the acquisition of land for such purpose. Such Debt Obligations shall be secured by and/or repaid from any available funds pledged or appropriated by Board of Supervisors ordinance for such purpose, which amount may include funds in the Housing Trust Fund allocated under subsection (c). Debt Obligations authorized hereby shall be issued in accordance with the Mayor's Office of Housing policies, and upon the terms and conditions as the Board of Supervisors shall approve. Funds appropriated to pay debt service on the Debt Obligations in such fiscal year under the terms of this Section shall be set aside in an account for such use until such payment is made.

(g) **Legislation:**

(1) The City may enact an ordinance adopting inclusionary or affordable housing obligations, including definitions that differ from those set forth in subsection (b) of this Section 16.110. After any such ordinance becomes effective, the City Attorney shall cause to be removed from the Charter this subsection (g) of Section 16.110, and shall cause the subsequent subsections to be renumbered accordingly. Thereafter, the City may by ordinance set and change the minimum or maximum inclusionary or affordable housing obligations, and may adopt definitions for inclusionary and affordable housing programs. In doing so, the City shall endeavor to meet affordable housing needs across a broad range of household incomes, family sizes and neighborhood conditions and may update the method of fee calculation based on different building types and sizes, and may set policies controlling conversion of rental units to ownership units, among other programmatic changes.

(2) Until the City enacts an ordinance amending the Planning Code, including but not limited to Section 415, adopting inclusionary or affordable housing obligations different from those called for in previously existing Charter subsections (g) and (h), the following requirements for inclusionary housing shall apply during such interim period for any housing development project that has not procured a final first discretionary development entitlement approval, which shall include approval following any administrative appeal to the relevant City board, or has not entered into a development agreement or other binding agreement with the City as of January 12, 2016:

(A) For housing development projects consisting of ten dwelling units or more, but less than twenty-five dwelling units, the requirements of the Planning Code, including but not limited to Section 415 et seq., in effect on the date this Charter Amendment is adopted by the voters shall apply.

(B) For housing development projects consisting of twenty-five dwelling units or more, the requirements of the Planning Code, including but not limited to Section 415 et seq., in effect on the date this Charter Amendment is adopted by the voters shall apply, except that the amounts of the inclusionary housing requirement shall be modified as follows:

(i) Fee. The development project shall pay an affordable housing fee equivalent to a requirement to provide 33% of

the units in the principal project as affordable units, using the method of fee calculation set forth in Planning Code Section 415.5(b). In the event the City's Nexus Analysis in support of the Inclusionary Affordable Housing program demonstrates that a lower affordable housing fee is lawfully applicable based on an analysis of all relevant impacts, the City may utilize the method of fee calculation supported by the Nexus Analysis in lieu of the 33% requirement set forth herein.

(ii) On-Site Housing. If the project sponsor elects and is eligible to construct units affordable to qualifying households on-site of the principal project as set forth in Planning Code Section 415.5(g), the project sponsor shall construct 25% of all units constructed on the project site as affordable housing units, with 15% of the units affordable to low- and very low-income households and 10% affordable to middle income households, and shall comply with all otherwise applicable requirements of Section 415.6.

(iii) Off-Site Housing. If the project sponsor of a housing development project elects and is eligible to provide units affordable to qualifying households off-site of the principal project as set forth in Planning Code Section 415.5(g), the project sponsor shall construct or cause to be constructed affordable housing units equal to 33% of all units constructed on the principal project site as affordable housing, with 20% of the units affordable to low- and very low-income households and 13% of the units affordable to middle-income households, and shall comply with all otherwise applicable requirements of Section 415.7.

(C) Interim definitions of "Lower Income" and "Middle Income" households. For purposes of the interim period before the City enacts an ordinance amending the Planning Code, including but not limited to Section 415 et seq., "lower income" households shall be defined as households whose total household income does not exceed 55% of Area Median Income for purposes of renting an affordable unit, or 80% of Area Median Income for purposes of purchasing an affordable unit, and "middle income" households shall mean households whose total household income does not exceed 100% of Area Median Income for purposes of renting an affordable unit, or 120% of Area Median Income for purposes of purchasing an affordable unit.

(jg) Disclaimer. Nothing in this Section shall be construed to limit or restrict the ability of the City to adopt any fees or exactions related to public benefits other than affordable housing, including, but not limited to, transit infrastructure, streetscape, public realm improvement, or child care fees.

(kh) Term. Except as provided in subsection (l) below, this Section shall become inoperative on July 1, 2043~~2058~~, and after such date shall have no further force or effect and shall be repealed.

(l) Early Termination. At any time before January 1, 2013, the Mayor, after consulting with his or her Budget Director and the Controller, and after taking into account the City's projected revenues and expenditures in the City's financial plans, may terminate implementation of this Section by issuing a written notice to the Board of Supervisors and the Controller. The termination shall be irrevocable and apply to the entire Section 16.110. Upon the Mayor's signing of the notice, this Section shall become inoperative and after such date shall have no force or effect and shall be repealed.

Proposition D

Be it enacted by the people of the City and County of San Francisco:

NOTE: **Unchanged Charter text and uncodified text** are in plain font.

Additions are single-underline italics Times New Roman font.

Deletions are ~~strike-through italics Times New Roman font~~.

Section 1. Title

This measure shall be known as the "Fix Our Broken Ballot Process" Initiative Act

Section 2. Findings and Declarations

The people of the City and County of San Francisco hereby find and declare:

- (a) San Francisco's ballot qualification rules are far looser than those of any other major California city. The result is bloated and confusing ballots. For example, in November 2024, voters faced 15 separate measures, compared to one in San Jose and three in Oakland.
- (b) San Francisco is the only major city that allows a minority of supervisors to place measures directly on the ballot. It also has the lowest signature threshold in California - just two (2) percent of registered voters.
- (c) Additionally, San Francisco is the only city that allows the mayor to unilaterally place measures on the ballot.
- (d) Together, the status quo incentivizes special interests and politicians to weaponize the system against each other. Measures are often filled with complicated legal jargon meant to confuse voters. So-called poison pill ballot measures are more and more common.
- (e) This proposed measure aligns San Francisco more closely with other California cities while preserving voters' ability to participate directly in lawmaking. These commonsense reforms encourage coalition-building, deliberation, and higher-quality measures for voters to consider while reducing confusion and unintended consequences.

Section 3. Purpose and Intent

It is the intent of the people of the City and County of San Francisco to do all of the following with this Initiative:

- (a) Align San Francisco's ballot measure procedures more closely with other California cities while preserving voters' ability to participate directly in lawmaking.
- (b) Require the approval of a majority of the Board of Supervisors to place an ordinance on the ballot.
- (c) Eliminate the Mayor's unilateral authority to place an ordinance on the ballot.
- (d) Increase the voter signature threshold for initiatives to eight (8) percent of registered voters, still below the statewide standard of ten (10) percent.
- (e) Allow proponents to withdraw a flawed measure after it qualifies for the ballot.

Section 4. Article II, Section 2.113; Article III, Section 3.100; Article IV, Section 4.140; Article XIV, Section 14.101; and Article XVII of the Charter of the City and County of San Francisco are hereby amended to read as follows:

SEC. 2.113. LEGISLATIVE INITIATIVE.

(a) The Board of Supervisors, ~~or four or more members~~; may submit to the voters declarations of policy, and any matter which the Board of Supervisors is empowered to pass.

Upon approval of a declaration of policy by the voters, the Board of Supervisors shall within 90 days of such approval take such actions within their powers as shall be necessary to carry such declaration into effect. A special municipal election shall not be called with respect to a declaration of policy.

(b) ~~In order to submit a proposed initiative measure to the voters under this section, or Section 3.100(15), four or more members of the Board of Supervisors or the Mayor shall submit the proposed initiative to the Board of Supervisors no later than 45 days prior to the deadline for the submission of such initiatives to the Department of Elections. The proponent or proponents shall clearly identify the measure as~~

a proposed initiative to be submitted at a specific election, and the proponent or proponents shall file a copy of the measure with the Department of Elections at the same time as the measure is submitted to the Board of Supervisors.

The President of the Board of Supervisors shall assign the measure to a committee of the Board, and the committee shall conduct a public hearing on the measure at least 15 days prior to the deadline for the submission of such initiatives to the Department of Elections.

Failure by the Board of Supervisors to hold a hearing on the measure prior to the Department of Elections' deadline for submittal of legislative or mayoral initiatives shall not prevent the Director of Elections from placing the initiative on the ballot. But the Director of Elections shall include a notice in the voter information pamphlet that the measure was not the subject of the required public hearing.

The proponent or proponents of an initiative measure may withdraw the proposed measure at any time prior to the Department of Elections' deadline for submission of such initiatives, subject to any requirements of the Municipal Elections Code or other City ordinance. If a measure is withdrawn, the Board of Supervisors is not required to conduct a hearing on the measure.

SEC. 3.100. POWERS AND RESPONSIBILITIES.

The Mayor shall be the chief executive officer and the official representative of the City and County, and shall serve full time in that capacity. The Mayor shall devote his or her entire time and attention to the duties of the office, and shall not devote time or attention to any other occupation or business activity. The Mayor shall enforce all laws relating to the City and County, and accept service of process on its behalf.

The Mayor shall have responsibility for:

1. General administration and oversight of all departments and governmental units in the executive branch of the City and County;
 2. Coordination of all intergovernmental activities of the City and County;
 3. Receipt and examination of complaints relating to the administration of the affairs of the City and County, and timely delivery of notice to the complainant of findings and actions taken;
 4. Assurance that appointees to various governmental positions with the City and County are qualified and are as representative of the communities of interest and diverse population of the City and County as is reasonably practicable, and are representative of both sexes;
 5. Submission of ordinances and resolutions by the executive branch for consideration by the Board of Supervisors;
 6. Presentation before the Board of Supervisors of a policies and priorities statement setting forth the Mayor's policies and budget priorities for the City and County for the ensuing fiscal year;
 7. Appearance, in person, at one regularly-scheduled meeting of the Board of Supervisors each month to engage in formal policy discussions with members of the Board;
 8. Introduction before the Board of Supervisors of the annual proposed budget or multi-year budget which shall be initiated and prepared by the Mayor. The Mayor shall seek comments and recommendations on the proposed budget from the various commissions, officers and departments; and
 9. Preparation of and introduction to the Board of Supervisors of supplemental appropriations.
- The Mayor shall have the power to:
10. Speak and be heard with respect to any matter at any meeting of the Board of Supervisors or any of its committees, and shall have a seat but no vote on all boards and commissions appointed by the Mayor;
 11. As provided in Section 3.103 of this Charter, veto any ordinance or resolution passed by the Board of Supervisors;
 12. Subject to the fiscal provisions of this Charter and

budgetary approval by the Board of Supervisors, appoint such staff as may be needed to perform the duties and carry out the responsibilities of the Mayor's office, provided that no member of the staff shall receive a salary in excess of seventy percent of that paid the Mayor. For purposes of this provision, staff does not include the City Administrator, department heads or employees of departments placed under his or her direction by Section 3.104. Notwithstanding any other provisions or limitations of this Charter to the contrary, the Mayor may not designate nor may the City and County employ on the Mayor's behalf any person to act as deputy to the Mayor or any similar employment classification, regardless of title, whose responsibilities include but are not necessarily limited to supervision of the administration of any department for which the City Administrator, an elected official other than the Mayor or an appointed board or commission is assigned responsibility elsewhere in this Charter;

13. Designate a member of the Board of Supervisors to act as Mayor in the Mayor's absence from the state or during a period of temporary disability;

14. In the case of an emergency threatening the lives, property or welfare of the City and County or its citizens, the Mayor may direct the personnel and resources of any department, command the aid of other persons, and do whatever else the Mayor may deem necessary to meet the emergency;

In meeting an emergency, the Mayor shall act only with the concurrence of the Board of Supervisors, or a majority of its members immediately available if the emergency causes any member of the Board to be absent. The Mayor shall seek the Board's concurrence as soon as is reasonably possible in both the declaration of an emergency and in the action taken to meet the emergency. Normal notice, posting and agenda requirements of the Board of Supervisors shall not be applicable to the Board's actions pursuant to these provisions;

15. Make an appointment to fill any vacancy in an elective office of the City and County until a successor shall have been elected;

16. Subject to the provisions of Charter Section 2.113, submit to the voters a declaration of policy or ordinance on any matter on which the Board of Supervisors is empowered to pass;

167. Have and exercise such other powers as are provided by this Charter or by law for the chief executive officer of a City and County;

1748. Unless otherwise specifically provided, make appointments to boards and commissions which shall be effective immediately and remain so, unless rejected by a two-thirds vote of the Board of Supervisors within 30 days following transmittal of Notice of Appointment. The Notice of Appointment shall include the appointee's qualifications to serve and a statement how the appointment represents the communities of interest, neighborhoods and diverse populations of the City and County;

1849. Appoint department heads subject to the provisions of this Charter; and

1920. Prepare and submit schedule of rates, fees and other similar charges to the Board of Supervisors.

SEC. 4.140. DEPARTMENT OF PUBLIC WORKS.

(a) **Responsibilities of Department.** There shall be a Department of Public Works (the "Department"). On January 1, 2023, the Department shall assume the responsibilities of the Department of Sanitation and Streets as they existed on December 31, 2022, and shall retain the existing responsibilities of the Department of Public Works. The Department shall be headed by a Director of Public Works appointed by the Mayor as provided in Sections 3.100(*1849*) and 4.102(5).

Except as otherwise provided in the Charter or pursuant to Section 4.132, in addition to any other duties assigned by ordinance, the Department shall have the following duties: the design, building, repair, and improvement of the City's infrastructure, including City-owned

buildings and facilities and the public right of way; maintenance of the public right of way, including street sweeping, and litter abatement; the provision and maintenance of City trash receptacles and removal of illegal dumping and graffiti in the public right of way; and planting and maintenance of street trees pursuant to Section 16.129.

(b) Nothing in this Section 4.140 shall relieve property owners of their legal responsibilities set by City or State law, including as those laws may be amended in the future.

(c) **Transition.**

(1) Notwithstanding subsection (a), the Director of Public Works or person serving in an acting capacity as Director of Public Works on December 31, 2022, shall continue to serve in that capacity beginning on January 1, 2023. If at that time there is a person in an acting capacity serving as the Director of Public Works, or if at any time the position of Director of Public Works is vacant for any reason, the position shall be filled in accordance with the Charter provisions governing appointment of a department head. This subsection (c)(1) does not modify the powers vested in the Public Works Commission to remove the Director of Public Works in accordance with Section 4.102(6).

(2) By no later than June 30, 2023, the Director of Public Works shall submit to the Board of Supervisors a proposed ordinance amending the Municipal Code to conform to Sections 4.139, 4.140, 4.141, and the repeal of Section 4.138.

SEC. 14.101. INITIATIVES.

An initiative may be proposed by presenting to the Director of Elections *an initiative* petition ~~containing the initiative and~~ signed by voters in a number equal to at least ~~two percent~~ 8% of the number of registered voters in the City and County. Upon certification of the sufficiency of the petition's signatures, the Director of Elections shall submit ~~Such initiative shall be submitted to the voters by the Director of Elections upon certification of the sufficiency of the petition's signatures unless the initiative is withdrawn under this Section 14.101.~~

A vote on such initiative shall occur at the next general municipal or statewide election occurring at any time after 90 days from the date of the Director of Elections executes the certificate of sufficiency ~~executed by the Director of Elections~~, unless the Board of Supervisors directs that the initiative be voted upon at a special municipal election.

If the *initiative* petition ~~containing the initiative~~ is signed by voters in a number equal to at least ~~ten percent of the votes cast for all candidates for Mayor in the last preceding general municipal election for Mayor~~ 10% of the number of registered voters in the City and County, and contains a request that the initiative be submitted forthwith to voters at a special municipal election, the Director of Elections shall promptly call such a special municipal election on the initiative. Such election shall be held not less than 105 nor more than 120 days from the date of its calling unless it is within 105 days of a general municipal or statewide election, in which event the initiative shall be submitted at such general municipal or statewide election.

The proponent or proponents of the initiative measure may withdraw the measure after submission to the Director of Elections by a written request to the Director of Elections submitted by all proponents of the measure no later than 102 days before the election. In the event a measure is withdrawn after a special election is called under this section, the special election will not proceed unless the Board of Supervisors otherwise calls a special election consistent with the timeframes established in this Charter.

No initiative or declaration of policy approved by the voters shall be subject to veto, or to amendment or repeal except by the voters, unless such initiative or declaration of policy shall otherwise provide.

ARTICLE XVII: DEFINITIONS

For all purposes of this Charter, the following terms shall have the meanings specified below:

"Business day" shall mean any day other than a Saturday, Sunday or holiday on which governmental agencies are authorized by law to close.

"Confirm" or "confirmation" shall mean the approval by a majority of the members of the Board of Supervisors.

"Discrimination" shall mean violations of civil rights on account of race, color, religion, creed, sex, national origin, ethnicity, age, disability or medical condition, political affiliation, sexual orientation, ancestry, marital or domestic partners status, gender identity, parental status, other non-merit factors, or any category provided for by ordinance.

"Domestic partners" shall mean persons who register their partnerships pursuant to the voter-approved Domestic Partnership Ordinance.

"Elector" shall mean a person registered to vote in the City and County.

"For cause" shall mean the issuance of a written public statement by the Mayor describing those actions taken by an individual as a member of a board or commission which are the reasons for removal, provided such reasons constitute official misconduct in office.

"General municipal election" shall mean the election for local officials or measures to be held in the City and County on the Tuesday immediately following the first Monday in November in every year until and including 2022. Thereafter, "general municipal election" shall mean the election for local officials or measures to be held in the City and County on the Tuesday immediately following the first Monday in November in all even-numbered years.

"Initiative" shall mean (1) a proposal by the voters with respect to any ordinance, act or other measure which is within the powers conferred upon the Board of Supervisors to enact, any legislative act which is within the power conferred upon any other official, board, commission or other unit of government to adopt, or any declaration of policy; or (2) any measure submitted to the voters ~~by the Mayor or by the Board of Supervisors, or four or more members of the Board the Board of Directors of the Municipal Transportation Agency under Section 8A.109, or the Ethics Commission under Section 15.102.~~

"Notice" shall mean publication (as defined by ordinance), and a contemporaneous filing with the Clerk of the Board of Supervisors or other appropriate office.

"One-third," "a majority" or "two-thirds" of the Board of Supervisors or any other board or commission of the City and County shall mean one-third, a majority or two-thirds of all members of such board or commission.

"Published" shall have the meaning ascribed to the term by the Board of Supervisors by ordinance. The Board of Supervisors shall seek a recommendation from the Clerk of the Board of Supervisors before adopting such an ordinance.

"Referendum" shall mean the power of the voters to nullify ordinances involving legislative matters except that the referendum power shall not extend to any portion of the annual budget or appropriations, annual salary ordinances, ordinances authorizing the City Attorney to compromise litigation, ordinances levying taxes, ordinances relative to purely administrative matters, ordinances necessary to enable the Mayor to carry out the Mayor's emergency powers, or ordinances adopted pursuant to Section 9.106 of this Charter.

"Special municipal election" shall mean, in addition to special elections otherwise required by law, the election called by (1) the Director of Elections with respect to an initiative, referendum or recall, and (2) the Board of Supervisors with respect to bond issues, election of an official not required to be elected at the general municipal election, or an initiative or referendum.

"Statewide election" shall mean an election held throughout the state.

"Voter" shall mean an elector who is registered in accordance with

the provisions of state law.

Section 5. In enacting this Charter amendment, the qualified voters of the City and County intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, or any other constituent parts of the Charter that are explicitly shown in this Charter amendment as additions or deletions in accordance with the “Note” that appears above the official title of the Charter amendment.

Section 6. Severability. If any section, subsection, sentence, clause, phrase, or word of this Charter amendment, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of the Charter amendment. The qualified voters of the City and County of San Francisco hereby declare that they would have voted in favor of this Charter amendment, and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this Charter amendment or application thereof would be subsequently declared invalid or unconstitutional.

Section 7. Conflicting Measures. It is the intent of the people that if this measure and another measure relating to the qualification of initiatives appear on the same citywide election ballot, the provisions of the other measure or measures shall be deemed to be in conflict with this measure. If this measure receives a greater number of affirmative votes than a measure deemed to conflict with it, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure shall be null and void.

Section 8. Liberal Construction

This measure shall be liberally construed and applied in order to fully promote its underlying purposes.

Proposition E

Be it enacted by the people of the City and County of San Francisco:

NOTE: **Unchanged Charter text and uncodified text** are in plain font.

Additions are single-underline italics Times New Roman font.

Deletions are ~~strike-through italics Times New Roman font~~.

Section 1. Title

This measure shall be known as the “Modernizing City Contracting” Initiative Act.

Section 2. Findings and Declarations

- (a) San Francisco’s contracting system has become overly complex, politicized, and inefficient. Over \$5 billion in annual contracts are governed by a maze of rules scattered across more than 100 sections of code.
- (b) The result is a system so complicated that the City often has to create waivers just to allow essential purchases to move forward.
- (c) It costs roughly \$25,000 to conduct a single procurement process, many contracts take six to 12 months to complete, and more than 14 departments can be involved in approving a single contract.
- (d) This fragmentation also extends to technology purchasing, where departments operate redundant systems—five separate Microsoft contracts, 20 training systems, and 14 document management platforms, driving up costs and weakening efficiency.

Section 3. Purpose and Intent

It is the intent of the people of the City and County of San Francisco to do all of the following with this Initiative:

- (a) Professionalize and centralize contracting oversight within the City Administrator, while preserving appropriate safeguards by giving the City Administrator sole authority to propose and modernize purchasing standards and requirements, subject to rejection by the

Mayor and Board of Supervisors.

- (b) Provide the City Administrator with authority to set citywide standards and requirements to ensure consistency across departments, resulting in strengthened centralized authority over technology and multi-department capital projects to reduce duplication and inefficiency.
- (c) Increase the Board approval threshold for contracts to reflect inflation and reduce unnecessary delays.
- (d) Extend the City Administrator’s term to provide the stability needed to implement long-term operational and contracting reforms.
- (e) Together, these changes will restore professionalism to contracting and ensure taxpayer dollars are spent efficiently and transparently.

Section 4. Article II, Sections 2.105 and 2.106, Article III, Section 3.104, Article IV, Sections 4.112, 4.115, and 4.126, Article V, Section 5.101, Article VIIIA, Sections 8A.100, 8A.101, 8A.102, and 8A.107, Article VIIIB, Sections 8B.120 and 8B.121, Article IX, Section 9.118, and Appendix B, Section B3.581 of the Charter of the City and County of San Francisco are hereby amended; Article IXA, consisting of Sections 9A.100, 9A.101, and 9A.102 of the Charter is hereby added; and Article IV, Section 4.129 of the Charter is hereby deleted, to read as follows:

ARTICLE II: LEGISLATIVE BRANCH

SEC. 2.105. ORDINANCES AND RESOLUTIONS.

The Board of Supervisors shall meet and transact its business according to rules which it shall adopt.

The Board of Supervisors shall act only by written ordinance or resolution, except that it may act by motion on matters over which the Board of Supervisors has exclusive jurisdiction. All legislative acts shall be by ordinance. An ordinance or resolution may be introduced before the Board of Supervisors by a member of the Board, a committee of the Board, the Mayor, ~~or~~ the Commission Streamlining Task Force subject to the limitations set forth in Section 4.100.1, or the City Administrator subject to the limitations set forth in Section 9A.102(a), and shall be referred to and reported upon by an appropriate committee of the Board. An ordinance or resolution may be prepared in committee and reported out to the full Board for action, consistent with the public notice laws of the City, ~~except as otherwise provided in this Charter. Except as otherwise provided in this Charter;~~ Passage of an ordinance or a resolution shall require the affirmative vote of a majority of the members of the Board, except as otherwise provided in this Charter.

An ordinance shall deal with only one subject matter, except that appropriations ordinances may cover appropriations with respect to any number of subjects. The title of each ordinance shall clearly reflect the content of the ordinance.

Except as otherwise provided in Sections 2.107 and 9A.102(a), passage of an ordinance shall require two readings at separate meetings of the Board of Supervisors, which shall be held at least five days apart. If an ordinance is amended at its second reading, the ordinance shall require a further reading prior to final passage. Resolutions shall require only one reading and may be adopted upon introduction without reference to committee by unanimous affirmative vote of the members of the Board of Supervisors who are present, but in no event less than a quorum.

All ordinances shall take effect no sooner than 30 days following the date of passage except for ordinances not subject to referendum and those authorizing bonded indebtedness and lease financings, which shall take effect immediately. Ordinances granting franchises shall take effect no sooner than 60 days after passage. No ordinance granting a franchise may be passed within 90 days of its introduction. Resolutions may take effect immediately upon passage, or at such other time as shall be specified in the resolutions.

SEC. 2.106. VETO OVERRIDE.

The Board of Supervisors may enact an ordinance or resolution which

has been vetoed by the Mayor pursuant to Section 3.103 if, within 30 days after such veto, not less than two-thirds of the Board of Supervisors shall vote in favor of such measure, except as provided in Sections 9.104 and 9A.102. If a larger vote is required for the adoption of the measure by provisions of this Charter, such larger vote shall be required to overcome the veto of the Mayor.

ARTICLE III: EXECUTIVE BRANCH – OFFICE OF MAYOR SEC. 3.104. CITY ADMINISTRATOR.

(a) The Mayor shall appoint or reappoint a City Administrator, subject to confirmation by the Board of Supervisors. The appointee shall have at least ten years' governmental management or finance experience with at least five years at the City, County, or City and County level. The City Administrator shall have a term of office of five years, and may only be removed by the Mayor with the concurrence of subject to approval by the Board of Supervisors.

(b) Except as otherwise provided in the Charter or in state or federal law, the City Administrator shall have authority to do the following responsibility for:

(1) Appoint and remove department heads under the direct oversight of the City Administrator subject to approval of the Mayor, except as provided in Section 4.102.

(2) Direct and supervise the City's information technology, including establishing and implementing citywide policy, standards, practices, and systems for technology uses that are standard across departments, or that impact cross-departmental systems' security, resilience, compatibility, or functionality.

(3) In multi-departmental capital improvement and construction projects, promote coordination and alignment of departments and mediate inter-departmental disputes as necessary to ensure successful and timely completion of the project.

(4) Introduce ordinances and adopt rules and regulations governing Procurement, as specified in Article IXA.

(5) Procure commodities and services required by the City, subject to Controller's certification of funds, or delegate to any department the authority to procure commodities and services required by that department, subject to the Controller's certification of funds.

(6) Procure and execute contracts without interference from the Mayor or Board of Supervisors.

(7) Exchange, sell, and otherwise dispose of the City's personal property, or delegate to any department the authority to exchange, sell, and otherwise dispose of such property.

(8) Conduct long-term capital planning and prepare and recommend General Obligation bond measures for consideration by the Mayor and Board of Supervisors.

— 1. Administrative services within the executive branch, as assigned by the Mayor or by ordinance;

— 2. Administering policies and procedures regarding bonded or other long-term indebtedness, procurement, contracts and building and occupancy permits, and for assuring that all contracts and permits are issued in a fair and impartial manner and that any inspections involved with the issuance of permits shall be carried out in a like manner;

— 3. Coordinating all capital improvement and construction projects except projects solely under the Airport, Port, Public Utilities and Public Transportation Commissions;

— 4. Preparing and recommending bond measures for consideration by the Mayor and Board of Supervisors; and

— 5. Administering, budgeting and control of publicity and advertising expenditures.

— The City Administrator shall have power to:

6. With the concurrence of the Mayor, appoint and remove the directors of the Departments of Administrative Services, Solid Waste, and Public Guardian/Administrator, and such other department

heads which are placed under the City Administrator's direction;

7. Propose rules governing procurement and contracts to the Board of Supervisors for consideration;

8. Award contracts without interference from the Mayor or Board of Supervisors;

and

9. Coordinate the issuance of bonds and notes for capital improvements, equipment and cash flow borrowings, except for projects solely under the Airport, Port, Public Utilities and Public Transportation Commissions.

In those instances where contract awards are not subject to Board of Supervisors' review, the City Administrator shall award contracts in full compliance with applicable laws and this Charter. The City Administrator's decision in such cases shall be final.

(c) In furtherance of the City Administrator's authority described in this Section, the City Administrator may require departments to provide periodic or special reports of operations, contracts, revenues, and expenditures.

(d) Transition provision. The term of the City Administrator in office on January 1, 2027, shall be automatically extended such that the term is ten years in total.

ARTICLE IV: EXECUTIVE BRANCH – BOARDS, COMMISSIONS, AND DEPARTMENTS

SEC. 4.112. PUBLIC UTILITIES COMMISSION.

(a) The Public Utilities Commission shall consist of five members appointed by the Mayor, subject to confirmation by a majority of the Board of Supervisors. Each of the members shall serve for a term of four years. Members may be removed by the Mayor only pursuant to Section 15.105.

(b) Seat 1 on the Commission shall be a member with experience in environmental policy and an understanding of environmental justice issues. Seat 2 shall be a member with experience in ratepayer or consumer advocacy. Seat 3 shall be a member with experience in project finance. Seat 4 shall be a member with expertise in water systems, power systems, or public utility management, and Seat 5 shall be an at-large member.

(c) The respective terms of office of members of the Public Utilities Commission who old office on August 1, 2008 shall expire at noon on that date, and the members appointed pursuant to the amendments to this Section approved at the June 2008 election shall succeed to said office at that time. In order to provide for staggered terms, the members appointed to Seats 2 and 4 shall serve for an initial term of two years from August 1, 2008. The remaining three members appointed to Seats 1, 3, and 5 shall serve for an initial term of four years from August 1, 2008, and thereafter the terms of all members shall be four years.

(d) The Commission shall have charge of the construction, management, supervision, maintenance, extension, operation, use and control of all water and energy supplies and utilities of the City as well as the real, personal and financial assets, which are under the Commission's jurisdiction on the operative date of this Charter, or assigned pursuant to Section 4.132, as further specified in Article VIIIB.

SEC. 4.115. AIRPORT COMMISSION.

The Airport Commission shall consist of five members appointed by the Mayor, pursuant to Section 3.100, for four-year terms. Members may be removed by the Mayor only pursuant to Section 15.105.

The Commission shall provide the Mayor with at least three qualified candidates for Director of Airports, related on the basis of executive, administrative and technical qualifications.

The Commission shall have charge of the construction, management, supervision, maintenance, extension, operation, use and control of all property, as well as the real, personal and financial assets which are under the Commission's jurisdiction. Notwithstanding the Commission's authority described in this Section 4.115, the Commission shall be subject to the City Administrator's authority under Sections

3.104(b) and (c).

Subject to the approval, amendment or rejection of the Board of Supervisors of each issue, the Commission shall have exclusive authority to plan and issue revenue bonds for airport-related purposes.

SEC. 4.126. DEPARTMENTS – GENERAL PROVISIONS.

Except as otherwise provided by this Charter, the responsibilities of each department within the executive branch shall be prescribed by ordinance.

The administration and management of each department within the executive branch shall be the responsibility of the department head. Such officials may:

1. Appoint qualified individuals to fill all positions within their departments which are exempt from the Civil Service provisions of this Charter;
2. Adopt rules and regulations governing matters within the jurisdiction of their respective departments, subject, if applicable, to Section 4.102; and
3. With the approval of the City Administrator, reorganize their respective departments.

No person serving on a board or commission created by state law to discharge a state function specifically within the City and County may be employed as a paid staff member to a board or commission created by this Charter.

~~SEC. 4.129. DEPARTMENT OF ADMINISTRATIVE SERVICES.~~

~~The director of the Department of Administrative Services shall purchase all supplies, equipment and contractual services required by the several departments and offices of the City and County, except as otherwise provided in the Administrative Code.~~

~~Except in cases of emergency, the director shall not enter into any contract or issue any purchase order unless the Controller shall certify thereon that sufficient unencumbered balances are available in the proper fund to meet the payments under such purchase order or contract as these become due. The director shall have charge of the central warehouses, central storerooms, central garage and shop.~~

~~The director shall by rules and regulations approved by the Controller, designate and authorize appropriate personnel within the Department of Administrative Services to exercise the director's signature powers for purchase orders and contract.~~

~~The director shall have authority to exchange used materials, supplies and equipment to the advantage of the City and County; advertise for bids; and to sell and otherwise dispose of personal property belonging to the City and County. The director shall have authority to require the transfer of surplus property in any department to stores or to other departments.~~

~~The director shall manage all public buildings, facilities and real estate of the City and County, unless otherwise provided for in this Charter.~~

~~Additional duties and functions of the Department of Administrative Services shall be assigned the City Administrator, by ordinance or pursuant to Section 4.132.~~

ARTICLE V:**EXECUTIVE BRANCH – ARTS AND CULTURE****SEC. 5.101. CHARITABLE TRUST DEPARTMENTS.**

For the purposes of this Article, the Asian Art Museum of San Francisco, The Fine Arts Museums of San Francisco and the War Memorial and Performing Arts Center are referred to as the “charitable trust departments.”

Nothing in this Article shall be construed to limit or change the powers and responsibilities of the governing boards of the charitable trust departments insofar as they involve administration of the charitable trusts, gifts and contracts for which they are responsible.

The charitable trust departments shall have exclusive charge of the

trusts and all other assets under their jurisdiction, which may be acquired by loan, purchase, gift, devise, bequest or otherwise, including any land or buildings set aside for their use. They shall have authority to maintain, operate, manage, repair or reconstruct existing buildings and construct new buildings, and to make and enter into contracts relating thereto, subject, insofar as City funds are to be used, to the budgetary and fiscal provisions of this Charter.

Notwithstanding the authority described in this Section 5.101, charitable trust departments shall be subject to the City Administrator's authority under Sections 3.104(b) and (c), to the extent not inconsistent with their trust obligations.

ARTICLE VIIIA: THE MUNICIPAL TRANSPORTATION AGENCY**SEC. 8A.100. PREAMBLE.**

(a) An effective, efficient, and safe transportation system is vital for San Francisco to achieve its goals for quality of life, environmental sustainability, public health, social justice, and economic growth. The Municipal Transportation Agency must manage San Francisco's transportation system which includes automobile, freight, transit, bicycle, and pedestrian networks to help the City meet those goals. Through this measure, the voters seek to provide the Municipal Transportation Agency with improved resources and expanded independence and authority in order to create a transportation system that is among the best in the world.

(b) This article requires the Municipal Transportation Agency to develop clear, meaningful and quantifiable measures of its performance and goals and to regularly publicize those standards. This article also recognizes that the workers of the Municipal Transportation Agency are vital to the success of the Agency and to achieving the improvements voters seek. Therefore, it authorizes incentives for excellence and requires accountability for both managers and employees.

(c) Specifically, San Francisco residents require:

1. Reliable, safe, timely, frequent, and convenient transit service to all neighborhoods;
2. A reduction in breakdowns, delays, over-crowding, preventable accidents;
3. Clean and comfortable transit vehicles and stations, operated by competent, courteous, and well trained employees;
4. Support and accommodation of the special transportation needs of the elderly and the disabled;
5. Protection from crime and inappropriate passenger behavior on the Municipal Railway;
6. Responsive, efficient, and accountable management;
7. Roads that are not gridlocked with congestion;
8. A safe and comprehensive network of bicycle lanes;
9. A safe and inviting environment for pedestrians;
10. Efficient movement of goods and deliveries;
11. A transportation sector that promotes environmental sustainability and does not contribute to global warming; and
12. A well-managed and well-coordinated transportation system that contributes to a livable urban environment.

Through this measure, the voters seek to provide the transportation system with the resources, independence and focus necessary to achieve these goals.

(d) The voters find that one of the impediments to achieving these goals in the past has been that responsibility for transportation has been diffused throughout City government. Accordingly, this Article places within the Municipal Transportation Agency the powers and duties relating to transit now vested in other departments, boards, and commissions of the City and County. This Article further requires that, to the extent other City and County agencies provide services to the Municipal Transportation Agency, those departments must give the highest priority to the delivery of such services.

(e) At the same time, this Article is intended to ensure sufficient

oversight of the Municipal Transportation Agency by, among other things, preserving the role of the City's Controller as to financial matters, the City Attorney as to legal matters, *and* the Civil Service Commission, as to merit system issues, *and the City Administrator as to matters covered under Sections 3.104(b) and (c)*. In addition, this Article requires that outside audits be performed to ensure that required service levels are obtained with a minimum of waste.

(f) Finally, this Article is intended to strengthen the Municipal Transportation Agency's authority to: 1) manage its employees; 2) establish efficient and economical work rules and work practices that maximize the Agency's responsiveness to public needs; and 3) protect the Agency's right to select, train, promote, demote, discipline, layoff and terminate employees, managers, and supervisors based upon the highest standards of customer service, efficiency and competency.

(g) The effective management of traffic flow and parking are vital to the operation of the Municipal Railway. Congestion on city streets causes delays in transit operations. Therefore, the Municipal Transportation Agency must manage parking and traffic flow to ensure that transit vehicles move through City streets safely and efficiently.

(h) In addition, the residents of San Francisco require that the Agency: 1) value and protect the safety of pedestrians and bicyclists; 2) reduce congestion and air pollution through efficient use of the streets; and 3) protect the City's economic health by giving priority to commercial deliveries and access to local businesses.

(i) The voters find that reducing the carbon emissions from San Francisco's transit sector is fundamental to the City's health and wellbeing and shall be among the Agency's policy priorities. Because the Agency has significant influence on San Francisco's transportation sector, which is responsible for fully half of the carbon emissions produced within the City, the voters direct the Agency to develop and implement strategies for substantially reducing those emissions. The voters further affirm the goals of the City's Climate Action Plan.

(j) This Article shall be interpreted and applied in conformance with the above goals.

SEC. 8A.101. MUNICIPAL TRANSPORTATION AGENCY.

(a) There shall be a Municipal Transportation Agency. The Agency shall include a Board of Directors and a Director of Transportation. The Agency shall include the Municipal Railway and the former Department of Parking and Traffic, as well as any other departments, bureaus or operating divisions hereafter created or placed under the Agency. There shall also be a Citizens Advisory Committee to assist the Agency.

(b) The Board of Supervisors shall have the power, by ordinance, to abolish the Taxi Commission created in Section 4.133, and to transfer the powers and duties of that commission to the Agency under the direction of the Director of Transportation or his or her designee. In order to fully integrate taxi-related functions into the Agency should such a transfer occur, the Agency shall have the same exclusive authority over taxi-related functions and taxi-related fares, fees, charges, budgets, and personnel that it has over the Municipal Railway and parking and traffic fares, fees, charges, budgets, and personnel. Once adopted, Agency regulations shall thereafter supercede all previously-adopted ordinances governing motor vehicles for hire that conflict with or duplicate such regulations.

(c) Any transfer of functions occurring as a result of the above provisions shall not adversely affect the status, position, compensation, or pension or retirement rights and privileges of any civil service employees who engaged in the performance of a function or duty transferred to another office, agency, or department pursuant to this measure.

(d) Except as expressly provided in this Article, the Agency shall comply with all of the restrictions and requirements imposed by the ordinances of general application of the City and County, including

ordinances prohibiting discrimination of any kind in employment and contracting, such as Administrative Code Chapters 12B et seq., as amended from time to time. The Agency shall be solely responsible for the administration and enforcement of such requirements, *subject to the City Administrator's authority under Sections 3.104(b) and (c)*.

(e) The Agency may contract with existing City and County departments to carry out any of its powers and duties. Any such contract shall establish performance standards for the department providing the services to the Agency, including measurable standards for the quality, timeliness, and cost of the services provided. All City and County departments must give the highest priority to the delivery of such services to the Agency.

(f) The Agency may not exercise any powers and duties of the Controller or the City Attorney and shall *contract into memoranda of understanding* with the Controller and the City Attorney for the exercise of such powers and duties.

SEC. 8A.102. GOVERNANCE AND DUTIES.

(a) The Agency shall be governed by a board of seven directors appointed by the Mayor and confirmed after public hearing by the Board of Supervisors. All initial appointments must be made by the Mayor and submitted to the Board of Supervisors for confirmation no later than February 1, 2000. The Board of Supervisors shall act on those initial appointments no later than March, 1, 2000 or those appointments shall be deemed confirmed.

At least four of the directors must be regular riders of the Municipal Railway, and must continue to be regular riders during their terms. The directors must possess significant knowledge of, or professional experience in, one or more of the fields of government, finance, or labor relations. At least two of the directors must possess significant knowledge of, or professional experience in, the field of public transportation. During their terms, all directors shall be required to ride the Municipal Railway on the average once a week.

Directors shall serve four-year terms, provided, however, that two of the initial appointees shall serve for terms ending March 1, 2004, two for terms ending March 1, 2003, two for terms ending March 1, 2002, and one for a term ending March 1, 2001. Initial terms shall be designated by the Mayor. No person may serve more than three terms as a director. A director may be removed only for cause pursuant to Article XV. The directors shall annually elect a chair. The chair shall serve as chair at the pleasure of the directors. Directors shall receive reasonable compensation for attending meetings of the Agency which shall not exceed the average of the two highest compensations paid to the members of any board or commission with authority over a transit system in the nine Bay Area counties.

(b) The Agency shall:

1. Have exclusive authority over the acquisition, construction, management, supervision, maintenance, extension, operation, use, and control of all property, as well as the real, personal, and financial assets of the Agency, *subject to the City Administrator's authority under Sections 3.104(b) and (c)*; and have exclusive authority over contracting, leasing, and purchasing by the Agency, *subject to the City Administrator's authority under Sections 3.104(b) and (c)*, and provided that any Agency contract for outside services shall be subject to ~~Charter~~ Sections 10.104(12) and 10.104(15) and that the Agency may not transfer ownership of any of the real property of the City and County without approval from the Board of Directors and the Board of Supervisors;

2. Have exclusive authority to enter into such arrangements and agreements for the joint, coordinated, or common use with any other public entity owning or having jurisdiction over rights-of-way, tracks, structures, subways, tunnels, stations, terminals, depots, maintenance facilities, and transit electrical power facilities;

3. Have exclusive authority to make such arrangements

as it deems proper to provide for the exchange of transfer privileges, and through-ticketing arrangements, and such arrangements shall not constitute a fare change subject to the requirements of Sections 8A.106 and 8A.108;

4. Notwithstanding any restrictions on contracting authority set forth in the Administrative Code, have exclusive authority to enter into agreements for the distribution of transit fare media and media for the use of parking meters or other individual parking services, subject to the City Administrator's authority under Sections 3.104(b) and (c);

5. Have exclusive authority to arrange with other transit agencies for bulk fare purchases, provided that if passenger fares increase as a result of such purchases, the increase shall be subject to review by the Board of Supervisors pursuant to Sections 8A.106 and 8A.108;

6. Notwithstanding Section 2.109, and except as provided in Sections 8A.106 and 8A.108, have exclusive authority to fix the fares charged by the Municipal Railway, rates for off-street and on-street parking, and all other, rates, fees, fines, penalties and charges for services provided or functions performed by the Agency;

7. Notwithstanding any provision of the San Francisco Municipal Code (except requirements administered by the Department of Public Works governing excavation, street design and official grade) have exclusive authority to adopt regulations that control the flow and direction of motor vehicle, bicycle and pedestrian traffic, including regulations that limit the use of certain streets or traffic lanes to categories of vehicles and that limit the speed of traffic; and to design, select, locate, install, operate, maintain and remove all official traffic control devices, signs, roadway features and pavement markings that control the flow of traffic with respect to streets and highways within City jurisdiction, provided that:

(i) Notwithstanding the authority established in subsection 7, the Board of Supervisors may by ordinance establish procedures by which the public may seek Board of Supervisors review of any Agency decision with regard to the installation or removal of a stop sign or the creation or elimination of a bicycle lane. In any such review, the Agency's decision shall stand unless the Board of Supervisors reverses the decision of the Agency not later than 60 days after submission of a request to the Board of Supervisors.

(ii) Nothing in this subsection 7 shall modify the authority of ISCOTT, or any successor body, over the temporary use or occupancy of public streets, or the authority of the Board of Supervisors to hear appeals regarding the temporary use or occupancy of public streets.

(iii) Nothing in subsection 7 shall modify the power of the Board of Supervisors to establish civil offenses, infractions and misdemeanors.

(iv) Notwithstanding the authority established in subsection 7, to the extent state law contemplates that Agency action authorized by subsection 7 be effectuated by ordinance, such action shall be effectuated by resolution of the Board of Directors and shall be subject to referendum in accordance with Article 14, and, if a referendum petition contains the requisite number of signatures, the Board of Supervisors shall have the power to reconsider or repeal the action as provided in Article 14.

8. Have exclusive authority to adopt regulations limiting parking, stopping, standing or loading as provided by state law and to establish parking privileges and locations subject to such privileges for categories of people or vehicles as provided by state law; to establish parking meter zones, to set parking rates, and to select, install, locate and maintain systems and equipment for payment of parking fees, provided that:

(i) Notwithstanding the authority established in

subsection 8, the Board of Supervisors may by ordinance establish procedures by which the public may seek Board of Supervisors review of any Agency decision with regard to the creation or elimination of any preferential parking zone, the creation or elimination of any parking meter zone, the adoption of any limitation on the time period for which a vehicle may be parked, or reservation of any parking space for persons with a disability that qualifies for parking privileges under state law. In any review of a decision of the Agency pursuant to this section, the Agency's decision shall stand unless the Board of Supervisors reverses the decision of the Agency not later than 60 days after submission of a request to the Board of Supervisors.

(ii) Nothing in subsection 8 shall modify the power of the Board of Supervisors to establish civil offenses, infractions and misdemeanors.

(iii) Notwithstanding the authority established in subsection 8, to the extent state law contemplates that any Agency action authorized by subsection 8 be effectuated by ordinance, such action shall be effectuated by resolution of the Board of Directors and, if a referendum petition contains the requisite number of signatures, shall be subject to referendum in accordance with Article 14, and the Board of Supervisors shall have the power to reconsider or repeal the action as provided in Article 14.

9. Have exclusive authority to establish policies regarding and procure goods and services for the enforcement of regulations limiting parking, stopping, standing or loading and the collection of parking-related revenues, subject to the City Administrator's authority under Sections 3.104(b)(4), (b)(5), and (c); and, along with the Police Department, have authority to enforce parking, stopping, standing or loading regulations;

10. Be responsible for chairing the Interdepartmental Staff Committee on Traffic and Transportation (ISCOTT) or any successor body;

11. Be responsible for cooperating with and assisting the Police Department in the promotion of traffic safety; studying and responding to complaints related to street design, traffic control devices, roadway features and pavement markings; collecting compiling and analyzing traffic data and traffic accident data and planning improvements to improve the safety of the City's roadways; and conducting traffic research and planning;

12. Have exclusive authority to apply for, accept, and expend state, federal, or other public or private grant funds for Agency purposes;

13. To the maximum extent permitted by law, with the concurrence of the Board of Supervisors, and notwithstanding the requirements and limitations of Sections 9.107, 9.108, and 9.109, have authority without further voter approval to incur debt for Agency purposes and to issue or cause to be issued bonds, notes, certificates of indebtedness, commercial paper, financing leases, certificates of participation or any other debt instruments. Upon recommendation from the Board of Directors, the Board of Supervisors may authorize the Agency to incur on behalf of the City such debt or other obligations provided: 1) the Controller first certifies that sufficient unencumbered balances are expected to be available in the proper fund to meet all payments under such obligations as they become due; and 2) any debt obligation, if secured, is secured by revenues or assets under the jurisdiction of the Agency.

14. Have the authority to conduct investigations into any matter within its jurisdiction through the power of inquiry, including the power to hold public hearings and take testimony, and to take such action as may be necessary to act upon its findings; and

15. Exercise such other powers and duties as shall be prescribed by ordinance of the Board of Supervisors.

(c) The Agency's Board of Directors shall:

1. Appoint a Director of Transportation, who shall serve at the

pleasure of the Board. The Director of Transportation shall be employed pursuant to an individual contract. His or her compensation shall be comparable to the compensation of the chief executive officers of the public transportation systems in the United States which the Board of Directors, after an independent survey, determine most closely resemble the Agency in size, mission, and complexity. In addition, the Board of Directors shall provide an incentive compensation plan consistent with the requirements of Section 8A.104(k) under which a portion of the Director's compensation is based on achievement of service standards adopted by the Board of Directors.

2. Appoint an executive secretary who shall be responsible for administering the affairs of the Board of Directors and who shall serve at the pleasure of the Board.

3. In addition to any training that may be required by City, State or federal law, attend a minimum of four hours of training in each calendar year, provided by the City Attorney and the Controller regarding the legal and financial responsibilities of the Board and the Agency.

(d) The Director of Transportation shall appoint all subordinate personnel of the Agency, including deputy directors. The deputy directors shall serve at the pleasure of the Director of Transportation.

(e) Upon recommendation of the City Attorney and the approval of the Board of Directors, the City Attorney may compromise, settle, or dismiss any litigation, legal proceedings, claims, demands or grievances which may be pending for or on behalf of, or against the Agency relative to any matter or property solely under the Agency's jurisdiction. Unlitigated claims or demands against the Agency shall be handled as set forth in Charter Section 6.102. Any payment pursuant to the compromise, settlement, or dismissal of such litigation, legal proceedings, claims, demands, or grievances, unless otherwise specified by the Board of Supervisors, shall be made from the Municipal Transportation Fund.

(f) The Agency's Board of Directors, and its individual members, shall deal with administrative matters solely through the Director of Transportation or his or her designees. Any dictation, suggestion, or interference by a director in the administrative affairs of the Agency, other than through the Director of Transportation or his or her designees, shall constitute official misconduct; provided, however, that nothing herein contained shall restrict the Board of Directors' powers of hearing and inquiry as provided in this Section.

(g) Notwithstanding any provision of Chapter 6 or 21 of the Administrative Code establishing any threshold amount for exercise of executive authority to execute contracts, or any successor provision of the San Francisco Municipal Code, the Agency's Board of Directors may adopt threshold amounts under which the Director of Transportation and his or her designees may approve contracts.

(h) Except provided in this Article, the Agency shall be subject to the provisions of this Charter applicable to boards, commissions, and departments of the City and County, including Sections 2.114, 3.105, 4.101, 4.103, 4.104, 4.113, 6.102, 9.118, 16.100, and A8.346. Sections 4.102, 4.126, and 4.132 shall not be applicable to the Agency.

SEC. 8A.107. MUNICIPAL TRANSPORTATION QUALITY REVIEW.

(a) The Agency shall biennially contract with a nationally recognized management or transportation consulting firm with offices in the City and County for an independent review of the quality of its operations. The contract shall be competitively bid and comply with applicable contracting requirements in the Municipal Code and City rules and regulations and shall be approved by the Controller and Board of Supervisors. The review shall contain:

1. A detailed analysis of the extent to which the Agency has met the goals, objectives, and performance standards it is required to adopt under Section 8A.103, and the extent to which the Agency is expected to meet those goals, objectives, and performance standards in the two fiscal years for which the review is submitted, and independent

verification of the Agency's reported performance under the performance measures adopted pursuant to Section 4 of this measure; and

2. Such recommendations for improvement in the operation of the Agency as the firm conducting the review deems appropriate.

(b) The results of the review shall be presented promptly to the Citizens' Advisory Council, the Agency, the Board of Supervisors, and the Mayor by the reviewing firm; and the Citizens' Advisory Council, the Agency, and the Board of Supervisors shall each promptly hold at least one public hearing thereon.

ARTICLE VIIIIB: PUBLIC UTILITIES

SEC. 8B.120. PREAMBLE.

The Public Utilities Commission operates the Water, Clean Water and Power Utilities of the City and County of San Francisco. Hetch Hetchy Water and Power System is an irreplaceable asset of the people of the City and County of San Francisco. The system is fundamental to the economic vitality of San Francisco and the Bay Area. The voters of the City and County of San Francisco are committed to preserving and protecting the system as well as safeguarding the extraordinary quality of the water from Yosemite and local watersheds. The voters find that the protection, maintenance and repair of the system are among their highest priorities.

San Francisco faces an unprecedented challenge: to restore its aging water system to ensure a reliable Bay Area water supply through the next century. Repairs must be accomplished as quickly as possible to avoid system outages, which could be caused by natural disasters such as earthquake. In planning for its future needs and those of its wholesale customers, the City must promote water conservation and responsible stewardship of its natural resources. The effectiveness of the City's Public Utilities Commission, which has jurisdiction over the system, is essential to achieving these goals.

In addition, San Francisco must upgrade and repair its clean water system to meet changes in state and federal water quality requirements, and to ensure reliability of the system, parts of which are outdated, aged or seismically vulnerable. The voters find that the operation of the clean water system should not unnecessarily place a disproportionate environmental burden on any community.

This measure is intended to enhance public confidence in the City's stewardship of public utilities by:

1. Clarifying that the Public Utilities Commission has exclusive control of water, clean water and power assets owned or maintained by the City and County of San Francisco, subject to the City Administrator's authority under Sections 3.104(b) and (c) to the extent specified in this Article VIIIIB;

2. Establishing rates sufficient to meet operation, maintenance and financial needs of the system based on costs and sound budgeting and auditing procedures to protect retail ratepayers and reduce interest paid on bonds and other indebtedness while ensuring public review;

3. Establishing the Public Utilities Commission as an independent revenue department not subject to undue financial pressures to contribute to the City's general fund;

4. Requiring the development of long term Capital, Financial and Strategic Plans to ensure that the utilities are operated efficiently in accordance with best public utility practice;

5. Authorizing the Public Utilities Commission to independently enter into certain contracts, subject to the City Administrator's authority under Sections 3.104(b) and (c);

6. Giving the Public Utilities Commission the ability to finance needed capital improvements through revenue bonds or other financing methods consistent with the powers of other major public utilities in California; and

7. Promoting labor stability to ensure that the Capital Improvement Plan is completed expeditiously and efficiently.

SEC. 8B.121. PUBLIC UTILITIES COMMISSION.

(a) Notwithstanding Charter section 4.112, the Public Utilities Commission shall have exclusive charge of the construction, management, supervision, maintenance, extension, expansion, operation, use and control of all water, clean water and energy supplies and utilities of the City as well as the real, personal and financial assets, that are under the Commission's jurisdiction or assigned to the Commission under Section 4.132, subject to the City Administrator's authority under Sections 3.104(b) and (c).

(b) The Public Utilities Commission may enter into Joint Powers Agreements with other public entities in furtherance of the responsibilities of the Commission.

(c) Except to the extent otherwise provided in this Article, the Public Utilities Commission shall be subject to the provisions of Charter sections 4.100 et seq. generally applicable to boards and commissions of the City and County.

(d) The General Manager shall have the authority to organize and reorganize the department. The General Manager shall adopt rules and regulations governing all matters within the jurisdiction of the department subject to section 4.102 as applicable.

(e) Ownership or control of any public utility or any part thereof under the jurisdiction of the Public Utilities Commission may not be transferred or conveyed absent approval by the Public Utilities Commission and approval by a vote of the electors of the City at the election next ensuing not less than 90 days after the adoption of such ordinance, which shall not go into effect until ratified by a majority of the voters voting thereon. Voter approval shall not be required for sales or transfers of real property declared surplus to the needs of any utility by the Public Utilities Commission or to leases or permits for the use of utility real property approved by the Public Utilities Commission.

ARTICLE IXA: PROCUREMENT**SEC. 9A.100. GENERAL PRINCIPLES.**

All City legislation, rulemaking, and policy implementation regarding Procurement, as defined in Section 9A.101, shall serve the following objectives:

1. Maximizing the value, measured in terms of cost, quality, and timeliness, of the delivered commodity or service;
2. Minimizing administrative operating burdens; and
3. Conducting business with integrity, openness, and in a fair and impartial manner.

SEC. 9A.101. DEFINITIONS.

For purposes of this Article IXA, "Procurement" and "Procure" mean the requirements for sourcing, selecting, and contracting for: 1) the purchase of commodities and services, 2) public works, and 3) grantmaking, including but not limited to contracts under Administrative Code Chapters 6, 21, and 21G, as those Chapters may be amended from time to time, and any successor or related provisions of the Municipal Code governing procurement of commodities, services, public works, or grants. Requirements include but are not limited to contract terms and conditions and process requirements. Procurement does not include the following: 1) the manner in which the City uses commodities and services after they have been procured; 2) collective bargaining agreements between labor unions and the City; 3) development agreements under Administrative Code Chapter 56, as it may be amended from time to time, or under state law; 4) grants or revenue contracts under which the City receives funds and does not pay funds; and 5) agreements for the acquisition, disposition, or lease of real property.

SEC 9A.102. CITY ADMINISTRATOR AUTHORITY OVER CITY PROCUREMENT

(a) Exclusive Authority Over Procurement Legislation. The City Administrator shall have exclusive authority to introduce ordinances at the Board of Supervisors governing Procurement, except

for ordinances that primarily address contractor wage standards, benefits, or workplace health and safety standards; requirements for local business utilization; and project labor agreements. Ordinances introduced by the City Administrator under this Section 9A.102(a) shall be approved as follows:

(1) The ordinance shall be deemed approved by the Board of Supervisors and Mayor 60 days after the date of introduction unless, before the expiration of the 60-day period, the Board of Supervisors by motion, or the Mayor by providing written notice to the City Administrator and the Clerk of the Board of Supervisors, disapproves the ordinance. The date of introduction shall be the date of the meeting of the Board of Supervisors when the ordinance is presented to the Board of Supervisors.

(2) Alternatively, the ordinance may be approved by a single vote of the Board of Supervisors together with written notice of approval provided by the Mayor to the Clerk of the Board of Supervisors. The Board of Supervisors may not amend the ordinance.

(3) Notwithstanding Section 3.103, the date of passage of the ordinance shall be the earlier of: (A) the date it is deemed approved as set forth in Section 9A.102(a)(1); or (B) the later of the date the Board of Supervisors votes to approve the ordinance as set forth in Section 9A.102(a)(2) or the date the Mayor provides written notice of approval to the Clerk of the Board of Supervisors as set forth in Section 9A.102(a)(2).

(b) Authority Over Procurement Rulemaking.

(1) The City Administrator shall have authority to adopt and amend rules and regulations that implement Municipal Code provisions governing Procurement.

(2) The City Administrator shall adopt or amend rules and regulations under this Section 9A.102(b) only after publishing the proposed rules and regulations in a location and format easily accessible to the public and providing a minimum of 10 days for the public to submit comments on the proposed rules and regulations. After adoption, the rules and regulations shall be published in a location and format easily accessible to the public.

(3) Subject to the Municipal Code, rules and regulations adopted by the City Administrator under this Section 9A.102(b) shall supersede any conflicting rules or regulations adopted by departments.

(4) Departments shall coordinate with the City Administrator to ensure that Procurement and Procurement-related activities conducted by departments conform to standards established by the City Administrator.

ARTICLE IX: FINANCIAL PROVISIONS**SEC. 9.118. CONTRACT AND LEASE LIMITATIONS.**

(a) Unless otherwise provided for in this Charter, contracts entered into by a department, board or commission having anticipated net revenue to the City and County of \$4,500,000~~one million dollars~~ or more, ~~or the termination of such contracts, and each Major Amendment the modification, amendment or termination of any such contracts which when entered into had anticipated revenue of one million dollars or more,~~ shall be subject to approval of the Board of Supervisors by resolution.

(b) Unless otherwise provided for in this Charter, and with the exception of construction contracts ~~entered into by the City and County~~, any ~~other~~ contracts or agreements entered into by a department, board, or commission having a term ~~in excess of ten years or more~~, or requiring anticipated net expenditures by the City and County of \$25,000,000~~ten million dollars or more~~, and each Major Amendment ~~of such contracts, or the modification or amendments to such contract or agreement having an impact of more than \$500,000~~ shall be subject to approval of the Board of Supervisors by resolution.

(c) Unless otherwise provided for in this Charter, any lease of real property for a period of ten ~~or more~~ years or more, including

options to renew, or having anticipated net revenue to the City and County of ~~\$4,500,000~~ one million dollars or more; the ~~modification, amendment or~~ termination of any such lease; ~~each Major Amendment of such lease, which when entered into was for a period of ten or more years, including options to renew, or had anticipated revenue to the City and County of one million dollars or more;~~ and any sale or other transfer of real property owned by the City and County, shall first be approved by resolution of the Board of Supervisors. Leases of property under the jurisdiction of the Port Commission for maritime use shall be exempt from the requirements of this section.

(d) Beginning on July 1, 2032, the Controller shall adjust the monetary thresholds specified in subsections (a) through (c) to reflect any increase in the relevant consumer price index, as determined by the Controller, since July 1, 2027. The Controller shall perform a consumer price index adjustment of the monetary thresholds in subsections (a) through (c) every five years thereafter covering either the preceding five-year period or the period since the last adjustment if longer than five years. The monetary thresholds as recalculated by the Controller shall be rounded to the nearest \$500,000 and shall take effect by operation of law on July 1, 2032, and on July 1 every five years thereafter. The Controller shall publish the current thresholds in a location and format easily accessible to the public.

(e) For the purposes of this Section 9.118, a "Major Amendment" means each modification or amendment to a contract or lease that results in a cumulative increase of 50% or more of the original contract or lease amount over the amount last approved by the Board of Supervisors. As used in this definition, "amount" means monetary amount, not the length or term of a contract or lease.

(f) Transition provision. A contract executed prior to January 1, 2027, with a term of ten years that was not subject to approval by the Board of Supervisors at the time of execution, but as of January 1, 2027, would be subject to approval by the Board of Supervisors under 9.118(b) or (c), will be subject to first-time approval by the Board of Supervisors only if the contract is amended on or after January 1, 2027, to extend the term beyond ten years, or to increase the amount of expenditures or revenue under the contract to equal or exceed the threshold amounts set forth above.

APPENDIX B: PORT AGREEMENTS

B3.581. POWERS AND DUTIES.

The Port Commission shall have all the powers and duties given to boards and Commissions by Section ~~3.5004.102~~ of the Charter and shall have the power to establish such departments and bureaus as may be necessary or convenient for the conduct of its affairs. Subject to the terms and conditions of the transfer and any supplemental agreements relating thereto, the Port Commission shall have the control and management of all real and personal property transferred under the Statutes 1968, ch. 1333, or otherwise acquired or purchased with funds under its control or acquired or purchased by it within the scope of its authority, or otherwise placed under its management, supervision and control. The property under the control and management of the Commission shall be known as the port area. The Port Commission shall have the power and duty to use, conduct, operate, maintain, manage, regulate, and control the port area of San Francisco and to do all things it deems necessary in connection with the use, conduct, operation, management, maintenance, regulation, improvement and control of said port area, or which may further the interests of the port in world trade, including, without limiting the generality of the foregoing, the exclusive power to perform or accomplish the following:

(a) The improvement, operation and conduct of the harbor, and any and all improvements or facilities located thereon;

(b) The construction, reconstruction, repair, operation and use of all works, buildings, facilities, utilities, structures and appliances incidental, necessary or convenient for the promotion and

accommodation of commerce and navigation, or located within the port area;

(c) The establishment, improvement and conduct of railroad and aviation facilities and all works, buildings, facilities, utilities, structures and appliances incidental, necessary or convenient for the promotion and conduct of air commerce and navigation and railroad transportation;

(d) The construction, reconstruction, repair, maintenance and operation of public buildings, parks, playgrounds, public educational and recreation facilities and all works, buildings, facilities, structures and appliances incidental, necessary or convenient for the promotion and accommodation of any such uses;

(e) The preservation or restoration of marine resources consistent with the primary mission of the Harbor of San Francisco;

(f) The grant of franchises thereof for limited periods not exceeding 66 years for wharves and other public uses and purposes and the lease of said lands, facilities, or any part thereof for limited periods not exceeding 66 years, and the collection and retention of rents and other revenues from such leases, franchises, permits, licenses and privileges. Such lease or leases, franchises, permits, licenses, and privileges shall be for purposes consistent with the trusts upon which the lands are held by the State and with the requirements of commerce and navigation, or if the Port Commission of the City and County of San Francisco determines that any portion of the transferred lands is not required for the foregoing uses described in this section, such lease or leases, franchises, permits, licenses, and privileges, may be for the purposes of such development and use as the Commission finds will yield maximum profits to be used by the Commission in the furtherance of commerce and navigation;

(g) Leases and franchises granted or made by the Port Commission shall be administered exclusively by the operating forces of the Port Commission;

(h) The power to nominate for appointment a Port Director who shall be the chief executive of the Port Commission and who shall have the management of all the affairs and activities placed under the jurisdiction of the Commission. The Mayor shall appoint a Port Director. ~~He~~The Director shall devote ~~his~~his~~their~~ entire time to the duties of ~~his~~the office and ~~his~~his~~their~~ salary shall be fixed by the Commission. ~~He~~The Director shall ~~hold his office~~serve at the pleasure of the Commission and shall have the management of said harbor and of all of the facilities and equipment thereof and all bureaus and departments established for the operation of said harbor or for the operation of any equipment or facility thereof. Subject to the approval of the Commission, ~~the Director~~ ~~he~~ shall appoint and remove any and all heads of departments or bureaus, who may not be subject to the civil service provisions of the Charter. ~~He~~The Director shall possess the ~~necessary~~ administrative, executive and technical qualifications necessary to ~~enable him to~~ perform the duties of ~~his~~the office. ~~His~~The Director's compensation shall not exceed prevailing salaries paid those holding similar positions in comparable maritime employment. The Commission may confer on ~~him~~the Director such additional powers and authority as it may see fit;

(i) To regulate the berthing, anchoring, towing, loading and unloading and mooring of vessels within the port;

(j) To issue receipts, negotiable or otherwise, for property or merchandise in its charge or possession;

(k) To fix all rates, dockage, rentals, tolls, wharfage, and charges, for the use and occupation of the public facilities or appliances of the port, and for services rendered by the Port Commission, and to provide for the collection thereof;

(l) To enter into contracts, agreements, or stipulations germane to the scope of its powers and duties;

(m) To give such bonds or assurances as may be required by the United States in the operations permitted hereunder;

(n) To provide and equip offices within or without the port, within other states, or in foreign countries, and through such employees and agencies as it may deem expedient;

(o) To contract for and operate foreign trade zones within the port area or auxiliary to the port area, or such zones or sub-zones as have been operated by the San Francisco Port Authority. Agreement may be made with the Public Utilities Commission for operation of future zones or sub-zones in other areas;

(p) Members and officers of the Port Commission shall be exempt from the provisions of the City Charter relating to absences from the State, but shall advise the Mayor and the Board of Supervisors in advance of such absences;

(q) May promote the maritime and commercial interests of the harbor by advertising its advantages and facilities and by the solicitation of business. The advertising and solicitation may be conducted within or without this State and through such agencies, mediums, employees and agents as are determined by the Commission. The Commission may, in its discretion, publish and distribute a magazine, pamphlets, booklets and other printed and advertising matter for the purpose of developing traffic and promoting and maintaining the commerce and prestige of the port, and may use any moneys of the harbor fund for the special purposes authorized by this provision. Members and employees of the Commission in attending conventions of port authorities and meetings of transportation clubs, trade associations and business organizations that may advance the interests of the port shall be allowed their actual necessary expenses in the performance of such services as may from time to time be deemed desirable by the Commission and shall be allowed hospitality expenses necessarily incurred in furthering the interests of the port;

(r) To issue revenue bonds as provided in Section 7.305;

(s) To expend all funds necessary to the carrying out of the powers and duties herein expressed;

(t) This section does hereby vest in the Port Commission all of the powers set forth in Section 3 and Section 5 of the Statutes of 1968, Chapter 1333, which provisions are hereby incorporated in the Charter by this reference.

Notwithstanding the Port Commission's authority described in Sections B3.581 and B3.582, the Port Commission shall be subject to the City Administrator's authority under Sections 3.104(b) and (c), to the extent consistent with the Burton Act and Transfer Agreement.

Section 5. In enacting this Charter amendment, the qualified voters of the City and County intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, or any other constituent parts of the Charter that are explicitly shown in this Charter amendment as additions or deletions in accordance with the "Note" that appears above the official title of the Charter amendment.

Section 6. Severability. If any section, subsection, sentence, clause, phrase, or word of this Charter amendment, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of the Charter amendment. The qualified voters of the City and County of San Francisco hereby declare that they would have voted in favor of this Charter amendment, and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this Charter amendment or application thereof would be subsequently declared invalid or unconstitutional.

Section 7. Liberal Construction

This measure shall be liberally construed and applied in order to fully promote its underlying purposes.

Proposition F

Be it enacted by the people of the City and County of San Francisco:

NOTE: **Unchanged Charter text and uncodified text** are in plain font.

Additions are single-underline italics Times New Roman font.

Deletions are ~~strike-through italics Times New Roman font~~.

Section 1. Title

This measure shall be known as the "Strengthening Executive Branch Accountability" Initiative Act.

Section 2. Findings and Declarations

- (a) San Francisco's Charter is the longest of any major American city.
- (b) The vast majority of City departments are embedded in the Charter itself, meaning even organizational improvements require voter approval.
- (c) Department heads oversee the vast majority of City staff and resources, yet the Mayor has direct hire-and-fire authority over only a small fraction of them. In recent instances involving serious ethical lapses, the Mayor lacked authority to immediately remove department heads.
- (d) The Charter also requires the Mayor to directly supervise nearly 50 department heads—an impractical structure for a government with more than 30,000 employees, which diffuses responsibility and makes it difficult for voters to know who is accountable when services fall short.
- (e) This measure will ensure that when San Franciscans elect a Mayor, they know who is responsible for delivering results.

Section 3. Purpose and Intent

It is the intent of the people of the City and County of San Francisco to do all of the following with this Initiative:

- (a) Expand the Mayor's authority to hire and remove most department heads.
- (b) Allow most commissioners to be removed at will by their appointing authority.
- (c) Permit the Mayor to reorganize departments and adjust reporting relationships within the executive branch, subject to potential rejection by the Board.
- (d) Authorize the use of Deputy Mayors to improve oversight and coordination.
- (e) Restore clear lines of accountability within the executive branch while preserving oversight by the Board of Supervisors.

Section 4. Sections 3.100, 4.101, 4.102, 4.105, 4.107, 4.108, 4.109, 4.110, 4.111, 4.112, 4.113, 4.114, 4.115, 4.117, 4.118, 4.119, 4.120, 4.121, 4.126, 4.132, 4.133, 4.134, 4.135, 4.136, 4.137, 4.139, 4.140, 4.141, 5.102, 5.103, 5.106, 7.102, 8.102, 8A.102, 8B.126, 10.100, 13.103.5, 15.105, and 16.108-1 of the Charter of the City and County of San Francisco are hereby amended to read as follows:

SEC. 3.100. POWERS AND RESPONSIBILITIES.

The Mayor shall be the chief executive officer and the official representative of the City and County, and shall serve full time in that capacity. The Mayor shall devote his or her entire time and attention to the duties of the office, and shall not devote time or attention to any other occupation or business activity. The Mayor shall enforce all laws relating to the City and County, and accept service of process on its behalf.

The Mayor shall have responsibility for:

1. General administration and oversight of all departments and governmental units in the executive branch of the City and County;
2. Coordination of all intergovernmental activities of the City and County;
3. Receipt and examination of complaints relating to the

administration of the affairs of the City and County, and timely delivery of notice to the complainant of findings and actions taken;

4. Assurance that appointees to various governmental positions with the City and County are qualified and are as representative of the communities of interest and diverse population of the City and County as is reasonably practicable, and are representative of both sexes;

5. Submission of ordinances and resolutions by the executive branch for consideration by the Board of Supervisors;

6. Presentation before the Board of Supervisors of a policies and priorities statement setting forth the Mayor's policies and budget priorities for the City and County for the ensuing fiscal year;

7. Appearance, in person, at one regularly-scheduled meeting of the Board of Supervisors each month to engage in formal policy discussions with members of the Board;

8. Introduction before the Board of Supervisors of the annual proposed budget or multi-year budget which shall be initiated and prepared by the Mayor. The Mayor shall seek comments and recommendations on the proposed budget from the various commissions, officers and departments; and

9. Preparation of and introduction to the Board of Supervisors of supplemental appropriations.

The Mayor shall have the power to:

10. Speak and be heard with respect to any matter at any meeting of the Board of Supervisors or any of its committees, and shall have a seat but no vote on all boards and commissions appointed by the Mayor;

11. As provided in Section 3.103 of this Charter, veto any ordinance or resolution passed by the Board of Supervisors;

12. Subject to the fiscal provisions of this Charter and budgetary approval by the Board of Supervisors, appoint such staff as may be needed to perform the duties and carry out the responsibilities of the Mayor's office, provided that no member of the staff shall receive a salary in excess of seventy percent of that paid the Mayor. For purposes of this provision, staff does not include the City Administrator, department heads, or employees of departments placed under ~~his or her~~*the City Administrator's* direction by Section 3.104. ~~Notwithstanding any other provisions or limitations of this Charter to the contrary, the Mayor may not designate nor may the City and County employ on the Mayor's behalf any person to act as deputy to the Mayor or any similar employment classification, regardless of title, whose responsibilities include but are not necessarily limited to supervision of the administration of any department for which the City Administrator, an elected official other than the Mayor or an appointed board or commission is assigned responsibility elsewhere in this Charter;~~

13. Designate a member of the Board of Supervisors to act as Mayor in the Mayor's absence from the state or during a period of temporary disability;

14. In the case of an emergency threatening the lives, property or welfare of the City and County or its citizens, the Mayor may direct the personnel and resources of any department, command the aid of other persons, and do whatever else the Mayor may deem necessary to meet the emergency;

In meeting an emergency, the Mayor shall act only with the concurrence of the Board of Supervisors, or a majority of its members immediately available if the emergency causes any member of the Board to be absent. The Mayor shall seek the Board's concurrence as soon as is reasonably possible in both the declaration of an emergency and in the action taken to meet the emergency. Normal notice, posting and agenda requirements of the Board of Supervisors shall not be applicable to the Board's actions pursuant to these provisions;

15. Make an appointment to fill any vacancy in an elective office of the City and County until a successor shall have been elected;

16. Subject to the provisions of Charter Section 2.113, submit to the voters a declaration of policy or ordinance on any matter on which

the Board of Supervisors is empowered to pass;

17. Have and exercise such other powers as are provided by this Charter or by law for the chief executive officer of a City and County;

18. Unless otherwise specifically provided, make appointments to boards and commissions which shall be effective immediately and remain so, unless rejected by a two-thirds vote of the Board of Supervisors within 30 days following transmittal of Notice of Appointment. The Notice of Appointment shall include the appointee's qualifications to serve and a statement how the appointment represents the communities of interest, neighborhoods and diverse populations of the City and County;

19. ~~Unless otherwise provided in this Charter, a~~*Appoint and remove* department heads ~~subject to the provisions of this Charter;~~ and

20. Prepare and submit schedule of rates, fees and other similar charges to the Board of Supervisors.

SEC. 4.100. GENERAL.

In addition to the office of the Mayor, the executive branch of the City and County shall be composed of departments, appointive boards, commissions, and other units of government that perform the sovereign powers of the City and County. To the extent law permits, each appointive board, commission, or other unit of government of the City and County established by State or Federal law shall be subject to the provisions of this Article IV and this Charter.

SEC. 4.101. BOARDS AND COMMISSIONS – COMPOSITION

(a) Unless otherwise provided in this Charter, the composition of each appointive board, commission, or advisory body of any kind established by this Charter or legislative act of the United States of America, the State of California, or the Board of Supervisors shall be broadly representative of the communities of interest, neighborhoods, and the diversity of the City and County in ethnicity, race, age, sex, gender identity, sexual orientation, and types of disabilities.

(b) All members of such bodies as described in subsection (a) shall be residents of the City and County and the minimum age required to vote in municipal elections in the City and County, at all times during the term of their respective offices, unless otherwise specifically provided in this Charter. Either or both of the requirements set forth in the first sentence of this subsection (b) shall not apply to boards, commissions, or advisory bodies established by legislative act if the legislation specifically exempts the position from either or both requirements, or if the appointing officer or entity makes a finding that a person meeting both requirements, and willing to serve, could not be located.

(c) It shall be the official City policy that the composition of each appointive board, commission, or advisory body of any kind established by this Charter or legislative act of the United States of America, the State of California, or the Board of Supervisors shall reflect the interests and contributions of people of all races, ethnicities, ages, sexes, gender identities, sexual orientations, and types of disabilities. The voters therefore urge in the strongest terms all City officers and agencies involved in nominating, appointing, or confirming members of those appointive boards, commissions, or advisory bodies to consider and as appropriate support the nomination, appointment, or confirmation of women, people of color, seniors, people with disabilities, and people that reflect a range of sexual orientations and gender identities to fill seats on those bodies.

(d) The Commission on the Status of Women shall conduct an analysis of appointments to appointive boards, commissions, and advisory bodies established in the Charter or by legislative act, in the second and fourth year of each mayoral term to track the diversity of appointments to such bodies. This analysis, to be based only on voluntary disclosures, shall include ethnicity, sex, gender identity, sexual orientation, disability status, and any other relevant demographic

qualities.

(e) Vacancies on appointive boards, commissions, or other units of government shall be filled for the balance of the unexpired term in the manner prescribed by this Charter or ordinance for initial appointments.

~~(f) Terms of office shall continue as they existed on the effective date of this Charter.~~

~~(f) Unless otherwise provided in this Charter or the law establishing or governing an appointive board, commission, or advisory body, members serve at the pleasure of their appointing authority and may be removed by their appointing authority without cause.~~

SEC. 4.102. BOARDS AND COMMISSIONS – POWERS AND DUTIES.

Unless otherwise provided in this Charter, each appointive board, commission or other unit of government of the executive branch of the City and County shall:

1. Formulate, evaluate and approve goals, objectives, plans and programs and set policies consistent with the overall objectives of the City and County, as established by the Mayor and the Board of Supervisors through the adoption of City legislation;

2. Develop and keep current an Annual Statement of Purpose outlining its areas of jurisdiction, authorities, purpose and goals, subject to review and approval by the Mayor and the Board of Supervisors;

3. After public hearing, approve applicable departmental budgets or any budget modifications or fund transfers requiring the approval of the Board of Supervisors, subject to the Mayor's final authority to initiate, prepare and submit the annual proposed budget on behalf of the executive branch and the Board of Supervisors' authority under Section 9.103;

4. Recommend to the Mayor for submission to the Board of Supervisors rates, fees and similar charges with respect to appropriate items coming within their respective jurisdictions;

5. Unless otherwise ~~specifically~~ provided in this Charter, submit to the Mayor one or more ~~at least~~ three qualified applicants, and if rejected, ~~to make additional nominations in the same manner, for the position of department head, subject to appointment by the Mayor;~~

~~6. Remove a department head; the Mayor may recommend removal of a department head to the commission, and it shall be the commission's duty to act on the Mayor's recommendation by removing or retaining the department head within 30 days; failure to act on the Mayor's recommendation shall constitute official misconduct;~~

~~7.~~ Conduct investigations into any aspect of governmental operations within its jurisdiction through the power of inquiry, and make recommendations to the Mayor or the Board of Supervisors;

~~8.~~ Exercise such other powers and duties as shall be prescribed by the Board of Supervisors ordinance; and

~~9.~~ Appoint an executive secretary to manage the affairs and operations of the board or commission.

In furtherance of the discharge of its responsibilities, an appointive board, commission or other unit of government may:

~~10.~~ Hold hearings and take testimony; and

~~11.~~ Retain temporary counsel for specific purposes, subject to the consent of the Mayor and the City Attorney.

Each board or commission, relative to the affairs of its own department, shall deal with administrative matters solely through the department head or his or her designees, and any dictation, suggestion or interference herein prohibited on the part of any member of a board or commission shall constitute official misconduct; provided, however, that nothing herein contained shall restrict the board or commission's powers of hearing and inquiry as provided in this Charter.

SEC. 4.105. PLANNING COMMISSION.

GENERAL. The Planning Commission shall consist of seven members nominated and appointed pursuant to this section. Four of the

members shall be nominated by the Mayor, and three of the members shall be nominated by the President of the Board of Supervisors. Charter Section 4.101 shall apply to these appointments, with particular emphasis on the geographic diversity of City neighborhoods. ~~Vacancies shall be filled by the appointing officer.~~

Each nomination of the Mayor and the President of the Board of Supervisors is subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days. If the Board fails to act on the nomination within 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or after 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors.

~~Members may be removed by the appointing officer only pursuant to Section 15.105.~~

In order to stagger the terms, three members shall initially serve two-year terms, and four members shall initially service four-year terms. The initial two and four-year terms of office shall be instituted as follows:

1. The respective terms of office of members of the Planning Commission who hold office on the first day of July, 2002, shall expire at 12 o'clock noon on that date, and the four members appointed by the Mayor and the three members appointed by the President of the Board of Supervisors shall succeed to said offices at that time.

2. The Clerk of the Board of Supervisors shall determine by lot which two of the four Mayoral appointees shall serve an initial two-year term, and which one of the three appointees of the President of the Board of Supervisors shall serve an initial two-year term. The remaining appointees shall serve four-year terms. All subsequent terms shall be four years.

~~The Commission shall provide the Mayor with at least three qualified candidates for Director of Planning, selected on the basis of administrative and technical qualifications, with special regard for experience, training and knowledge in the field of City planning.~~

Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Director of Planning, who shall serve as the department head of the Planning Department.

The Commission may contract with consultants for such services as it may require subject to the fiscal provisions of this Charter.

GENERAL PLAN. The Commission shall periodically recommend to the Board of Supervisors for approval or rejection proposed amendments to the General Plan. If the Board of Supervisors fails to act within 90 days of receipt, the proposed General Plan or amendments shall be deemed approved. The General Plan which will initially consist of the Master Plan in effect immediately prior to the effective date of this Charter shall consist of goals, policies and programs for the future physical development of the City and County that take into consideration social, economic and environmental factors. In developing their recommendations, the Commission shall consult with commissions and elected officials, and shall hold public hearings as part of a comprehensive planning process. The Planning Department, in consultation with other departments and the City Administrator, shall periodically prepare special area, neighborhood and other plans designed to carry out the General Plan, and periodically prepare implementation programs and schedules which link the General Plan to the allocation of local, state and federal resources. The Planning Department may make such other reports and recommendations to the Mayor, Board of Supervisors and other offices and governmental units as it may deem necessary to secure understanding and a systematic effectuation of the General Plan.

In preparing any plans, the Planning Department may include plans for systems and areas within the Bay Region which have a planning

relationship with the City and County.

REFERRAL OF CERTAIN MATTERS. The following matters shall, prior to passage by the Board of Supervisors, be submitted for writ ten report by the Planning Department regarding conformity with the General Plan:

1. Proposed ordinances and resolutions concerning the acquisition or vacation of property by, or a change in the use or title of property owned by, the City and County;
2. Subdivisions of land within the City and County;
3. Projects for the construction or improvement of public buildings or structures within the City and County;
4. Project plans for public housing, or publicly assisted private housing in the City and County;
5. Redevelopment project plans within the City and County; and
6. Such other matters as may be prescribed by ordinance.

The Commission shall disapprove any proposed action referred to it upon a finding that such action does not conform to the General Plan. Such a finding may be reversed by a vote of two-thirds of the Board of Supervisors.

All such reports and recommendations shall be issued in a manner and within a time period to be determined by ordinance.

PERMITS AND LICENSES. All permits and licenses dependent on, or affected by, the City Planning Code administered by the Planning Department shall be approved by the Commission prior to issuance. The Commission may delegate this approval function to the Planning Department. Notwithstanding the foregoing, certificates of appropriateness for work to designated landmarks and historic districts and applications for alterations to significant or contributory buildings or properties in designated conservation districts that have been approved, disapproved, or modified by the Historic Preservation Commission shall not require approval by the Commission prior to issuance.

ENFORCEMENT. The Planning Department shall administer and enforce the City Planning Code.

ZONING AMENDMENTS. The Commission may propose for consideration by the Board of Supervisors ordinances regulating or controlling the height, area, bulk, set-back, location, use or related aspects of any building, structure or land. An ordinance proposed by the Board of Supervisors concerning zoning shall be reviewed by the Commission. Applications for the reclassification of property may be made by interested parties and must be reviewed by the Commission. Notwithstanding the foregoing, designation of a landmark, a significant or contributory building, an historic district, or a conservation district shall be reviewed by the Commission only as provided in Section 4.135.

Notwithstanding the Commission's disapproval of a proposal from the Board of Supervisors or the application of interested parties, the Board of Supervisors may adopt the proposed ordinance; however, in the case of any proposal made by the application of interested parties, any such adoption shall be by a vote of not less than two-thirds of the Board of Supervisors.

No application of interested parties proposing the same or substantially the same ordinance as that disapproved by the Commission or by the Board of Supervisors shall be resubmitted to or reconsidered by the Commission within a period of one year from the effective date of final action upon the earlier application.

ZONING ADMINISTRATOR. The Director of Planning shall appoint a Zoning Administrator from a list of qualified applicants provided pursuant to the Civil Service provisions of the Charter. The Zoning Administrator shall be responsible for the determination of all zoning variances. The administrator shall have the power to grant only those variances that are consistent with the general purpose and the intent of the zoning ordinance, and in accordance with the general and specific rules of the zoning ordinance, subject to such conditions

and safeguards as the Zoning Administrator may impose. The power to grant variances shall be applied only when the plain and literal interpretation and enforcement of the zoning ordinance would result in practical difficulties, unnecessary hardships or where the results would be inconsistent with the general purpose of the zoning ordinance. Decisions of the Zoning Administrator regarding zoning variances may be appealed to the Board of Appeals.

Before any such variance may be granted, there shall appear, and the Zoning Administrator shall specify in his or her findings, the facts in each case which shall establish:

(a) That there are exceptional or extraordinary circumstances or conditions applying to the property involved or to the intended use of the property that do not apply generally to the property or class of uses in the same district or zone;

(b) That owing to such exceptional or extraordinary circumstances the literal enforcement of the zoning ordinance would result in practical difficulty or unnecessary hardship not created by or attributable to the applicant or the owner of the property;

(c) That such variance is necessary for the preservation and enjoyment of a substantial property right of the applicant, possessed by other property in the same zone and vicinity;

(d) That the granting of the variance will not be materially detrimental to the public welfare or injurious to the property or improvements in such zone or district in which the property is located; and

(e) That the granting of such variance will be in harmony with the general purpose and intent of the zoning ordinance and will not adversely affect the general plan.

The determination of the Zoning Administrator shall be final except that appeals therefrom may be taken, as hereinafter provided, to the Board of Appeals, exclusively and notwithstanding any other provisions of this Charter, by any person aggrieved or by any office, agency, or department of the City and County. An appeal from a determination of the Zoning Administrator shall be filed with the Board of Appeals within ten days from the date of such determination. Upon making a ruling or determination upon any matter under his or her jurisdiction, the Zoning Administrator shall thereupon furnish a copy thereof to the applicant and to the Director of Planning. No variance granted by the Zoning Administrator shall become effective until ten days thereafter. An appeal shall stay all proceedings in furtherance of the action appealed from.

CONDITIONAL USE. The Commission shall have the power to hear and decide conditional use applications. An appeal may be taken to the Board of Supervisors from a decision of the Commission to grant or deny a conditional use application. The Board of Supervisors may disapprove the decision of the Commission by a vote of not less than two-thirds of the members of the Board.

SEC. 4.107. HUMAN RIGHTS COMMISSION.

The Human Rights Commission shall consist of eleven members appointed by the Mayor, *pursuant to Section 3.100*; for four-year terms. *Members may be removed by the Mayor.*

The Commission shall:

1. Investigate complaints of unlawful discrimination against any person;
2. Ensure the civil rights of all persons;
3. Ensure that the affirmative action plans of each department of the City and County are current and are being properly implemented; and report on the implementation of such affirmative action plans to the Mayor and Board of Supervisors;
4. Promote understanding among the residents of the City and County and work cooperatively with governmental agencies, community group and others to eliminate discrimination and the results of past discrimination by furnishing information, guidance and technical

assistance;

5. Study, investigate, mediate and make recommendations with respect to the solving of community- wide problems resulting in intergroup tensions and discrimination;

6. Implement the provisions of ordinances prohibiting discrimination in all contracts and subsequent subcontracts, franchises, leases, concessions or other agreements for or on behalf of the City and County; and

7. Issue such rules and regulations for the conduct of its business, and prepare such ordinances with respect to human rights for consideration by the Board of Supervisors as are necessary to carry out the purposes of this section.

In performing its duties, the Commission may hold hearings, issue subpoenas to require witnesses to appear and require the production of evidence, administer oaths, take testimony and issue appropriate orders and petitions for court orders in such manner as may be prescribed by law.

SEC. 4.108. FIRE COMMISSION.

The Fire Commission shall consist of five members appointed by the Mayor; ~~pursuant to Section 3.100;~~ for four-year terms. ~~Members may be removed by the Mayor.~~ In addition to any other powers set forth in this Charter, the Fire Commission is empowered to prescribe and enforce any reasonable rules and regulations that it deems necessary to provide for the efficiency of the Department, provided that the civil service and ethics provisions of this Charter shall control in the event of any conflict with rules adopted under this section.

SEC. 4.109. POLICE COMMISSION.

The Police Commission shall consist of seven members appointed pursuant to this section. The Mayor shall nominate four members to the commission, at least one of whom shall be a retired judge or an attorney with trial experience. The Rules Committee of the Board of Supervisors, or any successor committee thereto, shall nominate three other members to the commission. Each nomination shall be subject to confirmation by the Board of Supervisors, and the Mayor's nominations shall be the subject of a public hearing and vote within 60 days. If the Board of Supervisors rejects the Mayor's nomination to fill the seat designated for a retired judge or attorney with trial experience, the Mayor shall nominate a different person with such qualifications. If the Board of Supervisors fails to act on a mayoral nomination within 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors, the nominee shall be deemed confirmed. Appointments to fill a vacancy on the commission shall become operative on the date the Board of Supervisors adopts a motion confirming the nomination, or on the 61st day following the date a mayoral nomination is transmitted to the Clerk of the Board of Supervisors if the Board of Supervisors fails to vote on the nomination prior to such date. Confirmations of nominations to fill a vacancy that will be created upon the expiration of a sitting member's term shall become operative upon the expiration of the sitting member's term, or, if the Board of Supervisors fails to act on a mayoral nomination to fill such anticipated vacancy, on the 61st day following the date the nomination was transmitted to the Clerk of the Board of Supervisors or on the expiration of the sitting member's term, whichever occurs later. The terms and tenures of all members sitting on the commission as of the effective date of the amendments to this section approved at the November 2003 election shall terminate at 12 noon on April 30, 2004. To stagger the terms of the seven members thereafter, of the first four members nominated by the Mayor, two members shall serve terms of two years and two members shall serve terms of four years, and of the three members nominated by the Rules Committee, one member shall serve a term of one year, one member shall serve a term of two years, and one member shall serve a term of three years. The Clerk of the Board of Supervisors shall designate such initial terms by lot. All subsequent appointments to the commission

shall be for four-year terms.

The tenure of each member shall terminate upon the expiration of the member's term. The Mayor shall transmit a nomination or renomination to the Clerk of the Board of Supervisors no later than 60 days prior to the expiration of the term of a member nominated by the Mayor. For vacancies occurring for reasons other than the expiration of a member's term, within 60 days following the creation of such vacancy, the Mayor shall nominate a member to fill such vacancy if the vacancy is for a seat filled by nomination of the Mayor.

The District Attorney, Sheriff and Public Defender may recommend persons to the Mayor and Board of Supervisors for nomination or appointment to the Police Commission.

~~The Mayor, with the consent of the Board of Supervisors, may remove a member the Mayor has nominated. The Board of Supervisors may remove a member the Rules Committee has nominated.~~

~~Notwithstanding any other provision of the Charter, the Chief of Police may be removed by the Commission or the Mayor, acting jointly or separately of each other.~~ In addition to any other powers set forth in this Charter, the Police Commission is empowered to prescribe and enforce any reasonable rules and regulations that it deems necessary to provide for the efficiency of the Department, provided that the civil service and ethics provisions of this Charter shall control in the event of any conflict with rules adopted under this section.

SEC. 4.110. HEALTH COMMISSION.

The Health Commission shall consist of seven members appointed by the Mayor, ~~pursuant to Section 3.100;~~ for four-year terms. The Commission shall have less than a majority of direct care providers. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~ The Commission shall control the property under its jurisdiction.

The Commission and the Department shall manage and control the City and County hospitals, emergency medical services, and in general provide for the preservation, promotion and protection of the physical and mental health of the inhabitants of the City and County, except where the Charter grants such authority to another officer or department. The Commission and the Department may also determine the nature and character of public nuisances and provide for their abatement.

SEC. 4.111. HUMAN SERVICES COMMISSION.

The Human Services Commission shall consist of five members appointed by the Mayor, ~~pursuant to Section 3.100;~~ for four-year terms. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

SEC. 4.112. PUBLIC UTILITIES COMMISSION.

(a) The Public Utilities Commission shall consist of five members appointed by the Mayor, subject to confirmation by a majority of the Board of Supervisors. Each of the members shall serve for a term of four years. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

(b) Seat 1 on the Commission shall be a member with experience in environmental policy and an understanding of environmental justice issues. Seat 2 shall be a member with experience in ratepayer or consumer advocacy. Seat 3 shall be a member with experience in project finance. Seat 4 shall be a member with expertise in water systems, power systems, or public utility management, and Seat 5 shall be an at-large member.

(c) The respective terms of office of members of the Public Utilities Commission who old office on August 1, 2008 shall expire at noon on that date, and the members appointed pursuant to the amendments to this Section approved at the June 2008 election shall succeed to said office at that time. In order to provide for staggered terms, the members appointed to Seats 2 and 4 shall serve for an initial term of two years from August 1, 2008. The remaining three members appointed to Seats 1, 3, and 5 shall serve for an initial term of four years

from August 1, 2008, and thereafter the terms of all members shall be four years.

(d) The Commission shall have charge of the construction, management, supervision, maintenance, extension, operation, use and control of all water and energy supplies and utilities of the City as well as the real, personal and financial assets, which are under the Commission's jurisdiction on the operative date of this Charter, or assigned pursuant to Section 4.132.

SEC. 4.113. RECREATION AND PARK COMMISSION.

The Recreation and Park Commission shall consist of seven members appointed by the Mayor, ~~pursuant to Section 3.100~~; for four-year terms. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

Pursuant to the policies and directives set by the Commission and under the direction and supervision of the General Manager, the Recreation and Park Department shall manage and direct all parks, playgrounds, recreation centers and all other recreation facilities, avenues and grounds under the Commission's control or placed under its jurisdiction thereafter, unless otherwise specifically provided in this Charter.

The Department shall promote and foster a program providing for organized public recreation of the highest standard.

The Department shall issue permits for the use of all property under the Commission's control, pursuant to the policies established by the Commission.

As directed by the Commission, the Department shall administer the Park, Recreation and Open Space Fund pursuant to Section 16.107 of this Charter.

The Department shall have the power to construct new parks, playgrounds, recreation centers, recreation facilities, squares and grounds, and to erect and maintain buildings and structures on parks, playgrounds, square, avenues and grounds, except as follows:

1. No building or structure, except for nurseries, equipment storage facilities and comfort stations, shall be erected, enlarged or expanded in Golden Gate Park or Union Square Park unless such action has been approved by a vote of two-thirds of the Board of Supervisors;

2. No park land may be sold or leased for non-recreational purposes, nor shall any structure on park property be built, maintained or used for non-recreational purposes, unless approved by a vote of the electors. However, with permission of the Commission and approval by the Board of Supervisors, subsurface space under any public park, square or playground may be used for the operation of a public automobile parking station under the authority of the Department of Parking and Traffic, provided that the Commission determines that such a use would not be, in any material respect or degree, detrimental to the original purpose for which a park, square or playground was dedicated or in contravention of the conditions of any grant under which a park, square or playground might have been received. The revenues derived from any such use, less the expenses incurred by the Department of Parking and Traffic in operating these facilities, shall be credited to Recreation and Park Department funds.

3. The Commission shall have the power to lease or rent any stadium or recreation field under its jurisdiction for athletic contests, exhibitions and other special events and may permit the lessee to charge an admission fee.

SEC. 4.114. PORT COMMISSION.

The Port Commission shall consist of five members who shall be appointed by the Mayor, subject to confirmation by a majority of the Board of Supervisors. Each of the members shall serve for a term of four years. They shall be subject to recall, ~~suspension and removal~~ in the same manner as an elected official.

The Commission shall have the composition and organization, and the powers, duties and responsibilities with respect to the Port

that are set forth in the Burton Act, Statutes of 1968, Chapter 1333, as amended, and in the Agreement Relating to the Transfer of the Port of San Francisco from the State of California to the City and County, executed on the 24th day of January 1969.

The Commission shall be subject to the provisions of Sections 4.101 through 4.103 of this Charter, so far as those powers and duties are not inconsistent with the Burton Act and the Transfer Agreement as they are referred to in the above paragraph.

SEC. 4.115. AIRPORT COMMISSION.

The Airport Commission shall consist of five members appointed by the Mayor, ~~pursuant to Section 3.100~~; for four-year terms. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

The Commission shall provide the Mayor with at least three qualified candidates for Director of Airports, related on the basis of executive, administrative and technical qualifications.

The Commission shall have charge of the construction, management, supervision, maintenance, extension, operation, use and control of all property, as well as the real, personal and financial assets which are under the Commission's jurisdiction.

Subject to the approval, amendment or rejection of the Board of Supervisors of each issue, the Commission shall have exclusive authority to plan and issue revenue bonds for airport-related purposes.

SEC. 4.117. ENTERTAINMENT COMMISSION.

The San Francisco Entertainment Commission shall consist of seven members nominated and appointed pursuant to this section. The Mayor shall nominate four members to the commission, and the Board of Supervisors shall appoint, by motion, three other members to the commission. Each nomination of the Mayor shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days. If the Board of Supervisors fails to act on a mayoral nomination within 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors, the nominee shall be deemed approved. Appointments to the commission shall become effective on the date the Board of Supervisors adopts a motion approving the nomination or on the 61st day following the date the mayoral nomination was transmitted to the Clerk of the Board of Supervisors if the Board of Supervisors fails to act upon the nomination prior to such date.

Of the four members nominated by the Mayor, the Mayor shall nominate one member to represent the interests of City neighborhood associations or groups, one member to represent the interests of entertainment associations or groups, one member to represent the interests of the urban planning community, and one member to represent the interests of the law enforcement community. Of the three members of the commission appointed by the Board of Supervisors, one member shall represent the interests of City neighborhood associations or groups, one member shall represent the interests of entertainment associations or groups, and one member shall represent the interests of the public health community.

To stagger the terms of the members, the initial appointments to the commission shall be as follows: the Mayor shall nominate two members to serve terms of four years, one member to serve a term of three years, and one member to serve a term of two years. Of the three remaining members of the commission, the Board of Supervisors shall appoint one member to serve a term of four years, one member to serve a term of three years, and one member to serve a term of two years. Except for appointments to fill a vacancy, all subsequent appointments shall be for a term of four years.

~~Members of the commission nominated by the Mayor may be suspended by the Mayor and removed by the Board of Supervisors only as set forth in Section 15.105. Members of the commission appointed directly by the Board of Supervisors may be suspended by a motion of the Board of Supervisors approved by six votes and may be removed by~~

the Board of Supervisors only as set forth in Section 15.105.

Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Executive Director, who shall serve as the department head of the Entertainment Commission.

SEC. 4.118. COMMISSION ON THE ENVIRONMENT.

The Commission on the Environment shall consist of seven members appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. ~~Members may be removed by the Mayor.~~

The Department of the Environment shall regularly produce an assessment of San Francisco's environmental condition. It shall also produce and regularly update plans for the long-term environmental sustainability of San Francisco.

Pursuant to the policies and directives set by the Commission, and under the supervision and direction of the department head, the Department shall manage the environmental programs, duties and functions assigned to it pursuant to Section 4.132 or by ordinance.

The Commission shall have the authority to review and make recommendations on any policy proposed for adoption by any City agency regarding conformity with the long-term plans for environmental sustainability, except for those regarding building and land use.

The Commission may investigate and make recommendations to all City agencies related to operations and functions, such as:

1. Solid waste management;
2. Recycling;
3. Energy conservation;
4. Natural resource conservation;
5. Environmental inspections;
6. Toxics;
7. Urban forestry and natural resources;
8. Habitat restoration; and
9. Hazardous materials.

The Commission shall conduct public education and outreach to the community on environmental issues, including, but not limited to each of the categories listed above.

SEC. 4.119. COMMISSION ON THE STATUS OF WOMEN.

The Commission on the Status of Women shall consist of seven members. Commission members shall be appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~ The Commission shall develop and recommend policies and practices for the City and County to reduce the particular impacts on women and girls of problems such as domestic violence, sexual harassment, employment and health care inequity, and homelessness, as well as advocate on behalf of women and girls in such areas. The Commission may be assigned additional duties and functions by ordinance or pursuant to Section 4.132.

SEC. 4.120. DISABILITY AND AGING SERVICES COMMISSION.

(a) The Disability and Aging Services Commission shall consist of seven members appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. ~~Members may be removed by the Mayor.~~ The Commission shall oversee the Department of Disability and Aging Services, including the functions of the Public Guardian/Administrator, as well as carry out any additional duties and functions assigned to the Commission by ordinance or pursuant to Section 4.132.

(b) As of January 15, 2020, Seat 1 on the Commission shall be held by a person who is 60 years old or older; Seat 2 shall be held by a person with a disability, as defined under the Americans With Disabilities Act, who is 18 years old or older; and Seat 3 shall be held by a person who served in the United States military and who was discharged or released under conditions other than dishonorable. Seats 4, 5, 6, and 7, shall have no required qualifications in addition to those

set forth in Section 4.101.

(c) For the purpose of calculating the terms of particular seats on the Commission, Seats 1, 2, and 3 are hereby designated as the seats with terms ending on January 15, 2020. Notwithstanding Charter Section 4.101.5, members in those seats who do not as of January 15, 2020 hold the qualifications set forth in subsection (b) respectively may no longer serve in those seats.

SEC. 4.121. BUILDING INSPECTION COMMISSION.

The Building Inspection Commission shall consist of seven members nominated and appointed pursuant to this Section 4.121 and with an emphasis on seeking to include members concerned with tenant safety and habitability issues. Four members shall be nominated by the Mayor for a term of two years. Three members shall be nominated by the President of the Board of Supervisors for a term of two years. Two of the four Mayoral appointments shall each have one or more of the following qualifications: be an active, formerly active, or retired structural engineer, architect, or residential builder. One of the three Board President appointments shall have one or more of the following qualifications: be a residential tenant or work or have worked for a non-profit housing organization.

Each nomination of the Mayor and the President of the Board of Supervisors is subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days. If the Board fails to act on the nomination within 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or after 60 days of the date the nomination is transmitted to the Clerk of the Board of Supervisors. ~~Members may be removed by the appointing officer only pursuant to Section 15.105. Vacancies occurring in the offices of members, shall be nominated and appointed in accordance with the appointment process specified in this paragraph.~~

The Building Inspection Commission shall have responsibility for oversight of the Department of Building Inspection, which shall have responsibility for the enforcement, administration, and interpretation of the San Francisco Housing, Building, Mechanical, Electrical, and Plumbing Codes, except where this Charter specifically grants that power to another department. *Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Director, who shall serve as the department head of the Department of Building Inspection.*

The Commission shall oversee the inspection and regulation of additions, alterations, and repairs in all buildings and structures covered by the San Francisco Housing, Building, Mechanical, Electrical, and Plumbing Codes. However, nothing in this Section 4.121 shall diminish or alter the jurisdiction of the Planning Commission or Department over changes of use or occupancy under the Planning Code. The Commission shall ensure the provision of minimum standards to safeguard life or limb, health, property, and the public welfare by regulating and controlling the safe use of such buildings and structures. The Commission shall ensure the vigorous enforcement of City laws mandating the provision of heat and hot water to residential tenants. The Commission shall also ensure the enforcement of local, state, and federal disability access laws. The Commission shall exercise all the powers and duties of boards and commissions set forth in Sections 4.102, 4.103, and 4.104, and may take other actions as prescribed by ordinance. The members of the Commission shall serve without compensation.

The Commission shall adopt rules and regulations consistent with fulfilling its responsibilities under this Charter. The Commission shall also adopt rules and regulations governing Commission meetings and also adopt requirements for notification and mailing for Commission business. The Commission shall hold public hearings on all proposed

amendments to the San Francisco Building Code, Electrical Code, Housing Code, Plumbing Code, and Mechanical Code.

The Commission shall constitute the Abatement Appeals Board, and shall assume all powers granted to this entity under this Charter and the San Francisco Building Code. The Commission shall appoint and may remove at its pleasure members of the Board of Examiners, Access Appeals Commission, and Code Advisory Committee, all of which shall have the powers and duties to the extent set forth in the San Francisco Building Code.

The Commission may reverse, affirm, or modify determinations made by the Department of Building Inspection on all permits required for a final certificate of completion. The Commission's jurisdiction under this paragraph, however, shall not extend to permits appealable to the Planning Commission or Board of Appeals. Appeals of decisions within the Commission's jurisdiction must be filed with the Commission within fifteen days of the challenged determination. The Commission's action shall be final.

SEC. 4.126. DEPARTMENTS – GENERAL PROVISIONS.

Except as otherwise provided by this Charter, the responsibilities of each department within the executive branch shall be prescribed by ordinance.

The administration and management of each department within the executive branch shall be the responsibility of the department head. Such officials may:

1. Appoint qualified individuals to fill all positions within their departments which are exempt from the Civil Service provisions of this Charter;

2. Adopt rules and regulations governing matters within the jurisdiction of their respective departments, subject, if applicable, to Section 4.102; and

3. With the approval of the City Administrator, reorganize their respective departments.

No person serving on a board or commission created by state law to discharge a state function specifically within the City and County may be employed as a paid staff member to a board or commission created by this Charter.

SEC. 4.132. EXECUTIVE BRANCH REORGANIZATION.

(a) The Mayor, by issuing a notice to the Board of Supervisors, may reorganize duties and functions between or among departments and other units of government within the executive branch ("executive branch departments") as specified in subsection (d), in order to promote the effectiveness and efficiency of the executive branch and taking into account the special expertise and roles of said departments. A such reorganization shall become effective 30 days after its issuance the Clerk of the Board of Supervisors receives the Mayor's notice unless disapproved by the Board of Supervisors during that time. In the event an implementing ordinance is necessary to update the Municipal Code in accordance with the proposed reorganization, the Mayor may introduce said ordinance with the notice, and the notice and ordinance shall both be deemed approved by the Board of Supervisors unless the Board disapproves within 60 days.

(b) A proposed reorganization shall provide for the transfer of:

- (1) Civil service employees who are engaged in the performance of a function or duty transferred to another office, agency, or department; such transfer shall not adversely affect status, position, compensation, or pension or retirement rights and privileges;

- (2) Any unexpended balances of appropriations and other funds available for use in connection with any office, agency, department, or function affected by the reorganization; any unexpended balance so transferred shall be used only for the purpose for which the appropriation was originally made, except as this Charter otherwise permits.

(c) A reorganization under this Section 4.132 may transfer

certain duties and functions of an executive branch department to, or may consolidate an entire executive branch department ("former department") into, one or more other executive branch departments including the City Administrator ("receiving departments").

(1) When reorganizing executive branch departments whose duties and functions are specified in the Charter, the Mayor may transfer those duties and functions but may not eliminate those duties and functions either in whole or in part, and the receiving department(s) shall continue to perform all of those Charter-assigned duties and functions.

(2) If a duty or function is transferred to a receiving department that operates under a commission, then the reorganization may also transfer the corresponding oversight of the transferred duties and functions to that commission.

(3) If a reorganization will consolidate an entire department into a receiving department, then the head of the former department shall cease to be a department head, and the head of the receiving department shall succeed to the powers, functions, and duties of the head of the former department; and if the Charter or federal or state law impose legal qualifications on the head of the former department or other person performing the transferred powers, functions, or duties, then the head of the receiving department either shall meet those qualifications or shall designate a qualified person to perform and oversee the specific transferred powers, functions, or duties.

(d) This Section 4.132 shall apply to all executive branch departments created by ordinance (including voter-adopted ordinances); and to those that are specifically designated as within the executive branch under Articles III, IV, V, VII or VIII of the Charter. However, this Section 4.132 does not authorize the Mayor to transfer the duties and functions set forth in the Charter of the City Administrator, the Controller, the Board of Appeals, the Port, the Airport, the Asian Art Museum, and the Fine Art Museums. Consistent with Charter Sections 4.136 and 4.137, the Charter duties of the Department of Police Accountability shall not transfer to the Police Department, and the Charter duties of the Office of Sheriff's Inspector General shall not transfer to the Sheriff.

SEC. 4.133. HOMELESSNESS OVERSIGHT COMMISSION.

(a) There shall be a Homelessness Oversight Commission ("Commission") to oversee the Department of Homelessness and Supportive Housing ("Department"), or any successor agency. The Department shall, to the extent prescribed by ordinance, manage and direct housing, programs, and services for persons experiencing homelessness in the City, including, but not limited to, street outreach, homeless shelters, transitional housing, homelessness prevention, and permanent supportive housing. Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Director, who shall serve as the department head of the Department.

(b) The Commission shall consist of seven members, appointed as follows:

(1) Seats 1, 2, 3, and 4 shall be appointed by the Mayor subject to confirmation by the Board of Supervisors. Each nomination of the Mayor shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier. Seat 1 shall be held by a person who has personally experienced homelessness. Seat 2 shall be held by a person with significant experience providing services to or engaging in advocacy on behalf of persons experiencing homelessness. Seat 3 shall be held by a person with expertise in mental

health service delivery or substance use treatment. Seat 4 shall be held by a person with a record of participation in a merchants' or small business association, or neighborhood association. In addition to the aforementioned qualifications, at least one of the Mayor's appointees shall have experience in budgeting, finance, and auditing.

(2) Seats 5, 6, and 7 shall be appointed by the Board of Supervisors. Seat 5 shall be held by a person who has personally experienced homelessness. Seat 6 shall be held by a person with significant experience providing services to or engaging in advocacy on behalf of persons experiencing homelessness. Seat 7 shall be held by a person with significant experience working with homeless families with children and/or homeless youth.

(3) Section 4.101 shall apply to these appointments, with a particular emphasis on diversity in ethnicity, race, age, sex, gender identity, sexual orientation, and types of disabilities.

(c) Commission members shall serve at the pleasure of their respective appointing authorities and may be removed by their appointing authorities at any time. Vacancies shall be filled by the respective appointing authorities as prescribed in subsections (b)(1) and (2).

(d) Commissioners shall serve four-year terms, beginning at noon on May 1, 2023; provided, however, the term of the initial appointees in Seats 1, 4, and 6 shall be a two-year term, expiring at noon on May 1, 2025.

(e) The Commission shall elect a Chair, Vice-Chair, and officers for other such positions, if any, that it chooses to create.

(f) The Commission shall have the following powers and duties:

(1) With respect to the Department, the Commission shall exercise all of the powers and duties of boards and commissions as set forth in Sections 4.102, 4.103, and 4.104, *except Section 4.102(5)*, including but not limited to, approving applicable departmental budgets, formulating annual and long-term goals consistent with the overall objectives of the City and County, establishing departmental performance standards, holding hearings and taking testimony, conducting public education and outreach concerning programs and services for homeless persons in San Francisco, and issues concerning homelessness, and conducting performance audits of the Department to assess the efficiency and effectiveness of the Department's delivery of services to persons experiencing homelessness and persons participating in programs overseen by the Department, and the extent to which the Department has met the annual goals and performance standards established by the Commission.

(2) Notwithstanding the Commission's authority to review and set policies, the Commission shall not have the authority to approve, disapprove, or modify criteria used to ascertain eligibility or priority for programs and/or services operated or provided by the Department, where such criteria are required as a condition of the receipt of state or federal funding.

(g) The Mayor and the Board of Supervisors shall make their initial appointments to Seats 1-7, respectively, on the Commission by no later than noon, March 1, 2023. The Commission shall come into existence upon the appointment, and confirmation where required, of four members, or at noon on May 1, 2023, whichever is later. The Commission shall have its inaugural meeting within 30 days of its coming into existence.

SEC. 4.134. SMALL BUSINESS COMMISSION.

(a) There shall be a Small Business Commission to oversee the San Francisco Office of Small Business. The Commission shall consist of seven members, *who shall serve at the pleasure of the appointing authority*. The Mayor shall appoint four members of the Commission; the Board of Supervisors shall appoint the remaining three members. *The Mayor shall designate two of his or her initial appointments to serve for two-year terms; the Board of Supervisors*

shall designate one of its initial appointments to serve a two-year term. Thereafter, all commissioners shall serve for four-year terms.

(b) At least five of the individuals appointed to the Commission shall be owners, operators, or officers of San Francisco small businesses. One of the individuals appointed to the Commission may be either a current or former owner, operator, or officer of a San Francisco small business. One member of the Commission may be an officer or representative of a neighborhood economic development organization or an expert in small business finance.

Pursuant to Government Code Section 87103, individuals appointed to the Commission under this Section are intended to represent and further the interest of the particular industries, trades, or professions specified herein. Accordingly, it is found that for purposes of persons who hold such office, the specified industries, trades, or professions are tantamount to and constitute the public generally within the meaning of Government Code Section 87103.

(c) The Mayor and the Board of Supervisors shall select Commission members who reflect the diversity of neighborhood and small business interests in the City.

(d) *Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Director of the Office of Small Business, who shall serve as the department head of that Office.*

SEC. 4.135. HISTORIC PRESERVATION COMMISSION.

GENERAL. There is hereby created a Historic Preservation Commission, which shall advise the City on historic preservation matters, participate in processes that involve historic or cultural resources, and take such other actions concerning historic preservation as may be prescribed by ordinance. The Historic Preservation Commission shall consist of seven members nominated by the Mayor and subject to approval by a majority of the Board of Supervisors.

The term and tenure of all members sitting on the Landmarks Preservation Advisory Board, created under Article 10 of the Planning Code, as of the effective date of this section shall terminate on December 31, 2008. Of the original appointments to the Historic Preservation Commission, four shall be for a four-year term and three for a two-year term as follows; the odd-numbered seats shall be for four-year terms and the even-numbered seats shall be for two-year terms. After the expiration of the original terms, all appointments shall be for four-year terms, provided however, that a member may holdover until a successor has been nominated by the Mayor and approved by the Board of Supervisors. There shall be no limit on the number of terms a member may serve.

The original nominations shall be made no later than 31 days after the date of the election creating this section. If the Mayor fails to nominate an original appointment within said period, the nomination for the original appointment may be made by the President of the Board of Supervisors, subject to the approval of a majority of the Board of Supervisors.

Within 60 days of the expiration of a term or other vacancy the Mayor shall nominate a qualified person to fill the vacant seat for the term, or the remainder of the term, subject to approval by a majority of the Board of Supervisors who shall hold a public hearing and vote on the nomination within 60 days of the Mayor's transmittal of the nomination to the Clerk of the Board of Supervisors. If the Mayor fails to make such nomination within 60 days, the nomination may be made by the President of the Board of Supervisors, subject to the approval of a majority of the Board of Supervisors. The appointment shall become effective on the date the Board of Supervisors adopts a motion approving the nomination or after 60 days from the date the Mayor transmits the nomination to the Clerk of the Board of Supervisors if the Board of Supervisors fails to act.

Members may be removed by the appointing officer only pursuant to Section 15.105.

QUALIFICATIONS. In addition to the specific requirements set forth below, members of the Historic Preservation Commission shall be persons specially qualified by reason of interest, competence, knowledge, training and experience in the historic, architectural, aesthetic, and cultural traditions of the City, interested in the preservation of its historic structures, sites and areas, and residents of the City. Six of the members of the Historic Preservation Commission shall be specifically qualified in the following fields:

1. Seats 1 and 2: licensed architects meeting the Secretary of the Interior's Professional Qualifications Standards for historic architecture;
2. Seat 3: an architectural historian meeting the Secretary of the Interior's Professional Qualifications Standards for architectural history with specialized training and/or demonstrable experience in North American or Bay Area architectural history;
3. Seat 4: an historian meeting the Secretary of the Interior's Professional Qualifications Standards for history with specialized training and/or demonstrable experience in North American or Bay Area history;
4. Seat 5: an historic preservation professional or professional in a field such as law, land use, community planning or urban design with specialized training and/or demonstrable experience in historic preservation or historic preservation planning.
5. Seat 6 shall be specially qualified in one of the following fields or in one of the fields set forth for Seats 1, 2, or 3;
 - a. A professional archeologist meeting the Secretary of the Interior's Professional Qualification Standards for Archeology;
 - b. A real estate professional or contractor who has demonstrated a special interest, competence, experience, and knowledge in historic preservation;
 - c. A licensed structural engineer with at least four years of experience in seismic and structural engineering principals applied to historic structures; or
 - d. A person with training and professional experience with materials conservation.

Seat 7 shall be an at large seat subject to the minimum qualifications set forth above.

LANDMARK AND HISTORIC DISTRICT DESIGNATIONS. The Historic Preservation Commission shall have the authority to recommend approval, disapproval, or modification of landmark designations and historic district designations under the Planning Code to the Board of Supervisors. The Historic Preservation Commission shall send recommendations regarding landmarks designations to the Board of Supervisors without referral or recommendation of the Planning Commission. The Historic Preservation Commission shall refer recommendations regarding historic district designations to the Planning Commission, which shall have 45 days to review and comment on the proposed designation, which comments, if any, shall be forwarded to the Board of Supervisors together with the Historic Preservation Commission's recommendation. Decisions of the Historic Preservation Commission to disapprove designation of a landmark or historic district shall be final unless appealed to the Board of Supervisors.

CERTIFICATES OF APPROPRIATENESS. The Historic Preservation Commission shall approve, disapprove, or modify certificates of appropriateness for work to designated landmarks or within historic districts. For minor alterations, the Historic Preservation Commission may delegate this function to staff, whose decision may be appealed to the Historic Preservation Commission.

For projects that require multiple planning approvals, the Historic Preservation Commission must review and act on any Certificate of Appropriateness before any other planning approval action. For projects that (1) require a conditional use permit or permit review under Section 309, et seq., of the Planning Code and (2) do not concern

an individually landmarked property, the Planning Commission may modify any decision on a Certificate of Appropriateness by a 2/3 vote, provided that the Planning Commission shall apply all applicable historic resources provisions of the Planning Code.

For projects that are located on vacant lots, the Planning Commission may modify any decision on a Certificate of Appropriateness by a two-thirds vote, provided that the Planning Commission shall apply all applicable historic resources provisions of the Planning Code.

The Historic Preservation Commission or Planning Commission's decision on a Certificate of Appropriateness shall be final unless appealed to the Board of Appeals, which may modify the decision by a 4/5 vote; provided, however, that if the project requires Board of Supervisors approval or is appealed to the Board of Supervisors as a conditional use, the decision shall not be appealable to the Board of Appeals, but rather to the Board of Supervisors, which may modify the decision by a majority vote.

SIGNIFICANT OR CONTRIBUTORY BUILDING AND CONSERVATION DISTRICT DESIGNATIONS IN THE C-3 DISTRICTS. The Historic Preservation Commission shall have the authority to recommend approval, disapproval, or modification of Significant or Contributory building and Conservation District designations under the Planning Code to the Board of Supervisors. The Historic Preservation Commission shall send recommendations regarding Significant or Contributory Buildings to the Board of Supervisors without referral or recommendation of the Planning Commission. The Historic Preservation Commission shall refer recommendations regarding Conservation District designations to the Planning Commission, which shall have 45 days to review and comment on the proposed designation, which comments, if any, shall be forwarded to the Board of Supervisors together with the Historic Preservation Commission's recommendation. Decisions of the Historic Preservation Commission to disapprove designation of a Significant or Contributory building or Conservation District shall be final unless appealed to the Board of Supervisors.

ALTERATION OF SIGNIFICANT OR CONTRIBUTORY BUILDINGS OR BUILDINGS IN CONSERVATION DISTRICTS IN THE C-3 DISTRICTS. The Historic Preservation Commission shall have the authority to determine if a proposed alteration is a Major Alteration or a Minor Alteration. The Historic Preservation Commission shall have the authority to approve, disapprove, or modify applications for permits to alter or demolish designated Significant or Contributory buildings or buildings within Conservation Districts. For Minor Alterations, the Historic Preservation Commission may delegate this function to staff, whose decision may be appealed to the Historic Preservation Commission.

For projects that require multiple planning approvals, the Historic Preservation Commission must review and act on any permit to alter before any other planning approval action. For projects that (1) require a conditional use permit or permit review under Section 309, et seq., of the Planning Code and (2) do not concern a designated Significant (Categories I and II) or Contributory (Category III only) building, the Planning Commission may modify any decision on a permit to alter by a 2/3 vote, provided that the Planning Commission shall apply all applicable historic resources provisions of the Planning Code.

For projects that are located on vacant lots, the Planning Commission may modify any decision on a permit to alter by a two-thirds vote, provided that the Planning Commission shall apply all applicable historic resources provisions of the Planning Code.

The Historic Preservation Commission's or Planning Commission's decision on a permit to alter shall be final unless appealed to the Board of Appeals, which may modify the decision by a 4/5 vote; provided, however, that if the project requires Board of

Supervisors approval or is appealed to the Board of Supervisors as a conditional use, the decision shall not be appealable to the Board of Appeals, but rather to the Board of Supervisors, which may modify the decision by a majority vote.

MILLS ACT CONTRACTS. The Historic Preservation Commission shall have the authority to recommend approval, disapproval, or modification of historical property contracts to the Board of Supervisors, without referral or recommendation of the Planning Commission.

PRESERVATION ELEMENT OF THE GENERAL PLAN. The Historic Preservation Commission shall recommend to the Planning Commission a Preservation Element of the General Plan and shall periodically recommend to the Planning Commission proposed amendments to such Preservation Element of the General Plan. Other objectives, policies, and provisions of the General Plan and special area, neighborhood, and other plans designed to carry out the General Plan, and proposed amendments thereto, that are not contained within such Preservation Element but that concern historic preservation shall be referred to the Historic Preservation Commission for its comment and recommendations prior to action by the Planning Commission. When the Planning Commission recommends to the Board of Supervisors for approval or rejection proposed amendments to the General Plan that concern historic preservation, any recommendation or comments of the Historic Preservation Commission on such proposed amendments shall be forwarded to the Board of Supervisors for its information.

REFERRAL OF CERTAIN MATTERS. The following matters shall, prior to passage by the Board of Supervisors, be submitted for written report by the Historic Preservation Commission regarding effects upon historic or cultural resources: ordinances and resolutions concerning historic preservation issues and historic resources; redevelopment project plans; waterfront land use and project plans; and such other matters as may be prescribed by ordinance. If the Planning Commission is required to take action on the matter, the Historic Preservation Commission shall submit any report to the Planning Commission as well as to the Board of Supervisors; otherwise, the Historic Preservation Commission shall submit any report to the Board of Supervisors.

OTHER DUTIES. For proposed projects that may have an impact on historic or cultural resources, the Historic Preservation Commission shall have the authority to review and comment upon environmental documents under the California Environmental Quality Act and the National Environmental Policy Act. The Historic Preservation Commission shall act as the City's local historic preservation review commission for the purposes of the Certified Local Government Program, may recommend properties for inclusion in the National Register of Historic Places, and may review and comment on federal undertakings where authorized under the National Historic Preservation Act. The Historic Preservation Commission shall review and comment upon any agreements proposed under the National Historic Preservation Act where the City is a signatory prior to any approval action on such agreement. The Historic Preservation Commission shall have the authority to oversee and direct the survey and inventory of historic properties.

Once a quorum of members of the Historic Preservation Commission has been originally appointed and approved, the Historic Preservation Commission shall assume any powers and duties assigned to the Landmarks Preservation Advisory Board until the Municipal Code has been amended to reflect the creation of the Historic Preservation Commission.

BUDGET, FEES, DEPARTMENT HEAD, AND STAFF. The provisions of Charter subsections 4.102(3), 4.102(4), *and* 4.102(5); ~~and 4.102(6)~~ shall not apply to the Historic Preservation Commission. The Historic Preservation Commission may review and make

recommendations on the Planning Department budget and on any rates, fees, and similar charges with respect to appropriate items coming within the Historic Preservation Commission's jurisdiction to the department head of the Planning Department or the Planning Commission. The department head of the Planning Department shall assume the powers and duties that would otherwise be executed by an Historic Preservation Commission department head. The Planning Department shall render staff assistance to the Historic Preservation Commission.

SEC. 4.136. DEPARTMENT OF POLICE ACCOUNTABILITY.

(a) There shall be under the Police Commission a Department of Police Accountability ("DPA").

(b) ~~The Mayor shall appoint a nominee of the Police Commission as shall appoint~~ the Director of DPA, ~~subject to confirmation by the Board of Supervisors.~~ The Director shall serve at the pleasure of the Police Commission. ~~If the Board of Supervisors fails to act on the appointment within 30 days, the appointment shall be deemed approved. In the event the office is vacant, until the Mayor makes an appointment and that appointment is confirmed by the Board, the Police Commission shall appoint an interim Director who shall serve at the pleasure of the Police Commission.~~ The appointment of the Director shall be exempt from the civil service requirements of this Charter. The Director shall never have been a uniformed member or employee of the Police Department. ~~The As the department head, the~~ Director shall be the appointing officer under the civil service provisions of this Charter for the appointment, removal, or discipline of employees of DPA.

(c) The Police Commission shall have the power and duty to organize, reorganize, and manage DPA. Subject to the civil service provisions of this Charter, DPA shall include investigators and hearing officers. The staff of DPA shall consist of no fewer than one line investigator for every 150 sworn members. Whenever the ratio of investigators to police officers specified by this section is not met for more than 30 consecutive days, the Director shall have the power to hire, and the City Controller must pay, temporary investigators to meet such staffing requirements. No full-time or part-time employee of DPA shall have previously served as a uniformed member of the Police Department. Subject to rules of the Police Commission, the Director may appoint part-time hearing officers who shall be exempt from the civil service requirements of this Charter. Compensation of the hearing officers shall be at rates recommended by the Commission and established by the Board of Supervisors or by contract approved by the Board of Supervisors.

(d) DPA shall promptly, fairly, and impartially investigate all complaints regarding police use of force, misconduct or allegations that a member of the Police Department has not properly performed a duty, except those complaints which on their face clearly indicate that the acts complained of were proper and those complaints lodged by other members of the Police Department. DPA shall use its best efforts to conclude investigations of such complaints and, if sustained, transmit the sustained complaint to the Police Department within nine months of receipt thereof by DPA. If DPA is unable to conclude its investigation within such nine-month period, the Director, within such nine-month period, shall inform the Chief of Police of the reasons therefor and transmit information and evidence from the investigation as shall facilitate the Chief's timely consideration of the matter.

(e) DPA shall recommend disciplinary action to the Chief of Police on those complaints that are sustained. The Director, after meeting and conferring with the Chief of Police or his or her designee, may verify and file charges with the Police Commission against members of the Police Department arising out of sustained complaints; provided, that the Director may not verify and file such charges for a period of 60 days following the transmittal of the sustained complaint to the Police Department unless the Director issues a written determination

that the limitations period within which the member or members may be disciplined under Government Code Section 3304, as amended from time to time or any successor provisions thereto, may expire within such 60-day period and (1) the Chief of Police fails or refuses to file charges with the Police Commission arising out of the sustained complaint, (2) the Chief of Police or his or her designee fails or refuses to meet and confer with the Director on the matter, or (3) other exigent circumstances necessitate that the Director verify and file charges to preserve the ability of the Police Commission to impose punishment pursuant to Section A8.343.

(f) The Director shall schedule hearings before hearing officers when such is requested by the complainant or a member of the Police Department and, in accordance with rules of the Commission, such a hearing will facilitate the fact-finding process. The Board of Supervisors may provide by ordinance that DPA shall in the same manner investigate and make recommendations to the Chief of Police regarding complaints of misconduct by patrol special police officers and their uniformed employees.

(g) Nothing herein shall prohibit the Chief of Police or a commanding officer from investigating the conduct of a member of the Police Department under his or her command, or taking disciplinary or corrective action, otherwise permitted by this Charter, when such is warranted; and nothing herein shall limit or otherwise restrict the disciplinary powers vested in the Chief of Police and the Police Commission by other provisions of this Charter.

(h) DPA shall prepare in accordance with rules of the Commission monthly summaries of the complaints received and shall prepare recommendations quarterly concerning policies or practices of the Police Department which could be changed or amended to avoid unnecessary tension with the public or a definable segment of the public while insuring effective police services.

(i) DPA shall prepare a report for the President of the Board of Supervisors each quarter. This report shall include, but not be limited to, the number and type of complaints filed, the outcome of the complaints, and a review of the disciplinary action taken. The President of the Board of Supervisors shall refer this report to the appropriate committee of the Board of Supervisors charged with public safety responsibilities. Said committee may issue recommendations as needed.

(j) In carrying out its objectives, including the preparation of recommendations concerning departmental policies or practices referenced above, the investigations referenced above, and the audits noted below, DPA shall receive prompt and full cooperation and assistance from all departments, officers, and employees of the City and County, which shall, unless prohibited by state or federal law, promptly produce all records and information requested by DPA, including but not limited to (1) records relevant to Police Department policies or practices, (2) personnel and disciplinary records of Police Department employees, (3) criminal investigative and prosecution files, and (4) all records to which the Police Commission has access, regardless of whether those records pertain to a particular complaint. The DPA shall maintain the confidentiality of any records and information it receives to the extent required by state or federal law governing such records or information. The Director may also request and the Chief of Police shall require the testimony or attendance of any member of the Police Department to carry out the responsibilities of DPA. Nothing in this Section 4.136 is intended or shall be construed to interfere with the duties of the Sheriff or the District Attorney under state law, including their constitutional and statutory powers and duties under Government Code Section 25303, as amended from time to time or any successor provisions thereto, or other applicable state law or judicial decision.

(k) Every two years, DPA shall conduct a performance audit or review of police officer use of force and how the Police Department has handled claims of officer misconduct. DPA shall also have the authority

to conduct performance audits or reviews of whether Police Department personnel and management have complied with federal and state law, City ordinances and policies, and Police Department policies. The Director shall have the discretion to determine the frequency, topics, and scope of such performance audits or reviews. To the extent permitted by law, DPA shall also allow public access to information on the progress and disposition of claims of misconduct or use of force, and the results of the performance audits and reviews conducted by DPA.

(l) The DPA budget shall be separate from the budget of the Police Department. Notwithstanding Section 4.102(3), the Director shall submit DPA's proposed annual or two-year budget directly to the Mayor.

SEC. 4.137. SHERIFF'S DEPARTMENT OVERSIGHT.

(a) Establishment of Oversight Board.

(1) The Sheriff's Department Oversight Board ("SDOB") is hereby established. The SDOB shall consist of seven members. The Board of Supervisors shall appoint four members (to Seats 1, 2, 3, and 4), and the Mayor shall appoint three members (to Seats 5, 6, and 7). Seat 4 shall be held by a person with experience in labor representation.

(2) Members shall serve four-year terms, beginning at noon on March 1, 2021; provided, however, the term of the initial appointees to Seats 1, 3, and 5 shall expire at noon on March 1, 2023, whereas the term of the initial appointees to Seats 2, 4, 6, and 7 shall expire at noon on March 1, 2025.

(3) No person may serve more than three successive terms as a member. No person having served three successive terms may serve as a member until at least four years after the expiration of the third successive term. Service for a part of a term that is more than half the period of the term shall count as a full term; further, this subsection (a)(3) makes no distinction between the two-year terms referenced in subsection (a)(2) and four-year terms.

~~(4) Members may be removed from office only for official misconduct under Article XV.~~

(5) All members shall complete a training and orientation on custodial law enforcement, constitutional policing, and Sheriff's Department ("SFSD") policies and procedures, within 90 days of assuming office for their first term. The Sheriff or the Sheriff's designee shall prescribe the content of and shall administer the training and orientation regarding SFSD patrol and custodial law enforcement, policies and procedures. SFSD shall develop the training content based on guidelines recommended by the National Association of Civilian Oversight for Law Enforcement ("NACOLE") or successor association, the Bar Association of San Francisco or successor association, and/or the American Civil Liberties Union, and SFSD shall consult with the Department of Police Accountability, Public Defender, and the District Attorney in developing the training content.

(b) SDOB Powers and Duties. The SDOB shall:

(1) Appoint, and may remove, the Sheriff's Inspector General in the Office of Sheriff's Inspector General ("OSIG"), established in subsection (d).

(2) Evaluate the work of the OSIG, and may review the Sheriff's Inspector General's individual work performance.

(3) Compile, evaluate, and recommend law enforcement custodial and patrol best practices.

(4) Conduct community outreach and receive community input regarding SFSD operations and jail conditions, by holding public meetings and soliciting input from persons incarcerated in the City and County.

(5) Prepare and submit a quarterly report to the Sheriff and Board of Supervisors regarding the SDOB evaluations and outreach, and OSIG reports submitted to SDOB.

(6) By March 1 of each year, prepare and present to the Board of Supervisors or a committee designated by the President of the

Board, an annual report that includes a summary of SDOB evaluations and outreach, and OSIG reports submitted to SDOB, for the prior calendar year.

(c) In performing its duties, the SDOB may hold hearings, issue subpoenas to witnesses to appear and for the production of evidence, administer oaths, and take testimony.

(d) Establishment of Office of Sheriff's Inspector

General. There is hereby established the Office of Sheriff's Inspector General ("OSIG"), which shall be a department under the SDOB, and separate from the Sheriff's Department. The OSIG shall be headed by the Sheriff's Inspector General, appointed by the SDOB as set forth in subsection (b)(1). The Sheriff's Inspector General shall be exempt from civil service selection, appointment, and removal procedures.

(e) OSIG Powers and Duties. The OSIG shall:

(1) Receive, review, and investigate complaints against SFSD employees and SFSD contractors; provided, however, that the OSIG shall refer complaints alleging criminal misconduct to the District Attorney, and refer complaints alleging violations of ethics laws to the Ethics Commission.

(2) Investigate the death of any individual in the custody of the SFSD. The OSIG shall refer evidence of criminal misconduct regarding any death in custody to the District Attorney. Notwithstanding such a referral, the OSIG may continue to investigate a death in custody unless OSIG's investigation will interfere with a criminal investigation conducted by the District Attorney, or any law enforcement agency to which the District Attorney may refer the evidence of criminal misconduct.

(3) Recommend disciplinary action to the Sheriff where, following an investigation pursuant to subsection (e)(1) or (e)(2), the OSIG determines that an employee's actions or omissions violated law or SFSD policy; provide notice of and a copy of the recommendation, the reasons for the recommendation, and supporting records, to the extent permitted by State or federal law, to the employee; and make available to the public any records and information regarding OSIG's disciplinary recommendations to the extent permitted by State or federal law.

(4) Develop and recommend to the Sheriff an SFSD use of force policy and a comprehensive internal review process for all use of force and critical incidents.

(5) Prepare and submit a quarterly report to the Sheriff and the SDOB regarding OSIG investigations that includes the number and type of complaints under subsection (e)(1) filed; trend analysis; the outcome of the complaints; any determination that the acts or omissions of an employee or contractor, in connection with the subject matter of a complaint under subsection (e)(1), or a death in custody under subsection (e)(2), violated law or SFSD policy; the OSIG's recommendations, if any, for discipline; the outcome of any discipline recommendations; and the OSIG's policy recommendations under subsection (e)(4).

(6) Monitor SFSD operations, including the provision of services to incarcerated individuals, through audits and investigations, to ensure compliance with applicable laws and policies.

(f) In performing its duties, the OSIG may hold hearings, issue subpoenas to witnesses to appear and for the production of evidence, administer oaths, and take testimony. The OSIG also may request and the Sheriff shall require the testimony or attendance of any employee of the SFSD.

(g) Cooperation and Assistance from City Departments. In carrying out their duties, the SDOB and OSIG shall receive prompt and full cooperation and assistance from all City departments, officers, and employees, including the Sheriff and SFSD and its employees, which shall, unless prohibited by State or federal law, promptly produce all records and information requested by the SDOB or OSIG, including

but not limited to (1) personnel and disciplinary records of SFSD employees, (2) SFSD criminal investigative files, (3) health information pertaining to incarcerated individuals, and (4) all records and databases to which the SFSD has access, regardless of whether those records pertain to a particular complaint or incident. The Sheriff also shall, unless prohibited by State or federal law, allow the OSIG unrestricted and unescorted access to all facilities, including the jails. The SDOB and OSIG shall maintain the confidentiality of any records and information it receives or accesses to the extent required by local, State, or federal law governing such records or information.

In carrying out their duties, the SDOB and OSIG shall cooperate and collaborate with organizations that contract with SFSD to provide legal services to incarcerated individuals.

(h) **Budget and Staffing.** Subject to the fiscal, budgetary, and civil service provisions of the Charter, the OSIG staff shall include no fewer than one investigator for every 100 sworn SFSD employees. No SDOB or OSIG staff, including the Sheriff's Inspector General, shall have been employed previously by a law enforcement agency or a labor organization representing law enforcement employees.

(i) Nothing in this Section 4.137 shall prohibit, limit, or otherwise restrict the Sheriff or the Sheriff's designee from investigating the conduct of an employee or contractor of the SFSD, or taking disciplinary or corrective action permitted by City or State law.

(j) Nothing in this Section 4.137, including but not limited to subsections (f) and (g), is intended to or shall be interpreted to abrogate, interfere with, or obstruct the independent and constitutionally and statutorily designated duties of the Sheriff, including the Sheriff's duty to investigate citizens' complaints against SFSD personnel and the duty to operate and manage the jails, the California Attorney General's constitutional and statutory responsibility to oversee the Sheriff, or other applicable State law. In carrying out their duties, the SDOB and OSIG shall cooperate and coordinate with the Sheriff so that the Sheriff, the SDOB, and the OSIG may properly discharge their respective responsibilities.

SEC. 4.139. SANITATION AND STREETS COMMISSION.

(a) **Purpose.** There is hereby established a Sanitation and Streets Commission.

(b) Membership and Terms of Office.

(1) The Commission shall consist of five members, appointed as follows: Seats 1 and 2 shall be appointed by the Board of Supervisors. Seat 3 shall be appointed by the Controller subject to confirmation by the Board of Supervisors. Seats 4 and 5 shall be appointed by the Mayor subject to confirmation by the Board of Supervisors.

Each nomination of the Mayor and the Controller shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor or Controller. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier.

Qualifications for commissioners that are desirable, but not required, include a background or experience in cleaning and maintaining public spaces, urban forestry, urban design, construction, skilled crafts and trades, finance and audits, architecture, landscape architecture, engineering, or performance measurement and management.

(2) Members of the Commission shall serve four-year terms; provided, however, the term of the initial appointees in Seats 1 and 4 shall be two years.

~~—(3) Members may be removed at will by their respective~~

appointing officer.

(c) **Duties.** The Commission shall hold public hearings and set policies for the Department of Public Works (the “Department”) regarding sanitation standards and protocols, and maintenance of the public right of way. In addition, the Commission shall:

- (1) review and evaluate data regarding the condition of the public right of way, including but not limited to data collected by the Department and annual reports generated by the Controller; and
- (2) establish minimum standards of cleanliness for the public right of way, and set baselines for services to be administered by the Department to maintain cleanliness of the public right of way.

Notwithstanding Sections 4.102, 4.103, and 4.104 of this Charter, the Commission shall exercise only the powers set forth in this subsection (c), and the Public Works Commission shall exercise the oversight authority described in those sections over the Department of Public Works, as set forth in Section 4.141.

(d) **Transition following November 8, 2022 election.** The tenures and terms of members of the Commission on November 8, 2022 shall continue as provided in this Section 4.139.

SEC. 4.140. DEPARTMENT OF PUBLIC WORKS.

(a) **Responsibilities of Department.** There shall be a Department of Public Works (the “Department”). ~~On January 1, 2023, the Department shall assume the responsibilities of the Department of Sanitation and Streets as they existed on December 31, 2022, and shall retain the existing responsibilities of the Department of Public Works. The Department shall be headed by a Director of Public Works appointed by the Mayor as provided in Sections 3.100(19) and 4.102(5). Notwithstanding Section 4.102(5) of this Charter, the Mayor shall appoint and may remove the Director of Public Works, who shall serve as the department head of the Department.~~

Except as otherwise provided in the Charter or pursuant to Section 4.132, in addition to any other duties assigned by ordinance, the Department shall have the following duties: the design, building, repair, and improvement of the City’s infrastructure, including City-owned buildings and facilities and the public right of way; maintenance of the public right of way, including street sweeping, and litter abatement; the provision and maintenance of City trash receptacles and removal of illegal dumping and graffiti in the public right of way; and planting and maintenance of street trees pursuant to Section 16.129.

(b) Nothing in this Section 4.140 shall relieve property owners of their legal responsibilities set by City or State law, including as those laws may be amended in the future.

~~(c) Transition.~~

~~(1) Notwithstanding subsection (a), the Director of Public Works or person serving in an acting capacity as Director of Public Works on December 31, 2022, shall continue to serve in that capacity beginning on January 1, 2023. If at that time there is a person in an acting capacity serving as the Director of Public Works, or if at any time the position of Director of Public Works is vacant for any reason, the position shall be filled in accordance with the Charter provisions governing appointment of a department head. This subsection (c)(1) does not modify the powers vested in the Public Works Commission to remove the Director of Public Works in accordance with Section 4.102(6).~~

~~(2) By no later than June 30, 2023, the Director of Public Works shall submit to the Board of Supervisors a proposed ordinance amending the Municipal Code to conform to Sections 4.139, 4.140, and 4.141 and the repeal of Section 4.138.~~

SEC. 4.141. PUBLIC WORKS COMMISSION.

(a) **Purpose.** There is hereby established a Public Works Commission.

(b) **Membership and Terms of Office.**

- (1) The Commission shall consist of five members,

appointed as follows:

Seats 1 and 5 shall be appointed by the Board of Supervisors. Seats 2 and 4 shall be appointed by the Mayor subject to confirmation by the Board of Supervisors. Seat 3 shall be appointed by the Controller subject to confirmation by the Board of Supervisors.

Each nomination of the Mayor and the Controller shall be subject to approval by the Board of Supervisors, and shall be the subject of a public hearing and vote within 60 days of the date the Clerk of the Board receives notice of the nomination from the Mayor or Controller. If the Board fails to act on the nomination within those 60 days, the nominee shall be deemed approved. The appointment shall become effective on the date the Board adopts a motion approving the nomination or on the 61st day after the Clerk of the Board receives notice of the nomination, whichever is earlier.

Qualifications for commissioners that are desirable, but not required, include a background or experience in cleaning and maintaining public spaces, urban forestry, urban design, construction, skilled crafts and trades, finance and audits, architecture, landscape architecture, engineering, or performance measurement and management.

(2) Members of the Commission shall serve four-year terms; provided, however, the term of the initial appointees in Seats 1, 3, and 5 shall be two years.

~~(3) Commissioners may be removed from office at will by their respective appointing authority.~~

(c) **Powers and Duties.** With regard to the Department of Public Works, the Commission shall exercise all the powers and duties of boards and commissions set forth in Sections 4.102, 4.103, and 4.104, except for Section 4.102(5) and the authority conferred on the Sanitation and Streets Commission in Section 4.139, and may take other actions as prescribed by ordinance.

~~(d) Transition following November 8, 2022 election. The tenures and terms of members of the Commission on November 8, 2022 shall continue as provided in this Section 4.141.~~

SEC. 5.102. CITY MUSEUMS.

When the term “museums” is used in this Article V, unless otherwise specified, it refers to both the Asian Art Museum of San Francisco and The Fine Arts Museums of San Francisco.

Trustees and commissioners of the museums are exempt from the requirements of Section 4.101(2b) of this Charter, except that at least a majority of The Fine Arts Museums Board of Trustees shall be residents of the City and County. Members shall serve for three-year terms ~~and may be removed by the Mayor only pursuant to Section 15.105.~~ Members shall serve without compensation.

The governing boards of the museums shall adopt by-laws providing for the conduct of their affairs, including the appointment of an executive committee which shall have authority to act in such matters as are specified by the governing board.

The governing boards of the museums shall appoint and may remove a director and such other executive and administrative positions as may be necessary. Appointees to such positions need not be residents of the City and County. Notwithstanding any other provision of this Charter, the governing boards may accept and utilize contributions to supplement or pay for the salaries and benefits of these appointees in order to establish competitive compensation, provided that only compensation established pursuant to the salary provisions of this Charter shall be considered for Retirement System purposes.

The governing boards of the museums may insure any loaned exhibit and agree to indemnification and binding arbitration provisions necessary to insuring exhibitions without action of the Board of Supervisors so long as such agreement entails no expense to the City and County beyond ordinary insurance expense. The Recreation and Park Department shall maintain and care for the grounds of the

Museums.

SEC. 5.103. ARTS COMMISSION.

The Arts Commission shall consist of fifteen members appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. Eleven members shall be practicing arts professionals including two architects, a landscape architect, and representatives of the performing, visual, literary and media arts; and four members shall be lay members. The President of the Planning Commission, or a member of the Commission designated by the President, shall serve ex officio. ~~Members may be removed by the Mayor.~~

~~The Commission shall appoint and may remove a director of the department.~~ The Commission shall encourage artistic awareness, participation, and expression; education in the arts; assist independent local groups with the development of their own programs; promote the employment of artists and those skilled in crafts, in the public and private sectors; provide liaison with state and federal agencies to ensure increased funding for the arts from these agencies as well as represent arts issues and policy in the respective governmental bodies; promote the continued availability of living and working space for artists within the City and County; and enlist the aid of all City and County governmental units in the task of ensuring the fullest expression of artistic potential by and among the residents of San Francisco.

In furtherance of the foregoing the Arts Commission shall:

1. Approve the designs for all public structures, any private structure which extends over or upon any public property and any yards, courts, set-backs or usable open spaces which are an integral part of any such structures;
2. Approve the design and location of all works of art before they are acquired, transferred or sold by the City and County, or are placed upon or removed from City and County property, or are altered in any way; maintain and keep an inventory of works of art owned by the City and County; and maintain the works of art owned by the City and County;
3. Promote a neighborhood arts program to encourage and support an active interest in the arts on a local and neighborhood level, assure that the City and County-owned community cultural centers remain open, accessible and vital contributors to the cultural life of the City and County, establish liaison between community groups and develop support for neighborhood artists and arts organizations; and
4. Supervise and control the expenditure of all appropriations made by the Board of Supervisors for the advancement of the visual, performing or literary arts.

Nothing in this section shall be construed to limit or abridge the powers or exclusive jurisdiction of the charitable trust departments or the California Academy of Sciences or the Library Commission over their activities; the land and buildings set aside for their use; or over the other assets entrusted to their care.

SEC. 5.106. WAR MEMORIAL AND PERFORMING ARTS CENTER.

The governing board of the War Memorial and Performing Arts Center shall consist of eleven trustees appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. In making appointments the Mayor shall give due consideration to veterans and others who have a special interest in the purposes for which the Center exists. ~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

~~The governing board shall appoint and may remove a director.~~

SEC. 7.102. JUVENILE PROBATION.

The Juvenile Probation Commission shall consist of seven members who shall be appointed by the Mayor, ~~pursuant to Section 3.100~~, for staggered four-year terms. Two of the members shall be appointed from lists of eligibles submitted to the Mayor by the Superior Court. The Juvenile Probation Department shall be a part of the executive branch.

~~Members may be removed by the Mayor only pursuant to Section 15.105.~~

Any member may serve concurrently as a member of the Juvenile Justice Commission created by state law and as a member of the Juvenile Probation Commission herein created.

The Chief Juvenile Probation Officer, assistants and deputies shall have the powers and duties conferred upon such Chief Juvenile Probation Officers, assistants and deputies by state law; and they shall perform all of the duties prescribed by such laws, and such additional duties as may be prescribed by ordinances of the Board of Supervisors.

SEC. 8.102. PUBLIC LIBRARIES.

Libraries including the Library Commission and the Library Department shall be a part of the executive branch.

The Commission shall consist of seven members appointed by the Mayor, ~~pursuant to Section 3.100~~, for four-year terms. ~~Members may be removed by the Mayor.~~

SEC. 8A.102. GOVERNANCE AND DUTIES.

(a) The Agency shall be governed by a board of seven directors appointed by the Mayor and confirmed after public hearing by the Board of Supervisors. ~~All initial appointments must be made by the Mayor and submitted to the Board of Supervisors for confirmation no later than February 1, 2000. The Board of Supervisors shall act on those initial appointments no later than March 1, 2000 or those appointments shall be deemed confirmed.~~

At least four of the directors must be regular riders of the Municipal Railway, and must continue to be regular riders during their terms. The directors must possess significant knowledge of, or professional experience in, one or more of the fields of government, finance, or labor relations. At least two of the directors must possess significant knowledge of, or professional experience in, the field of public transportation. During their terms, all directors shall be required to ride the Municipal Railway on the average once a week.

Directors shall serve four-year terms, ~~provided, however, that two of the initial appointees shall serve for terms ending March 1, 2004, two for terms ending March 1, 2003, two for terms ending March 1, 2002, and one for a term ending March 1, 2001. Initial terms shall be designated by the Mayor.~~ No person may serve more than three terms as a director. ~~A director may be removed only for cause pursuant to Article XV.~~ The directors shall annually elect a chair. The chair shall serve as chair at the pleasure of the directors. Directors shall receive reasonable compensation for attending meetings of the Agency which shall not exceed the average of the two highest compensations paid to the members of any board or commission with authority over a transit system in the nine Bay Area counties.

(b) The Agency shall:

1. Have exclusive authority over the acquisition, construction, management, supervision, maintenance, extension, operation, use, and control of all property, as well as the real, personal, and financial assets of the Agency; and have exclusive authority over contracting, leasing, and purchasing by the Agency, provided that any Agency contract for outside services shall be subject to Charter Sections 10.104(12) and 10.104(15) and that the Agency may not transfer ownership of any of the real property of the City and County without approval from the Board of Directors and the Board of Supervisors;

2. Have exclusive authority to enter into such arrangements and agreements for the joint, coordinated, or common use with any other public entity owning or having jurisdiction over rights-of-way, tracks, structures, subways, tunnels, stations, terminals, depots, maintenance facilities, and transit electrical power facilities;

3. Have exclusive authority to make such arrangements as it deems proper to provide for the exchange of transfer privileges, and through-ticketing arrangements, and such arrangements

shall not constitute a fare change subject to the requirements of Sections 8A.106 and 8A.108;

4. Notwithstanding any restrictions on contracting authority set forth in the Administrative Code, have exclusive authority to enter into agreements for the distribution of transit fare media and media for the use of parking meters or other individual parking services;

5. Have exclusive authority to arrange with other transit agencies for bulk fare purchases, provided that if passenger fares increase as a result of such purchases, the increase shall be subject to review by the Board of Supervisors pursuant to Sections 8A.106 and 8A.108;

6. Notwithstanding Section 2.109, and except as provided in Sections 8A.106 and 8A.108, have exclusive authority to fix the fares charged by the Municipal Railway, rates for off-street and on-street parking, and all other, rates, fees, fines, penalties and charges for services provided or functions performed by the Agency;

7. Notwithstanding any provision of the San Francisco Municipal Code (except requirements administered by the Department of Public Works governing excavation, street design and official grade) have exclusive authority to adopt regulations that control the flow and direction of motor vehicle, bicycle and pedestrian traffic, including regulations that limit the use of certain streets or traffic lanes to categories of vehicles and that limit the speed of traffic; and to design, select, locate, install, operate, maintain and remove all official traffic control devices, signs, roadway features and pavement markings that control the flow of traffic with respect to streets and highways within City jurisdiction, provided that:

(i) Notwithstanding the authority established in subsection 7, the Board of Supervisors may by ordinance establish procedures by which the public may seek Board of Supervisors review of any Agency decision with regard to the installation or removal of a stop sign or the creation or elimination of a bicycle lane. In any such review, the Agency's decision shall stand unless the Board of Supervisors reverses the decision of the Agency not later than 60 days after submission of a request to the Board of Supervisors.

(ii) Nothing in this subsection 7 shall modify the authority of ISCOTT, or any successor body, over the temporary use or occupancy of public streets, or the authority of the Board of Supervisors to hear appeals regarding the temporary use or occupancy of public streets.

(iii) Nothing in subsection 7 shall modify the power of the Board of Supervisors to establish civil offenses, infractions and misdemeanors.

(iv) Notwithstanding the authority established in subsection 7, to the extent state law contemplates that Agency action authorized by subsection 7 be effectuated by ordinance, such action shall be effectuated by resolution of the Board of Directors and shall be subject to referendum in accordance with Article 14, and, if a referendum petition contains the requisite number of signatures, the Board of Supervisors shall have the power to reconsider or repeal the action as provided in Article 14.

8. Have exclusive authority to adopt regulations limiting parking, stopping, standing or loading as provided by state law and to establish parking privileges and locations subject to such privileges for categories of people or vehicles as provided by state law; to establish parking meter zones, to set parking rates, and to select, install, locate and maintain systems and equipment for payment of parking fees, provided that:

(i) Notwithstanding the authority established in subsection 8, the Board of Supervisors may by ordinance establish procedures by which the public may seek Board of Supervisors review of any Agency decision with regard to the creation or elimination of any preferential parking zone, the creation or elimination of any parking

meter zone, the adoption of any limitation on the time period for which a vehicle may be parked, or reservation of any parking space for persons with a disability that qualifies for parking privileges under state law. In any review of a decision of the Agency pursuant to this section, the Agency's decision shall stand unless the Board of Supervisors reverses the decision of the Agency not later than 60 days after submission of a request to the Board of Supervisors.

(ii) Nothing in subsection 8 shall modify the power of the Board of Supervisors to establish civil offenses, infractions and misdemeanors.

(iii) Notwithstanding the authority established in subsection 8, to the extent state law contemplates that any Agency action authorized by subsection 8 be effectuated by ordinance, such action shall be effectuated by resolution of the Board of Directors and, if a referendum petition contains the requisite number of signatures, shall be subject to referendum in accordance with Article 14, and the Board of Supervisors shall have the power to reconsider or repeal the action as provided in Article 14.

9. Have exclusive authority to establish policies regarding and procure goods and services for the enforcement of regulations limiting parking, stopping, standing or loading and the collection of parking-related revenues and, along with the Police Department, have authority to enforce parking, stopping, standing or loading regulations;

10. Be responsible for chairing the Interdepartmental Staff Committee on Traffic and Transportation (ISCOTT) or any successor body;

11. Be responsible for cooperating with and assisting the Police Department in the promotion of traffic safety; studying and responding to complaints related to street design, traffic control devices, roadway features and pavement markings; collecting compiling and analyzing traffic data and traffic accident data and planning improvements to improve the safety of the City's roadways; and conducting traffic research and planning;

12. Have exclusive authority to apply for, accept, and expend state, federal, or other public or private grant funds for Agency purposes;

13. To the maximum extent permitted by law, with the concurrence of the Board of Supervisors, and notwithstanding the requirements and limitations of Sections 9.107, 9.108, and 9.109, have authority without further voter approval to incur debt for Agency purposes and to issue or cause to be issued bonds, notes, certificates of indebtedness, commercial paper, financing leases, certificates of participation or any other debt instruments. Upon recommendation from the Board of Directors, the Board of Supervisors may authorize the Agency to incur on behalf of the City such debt or other obligations provided: 1) the Controller first certifies that sufficient unencumbered balances are expected to be available in the proper fund to meet all payments under such obligations as they become due; and 2) any debt obligation, if secured, is secured by revenues or assets under the jurisdiction of the Agency.

14. Have the authority to conduct investigations into any matter within its jurisdiction through the power of inquiry, including the power to hold public hearings and take testimony, and to take such action as may be necessary to act upon its findings; and

15. Exercise such other powers and duties as shall be prescribed by ordinance of the Board of Supervisors.

(c) The Agency's Board of Directors shall:

—1. Appoint a Director of Transportation, who shall serve at the pleasure of the Board. The Director of Transportation shall be employed pursuant to an individual contract. His or her compensation shall be comparable to the compensation of the chief executive officers of the public transportation systems in the United States which the Board of Directors, after an independent survey, determine most closely

~~resemble the Agency in size, mission, and complexity. In addition, the Board of Directors shall provide an incentive compensation plan consistent with the requirements of Section 8A.104(k) under which a portion of the Director's compensation is based on achievement of service standards adopted by the Board of Directors.~~

21. Appoint an executive secretary who shall be responsible for administering the affairs of the Board of Directors and who shall serve at the pleasure of the Board.

32. In addition to any training that may be required by City, State or federal law, attend a minimum of four hours of training in each calendar year, provided by the City Attorney and the Controller regarding the legal and financial responsibilities of the Board and the Agency.

(d) The Director of Transportation shall be selected and appointed following the process in Section 4.102(5), may be removed by the Mayor under Section 3.100, and shall be employed pursuant to an individual contract approved by the Mayor. The Director's compensation shall be comparable to the compensation of the chief executive officers of the public transportation systems in the United States which the Mayor, after an independent survey, determines most closely resemble the Agency in size, mission, and complexity. In addition, the contract may provide an incentive compensation plan consistent with the requirements of Section 8A.104(m) under which a portion of the Director's compensation is based on achievement of service standards adopted by the Mayor. The Director of Transportation shall appoint all subordinate personnel of the Agency, including deputy directors. The deputy directors shall serve at the pleasure of the Director of Transportation.

(e) Upon recommendation of the City Attorney and the approval of the Board of Directors, the City Attorney may compromise, settle, or dismiss any litigation, legal proceedings, claims, demands or grievances which may be pending for or on behalf of, or against the Agency relative to any matter or property solely under the Agency's jurisdiction. Unlitigated claims or demands against the Agency shall be handled as set forth in Charter Section 6.102. Any payment pursuant to the compromise, settlement, or dismissal of such litigation, legal proceedings, claims, demands, or grievances, unless otherwise specified by the Board of Supervisors, shall be made from the Municipal Transportation Fund.

(f) The Agency's Board of Directors, and its individual members, shall deal with administrative matters solely through the Director of Transportation or his or her designees. Any dictation, suggestion, or interference by a director in the administrative affairs of the Agency, other than through the Director of Transportation or his or her designees, shall constitute official misconduct; provided, however, that nothing herein contained shall restrict the Board of Directors' powers of hearing and inquiry as provided in this Section.

(g) Notwithstanding any provision of Chapter 6 or 21 of the Administrative Code establishing any threshold amount for exercise of executive authority to execute contracts, or any successor provision of the San Francisco Municipal Code, the Agency's Board of Directors may adopt threshold amounts under which the Director of Transportation and his or her designees may approve contracts.

(h) Except provided in this Article, the Agency shall be subject to the provisions of this Charter applicable to boards, commissions, and departments of the City and County, including Sections 2.114, 3.105, 4.101, 4.103, 4.104, 4.113, 6.102, 9.118, 16.100, and A8.346. Sections 4.102, 4.126, and 4.132 shall not be applicable to the Agency, except as expressly provided in this Article VIII A.

SEC. 8B.126. PERSONNEL AND MERIT SYSTEM.

(a) The General Manager shall be selected under the provisions of Charter sections

3.100 and 4.102. The General Manager selected and appointed

following the process in Section 4.102(5), may be removed by the Mayor under Section 3.100, and may be employed under an individual contract approved by the Mayor. His or her The General Manager's compensation shall be comparable to the compensation of the chief executive officers of the public water, wastewater-sewer and/or power systems in the United States that the Commission Mayor, after an independent survey, determines most closely resemble the Public Utilities Commission in size, mission, and complexity. In addition, the Public Utilities Commission contract may provide an incentive compensation bonus plan for the General Manager based on performance goals established by the Commission Mayor.

(b) The General Manager may negotiate an individual contract with the employee appointed to perform the duties of general infrastructure management and oversight of the Capital Improvement Program subject to approval by the Commission and notwithstanding Charter Section A8.409 et seq.

(c) For purposes of approving individual employment contracts, under subsections (a) and (b) of this Section 8B.126, the Public Utilities Commission Mayor and the Public Utilities Commission, respectively, may exercise all powers of the City and County, the Board of Supervisors, the Mayor, and the Director of Human Resources under Article XI of this eCharter. Individual employment contracts shall utilize and shall not alter or interfere with, the Retirement or Vacation provisions of this Charter or the Health Plans established by the City's Health Service Board; provided however, that the Public Utilities Commission may contribute toward defraying the cost of the employee's health premiums and retirement pick-up.

SEC. 10.100. CIVIL SERVICE COMMISSION.

There is hereby established a Civil Service Commission which is charged with the duty of providing qualified persons for appointment to the service of the City and County.

The Commission shall consist of five members appointed by the Mayor, pursuant to Section 3.100, for six-year terms. Not less than two members of the Commission shall be women.

The persons so appointed shall, before taking office, make under oath and file in the office of the County Clerk the following declaration: "I am opposed to appointments to the public service as a reward for political activity and will execute the office of Civil Service Commissioner in the spirit of this declaration."

A commissioner may be removed only for official misconduct in the manner provided in Section 15.105 upon charges preferred in the same manner as in this Charter provided for elective officers.

The regular meetings of the Commission shall be open to the public and held at such a time as will give the general public and employees of the City and County adequate time within which to appear before the Commission after the regular daily working hours of 8:00 a.m. to 5:00 p.m. Such person or persons shall be given an opportunity to be heard by the Commission before final action is taken in any case involving such person or persons.

SEC. 13.103.5. ELECTIONS COMMISSION.

An Elections Commission shall be established to oversee all public federal, state, district and municipal elections in the City and County. The Commission shall set general policies for the Department of Elections and shall be responsible for the proper administration of the general practices of the Department, subject to the budgetary and fiscal provisions of this Charter. These duties shall include but not be limited to approving written plans prior to each election, submitted by the Director of Elections, detailing the policies, procedures, and personnel that will be used to conduct the election as well as an assessment of how well the plan succeeded in carrying out a free, fair and functional election.

The Commission shall consist of seven members who shall serve five-year terms. No person appointed as a Commission member may

serve as such for more than two successive five-year terms. Any person appointed as a Commission member to complete more than two and one-half years of a five-year term shall be deemed, for the purpose of this section, to have served one full term. No person having served two successive five-year terms may serve as a Commission member until at least five years after the expiration of the second successive term in office. Any Commission member who resigns with less than two and one-half years remaining until the expiration of the term shall be deemed, for the purposes of this section, to have served a full five-year term.

The Mayor, the Board of Supervisors, the City Attorney, the Public Defender, the District Attorney, the Treasurer, and the Board of Education of the San Francisco Unified School District each shall appoint one member of the Commission. The member appointed by the Mayor shall have a background in the electoral process. The member appointed by the City Attorney shall have a background in elections law. The member appointed by the Treasurer shall have a background in financial management. The members appointed by the District Attorney, Public Defender, the Board of Education of the San Francisco Unified School District, and the Board of Supervisors shall be broadly representative of the general public. In the event a vacancy occurs, the appointing authority who appointed the member vacating the office shall appoint a qualified person to complete the remainder of the term. All members initially appointed to the Election Commission shall take office on the first day of January, 2002.

The initial terms of Commission members shall expire according to the following guidelines: the term of the members appointed by the Mayor and the Board of Education of the San Francisco Unified School District shall expire on January 1, 2003; the term of the members appointed by the Board of Supervisors and the Treasurer shall expire on January 1 2004; the term of the member appointed by the City Attorney shall expire January 1, 2005; the term of the member appointed by the Public Defender shall expire January 1, 2006; and the term of the member appointed by the District Attorney shall expire January 1, 2007.

Members of the Commission shall serve without compensation. Members of the Commission shall be officers of the City and County, ~~and may be removed by the appointing authority only pursuant to Section 15.105.~~ During ~~his or her~~their tenure, members and employees of the Elections Commission are subject to the following restrictions:

(a) Restrictions on Holding Office. No member or employee of the Elections Commission may hold any other City or County office or be an officer of a political party.

(b) Restrictions on Employment. No member or employee of the Elections Commission may be a registered campaign consultant or registered lobbyist, or be employed by or receive gifts or other compensation from a registered campaign consultant or registered lobbyist. No member of the Elections Commission may hold any employment with the City and County and no employee of the Elections Commission may hold any other employment with the City and County.

(c) Restrictions on Political Activities. No member or employee of the Elections Commission may participate in any campaign supporting or opposing a candidate or ballot measure that will appear on the San Francisco ballot, other than candidates seeking election to federal or statewide office. For purposes of this section, participation in a campaign includes but is not limited to making contributions or soliciting contributions to any committee, including general purpose committees; publicly endorsing or urging endorsement of any candidate or ballot measure; or participating in decisions by organizations to participate in a campaign.

If a person appointed to the Elections Commission is, at the time of appointment, an officer or employee, as prohibited by this ~~§~~Section 13.103.5, that person shall be eligible to serve on the Elections Commission only if ~~he or she~~ they resigns from ~~his or her~~ the prohibited

office or employment within thirty days of appointment.

SEC. 15.105. SUSPENSION AND REMOVAL.

(a) ~~ELECTIVE AND CERTAIN APPOINTED OFFICERS.~~ Any elective officer ~~in Article XIII of this Charter, and any member of the Airport Commission, Asian Art Commission, Civil Service Commission, Commission on the Status of Women, Golden Gate Concourse Authority Board of Directors, Health Commission, Human Services Commission, Juvenile Probation Commission, Municipal Transportation Agency Board of Directors, Port Commission, Public Utilities Commission, Recreation and Park Commission, Fine Arts Museums Board of Trustees, War Memorial and Performing Art Center Board of Trustees, Board of Education or Community College Board~~ is subject to suspension and removal for official misconduct as provided in this subsection (a). Such officer may be suspended by the Mayor and the Mayor shall appoint a qualified person to discharge the duties of the office during the period of suspension. Upon such suspension, the Mayor shall immediately notify the Ethics Commission and Board of Supervisors thereof in writing and the cause thereof, and shall present written charges against such suspended officer to the Ethics Commission and Board of Supervisors at or prior to their next regular meetings following such suspension, and shall immediately furnish a copy of the same to such officer, who shall have the right to appear with counsel ~~and present a defense~~ before the Ethics Commission ~~in his or her defense~~. The Ethics Commission shall hold a hearing not less than five days after the filing of written charges. After the hearing, the Ethics Commission shall transmit the full record of the hearing to the Board of Supervisors with a recommendation as to whether the charges should be sustained. If, after reviewing the complete record, the charges are sustained by not less than a three-fourths vote of all members of the Board of Supervisors, the suspended officer shall be removed from office; if not so sustained, or if not acted on by the Board of Supervisors within 30 days after the receipt of the record from the Ethics Commission, the suspended officer shall thereby be reinstated.

(b) ~~MEMBERS OF CERTAIN COMMISSIONS BUILDING INSPECTION COMMISSION, PLANNING COMMISSION, BOARD OF APPEALS, ELECTIONS COMMISSION, ETHICS COMMISSION, SHERIFF'S DEPARTMENT OVERSIGHT BOARD, AND ENTERTAINMENT COMMISSION.~~ Members of the ~~Building Inspection Commission, the Planning Commission, the Board of Appeals, Civil Service Commission, and, the Elections Commission, the Ethics Commission, the Sheriff's Department Oversight Board, and the Entertainment Commission~~ may be suspended and removed pursuant to the provisions of subsection (a) of this section except that the Mayor may initiate removal only of the Mayor's appointees and the appointing authority shall act in place of the Mayor for all other appointees.

(c) REMOVAL FOR CONVICTION OF A FELONY CRIME INVOLVING MORAL TURPITUDE.

(1) Officers Enumerated in Subsections (a) and (b).

(A) An appointing authority must immediately remove from office any official enumerated in subsections (a) or (b) upon:

(i) a court's final conviction of that official of a felony crime involving moral turpitude; and

(ii) a determination made by the Ethics Commission, after a hearing, that the crime for which the official was convicted warrants removal.

(B) For the purposes of this subsection (c), the Mayor shall act as the appointing authority for any elective official.

(C) Removal under this subsection (c) is not subject to the procedures in subsections (a) and (b) of this ~~§~~Section 15.105.

(2) Other Officers and Employees.

(A) At will appointees. Officers and employees who hold their positions at the pleasure of their appointing authority must be removed upon:

(i) a final conviction of a felony crime involving moral turpitude; and

(ii) a determination made by the Ethics Commission, after a hearing, that the crime for which the appointee was convicted warrants removal.

(B) For cause appointees. Officers and employees who by law may be removed only for cause must be removed upon:

(i) a final conviction of a felony crime involving moral turpitude; and

(ii) a determination made by the Ethics Commission, after a hearing, that the crime for which the appointee was convicted warrants removal.

(3) Penalty for Failure to Remove. Failure to remove an appointee as required under this subsection *(c)* shall be official misconduct.

(d) **DISQUALIFICATION.**

(1) (A) Any person who has been removed from any federal, state, County or City office or employment upon a final conviction of a felony crime involving moral turpitude shall be ineligible for election or appointment to City office or employment for a period of ten years after removal.

(B) Any person removed from any federal, state, County or City office or employment for official misconduct shall be ineligible for election or appointment to City office or employment for a period of five years after removal.

(2) (A) Any City department head, board, commission or other appointing authority that removes a City officer or employee from office or employment on the grounds of official misconduct must invoke the disqualification provision in subsection (d)(1)(B) and provide notice of such disqualification in writing to the City officer or employee.

(B) Upon the request of any former City officer or employee, the Ethics Commission may, after a public hearing, overturn the application of the disqualification provision of subsection (d)(1) (B) if: (i) the decision that the former officer or employee engaged in official misconduct was not made after a hearing by a court, the Board of Supervisors, the Ethics Commission, an administrative body, an administrative hearing officer, or a labor arbitrator; and (ii) if the officer or employee does not have the right to appeal *their his-or-her* restriction on holding future office or employment to the *San Francisco* Civil Service Commission.

(e) **OFFICIAL MISCONDUCT.** Official misconduct means any wrongful behavior by a public officer in relation to the duties of *their his-or-her* office, willful in its character, including any failure, refusal, or neglect of an officer to perform any duty enjoined on *them him-or-her* by law, or conduct that falls below the standard of decency, good faith, and right action impliedly required of all public officers and including any violation of a specific conflict of interest or governmental ethics law. When any City law provides that a violation of the law constitutes or is deemed official misconduct, the conduct is covered by this definition and may subject the person to discipline and/or removal from office.

SEC. 16.108-1. CHILDREN, YOUTH AND THEIR FAMILIES OVERSIGHT AND ADVISORY COMMITTEE.

(a) **Creation.** There shall be a Children, Youth and Their Families Oversight and Advisory Committee (“Oversight and Advisory Committee”) to review the governance and policies of the Department of Children, Youth and Their Families (“DCYF”), to monitor and participate in the administration of the Children and Youth Fund as provided in Charter Section 16.108 (“Fund”), and to take steps to ensure that the Fund is administered in a manner accountable to the community.

(b) **Responsibilities.**

(1) The Oversight and Advisory Committee shall develop

recommendations for DCYF and the Fund regarding outcomes for children and youth services, the evaluation of services, common data systems, a process for making funding decisions, program improvement and capacity-building of service providers, community engagement in planning and evaluating services, leveraging dollars of the Fund and the use of the Fund as a catalyst for innovation. The Oversight and Advisory Committee shall promote and facilitate transparency in the administration of the Fund.

(2) As provided in Section 16.108, the Oversight and Advisory Committee shall review and approve the planning process for the Community Needs Assessment (“CNA”) and the final CNA, the Services and Allocation Plan, and DCYF’s overall spending plan (including, as separate items, approval of the departmental budget and of DCYF’s proposed grants as a package), and shall review the annual Data and Evaluation Report. Nothing in this Section shall limit the authority of the Mayor and the Board of Supervisors to propose, amend, and adopt a budget under Article IX of the Charter.

(3) ~~The Oversight and Advisory Committee shall participate in the evaluation of the Director of DCYF, assist in recruitment for the Director when the position is vacant, and may recommend candidates to the Mayor.~~

(4) The Oversight and Advisory Committee shall establish and maintain a Service Provider Working Group as provided in subsection (e).

(5) The Oversight and Advisory Committee shall meet at least six times a year.

(c) **Composition.** The Oversight and Advisory Committee shall have eleven members. The Mayor shall appoint members for Seats 1 through 6. The Board of Supervisors shall appoint members for Seats 7 through 11. The Mayor and the Board of Supervisors shall appoint the initial members of the Committee by July 1, 2015. The terms of the initial appointees to the Committee shall commence on the date of the first meeting of the Committee, which may occur when at least eight members have been appointed and are present.

(d) **Implementation.** The Board of Supervisors shall further provide by ordinance for the membership, structure, functions, appointment criteria, terms and support of the Oversight and Advisory Committee. The Board of Supervisors shall adopt such legislation to be effective by July 1, 2015.

(e) **Service Provider Working Group.** The Oversight and Advisory Committee shall create a Service Provider Working Group (“Working Group”) to advise the Oversight and Advisory Committee on funding priorities, policy development, the planning cycle, evaluation design and plans, and any other issues of concern to the Working Group related to the Fund or the responsibilities of DCYF or other departments receiving monies from the Fund. The Working Group shall engage a broad cross-section of service providers in providing information, education and consultation to the Oversight and Advisory Committee. All members of the Working Group shall be actively providing services to children, youth and their families. The Working Group shall be supported by DCYF staff, and shall meet at least four times a year. The Oversight and Advisory Committee shall appoint two initial co-chairs of the Working Group, who shall be responsible for developing the structure of the Working Group and facilitating the meetings. After the terms of the initial co-chairs expire, the Working Group shall select its own chairs. Working Group meetings shall be open and encourage widespread participation.

Section 5. In enacting this Charter amendment, the qualified voters of the City and County intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, or any other constituent parts of the Charter that are explicitly shown in this Charter amendment as additions or deletions in accordance with the “Note” that appears above the official title of the Charter amendment.

Section 6. Severability. If any section, subsection, sentence, clause, phrase, or word of this Charter amendment, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of the Charter amendment. The qualified voters of the City and County of San Francisco hereby declare that they would have voted in favor of this Charter amendment, and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this Charter amendment or application thereof would be subsequently declared invalid or unconstitutional.

Section 7. Liberal Construction

This measure shall be liberally construed and applied in order to fully promote its underlying purposes.

Proposition G

BE IT ORDAINED by the People of the City and County of San Francisco as follows:

SECTION 1. Title.

This measure shall be known and may be cited as “**The Great Highway for Everyone Act, Restoring Balanced Access to Parks and Safer Transit.**”

SECTION 2. Findings.

(a) In April 2020, acting in response to the COVID-19 pandemic, the City temporarily closed the Upper Great Highway between Lincoln Way and Sloat Boulevard (“Upper Great Highway”) to private vehicle traffic to provide temporary open space for recreation during shelter-in-place orders. As pandemic restrictions eased and San Francisco residents resumed in-person work, school, and other activities in 2021, the City recognized that a balance was necessary between recreational and transportation uses of the Upper Great Highway.

(b) In August 2021, the City modified the closure to establish a compromise: the Upper Great Highway would be closed to private vehicles only from Friday at noon through Monday at 6:00 a.m., and on holidays, allowing the roadway to serve as a recreational space on weekends when demand for such use is highest, while remaining available for vehicle traffic on weekdays when working families, commuters, and others rely on it to reach employment, schools, medical facilities, and other destinations.

(c) In 2022, the Board of Supervisors adopted Ordinance No. 258-22, which extended this weekend and holiday closure arrangement on a pilot basis through December 31, 2025. This pilot program demonstrated that the compromise worked: weekend recreational use of the Upper Great Highway flourished, with approximately 10,000 visits per weekend, while weekday vehicle access served approximately 14,000 to 20,000 vehicles per day, providing a vital north-south route along San Francisco’s western neighborhoods.

(d) In 2024, despite the success of this compromise arrangement and without adequate community engagement with District 4 residents most directly affected by the closure, Supervisor Joel Engardio sponsored Proposition K, a ballot measure that would permanently close the Upper Great Highway to private vehicles seven days per week. Proposition K was placed on the citywide ballot on the final day permitted by law for such placement.

(e) San Francisco voters citywide narrowly approved Proposition K in November 2024. However, voters in Supervisorial District 4—the district that includes the Upper

Great Highway and the residential neighborhoods most directly impacted by its closure—rejected Proposition K by a decisive margin, with approximately 64% voting against the permanent closure.

(f) Following the passage of Proposition K, residents of District 4 organized a recall campaign against Supervisor Engardio, citing his failure to adequately consult with constituents before sponsoring the permanent closure measure. On May 29, 2025, the Department of Elections certified that the recall petition contained 10,523 valid signatures, exceeding the 9,911 signatures required to qualify the recall for the ballot. In the September 16, 2025 special recall election, District 4 voters removed Supervisor Engardio from office by an overwhelming 62.72%, demonstrating the depth of concern about the permanent closure of the Upper Great Highway.

(g) Since the implementation of Proposition K’s permanent closure, the elimination of weekday vehicle access to the Upper Great Highway has resulted in the diversion of thousands of vehicles daily onto residential streets in surrounding neighborhoods, including streets in the Outer Sunset and Outer Richmond districts. Neighbors, parents, and working people who previously used the Upper Great Highway for weekday travel now must drive through residential neighborhoods or through Golden Gate Park on Crossover Drive and other park roads, increasing traffic congestion, noise, and safety concerns on streets where children play and families live.

(h) The permanent closure has also eliminated a critical coastal evacuation route that could be essential in the event of an earthquake, wildfire, or other emergency requiring rapid evacuation of San Francisco’s western neighborhoods. Emergency response times for police, fire, and medical services to areas west of the Upper Great Highway have been negatively impacted by the need to use alternate routes that are more congested and circuitous.

(i) The City must maintain the Upper Great Highway roadway surface regardless of whether it is open to private vehicles, because emergency vehicles, public transit, Recreation and Park Department vehicles, and other authorized vehicles require access to the corridor. Given this maintenance requirement, the roadway surface remains suitable for dual use: recreational use on weekends and holidays when families and visitors can most readily enjoy coastal access, and vehicle traffic on weekdays when transportation needs are greatest and recreational demand is lower.

(j) Proposition K did not provide funding for the conversion of the Upper Great Highway into a formal park with amenities such as seating, landscaping, or facilities. The closure has resulted in an underutilized paved roadway on weekdays, when recreational use is minimal, while simultaneously forcing weekday vehicle traffic onto less suitable routes through residential neighborhoods and Golden Gate Park.

(k) The voters now seek to restore the balanced approach that was working effectively before Proposition K: preserving the weekend and holiday closure that allows San Franciscans to enjoy the Upper Great Highway as a coastal recreational promenade when demand for such use is highest, while reopening the roadway to vehicle traffic on weekdays when working families need access to employment, schools, and services, and when the diversion of traffic onto residential streets and through Golden Gate Park creates the greatest burden on surrounding neighborhoods.

(l) This measure represents a fair and sensible compromise that serves the needs of all San Franciscans: it maintains the

recreational benefits that thousands of weekend visitors enjoy, while restoring essential weekday transportation access for working families and reducing the traffic impacts on residential neighborhoods. By providing clarity and finality on this issue, this measure will allow San Francisco to move forward with a stable, long-term arrangement that balances recreation and transportation needs on the Upper Great Highway.

(m) The voters recognize that implementation of this measure may require approvals under the California Coastal Act of 1976 (Public Resources Code Sections 30000-30900), which governs land use in California's coastal zone. The voters direct the City to seek all necessary permits and approvals expeditiously, and affirm that the weekend and holiday recreational use preserved by this measure is consistent with the Coastal Act's mandate to maximize public access and recreational opportunities in the coastal zone.

SECTION 3. The Great Highway for Everyone Act, Restoring Balanced Access to Parks and Safer Transit.

Article 6 of the Park Code is hereby amended by revising Section 6.13 to read as follows:

(a) **Findings and Purpose.** In 2022, following the temporary closure of the Great Highway between Lincoln Way and Sloat Boulevard (hereafter, the "Upper Great Highway") due to the COVID-19 pandemic, the Board of Supervisors, on recommendation of the Recreation and Park Commission and San Francisco Municipal Transportation Agency ("SFMTA") Board of Directors, found that it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway during specified times, due to the need to ensure the safety and protection of persons using those streets for recreational purposes, and because such restrictions would leave sufficient roadway capacity in the surrounding area for vehicular, pedestrian, and bicycle traffic during the periods of restriction. In 2024, the voters adopted Proposition K, which imposed restrictions on private vehicles on the Upper Great Highway at all times. However, the permanent, full-time closure mandated by Proposition K has resulted in significant impacts on surrounding residential neighborhoods, as neighbors, parents, and working people who require vehicle access for employment, school, medical appointments, and other essential trips now must use residential streets in the Outer Sunset and Outer Richmond districts, or drive through Golden Gate Park, rather than using the Upper Great Highway. The permanent closure has also eliminated a coastal evacuation route that may be needed in the event of earthquake, wildfire, or other emergency. The People of the City and County of San Francisco hereby find that a balanced approach better serves the public interest: restricting private vehicles from the Upper Great Highway on weekends and holidays, when recreational demand is highest and approximately 10,000 visitors per weekend enjoy the coastal promenade, while permitting vehicle traffic on weekdays, when transportation needs are greatest, recreational use is minimal, and the diversion of traffic onto residential streets and through Golden Gate Park creates unacceptable burdens on surrounding neighborhoods. The People further find that the Upper Great Highway roadway must be maintained for use by emergency vehicles, public transit, and other authorized vehicles regardless of whether it is open to private vehicles, and that this dual-use approach—recreational use on weekends and holidays, vehicle access on weekdays—represents an efficient use of public infrastructure that serves the diverse needs of San Francisco residents. Consistent with the foregoing, the People hereby find that it is

appropriate to restrict private vehicles from the Upper Great Highway during weekends and holidays only, as set forth herein, thereby preserving valued recreational access while restoring essential weekday transportation capacity. These restrictions will continue to leave sufficient roadway capacity in the surrounding area for vehicular, pedestrian, and bicycle traffic during the periods when the Upper Great Highway is closed to private vehicles, while reducing the burden on residential streets and Golden Gate Park during weekdays. In 2022, following the temporary closure of the Great Highway between Lincoln Way and Sloat Boulevard (hereafter, the "Upper Great Highway") due to the COVID-19 pandemic, and on recommendation of the Recreation and Park Commission and San Francisco Municipal Transportation Agency ("SFMTA") Board of Directors, the Board of Supervisors found that it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway at certain times, due to the need to ensure the safety and protection of persons who are to use those streets, and because the restrictions would leave a sufficient portion of the streets in the surrounding area for other public uses including vehicular, pedestrian, and bicycle traffic.

Consistent with the foregoing, the People of the City and County of San Francisco hereby affirm and readopt these findings that the Upper Great Highway is not needed for vehicular traffic, and further find that, for the same reasons, it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway at all times, as described herein. The additional restrictions would still leave a sufficient portion of the streets in the surrounding area for other public uses including vehicular, pedestrian, and bicycle traffic.

(b) **Restrictions on Private Vehicles.** The Recreation and Park Department shall restrict private vehicles from the Upper Great Highway from Friday at 6:00 p.m. until Monday at 4:00 a.m., and on City, State, or federal holidays, as set forth herein.

(c) **Public Notice.** The Recreation and Park Department shall include on its website a map depicting the street segments subject to the street closures and traffic restrictions authorized in subsection (b), and such other information as it may deem appropriate to assist the public; and shall provide advance notice of any changes to these street closures or traffic restrictions to residents and owners of property abutting those streets.

(d) **Exempt Motor Vehicles.** The following motor vehicles are exempt from the restrictions in subsection (b):

(1) Emergency vehicles, including but not limited to police and fire vehicles.

(2) Official City, State, or federal vehicles, or any other authorized vehicle, being used to perform official City, State, or federal business pertaining to the Upper Great Highway or any property or facility therein, including but not limited to public transit vehicles, vehicles of the Recreation and Park Department, and construction vehicles authorized by the Recreation and Park Department.

(3) Authorized intra-park transit shuttle buses, paratransit vans, or similar authorized vehicles used to transport persons along the Upper Great Highway.

(4) Vehicles authorized by the Recreation and Park Department in connection with permitted events and activities.

(e) **Emergency Authority.** The General Manager of the Recreation and Park Department shall have the authority to allow vehicular traffic on segments of the Upper Great Highway that would otherwise be closed to vehicles in accordance with this Section 6.13 in circumstances which in the General Manager's judgment constitute an emergency such that the benefit to the

public from the vehicular street closure is outweighed by the traffic burden or public safety hazard created by the emergency circumstances.

(f) **Promotion of the General Welfare.** In enacting and implementing this Section 6.13, the City is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

(g) **Severability.** If any subsection, sentence, clause, phrase, or word of this Section 6.13 or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of Section 6.13. The People of San Francisco hereby declare that this measure, and each portion and part, would have been adopted irrespective of whether any one or more provisions or parts are found to be invalid or unconstitutional. The People of San Francisco further declare their desire that this measure provide for the closure of the Great Highway only during weekends and holidays, provide adequate notice of closures, and exempt certain motor vehicles, are independently important of one another. The Board of Supervisors hereby declares it would have passed this Section and each and every subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portions of Section 6.13 or application thereof would be subsequently declared invalid or unconstitutional.

(h) **Amendment.** The Board of Supervisors may amend, by a supermajority of at least eight votes, technical, procedural and administrative provisions of the Ordinance. Amendments to the days and time during which motor vehicles are used on the Great Highway, or other fundamental purposes, shall require approval by a majority of voters.

SECTION 4. Effective Date and Operative Date.

This measure shall be effective and operative upon its approval by a simple majority of electors voting on the measure.

SECTION 5. Severability.

If any provision of this measure, or part thereof, or the applicability of any provision or part to any person or circumstances, is for any reason held to be invalid or unconstitutional, the remaining provisions and parts shall not be affected, but shall remain in full force and effect, and to this end the provisions and parts of this measure are severable. The People of San Francisco hereby declare that this measure, and each portion and part, would have been adopted irrespective of whether any one or more provisions or parts are found to be invalid or unconstitutional. The People of San Francisco further declare their desire that this measure provide for the closure of the Great Highway only during weekends and holidays, provide adequate notice of closures, and exempt certain motor vehicles, are independently important of one another.

SECTION 6. Conflicting Measures.

This measure is intended to be comprehensive. It is the intent of the People of San Francisco that, in the event this measure appears on the same ballot as one or more measures relating to the use of motor vehicles on the Great Highway, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure or measures may be implemented only to the extent that those

provisions are not in conflict with each provisions this measure. The provisions of a conflicting measure or measures shall be deemed in conflict with this measure if such conflicting measure or measures would permit the Great Highway to be closed in excess of the closures contemplated by this measure. If this measure is approved by a majority of the voters, but does not receive a greater number of affirmative votes than any other measure or measures appearing on the same ballot regarding the use of motor vehicles on the Great Highway, then this measure shall take effect to the extent not in conflict with said other measure or measures.

SECTION 7. Amendment.

The Board of Supervisors may amend, by a supermajority of at least eight votes, technical, procedural and administrative provisions of the Ordinance. Amendments to the days and time during which motor vehicles are used on the Great Highway, or other fundamental purposes, shall require approval by a majority of voters.

SECTION 8. Liberal Construction.

This measure is an exercise of the initiative power reserved to the People of San Francisco to permit motor vehicle access to the Great Highway from TIME to TIME; and shall be liberally construed to effectuate that purpose.

SECTION 9. Municipal Affair.

The People of San Francisco hereby declare that, separately and together, the use of motor vehicles on the Great Highway constitutes a municipal affair. The People of San Francisco hereby further declare their desire for this measure to coexist with any similar measures adopted at the city, county or state levels.

SECTION 10. Legal Defense.

The People of the San Francisco desire that this measure, if approved by a simple majority of voters, and thereafter challenged in court, be defended by the City and County of San Francisco. The People of San Francisco, by approving this measure, hereby declare that the proponent(s) of this Act have a direct and personal stake in defending this measure from constitutional or statutory challenges to the measure's validity or implementation. In the event that the City and County of San Francisco fails to defend this measure, or that the City and County of San Francisco fails to appeal an adverse judgment against the constitutionality, statutory permissibility or implementation of this measure, in whole or in part, in any court of law, the measure's proponent(s) shall be entitled to assert his, her or their direct personal stake by defending the measure's validity and implementation in any court of law and shall be empowered by the People of San Francisco through this measure to act as agents of the People of San Francisco, and the City and County shall indemnify the proponent(s) for reasonable fees, expenses and other losses incurred by the proponent(s), as agent(s) of the City and County of San Francisco, in defending the validity and/or implementation of the measure. The rate of indemnification shall be no more than the amount it would cost San Francisco to perform the defense itself.

Proposition H

Be it ordained by the People of the City and County of San Francisco:

STRONGER MUNI FOR ALL ORDINANCE

NOTE: **Unchanged Code text and uncodified text** are in plain font.

Additions to Codes are in *single-underline italics Times New*

Roman font.

~~Deletions to Codes are in strikethrough italics Times New Roman font.~~

SECTION 1. FINDINGS AND PURPOSES.

(a) Public transportation provided by the San Francisco Municipal Transportation Agency (“SFMTA”) is a core public service that supports the City’s economic vitality, environmental goals, public health, equity, and mobility for residents, workers, students, seniors, and people with disabilities.

(b) The COVID-19 pandemic caused an unprecedented and prolonged decline in transit ridership and fare revenue, creating structural financial challenges that continue even as ridership gradually recovers.

(c) The SFMTA faces an annual budget deficit of over \$300 million (the “budget gap”) once the remaining pandemic relief funding from the federal, state, and regional governments is fully expended.

(d) The SFMTA has been reducing the deficit through operational and fiscal efficiency improvements.

(e) Nearly 90% of the SFMTA’s budget goes directly into running Muni transit service or raising revenue to support it. Without a stable source of new funding, bus and rail lines could be eliminated; late-night service cut; transit service frequency reduced; and affordability programs relied upon by low-income riders, seniors, and people with disabilities canceled.

(f) A locally controlled revenue source is needed to stabilize transit operations, prevent near-term cuts, and invest in service while the economy recovers.

(g) This measure is intended to generate sufficient revenue to address the budget gap and enhance transit service, and its structure is intended to distribute the cost fairly for San Francisco residents and businesses.

(h) Other than the costs of administration, the revenue from the parcel tax imposed by this measure is required to go to the SFMTA for transit operations expenses and thus the revenue will be part of the SFMTA’s operating budget. Under Federal and State law, as a recipient of Federal and State funds, the SFMTA is required to complete an annual audit by an independent auditor, consistent with generally accepted auditing standards. These audits would include audits of the revenue and expenditure of this tax.

(i) The purpose of the parcel tax imposed by this measure is to stabilize Muni and close the budget gap while San Francisco’s economy continues to recover and while tax revenues, grants, parking fees, and Muni fares recover along with it.

SECTION 2. The Business and Tax Regulations Code is hereby amended by adding Article 18, consisting of Sections 1801 to 1815, to read as follows:

SEC. 1801. SHORT TITLE.

This Article 18 shall be known as the “Stronger Muni For All Ordinance.”

SEC. 1802. DEFINITIONS.

For purposes of this Article 18, the following definitions shall apply:

“Assessor” means the Assessor-Recorder of the City and County of San Francisco, or the Assessor-Recorder’s designee.

“Building Area” means the following:

(a) For a Single-Family Residential Parcel, the Building Area shall be:

(1) For all Single-Family Residential Parcels other than residential condominiums or Cooperative Apartments, the total non-exempt square footage of all finished living areas, measured from the exterior wall surfaces, but excluding attached garages, openings between floors, porches, decks, balconies, and chimneys.

(2) For residential condominiums and Cooperative

Apartments, the total non-exempt interior square footage of the individual unit, excluding any square footage attributable to common, parking, or storage areas.

(b) For a Multifamily Residential Parcel, the Building Area shall be the total non-exempt square footage of all finished living areas, measured from the exterior wall surfaces, including interior common areas of stairways, hallways, and storage rooms, but excluding unfinished basements or other unfinished areas, exterior common areas such as open stairways and hallways, and storage and parking areas.

(c) For a Non-Residential Parcel, the Building Area shall be:

(1) For all Non-Residential Parcels other than non-residential condominiums, the total non-exempt square footage of all finished areas, including rentable mezzanines, measured from the exterior wall surfaces, including interior common areas of stairways, hallways, and storage rooms, but excluding unfinished basements or other unfinished areas, exterior common areas such as open stairways and hallways, and storage and parking areas.

(2) For non-residential condominiums, the total non-exempt interior square footage of the individual unit, excluding any square footage attributable to common, parking, or storage areas.

(d) For a Mixed-Use Parcel, the Building Area shall be the sum of the Building Areas of the Single-Family Residential, Multifamily Residential, and Non-Residential portions of the Parcel, as applicable, calculated as if each such portion was a separate Parcel.

“City” means the City and County of San Francisco.

“Controller” means the Controller of the City and County of San Francisco, or the Controller’s designee.

“Cooperative Apartment” means a Dwelling Unit held by a Cooperative Housing Corporation that has a separate Assessor’s parcel number.

“Cooperative Housing Corporation” means a real estate development in which legal title to real property is vested in a corporation, and membership in the corporation, by stock ownership, is coupled with the exclusive right to possess a portion of the real property.

“Dwelling Unit” means a house, apartment, mobile home, live/work unit, group of rooms, or single room that is designed as separate living quarters, other than a unit designed for occupancy primarily by travelers, vacationers, or other transient occupants. Separate living quarters are those in which the occupants live and eat separately from any other persons in the building, and which have a kitchen and direct access from the outside of the building or through a common hall. For purposes of this Article 18, a Dwelling Unit shall not include a unit in a nursing home, residential care facility, or other similar facility. No accessory dwelling unit, junior accessory dwelling unit, or housekeeping room shall be considered a separate “Dwelling Unit” for purposes of the Tax, provided that the non-exempt square footage associated with any accessory dwelling unit, junior accessory dwelling unit, or housekeeping room shall be included as Building Area for purposes of the Tax.

“Fiscal Year” means the period starting July 1 and ending on the following June 30.

“Group Housing” means a building or portion thereof that provides lodging, or both meals and lodging, without individual or limited cooking facilities and kitchens, by prearrangement for 30 days or more at a time, and that does not qualify as a Dwelling Unit.

“Mixed-Use Parcel” means a Parcel with at least one non-exempt square foot of Building Area that, if considered as a separate Parcel, would constitute a Single-Family Residential Parcel or Multifamily Residential Parcel, and at least one non-exempt square foot of Building Area that would, if considered as a separate Parcel, not constitute either a Single-Family Residential Parcel or Multifamily Residential Parcel.

“Multifamily Residential Parcel” means a Parcel with more than

one Dwelling Unit or with Group Housing, where the entire Parcel is designed to be used for living purposes, but not primarily for travelers, vacationers, or other transient occupants. A Multifamily Residential Parcel shall not include a nursing home, residential care facility, or other similar facility.

“Non-Residential Parcel” means a Parcel that is not a Single-Family Residential Parcel, a Multifamily Residential Parcel, Mixed-Use Parcel, or Unimproved Parcel.

“Parcel” has the meaning set forth in Section 1803.

“SFMTA” means the San Francisco Municipal Transportation Agency or its successor agency, department, or office.

“Single-Family Residential Parcel” means a Parcel with only one Dwelling Unit, where the entire Parcel is designed for living purposes, but not primarily for travelers, vacationers, or other transient occupants.

“Single Room Occupancy (SRO) Unit” means a Dwelling Unit or Group Housing room consisting of no more than one occupied room with a maximum gross floor area of 350 square feet and meeting the Housing Code’s minimum floor area standards. The unit may have a bathroom in addition to the occupied room. As a Dwelling Unit, it would have a cooking facility and bathroom. As a Group Housing room, it would share a kitchen with one or more other SRO unit(s) in the same building and may also share a bathroom.

“Unimproved Parcel” means a Parcel with no buildings.

“Tax” means the Stronger Muni For All Parcel Tax imposed by this Article 18.

“Tax Collector” means the Tax Collector of the City and County of San Francisco, or the Tax Collector’s designee.

SEC. 1803. PARCEL.

(a) “Parcel” means a unit of real estate in the City, except a possessory interest, with an Assessor’s parcel number as shown on the most current official assessment roll of the Assessor on July 1 of the Fiscal Year for which the Tax is imposed. However, all of the following conditions shall apply:

(1) A Parcel created by a subdivision map approved in accordance with the Subdivision Map Act (Division 2 (commencing with Section 66410) of Title 7 of the Government Code) shall be deemed to be a single assessment unit and shall not be deemed, on the basis of multiple Assessor’s parcel numbers assigned by the Assessor, to constitute multiple assessment units.

(2) A Parcel that has not been subdivided in accordance with the Subdivision Map Act (Division 2 (commencing with Section 66410) of Title 7 of the California Government Code) may be deemed to constitute a separate assessment unit only to the extent that the Parcel has been previously described and conveyed in one or more deeds separating it from all adjoining property.

(b) If the Parcel identified pursuant to subsection (a)(1) or (a)(2) is not consistent with the property’s identification by Assessor’s parcel number, it shall be the responsibility of the Parcel owner to provide the SFMTA with written notice of the correct Assessor’s parcel number of taxable Parcels pursuant to this Section 1803 within 90 days after the date of the initial tax bill containing the Tax.

(c) Notwithstanding subsections (a) and (b), each Assessor’s parcel number in a Cooperative Housing Corporation property shall be deemed to constitute a separate Single-Family Residential Parcel for purposes of the Tax.

SEC. 1804. IMPOSITION; EFFECTIVE DATES.

(a) Unless otherwise provided in this Article 18, on July 1 of each Fiscal Year there is hereby imposed an annual Tax as provided in this Article 18 on each Parcel in the City for the purposes described in Section 1810.

(b) Commencing with Fiscal Year 2028-2029, all dollar amounts in Sections 1805 and 1806 of this Article 18 and Section 37.3(a)(12) of

Chapter 37 of the Administrative Code shall be adjusted annually in accordance with the increase in the Consumer Price Index: All Urban Consumers for the San Francisco/Oakland/Hayward Area for All Items as reported by the United States Bureau of Labor Statistics, or any successor to that index, as of December 31 of the preceding year, beginning with December 31, 2027, with all dollar amounts per square foot rounded down to the nearest tenth of a cent and all other dollar amounts rounded down to the nearest dollar.

(c) The Tax shall take effect on July 1, 2027 for Fiscal Year 2027-2028, and shall continue in effect for each Fiscal Year thereafter until June 30, 2042, after which date it shall expire by operation of law.

SEC. 1805. CALCULATION OF THE TAX.

(a) **Single-Family Residential Parcels.** For each Single-Family Residential Parcel, the Tax shall be calculated as follows:

(1) If the Building Area is 3,000 square feet or less, the Tax shall be \$129.

(2) If the Building Area is between 3,001 square feet and 5,000 square feet, the Tax shall be the sum of (A) \$129; and (B) \$0.42 multiplied by the Building Area over 3,000 square feet.

(3) If the Building Area is 5,001 square feet or more, the Tax shall be the sum of (A) the maximum amount that could be due under subsection (a)(2); and (B) \$1.99 multiplied by the Building Area over 5,000 square feet.

(b) **Multifamily Residential Parcels.** For each Multifamily Residential Parcel, the Tax shall be calculated as follows:

(1) If the Building Area 5,000 square feet or less, the Tax shall be \$249.

(2) If the Building Area is 5,001 square feet or more, the Tax shall be the sum of (A) \$249; and (B) \$0.195 multiplied by the Building Area over 5,000 square feet, up to a maximum Tax of \$50,000.

(c) **Non-Residential Parcels.** For each Non-Residential Parcel, the Tax shall be calculated as follows:

(1) If the Building Area 5,000 square feet or less, the Tax shall be \$799.

(2) If the Building Area is between 5,001 square feet and 50,000 square feet, the Tax shall be the sum of (A) \$799; and (B) \$0.76 multiplied by the Building Area over 5,000 square feet.

(3) If the Building Area is between 50,001 square feet and 250,000 square feet, the Tax shall be the sum of (A) the maximum amount that could be due under subsection (c)(2); and (B) \$0.84 multiplied by the Building Area over 50,000 square feet.

(4) If the Building Area is 250,001 square feet or more, the Tax shall be the sum of (A) the maximum amount that could be due under subsection (c)(3); and (B) \$0.99 multiplied by the Building Area over 250,000 square feet, up to a maximum Tax of \$400,000.

(d) **Mixed-Use Parcels.** For each Mixed-Use Parcel, the Tax shall be calculated as follows:

(1) If the total Building Area 5,000 square feet or less, the Tax shall be \$799.

(2) If the total Building Area is 5,001 square feet or more, the Tax shall be the sum of the following, up to a maximum Tax of \$400,000:

(A) The Tax computed as if the Single-Family Residential Building Area or Multifamily Residential Building Area portion of the Parcel was considered a separate Parcel, reduced by \$129 if such separate Parcel would be a Single-Family Residential Parcel or reduced by \$249 if such separate Parcel would be a Multifamily Residential Parcel; and

(B) The Tax computed as if the Non-Residential Building Area portion of the Parcel was considered a separate Parcel.

(e) **Unimproved Parcels.** For each Unimproved Parcel, the Tax shall be calculated as follows:

(1) If the square footage of the land area of the Unimproved

Parcel is 2,000 square feet or less, the Tax shall be \$0.

(2) If the square footage of the land area of the Unimproved Parcel is 2,001 square feet or more, the Tax shall be \$392.

SEC. 1806. EXEMPTIONS AND DEDUCTIONS.

(a) Parcels on which no ad valorem property tax is levied for the Fiscal Year shall be exempt from the Tax.

(b) The Building Area located in portions of Parcels on which no ad valorem property tax is levied for the Fiscal Year shall be exempt from the Tax and shall not be included in the determination of a Parcel's Building Area.

(c) Any Parcel in which an individual who is 65 years of age or older before July 1 of the Fiscal Year owns a beneficial interest, where such individual occupies a Dwelling Unit in the Parcel as the individual's principal residence, shall be entitled to the following:

(1) If the Parcel is a Single-Family Residential Parcel, the Parcel shall be exempt from the Tax.

(2) If the Parcel is a Multifamily Residential Parcel, the Tax shall be reduced by \$249 for each Dwelling Unit in the Parcel that is not otherwise exempt from the Tax if an individual who is 65 years of age or older before July 1 of the Fiscal Year who owns a beneficial interest in the Parcel occupies that Dwelling Unit as the individual's principal residence. The reduction under this Section 1806(c)(2) shall not reduce the Tax below \$0 and no portion of the reduction shall be refundable.

(3) If the Parcel is a Mixed-Use Parcel:

(A) If the total Building Area is not over 5,000 square feet, the Tax shall be as calculated under Section 1805(d)(1) with no reduction.

(B) If the total Building Area is over 5,000 square feet, the portion of the Tax calculated under Section 1805(d)(2)(B) shall be as calculated under Section 1805(d)(2)(B) with no reduction, and the portion of the Tax calculated under Section 1805(d)(2)(A) shall be:

(i) If the portion of the Parcel subject to Section 1805(d)(2)(A) would be treated as a Single-Family Residential Parcel if considered a separate Parcel: \$0; or

(ii) If the portion of the Parcel subject to Section 1805(d)(2)(A) would be treated as a Multifamily Residential Parcel if considered a separate Parcel: Reduced by \$249 for each Dwelling Unit in the Parcel that is not otherwise exempt from the Tax if an individual who is 65 years of age or older before July 1 of the Fiscal Year who owns a beneficial interest in the Parcel occupies that Dwelling Unit as the individual's principal residence. The reduction under this Section 1806(c)(3)(B)(ii) shall not reduce the portion of the Tax calculated under Section 1805(d)(2)(A) below \$0, shall not reduce the portion of the Tax calculated under Section 1805(d)(2)(B), and no portion of the reduction shall be refundable.

(d) The Building Area of any SRO Unit, including the Building Area of any kitchen, bathroom, or other facilities shared by the SRO Unit and other SRO Units, shall be exempt from the Tax and shall not be included in the determination of a Parcel's Building Area.

(e) To claim an exemption or deduction from the Tax under subsections (c) or (d), the owner must submit an application to the SFMTA by the deadline set by the SFMTA. The application shall be accompanied by such evidence as the SFMTA deems necessary to determine eligibility for the exemption or deduction. The SFMTA shall prepare forms for this purpose. Exemptions or deductions granted under subsections (c) or (d) shall be automatically renewed in subsequent Fiscal Years absent a change in a material fact. The owner of a Parcel receiving an exemption or deduction under subsections (c) or (d) must notify the SFMTA if the Parcel no longer qualifies for the exemption or deduction.

SEC. 1807. COLLECTION AND ADMINISTRATION.

(a) The Tax shall be collected by the City in two approximately

equal installments in the same manner and on the same dates as established by law for the collection of ad valorem property taxes, except as otherwise provided in this Article 18. The collection of the Tax shall be subject to the regulations and procedures governing the collection of ad valorem property taxes by the City, including, without limitation, the imposition of penalties, fees, and interest on the failure to remit or the delinquent remittance of the Tax, and refunds of Taxes, penalties, fees, and interest, except that a claim for refund of Taxes, penalties, fees, or interest must be filed in writing with the Controller within one year of payment of the Tax pursuant to any procedures established by the City.

(b) The SFMTA shall administer the Tax, except that the Tax Collector shall oversee the collection and receipt of the proceeds of the Tax. The Assessor-Recorder's Office and Office of the Treasurer and Tax Collector shall provide technical assistance to the SFMTA, upon the SFMTA's request, to administer the Tax.

SEC. 1808. REGULATIONS.

The SFMTA is authorized to promulgate rules and regulations to implement this Article 18.

SEC. 1809. DEPOSIT OF PROCEEDS.

All monies collected under this Article 18 shall be deposited to the credit of the Stronger Muni Fund, established in Administrative Code Section 10.100-338, which shall be a category four fund under Administrative Code Section 10.100-1. The Fund shall be maintained separate and apart from all other City funds and shall be subject to appropriation. Any balance remaining in the Fund at the close of any Fiscal Year shall be deemed to have been provided for specified purposes within the meaning of Charter Section 9.113(a) and shall be carried forward and accumulated in the Fund for the purposes described in Section 1810.

SEC. 1810. EXPENDITURE OF PROCEEDS.

(a) Subject to the budgetary and fiscal provisions of the Charter, monies in the Stronger Muni Fund shall be appropriated on an annual or supplemental basis and used exclusively for the following purposes:

(1) To the SFMTA, Tax Collector, and other City Departments, for implementation and administration of the Tax and administration of the Stronger Muni Fund.

(2) Refunds of any overpayments of the Tax, including any related penalties, interest, and fees.

(3) All remaining amounts to the SFMTA for transit operations expenses.

(b) Notwithstanding subsection (a), no monies in the Stronger Muni Fund shall be used for the efficiency review in Section 1811 of this Article 18.

(c) Commencing with a report filed no later than February 15, 2029, covering the Fiscal Year ending on June 30, 2028, the Controller shall file annually with the Board of Supervisors, by February 15 of each year, a report containing the amount of monies collected in and expended from the Stronger Muni Fund during the prior Fiscal Year, the status of any project required or authorized to be funded by this Section 1810, and such other information as the Controller, in the Controller's sole discretion, shall deem relevant to the operation of this Article 18.

SEC. 1811. EFFICIENCY REVIEW.

Subject to the fiscal provisions of the Charter, the SFMTA must conduct or participate in a financial efficiency review conducted by a third-party consultant that identifies: (a) cost-saving measures implemented since Fiscal Year 2022-2023, (b) early action strategies that would assist SFMTA in delivering increased or improved service and enhanced customer experiences with existing resources, (c) cost-saving measures to reduce one-time and ongoing fixed and variable costs, and (d) a comprehensive assessment of development financing strategies to maximize the value of SFMTA's real property assets. The study must consider administrative, operating, and capital

costs, must be completed by April 1, 2028, and must be submitted and presented to the SFMTA Board of Directors.

SEC. 1812. OVERSIGHT.

By the first date that funds are appropriated from the Stronger Muni Fund, the SFMTA Board of Directors shall designate a citizens' group to review the revenues and expenditures of the Tax at a minimum of every two years, consistent with the budget process in Charter Section 8A.106.

SEC. 1813. AMENDMENT OF ORDINANCE.

The Board of Supervisors may amend or repeal this Article 18 by ordinance by a majority vote and without a vote of the people except as limited by Articles XIII A and XIII C of the California Constitution.

SEC. 1814. SEVERABILITY.

(a) Except as provided in subsection (b), if any section, subsection, sentence, clause, phrase, or word of this Article 18, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of this Article. The People of the City and County of San Francisco hereby declare that, except as provided in subsection (b), they would have adopted this Article 18 and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this Article or application thereof would be subsequently declared invalid or unconstitutional.

(b) If the imposition of the Stronger Muni For All Parcel Tax is held in its entirety to be facially invalid or unconstitutional in a final judicial decision, the remainder of this Article 18 shall be void and of no force and effect, and the City Attorney shall cause it to be removed from the Business and Tax Regulations Code.

SEC. 1815. SAVINGS CLAUSE.

No section, clause, part, or provision of this Article 18 shall be construed as requiring the payment of any Tax that would be in violation of the Constitution or laws of the United States or of the Constitution or laws of the State of California.

SECTION 3. Chapter 37 of the Administrative Code is hereby amended by revising Sections 37.3 and 37.8, to read as follows:

SEC. 37.3. RENT LIMITATIONS.

(a) Rent Increase Limitations for Tenants in Occupancy. Landlords may impose rent increases upon tenants in occupancy only as provided below and as provided by subsections 37.3(d) and 37.3(g):

(1) **Annual Rent Increase.** On March 1 of each year, the Board shall publish the increase in the CPI for the preceding 12 months, as made available by the U.S. Department of Labor. A landlord who has reported the required information about their rental unit to the Rent Board as set forth in Section 37.15 shall have a license to impose annually a rent increase which does not exceed a tenant's base rent by more than 60% of said published increase. In no event, however, shall the allowable annual increase be greater than 7%.

(2) **Banking.** A landlord who refrains from imposing an annual rent increase or any portion thereof may accumulate said increase and, subject to Section 37.15, impose that amount on the tenant's subsequent rent increase anniversary dates. A landlord who, between April 1, 1982, and February 29, 1984, has banked an annual 7% rent increase (or rent increases) or any portion thereof may impose the accumulated increase on the tenant's subsequent rent increase anniversary dates.

(3) **Capital Improvements, Rehabilitation, and Energy Conservation Improvements, and Renewable Energy Improvements.** A landlord may impose rent increases based upon the cost of capital improvements, rehabilitation, energy conservation improvements, or renewable energy improvements, provided that such costs are certified pursuant to Sections 37.7 and 37.8B below; provided further that where a landlord has performed seismic strengthening

in accordance with Existing Building Code Chapters 5B and 5C, no increase for capital improvements (including but not limited to seismic strengthening) shall exceed, in any 12 month period, 10 percent of the tenant's base rent, subject to rules adopted by the Board to prevent landlord hardship and to permit landlords to continue to maintain their buildings in a decent, safe and sanitary condition. A landlord may accumulate any certified increase which exceeds this amount and impose the increase in subsequent years, subject to the 10 percent limitation. Nothing in this subsection shall be construed to supersede any Board rules or regulations with respect to limitations on increases based upon capital improvements whether performed separately or in conjunction with seismic strengthening improvements pursuant to Existing Building Code Chapters 5B and 5C.

(4) **Utilities.** A landlord may impose increases based upon the cost of utilities as provided in Section 37.2(q) above.

(5) **Water: Charges Related to Excess Water Use, and 50% Passthrough of Water Bill Charges Attributable to Water Rate Increases Resulting From Issuance of Water System Improvement Revenue Bonds Authorized at the November 2002 Election.**

(A) **Charges Related to Excess Water Use.** A landlord may impose increases not to exceed 50 percent of the excess use charges (penalties) levied by the San Francisco Water Department on a building for use of water in excess of Water Department allocations under the following conditions:

(i) The landlord provides tenants with written certification that the following have been installed in all units: (1) permanently installed retrofit devices designed to reduce the amount of water used per flush or low-flow toilets (1.6 gallons per flush); (2) low-flow showerheads which allow a flow of no more than 2.5 gallons per minute; and (3) faucet aerators (where installation on current faucets is physically feasible); and

(ii) The landlord provides the tenants with written certification that no known plumbing leaks currently exist in the building and that any leaks reported by tenants in the future will be promptly repaired; and

(iii) The landlord provides the tenants with a copy of the water bill for the period in which the penalty was charged. Only penalties billed for a service period which begins after the effective date of the ordinance [April 20, 1991] may be passed through to tenants. Where penalties result from an allocation which does not reflect documented changes in occupancy which occurred after March 1, 1991, a landlord must, if requested in writing by a tenant, make a good-faith effort to appeal the allotment. Increases based upon penalties shall be prorated on a per-room basis provided that the tenancy existed during the time the penalty charges accrued. Such charges shall not become part of a tenant's base rent. Where a penalty in any given billing period reflects a 25 percent or more increase in consumption over the prior billing period, and where that increase does not appear to result from increased occupancy or any other known use, a landlord may not impose any increase based upon such penalty unless inspection by a licensed plumber or Water Department inspector fails to reveal a plumbing or other leak. If the inspection does reveal a leak, no increase based upon penalties may be imposed at any time for the period of the unrepaired leak.

(B) **Fifty Percent (50%) Passthrough of Water Bill Charges Attributable to Water Increases Resulting From Issuance of Water System Improvement Revenue Bonds Authorized at the November 2002 Election.** A landlord may pass through fifty percent (50%) of the water bill charges attributable to water rate increases resulting from issuance of Water System Improvement Revenue Bonds authorized at the November 2002 election (Proposition A), to any unit that is in compliance with any applicable laws requiring water conservation devices. The landlord is not required to file a petition with the Board for

approval of such a cost passthrough. Such cost passthroughs are subject to the following:

(i) Affected tenants shall be given notice of any such passthrough as provided by applicable notice of rent increase provisions of this Chapter 37, including but not limited to Section 37.3(b)(3).

(ii) A tenant may file a hardship application with the Board, and be granted relief from all or part of such a cost passthrough.

(iii) If a tenant's hardship application is granted, the tenant's landlord may utilize any available Public Utilities Commission low-income rate discount program or similar program for water bill reduction, based on that tenant's hardship status.

(iv) A landlord shall not impose a passthrough pursuant to Section 37.3(a)(5)(B) if the landlord has filed for or received Board approval for a rent increase under Section 37.8(e)(4) for increased operating and maintenance expenses in which the same increase in water bill charges attributable to water rate increases resulting from issuance of any water revenue bonds authorized at the November 5, 2002 election was included in the comparison year cost totals.

(v) Where a tenant alleges that a landlord has imposed a water revenue bond passthrough that is not in compliance with Section 37.3(a)(5)(B), the tenant may petition for a hearing under the procedures provided by Section 37.8. In such a hearing the landlord shall have the burden of proving the accuracy of the calculation that is the basis for the increase. Any tenant petition challenging such a passthrough must be filed within one year of the effective date of the passthrough.

(vi) A tenant who has received a notice of passthrough or a passthrough under this Section 37.3(a)(5)(B) shall be entitled to receive a copy of the applicable water bill from the landlord upon request.

(vii) The amount of permissible passthrough per unit under this Section 37.3(a)(5)(B) shall be determined as follows:

(1) The San Francisco Public Utilities Commission will determine the charge per unit of water, if any, that is attributable to water rate increases resulting from issuance of water system improvement revenue bonds authorized at the November 5, 2002 election.

(2) The charge identified in Section 37.3(a)(5)(B)(vii)(1) shall be multiplied by the total units of water used by each customer, for each water bill. The result is the total dollar amount of the water bill that is attributable to water rate increases resulting from issuance of water system improvement revenue bonds authorized at the November 5, 2002 election. That charge shall be a separate line item on each customer's water bill.

(3) The dollar amount calculated under Section 37.3(a)(5)(B)(vii)(2) shall be divided by two (since a 50% passthrough is permitted), and then divided by the total number of units covered by the water bill, including commercial units. The resulting dollar figure shall be divided by the number of months covered by the water bill cycle (most are two-month bill cycles), to determine the amount of that water bill that may be passed through to each residential unit for each month covered by that bill.

(4) These passthroughs may be imposed on a monthly basis. These passthroughs shall not become part of a tenant's base rent. The amount of each passthrough may vary from month to month, depending on the amount calculated under Sections 37.3(a)(5)(B)(vii)(1) through (3).

(viii) The Board may amend its rules and regulations as necessary to implement this Section 37.3(a)(5)(B).

(6) Property Tax.

(A) Effective July 1, 2024, a landlord may impose increases based upon a 100% passthrough of the change in the landlord's property tax resulting from the repayment of general obligation bonds of the City and County of San Francisco approved by the voters between November 1, 1996, and November 30, 1998; a 50% passthrough of the change

in the landlord's property tax resulting from the repayment of general obligation bonds of the City and County of San Francisco approved by the voters after November 14, 2002; and a 50% passthrough of the change in the landlord's property tax resulting from the repayment of San Francisco Unified School District or San Francisco Community College District general obligation bonds approved by the voters after November 1, 2006, as provided in Section 37.2(q). General obligation bonds that meet the criteria set forth in the previous sentence are referred to herein as "Eligible Bonds;" provided, however, that a general obligation bond approved after December 20, 2000 may qualify as an Eligible Bond only if the passthrough was disclosed and approved by the voters. The City and County of San Francisco, San Francisco Unified School District, and San Francisco Community College District are referred to collectively as "the Issuing Entities."

To pass through the change in property tax resulting from the repayment of Eligible Bonds, the landlord shall calculate said change relative to the amount that the property tax rate increased due to the repayment of Eligible Bonds since each tenancy commenced, or 2005, whichever is later ("the Base Year"), as set forth in subsection (a)(6)(B).

(B) The Controller will first determine the percentage of the property tax rate, if any, attributable to general obligation bonds of any of the Issuing Entities ("the General Obligation Bond Factor") for each tax year. The passthrough rate for an individual tenant (the "Tenant Passthrough Rate") shall be based on the amount that the General Obligation Bond Factor for the current year has increased since the tenant's Base Year; and the degree to which said increase, if any, is attributable to Eligible Bonds, as measured by the ratio of debt service for the Eligible Bonds compared to the total debt service attributable to general obligation bonds of the Issuing Entities. The resulting figure shall then be discounted to reflect the specific percentage passthroughs for each of the Eligible Bonds as specified in subsection (A). The Controller shall prepare and annually update a form to help landlords and tenants calculate the Tenant Passthrough Rates. The Controller's authority to interpret and administer this calculation shall be liberally construed to further the purposes of this subsection (a)(6).

(C) To calculate the amount of increased property tax that the landlord can pass through to a tenant in any given year, the landlord shall divide the total amount of the net taxable value as of November 1 of the applicable tax year by the total number of all units in the property, including commercial units; and shall multiply the resulting figure by the applicable Tenant Passthrough Rate. The result is the dollar amount of increased property taxes for that tax year for a particular property attributable to the repayment of Eligible Bonds that the landlord may pass through to the tenant.

(D) The dollar amount calculated under subsection (a)(6)(C) shall then be divided by the total number of months that the passthrough may apply pursuant to subsection (a)(6)(E)(i), to determine the monthly per unit costs for that tax year of the repayment of general obligation bonds.

(E) Landlords may pass through to each unit in a particular property the dollar amount calculated under subsections (a)(6)(A)–(D), as provided in this subsection (a)(6)(E).

(i) All passthroughs shall apply for the same number of months covered by the property tax bills used in the passthrough calculation, and the calculation may not be based on tax bills issued more than three years prior to the year in which the passthrough was imposed.

(ii) The landlord shall give affected tenants notice of the passthrough as provided by applicable notice of rent increase provisions of this Chapter 37, including but not limited to Section 37.3(b)(3). The passthroughs may be imposed at any time in the calendar year, provided that the landlord serves notice of such passthrough to be effective on the anniversary date of each tenant's occupancy of the property.

The passthroughs shall not become a part of a tenant's base rent. The amount of each passthrough imposed pursuant to this subsection (a)(6) may vary from year-to-year, depending on the amount calculated by the Controller. A landlord may impose the passthroughs described in this subsection (a)(6) for a particular tax year only with respect to those tenants who were residents of a particular property on November 1 of the applicable tax year. A landlord shall not impose a passthrough pursuant to this subsection (a)(6) if the landlord has filed for or received Board approval for a rent increase under Section 37.8(e)(4) for increased operating and maintenance expenses in which the same increase in property taxes due to the repayment of general obligation bonds was included in the comparison year cost totals.

(F) A tenant who has received a passthrough under this subsection (a)(6) may file a financial hardship application with the Board, and the Board may grant the tenant complete or partial relief from the passthrough. The standards and procedures for the financial hardship application shall be as set forth in Sections 37.7(h)-(i).

(G) The Board will have available a form which explains how to calculate the passthrough. Landlords must provide to tenants, on or before the date that notice is served on the tenant of a passthrough permitted under this subsection (a)(6), a copy of the completed form. Landlords shall provide their tenants the completed forms in addition to the Notice of Rent Increase required under Section 37.3(b). Where a tenant alleges that a landlord has imposed a charge which exceeds the limitations set forth in this subsection (a)(6), the tenant may petition for a hearing under the procedures provided by Section 37.8. In such a hearing, the landlord shall have the burden of proving the accuracy of the calculation that is the basis for the increase. Any tenant petitions challenging such a passthrough must be filed within one year of the effective date of the passthrough.

(H) The Board and the Controller may amend their rules and regulations as necessary to implement this subsection (a)(6).

(7) **RAP Loans.** A landlord may impose rent increases attributable to the City Administrator's amortization of the RAP loan in an area designated on or after July 1, 1977, pursuant to Chapter 32 of the San Francisco Administrative Code.

(8) **Additional Increases.** A landlord who seeks to impose any rent increase which exceeds those permitted above shall petition for a rental arbitration hearing pursuant to Section 37.8 of this Chapter.

(9) A landlord may impose a rent increase to recover costs incurred for the remediation of lead hazards, as defined in San Francisco Health Code Article 11 or 26. Such increases may be based on changes in operating and maintenance expenses or for capital improvement expenditures as long as the costs which are the basis of the rent increase are a substantial portion of the work which abates or remediates a lead hazard, as defined in San Francisco Health Code Article 11 or 26, and provided further that such costs are approved for operating and maintenance expense increases pursuant to Section 37.8(e)(4)(A) and certified as capital improvements pursuant to Section 37.7 below.

When rent increases are authorized by this Subsection 37.3(a)(9), the total rent increase for both operating and maintenance expenses and capital improvements shall not exceed 10 percent in any 12 month period. If allowable rent increases due to the costs of lead remediation and abatement work exceed 10 percent in any 12 month period, an Administrative Law Judge shall apply a portion of such excess to approved operating and maintenance expenses for lead remediation work, and the balance, if any, to certified capital improvements, provided, however, that such increase shall not exceed 10 percent. A landlord may accumulate any approved or certified increase which exceeds this amount, subject to the 10 percent limit.

(10) With respect to units occupied by recipients of tenant-based rental assistance:

(A) If the tenant's share of the base rent is not calculated as a

fixed percentage of the tenant's income, such as in the Housing Choice Voucher Program and the Over-FMR Tenancy Program, or if the tenant is receiving assistance under the HOPWA rental subsidy program, then:

(i) If the base rent is equal to or greater than the payment standard, the rent increase limitations in Sections 37.3(a)(1) and (2) shall apply to the entire base rent, and the arbitration procedures for those increases set forth in Section 37.8 and 37.8A shall apply.

(ii) If the base rent is less than the payment standard, the rent increase limitations of this Chapter shall not apply; provided, however, that any rent increase which would result in the base rent being equal to or greater than the payment standard shall not result in a new base rent that exceeds the payment standard plus the increase allowable under Section 37.3(a)(1).

(B) If the tenant's share of the base rent is calculated as a fixed percentage of the tenant's income, such as in the Section 8 Certificate Program, the rent increase limitations in Section 37.3(a)(1) and (2) shall not apply. In such circumstances, adjustments in rent shall be made solely according to the requirements of the tenant-based rental assistance program.

(11) Additional Occupants.

(A) Except as provided in Section 37.3(a)(11)(B), a landlord may not impose increases solely because a tenant has added an additional occupant to an existing tenancy, including, but not limited to, a newborn child or family member as defined in Section 401 of the Housing Code. The prohibition on increases mandated by this Subsection (A) shall apply notwithstanding a rental agreement or lease that specifically permits a rent increase for additional occupants.

(B) A landlord may petition the Board for a rent increase pursuant to Section 37.3(a)(8) for costs associated with the addition of occupants authorized under Section 37.9(a)(2)(C).

(C) Rent increases otherwise permitted by the Costa-Hawkins Rental Housing Act, California Civil Code Section 1950 *et seq.* (as it may be amended from time to time) are not prohibited or limited by this Section 37.3(a)(11).

(12) **Parcel Taxes.** A landlord may impose increases based on a passthrough of up to 50% of the parcel tax imposed under Article 18 of the Business and Tax Regulations Code, up to a maximum passthrough of \$65 per unit per year, adjusted for inflation pursuant to Section 1804(b) of Article 18 of the Business and Tax Regulations Code. However, a landlord may not impose this passthrough on a unit the square footage of which is exempt from the parcel tax under Article 18. Additionally, a landlord may not impose this passthrough on a unit where the initial base rent was set on or after June 1, 2027.

(b) **Notice of Rent Increase for Tenants in Occupancy.** On or before the date upon which a landlord gives a tenant legal notice of a rent increase, the landlord shall inform the tenant, in writing, of the following:

(1) Which portion of the rent increase reflects the annual increase, and/or a banked amount, if any;

(2) Which portion of the rent increase reflects costs for increased operating and maintenance expenses, rents for comparable units, and/or capital improvements, rehabilitation, energy conservation measures improvements, or renewable energy improvements certified pursuant to Section 37.7. Any rent increase certified due to increases in operating and maintenance costs shall not exceed seven percent;

(3) Which portion of the rent increase reflects the passthrough of charges for: gas and electricity; or the passthrough of increased water bill charges attributable to water rate increases resulting from issuance of water revenue bonds authorized at the November 2002 election as provided by Section 37.3(a)(5)(B), which charges and calculations of charges shall be explained in writing on a form provided by the Board; or the passthrough of general obligation bond measure costs as provided by Section 37.3(a)(6), which charges shall be explained in writing on a

form provided by the Board as described in Section 37.3(a)(6)(E);

(4) Which portion of the rent increase reflects the amortization of the RAP loan, as described in Section 37.3(a)(7) above.

(5) **Nonconforming Rent Increases.** Any rent increase which does not conform with the provisions of this Section shall be null and void.

(6) With respect to rental units occupied by recipients of tenant-based rental assistance, the notice requirements of this Subsection (b) shall be required in addition to any notice required as part of the tenant-based rental assistance program.

(c) **Initial Rent Limitation for Subtenants.** A tenant who subleases his or her rental unit may charge no more rent upon initial occupancy of the subtenant or subtenants than that rent which the tenant is currently paying to the landlord.

(d) **Costa-Hawkins Rental Housing Act (Civil Code Sections 1954.50. *et seq.*).** Consistent with the Costa-Hawkins Rental Housing Act (Civil Code Sections 1954.50. *et seq.*) and regardless of whether otherwise provided under Chapter 37:

(1) **Property Owner Rights to Establish Initial and All Subsequent Rental Rates for Separately Alienable Parcels.**

(A) An owner of residential real property may establish the initial and all subsequent rental rates for a dwelling or a unit which is alienable separate from the title to any other dwelling unit or is a subdivided interest in a subdivision as specified in subdivision (b), (d), or (f) of Section 11004.5 of the California Business and Professions Code. The owner's right to establish subsequent rental rates under this subsection (d)(1)(A) shall not apply to a dwelling or unit where either of the following apply:

(i) The unit is a condominium dwelling or unit that has not been sold separately by the subdivider to a bona fide purchaser for value; but subsection (d)(1)(A) shall apply to a single unsold condominium dwelling or unit, if all the other condominium dwellings or units have been sold separately by the subdivider to bona fide purchasers for value, and the subdivider has occupied the remaining unsold condominium dwelling or unit as their principal residence for at least one year after the subdivision occurred.

(ii) The preceding tenancy has been terminated by the owner by notice pursuant to California Civil Code Section 1946.1 or has been terminated upon a change in the terms of the tenancy noticed pursuant to California Civil Code Section 827; in such instances, the rent increase limitation provisions of Chapter 37 shall continue to apply for the duration of the new tenancy in that dwelling or unit.

(B) Where the initial or subsequent rental rates of a Subsection 37.3(d)(1)(A) dwelling or unit were controlled by the provisions of Chapter 37 on January 1, 1995, the following shall apply:

(i) A tenancy that was in effect on December 31, 1995, remains subject to the rent control provisions of this Chapter 37, and the owner may not otherwise establish the subsequent rental rates for that tenancy.

(ii) On or after January 1, 1999, an owner may establish the initial and all subsequent rental rates for any tenancy created on or after January 1, 1996.

(C)¹ An owner's right to establish subsequent rental rates under Subsection 37.3(d)(1) shall not apply to a dwelling or unit which contains serious health, safety, fire or building code violations, excluding those caused by disasters, for which a citation has been issued by the appropriate governmental agency and which has remained unabated for six months or longer preceding the vacancy.

(D)¹ An owner's right to establish subsequent rental rates under subsection 37.3(d)(1) shall not apply to a dwelling or unit that is a new dwelling unit created pursuant to the Code provisions specified in subsection 37.2(r)(4)(D), or a dwelling unit that utilizes the Code provisions specified in subsection 37.2(r)(4)(D).

(2) **Conditions for Establishing the Initial Rental Rate Upon Sublet or Assignment.** Except as identified in this Subsection 37.3 (d)(2), nothing in this Subsection or any other provision of law of the City and County of San Francisco shall be construed to preclude express establishment in a lease or rental agreement of the rental rates to be applicable in the event the rental unit subject thereto is sublet, and nothing in this Subsection shall be construed to impair the obligations of contracts entered into prior to January 1, 1996, subject to the following:

(A) Where the original occupant or occupants who took possession of the dwelling or unit pursuant to the rental agreement with the owner no longer permanently reside there, an owner may increase the rent by any amount allowed by this Subsection to a lawful sublessee or assignee who did not reside at the dwelling or unit prior to January 1, 1996. However, such a rent increase shall not be permitted while:

(i) The dwelling or unit has been cited in an inspection report by the appropriate governmental agency as containing serious health, safety, fire, or building code violations, as defined by Section 17920.3 of the California Health and Safety Code, excluding any violation caused by a disaster; and,

(ii) The citation was issued at least 60 days prior to the date of the vacancy; and,

(iii) The cited violation had not been abated when the prior tenant vacated and had remained unabated for 60 days or for a longer period of time. However, the 60-day time period may be extended by the appropriate governmental agency that issued the citation.

(B) This Subsection 37.3(d)(2) shall not apply to partial changes in occupancy of a dwelling or unit where one or more of the occupants of the premises, pursuant to the agreement with the owner provided for above (37.3(d)(2)), remains an occupant in lawful possession of the dwellings or unit, or where a lawful sublessee or assignee who resided at the dwelling or unit prior to January 1, 1996, remains in possession of the dwelling or unit. Nothing contained in this Subsection 37.3(d)(2) shall be construed to enlarge or diminish an owner's right to withhold consent to a sublease or assignment.

(C) Acceptance of rent by the owner shall not operate as a waiver or otherwise prevent enforcement of a covenant prohibiting sublease or assignment or as a waiver of an owner's rights to establish the initial rental rate unless the owner has received written notice from the tenant that is party to the agreement and thereafter accepted rent.

(3) **Termination or Nonrenewal of a Contract or Recorded Agreement with a Government Agency Limiting Rent.** An owner who terminates or fails to renew a contract or recorded agreement with a governmental agency that provides for a rent limitation to a qualified tenant, shall be subject to the following:

(A) The tenant(s) who were beneficiaries of the contract or recorded agreement shall be given at least 90 days' written notice of the effective date of the termination and shall not be obligated to pay more than the tenant's portion of the rent, as calculated under that contract or recorded agreement, for 90 days following receipt of the notice of termination or nonrenewal.

(B) The owner shall not be eligible to set an initial rent for three years following the date of the termination or nonrenewal of the contract or agreement.

(C) The rental rate for any new tenancy established during the three-year period in that vacated dwelling or unit shall be at the same rate as the rent under the terminated or nonrenewed contract or recorded agreement, plus any increases authorized under this Chapter 37 after the date of termination/non renewal.

(D) The provisions of Subsections 37.3(d)(3)(B) and (C) shall not apply to any new tenancy of 12 months or more duration established after January 1, 2000, pursuant to the owner's contract

or recorded agreement with a governmental agency that provides for a rent limitation to a qualified tenant unless the prior vacancy in that dwelling or unit was pursuant to a nonrenewed or canceled contract or recorded agreement with a governmental agency that provides for a rent limitation to a qualified tenant.

(4) Subsection 37.3(d) does not affect the authority of the City and County of San Francisco to regulate or monitor the basis or grounds for eviction.

(5) This Subsection 37.3(d) is intended to be and shall be construed to be consistent with the Costa-Hawkins Rental Housing Act (Civil Code Sections 1954.50 *et seq.*).

(e) Effect of Deferred Maintenance on Passthroughs for Lead Remediation Techniques.

(1) When lead hazards are remediated or abated pursuant to San Francisco Health Code Articles 11 or 26, are violations of State or local housing health and safety laws, there shall be a rebuttable presumption that the lead hazards are caused or created by deferred maintenance as defined herein of the current or previous landlord. If the landlord fails to rebut the presumption, the costs of such work shall not be passed through to tenants as either a capital improvement or an operating and maintenance expense. If the landlord rebuts the presumption, he or she shall be entitled to a rent increase if otherwise justified by the standards set forth in this Chapter.

(2) For purposes of the evaluation of petitions for rent increases for lead remediation work, maintenance is deferred if a reasonable landlord under the circumstances would have performed, on a regular basis, the maintenance work required to keep the premises from being in violation of housing safety and habitability standards set forth in California Civil Code Section 1941 and the San Francisco Municipal Code. In order to prevail on a deferred maintenance defense, a tenant must show that the level of repair or remediation currently required would have been lessened had maintenance been performed in a more timely manner.

(f) **Costa-Hawkins Vacancy Control.** Where a landlord has terminated the previous tenancy as stated in either subsection (1), (2) or (3) below, for the next five years from the termination, the initial base rent for the subsequent tenancy shall be a rent not greater than the lawful rent in effect at the time the previous tenancy was terminated, plus any annual rent increases available under this Chapter 37. This Section 37.3(f) is intended to be consistent with California Civil Code Section 1954.53(a)(1)(A)-(B).

(1) Where the previous tenancy was terminated by a notice of termination of tenancy issued under California Civil Code Section 1946.1 stating the ground for recovery of possession under Sections 37.9(a)(8), (9), (10), (11), (14), or (17) of this Code. For purposes of the termination of tenancy under Section 37.9(a)(9), the initial rent for the unit may be set by a subsequent bona fide purchaser for value of the condominium.

(2) Where the previous tenancy was terminated upon a change in terms of tenancy noticed under California Civil Code Section 827, except a change in rent permitted by law. Within 10 days after serving the notice of termination based upon a change in terms of tenancy under Civil Code Section 827, the landlord shall notify the Board in writing of the monthly rent the tenant was paying when the landlord gave the notice to the tenant, and provide a copy of the notice to the Board to the tenant.

(3) Where the landlord terminated or did not renew a contract or recorded agreement with a governmental agency that provided for a rent limitation to a qualified tenant. When a landlord terminates a tenant-based rental assistance program, the landlord shall, within 10 days after giving the notice of termination of the program to the tenant, notify the Board in writing of the monthly rent the tenant was paying and the monthly rent paid by the program to the landlord on behalf of

the tenant when the landlord gave notice to the tenant, and provide a copy of the notice to the Board to the tenant.

(g) New Construction and Substantial Rehabilitation.

(1) An owner of a residential dwelling or unit which is newly constructed and first received a certificate of occupancy after the effective date of Ordinance No. 276-79 (June 13, 1979), or which the Rent Board has certified has undergone a substantial rehabilitation, may establish the initial and all subsequent rental rates for that dwelling or unit, except where any of the following apply:

(A) Where rent restrictions apply to the dwelling or unit under Sections 37.3(d) or 37.3(f).

(B) Where the dwelling or unit is a replacement unit under Section 37.9A(b).

(C) As provided for certain categories of units under Section 37.2(r)(4)(D).

(D) As provided in a development agreement entered into by the City under Administrative Code Chapter 56.

(E) The Board of Supervisors acknowledges that at least through November 5, 2024, California Civil Code Sections 1954.52(a)(1)-(2) preclude the City from updating the June 13, 1979 new construction date specified in this subsection (g)(1). In the event State law is amended or repealed in this regard, said new construction date shall immediately cease to apply, and shall by operation of law pursuant to this subsection (g)(1)(E) be updated to reflect the latest date that State law may allow, up to and including June 13, 1994. The applicability of an updated new construction date under this subsection (g)(1)(E) shall not affect whether a unit is exempt under some other legal basis set forth in this Chapter 37. If no other exemption applies and a unit becomes covered by Chapter 37's rent increase limitations by operation of this subsection (g)(1)(E), the initial base rent shall be the lawful rent that applied as of the date of coverage. If no rent was in effect as of the date of coverage, then the initial base rent shall be the first lawful rent in effect after that date.

SEC. 37.8. ARBITRATION OF RENTAL INCREASE ADJUSTMENTS.

(a) **Authority of Board and Administrative Law Judge.** In accordance with such guidelines as the Board shall establish, the Board and designated Administrative Law Judges shall have the authority to arbitrate rental increase adjustments, and to administer the rent increase protest procedures with respect to RAP rental units as set forth in Chapter 32 of the San Francisco Administrative Code.

(b) Request for Arbitration.

(1) **Landlords.** Landlords who seek to impose rent increases which exceed the limitations set forth in Section 37.3(a) above must request an arbitration hearing as set forth in this Section. The burden of proof is on the landlord. This Section 37.8(b)(1) applies, but is not limited, to Operating and Maintenance Expense petitions to increase base rent.

(A) Where a landlord Operating and Maintenance Expense petition to increase base rent is granted, based upon a petition pending or filed on or after October 28, 2003 for a property with six or more residential units, the same landlord shall not impose more than a total seven percent (7%) base rent increase on any unit in any five (5) year period due to increases in operating and maintenance costs.

(2) Tenants.

(A) Notwithstanding Section 37.3, tenants of non-RAP rental units and tenants of RAP rental units in areas designated on or after July 1, 1977, may request arbitration hearings where a landlord has substantially decreased services without a corresponding reduction in rent and/or has failed to perform ordinary repair and maintenance under State or local law and/or has failed to provide the tenant with a clear explanation of the current charges for gas and electricity or bond measure costs passed through to the tenant and/or imposed a nonconforming rent increase which is null and void. The burden of

proof is on the tenant.

(B) Tenants of RAP rental units in areas designated prior to July 1, 1977, may petition for a hearing where the landlord has noticed an increase which exceeds the limitations set forth in Section 32.73 of the San Francisco Administrative Code. After a vacancy has occurred in a RAP rental unit in said areas, a new tenant of said unit may petition for a hearing where the landlord has demanded and/or received a rent for that unit which exceeds the rent increase limitations set forth in Section 32.73 of the San Francisco Administrative Code. The burden of proof is on the landlord.

(c) **Procedure for Landlord Petitioners.**

(1) **Filing.** The request for arbitration must be filed on a petition form prescribed by the Board and shall be accompanied by such supporting material as the Board shall prescribe, including but not limited to, justification for the proposed rental increase.

(2) **Filing Date.** The petition must be filed prior to the mailing or delivering to the tenant or tenants legal notice of the rental increase exceeding the limitations as defined in Section 37.3.

(3) **Effect of Timely Filing of Petition.** Provided a completed petition is timely filed, that portion of the requested rental increase which exceeds the limitations set forth in Section 37.3 and has not been certified as a justifiable increase in accordance with Section 37.7 is inoperative until such time as the Administrative Law Judge makes findings of fact at the conclusion of the arbitration hearing.

(4) **Notice to Parties.** The Board shall calendar the petition for hearing before a designated Administrative Law Judge and shall give written notice of the date to the parties at least 10 days prior to the hearing.

(d) **Procedure for Tenant Petitioners.**

(1) **Filing; Limitation.** The request for arbitration must be filed on a petition form prescribed by the Board and must be accompanied by such supporting material as the Board shall prescribe, including but not limited to, a copy of the landlord's notice of rent increase. If the tenant petitioner has received certification findings regarding his rental unit in accordance with Section 37.7, such findings must accompany the petition. If the tenant petitioner has received a notification from the Chief Administrative Officer with respect to base rent and amortization of a RAP loan, such notification must accompany the petition. A tenant petition regarding a gas and electricity passthrough must be filed within one year of the effective date of the passthrough or within one year of the date the passthrough was required to be recalculated pursuant to rules and regulations promulgated by the Board. A tenant petition regarding a water revenue bond passthrough under Section 37.3(a)(5)(B) must be filed within one year of the effective date of the passthrough. A tenant petition regarding a general obligation bond cost passthrough under Section 37.3(a)(6) must be filed within one year of the effective date of the passthrough.

(2) **Notice to Parties.** The Board shall calendar the petition for hearing before a designated Administrative Law Judge and shall give written notice of the date to the parties at least 10 days prior to the hearing. Responses to a petition for hearing may be submitted in writing

(e) **Hearings.**

(1) **Time of Hearing.** The hearing shall be held within 45 days of the filing of the petition. The level of housing services provided to tenants' rental units shall not be decreased during the period between the filing of the petition and the conclusion of the hearing.

(2) **Consolidation.** To the greatest extent possible, hearings with respect to a given building shall be consolidated.

(3) **Conduct of Hearing.** The hearing shall be conducted by an Administrative Law Judge designated by the Board. Both parties may offer such documents, testimony, written declarations or other evidence as may be pertinent to the proceedings. A record of the proceedings must be maintained for purposes of appeal.

(4) **Determination of the Administrative Law Judge: Rental Units.** Based upon the evidence presented at the hearing and upon such relevant factors as the Board shall determine, the Administrative Law Judge shall make findings as to whether the landlord's proposed rental increase exceeding the limitations set forth in Section 37.3 is justified or whether the landlord has effected a rent increase through a reduction in services or has failed to perform ordinary repair and maintenance as required by State or local law; and provided further that, where a landlord has imposed a passthrough pursuant to this Chapter 37, the same costs shall not be included in the calculation of increased operating and maintenance expenses pursuant to this subsection (4). In making such findings, the Administrative Law Judge shall take into consideration the following factors:

(A) Increases or decreases in operating and maintenance expenses, including, but not limited to, water and sewer service charges; janitorial service; refuse removal; elevator service; security system; insurance for the property; debt service and real estate taxes as set forth in subsections (i) and (ii); reasonable and necessary management expenses as set forth in subsection (iii); and routine repairs and maintenance as set forth in subsection (iv).

(i) For petitions filed before December 11, 2017, the Rent Board may consider increased debt service and increased real estate taxes; provided, however, that if the property has been purchased within two years of the date of the previous purchase, consideration shall not be given to that portion of increased debt service which has resulted from a selling price which exceeds the seller's purchase price by more than the percentage increase in the "Consumer Price Index for All Urban Consumers for the San Francisco-Oakland Metropolitan Area, U.S. Department of Labor" between the date of previous purchase and the date of the current sale, plus the cost of capital improvements or rehabilitation work made or performed by the seller.

(ii) For petitions filed on or after December 11, 2017, the Rent Board shall not consider any portion of increased debt service, or that portion of increased real estate taxes that has resulted from an increased assessment due to a change in ownership; provided, however, that the Rent Board may consider that portion of increased real estate taxes that has resulted from the completion of needed repairs or capital improvements with respect to any petition filed on or after December 11, 2017; and provided, further, that the Rent Board may consider increased debt service and increased real estate taxes in a petition filed on or after December 11, 2017 pursuant to Section 37.8(e)(4)(A)(i), if the landlord demonstrates that it had purchased the property on or before April 3, 2018 and that it had reasonably relied on its ability to pass through those costs at the time of the purchase. Further, the Rent Board shall not consider any portion of increased costs attributable to the parcel tax imposed under Article 18 of the Business and Tax Regulations Code.

(iii) For petitions filed on or after the effective date of the ordinance in Board of Supervisors File No. 180318, the Rent Board may consider management expenses only to the extent those expenses are reasonable and necessary, based on factors such as the need to provide day-to-day management of the building; the level of management services previously required for the building; the reasonable cost of the services in an arms-length transaction; whether any tenants have objected that the cost and quality of the services are not in keeping with the socioeconomic status of the building's existing tenants; and other extraordinary circumstances.

(iv) The term routine repairs and maintenance shall not include any costs for installation or upgrade of a fire sprinkler system or fire alarm and/or detection system attributable to the landlord's compliance with a Fire Life Safety Notice and Order issued by the Building Official under Sections 107A.16.1 *et seq.* of the Building Code or the fire code official under Sections 109.3 *et seq.* of

the Fire Code.

(B) The past history of increases in the rent for the unit and the comparison of the rent for the unit with rents for comparable units in the same general area.

(C) Any findings which have been made pursuant to Section 37.7 with respect to the unit.

(D) Failure to perform ordinary repair, replacement, and maintenance in compliance with applicable State and local law.

(E) Any other such relevant factors as the Board shall specify in rules and regulations.

(5) Determination of the Administrative Law Judge: RAP Rental Units.

(A) **RAP Rental Units in RAP Areas Designated Prior to July 1, 1977.** The Administrative Law Judge shall make findings as to whether or not the noticed or proposed rental increase exceeds the rent increase limitations set forth in Section 32.73 of the San Francisco Administrative Code. In making such findings, the Administrative Law Judge shall apply the rent increase limitations set forth in Chapter 32 of the San Francisco Administrative Code and all rules and regulations promulgated pursuant thereto. The Administrative Law Judge shall consider the evidence presented at the hearing. The burden of proof shall be on the landlord.

(B) **RAP Rental Units in RAP Areas Designated On or After July 1, 1977.** The Administrative Law Judge shall make findings with respect to rent increases exceeding the limitations as set forth in Section 37.3 of this Chapter. In making such findings, the Administrative Law Judge shall take into consideration the factors set forth in Subsection (4) above and shall consider evidence presented at the hearing. The burden of proof is on the landlord.

(6) **Findings of Fact.** The Administrative Law Judge shall make written findings of fact, copies of which shall be mailed to the parties within 30 days of the hearing.

(7) **Payment or Refund of Rents to Implement Arbitration Decision.** Upon finding that all or any portion of the rent increase is or is not justified, or that any nonconforming rent increase is null and void, the Administrative Law Judge may order payment or refund of all or a portion of that cumulative amount within 15 days of the mailing of the findings of fact or may order the amount added to or offset against future rents; provided, however, that any such order shall be stayed if an appeal is timely filed by the aggrieved party. The Administrative Law Judge may order refunds of rent overpayments resulting from rent increases which are null and void for no more than the three-year period preceding the month of the filing of a landlord or tenant petition, plus the period between the month of filing and the date of the Administrative Law Judge's decision. In any case, calculation of rent overpayments and re-setting of the lawful base rent shall be based on a determination of the validity of all rent increases imposed since April 1, 1982, in accordance with Sections 37.3(b)(5) and 37.3(a)(2) above.

(8) **Finality of Administrative Law Judge's Decision.** The decision of the Administrative Law Judge shall be final unless the Board vacates his decision on appeal.

(f) Appeals.

(1) **Time and Manner.** Any appeal to the Board from the determination of the Administrative Law Judge must be made within 15 calendar days of the mailing of the findings of fact unless such time limit is extended by the Board upon a showing of good cause. If the fifteenth day falls on a Saturday, Sunday or legal holiday, the appeal may be filed with the Board on the next business day. The appeal shall be in writing and must state why appellant believes there was either error or abuse of discretion on the part of the Administrative Law Judge. The filing of an appeal will stay only that portion of any Administrative Law Judge's decision which permits payment, refund, offsetting or adding rent.

(2) **Record on Appeal.** Upon receipt of an appeal, the entire administrative record of the matter, including the appeal, shall be filed with the Board.

(3) **Appeals.** The Board shall, in its discretion, hear appeals. In deciding whether or not to hear a given appeal, the Board shall consider, among other factors, fairness to the parties, hardship to either party, and promoting the policies and purposes of this Chapter, in addition to any written comments submitted by the Administrative Law Judge whose decision is being challenged. The Board may also review other material from the administrative record of the matter as it deems necessary. A vote of three members shall be required in order for an appeal to be heard.

(4) **Remand to Administrative Law Judge Without Appeal Hearing.** In those cases where the Board is able to determine on the basis of the documents before it that the Administrative Law Judge has erred, the Board may remand the case for further hearing in accordance with its instructions without conducting an appeal hearing. Both parties shall be notified as to the time of the re-hearing, which shall be conducted within 30 days of remanding by the Board. In those cases where the Board is able to determine on the basis of the documents before it that the Administrative Law Judge's findings contain numerical or clerical inaccuracies, or require clarification, the Board may continue the hearing for purposes of re-referring the case to said Administrative Law Judge in order to correct the findings.

(5) **Time of Appeal Hearing; Notice to Parties.** Appeals accepted by the Board shall be heard within 45 days of the filing of an appeal. Within 30 days of the filing of an appeal, both parties shall be notified in writing as to whether or not the appeal has been accepted. If the appeal has been accepted, the notice shall state the time of the hearing and the nature of the hearing. Such notice must be mailed at least 10 days prior to the hearing.

(6) **Appeal Hearing; Decision of the Board.** At the appeal hearing, both appellant and respondent shall have an opportunity to present oral testimony and written documents in support of their positions. After such hearing and after any further investigation which the Board may deem necessary the Board may, upon hearing the appeal, affirm, reverse or modify the Administrative Law Judge's decision or may remand the case for further hearing in accordance with its findings. The Board's decision must be rendered within 45 days of the hearing and the parties must be notified of such decision.

(7) **Notification of the Parties.** In accordance with item (6) above, parties shall receive written notice of the decision. The notice shall state that this decision is final.

(8) **Effective Date of Appeal Decisions.** Appeal decisions are effective on the date mailed to the parties; provided, however, that that portion of any decision which orders payment, refund, offsetting or adding rent shall become effective 30 calendar days after it is mailed to the parties unless a stay of execution is granted by a court of competent jurisdiction.

(9) **Limitation of Actions.** A landlord or tenant aggrieved by any decision of the Board must seek judicial review within 90 calendar days of the date of mailing of the decision.

SECTION 4. Article XIII of Chapter 10 of the Administrative Code is hereby amended by adding Section 10.100-338, to read as follows:

SEC. 10.100-338. STRONGER MUNI FUND.

(a) Establishment of Fund. *The Stronger Muni Fund ("Fund") is established as a category four fund as defined in Section 10.100-1 of the Administrative Code, and shall receive all taxes, penalties, interest, and fees collected from the Stronger Muni For All Parcel Tax imposed under Article 18 of the Business and Tax Regulations Code.*

(b) Use of Fund. *Subject to the budgetary and fiscal provisions of the Charter, monies in the Fund shall be used exclusively*

for the purposes described in Section 1810 of Article 18 of the Business and Tax Regulations Code.

(c) The Controller shall report to the Board of Supervisors as required by subsection (c) of Section 1810 of Article 18 the Business and Tax Regulations Code.

SECTION 5. Appropriations Limit Increase.

Pursuant to California Constitution Article XIII B and applicable laws, for four years from November 3, 2026, the appropriations limit for the City shall be increased by the aggregate sum of the tax imposed by Article 18 of the Business and Tax Regulations Code.

SECTION 6. No Conflict with Federal or State Law.

Nothing in this measure shall be interpreted or applied so as to create any requirement, power, or duty in conflict with any federal or state law.

SECTION 7. Scope of Ordinance.

In enacting this ordinance, the People of the City and County of San Francisco intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Municipal Code that are explicitly shown in this ordinance as additions or deletions, in accordance with the “Note” that appears under the official title of the ordinance.

SECTION 8. Severability.

Except as provided in Section 1814(b) of Article 18 of the Business and Tax Regulations Code in Section 2 of this ordinance, if any section, subsection, sentence, clause, phrase, or word of this ordinance, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of the ordinance. The People of the City and County of San Francisco hereby declare that they would have adopted this ordinance and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this ordinance or application thereof would be subsequently declared invalid or unconstitutional.

SECTION 9. Effective Date.

The effective date of this ordinance shall be at 12:00 a.m. on the eleventh day after the date the official vote count is declared by the Board of Supervisors.

Proposition I

Affordable Housing Guarantee Act

Ordinance dedicating revenue from the existing real estate transfer tax on properties valued at \$10 million or more exclusively to the protection, preservation, and production of affordable housing in San Francisco. It guarantees that funds cannot be diverted to other uses and creates new accountability requirements for how the money is spent.

NOTE: Unchanged Code text and uncodified text are in plain font.

Additions to Codes are in single-underline italics font.

Deletions to Codes are in ~~strikethrough italics~~ font.

WHEREAS, San Francisco is in a housing emergency—working families, seniors, teachers, nurses, and longtime residents are being forced out of the city they call home because there is simply not enough affordable housing, and without urgent action, that crisis will only deepen; and

WHEREAS, Only 7% of San Francisco’s public employees can afford current market rate rents, 40% of workers don’t reside in San Francisco, median income public employees would have a

rent-burden of 59% if they lived in non-rent-controlled housing, and San Francisco would have to triple affordable housing production to meet the range of housing needs to fit workers’ wages according to the 2021 San Francisco Labor Council’s Housing Our Workers Report; and

WHEREAS, the City must build 82,069 new homes by 2031 to meet its identified housing need, and more than half—nearly 47,000—must be affordable to the low- and moderate-income San Franciscans who cannot survive in the private market without help; and

WHEREAS, more than 17,000 affordable homes are fully approved and ready to build, but sit idle because the public funding to break ground has not been secured—every year of delay means more families displaced, more seniors evicted, more workers priced out, and building costs increase; and

WHEREAS, at our current pace, San Francisco is building affordable housing six times slower than required—averaging fewer than 900 affordable units per year when the City needs nearly 5,825—and faces a staggering \$26.6 billion funding gap over the next decade, with identified revenues covering less than 15 cents of every dollar needed; and

WHEREAS, San Francisco voters have already shown the way: the 2020 transfer tax on properties sold for \$10 million or more has generated more than \$200 million that prevented more than 25,000 evictions, removed hundreds of homes from the speculative market, and created over 550 new affordable homes, proving that when we spend this revenue on housing, it works; and

WHEREAS, this Measure does not raise taxes above rates already approved by the voters—it guarantees that money already collected from high-value property sales goes where San Franciscans intended it to go: protecting, preserving, and producing affordable housing for the people who make this city run;

THEREFORE, the People of the City and County of San Francisco do ordain as follows:

Section 1. Purpose. The purposes of this Measure are to guarantee that the existing documentary transfer tax contributes to solving housing and homelessness in San Francisco by dedicating a portion of the existing revenue to specific housing and homelessness prevention strategies; to do so without raising taxes; to provide funding for new models of affordable and social housing; to prevent San Franciscans from falling into homelessness; to require mandatory audits and reporting of all monies raised and spent; and to ensure that these dedications and strategies cannot be changed without a vote of the people.

Section 2. Article 12-C of the Business and Tax Regulations Code is hereby amended by revising Section 1102, to read as follows:

SEC. 1102. TAX IMPOSED.

There is hereby imposed on each deed, instrument or writing by which any lands, tenements, or other realty sold within the City and County of San Francisco shall be granted, assigned, transferred or otherwise conveyed to, or vested in, the purchaser or purchasers, or any other person or persons, by ~~his or her or~~ their direction, when the consideration or value of the interest or property conveyed (not excluding the value of any lien or encumbrances remaining thereon at the time of sale) (a) exceeds \$100 but is less than or equal to \$250,000, a tax at the rate of \$2.50 for each \$500 or fractional part thereof; or (b) more than \$250,000 and less than \$1,000,000, a tax at the rate of \$3.40 for each \$500 or fractional part thereof for the entire value or consideration, including, but not limited to, any portion of such

value or consideration that is less than \$250,000; or (c) at least \$1,000,000 and less than \$5,000,000, a tax at the rate of \$3.75 for each \$500 or fractional part thereof for the entire value or consideration, including, but not limited to, any portion of such value or consideration that is less than \$1,000,000; or (d) at least \$5,000,000 and less than \$10,000,000, a tax at the rate of \$11.25 for each \$500 or fractional part thereof for the entire value or consideration, including, but not limited to, any portion of such value or consideration that is less than \$5,000,000; or (e) at least \$10,000,000 and less than \$25,000,000, a tax at the rate of ~~\$27.50~~ \$13.75 for each \$500 or fractional part thereof for the entire value or consideration, including but not limited to, any portion of such value or consideration that is less than \$5,000,000; or (f) at least \$25,000,000, a tax at the rate of ~~\$30~~ \$15 for each \$500 or fractional part thereof for the entire value or consideration, including but not limited to, any portion of such value or consideration that is less than \$25,000,000. The Board of Supervisors of the City and County of San Francisco may enact ordinances, without further voter approval, that will exempt rent-restricted affordable housing, as the Board may define that term, from the tax imposed by this section.

Section 3. Article 12-C of the Business and Tax Regulations Code is hereby amended by adding Section 1102.3, to read as follows:

SEC. 1102.3 HOUSE SF TAX IMPOSED

In addition to and separate from any tax imposed under Section 1102, there is hereby imposed a tax known as the "House SF Tax" on each deed, instrument or writing by which any lands, tenements, or other realty sold within the City and County of San Francisco shall be granted, assigned, transferred or otherwise conveyed to, or vested in, the purchaser or purchasers, or any other person or persons, by their direction, when the consideration or value of the interest or property conveyed (not excluding the value of any lien or encumbrances remaining thereon at the time of sale) (a) exceeds \$10,000,000 and less than \$25,000,000, a tax at the rate of \$13.75 for each \$500 or fractional part thereof for the entire value or consideration, including but not limited to, any portion of such value or consideration that is less than \$10,000,000; or (b) at least \$25,000,000, a tax at the rate of \$15 for each \$500 or fractional part thereof for the entire value or consideration, including but not limited to, any portion of such value or consideration that is less than \$25,000,000. The Board of Supervisors of the City and County of San Francisco may enact ordinances, without further voter approval, that will exempt rent-restricted affordable housing, as the Board may define that term, from the increased tax rate in this section. This tax shall be collected at the same time and in the same manner as the tax imposed by Section 1102. Any deed, instrument or writing that is exempt from the tax imposed under Section 1102, or any portion of the tax imposed under Section 1102, shall be exempt from the tax imposed by this section to the same extent it is exempt from the tax imposed under Section 1102. Notwithstanding, any deed, instrument or writing that qualifies for the reduced tax rate pursuant to Section 1108.8 shall be exempt from the tax imposed by this section. Notwithstanding Section 1102 herein, the House SF Tax shall not be imposed on any deed, instrument or writing meeting all of the following conditions:

- (a) it is the first sale following the issuance of the certificate of occupancy (whether this is a permanent certificate of occupancy or temporary certificate of occupancy) issued for the property;
- (b) the real property being transferred contains 4 or more

- dwelling units designed for permanent residential occupancy;
- (c) the certificate of occupancy for the dwelling units was issued after the effective date of this ordinance;
- (d) the certificate of occupancy for the dwelling units was issued within the previous 5 years; and
- (e) the newly constructed dwelling units resulted in a net increase in the total number of dwelling units on the real property.

Section 4. Article 12-C of the Business and Tax Regulations Code is hereby amended by adding Section 1114.1, to read as follows:

SEC. 1114.1. DEPOSIT OF PROCEEDS.

- (a) All monies collected under Section 1102.3 shall be deposited to the credit of the House SF Fund established in Administrative Code Section 10.100-12. The Fund shall be maintained separate and apart from all other City funds and shall be subject to appropriation. Any balance remaining in the Fund at the close of any fiscal year shall be deemed to have been provided for specified purposes within the meaning of Charter Section 9.113(a) and shall be carried forward and accumulated in the Fund for the purposes described in Section 1114.2.
- (b) The Controller shall conduct a mandatory audit and file annually with the Board of Supervisors, by February 15 of each year, a report containing the amount of monies collected in and expended from the House SF Fund during the prior fiscal year, the status of any project required or authorized to be funded by Section 1114.2, the results of the mandatory audit, and such other information as the Controller, in the Controller's sole discretion, shall deem relevant to the operation of this Article 12-C.

Section 5. Article 12-C of the Business and Tax Regulations Code is hereby amended by adding Section 1114.2, to read as follows:

SEC. 1114.2. EXPENDITURE OF PROCEEDS.

Subject to the budgetary and fiscal provisions of the Charter, monies in the House SF Fund shall be appropriated on an annual or supplemental basis and used exclusively for the following purposes:

- (a) To the Tax Collector and other City Departments, for administration of Section 1102.3 and administration of the House SF Fund, which shall be no more than 5% of annual revenue.
- (b) Refunds of any overpayments of the tax imposed by Section 1102.3, including any related penalties, interest, and fees.
- (c) All remaining amounts to provide funding, including administrative costs, for the following House SF Programs:
 - (1) No less than 60% of annual revenue shall be allocated to Affordable Housing Production Programs, to be used as follows:
 - (A) At least 50% of Affordable Housing Production Programs funding shall be used for Alternative Models for Permanent Affordable Housing, as described in Administrative Code Section 10.100-12(c)(2)(A).
 - (B) The remainder of Affordable Housing Production Programs funding shall be used for Multifamily Affordable Housing as described in Administrative Code Section 10.100-12(c)(2)(B).
 - (2) No less than 25% of annual revenue shall be allocated to Preservation/Acquisition Programs, to be used as follows:
 - (A) At least 60% of Preservation/Acquisition Programs

funding shall be used for New Acquisitions as described in Administrative Code Section 10.100-12(c)(3)(A).

- (B) The remainder of Preservation/Acquisition Programs funding shall be used for Rehabilitation and Capital Stabilization of Existing Affordable Housing as described in Administrative Code Section 10.100-12(c)(3)(B).
- (3) No less than 10% of annual revenue shall be allocated to Tenant Stabilization/Homelessness Prevention Programs, to be used as follows:
 - (A) At least 50% of Tenant Stabilization/Homelessness Prevention Programs funding shall be used for Eviction Defense and Prevention as described in Administrative Code Section 10.100-12(c)(4)(A).
 - (B) The remainder of Tenant Stabilization/Homelessness Prevention Programs shall be used for Emergency Rental Assistance, as described in Administrative Code Section 10.100-12(c)(4)(B).
- (d) To the extent the expenditure of any monies from the House SF Fund results in, or contributes to, the development, construction, or acquisition of low rent housing projects in the City and County of San Francisco by public agencies, that development, construction, or acquisition is hereby deemed authorized by the People of the City and County of San Francisco, having been duly approved by a majority of qualified electors of the City, and with such authorization constituting the approval required by Article XXXIV of the California Constitution. The development, construction, and/or acquisition of low rent housing units authorized by this section shall be in addition to any other authorization of the development, construction, and/or acquisition of such housing by the voters of the City before or after adoption of this section. This section in no way restricts or limits the City's authority to develop or assist in the development of housing that is not subject to Article XXXIV. This Section 1114.2(d) shall be interpreted to maximize affordable housing production and acquisition. As used in this Section 1114.2(d), the terms "public agency", "develop", "construct", "acquire", and "low rent housing projects" shall be interpreted in accordance with Article XXXIV of the California Constitution, California Health and Safety Code Section 37000 et seq., and any successor legislation thereto.
- (e) Nothing in this Ordinance shall limit the City's ability to issue bonds consistent with Charter Section 16.110(f) or any other authority, so long as the proceeds from bonds backed by monies collected under Section 1102.3 are expended consistent with this section.

Section 6. Article 12-C of the Business and Tax Regulations Code is hereby amended by repealing Section 1119:

SEC. 1119. AMENDMENT OF ARTICLE:

The Board of Supervisors may amend or repeal this Article 12-C by ordinance without a vote of the people except as limited by the California Constitution.

Section 7. Article XIII of Chapter 10 of the Administrative Code is hereby amended by adding Section 10.100-12, to read as follows:

SEC. 10.100-12. HOUSE SF FUND.

- (a) **Establishment of Fund.** The House SF Fund (the "Fund") is established as a category eight fund to receive any monies appropriated or donated for the purpose of providing funds for the purposes enumerated in Section 10.100-12(b).
- (b) **Purposes of Fund.** The goals and purposes of the House

SF Fund are:

- (1) Improving access to permanently affordable housing for vulnerable populations including but not limited to seniors in Lower Income Households, formerly homeless persons, persons with disabilities, veterans, single-parent households, youth in transition, and survivors of domestic violence.
- (2) Addressing the City's residents' need for affordable housing and tenant protections in each of the Supervisorial Districts, Affirmatively Furthering Fair Housing goals, Housing Element goals and Regional Housing Needs Assessment affordable housing allocations.
- (3) Prioritizing expenditure of housing production funding for Acutely Low Income Households, Extremely Low Income Households, Very Low Income Households, and Low Income Households categories and prioritizing expenditure of rental subsidy funding for Acutely Low Income Households and Extremely Low Income Households categories.
- (4) Increasing the supply of affordable housing served by transit, and providing housing stability and tenant protections in communities served by transit.
- (5) Preserving the City's existing supply of affordable housing, whether currently subsidized, facing expiration of subsidy, or unsubsidized.
- (6) Deploying programs and policies funded through this initiative in such a way as to address racial segregation, dismantle racially exclusionary practices, and promote racial equity in housing, academic, and economic opportunities.
- (7) Utilizing public land for affordable housing produced through this program, including but not limited to underutilized land owned by the City and County of San Francisco or other government agencies.
- (8) Establishing new funding and programs for the creation, preservation and acquisition of affordable housing and homelessness prevention that supplement existing City funding and programs.
- (c) **Use of Fund.** All expenditures from this Fund shall be made for the purpose of administering and implementing the House SF Program in the amounts specified in Section 1114.2(c) of Article 12-C of the Business and Tax Regulations Code.
 - (1) **Definitions**
 - (A) "Acutely Low Income Households" shall have the same meaning as in Section 50063.5 of the California Health and Safety Code.
 - (B) "Affirmatively Furthering Fair Housing" shall have the same meaning as in Section 8899.50 of the California Government Code.
 - (C) "City" means the City and County of San Francisco.
 - (D) "Community Land Trust" means a nonprofit corporation within Section 501(c)(3) of the Internal Revenue Code that satisfies all of the following:
 - (I) Has as its primary purposes the creation and maintenance of permanently affordable single-family or multifamily residences;
 - (II) All dwellings and units located on the land owned by the nonprofit corporation are sold to a qualified owner to be occupied as the qualified owner's primary residence or rented to Lower Income Households or Moderate Income Households, or held by

the nonprofit corporation for the same purpose;
(III) When a dwelling or unit that is situated on land
owned by the nonprofit corporation is sold to a
qualified owner, the land is leased by the nonprofit
corporation to the qualified owner for the convenient
occupation and use of that dwelling or unit for a
renewable term of 99 years.

- (E) "Department" means the San Francisco Mayor's
Office of Housing and Community Development, or
any other agency or department designated by the
Board of Supervisors.
- (F) "Extremely Low Income Households" shall have the
same meaning as in Section 50106 of the California
Health and Safety Code.
- (G) "Limited-Equity Housing Cooperative" shall
have the same meaning as in Section 817 of the
California Civil Code.
- (H) "Low Income Households" shall mean Lower
Income Households whose gross incomes exceed
the maximum for Very Low Income Households.
- (I) "Lower Income Households" shall have the same
meaning as in Section 50079.5 of the California
Health and Safety Code.
- (J) "Moderate Income Households" shall have the
same meaning as the term "Persons and families of
moderate income" as defined in Section 50093(b)
of the California Health and Safety Code.
- (K) "Very Low Income Households" shall have the
same meaning as in Section 50105 of the California
Health and Safety Code.
- (2) Affordable Housing Production Program funds shall be
allocated in the following categories, according to the
allocations set forth in Section 1114.2 of the Business
and Tax Regulations Code:
 - (A) **Alternative Models for Permanent Affordable**
Housing. Funding for Alternative Models for
Permanent Affordable Housing may only be
used for programs that result in the construction,
acquisition, rehabilitation, adaptive reuse,
lease, preservation, or operation of supportive
or affordable rental or mixed rental/homeowner
projects, or to pay the principal and interest on
debt incurred for such purpose. This funding shall
only be used for Social Housing Developments,
as defined in Section 10.100-78(e), subject to the
following conditions:
 - i) Residents shall have the right to participate
directly and meaningfully in decision-making
concerning the operation and management of
the project.
 - ii) Where feasible and desirable, the project shall
include resident ownership, including but not
limited to Limited-Equity Housing Cooperatives.
 - iii) Where feasible and desirable, projects shall
use public land.
 - (B) **Multifamily Affordable Housing.** Funding for
Multifamily Affordable Housing may only be used
for programs that result in the construction of
supportive and/or affordable housing projects for
income-qualified populations in conjunction with
other federal, state, and local affordable housing
funding sources, such as federal Low-Income
Housing Tax Credits and State Low-Income

Housing Tax Credits, or to pay the principal
and interest on debt incurred for such purpose.
These funds may also be used for the acquisition,
rehabilitation, adaptive reuse, lease, preservation,
or operation of supportive and/or affordable or
mixed rental/homeowner projects of any size, or
to pay the principal and interest on debt incurred
for such purpose. All units shall be subject to a
covenant that meets the requirements of Section
10.100-12(c)(5)(B).

- (3) Preservation/Acquisition Program funds shall be
allocated in the following categories, according to the
allocations set forth in Section 1114.2 of the Business
and Tax Regulations Code:
 - (A) **New Acquisitions.** Funding for New Acquisitions
may only be used for programs that result in the
acquisition, preservation, rehabilitation, lease, or
operation of existing housing including but not
limited to rent-controlled properties, Residential
Hotels, Accessory Dwelling Units, and Junior
Accessory Dwelling Units, without existing
covenants requiring affordability, or to pay the
principal and interest on debt incurred for such
purpose, subject to the following conditions:
 - i) A majority of a property's units must be
occupied by Lower Income Households upon
acquisition, which shall be assumed if a
majority of tenants certify in writing that their
incomes are at or below the lower-income level
in a manner the Department shall determine.
Notwithstanding the above, funds may be
utilized for acquisition and rehabilitation of any
property that was used as a Residential Hotel
within the five years preceding the application
for funding.
 - ii) Housing units shall be acquired and managed
by a public entity, a local housing authority,
a Community Land Trust, a Limited Equity
Housing Cooperative, or a nonprofit entity
within Internal Revenue Code Section 501(c)
(3), which demonstrates a history of affordable
housing development and/or affordable housing
property management experience, through
a process the Department shall determine.
A Community Land Trust or a Limited-Equity
Housing Cooperative may qualify for funding
by (a) partnering with an experienced nonprofit
organization as defined by the Department, or
(b) showing evidence of staff capacity adequate
to manage and administer the affordable
housing project, through a process determined
by the Department.
 - iii) All units shall be subject to a covenant
that meets the requirements of subsection
10.100-12(c)(5)(B).
 - iv) Notwithstanding the affordability provisions set
forth in subsections 10.100-12(c)(5)(A) and
10.100-12(c)(5)(B) of this Section, existing
residents of properties acquired pursuant to
this New Acquisitions program shall not be
permanently displaced, even if their incomes
exceed the Lower Income Household limits, or
any lower income limit set for a unit. Projects

- shall achieve 100 percent occupancy by Lower Income Households (or any lower project-specific income limit) over time through unit turnover.
- v) Through a process that the Department shall determine, the entity that acquires a property shall submit a plan for engaging residents in building management and operations, which may include a plan for tenant ownership such as a Limited-Equity Housing Cooperative. The Department shall cooperate with and facilitate plans for tenant ownership, and shall not unreasonably impose requirements that prohibit such ownership conversion.
 - vi) Project funding may take the form of grants or loans, but shall not require the leveraging of additional forms of funding if such additional funding makes any of the conditions set forth in this subsection infeasible, or if funding precludes the future conversion of the property to tenant ownership.
 - vii) Funds may be used to acquire, install, construct, or rehabilitate housing, including Accessory Dwelling Units ("ADUs") and Junior Accessory Dwelling Units ("JDUs"), so long as all ADUs and JDUs are used as affordable rental housing or affordable homeownership. The Department may verify the use of ADUs and JDUs covered by this provision from time to time.
- (B) **Rehabilitation and Capital Stabilization of Existing Affordable Housing.** Funding for Rehabilitation and Capital Stabilization of Existing Affordable Housing may only be used for programs that result in the improvement or stabilization of existing affordable housing, including capital repairs, seismic upgrades, energy retrofits, operating subsidies, the creation or replenishment of operating reserves, or to pay the principal and interest on debt incurred for such purpose, subject to the following conditions:
- i) Properties receiving funding must either be subject to a recorded covenant or restriction limiting occupancy of at least 80% of the property's residential units to households earning at or below 120% of area median income, or owned by a Limited-Equity Housing Cooperative.
 - ii) Operating subsidies may only be provided for units subject to a recorded covenant or restriction limiting occupancy to Very Low Income Households, Extremely Low Income Households, or Acutely Low Income Households.
 - iii) No funds may be used if the rehabilitation or repair will result in the permanent displacement of residents.
 - iv) If the rehabilitation or repair will result in the temporary relocation of existing residents, any such award of funds must be inclusive of the costs of temporary relocation consistent with federal, state, and local law.
 - v) Funds may be used for the acquisition of affordable housing only if being used to make offers to purchase assisted housing developments which are required to provide qualified entities an opportunity to purchase under California Government Code Section 65863.11, by acting within the deadlines established by that law.
- (4) Tenant Stabilization/Homelessness Prevention Program funds shall be allocated in the following categories, according to the allocations set forth in Section 1114.2 of the Business and Tax

Regulations Code:

- (A) **Eviction Defense and Prevention.** Funding for Eviction Defense and Prevention may only be used for programs that provide funding for a right-to-counsel program to provide housing-related legal services to tenants threatened with eviction; programs that provide tenant outreach, education, and navigation services, including but not limited to providing information about tenant rights and the Tenant Stabilization/Homelessness Prevention Program; and/or programs that fund nonprofit organizations to monitor and enforce protections against tenant harassment and other tenant rights, and to inform tenants of such protections and support them in exercising their rights.
 - (B) **Emergency Rental Assistance.** Funding for Emergency Rental Assistance may only be used for programs that provide short-term emergency funding to tenant households at risk of becoming homeless. Funds must stabilize low-income tenants at risk of losing their housing due to one-time economic shocks, and may cover the entirety of rent payments for up to 6 months. Priority eligibility shall be established for Lower Income Households.
- (5) For purposes of the programs described in subsections 10.100-12(c)(2) and 10.100-12(c)(3) of this Section, the following shall apply to the maximum extent allowed by federal and state law:
- (A) **Affordability.** All units in a funded project shall be affordable to and occupied by Acutely Low Income Households, Extremely Low Income Households, Very Low Income Households, or Low Income Households, except as allowed by subsections 10.100-12(c)(2)(A) and 10.100-12(c)(3)(A)(iv). The Department shall adopt a policy to prevent the displacement of households that qualified for a unit upon initial occupancy but thereafter exceed the income limits. Such households may be charged a rent commensurate with their current income levels.
 - (B) **Covenants.** The programs described herein are intended to provide dedicated housing that is affordable to households at the respective levels of income that occupy the housing units, whether as owner-occupants or tenants, and whose housing cost or rent does not exceed the affordable housing cost or affordable rent for households at such income levels. Each property and each affordable housing unit funded pursuant to subsections 10.100-12(c)(2) and 10.100-12(c)(3) of this Section shall be made subject to a recorded covenant acceptable to the Department and recorded with the San Francisco Assessor-Recorder's Office, that meets each of the following requirements:
 - i) Each housing unit in the project shall be used exclusively as a residence for households at the respective income level.
 - ii) The housing cost or rent for such housing unit shall be no more than an affordable housing cost or affordable rent at the respective level of income.
 - iii) No housing unit may be leased or subleased, except to a household at the level of affordability and for no more than an affordable

- rent for which the unit was dedicated.
- iv) Any resale of rental property funded by this initiative shall be restricted to nonprofit entities or Limited-Equity Housing Cooperatives, including but not limited to affordable housing corporations and Community Land Trusts, to ensure the continued use of the dwelling units as affordable housing as provided in this section. This restriction may be lifted only in cases of transfers by foreclosure or other similar conveyance.
 - v) In the case of owner-occupied housing units, initial sales and all resales shall be restricted to purchasers whose household income does not exceed the income level to which the unit is dedicated and who do not pay in excess of affordable housing cost at that income level; or to Limited-Equity Housing Cooperatives or similar entities providing for resident ownership and affordability in perpetuity.
 - vi) The term of the affordability restrictions contained in the covenant shall be in perpetuity, or such other maximum length of time as may be permitted by applicable law, except that an affordability covenant with a fixed term of no less than 55 years shall be acceptable only if necessary to meet requirements of other funding sources.
 - vii) The affordability restrictions shall be senior to and not subordinated to any lien, deed of trust or condition or restriction to be recorded against the property, except for any land use-related affordability covenant, such that any entity taking title to the property or a dwelling unit by foreclosure or deed-in-lieu of foreclosure shall take subject to the affordability restrictions. This requirement may be relaxed to the minimum extent necessary to provide flexibility regarding the seniority of affordability restrictions, in a manner to be determined based on the requirements of other public funders.
- (C) **Replacement, Relocation and Right of First Refusal.** Funding provided pursuant to the Affordable Housing Production Program or Preservation/Acquisition Program shall comply with all federal, state, and local requirements regarding replacement housing, relocation assistance, and rights of first refusal for displaced persons.
- (D) To qualify for funding from the Affordable Housing Production Program or Preservation/Acquisition Program, an applicant must demonstrate a history of affordable housing development and/or affordable housing property management experience, as the Department defines those terms consistently with the purpose of the House SF Fund. Community Land Trusts and Limited-Equity Housing Cooperatives may demonstrate a history of affordable housing development and/or affordable property management experience, as the Department defines those terms consistently with the purpose of the House SF Fund, by
- (a) partnering with experienced nonprofit organizations, or
 - (b) showing evidence of staff capacity adequate to manage and administer the affordable housing project, as determined by the Department and consistent with the purpose of the House SF Fund.
- (E) Notwithstanding this Section, Affordable Housing Production Program funds and/or Preservation/Acquisition Program funds may be used to repay bonded indebtedness provided that the bond proceeds are used consistent with the requirements of those programs.
- (6) Pursuant to California Constitution Article XIII B and applicable laws, for four years from November 3, 2026, the appropriations limit for the City shall be increased by the aggregate sum collected by the levy of the tax imposed under Section 1102.3 of the Business and Tax Regulations Code.
- (d) **Administration of Fund.** The Department shall administer the House SF Fund, and in that capacity may expend funds for a range of eligible uses in accordance with annual program goals and priorities set forth per subsection 10.100-12(b), and enter into loan or grant agreements under terms as determined in the House SF Fund regulations.
- (e) **Reporting.** The Department shall submit a report annually by February 15 to the Board of Supervisors and the Mayor, on the use of the House SF Fund during the preceding calendar year, which shall include, but need not be limited to, the amounts approved for disbursement to specific uses, the number and size of sites acquired and type (including improved or vacant), the scope of rehabilitation work for improved sites, the number of units developed or assisted by the House SF Fund, the neighborhoods/geography of projects funded, the impact on racial equity, and overall program implementation goals for the current fiscal year and proposed priorities for the next fiscal year. The report to the Board of Supervisors shall be accompanied by a draft motion for the Board to accept the report.
- (f) **Fund Regulations.** The Department is authorized to develop program rules and regulations regarding use of monies in the House SF Fund, including regulatory agreements to ensure perpetual affordability of funded projects, to best achieve the purposes of the Fund. No housing funded under this program shall be allowed to be used for Short-Term Residential Rental as defined in Administrative Code Section 41A.4.
- (g) **Amendment.** The People of the City and County of San Francisco authorize the Board of Supervisors to enact ordinances, without further voter approval, to amend this Section 10.100-12 or any other provision of the initiative measure which adopted it, provided, however, that:
- (1) Such amendments shall further or facilitate the purposes stated in subsection 10.100-12(b);
 - (2) No such amendment may increase the tax imposed pursuant to Sections 1102 or 1102.3 of Article 12-C of the Business and Tax Regulations Code within the meaning of California Government Code Section 53750(h) without the voter approval required by Article XIII of the California Constitution; and
 - (3) No such amendment may expand the eligible uses of the House SF Tax revenue or the House SF Fund to allow funding of Interim Housing or residential housing projects where fewer than 80% of the units are subject to a covenant restricting occupancy to income qualified

households with a maximum average affordability of 80% of the median income. For purposes of this subsection, “Interim Housing” shall mean any facility whose primary purpose is to provide a temporary shelter and which (A) does not require occupants to sign residential leases or occupancy agreements, including but not limited to congregate shelter; or (B) does not provide residents with the tenant protections afforded under state and local landlord-tenant law.

Section 8. Scope of Ordinance. In enacting this ordinance, the People of the City and County of San Francisco intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Administrative Code and Business and Tax Regulations Code that are explicitly shown in this ordinance as additions or deletions, in accordance with the “Note” that appears under the official title of the ordinance.

Section 9. Amendment After Submission. Notwithstanding Section 8, in enacting this ordinance, the People of the City and County of San Francisco intend Sections 2 through 6 of this ordinance to amend Article 12-C of the Business and Tax Regulations code as it read on April 1, 2026. If Article 12-C of the Business and Tax Regulations code is amended between April 1, 2026 and the effective date of this ordinance, this ordinance does hereby reenact Article 12-C of the Business and Tax Regulations code as it read on April 1, 2026 as amended by Sections 2 through 6 of this ordinance.

Section 10. Effective Date. The effective date of this ordinance shall be ten days after the date the official vote count is declared by the Board of Supervisors.

Section 11. Competing Measures. In the event that this Measure and another local measure relating to the real estate transfer tax or affordable housing funding appear on the same ballot, the People of the City and County of San Francisco declare their intent that if both measures are approved, this Measure shall prevail over the other measure to the extent they are in conflict to the maximum extent permitted by law, regardless of the number of votes cast for each measure. If this Measure receives a greater number of affirmative votes than any competing measure, the provisions of this Measure shall control in the case of any conflict.

Section 12. Severability. If any provision of this Measure or the application thereof to any person or circumstance is held invalid, the remainder of the Measure and the application of such provision to other persons or circumstances shall not be affected thereby except that the legal effectiveness and actual collection of the tax authorized by this Measure is a condition precedent to the reduction of the tax rate imposed by Section 1102 of the Business and Tax Regulations Code.

Proposition J

Ordinance amending the Business and Tax Regulations Code to, beginning March 1, 2027, eliminate the real property transfer tax foreclosure exemption for the transfer of all properties other than the transfer of residential and mixed-use properties with fewer than five residential units, and to make other non-substantive clarifications to the real property transfer tax; and increasing the City’s appropriations limit by the amount of real property transfer tax collected for four years from November 3, 2026.

NOTE: **Unchanged Code text and uncodified text** are in plain font.

Additions to Codes are in single-underline italics Times New Roman font.

Deletions to Codes are in ~~strikethrough italics Times New Roman font~~.

Asterisks (* * * *) indicate the omission of unchanged Code subsections or parts of tables.

Be it ordained by the People of the City and County of San Francisco:

Section 1. Article 12-C of the Business and Tax Regulations Code is hereby amended by revising Sections 1101, 1108.2, and 1111, to read as follows:

SEC. 1101. SHORT TITLE.

This Article 12-C shall be known as the “Real Property Transfer Tax Ordinance.” ~~It is adopted pursuant to the authority contained in Part 6.7 (commencing with Section 11901) of Division 2 of the Revenue and Taxation Code of the State of California.~~

SEC. 1108.2. EXEMPTION; DEEDS IN LIEU OF FORECLOSURE, ETC.

(a) Any tax imposed pursuant to this ~~ordinance~~Article 12-C shall not apply with respect to any deed, instrument, or writing to a beneficiary or mortgagee, which is taken from the mortgagor, trustor, or trustee, as a result of or in lieu of foreclosure ~~of a qualified residential property as defined in subsection (b), or of interests in a legal entity directly or indirectly owning a qualified residential property, to the extent of any transfer tax otherwise due with respect to such qualified residential property;~~ provided, that such tax shall apply to the extent that the consideration ~~or value for the transfer of a qualified residential property, or the fair market value of the qualified residential property that experienced a change of ownership under California Revenue and Taxation Code Section 64 for the transfer of interests in a legal entity directly or indirectly owning a qualified residential property,~~ exceeds the unpaid debt, including accrued interest and cost of foreclosure. Consideration, value, or fair market value, as applicable; the unpaid debt amount; and identification of grantee as beneficiary or mortgagee shall be noted on said deed, instrument or writing or stated in an affidavit for tax purposes.

(b) For purposes of subsection (a), a “qualified residential property” means a single-family residence, condominium, cooperative unit, single live/work unit, multifamily residential property with fewer than five residential units, or mixed-use property with fewer than five residential units and only a single floor of non-residential space. A qualified residential property shall not include a property with a unit or units designed for occupancy primarily by travelers, vacationers, or other transient occupants.

(c) Notwithstanding any other provision of this Article 12-C, the tax imposed with respect to any deed, instrument or writing to a beneficiary or mortgagee, which is taken from the mortgagor, trustor, or trustee, as a result of or in lieu of foreclosure, if such transfer is not subject to the exemption in subsection (a), shall be based on the fair market value of the interest or property conveyed (not excluding the value of any lien or encumbrances remaining thereon at the time of sale), or the fair market value of all real property that experienced a change in ownership under California Revenue and Taxation Code Section 64 as a result of the transfer, as applicable, and shall not be based on consideration.

SEC. 1111. RECORDING PAYMENT OF TAX; DEPOSIT OF TAX TO GENERAL FUND.

(a) Except as provided in any ballot measure amending this Article 12-C that the voters approve at the November 3, 2026 election, the tax this Article 12-C imposes is a general tax and tThe County

Recorder shall collect the tax ~~hereby imposed~~ and deposit ~~it in the same to~~ the General Fund ~~to be expended for any City purpose~~. The County Recorder shall not record any deed, instrument or writing subject to the tax imposed by this Article 12-C unless the tax is paid.

* * * *

Section 2. Scope of Ordinance. In enacting this ordinance, the People of the City and County of San Francisco intend to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Municipal Code that are explicitly shown in this ordinance as additions or deletions, in accordance with the “Note” that appears under the official title of the ordinance.

Section 3. Appropriations Limit Increase. Pursuant to California Constitution Article XIII B and applicable laws, for four years from November 3, 2026, the appropriations limit for the City shall be increased by the aggregate sum collected by the levy of the tax under Article 12-C of the Business and Tax Regulations Code as amended by this ordinance and any other ordinance amending Article 12-C of the Business and Tax Regulations Code that the voters approve at the November 3, 2026 election.

Section 4. Effective Date; Operative Dates.

(a) Effective Date. This ordinance shall become effective on the eleventh day after the date the official vote count is declared by the Board of Supervisors.

(b) Operative Dates. The amendments to Section 1108.2 of Business and Tax Regulations Code Article 12-C in this ordinance shall become operative on March 1, 2027, and shall apply to transfers occurring on or after that date. The amendments to Sections 1101 and 1111 of Business and Tax Regulations Code Article 12-C in this ordinance are declaratory of existing law and shall become operative immediately upon the effective date of this ordinance.

Making a Difference Through Conversation

The Department of Elections invites you to take part in a simple yet meaningful activity: start three conversations about registering to vote and participating in the 2026 elections.

This pamphlet reaches more than **500,000 voters** across San Francisco. If each reader starts just three conversations, together we could spark more than **1.5 million conversations** citywide.

Whether you talk with a friend, neighbor, family member, or someone you meet at a community event, each conversation helps raise awareness and supports San Franciscans in feeling informed, confident, and ready to participate in local elections.

Have a story to share about your experience? We would love to hear from you. Please consider sending a short reflection to **sfoutreach@sfgov.org** – your story may be featured in a future Voter Information Pamphlet to help inspire others.

Make the Switch to the Digital Voter Information Pamphlet and Save Paper and City Resources!

You can choose to receive your Voter Information Pamphlet & Sample Ballot in a convenient digital format. By law, the Department of Elections must mail a paper pamphlet to every voter unless they make the switch to the digital option.

To help save paper and City resources, consider choosing online delivery by viewing the pamphlet at **sfelections.gov/vip** for future elections. If your household receives more than one pamphlet, you may also wish to have all but one voter opt out and share a single paper copy. Not sure if reading the pamphlet online is right for you? You can try the digital option and easily switch back to mailed delivery at any time.

To make the switch and stop postal delivery of your Pamphlet, call the Department of Elections at **(415) 558-6100**, email **sfvote@sfgov.org**, or log into **sfelections.gov/voterportal**.

**Unable to travel
to the polls?**

**In the hospital or
a health care facility?**

**Need help returning
your ballot?**

If you or someone you know is unable to leave their home or hospitalized and needs help with voting, the Department of Elections can provide personalized ballot delivery and/or pick-up service.

To request this service, please call **(415) 558-6100** or email **sfvote@sfgov.org**.

Our team is ready to support you.

Get Election Information from Trusted, Official Sources

The San Francisco Department of Elections and the California Secretary of State are the official and trusted sources of election information. These agencies provide accurate, timely, and nonpartisan guidance on voter registration, voting options, key deadlines, and election results. Relying on verified information from election officials helps voters stay informed and avoid misinformation.

The Department's website, **sfelections.gov**, is a comprehensive source of election information, with resources available in multiple languages, including English, Chinese, Spanish, Filipino, and Vietnamese. The website also provides access to the Voter Portal at **sfelections.gov/voterportal**, where you can review and update your voter registration record. Keeping your information current helps ensure that your ballot and election materials are delivered without delay. The Voter Portal also allows you to track your ballot, find your polling place, view your voting districts, and access other helpful services.

You can stay informed by following the Department of Elections (@SFElections) on Facebook, Instagram, X (Twitter), and Nextdoor. To receive election news and reminders directly in your inbox, sign up to receive official election updates by email at **sfelections.gov/trustedinfo**. Voters may also call the Department at (415) 558-6100, where multilingual staff are available to answer questions and provide assistance.

Official election results are posted at **sfelections.gov** and updated as ballot processing continues until the election results are certified. The Department administers elections in a fair, nonpartisan, and transparent manner and offers multiple opportunities for the public to observe election activities. Learn more at **sfelections.gov/observe**.

If you encounter election information that may be inaccurate or misleading, please report it to the California Secretary of State at **catrustedinformation@sos.ca.gov**, and to the Department of Elections at **sfvote@sfgov.org**.

The Department of Elections is here to support you at every step and to help ensure you have access to comprehensive, nonpartisan information—from learning what is on your ballot and understanding your voting options to tracking your ballot and finding official election results.

Help Shape Future Election Outreach in San Francisco

The Department of Elections invites you to take a short, anonymous survey about how you receive election information. Your feedback will help guide our future outreach efforts and ensure that election information reaches communities across San Francisco.

Before each election, the Department develops a Voter Outreach and Education Plan outlining the many ways we connect with voters and potential registrants. These efforts include mailed notices and flyers, community presentations, radio, television, and newspaper advertisements, website and social media updates, and partnerships with local organizations and City agencies.

To complete this survey, visit **sfelections.gov/outreachimpactsurvey** or scan this QR code. If you prefer, you may contact the Department to request a paper copy by mail.

Thank you for taking a few moments to share your thoughts and help strengthen voter outreach in our community.



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November 3, 2026 Ballot Worksheet

You can use this worksheet to organize your choices before marking your official ballot cards. To do so:

- 1. Refer to your sample ballot included in this Pamphlet or at **sfelections.gov/voterportal**.
- 2. Read about the candidates and measures listed on your ballot in this Pamphlet and the state Voter Information Guide.
- 3. Beginning October 23, you can see all qualified write-in candidates for this election at **sfelections.gov/writein**.
- 4. As you finish researching each contest, use the relevant blank space below to note your choice(s).
- 5. Then carefully copy your choices from this worksheet onto your official ballot cards.

If you make a mistake marking your official ballot, you may request a new ballot by visiting **sfelections.gov/voterportal**, calling the Department of Elections at (415) 558-6100, or asking a poll worker or Voting Center representative.

OFFICES		
VOTER-NOMINATED OFFICES <i>(Vote for One)</i>		
Governor		
Lieutenant Governor		
Secretary of State		
Controller		
Treasurer		
Attorney General		
Insurance Commissioner		
Board of Equalization Member, District 2		
United States Representative, District 11 or 15		
State Assembly Member, District 17 or 19		
NONPARTISAN OFFICES		
JUDICIAL <i>(Vote YES or NO for each office)</i>	YES	NO
For Associate Justice of the Supreme Court Shall Associate Justice of the Supreme Court JOSHUA GROBAN be elected to the office for the term provided by law?		
For Associate Justice of the Supreme Court Shall Associate Justice of the Supreme Court KELLI M. EVANS be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division One Shall Associate Justice MONIQUE LANGHORNE WILSON be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division One Shall Associate Justice CHARLES A. SMILEY be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division One Shall Associate Justice KATHLEEN M. BANKE be elected to the office for the term provided by law?		
For Presiding Justice, Court of Appeal, First District, Division Two Shall Presiding Justice THERESE M. STEWART be elected to the office for the term provided by law?		



For Associate Justice, Court of Appeal, First District, Division Two Shall Associate Justice TARA M. DESAUTELS be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division Three Shall Associate Justice IOANA PETROU be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division Three Shall Associate Justice VICTOR A. RODRIGUEZ be elected to the office for the term provided by law?		
For Presiding Justice, Court of Appeal, First District, Division Four Shall Presiding Justice TRACIE L. BROWN be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division Five Shall Associate Justice DANNY Y. CHOU be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division Five Shall Associate Justice MARK SIMONS be elected to the office for the term provided by law?		
For Associate Justice, Court of Appeal, First District, Division Five Shall Associate Justice GORDON BURNS be elected to the office for the term provided by law?		
SCHOOL		
State Superintendent of Public Instruction (Vote for One)		
Member, Board of Education (Vote for no more than Three)		
Trustee, Community College Board 4-year term ending January 8, 2031 (Vote for no more than Three)		
Trustee, Community College Board Remainder of the current term ending January 8, 2029 (Vote for One)		
DISTRICT (Vote for One)		
BART Director, District 8*		
CITY AND COUNTY (elected using ranked-choice voting)		
Assessor-Recorder		
Public Defender		
Member, Board of Supervisors** (even-numbered Supervisorial Districts only)		

(The ballot worksheet continues on the next page)



*Voters residing in BART District 8 will vote for their representative on the BART Board of Director in this election. Check your BART District at sfelections.gov/voterportal.

**Voters residing in Supervisorial District 2, 4, 6, 8, or 10 will vote for their Member of the Board of Supervisors in this election. Check your Supervisorial District at sfelections.gov/voterportal.

(Ballot worksheet, continued)

MEASURES			
STATE PROPOSITIONS		YES	NO
1	Authorizes Bonds for Housing Affordability Programs		
2	Increases State's Rainy Day Fund		
3	Provides Permanent Funding for Schools and Health Care by Extending Existing Tax on High Incomes		
4	Repeals Prohibition Against Public Funding of Election Campaigns		
5	Changes Recall Election Process for Statewide Officers		
37	Creates Loan Program for Middle-Income Buyers of Qualified New Homes		
38	Authorizes Bonds for Immunology Medical Research		
39	Prohibits Citizens from Voting Unless They Present Government-Issued Identification		
40	Imposes One-Time Tax on Certain Taxpayers		
41	Prohibits New State Taxes that Exclude Revenues from State Spending Limit. Requires Audits for New State Special Taxes		
42	Prohibits New State Personal Property Taxes and Certain Retroactive State Taxes		
43	Limits Voters' Ability to Raise Revenues for Local Government Services		
44	Requires Community Health Clinics Spend 90% of Revenue on Program Services		
45	Modifies Environmental Review for Certain Projects		
REGIONAL MEASURE		YES	NO
RTM	Regional Transit Measure		
CITY AND COUNTY PROPOSITIONS		YES	NO
A	Charter Changes Affecting Various City Departments and Commissions		
B	Establishing a Municipal Finance Corporation and a Public Bank		
C	Contributions to the Housing Trust Fund		
D	Changes to Ballot Measure Process		
E	City Administrator's Authority and Changes to City Contracting		
F	Changes to Executive Branch Management		
G	Allowing Private Vehicles on the Upper Great Highway in Sunset Dunes Park		
H	Parcel Tax to Fund Muni Operations		
I	Changes to Real Property Transfer Tax		
J	Removal of Foreclosure Exemption for Real Property Transfer Tax		



Voter Bill of Rights

You have the following rights:

- 1. The right to vote if you are a registered voter.** You are eligible to vote if you are: a U.S. citizen living in California, at least 18 years old, registered where you currently live, not currently serving a state or federal prison term for the conviction of a felony, and not currently found mentally incompetent to vote by a court.
- 2. The right to vote if you are a registered voter even if your name is not on the list.** You will vote using a provisional ballot. Your vote will be counted if elections officials determine that you are eligible to vote.
- 3. The right to vote if you are still in line when the polls close.**
- 4. The right to cast a secret ballot** without anyone bothering you or telling you how to vote.
- 5. The right to get a new ballot if you have made a mistake**, if you have not already cast your ballot. You can: **ask an elections official at a polling place** for a new ballot, **exchange your vote-by-mail ballot** for a new one at an elections office, or at your polling place, or **vote using a provisional ballot**.
- 6. The right to get help casting your ballot** from anyone you choose, except from your employer or union representative.
- 7. The right to drop off your completed vote-by-mail ballot at any polling place** in California.
- 8. The right to get election materials in a language other than English** if enough people in your voting precinct speak that language.
- 9. The right to ask questions to elections officials about election procedures** and watch the election process. If the person you ask cannot answer your questions, they must send you to the right person for an answer. If you are disruptive, they can stop answering you.
- 10. The right to report any illegal or fraudulent election activity** to an elections official or the Secretary of State's office.
On the web at **www.sos.ca.gov**
By email at **elections@sos.ca.gov**

If you believe you have been denied any of these rights, call the Secretary of State's confidential toll-free Voter Hotline at **(800) 345-VOTE (8683)**.

Your Online Resources

- ✓ Register to vote or update your registration: **registertovote.ca.gov**
- ✓ Map out your voting plan: **sfelections.gov/voteready**
- ✓ Practice marking a ranked-choice voting contest: **sfelections.gov/practicercv**
- ✓ Track your ballot or request a replacement: **sfelections.gov/voterportal**
- ✓ Sign up to receive ballot notifications: **wheresmyballot.sos.ca.gov**
- ✓ Find a convenient ballot drop box location: **sfelections.gov/dropboxes**
- ✓ Confirm your assigned polling place: **sfelections.gov/myvotinglocation**
- ✓ Learn about election security: **sfelections.gov/security**
- ✓ View preliminary and final election results: **sfelections.gov/results**

Have Questions? Need Assistance?

Visit our office located at:

**1 Dr. Carlton B. Goodlett Place
City Hall, Room 48
San Francisco, CA 94102**

Or contact us at **sfvote@sfgov.org** or by phone.

We have new phone numbers.

Our previous phone numbers remain active during the transition.

English: (415) 558-6100
中文: (415) 558-6102
Español: (415) 558-6103
Filipino: (415) 558-6104
Tiếng Việt: (415) 558-6105
TTY: (415) 558-6108



NONPROFIT ORG.
U.S. POSTAGE
PAID
SAN FRANCISCO, CA
PERMIT NO. 2750

Your polling place is located at:

Mailing Address:

ELECTRONIC SERVICE REQUESTED

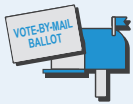
Your voting precinct and districts are:

Notice: If the person above is not at this address, please help keep the voter rolls current and save city funds by returning this pamphlet to your mail carrier.



Are the entryway and voting area of your polling place accessible?

Important Reminders!



Check your mailbox for your vote-by-mail ballot packet arriving in early October.

Any voter may choose to vote by mail or in person.



Return your ballot as soon as possible using the postage-paid envelope enclosed with your ballot packet.

Ballots returned by mail must be postmarked on or before Election Day, November 3, 2026.

Ballots returned in person must be hand-delivered by 8 p.m. on Election Day, November 3, 2026 to any official ballot drop box or voting site in California.



Track your ballot to check if it was received and counted.

Visit sfelections.gov/voterportal or sign up for ballot tracking notifications at wheresmyballot.sos.ca.gov.

Get accurate answers to your election questions.

Read this pamphlet, visit sfelections.gov, contact us at (415) 558-6100 or sfvote@sfgov.org.